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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker.

MORNING-HOUR DEBATE

The SPEAKER. Pursuant to the order of the House of January 5, 2016, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

ENDING HUMAN TRAFFICKING

The SPEAKER. The Chair recognizes the gentleman from Pennsylvania (Mr. COSTELLO) for 5 minutes.

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I rise in support of H.R. 515, and I commend Congressman SMITH for his continued leadership efforts to combat human trafficking. It is an issue many of us take very, very seriously.

This Congress, the House has passed several commonsense, bipartisan pieces of legislation to end human trafficking, and we remain dedicated to finding solutions to prevent this criminal activity, to protect victims, and to prosecute those individuals who seek to exploit innocent children.

One year ago today, I spoke on this critical piece of legislation when it first came to the House floor. I am glad the Senate has finally considered it, and I am proud to be standing here again today as this legislation will finally make its way to the President's desk for his signature following the legislation's passage here in the House.

Mr. Speaker, human trafficking is not a distant concept. It exists in communities across America. An estimated 300,000 young Americans are in danger of becoming victims of sex trafficking. The average age, believe it or not, is 12 to 14 years old for girls. Last year alone, my home State of Pennsylvania had a total of 106 reported cases of human trafficking and 514 calls of human trafficking violations. In fact, Pennsylvania has stepped up the fight by enacting stricter human trafficking laws, and it was named one of the top five ''most improved'' States by the Polaris Project.

The legislation we have passed here in the House is another step in the right direction. We have made progress, but there is more that we can and must do. I look forward to working with my colleagues to continue the fight against human trafficking.

BARCLAY GROUNDS

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I also rise to highlight the success of a local land preservation effort in West Chester Borough, Chester County, Pennsylvania.

The Barclay Grounds, located in West Chester Borough, is a beautiful property. The land has a rich history dating back to William Penn's charter from the King. Over the years, it has served as an orchard and has been utilized for agricultural purposes as well as for passive recreation activities. For over 2 years, local officials and grassroots volunteers have worked on a common mission: to preserve the Barclay Grounds for future generations.

I can recall, when I was a county commissioner, when a gentleman by the name of John Cottage, who founded the Barclay Grounds Preservation Alliance, came in to see us, and I and my then-colleagues on the Board of County Commissioners, Terence Farrell and Kathi Cozzone, decided that this was a worthwhile endeavor. We provided the seed funding, if you will, to help kickstart the grant application process for several funding streams to make sure that we would be able to preserve the Barclay Grounds.

I am pleased to stand before this country today and say that a group of local officials and local volunteers did something great in a local community that is going to preserve for future generations a really historic, cultural, and environmental gem.

I commend the dedicated officials in the West Chester community, including the West Chester Borough Council, a lot of people involved in the preservation movement, including the grant writing teams at the Natural Lands Trust, as well as the Brandywine Conservancy and many others, for their efforts to preserve this passive park.

RECESS

The SPEAKER pro tempore (Mr. HARDY). Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 4 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. JENKINS of West Virginia) at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

God of mercy, we give You thanks for giving us another day.

With exciting news for some, disappointing for others, and remarkable for our Nation, the Members of this assembly gather to address the work that is theirs to perform.

May each Member be reminded of the responsibility before them and, amidst the heightened emotions of this day, properly and accurately discern substance from distraction.

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We thank You for the incredible gift of our representative democracy still being forged in the river of time that is American history. May the work done in the people's House through these days prove to be historically fruitful and edifying for generations of Americans to come.

May all that is done be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentlewoman from North Carolina (Ms. FOXX) come forward and lead the House in the Pledge of Allegiance.

Ms. FOXX led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

CONGRATULATING FLONNIE ANDERSON

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, today I rise to recognize Flonnie Anderson of Winston-Salem, North Carolina. This remarkable and talented woman has spent her life accomplishing things ahead of her time, from majoring in theater during the 1940s to helping desegregate a community, to starting her own theater group.

As a teacher at Parkland High School in 1970, Mrs. Anderson directed a play that starred both African American and Caucasian students, a first in the history of Forsyth County schools. As a director, she also helped integrate the theater department at Wake Forest University.

She was the first African American actress to perform with the Little Theatre of Winston-Salem. From that point on, the Little Theatre became known as a place where the African American community could be treated equally.

In recognition of her 34 years as an educator, Parkland High School in Winston-Salem has named their auditorium for Mrs. Anderson. This honor is well deserved and pays tribute to her lasting impact in the local community.

HUMANITARIAN CRISIS IN MADAYA, SYRIAN

(Ms. LORETTA SANCHEZ of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise today in order to bring attention to the ongoing humanitarian crisis in Madaya, Syria.

The inhabitants of Madaya are unable to leave and are threatened daily by regime snipers and antipersonnel mines that surround their city. Over 40,000 civilians have been kept from receiving vital humanitarian aid. And, yes, this has resulted in mass starvation.

Sadly, Madaya is not unique in its suffering. There are Madayas all over Syria—cities under siege—caught in the middle of this vicious fighting, cities with inhabitants in dire need of food, water, and medical attention.

I urge Congress, the President, and the international community to do more in response to the humanitarian crisis that is going on in Syria. Enough is enough. We have to stop these tragedies from happening. It is our collective responsibility to do everything in our power; so let's do it.

IRANIAN NUCLEAR DEAL SUPPORTS TERRORISM

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, the fantasy Iranian nuclear deal went into effect on January 16, giving the Iranian regime billions of dollars to support terrorism, expand its ballistic missile program, and threaten American families with attacks.

Just 2 weeks ago Secretary of State John Kerry admitted that some of the funds would go to terrorist groups. What is worse, the Secretary believes there is no way to prevent the funds from supporting terrorist activity to kill American families. We must and should be clear that the United States has zero tolerance for terrorism or regimes that support terrorism.

I am grateful to cosponsor the bipartisan Zero Tolerance for Terror Act. This critical legislation gives Congress the ability to act quickly and effectively when Iran violates the existing restrictions. We should take every effort to protect American families and our Persian Gulf allies from an irrational regime that promotes ''death to America, death to Israel.''

In conclusion, God bless our troops, and may the President, by his actions, never forget September the 11th in the global war on terrorism.

GREENSBORO FOUR SIT-INS

(Ms. ADAMS asked and was given permission to address the House for 1 minute.)

Ms. ADAMS. Mr. Speaker, yesterday marked the anniversary of the Greensboro Four sit-ins.

Fifty-six years ago four North Carolina A&T freshmen decided to peacefully challenge racial segregation in my hometown of Greensboro and the community I'm proud to serve in Congress.

Joseph McNeil, Jibreel Khazan, Franklin McCain, and David Richmond sat at a whites-only lunch counter inside a Greensboro Woolworth store. These young men sparked a wave of peaceful protests that spanned the State and Nation, helping to put an end to racial segregation.

I remember traveling through North Carolina as a young girl and going to the back door of restaurants because I couldn't sit inside. Because of the Greensboro Four, my children, my grandchildren, and future generations won't have to share in my experience.

My bipartisan resolution, H. Res. 128, honors these four courageous men and recognizes their impact. It has the support of 62 Members of Congress from both sides of the aisle.

Today I am calling on my colleagues to support and pass this resolution in honor of the Greensboro Four and all of the students who stood up for equality by sitting down to end racial segregation.

ROADBLOCK HUMAN TRAFFICKING

(Mr. WALBERG asked and was given permission to address the House for 1 minute.)

Mr. WALBERG. Mr. Speaker, I rise today to speak up on behalf of the millions of people across the world who suffer under the injustice of modern-day slavery.

Last month the House observed Human Trafficking Awareness Month to shine light on this horrific crime. The injustice of human trafficking knows no political party or geographical boundary. It happens right in our backyards.

Yesterday the House took important steps in passing two bills to strengthen our response to trafficking. I have also recently introduced H.R. 4406, the Enhancing Detection of Human Trafficking Act, legislation which ensures the Department of Labor effectively trains its employees to recognize and respond to the illegal trade of people for exploitation or commercial gain.

It will take close coordination from stakeholders at every level to eradicate this unthinkable crime. Together, our voices and actions can help bring freedom to the oppressed.

FIGHT TO CURE CANCER

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, 3 weeks ago President Obama in this very Chamber called for a national moonshot initiative to fight cancer. Yesterday the White House proposed to allocate $1 billion over the next 2 years to

supplement cancer research efforts that are underway.

The President said cancer research is at an inflection point, and he is right. One need only to look at the groundbreaking work on immunotherapy underway at the Roswell Park Cancer Institute in Buffalo to see how far the science has come.

Last year Congress came together to increase funding to the National Institutes of Health by $2 billion, including a 5 percent increase to the National Cancer Institute. Now is not the time to let up. It is time to accelerate and expand our Nation's cancer fight.

Next month the House will consider a budget resolution. I call on House leaders to stand behind our scientists to support Americans living with cancer and to include robust funding for cancer research.

SHAKESPEARE'S FIRST FOLIOS

(Mr. DOLD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DOLD. Mr. Speaker, just across the street is the world's largest Shakespeare collection. The Folger Shakespeare Library is home to more Shakespeare ''First Folios'' than anywhere else in the world.

Published in 1623, the ''First Folio'' is the first printed collection of Shakespeare's plays. Without it, 18 plays, including ''Macbeth,'' ''Julius Caesar,'' and ''The Tempest,'' could have been lost.

This year, as part of a national celebration marking the 400th anniversary of Shakespeare's death, the Folger Shakespeare Library is touring a ''First Folio'' around the country. Schoolchildren, theater lovers, and Shakespeare enthusiasts alike will witness with their own eyes the book that gave us Shakespeare.

During the month of February, the 10th District of Illinois is hosting the ''First Folio.'' The Lake County Forest Preserve District's Lake County Discovery Museum has the honor to present the exhibition ''First Folio! The Book That Gave Us Shakespeare.''

This will offer the public a once-in-a-lifetime opportunity to see this influential and treasured book and experience the powerful words of William Shakespeare.

Mr. Speaker, I encourage everyone who is able to take advantage of this amazing opportunity.

MOURNING THE HONORABLE GILBERT KAHELE

(Ms. GABBARD asked and was given permission to address the House for 1 minute.)

Ms. GABBARD. Mr. Speaker, this morning in Hawaii, in just a couple of hours, the people of the Aloha State are gathering at the Hawaii State Capitol to perform the Kanikau, a morning chant, as they bid farewell and celebrate the life of a great man and dedicated public servant who passed away suddenly last week.

The Honorable Gilbert Kahele was born in a small fishing village in Milolii on May 15, 1942. He is a native Hawaiian, a very talented musician, and a community activist who selflessly served our country as a U.S. marine, served Hawaii as a State senator, and served his community of Hawaii as a fierce advocate.

I saw Gil recently here in Washington, D.C., just a few months ago, where, as always, he was ready with a smile, a hug, and warm aloha.

My heart is with the Kahele 'ohana and all of Hawaii island as today we celebrate Gil's life of service and the positive impact he made on countless lives.

Gil, mahalo nui loa for dedicating your life to serving others and for demonstrating how much we can achieve when we work together in the spirit of aloha.

PUNXSUTAWNEY PHIL PREDICTS EARLY SPRING

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today with good news. Early this morning in Punxsutawney, Pennsylvania, located in the Commonwealth's Fifth Congressional District, Punxsutawney Phil predicted an early spring.

In the 130 years Phil has predicted the weather on February 2, this is only the 18th time that he has called for an early spring. Now, I know that I join many of my colleagues from across the Nation in a bipartisan fashion in hoping that this prediction comes true.

Groundhog Day means so much to Punxsutawney and the communities which surround it. This tradition has its roots which go back centuries, but the celebration in Punxsutawney got a start in 1886, one year before the first trek to the celebration's official home of Gobbler's Knob.

Since the start of the celebration, Phil has been joined on February 2 by movie stars such as Bill Murray and several Governors of Pennsylvania. And, yes, I have attended the festivities a few times. Phil even visited President Ronald Reagan at the White House.

It is wonderful to see such dedication from the people of Punxsutawney to this great tradition, which brings in visitors from across the world to Pennsylvania.

□ 1215

LET'S MAKE 2016 A YEAR OF ACTION

(Ms. KELLY of Illinois asked and was given permission to address the House for 1 minute.)

Ms. KELLY of Illinois. Mr. Speaker, our economy has made solid gains since 2009. We have added millions of jobs. Businesses are hiring. Our economy is growing.

In the Second District, we are seeing signs of recovery through small business growth and new startups like The New Look Restaurant and Bar owned by Nate and Cleo Pendleton.

But the fact remains that the American Dream still remains out of reach for far too many families. Today 8 million Americans are searching for well-paying jobs 7 years after the end of the recession.

Each year at my annual jobs fair, I meet hundreds of these qualified Americans who are tired of searching for good jobs. They are single mothers in night school. They are fathers working two part-time jobs to keep a roof over their family's heads. They are veterans who survived the fight abroad only to fight for employment at home. They are seniors who have to reenter the workforce after their retirement savings were wiped out.

These Americans deserve a government that will pass impactful jobs legislation. Let's make 2016 a year of action and economic prosperity.

COMMEMORATING 25 YEARS OF SERVICE FOR TRINITY BAPTIST COMMUNITY CHURCH INTERNATIONAL

(Mr. HULTGREN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HULTGREN. Mr. Speaker, I rise today to commemorate 25 years of faithful service carried out by members at Trinity Baptist Community Church International in Crystal Lake, Illinois.

Founded in 1991 by Senior Pastor Bishop Dr. Michael J. Love, the church has been a light to the surrounding community and to people around the world, demonstrating in word and deed Christ's command to love one's neighbor as oneself.

Through a myriad of initiatives, members have provided job skills training to struggling workers and relief to the impoverished.

Bishop Love's prison outreach ministry is well known to McHenry County and is a respected partner to the McHenry County Correctional Facility. Their diligence demonstrates the integral role faith plays in our local communities by bringing people together, united by common beliefs to help each other.

Like the Good Samaritan, they understand that ''neighbor'' sometimes includes those outside of their communities. That is why they have been involved with over 100 ministries across the globe, sharing the gospel and serving the people of Haiti, India, and the Dominican Republic, among others.

May God bless Trinity Baptist in its next 25 years of service.

AFFORDABLE CARE ACT IS HELPING PEOPLE

(Ms. BASS asked and was given permission to address the House for 1 minute.)

Ms. BASS. Mr. Speaker, I rise today to support the Affordable Care Act and to urge this House to sustain President Obama's veto of the legislation to repeal it.

During our last recess, I visited St. John's Well Child and Family Center, an anchor in the south Los Angeles community that provides quality health care for the community regardless of the patient's ability to pay.

The Affordable Care Act has enabled St. John's to expand and improve its facilities and increase its services, including updating and modernizing its children's dental services. This is an example of the dental clinic.

Because California embraced the law, St. John's is now able to serve over 53,000 new patients. Repealing the law would be detrimental. As St. John's Executive Director Jim Mangia told me: Repealing the Affordable Care Act would strip away health insurance from 26,000 of St. John's patients. That is 26,000 patients from that one clinic alone.

Our primary goal in Congress should be helping people, not voting away their health insurance.

REMEMBERING DONALD ''BUDDY'' WRAY

(Mr. HILL asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HILL. Mr. Speaker, I rise today to honor the life and legacy of one of Arkansas' most treasured business leaders, Donald ''Buddy'' Wray.

Mr. Wray, the former president of Tyson Foods, in Springdale, died late last month at the age of 78. Buddy spent more than 40 years with Tyson Foods, growing and supporting good jobs in Arkansas.

Buddy was an avid hunter, an outdoorsman, and a proud fan of the Arkansas Razorbacks. He spent much of his time helping our local communities. In particular, he was an avid member of the Kiwanis Club in Springdale.

Buddy's work and legacy has been recognized by numerous organizations, and he was inducted into both the Arkansas Agriculture Hall of Fame and the Business Hall of Fame. He has left a lasting impact on our State and will be greatly missed by all of us.

I extend my respect, affection, and prayers to his many friends, family, and loved ones.

SECURE OUR SKIES ACT

(Ms. TITUS asked and was given permission to address the House for 1 minute.)

Ms. TITUS. Mr. Speaker, human trafficking, which affects more than 21 million people worldwide, is an insidious crime that we must rout out wherever it exists. That is why today I am joining with my Republican colleague, Congresswoman BARBARA COMSTOCK, to introduce the Secure Our Skies Act, a bipartisan bill that will give our airline employees the tools that they need to combat human trafficking and close off the airways to perpetrators of this heinous crime.

The Secure Our Skies, or SOS, Act ensures that all airlines develop training for their frontline employees on the best ways to recognize and report the often subtle signs of human trafficking. This legislation builds on the work of the Blue Lightning campaign, a voluntary program developed by the Departments of Homeland Security and Transportation with the assistance of the Association of Flight Attendants, who are real champions for this training.

Sadly, reported cases of human trafficking are growing here at home and around the globe. We all have to play a role in stopping human trafficking, and this legislation will ensure our airline personnel can spot the signs and stop the crimes.

KEEP POUNDING

(Mrs. ELLMERS of North Carolina asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. ELLMERS of North Carolina. Mr. Speaker, ''Keep Pounding'' is the motto of my Carolina Panthers and one that transcends the football field.

Even when Sam Mills was diagnosed with colon cancer—Sam was one of the team's coaches and a former player—he kept fighting. He was undergoing radiation and chemotherapy treatments but kept pounding.

Now this phrase is used to inspire players and to remind the team to keep fighting, even when they are feeling weak or run down.

Mr. Speaker, just as the Panthers keep pounding all the way to the Super Bowl, the Committee on Energy and Commerce keeps pounding in a bipartisan manner to discover cures and fund research for many of the rare cancers and diseases that exist today.

The 21st Century Cures initiative, which passed the House last July, will allow us to develop cures for cancer, like the one that took Sam Mills from this world and the one that affects our young superfan, Braylin Beam, who courageously battles each day.

During this year's Super Bowl, I encourage fans everywhere to remember those who have been the inspiration behind our motto, ''Keep Pounding.''

VICTIMS OF GUN VIOLENCE

(Mr. PETERS asked and was given permission to address the House for 1 minute.)

Mr. PETERS. Mr. Speaker, Spring, Texas, July 9, 2014:

Stephen Robert Stay, 39 years old.
Katie Stay, 33 years old.
Brian Stay, 13.
Emily Stay, 9.
Rebecca Stay, 7.
Zachary Stay 4.

Pendleton, South Carolina, November 1, 2015:

Violet Taylor, 82 years old.
Barbara Scott, 80 years old.
Kathy Scott, 60.
Michael Scott, 59.

Rockford, Illinois, December 20, 2014:

Demontae Rhodes, 24 years old.
Martia Flint, 24.
Tyrone Smith, 6 years old.
Tobias Smith, 4 years old.

Topeka, Kansas, December 1, 2013:

Marvin Lewis Woods, 56 years old.
Carla Jean Avery, 45.
Eric Christopher Avery, 43.
Tamesha Lee, 34.

Dallas, Texas, August 7, 2013:

Zina Bowser, 47.
Toya Smith, 43 years old.
Neima Williams, 28.
Tasmia Allen, 27.

AMERICAN HEART MONTH

(Mrs. CAPPS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. CAPPS. Mr. Speaker, I rise today in recognition of American Heart Month and to remind Members of this week's National Wear Red Day.

Each February here in Congress and in communities around this country, we join together to raise awareness of heart disease, the number one cause of death for women. In fact, every minute heart disease kills another woman.

As co-chair of the bipartisan Congressional Heart and Stroke Coalition, I urge you to join us as we honor these women and those who will be affected in the future by participating in the National Wear Red Day campaign on Friday, February 5. By wearing red, we will unite with women from around the country to raise awareness of heart disease.

We can and we must continue to work together on behalf of our loved ones, our friends, our neighbors, and everyone affected by heart disease. We must reduce these numbers.

RECOGNIZING THE FIFTH ANNIVERSARY OF TERRY'S HOUSE

(Mr. COSTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTA. Mr. Speaker, I rise to recognize the fifth anniversary of Terry's House, a home that provides families with a place to stay when their loved ones are in critical care units at Fresno's Community Regional Medical Center.

The inspiration for the home came from Terry Richards, who suffered a serious head trauma when he was a child, and his mother had to travel over 80 miles a day to be with him.

Now, thanks to Terry's House, over 3,600 families from 42 States and 23 countries, who would otherwise have found themselves in similar circumstances, have been provided with an affordable, comfortable place to stay across the street from the hospital where their loved ones are.

Terry's House is dependent on generous supporters. I would like to thank them and their staff for all that they do for a positive difference for the families who are going through this very, very difficult time.

We cannot say thank you enough to my friend, Tom Richards, and his mother, Marie. Their efforts have made this important home a reality for all as a living memory for Terry, who is no longer with us. Thank God for them and thank God for Terry's House.

PROVIDING FOR CONSIDERATION OF H.R. 3700, HOUSING OPPORTUNITY THROUGH MODERNIZATION ACT OF 2015

Mr. STIVERS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 594 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 594

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3700) to provide housing opportunities in the United States through modernization of various housing programs, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. After general debate the bill shall be considered for amendment under the five-minute rule. In lieu of the amendment in the nature of a substitute recommended by the Committee on Financial Services now printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the five-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–42. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the bill or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

The SPEAKER pro tempore. The gentleman from Ohio is recognized for 1 hour.

Mr. STIVERS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Florida (Mr. HASTINGS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. STIVERS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Ohio?

There was no objection.

□ 1230

Mr. STIVERS. Mr. Speaker, on Monday, the Rules Committee met and reported out a rule for H.R. 3700, the Housing Opportunity Through Modernization Act of 2015. House Resolution 594 provides a structured rule for consideration of H.R. 3700.

The resolution provides 1 hour of debate equally divided between the chair and ranking minority member of the Committee on Financial Services. Additionally, the resolution provides for consideration of 14 amendments offered to H.R. 3700. Finally, Mr. Speaker, the resolution provides a motion to recommit for the bill.

Mr. Speaker, I rise today in support of the resolution and the underlying legislation. H.R. 3700 is a package of several bipartisan provisions that have been voted on by the House Financial Services Committee and received bipartisan support multiple times since 2006 in both Republican and Democratic Congresses.

H.R. 3700 cuts down on inefficient and duplicative regulations. The bill employs a commonsense approach to mitigating the overlapping and redundant procedures that have made rental assistance programs unnecessarily burdensome for some tenants as well as private owners and investors in affordable housing.

The portions of H.R. 3700 that are particularly important to me and many of the large metropolitan housing authorities around the country create positive changes based on project-based vouchers.

The Columbus Metropolitan Housing Authority, in my hometown, does a lot of vouchers. They have a strong record of converting slums into mixed-income neighborhoods. They help make sure that the needs of those who live there come first and that we help build strong communities around them.

An integral part of this approach is often project-based vouchers that can be provided to encourage the development of mixed-income housing facilities. However, because the Columbus Metropolitan Housing Authority is approaching its cap for project-based vouchers, as many metropolitan housing authorities around the country are, their capacity to build new mixed-income communities that are thriving and strong is at risk.

This bill authorizes public housing authorities to project-base up to 20 percent of its authorized voucher allocation rather than 20 percent of its voucher funding. This change ensures that the unauthorized number of vouchers is more stable. It will help make it easier for housing authorities to plan their future investments in the communities they serve.

Knowing Charles Hillman and the great people at the Columbus Metropolitan Housing Authority and the great work they do, I would sure hate to see them taken off the front lines in our war against poverty. We need to make this change. It is just one example of something that is really good in this bill.

According to the Congressional Budget Office, this bill is projected to actually save $311 billion in discretionary spending over just the next 5 years. The savings associated with the flexibilities and regulatory burden relief provided to local housing authorities will result in substantial improvement in the return on investment for taxpayers and help make sure that the affordable housing programs we have are sustainable.

Mr. Speaker, the bill passed the Financial Services Committee, which I serve on, with a vote of 44–10—a strong bipartisan vote.

It is my understanding that the sponsor of this legislation has worked over the past few weeks with the ranking member of the committee, Ms. MAXINE WATERS of California, to address an amendment that she offered—which has been made in order under the rule—which will alleviate the concerns of some Members about this legislation.

So, even though it only passed 44–10—which is pretty good—I think we can actually see a bigger improvement when it hits the floor, because I think the sponsor has worked with the ranking member, Ms. MAXINE WATERS of California, to alleviate some of those concerns.

I look forward to debating this bill with our House colleagues, and I urge support for both the rule and the underlying legislation.

Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, I yield myself such time as I may consume.

I thank my friend, the gentleman from Ohio, for yielding me the customary 30 minutes for debate.

Mr. Speaker, I rise today to discuss H.R. 3700, the Housing Opportunity

Through Modernization Act of 2015. This bill includes modifications and updates to several existing laws pertaining to housing—and low-income housing, in particular.

Many of these changes clarify and improve specific regulations for the benefit of those providing low-income housing and those benefiting from the availability of low-income housing. In fact, this bill improves access to affordable housing for the most vulnerable, such as low-income families and veterans.

It is apparent that much work has been involved in finding a balance, and the authors and committee members of both parties are to be commended for their efforts. With that being said, it is important to note that a provision of this bill will effectively raise rents for thousands of families with children and, ultimately, make it more difficult for some low-income parents to maintain employment.

The deduction provisions in this bill, as it is currently worded, raise rents for some of the lowest income families in the country. A quarter of households facing rent increases of $25 or more a month are families with children whose childcare deduction would be reduced.

I hope that this important issue of childcare deductions will be addressed. My colleague from Ohio just spoke about the work that our colleagues, the chair of this committee and the ranking member, have done to perhaps cause this measure to go forward and not be derailed because of the measure of reducing the childcare deduction for families.

Mr. Speaker, I reserve the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself such time as I may consume.

I want to quickly address the issue raised by the gentleman. I alluded to it, but I didn't speak to it maybe as clearly as I should have.

I believe that there is an agreement between the chairman of the subcommittee as well as the ranking member of the full committee on an amendment that Ms. WATERS is offering with regard to the provision that you refer to. I will tell you, I am going to be voting for that amendment, and I would urge you to vote for it. I believe it is going to pass. It may just be a voice vote. If you are here, vote on it by voice.

Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, I yield myself such time as I may consume.

This is an example, in my view, of what can happen here when parties work together. Obviously, on this issue, the Financial Services Committee has done a tremendous job.

If we defeat the previous question, I am going to pivot for a moment and offer an amendment to the rule to bring up a bill to help prevent mass shootings by promoting research into the causes of gun violence, making it easier to identify and treat those prone to committing these acts.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with extraneous materials, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. HASTINGS. Mr. Speaker, this morning at 9, I held a gun violence roundtable. We had extraordinary presenters from those who are gathering information and disseminating that information around the country to address this subject.

What the Gun Violence Research Act would do is give the Centers for Disease Control the authority to research the causes, mechanisms, prevention, diagnosis, and treatment of injuries with respect to gun violence. It would also encourage the improvement and expansion of the National Violent Death Reporting Systems and empower healthcare providers by not inhibiting a physician or other healthcare provider from asking a patient about the possession of a firearm and speaking to a patient about gun safety or reporting to authorities a patient's threat of violence.

If there is anyone in the House of Representatives who does not believe that we have a gun violence epidemic in our society, then I would ask him or her if they would speak with me and other Members of Congress that have been about the business of trying to cause there to be a reduction.

This actually does fit into the circumstances that we are addressing in the Department of Housing and Urban Development. Many of the violent acts that take place—not just mass shootings, but on a day-to-day basis—regrettably, take place in some of the low-income areas, where we have inadequate housing, inadequate education, and inadequate educational opportunity.

I hope at least the research can be done that may give us the data for this Congress to have the courage to tell the American people that, yes, we have a gun violence epidemic, and, yes, we are going to do something about it.

The bill underlying this rule would enact several incremental reforms to the Department of Housing and Urban Development's Section 8 tenant- and project-based rental assistance and other public housing programs. Many of these reforms have been around for several years and have, as my colleague from Ohio (Mr. STIVERS) has pointed out, broad support from a wide range of stakeholders as well as both parties in Congress.

However, returning again to the subject of the matter of deductions for child care, it is an important issue that needs to be addressed. Representative WATERS has an amendment that was made in order yesterday by the Rules Committee to resolve this issue. Like my colleague from Ohio, I plan to vote for that amendment, and I would urge Members to recognize that this makes a good bill better, and I would urge my colleagues to support Ms. WATERS' amendment.

I urge my colleagues to vote ''no'' and defeat the previous question.

Mr. Speaker, I yield back the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as my colleague from Florida said, this is a good bill. It is a commonsense bill. It reforms our housing programs so they make sense for people. It makes them more efficient. It saves $300 billion. It is a no-brainer.

I hope that we can pass the previous question so that we can actually move to passing this bill and doing important reforms that will make government more efficient and help people in the war against poverty.

I urge my colleagues to support the rule, support the previous question, and support the resolution.

The material previously referred to by Mr. HASTINGS is as follows:

AN AMENDMENT TO H. RES. 594 OFFERED BY MR. HASTINGS

At the end of the resolution, add the following new sections:

SEC. 2. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3926) to amend the Public Health Service Act to provide for better understanding of the epidemic of gun violence, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 3. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 3926.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To

defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. STIVERS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. HASTINGS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

□ 1245

RESTORING AMERICANS' HEALTHCARE FREEDOM RECONCILIATION ACT OF 2015—VETO MESSAGE FROM THE PRESIDENT OF THE UNITED STATES

The SPEAKER pro tempore. Pursuant to the order of the House of January 25, 2016, the unfinished business is the further consideration of the veto message of the President on the bill (H.R. 3762) to provide for reconciliation pursuant to section 2002 of the concurrent resolution on the budget for fiscal year 2016.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is, Will the House, on reconsideration, pass the bill, the objections of the President to the contrary notwithstanding?

(For veto message, see proceedings of the House of January 8, 2016, at page H210.)

The SPEAKER pro tempore. The gentleman from Georgia (Mr. TOM PRICE) is recognized for 1 hour.

Mr. TOM PRICE of Georgia. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Maryland (Mr. VAN HOLLEN), pending which I yield myself such time as I may consume.

GENERAL LEAVE

Mr. TOM PRICE of Georgia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous material on the veto message of the President of the United States to the bill, H.R. 3762.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. TOM PRICE of Georgia. Mr. Speaker, this is a historic day. It is not often that the House has the opportunity to so clearly fight to defend the will of the people. This is a day that embraces our Constitution and one of its fundamental tenets, our system of checks and balances.

This issue, the issue of health care, is vital to every single American. Health care is so very personal. The American people are offended by a Federal Government that says that they know best, that they know and should dictate to folks what kind of health care we should have, who should be treating us, where we should be treated, and on and on and on.

The American people have always opposed the current law. From the very day it was passed and was signed into law, a majority of the citizens of this country opposed this law.

In fact, Mr. Speaker, more people oppose the law now than they did when the bill was passed. This is truly remarkable. More people oppose it now than did when it was passed, which is why we have worked and fought so very hard to represent them, to represent our constituents, and to carry out our solemn responsibility as their Representatives.

The House and the Senate voted to veto this destructive law, a law that is not only destructive to the health and well-being of our citizens, but destructive to the health of our economy, taking jobs away, forcing people into part-time work, forcing businesses to downsize or limit who they hire. It is remarkably destructive.

In fact, the House voted to repeal it by larger numbers than it voted to pass it originally. However, the President vetoed our repeal.

The President is the only person standing in the way of what the American people want. Let me repeat that, Mr. Speaker. The President is the only person standing in the way of what the American people want.

So our job now is to stand up for them, to demonstrate for them who is on their side, and who is standing in the way of positive, patient-centered reform.

We favor a healthcare system where patients and families and doctors are making medical decisions, not Washington, D.C. We favor a healthcare system that gets everyone covered with policies that they want for themselves and for their families, not that the government forces them to buy.

We favor a healthcare system that embraces the principles of health care, accessibility, affordability, quality, responsiveness, innovation, and choice, principles that are all violated by the current law.

So today, Mr. Speaker, we stand with the American people. We will vote to override the veto of the President, an action that runs absolutely counter to the will of the majority of our country.

I urge my colleagues to support this veto override vote and stand with positive solutions based on the principles of health care that we all embrace.

I reserve the balance of my time.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

The only thing historic about this vote today is it probably breaks the record for the number of times a Congress has voted to try to overturn existing law that has been twice upheld by the Supreme Court of the United States.

Yes, Mr. Speaker, here we go again and again and again. How fitting it is that we are here, on Groundhog Day, for the 63rd vote in the House of Representatives to overturn the Affordable Care Act.

And make no mistake. The Congressional Budget Office, the nonpartisan entity that analyzes bills, has told us and told the American people that, in overturning the Affordable Care Act, you will eliminate affordable health care for 22 million Americans.

So this is a historically callous action that, in 1 day, our colleagues are proposing that we would deny affordable health care to 22 million Americans. It is also the 12th vote this House

has taken to attack women's health care and defund Planned Parenthood.

You know, the American people have got to be scratching their heads. They were told that, with a new Speaker, in the new year, 2016, we would actually begin to address the real challenges facing this country and do some serious work.

Yet, the very first action taken here on this House floor in 2016 with the new Speaker was to again try to dismantle the Affordable Care Act. And, yes, that legislation went through the Senate and the House. It went to the President's desk, and the President vetoed it.

Make no mistake. We will not overturn the President's veto today. This is a futile gesture. It is part of an obsession to try to undo affordable care for 22 million Americans, and it is not going to happen.

Now, what has happened since the last vote we had here to attack women's health programs and defund Planned Parenthood?

We have had a decision by a court in Texas. Here were the headlines that came out of that court decision: ''Vindication for Planned Parenthood'' and ''Texas grand jury clears Planned Parenthood, indicts its accusers.''

I have to say, Mr. Speaker, our colleagues have a lot of gall to bring this to the floor after that Texas court decision.

You know, they went into that Texas court decision, and the Harris County District Attorney said at the outset of their investigation into Planned Parenthood: We must go where the evidence leads us.

It began as an investigation into Planned Parenthood, just as we have had a series of witch-hunt investigations here in the House, where the chairman of the House Oversight and Government Reform Committee said months ago that there was no evidence that Planned Parenthood had committed any wrongdoing. Now we have a Texas court not only vindicating Planned Parenthood, but indicting their accusers.

Mr. Speaker, I tell you, this does take a lot of gall to come back here after that and go after women's health programs not for the first time, not for the second time. This is now the 11th time.

This will be the 11th time this House has wasted taxpayer time and money trying to overturn women's health programs and the 63rd time it has wasted taxpayer time and money trying to strip away affordable health care to 22 million Americans by undoing the Affordable Care Act.

So, yes, this is a shamefully historic day. As I said, Mr. Speaker, I think it probably breaks all the records in wasting taxpayer time and money where, in a really cruel way, if we actually did overturn the President's veto, 22 million Americans would be denied access to health care.

Mr. Speaker, I urge my colleagues to sustain the President's veto. Don't take away health care to 22 million Americans, and don't continue this attack on women's health.

I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, I would simply say that what we are interested in is expanding health care for the American people that actually responds to their needs.

I yield 1 minute to the gentleman from Tennessee (Mr. ROE), a fellow physician who is the chair of the Health, Employment, Labor, and Pensions Subcommittee of the Education and the Workforce Committee.

Mr. ROE of Tennessee. Mr. Speaker, I rise today to encourage my colleagues to vote to override President Obama's veto of the Restoring Americans' Healthcare Freedom Reconciliation Act.

I practiced medicine in rural Tennessee for over 30 years, where I didn't just talk about health care; I actually provided it for patients. The problems that I saw in the system were a major reason why I ran for Congress.

The premise of the Affordable Care Act was to increase access and decrease costs. Everyone in this room agrees with that. Unfortunately, the President's healthcare proposal was a 2,500-page bill that defined what kind of health insurance coverage you bought and then fined you when you didn't buy it, even if you couldn't afford it.

Access might be up because Americans are forced to buy into the President's healthcare law, but so are costs. I hear from east Tennesseans almost every day who are worse off—not better off—under ObamaCare.

The President was wrong to veto this legislation, just like he is wrong when he says Republicans have no ideas for healthcare reform.

Republicans have many ideas and have introduced numerous pieces of legislation to put patients and doctors in charge of their healthcare decisions, not the government and not insurance companies.

I know I have a comprehensive bill, and so does Dr. TOM PRICE of Georgia, as many of my colleagues do in the Doctors Caucus. It is time to repeal this flawed law and give the American people the viable healthcare options they deserve.

I encourage my colleagues to support overriding this veto.

Mr. VAN HOLLEN. Mr. Speaker, I am pleased to yield 1 minute to the gentlewoman from Washington (Ms. DELBENE), who is on the Republican committee designed to roll back protections to women's health care.

Ms. DELBENE. Mr. Speaker, I rise in strong opposition to this frivolous and wasteful exercise, which will be our sixth vote to defund the Nation's leading provider of reproductive health care.

That is right. House Republicans have now voted six times to defund an organization that 2.7 million Americans rely on, even though four different Congressional committees tried and have failed to uncover any evidence of illegal activity, even though a grand jury last week cleared Planned Parenthood of all wrongdoing and, instead, indicted their anti-choice accusers, even though Republicans' taxpayer-funded Select Investigative Panel on Infant Lives, which they created nearly 4 months ago, hasn't held a single meeting.

□ 1300

Yet here we are on Groundhog Day, no less, voting for the sixth time to prevent women from choosing their own healthcare provider. It might be funny if it weren't so outrageous. Women deserve better. They deserve leaders who actually care about the facts.

Mr. Speaker, I urge my colleagues to vote ''no''

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCLINTOCK), a fellow member of the Budget Committee.

Mr. MCCLINTOCK. Mr. Speaker, the Congressional Budget Office just announced for the first time in our history that Federal healthcare payments now exceed Social Security benefits. Not coincidentally, it also warned that our deficit is again ballooning out of control.

ObamaCare forced millions of Americans out of their low-cost catastrophic coverage and basic employee plans and into Medicaid—the dysfunctional government poverty program. The result is skyrocketing costs in that program in which surgical patients are 13 percent more likely to die than those with no health insurance at all, according to a recent University of Virginia study.

Mr. Obama promised, if we liked our plans and our doctors, we could keep them, and that ObamaCare would save an average family $2,500 a year. In fact, millions lost their doctors and their plans while premiums have increased an average of more than $3,500 per family.

This ain't working, and it is time to move on to something that does.

Mr. VAN HOLLEN. Mr. Speaker, I yield 1 minute to the gentleman from Kentucky (Mr. YARMUTH), a distinguished member of the Budget Committee.

Mr. YARMUTH. I thank the gentleman for yielding.

Mr. Speaker, this measure does absolutely nothing for the American people. Meanwhile, we have a terribly flawed campaign finance system, an unfair justice system, and a broken immigration system. There are so many things we could be doing, rather than passing another messaging bill just to make the opponents of ObamaCare feel good.

This won't make the American people feel good. As a matter of fact, CBO said that by repealing the Affordable Care Act, we will not only add to the deficit, but we will have a demonstrably unhealthier population.

We have to remember, this is not just about the 22 million who will lose their insurance. This is about the tens of millions of people, hundreds of millions of people who will lose the protections that are part of this act: the ability to put their children on their policies until they are 26 years old, an end to lifetime caps, and an end to annual caps. There are so many things that we would be damaging without an alternative if we pass this measure today.

Finally, the only reason that the Republicans are putting this up is because they know it can't pass because, if it passes, it will wreak havoc on the United States of America and the American citizens, and it will do nothing to help them. There is no alternative, and the Republicans know it.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from the great State of Indiana (Mr. BUCSHON), a member of the Energy and Commerce Committee and a fellow physician.

Mr. BUCSHON. Mr. Speaker, I come to the floor today in support of the Restoring Americans' Healthcare Freedom Reconciliation Act of 2015.

Before I came to Congress, I spent my career taking care of patients. As a physician, I want every American to have access to quality, affordable care. The legislation before us today marks the next step toward that goal.

Last month, for the first time, we put a bill to dismantle ObamaCare on the President's desk. It is no surprise that he vetoed it.

Now, with this veto override vote, we are exercising our constitutional power to the fullest extent and bypassing the President to do what is right for our country.

Mr. Speaker, I urge passage of this bill to show the American people that the House of Representatives is doing everything in our power to stop this disastrous law and replace it with a patient-centered healthcare plan.

Mr. VAN HOLLEN. Mr. Speaker, I yield 2 minutes to the gentlewoman from Illinois (Ms. SCHAKOWSKY), who is the ranking member of the Select Investigative Panel on Infant Lives that Republicans set up to take away reproductive healthcare access from women.

Ms. SCHAKOWSKY. Mr. Speaker, how appropriate that the House Republican leadership decided to vote again on repealing the Affordable Care Act and defunding Planned Parenthood on Groundhog Day. In the movie Groundhog Day, Bill Murray's character relived the same day over and over again, and we are doing the same thing right here.

This is the 63rd vote to undermine or repeal the Affordable Care Act. This is the 12th Republican attack on women's health in this Congress. While House Republicans have already passed 11 anti-women health measures and are now voting on their 12th, they have not passed one single measure that helps women get the health care that they need.

So here we are—on only the 12th business day of the session—facing the same Republican attacks on women's access to health care. Republicans have said this bill will show the American people the difference between the political parties in this election year. You bet it will. The difference is clear. My Republican colleagues remain willing to play partisan politics at the expense of women's health and access to affordable, quality health care. Women of America are watching, and they don't like what they see.

Never mind the fact that three House committees have already investigated Planned Parenthood following the release of the selectively edited videos, and never mind that a grand jury in Harris County cleared Planned Parenthood and, instead, indicted the two individuals who made the doctored videos.

Facts matter. The truth matters. Despite my objection to the Select Investigative Panel on Infant Lives, as its ranking member, I will continue to fight to protect women's health. That is the promise of all Democrats. We will, once again, reject this legislation. This attempt to override is going nowhere, and it shouldn't.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from Alabama (Mr. PALMER), a fellow member of the Budget Committee.

Mr. PALMER. Mr. Speaker, I rise today in support of the veto override.

James Madison wrote in Federalist Paper 51: ''It is of great importance in a republic not only to guard the society against the oppression of its rulers but to guard one part of the society against the injustice of the other part.''

As expected, President Obama vetoed a reconciliation bill that would repeal the misnamed Affordable Care Act. This was within his constitutional authority. However, our Founders created a balance of powers within the three branches to prevent tyranny by one. With two-thirds, we have the opportunity to override a veto that doesn't correlate with the views of the American public. We have the opportunity to listen to the American people and put healthcare decisions back in their hands.

With this override, we have the opportunity to begin the process of real healthcare reform that provides the American people with healthcare choices, choices they can afford, choices that allow people to keep their doctors, choices that provide a safety net rather than a net that entraps people into a government program, and choices that allow people to keep their jobs.

Mr. Speaker, I urge my colleagues on both sides of the aisle to support this veto override and put the power to legislate back in the hands of the legislators.

Mr. VAN HOLLEN. Mr. Speaker, I yield 2 minutes to the gentleman from Virginia (Mr. SCOTT), the distinguished ranking member of the Education and the Workforce Committee.

Mr. SCOTT of Virginia. I thank the gentleman for yielding.

Mr. Speaker, since the passage of the Affordable Care Act in 2010, the House of Representatives has attempted to dismantle the law 62 times. Today is number 63, to repeal a major portion of the Affordable Care Act.

Mr. Speaker, since the Affordable Care Act passed, people with preexisting conditions can now get health insurance. The cost of health insurance has been increasing at the lowest rate since they started keeping records about a half a century ago. Those young people under 26 can stay on their parents' policies. Women are no longer paying more for insurance than men. We are closing the prescription drug doughnut hole. While thousands of people were losing their insurance every day when we passed the bill, more than 17 million people have insurance today.

If we vote ''yes'' on this motion, we will cancel all of that progress and at the same time just add to the deficit. Mr. Speaker, we should reject this motion, just as we have 62 previous times.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from Illinois (Mr. ROSKAM), the chair of the Oversight Subcommittee of the Ways and Means Committee.

Mr. ROSKAM. Mr. Speaker, I just want to recap quickly how we got here.

ObamaCare was passed on a partisan basis through the House and the Senate, signed into law, and then it went forward. It created a false premise, and the false promise that didn't come to fruition was that people were going to be able to keep their physicians, that premiums were going to go down, and it wasn't going to add to the deficit. We all know now that was nonsense.

So what did the American public do? They said, ''We are going to change the House of Representatives.'' So they elected a Republican majority in the House to take out ObamaCare. What did they do next when they found an obstacle in the United States Senate? They changed the disposition of the United States Senate.

Now, there are some people that say today, ''Oh, this is a complete waste of time.'' No, it is not, Mr. Speaker. This is not a waste of time.

This is a demonstration to the American public that there is now one office that stands between them and the repeal of ObamaCare. There is one office that stands between them and the continued shameful subsidy of Planned Parenthood. We have got an opportunity to change that office in November.

Mr. Speaker, I urge us to continue that momentum and to vote with Mr. TOM PRICE of Georgia on this bill.

Mr. VAN HOLLEN. Mr. Speaker, I would remind my colleagues that the nonpartisan Congressional Budget Office said that if you actually override this veto, 22 million Americans would lose access to affordable health care.

Under the Affordable Care Act, the number of uninsured Americans has dropped significantly. It is a sad day that some people don't see that as a good thing, just like the same people apparently want to deny women access to reproductive health care.

Mr. Speaker, I yield 1 minute to the gentleman from New York (Mr. NADLER), a member of the Judiciary Committee and the Select Investigative Panel on Infant Lives.

Mr. NADLER. Mr. Speaker, last month I said that my Republican colleagues had declared their verdict against Planned Parenthood without ever holding a trial. Now it is even worse. A grand jury in Texas has not only refused to indict Planned Parenthood, but instead indicted two individuals who made this series of blatantly manipulated, false videos on which the Republicans base their attack.

Despite this unequivocal finding by a grand jury, not to mention by several congressional committees that Planned Parenthood has violated no laws and done nothing wrong, the Republicans are forging ahead in this ludicrous effort to cut off all Federal funding.

If we override this veto today, we will pass legislation that targets one organization and cuts it off from all Federal funding, including reimbursement for services provided, for no justifiable legislative reason beyond punishment for offering a constitutionally protected medical procedure.

This is a clearly unconstitutional bill of attainder. The prohibition on bills of attainder exist to ensure that Congress may not usurp the powers of the courts by using legislation to punish an organization or individual that a majority in Congress doesn't like. The Constitution is clear. Congress cannot be judge, jury, and executioner.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. VAN HOLLEN. Mr. Speaker, I yield the gentleman an additional 30 seconds.

Mr. NADLER. Mr. Speaker, it is not our role to declare an organization guilty and to impose a punishment. That is for a court. Not only is this bill an unconstitutional bill of attainder, it is a travesty and is seeking to punish one of the best, most praiseworthy organizations in the country, and punish it for what? For enabling women to exercise their constitutional rights. This is really not only an unconstitutional act, but it is part of the war on women.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 2 minutes to the gentleman from Louisiana (Mr. SCALISE), the Republican majority whip.

Mr. SCALISE. I thank my colleague from Georgia for yielding, for his leadership, and for bringing this important bill to the floor.

Mr. Speaker, this is a historic day. This is the first time that the House of Representatives has had a vote to override President Obama's veto. If you look at what the veto is about and what the legislation that was vetoed is about, it is about letting the American people actually determine their own healthcare destiny. It is about stopping taxpayer money from going to abortion providers like Planned Parenthood.

What this bill does is something very historic by gutting ObamaCare and returning that power back to families.

I see in my district, and my colleagues share the same stories, all across the country, millions of Americans have lost the good health care that they had. They were promised by this President ''if you like what you have, you can keep it.'' Everybody knows that that is a promise that was broken by this President in his own healthcare law. We restore that ability back to the American people with this bill.

With this bill, we also say that abortion providers like Planned Parenthood should not be able to get taxpayer money. We completely defund Planned Parenthood in this bill. If this is something that is so vital, look at what the bill does. It actually transfers the money to federally approved health centers all across the country—many more, by the way, than Planned Parenthood facilities that exist. These are facilities that actually provide services for women that don't include abortion. So if you look at what this bill is doing, it shows very clearly to the country what is at stake this November.

We sent a bill to President Obama's desk that guts ObamaCare and that defunds Planned Parenthood, and he vetoed it. We are going to have the override today.

□ 1315

If it is not successful in the vote today with a two-thirds vote, it makes clear what is at stake this November. Just by changing the President, by having a President who shares our values, Mr. Speaker, who wants to gut this law that is failing Americans, who wants to defund Planned Parenthood, by having a President with those values, we can accomplish those important objectives.

I urge everyone to vote ''yes.''

Mr. VAN HOLLEN. Mr. Speaker, I really urge my colleagues, Republicans and Democrats alike, to read the letter from the nonpartisan Congressional Budget Office. This is the agency that we all turn to for unbiased, nonpartisan advice. On page 9, you will read that their estimate is that, by overturning the President's veto and enacting the underlying bill, H.R. 3762, we would increase the number of people without health insurance coverage by about 22 million people in most years after 2017.

When my colleagues say this is a historic moment, it is true. Never before would this Congress have voted on a veto override that would immediately deny access to affordable health care for 22 million people.

I yield 1½ minutes to the gentlewoman from New Jersey (Mrs. WATSON COLEMAN), a terrific member of the Select Investigative Panel on Infant Lives.

Mrs. WATSON COLEMAN. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, I had no idea that my colleagues on the other side of the aisle were such great fans of the movie ''Groundhog Day.'' If I had a little more time right now, I would give the exact same speech I gave just 1 month ago, because nothing has changed.

The facts remain that Planned Parenthood is a health organization serving 3 million Americans each year; that one in five Americans will receive care from Planned Parenthood; that despite arguments to the contrary, there are simply not enough health centers to fill the gap; that defunding Planned Parenthood snatches care away from millions of families; and that today's bill says to women once again how and when they get health care is not their choice.

Like then, this has no chance of becoming law; and, like then, I urge my colleagues to abandon the merry-go-round of attacks on women and families. Enough attacks on health care, enough attacks on women, and enough attacks on families.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from Florida (Mr. BILIRAKIS).

Mr. BILIRAKIS. Mr. Speaker, I thank the chairman.

I rise today in support of a vote to override the President's veto of the Restoring Americans' Healthcare Freedom Reconciliation Act.

With his veto, the President sent Congress and the American people a disappointing—but unsurprising—message. Protecting the rights of patients, families, the unborn, and American taxpayers is clearly not a priority for this administration.

It is, however, a priority for me and for Congress. We worked to pass this legislation with bicameral support. We worked to help reduce government spending and reduce the burdens of the President's healthcare law on patients and families. We worked together to prevent taxpayer dollars from funding organizations practicing, in my opinion, shameful and unethical activities.

We must now work together to override the President's veto and give the power of healthcare decisions back to the people.

Mr. VAN HOLLEN. Mr. Speaker, it is hard to see how giving power to the people is stripping 22 million Americans of their affordable health care.

I yield 1½ minutes to the gentlewoman from California (Ms. SPEIER), a member of the Select Investigative Panel on Infant Lives.

Ms. SPEIER. Mr. Speaker, I thank the gentleman.

Are we able to distinguish the plot of ''Home Alone'' from congressional proceedings? Today, I am not so sure. I find myself comparing the bumbling criminals trying to break into a house

to the misleading criminals and bumbling legislators who seem to have broken this House. But while ''Home Alone'' is a comedy, the consequences of today's votes attacking women's health and the health care of hard-working Americans is a tragedy.

In each case, we have people who do the same thing over and over but only succeed in hurting themselves. In Home Alone, the criminals are tricked with booby traps and misdirection; but in real life, Republicans are stumbling into their 63rd vote to undermine the Affordable Care Act and the 12th vote to attack women's health by filmmakers who have been indicted for their illegal activities.

I am pleased to see that the Texas grand jury exonerated Planned Parenthood and indicted the real criminals—the video creators. If there were an Oscar for the most fraudulent film, the so-called Center for American Progress would be thanking the Academy.

I urge my Republican colleagues to kick these criminals out of our House, disband the taxpayer funded Select Investigative Panel on Infant Lives, and get back to the business of governing.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentlewoman from Tennessee (Mrs. BLACK), a fellow healthcare professional and a member of the Committee on the Budget and the Committee on Ways and Means.

Mrs. BLACK. Mr. Speaker, minority leader NANCY PELOSI famously called ObamaCare a jobs bill, yet the Congressional Budget Office says it will cost our economy the equivalent of 2 million jobs. The President himself promised that ObamaCare would save families an average of $2,500 in healthcare costs per year, yet the largest insurer in my State just upped premiums by 36 percent.

Mr. Speaker, this law was built on a grand deception. Nearly 6 years later, the lofty promises have faded, and what is left behind are real stories and real people whose lives and livelihoods are impacted by the government-knows-best law they continue to reject.

The President's veto of our reconciliation bill to repeal ObamaCare may be what is in his best interest for his political legacy, but my constituents have told me loud and clear it is not what is best for them.

Today, let's call his bluff, and let's override this veto.

Mr. VAN HOLLEN. Mr. Speaker, facts are stubborn things. Since the Affordable Care Act was passed, which our Republican colleagues said would be a jobs killer, we have actually seen millions and millions of jobs added in the economy, and the unemployment rate has come way down. The notion that the Affordable Care Act was going to wreck the economy is just blatantly false for everybody to see. Just look at the statistics around the country.

I yield 2 minutes to the gentleman from Michigan (Mr. LEVIN), someone who cares about the facts, the distinguished ranking member of the Ways and Means Committee.

(Mr. LEVIN asked and was given permission to revise and extend his remarks.)

Mr. LEVIN. Mr. Speaker, I thank the distinguished minority, the gentleman who has worked so hard on budgets, for yielding.

The majority whip referred to November. We are serving notice in this discussion: We are proud to defend healthcare reform and will do so between now, as we did before, and November.

Since health care began, the uninsured rate has declined from 20.3 to 11.4, nearly 18 million people now covered who were before uninsured.

Now this has also happened: 137 million Americans have free preventive services.

The ACA ends lifetime and annual limits on coverage for 105 million Americans.

Also what it does—let me just emphasize this—129 million Americans with preexisting health conditions no longer have to worry about being denied care.

I met, last weekend, a woman who had breast cancer. She lost her job and lost health insurance. Because of healthcare reform, she received health insurance. Her breast cancer came back. She looked at us and said to us squarely, one on one, each of us: ''I wouldn't be here except for healthcare reform.''

That is what this is all about. This veto will be sustained. It will be sustained because healthcare reform responded to the needs of millions of Americans. We in the Democratic Party are proud of that and will, from now until November, say so with immense ardor.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from New Jersey (Mr. SMITH), a pro-life champion in our Nation.

Mr. SMITH of New Jersey. Mr. Speaker, I thank my good friend for yielding.

Mr. Speaker, in the age of ultrasound imaging and benign life enhancing healthcare interventions for the baby in the womb, how is it that Planned Parenthood first dehumanizes and then massively kills unborn children—more than 7 million since 1973—and then demands that taxpayers subsidize the organization to the tune of about $500 million?

Caught on numerous videos, Planned Parenthood abortionists describe how they dig with knives and cut out the inner organs of babies all while altering pain-filled dismemberment procedures so as to preserve intact baby hearts, lungs, and livers for a price.

This isn't the first time Planned Parenthood has been caught red-handed. In 2011, videos by Live Action exposed several Planned Parenthood clinics eager to facilitate secret abortions for undercover pimps for child sex trafficking. In 2012, more videos by Live Action exposed Planned Parenthood advising undercover investigators how to procure sex selection abortions for little girls.

Have we lost our capacity to be shocked? Can we not empathize with the child victim?

Support the override.

Mr. VAN HOLLEN. Mr. Speaker, I would encourage everybody to read the results of the Texas grand jury proceeding. Here are some headlines from what happened: ''Vindication for Planned Parenthood,'' and ''Texas Grand Jury Clears Planned Parenthood, Indicts Its Accusers.''

It is a charade that we are back on the floor after that grand jury decision. It is rare, my colleagues, to see a grand jury investigate one entity—in this case, Planned Parenthood—and turn around and indict its accusers. Despite that, we are back here in this evidence-free zone.

I yield 1 minute to gentlewoman from North Carolina (Ms. ADAMS), a distinguished member of the Education and the Workforce Committee.

Ms. ADAMS. Mr. Speaker, I thank the gentleman for yielding.

Today, we find ourselves rereading the same chapter from a Republican extremist book that seems to have no end. Today's vote represents the 63rd time the GOP has tried to repeal or undermine the Affordable Care Act and the 12th time the GOP has voted to attack women's health care in the 114th Congress alone.

Partisan games and divisions are transgressions on our communities. We must work together to seize the opportunity that exists in our great Nation. We can't do that by wasting time and energy on radical agendas.

Attacking Planned Parenthood is part of a ploy to roll back women's rights. No one should control a woman's right to make decisions about her own body. I won't stop advocating for women's comprehensive health care or a woman's right to control her own body.

This war on women must stop.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCARTHY), a champion of patient-centered healthcare reform, the Republican leader.

Mr. MCCARTHY. Mr. Speaker, I thank the gentleman for yielding, and I thank the chairman for his work on this issue.

Mr. Speaker, today the House is keeping its promise to the American people. We showed we can defund abortion providers like Planned Parenthood and increase funding for thousands of women health centers across the country, and we showed we can send a bill repealing ObamaCare to the President's desk even when Democrats are trying to stop us.

Now, this is big. That means that when a Republican President takes office next year, we know we can get this passed. We don't have to worry about the filibuster. We don't have to worry

about a veto. With simple majorities and the stroke of a pen, ObamaCare can be gone once and for all.

Democrats see that. They know that ObamaCare, in particular, is hanging by a thread. And do you know what? They are terrified.

You are going to hear a lot of mocking on the other side of the aisle today. Mr. Speaker, they are saying that Republicans are at it again trying to repeal ObamaCare. They are trying to make it seem like this vote doesn't matter.

They tried to stop us at first with arguments and debate, but they have lost that debate.

□ 1330

The people aren't happy with what the Democrats sold them, as few are enrolling, premiums are skyrocketing, and deductibles are so high it can make insurance practically worthless.

So, the Democrats, they have given up on debate. They have seen that they have lost, and they have tried their next tactic. They have tried to tell us that there is nothing we can do, that ObamaCare is the law of the land, and that we had better just give up.

But then they realized we didn't give up. Year after year, we listened to the American people, and the people voted for Representatives to repeal ObamaCare; and year after year, the American people saw the healthcare promises that Democrats in Congress and President Obama made were just exactly what they were—empty: you can keep your doctor; you can keep your plan; your premiums will drop. Nobody—not even the President—believes that anymore.

So we didn't give up. We fought for the American people, and we put a bill repealing this law on the President's desk.

Now the Democrats have no more defenses. Their law is failing. The people aren't on their side. The end of ObamaCare is coming, and, in its place, we can create something that delivers so much more than just broken promises.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

The Republican leader said we don't have to worry about the veto. The reality is the President's veto will be sustained today. Apparently, our Republican colleagues are not worried about the 22 million Americans who will lose access to affordable health care. I don't know what the Republican leader's definition of ''mockery'' is, but if anybody is mocking the Republican bill here, it is the nonpartisan Congressional Budget Office, which wrote to each and every Member of Congress that, if you actually overrode the President's veto and enacted this legislation—and I am sorry to repeat it again, but it is here in black and white from the nonpartisan Congressional Budget Office—you would increase the number of people who are without health insurance coverage by 22 million people. That is what our Republican colleagues are talking about here.

So, no, we don't want to do that, and the President doesn't want to do that, and that is not going to happen here today, but it certainly does indicate the stakes in the 2016 elections, because, on the one hand, you have a Republican-controlled Congress that would, at the snap of a finger, like to get rid of affordable health care for 22 million people, and, apparently, it wants to ignore the facts that we learned from the Texas grand jury that vindicated Planned Parenthood and said that their accusers, instead, should be indicted.

I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 2 minutes to the gentleman from Pennsylvania (Mr. PITTS), the chair of the Health Subcommittee of the Committee on Energy and Commerce.

Mr. PITTS. I thank the chairman.

Mr. Speaker, I rise today in support of the millions of families across the country who have had their health insurance disrupted by the President's health law and in support of the millions more Americans who don't want the government giving their tax money to abortion providers.

Some 6 million households across the country have lost the health plans they liked or have lost their doctors even though President Obama promised 37 different times that this would not happen. Hundreds of my constituents have contacted me to tell me about higher premiums, higher deductibles, and coverage lost outright:

Michael Cain of Lancaster contacted me recently to tell me that his premiums have nearly doubled just in the 2 years since the implementation of the President's health law;

Jennifer Hoy of Ephrata wrote to me that her family lost three out of four of her children's doctors. Imagine the stress of a mother in that situation;

Deborah Kennedy of Columbia contacted me to tell me that, in November, she spent countless hours trying to operate the broken healthcare.gov Web site. She lost her insurance and had to buy insurance nearly 50 percent more expensive while she lives on a fixed income.

These are hardworking Pennsylvania families who have done nothing wrong but who have been victimized by the arrogance of a Federal Government that thinks it knows better than the people and that tries to bully hardworking American families.

The legislation we are considering today saves taxpayers money and treats them with respect. Mr. Speaker, 84 percent of this country supports restrictions on abortions. However, this administration is giving their tax dollars to organizations that kill innocent babies. Today's legislation channels taxpayer money away from organizations that provide abortion and toward something that all Americans can support—federally qualified health centers. These centers are focused on caring for the poorest in our communities, and they actually care for women's health. Unlike Planned Parenthood, they actually do mammograms.

A vote for this bill is a vote for the millions like Deborah Kennedy, Jennifer Hoy, and Michael Cain, who have borne the consequences of an out-of-control Federal Government. Vote to override the President's veto.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

I heard the word ''bullying'' used. It is ironic that that word would be used in a vote that would deny 22 million Americans access to affordable health care.

Again, I want to underscore for our colleagues, some of whom may not have read the Congressional Budget Office's report, that this comes from the nonpartisan entity that advises both parties in Congress. In fact, the head of the Congressional Budget Office was appointed by our Republican colleagues. It is they who are telling us that, with this vote, 22 million Americans would be denied access to affordable health care. That seems to qualify as bullying if anything does.

Mr. Speaker, let's review the situation with respect to Planned Parenthood.

This Republican-controlled House had its standing committees investigate Planned Parenthood, including the Committee on Oversight and Government Reform. They had hearings, and they hauled up the head of Planned Parenthood to some of these hearings. At the end of those hearings, the Republican chairman of that committee concluded that Planned Parenthood had engaged in no wrongdoing. He said that on national television. Despite that finding, back in January, our Republican colleagues went ahead and launched this attack on women's reproductive health and defund Planned Parenthood.

That was bad enough.

Since that time, we have had even more evidence. We have had the grand jury proceeding in Texas that exonerated Planned Parenthood. They began the investigation against Planned Parenthood, and they said they would go where the evidence led them. At the end of that evidence-seeking effort, they exonerated and vindicated Planned Parenthood and called for the indictment of the people who had wrongly accused them. That was the result.

Yet here we are on this House floor today as if nothing had happened—ignoring the evidence that the grand jury heard and continuing on this witch hunt of the special committee's against Planned Parenthood.

So, yes, maybe this day is making history. It is probably one of the saddest examples of a Congress run amuck, when, for the 62nd or 63rd time now, we are trying to repeal the Affordable Care Act—ObamaCare—and,

for the 12th time, trying to launch this attack on women's reproductive health and on Planned Parenthood despite all of the intervening and previously existing evidence.

I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, one of the saddest days that the American people remember on the floor of this House was a day in March of 2010. It was when this House voted in a hyperpartisan way to pass a healthcare bill that took away patient-centered health care and put Washington in charge of health care across this country.

I now yield 1 minute to the gentleman from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Speaker, millions of Americans have endured skyrocketing premiums, higher deductibles, limited networks, failing co-ops, and dropped coverage because of the Affordable Care Act, like the mom in my district who now has to pay $400 for her son's lifesaving peanut allergy medication when it used to cost her $10 under the plan that the President promised she could keep.

While some have gained coverage under this failing law, it has been at the expense of far too many others. Just last Monday, the Congressional Budget Office announced that 40 percent fewer Americans signed up for health coverage this year than was predicted. In fact, many Americans are choosing to pay a penalty instead of signing up for the so-called affordable healthcare coverage mandated by this law. We need to empower all patients with more choice while offering solutions for the uninsured and those with preexisting conditions.

Mr. Speaker, if we vote to override, contrary to what has been suggested, the insurance doesn't end tomorrow. We have provisions in this legislation that would extend credits through the end of 2017, giving us the opportunity to do proper healthcare reform that does empower patients and not bureaucrats here in Washington, D.C.

Mr. VAN HOLLEN. Mr. Speaker, I yield 1½ minutes to the gentleman from Wisconsin (Mr. KIND), a distinguished member of the Ways and Means Committee.

Mr. KIND. I thank my friend for yielding me this time.

Mr. Speaker, I rise in opposition to this veto override.

Listen, I understand people's objections and concerns about the healthcare reform that we have embarked upon as a nation, but, clearly, now is not the time to take us back to the status quo, which was going to leave us in a very bad place in this Nation.

Before the Affordable Care Act was passed, the numbers of uninsured were going up. The expense for individuals and businesses was going up. Healthcare costs, budgetwise, were going up. Too many people were being denied coverage based on preexisting conditions. Young people—younger than 26—were being dropped from health insurance plans.

All of that now is being corrected. Not that this is a perfect response to the complexity of the healthcare system, but there is a lot of good that is being done, including in two areas. One is delivery system reform so that we move to a more integrated, coordinated, patient-centered healthcare delivery system based on models that do work. Secondly, and perhaps most importantly, we are changing, under the Affordable Care Act, how we pay for health care so that it is based on the quality or on the outcome or on the value of care that is given and no longer on the numbers of procedures and how much is done to us rather than how well it's done.

We are demanding better quality at a better price, and the numbers are showing that we are heading in this direction. I say we stay the course in continuing to benefit by extending affordable healthcare coverage to more Americans and in finally getting a grip on these rising healthcare costs. I encourage my colleagues to vote ''no'' on this veto override.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from New Hampshire (Mr. GUINTA), a champion of patient-centered health care.

Mr. GUINTA. I thank the chairman.

Mr. Speaker, I rise in support of H.R. 3762 and in support of overriding the President's veto of this very important bill.

The Restoring Americans' Healthcare Freedom Reconciliation Act repeals some of the most egregious and harmful aspects of ObamaCare: the individual mandate, the employer mandate, the medical device tax, and especially the Cadillac tax—a 40 percent excise tax on certain employer health benefits.

In the coming years, the Cadillac tax will be responsible for employees from local governments, small businesses and large, nonprofits, and colleges-universities losing their access to high-quality, affordable health care. This is unacceptable for my home State of New Hampshire—people who want patient-centered health care and options for themselves, their families, not higher premiums, higher deductibles, and fewer doctors.

That is why it is so important to override this veto today. The House and Senate have worked hard in giving American families and small-business owners better care, better options, and greater affordability. We need to continue that approach and ensure that patient-centered health care is at the center of what America stands for.

As a new member of the Budget Committee, I thank my chairman for giving me the opportunity to speak today, and I look forward to working with my colleagues to support this legislation.

□ 1345

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

Not having access to any affordable health care certainly doesn't meet anyone's definition of patient-centered healthcare.

Our Republican colleagues, when they first launched the attacks on the Affordable Care Act and ObamaCare, said: We are going to repeal this, and we are going to replace it.

Well, we have voted, as of today, 63 times to dismantle it. How many times have we voted to replace it? Zero. Zero times to replace it.

My colleague, Mr. KIND from Wisconsin, raised an important point. The way our healthcare insurance system was working back in the early 2000s, millions of Americans were denied access to health care because of a preexisting condition, because their kid had diabetes or asthma. Premiums were going through the roof and skyrocketing.

The Affordable Care Act has now provided affordable health care to millions more Americans and, as we have heard from the nonpartisan Congressional Budget Office, passing this bill would actually take it away for 22 million Americans.

Despite all that, despite the 63rd attempt to get rid of it and deny that access to health care, not once have we heard the replaced part of that Republican agenda.

So, Mr. Speaker, it is a sad day when you want to take away access to affordable health care from 22 million Americans and don't have a single alternative to put on the floor of this House.

I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. BRADY), the chair of the Ways and Means Committee, a gentleman who has dedicated so much time and effort to responsible, appropriate health care for the American people.

Mr. BRADY of Texas. Mr. Speaker, I thank Chairman PRICE for his leadership during this historic effort to dismantle the President's burdensome healthcare law and stand for the rights of the unborn. I am pleased to support this veto override. It couldn't come at a more critical time in our history.

The rights of the innocent unborn is the great human rights issue of our time. This President has chosen to stand on the wrong side of history. By vetoing this bill, he continues to funnel taxpayer dollars to subsidize the gruesome practices at Planned Parenthood.

This country has lost 58 million children to abortion since 1973. That means there are more American deaths from this practice each year that are nearly equal to all of the American casualties from all our wars combined. This government-financed war on the innocent unborn has to stop.

This House has already spoken. Whether you are pro-life or pro-choice,

we have always agreed you don't use taxpayer dollars for the controversial practice of abortion.

It is up to us to continue to stand with those we represent who don't believe their dollars should go to this. We are going to stand with our constituents against this terrible healthcare law because they have been hurt by higher prices, fewer doctors, and less affordable medicine. Frankly, this healthcare law has hurt too many Americans.

We know now the path to repeal. We know how to remove the law's mandates, tax hikes, and slush funds. Now we just need a new President.

Mr. VAN HOLLEN. Mr. Speaker, I yield 1 minute to the gentleman from Pennsylvania (Mr. CARTWRIGHT).

Mr. CARTWRIGHT. Mr. Speaker, I am embarking on completing my fourth year here in the United States House of Representatives. Four years ago I ran for the Congress, in part, to support the Affordable Care Act.

There is a group of beneficiaries of the ACA that is often not discussed, and it is hospitals. I come from a part of northeastern Pennsylvania where the hospitals bore the brunt—and this is true all over America—bore the brunt of having to treat uninsured patients. People would show up on the doorsteps of the hospital and have to be treated. Well, the hospital has to absorb that when they treat uninsured patients.

So what we saw over and over in my district in northeastern Pennsylvania was hospitals were closing. I know why. I sat on the board of directors of a small hospital.

When you absorb it and you absorb it and you absorb the uninsured care year after year, eventually they start cutting back on nurses, start cutting back on essential services. Finally, there is nothing left to cut and they close the hospital.

That is a terrible detriment to your health care when your hospital is no longer 10 minutes away and it is 40 minutes away. That can be the difference between life and death. That is why the Affordable Care Act is something that I supported. We should not dismantle it.

I urge Members to vote against this bill.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from Georgia (Mr. ALLEN), who serves on the Education and the Workforce Committee.

Mr. ALLEN. Mr. Chairman, since ObamaCare was forced onto the American people 6 long years ago, Americans have seen their premiums skyrocket and access to providers dwindle.

In fact, Chairman PRICE and I were in my district talking to a number of physicians at the emergency room. They said: Not a thing has changed, but we are still taking care of the people just like we did before this terrible bill.

Ever since I came to Congress, I have consistently heard from folks in the 12th District of Georgia about the burdens of ObamaCare and that Planned Parenthood should not receive one dime of their hard-earned tax money.

I have heard from a family of five whose previous healthcare policy was terminated and buying a new plan means their premiums will go from $700 to over $1,000. Those seeking treatment could not even pay their deductible.

A small-business owner's premiums more than doubled and benefits have been reduced. An individual projects 16 percent of his income will go toward health care this year alone.

This law is killing the economy. This law is crushing. Even worse, it is crushing Americans and American families and their ability to earn a good living.

Is the sake of a political legacy worth all of this? I think not. After 6 years of failed policy, Americans deserve better.

That is why I am proud to cast my vote to override the President's veto of the Restoring Americans' Healthcare Freedom Reconciliation Act. It is time to move forward in finding a cost-effective and patient-centered plan for our citizens.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

We have heard a lot of talk about premiums going up. The dirty little secret, which every Member of this House knows or should know, is that premiums have been going up consistently for a very long period of time. The issue is: How fast do they go up?

If you look at this chart, you will find that, for employer-sponsored insurance, which is what most Americans are on, premium increases were huge between 2000 and 2010, before the passage of the Affordable Care Act, 9.5 percent. After the passage of the Affordable Care Act, those premium increases have dropped substantially, 4.8, now 2.7.

When Members of Congress get up here and talk about premiums going up, ask yourself the question: How fast are they going up? Because before the Affordable Care Act passed, it was through the roof, and they have dramatically slowed.

I said our Republican colleagues did the repeal part, but not the replace part. So they want to take out the part that has slowed down the premiums and go back to the day when you had skyrocketing premium increases.

So we need to talk in a fact-based conversation here on the floor of the House of Representatives.

I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield 1 minute to the gentleman from Wisconsin (Mr. GROTHMAN), a fellow member of the Committee on the Budget.

Mr. GROTHMAN. Mr. Speaker, in an era where people are so easily offended, where nativity scenes are shut down, where racism is claimed at the tiniest of circumstances, it is surprising that, in 2015, the Federal Government is still funding Planned Parenthood.

Margaret Sanger, the founder of Planned Parenthood, once wrote: ''We don't want the word to get out that we want to exterminate the Negro population, and the minister is the man who can straighten out that idea if it ever occurs to any of their more rebellious members.''

You can see that is a little bit out of context, but there is no doubt that Margaret Sanger is connected with some of the ugliest periods in our country's history involving racism or eugenics.

Her endorsements of promiscuity and opposition to Christian teachings and sexual conduct are well known. To this day, Planned Parenthood counsels minors without parental consent.

If you really want to strike a blow for equality and strike a blow for not offending people, we should stop spending the hundreds of millions of dollars we do every year on Planned Parenthood.

Mr. VAN HOLLEN. Mr. Speaker, I yield 1 minute to the gentlewoman from Texas (Ms. JACKSON LEE), a distinguished member of the Committee on the Judiciary who is focused on an evidence-based approach to all of these issues.

Ms. JACKSON LEE. Mr. Speaker, I thank the distinguished gentleman from Maryland. I do want to say to the gentleman that, as you well know, the Judiciary Committee, in many machinations over the years, has looked at this question of choice and the constitutional right that comes from Roe v. Wade. Unfortunately, our voices—those of us who are there who argue the constitutional premise—have not been heard

Let me stand in opposition to, again, a Groundhog Day announcement, which is again trying to repeal the Affordable Care Act. The good news is that this is my daughter's birthday. So I can celebrate February 2nd in a good way.

This approach to again try to take away from the millions of people in Texas who are uninsured the right to be insured, to have insurance with preexisting conditions, and this horrible provision to defund Planned Parenthood, which is a health prospect and a health project that gives good health care to women, is absurd.

Let me also say, Mr. Speaker, that we face some troubling times when people are unemployed, and Planned Parenthood has provided resources to those vulnerable women. I can't understand why this bill continues to come up.

I am glad to stand in opposition to support Planned Parenthood and its funding and to recognize that the Constitution does protect choice. We do need to provide health care.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield myself such time as I may consume.

I think this is the chart that gets to the issue that is before us today the

most, and that is what is our responsibility to our constituents.

As I mentioned earlier, when this bill passed on the floor of the House in March of 2010 in a hyperpartisan vote, the American people opposed it.

The fact of the matter is the American people oppose it by greater numbers now than they did back then. It is because they have seen its implementation.

They know that their premiums have gone up. They know that their healthcare costs more. They know that they can't see the doctor that they want to see. They know that they can't go to the hospital or the clinic that they want to go to. They know that the quality of their health care is actually decreasing if they talk to their doctor, and they know that their choices have been harmed in so many ways.

So this is a little chart here that demonstrates that 52 percent, according to Gallup in November of last year, oppose this bill. According to Fox, in August of last year, 54 percent opposed this bill. According to Quinnipiac, in July of last year, 52 percent opposed this bill. Those numbers only increase.

Our responsibility, as Representatives of the people, is to represent them. That is what we are doing today. The President is standing in the way of the people's wishes on this piece of legislation. The President is standing in the way of patient-centered health care.

It is our job and our responsibility to stand up for the American people and the will of the American people. We will vote today to override this veto. I urge my colleagues to join in that activity.

I reserve the balance of my time.

Mr. VAN HOLLEN. Mr. Speaker, is the gentleman prepared to close?

Mr. TOM PRICE of Georgia. Mr. Speaker, may I ask how much time remains on each side?

The SPEAKER pro tempore (Mr. COSTELLO of Pennsylvania). The gentleman from Maryland has 1 minute remaining. The gentleman from Georgia has 5¾ minutes remaining.

Mr. TOM PRICE of Georgia. Mr. Speaker, I share with my colleague that, unless the Speaker shows up, I am prepared to close.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

What the chairman of the Budget Committee said about the Affordable Care Act omitted the fact that a majority of Americans do not want to repeal and dismantle the Affordable Care Act.

We would be happy to work with our colleagues in smoothing out some of the edges, but our Republican colleagues are only determined to take it down entirely without a replacement.

In fact, when you ask the American public: ''What one word describes how you feel about the ongoing political debate about the Affordable Care Act?'' they respond: ''ridiculous,'' ''waste of time.''

It is a waste of time. Here we are for the 63rd time trying to get rid of the Affordable Care Act. It is not going to happen. The President vetoed the bill. We will sustain the veto.

To add insult to injury, our Republican colleagues now want to ignore all the facts about the grand jury investigation into Planned Parenthood, which vindicated Planned Parenthood and concluded instead that they should indict Planned Parenthood's accusers.

Mr. Speaker, we will sustain the President's veto. We will protect health insurance for 22 million Americans, and we will protect women's access to reproductive care.

Let's sustain the President's veto. Let's get on with doing the people's business here.

□ 1400

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield myself such time as I may consume.

I think it is important to appreciate the numbers of individuals who are supporting our work on this issue, the folks who support repealing this legislation: Associated Builders and Contractors, Christian Coalition of America, Concerned Women of America, the Family Research Council, FreedomWorks, National Right to Life, American Center for Law and Justice, American Commitment, American Conservative Union, American Principles Project, Americans for Prosperity, Americans for Tax Reform, Americans United for Life, Conservative Women for America, Focus on the Family, Heritage Action for America, Independent Women's Voice, Liberty Counsel Action, March for Life, the National Center for Policy Analysis, National Institute of Family and Life Advocates, National Taxpayers Union, Population Research Institute, Priests for Life, Students for Life, Susan B. Anthony, The Justice Foundation, Tradition, Family, Property, Incorporated, and Traditional Values Coalition. Mr. Speaker, the majority of the American people oppose the law in place.

As I close, the remarks that we make today, this is the time to try to set the record straight. We have heard from our friends on the other side what the Congressional Budget Office says. I will tell you what the Congressional Budget Office says about jobs. It says that this law will decrease the equivalent of over 2 million jobs in this Nation. Over 2 million jobs in this Nation lost because of this law.

Our friends talk about the CBO saying that 22 million individuals are going to lose their insurance. That is because CBO scores things in a way that doesn't recognize the other action that will occur, which is why we have in this bill a transition period to phase in to patient-centered health care; again, health care where patients and families and doctors are making decisions, not Washington, D.C.

We have a government of, by, and for the people, and we take that very, very seriously. When the President is standing in the way of the desires and the wishes of the American people as it relates to something as personal as health care, our responsibility is to stand up for the American people, and that is precisely what we are doing today.

As it relates to women's health care, our bill actually would increase spending—increase spending—on women's health care across this great land and allow greater opportunity for access to community health centers by women to receive the kind of health care that they need.

Our friends on the other side talk about premiums going up only a little bit more than they had been in the past. Mr. Speaker, what that ignores is that the President of the United States promised—promised—the American people that premiums would go down on average $2500 for a family of four. In fact, what they have done is gone up by nearly $3,000 for a family of four.

Mr. Speaker, that is not comparing it to anything else. That is comparing it to what the President promised the American people, and the American people expect their Representatives and the President to keep their promises.

Deductibles have gone up incredibly. Our friends on the other side don't talk about that because what that means is that folks have health coverage out there, but they don't have health care. If you are a family of four, if you are an individual out there making $40,000, $50,000, $60,000 a year, and your deductible is $10,000 a year or $12,000 a year, which is not unusual given this law, Mr. Speaker, you may have health coverage, but you don't have any health care.

As a formerly practicing physician, I can tell you I hear from my colleagues all the time about folks across this land who are making decisions, financial decisions because of this law, denying themselves and their family the ability to care for themselves and their family because of this law.

Mr. Speaker, the fact of the matter is, we believe that the principles of health care that we all hold dear ought to be adhered to. We believe in a system that ought to be accessible for folks—everybody. We believe in a system that ought to be affordable for everybody, that is of the highest quality, and that expands choices for the American people. The American people ought to be the ones who are deciding who is taking care of them when and where and the like.

Mr. Speaker, the fact of the matter is that this law violates every one of those principles. Accessibility is going down across this great land. Affordability is going down. Costs are going up. Quality is decreasing. All you have to do is talk to the men and women who are charged with caring for the American people. Choices have been destroyed in our health care system.

The principles that the American people hold dear, regardless of their political stripe, have been violated by this law. That is why we are standing here today, standing up and representing the American people, standing up on behalf of the American people and demonstrating once again that the only thing that stands in the way of what the American people want and what is occurring right now is that the President of the United States refuses—refuses—to follow the will of the people.

I urge a vote in favor of this veto override. We can get on then with the hard work of making certain that we move in the direction of patient-centered health care where patients and families and doctors are making medical decisions and not Washington, D.C.

Mr. POE of Texas. Mr. Speaker, the American People have spoken and they do not want Obama's high-cost, job-killing, conscience-violating healthcare law.

But the President refuses to listen. He vetoed Obamacare Reconciliation passed by both the House and Senate to dismantle Obamacare.

Americans have lost their insurance plans and their doctors. Their insurance premiums have skyrocketed and some have even lost their jobs because of Obamacare. Yet the Administration just sits by and watches while the American people suffer.

Today, the House continues to stand up for the people with this veto override. We will continue to fight for our constituents to defeat Obamacare and defund Planned Parenthood.

I urge a ''yes'' vote on this important measure to show the President and the America people that we will not stop until Obamacare is defeated.

And that's just the way it is.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield back the balance of my time, and I move the previous question.

The previous question was ordered.

The SPEAKER pro tempore. The question is, Will the House, on reconsideration, pass the bill, the objections of the President to the contrary notwithstanding?

Under the Constitution, the vote must be by the yeas and nays.

Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Ordering the previous question on House Resolution 594; and

Adopting House Resolution 594, if ordered.

The first electronic vote will be conducted as a 15-minute vote. Any remaining electronic vote will be conducted as a 5-minute vote.

PROVIDING FOR CONSIDERATION OF H.R. 3700, HOUSING OPPORTUNITY THROUGH MODERNIZATION ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on ordering the previous question on the resolution (H. Res. 594) providing for consideration of the bill (H.R. 3700) to provide housing opportunities in the United States through modernization of various housing programs, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The vote was taken by electronic device, and there were—yeas 236, nays 178, not voting 19, as follows:

[Roll No. 48]

YEAS—236

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—178

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—19

Brooks (IN)
Butterfield
Castro (TX)
Fattah
Franks (AZ)
Gowdy
Grijalva
Hice, Jody B.
Huffman
Issa
Jordan
Larson (CT)
Lujan Grisham (NM)
Maloney, Sean
Massie
Pompeo
Scott, Austin
Smith (WA)
Westmoreland

□ 1426

Ms. TITUS changed her vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore (Mr. COSTELLO of Pennsylvania). The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. HASTINGS. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 242, noes 177, not voting 14, as follows:

[Roll No. 49]

AYES—242

Abraham	Gohmert	Mulvaney
Aderholt	Goodlatte	Murphy (PA)
Allen	Gosar	Neugebauer
Amash	Granger	Newhouse
Amodei	Graves (GA)	Noem
Ashford	Graves (LA)	Nugent
Babin	Graves (MO)	Nunes
Barletta	Griffith	Olson
Barr	Grothman	Palazzo
Barton	Guinta	Palmer
Benishek	Guthrie	Paulsen
Bilirakis	Hanna	Pearce
Bishop (MI)	Hardy	Perry
Bishop (UT)	Harper	Pittenger
Black	Harris	Pitts
Blackburn	Hartzler	Poe (TX)
Blum	Heck (NV)	Poliquin
Bost	Hensarling	Pompeo
Boustany	Herrera Beutler	Posey
Brady (TX)	Hill	Price, Tom
Brat	Holding	Ratcliffe
Bridenstine	Hudson	Reed
Brooks (AL)	Huelskamp	Reichert
Buchanan	Huizenga (MI)	Renacci
Buck	Hultgren	Ribble
Bucshon	Hunter	Rice (SC)
Burgess	Hurd (TX)	Rigell
Byrne	Hurt (VA)	Roby
Calvert	Jenkins (KS)	Roe (TN)
Carter (GA)	Jenkins (WV)	Rogers (AL)
Carter (TX)	Johnson (OH)	Rogers (KY)
Chabot	Johnson, Sam	Rohrabacher
Chaffetz	Jolly	Rokita
Clawson (FL)	Jones	Rooney (FL)
Coffman	Joyce	Ros-Lehtinen
Cole	Katko	Roskam
Collins (GA)	Kelly (MS)	Ross
Collins (NY)	Kelly (PA)	Rothfus
Comstock	King (IA)	Rouzer
Conaway	King (NY)	Royce
Cook	Kinzinger (IL)	Russell
Cooper	Kline	Salmon
Costa	Knight	Sanford
Costello (PA)	Labrador	Scalise
Cramer	LaHood	Schweikert
Crawford	LaMalfa	Scott, Austin
Crenshaw	Lamborn	Sensenbrenner
Culberson	Lance	Sessions
Curbelo (FL)	Latta	Shimkus
Davis, Rodney	LoBiondo	Shuster
Denham	Long	Simpson
Dent	Loudermilk	Sinema
DeSantis	Love	Smith (MO)
DesJarlais	Lucas	Smith (NE)
Diaz-Balart	Luetkemeyer	Smith (NJ)
Dold	Lummis	Smith (TX)
Donovan	MacArthur	Stefanik
Duffy	Marchant	Stewart
Duncan (SC)	Marino	Stivers
Duncan (TN)	McCarthy	Stutzman
Ellmers (NC)	McCaul	Thompson (PA)
Emmer (MN)	McClintock	Thornberry
Farenthold	McHenry	Tiberi
Fincher	McKinley	Tipton
Fitzpatrick	McMorris Rodgers	Trott
Fleischmann	McSally	Turner
Fleming	Meadows	Upton
Flores	Meehan	Valadao
Forbes	Messer	Wagner
Fortenberry	Mica	Walberg
Foxx	Miller (FL)	Walden
Franks (AZ)	Miller (MI)	Walker
Frelinghuysen	Moolenaar	Walorski
Garrett	Mooney (WV)	Walters, Mimi
Gibbs	Mullin	Weber (TX)
Gibson	Murphy (PA)	Webster (FL)
Goodlatte	Neugebauer	Wenstrup
Gosar	Newhouse	Westerman
Granger	Noem	Whitfield
Graves (GA)	Nugent	Williams
Graves (LA)	Nunes	Wilson (SC)
Graves (MO)	Olson	Wittman
Griffith	Palazzo	Womack
Grothman	Palmer	Woodall
Guinta	Paulsen	Yoder
Guthrie	Pearce	Yoho
Hanna	Perry	Young (AK)
Hardy	Pittenger	Young (IA)
Harper	Pitts	Young (IN)
Harris	Poe (TX)	Zeldin
Hartzler	Poliquin	Zinke
Heck (NV)	Pompeo	
Hensarling	Posey	
Herrera Beutler	Price, Tom	
Hill	Ratcliffe	
Holding	Reed	
Hudson	Reichert	
Huelskamp	Renacci	
Huizenga (MI)	Ribble	
Hultgren	Rice (SC)	
Hunter	Rigell	
Hurd (TX)	Roby	
Hurt (VA)	Roe (TN)	
Jenkins (KS)	Rogers (AL)	
Jenkins (WV)	Rogers (KY)	
Johnson (OH)	Rohrabacher	
Johnson, Sam	Rokita	
Jolly	Rooney (FL)	
Jones	Ros-Lehtinen	
Joyce	Roskam	
Katko	Ross	
Kelly (MS)	Rothfus	
Kelly (PA)	Rouzer	
King (IA)	Royce	
King (NY)	Russell	
Kinzinger (IL)	Salmon	
Kline	Sanford	
Knight	Scalise	
Labrador	Schweikert	
LaHood	Scott, Austin	
LaMalfa	Sensenbrenner	
Lamborn	Sessions	
Lance	Shimkus	
Latta	Shuster	
LoBiondo	Simpson	
Long	Sinema	
Loudermilk	Smith (MO)	
Love	Smith (NE)	
Lucas	Smith (NJ)	
Luetkemeyer	Smith (TX)	
Lummis	Stefanik	
MacArthur	Stewart	
Marchant	Stivers	
Marino	Stutzman	
McCarthy	Thompson (PA)	
McCaul	Thornberry	
McClintock	Tiberi	
McHenry	Tipton	
McKinley	Trott	
McMorris Rodgers	Turner	
McSally	Upton	
Meadows	Valadao	
Meehan	Wagner	
Messer	Walberg	
Mica	Walden	
Miller (FL)	Walker	
Miller (MI)	Walorski	
Moolenaar	Walters, Mimi	
Mooney (WV)	Weber (TX)	
Mullin	Webster (FL)	

NOES—177

Adams	Gallego	Neal
Aguilar	Garamendi	Nolan
Bass	Graham	Norcross
Beatty	Grayson	O'Rourke
Becerra	Green, Al	Pallone
Bera	Green, Gene	Pascrell
Beyer	Grijalva	Payne
Bishop (GA)	Gutiérrez	Pelosi
Blumenauer	Hahn	Perlmutter
Bonamici	Hastings	Peters
Boyle, Brendan F.	Heck (WA)	Peterson
Brady (PA)	Higgins	Pingree
Brown (FL)	Himes	Pocan
Brownley (CA)	Hinojosa	Polis
Bustos	Honda	Price (NC)
Capps	Hoyer	Quigley
Capuano	Huffman	Rangel
Cárdenas	Israel	Rice (NY)
Carney	Jackson Lee	Richmond
Carson (IN)	Jeffries	Roybal-Allard
Cartwright	Johnson (GA)	Ruiz
Castor (FL)	Johnson, E. B.	Ruppersberger
Chu, Judy	Kaptur	Rush
Cicilline	Keating	Ryan (OH)
Clark (MA)	Kelly (IL)	Sánchez, Linda T.
Clarke (NY)	Kennedy	Sanchez, Loretta
Clay	Kildee	Sarbanes
Cleaver	Kilmer	Schakowsky
Clyburn	Kind	Schiff
Cohen	Kirkpatrick	Schrader
Connolly	Kuster	Scott (VA)
Conyers	Langevin	Scott, David
Courtney	Larsen (WA)	Serrano
Crowley	Larson (CT)	Sewell (AL)
Cuellar	Lawrence	Sherman
Cummings	Lee	Sires
Davis (CA)	Levin	Slaughter
Davis, Danny	Lewis	Speier
DeFazio	Lieu, Ted	Swalwell (CA)
DeGette	Lipinski	Takano
Delaney	Loebsack	Thompson (CA)
DeLauro	Lofgren	Thompson (MS)
DelBene	Lowenthal	Titus
DeSaulnier	Lowey	Tonko
Deutch	Luján, Ben Ray (NM)	Torres
Dingell	Lynch	Tsongas
Doggett	Maloney, Carolyn	Van Hollen
Doyle, Michael F.	Matsui	Vargas
Duckworth	McCollum	Veasey
Edwards	McDermott	Vela
Ellison	McGovern	Velázquez
Engel	McNerney	Visclosky
Eshoo	Meeks	Walz
Esty	Meng	Wasserman Schultz
Farr	Moore	Waters, Maxine
Foster	Moulton	Watson Coleman
Frankel (FL)	Murphy (FL)	Welch
Fudge	Nadler	Wilson (FL)
Gabbard	Napolitano	Yarmuth

NOT VOTING—14

Brooks (IN)	Hice, Jody B.	Maloney, Sean
Butterfield	Issa	Massie
Castro (TX)	Jordan	Smith (WA)
Fattah	Lujan Grisham (NM)	Takai
Gowdy		Westmoreland

□ 1433

Mr. RUSH changed his vote from ''aye'' to ''no.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. CASTRO of Texas. Mr. Speaker, my vote was not recorded on Roll Call Number 48 on the Motion on Ordering the Previous Question on the Rule providing for consideration of H.R. 3700. I am not recorded because I was absent due to awaiting the impending birth of my son in San Antonio, Texas. Had I been present I would have voted NAY.

Mr. Speaker, my vote was not recorded on Roll Call Number 49 on H. Res. 594—Rule providing for consideration of H.R. 3700—Housing Opportunity Through Modernization Act of 2015. I am not recorded because I was absent due to awaiting the impending birth of my son in San Antonio, Texas. Had I been present I would have voted NAY.

HOUSING OPPORTUNITY THROUGH MODERNIZATION ACT OF 2015

GENERAL LEAVE

Mr. HENSARLING. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and submit extraneous materials on the bill, H.R. 3700, to provide housing opportunities in the United States through modernization of various housing programs, and for other purposes.

The SPEAKER pro tempore (Mr. CARTER of Georgia). Is there objection to the request of the gentleman from Texas?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 594 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 3700.

The Chair appoints the gentleman from Pennsylvania (Mr. COSTELLO) to preside over the Committee of the Whole.

□ 1437

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 3700) to provide housing opportunities in the United States through modernization of various housing programs, and for other purposes, with Mr. COSTELLO of Pennsylvania in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from Texas (Mr. HENSARLING) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 30 minutes.

The Chair recognizes the gentleman from Texas.

Mr. HENSARLING. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, today I rise in strong support of H.R. 3700, the Housing Opportunity Through Modernization Act, offered by my friend, Chairman LUETKEMEYER of Missouri.

I want to thank him for his leadership on this bill that he has worked on for many, many months. It represents a true bipartisan approach to housing reform.

I also want to thank his fellow Missourian, the ranking member of the Housing Subcommittee, again, another gentleman from Missouri (Mr. CLEAVER), for his input into this legislation and for his leadership on his side of the aisle as well.

H.R. 3700 passed the Financial Services Committee with broad bipartisan

support back in December. Again, it is designed to help promote greater efficiency in our existing housing assistance programs.

In many different ways, Mr. Chairman, it modernizes a lot of outdated rules and regulations which, in some cases, have not even been updated in a generation. And so, in that respect, it takes the resources that we have and targets it to those who need it the most.

So you will find provisions here dealing with Section 8 rental assistance, public housing, rural housing, homeless assistance, and FHA mortgage insurance for condominiums. It is a very broad bill, and, again, it enjoys bipartisan support.

Let me talk a little bit about what H.R. 3700 doesn't do or what it is not. Few have been more critical about the poor focus of our HUD programs than I have been because, regardless of whatever their good intentions may be, the undeniable truth is current Federal housing policy remains fractured, remains costly, remains inefficient, and oftentimes does not help those who truly need it.

In 2012, the GAO found that 20 different Federal Government entities administer over 160 different programs, tax expenditures, and other tools that support home ownership and rental housing.

The Department of HUD has received approximately more than $1.6 trillion in real dollars since it was born 50 years ago and today spends over $45 billion annually on at least 85 active programs, again, many of which have not been modernized or updated in a generation.

And the results of all this?

Well, all too often housing affordability remains a very real challenge for many Americans. Too many neighborhoods still suffer from blight and neglect with substandard housing options for low-income families.

Most tellingly, the national poverty rate has remained essentially unchanged in the 50 years since HUD was first created. Mr. Chairman, we can do better.

Now, we all know that the best housing program is a job, a career path, one with a future. We know that the best housing program is economic opportunity for all, boundless economic opportunity for all. But there are still some that need assistance.

So that is not what this debate is about today. Today the debate is: What can we do on a bipartisan basis? Where can we come to agreement on current existing programs to try to make them work better for the poor and for our low-income people who need assistance through the HUD programs? What is it we can do to help move more people out of poverty to lives of self-sufficiency? How do we reform HUD's complex bureaucratic web of programs? How do we spread economic opportunity to all?

Those should be what our goals are.

H.R. 3700 addresses the question by finding many ways within HUD's bureaucracy to streamline the inspection protocol for rental assistance units, to simplify tenant income review so local housing officials can focus on housing, not data collection, and to target assistance, again, to households with the greatest need.

For the first time, H.R. 3700 will state that any occupant of a public housing unit that exceeds the area median income for 2 consecutive years either gives up their government subsidy or moves out of the unit. That provides more resources for those who deserve it.

H.R. 3700 also addresses the problem of over-income occupants. It creates for the first time a financial asset test for public housing residents. Currently, there is only a one-time income test.

Again, these are just two ways, Mr. Chairman, that we ensure that the resources that are devoted to these housing programs are targeted to those who are most in need.

I could go on and on about the benefits of the bill. But let me just say that, with any great project, there are those who are always saying we could do more. And, yes, we could do more, and we are working faster to implement even more reforms.

But today represents a start of a process, not the end of a process, a very ambitious project to transform how we deliver government housing assistance in America and help people graduate from Federal assistance to lives of self-sufficiency and financial independence.

Again, I congratulate the gentleman from Missouri, the chairman of our Housing and Insurance Subcommittee, for his great leadership.

I commend the ranking member of that committee as well for working on a bipartisan basis.

I hope all Members will support H.R. 3700. It is a bipartisan first step in fixing a broken housing system that we have.

I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Chair, I yield myself as much time as I may consume.

Mr. Chairman, we are here today to discuss H.R. 3700, but I would like to start by saying how pleased I am that we are focusing on housing.

This is the first major housing bill that the Financial Services Committee has considered in the past several Congresses, and I hope that we can spend a lot more time focusing on the dire housing needs of low-income families in America as we move forward.

□ 1445

Today, only one in four households in this country who are eligible to receive housing assistance actually receive it, and there is a severe deficit of over 7 million rental units that are both affordable and available to extremely low-income Americans.

Furthermore, according to HUD's most recent point-in-time count, there are nearly 600,000 Americans who are homeless in this country—a staggering number I find simply unconscionable. These statistics demonstrate that we must come together to make reforms to Federal housing programs, but also to commit new resources to tackle the extreme lack of affordable housing in this country.

I spend a lot of time visiting and talking with housing and homeless services providers. Recently, I visited the Downtown Women's Center in Los Angeles and N Street Village here in D.C. These homeless service providers are helping women and families get off the streets and into safe, decent, affordable, and supportive housing. Organizations such as these are not just applying compassion, they are applying evidence-based approaches to addressing homelessness in the most effective ways.

H.R. 3700 is a step in the right direction because it directly responds to concerns that I have heard over and over again from these housing and homeless service providers about how Federal housing programs can better support their efforts.

This bill would make several incremental changes across a number of Federal housing programs that will allow us to better serve low-income families in need of housing assistance while also relieving certain administrative burdens. These changes would affect public housing, section 8 Tenant and Project-Based Rental Assistance, the Federal Housing Administration, the Rural Housing Service, and HUD's homelessness programs, among others.

Many of the provisions are commonsense reforms that are long overdue. For example, this bill includes the text of my bill, the Project-Based Voucher Improvement Act of 2015, which would increase flexibility for public housing authorities to develop new units of housing to serve vulnerable populations, including those who are homeless in this country. It would also help to create housing opportunities in areas where vouchers are difficult to use.

Several national and local tenant advocacy organizations and affordable housing industry groups have expressed support for my bill. In addition, a number of other provisions in H.R. 3700 were included in previous section 8 reform bills that I have introduced. I am pleased that my Republican colleagues have expressed their support for these provisions that I have long advocated.

At the markup of this bill, I raised a serious concern that I had with one of the provisions in H.R. 3700 because it would effectively raise rents for low-income families with children who are living in certain HUD-assisted housing. I voted against the bill in committee. Although I voted against the bill at the committee markup for this reason, I am very pleased to say that I have worked, and my staff has worked, with my Republican colleagues so that we could find some common ground, and

they have indicated that they will support my amendment that I have offered to address this issue.

I am encouraged that my Republican colleagues shared in my concerns and that we were able to reach a meaningful compromise on this issue.

Mr. Chairman, that is why I am now urging my colleagues to vote ''yes'' on H.R. 3700. It is high time we came together to pass a bipartisan housing bill.

Mr. Chairman, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I yield 4 minutes to the gentleman from Missouri (Mr. LUETKEMEYER), the chairman of the Housing and Insurance Subcommittee of the Financial Services Committee. He happens to be the author of the bill.

Mr. LUETKEMEYER. Mr. Chairman, I would like to thank Chairman HENSARLING, Ranking Member WATERS, and especially my good friend from Missouri, the ranking member, Mr. CLEAVER. We have had a labor of love with this bill, and it took two guys from the Show Me State to show them how to do it. We are excited about that, and I want to give a special shout-out to him.

Mr. Chairman, when I took the gavel of the Financial Services Subcommittee on Housing and Insurance, I told my colleagues I wanted to work with them across party lines to make meaningful changes that benefit all Americans. H.R. 3700 represents a major step forward, one to reform a system that is in many instances outdated, duplicative, and burdensome.

As a body, we should be committed to creating a more efficient government and greater opportunity for the American people and American businesses. H.R. 3700 helps us meet those commitments.

This legislation promotes greater efficiency in housing assistance programs and modernizes outdated rules and regulations, which in some cases have not been updated in more than a generation. H.R. 3700 streamlines the inspection protocol for rental assistance units, simplifies the income recertification policies for assisted households, clarifies homeless assistance program requirements, delegates rural housing loan approval authority, and provides targeted flexibility between public housing operating and capital funds.

H.R. 3700 also gives State and local housing agencies and private owners enhanced flexibility in meeting key program objectives such as reducing homelessness, improving access to higher-opportunity neighborhoods, and addressing repair needs of public housing.

The bill also, for the first time in over 30 years of public housing policy, provides a thoughtful limitation on public housing tenancy for over-income families. Importantly, this legislation also pays special attention to our homeless veterans and children aging out of foster care, two vulnerable communities that need our support today.

H.R. 3700 does all of this and still manages to save the taxpayers money. CBO estimates that the underlying bill saves $311 million over 5 years.

I will be the first to point out that H.R. 3700 will not necessarily change the world. It won't overhaul HUD or the Rural Housing Service, end homelessness overnight, or meet the overwhelming need for affordable housing. But it is a significant step in the long journey to reforming a broken system.

The majority of the provisions in this bill were agreed to years ago by Members of Congress, housing advocates, and industry groups. H.R. 3700 is a set of solutions on which all parties, in Congress, industry, and advocacy, have agreed and can agree.

Mr. Chairman, this legislation presents a bipartisan effort that has been drafted and debated over the past 6 months. I want to thank again Chairman HENSARLING for his support and Ranking Member WATERS for her work on the bill, which passed the Financial Services Committee in December by an overwhelming bipartisan vote of 44–10.

I also want to recognize my good friend, the ranking member, Mr. CLEAVER from Missouri. Without his tireless efforts, this bill would be very difficult to have accomplished anything with.

Housing policy isn't easy. It is emotional. It touches lives. It sets the stage for future generations. Because it is so important, it isn't always easy to find policies on which we all agree. With H.R. 3700, we have an opportunity to show the Nation that we are committed to working together, and with a diverse group of stakeholders, for the American people.

Mr. Chairman, I urge my colleagues to support this legislation, and I urge the Senate to consider it without delay so we can break a status quo that benefits too few at the cost of too many.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield 5 minutes to the gentleman from Missouri (Mr. CLEAVER). He is the leading Democratic sponsor of this bill, a member of the Financial Services Committee, and the ranking member of the Subcommittee on Housing and Insurance.

Mr. CLEAVER. Mr. Chairman, I came to Congress, and because of my own experiences, I only had one ambition other than being a Member of Congress, and it was to take leadership in the Subcommittee on Housing and Insurance because, experientially, I thought I had experiences that might help. And secondly, having served as mayor, we dealt a lot with housing in Missouri's largest city. I had this opportunity. And I want to thank Ms. WATERS for the opportunity to be the lead Democrat on the Housing and Insurance Subcommittee.

I think it was fortunate, maybe even fortuitous, that two Missourians ended up working together, and we were able to, I think, do some things that probably might not have been done otherwise because I think we both have a spirit of working together, and it ended up in a good product. But that wouldn't have taken place without the chairman and the ranking member.

I lived in 404–B Bailey public housing in Wichita Falls, Texas. I went by on Christmas, and I just parked there for a long time and looked at the kids running around playing, thinking I used to do that on that same little piece of dirt that we called a yard. I wondered about the kids who were in that unit. Will they eventually have the opportunities that I was blessed to have? Or would they suffer the fate of many others with whom I grew up?

I thought in part we might be able to do some things here that will help the little boy I saw running around playing in front of the unit I once lived in with my mother, father, and three sisters. I think we have done this. These are probably the most sweeping changes in HUD regulations in a quarter of a century, perhaps ever; and what we have done is we have remodeled, or refashioned, or recast, or redesigned many of the programs impacting HUD.

I do not disagree with Chairman HENSARLING that we do have a great deal of redundancy in programs that we run with HUD and USDA. I do think at some point there is a need for us to get things molded a little bit better, but that is not going to take place I don't think any time soon.

I support H.R. 3700 because I had the opportunity to understand what these changes mean. I also need to say before I go any further that I don't believe that compromise means capitulation. In fact, I don't think democracy can work without comity and compromise. I think they are inseparable parts of democracy. So there are parts of this bill that I am not as thrilled with, as other parts, but that is what happens in a democracy.

Again, I cherish the opportunity to work with people who are willing to move and shake and move and shake and shake and move to get something to the floor.

The bill will streamline the inspection and income review process for families living in section 8 units. We are making, in this legislation, some very badly needed changes to the project-based voucher program by allowing a public housing authority, PHA, to project-base up to 20 percent of its authorized voucher allocation, rather than 20 percent of the voucher funding that we give. And then we give PHAs more flexibility with their funds by allowing them to transfer up to 20 percent of their capital funds to the operating fund.

Mr. Chairman, what this allows is for people who are on the ground, working with people, understanding where they need to have funds, the opportunity to move those funds around without violating any of the HUD regulations.

It helps our foster children by expanding eligibility for the Family Unification Program from the current

limit of 21 years of age to 24 years of age, and it increases the length of stay from 18 months to a maximum of 36 months. It also—and I think this is important—expands the eligibility of individuals who will leave foster care within 90 days.

Mr. LUETKEMEYER. Mr. Chairman, I yield 3 minutes to the gentleman from Texas (Mr. NEUGEBAUER), who is the chair of the Subcommittee on Financial Institutions and Consumer Credit.

Mr. NEUGEBAUER. Mr. Chairman, I want to thank Chairman LUETKEMEYER and Ranking Member CLEAVER for their work on this very important piece of legislation.

I have been in the housing business probably for over 40-some-odd years. I have been involved in every aspect of it, from low-income housing, to rental housing, to new housing, to resale housing. One of the things that I have recognized over the years is what an important part housing is to the fabric of our country, how important housing is to families, and how people enter into the housing market in different ways. Certainly there are folks that go into market-based rental housing, and then there are folks that aren't quite ready to do that. Maybe they are getting started or have had a difficulty in their life, so lower-income housing provides an opportunity for them.

I think the goal of the housing programs over the years is to provide low-income housing as a stepping stone and not a permanent residence. One of the things I like about H.R. 3700 is that it encourages that process. It has been brought up in a number of these programs, and over the years sometimes a good idea spreads around. We have spent a lot of time probably creating new housing programs and probably spent a lot of time increasing the funding for housing programs, but in many cases maybe we didn't stop and do the review and make sure that the programs that we had put in place were efficient in delivering the services that needed to be delivered and helping those families accomplish the goal of moving through the housing cycle.

□ 1500

So one of the things that I like about this bill is that these families that have—in fact, the goal has been to increase their livelihood, and they have gotten better jobs and their income has increased. It is time, then, for those folks to move on. Because what we know is—and those statistics have been, I think, brought out today—we have got a number of people in the waiting line to get into some of this housing to better their lives. It is not fair that people whose incomes have far surpassed incomes that it takes to qualify to live in them should continue to do that.

So affluent families must pay market rental rates or they have got to leave the public housing arena. Higher asset families must leave public housing. That is a normal cause. That is not cruel. That is just the way that these programs were designed to work.

The other thing, though, is we have a responsibility not only to the families and individuals around our country, but we have a responsibility to the United States of America. One of the things that I think is important about this piece of legislation is it doesn't really mess with mandatory spending but is, according to CBO, going to save $300 million over 5 years.

What that points out—and this is done really without cutting any of the programs, but just cutting some efficiencies in those programs to make sure that those programs are being administered appropriately—is, if there are some regulatory things that are keeping people from operating some of these public housing facilities in a way that maximizes the benefit, then we give them some flexibility to do that by reducing some duplicative regulatory processes and, more importantly, empowering the local entities and the local operators of this public housing to be more innovative and creative.

As I have had an opportunity to visit some of our public housing facilities in my district, the 19th Congressional District, and sit down with a lot of those administrators, what they tell me is: RANDY, if we could have more flexibility, we know how to deliver this service much more efficiently than we have today. But in many cases, the Federal regulation is inhibiting their ability to be able to implement some of those things.

I want to commend the two gentlemen from Missouri for their outstanding work. Yes, we could probably do more, but the good thing is we got started. I think we are off to a good start, so I encourage my colleagues to support H.R. 3700.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield 3 minutes to the gentlewoman from Wisconsin (Ms. MOORE), the ranking member of the Monetary Policy and Trade Subcommittee of the Committee on Financial Services.

Ms. MOORE. Mr. Chairman, I thank Ranking Member WATERS for yielding.

I rise in support of H.R. 3700, as amended by Ranking Member WATERS.

This is what you call regular order, folks. This bill came out of committee with a significant flaw that would have had a very negative impact on families and children and the ability of low-income people to deduct childcare expenses. If it were not fixed, it would have effectively raised rent on thousands of low-income families with children.

I just want to commend my colleagues, Ms. WATERS and Mr. CLEAVER—Ms. WATERS in particular—for really catching this flaw. But I also want to commend the Republicans who, instead of just taking their position as being in the majority and saying ''we don't have to listen to you,'' continued to engage with us to fix this. Literally, the math did not work out.

I can tell you as once a single parent and as a grandmother, I know about the budget-busting cost of child care. I also know how central housing policy and access to child care is critical to positive social outcomes for children.

So often we demand that poor people, and especially women, pull themselves up by their bootstraps. We have programs that are designed to help them. But then what we do is we put program features in place that really cancel out the benefits of these programs.

But this bill, H.R. 3700, as amended by the ranking member, eliminates the unintended consequences for poor people who are raising children. Ranking Member WATERS and subcommittee Ranking Member CLEAVER have both been powerful advocates for affordable housing on the Financial Services Committee. I am so pleased to join them in fighting for these changes.

H.R. 3700 is supported by the National Association of Realtors, the National Alliance to End Homelessness, and the Center on Budget and Policy Priorities, among the over two dozen groups supporting it.

I urge adoption of the legislation, as amended by Ms. WATERS.

Mr. LUETKEMEYER. Mr. Chairman, I yield 2 minutes to the gentleman from New Mexico (Mr. PEARCE), the vice chairman of the Financial Institutions and Consumer Credit Subcommittee.

Mr. PEARCE. Mr. Chairman, I thank the gentleman for yielding.

About 5 years ago, I was in Roswell, New Mexico, at a meeting with veteran constituents. We were talking about policies and things like that. After about an hour, suddenly one gentleman overlooked in the whole group blurted out, ''I am living in a rat hole.'' It just caught us all by surprise. We dismantled the discussion there, and we went immediately to look at his house. Over the next 2 years, that community gathered money and businesses came together. They tore down the man's house and rebuilt it.

The problem is that not everyone out there can get access to communities and local businesses to help them through the problems, so we have the housing programs which are set up. Unfortunately, they are mired in bureaucratic red tape. We soak up the dollars that should be helping people with administrative burdens that make no sense, with duplicative requirements to go through the processes.

I commend both sides of the aisle, Mr. LUETKEMEYER and Ms. MAXINE WATERS of California, for pushing this reform because it will allow us to direct the money to where it should be going.

Many times we think that we disagree with each other about policies. The truth is there is not significant disagreement that we should be helping those at the lowest income levels to raise themselves up. It is through their

progression towards prosperity and towards just making ends meet that we get rid of some of the deepest problems in our social cost of the government. It is not that we disagree; it is that sometimes we get trapped and that that program doesn't work very well so we want to cut funds.

I really think that this is a very important step today where we are trying to modernize the systems that are delivering help to those that need it the most in the belief that the human spirit will actually take those steps to make their own way out once we help them stabilize.

Again, just thanks for the work on both sides of the aisle.

I urge support of H.R. 3700.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield 3 minutes to the gentlewoman from Alabama (Ms. SEWELL), a member of the Financial Services Committee.

Ms. SEWELL of Alabama. Mr. Chairman, I rise today in support of H.R. 3700, the Housing Opportunity Through Modernization Act, as amended by Ranking Member WATERS.

While not a perfect bill, H.R. 3700 has been made considerably better by the amendment offered by Ranking Member WATERS. There are other amendments that I would love to see, including my own, but I must tell you that this bill does represent true bipartisanship. It is a major bipartisan step towards helping preserve our scarce housing resources while expanding housing opportunities and homeownership opportunities.

More specifically, this legislation makes critical changes that would help improve and expand the Section 502 Guaranteed Rural Housing Loan Program. This program helps provide low- and moderate-income households with homeownership opportunities in rural areas, like the Seventh Congressional District of Alabama, which I am so proud to represent.

The sad reality is that too often, rural America faces severe barriers and obstacles to obtaining quality and affordable housing. This is largely due to the limited access to affordable mortgage credit.

The Section 502 Guaranteed Rural Housing Loan Program is designed to target rural residents who have a steady low or moderate income yet are unable to obtain adequate housing through conventional financing. Essentially, this program encourages private lenders to extend credit to responsible and creditworthy borrowers in rural America.

H.R. 3700 would help the Department of Agriculture improve and expand the Section 502 Guaranteed Rural Housing Loan Program by delegating loan approval authority to certain participating lenders. This is similar to the authority that the Secretary of the Department of Housing and Urban Development currently has for Federal Housing Administration's programs, and this legislative proposal was included in the President's FY 2016 budget.

This is a commonsense and pragmatic measure that will help improve the efficiency of an important rural housing program so that it can reach even more rural families. It is critically important that we continue to provide the necessary tools and incentives to help ensure all Americans are able to realize their dream of homeownership.

I want to commend my colleague from Missouri. I especially want to commend my colleague Congressman CLEAVER for his tireless leadership on this effort. I want to thank the chairman and ranking member for their efforts.

I urge all of my colleagues to support H.R. 3700.

Mr. LUETKEMEYER. Mr. Chairman, I yield 2½ minutes to the distinguished gentleman from North Carolina (Mr. PITTENGER).

Mr. PITTENGER. I thank Chairman LUETKEMEYER for his leadership on this bill, and I appreciate deeply the support and leadership of Congressman CLEAVER.

Mr. Chairman, today I rise in support of H.R. 3700, the Housing Opportunity Through Modernization Act, which contains provisions that expand housing opportunities while protecting American taxpayers.

This bipartisan legislation provides commonsense efforts for streamlining and reducing regulatory burdens for organizations working with HUD.

This bill looks to correct many wrongs within our housing system while also simplifying certification processes and providing permanent authority for direct endorsement for approved lenders to approve rural housing service loans.

Mr. Chairman, condominiums are often the first step on the housing ladder for first-time homeowners. They also can be the most affordable and desirable option for single people, young families, and those looking to downsize. Unfortunately, current FHA regulations prevent buyers from purchasing condos. H.R. 3700 eases restrictions, allowing more opportunity for homeownership.

This bill reins in duplicative and overly burdensome regulations, which not only create a slower process, but also increase government workload all without affecting any changes to direct spending.

Mr. Chairman, housing assistance should be solely for those who need it most of all, and this bill takes aim at ensuring this. For the first time in 80 years, this legislation provides limitations on public housing tenancy for over-income families.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield 3 minutes to the gentlewoman from California (Ms. LEE), a member of the Appropriations Committee and someone who has been focused on dealing with poverty.

Ms. LEE. Mr. Chairman, let me thank our ranking member, Congresswoman WATERS, for leading and also for her tremendous leadership on the Financial Services Committee as our ranking member. She has been phenomenal in terms of making sure that our legislation is bipartisan. Also, I remember serving on the Subcommittee on Housing and Insurance for many, many years with Congresswoman WATERS, and she constantly worked to make sure that people had access to affordable, accessible, clean, and safe housing. She has not wavered on that agenda. So I thank her very much.

The need for affordable housing has never been greater. That is why I am very happy to be here today to support the Housing Opportunity Through Modernization Act of 2015. This bill would make critical improvements to our Nation's public and assisted housing programs, and takes steps to ensure that low-income communities have access to safe and affordable housing.

Now, let me just tell you, in my district in Oakland, California, rents have risen faster than anywhere else in the Nation. In fact, if the average Oakland renter had to move tomorrow, they would be spending a staggering 70 percent of their income on housing—70 percent of their income. That is outrageous. My constituents, like many constituents around the country, can't afford this, so this is a crisis.

□ 1515

This bill takes steps to address this issue by protecting voucher holders from losing their subsidies when fair market rents drop, which is something that recently had a major impact on my community. Thankfully, with the help of Congresswoman WATERS and our Secretary of HUD, we were able to navigate the agency's redtape to find a solution so the tenants could keep their assistance and stay in their homes.

I support this bill and the critical amendments offered by Congresswoman WATERS and Congressmen PRICE and ADERHOLT.

It is also important that we update the formula that is used to distribute funds under the Housing Opportunities for Persons with AIDS to reflect the changing nature of the HIV/AIDS epidemic and to ensure those communities in greatest need receive critical HOPWA funds. This is one issue that Congresswoman WATERS has been working on for many, many years to make sure these funds are targeted to the people and to the communities who need it the most.

The bill allows for homeownership for those whose American Dream of such has been shattered. Thank goodness, in this bill, we now have provisions that will allow that dream to be fulfilled.

I thank Congressman CLEAVER as well as our majority and minority members for this bill.

From just a very parochial point of view, in my district, I have to say how badly needed this bill is, as

gentrification is a big issue. My constituents constantly ask me what the Federal Government can do, and this is a major step in that direction.

Mr. LUETKEMEYER. Mr. Chairman, I yield 2½ minutes to the gentleman from Kentucky (Mr. BARR).

Mr. BARR. I thank the chairman.

Mr. Chairman, I rise in strong support of H.R. 3700, which is a modest but important first step to improving Federal housing policy through several commonsense reforms.

For the first time in HUD's 50-year history, there will now be a flexible formula directing over-income families to pay greater shares of their subsidized rents or to move out of public housing. Incomes and assets will be reevaluated to target assistance to those who are truly in need.

There are wait lists across the country for scarce public housing resources and Section 8 vouchers. I have listened to homeless advocates and to my constituents at the Lexington Housing Authority in Kentucky about the waiting lists that exist in my own district. A 2015 HUD audit found that 25,000 families had incomes too high to qualify for assistance; yet the families remained in taxpayer subsidized housing. Some of those families actually derived income from renting other residential properties that they, themselves, owned. One family highlighted in the report had a combined income of $498,000.

Policy failures such as these not only waste taxpayer dollars, but, more importantly, they hurt those in need who might otherwise have roofs over their heads. I hope this bipartisan initiative is a down payment on the further reform of Federal housing programs.

Several of my colleagues and I are developing an empowerment agenda to holistically reform Federal assistance programs from housing to nutrition to workforce development. We start with the recognition that the Federal Government now runs more than 80 different antipoverty programs at an annual cost of nearly $1 trillion; yet, after 50 years of this strategy, the poverty rate has barely budged from where it was in 1965. The goal is to assist Americans to achieve their God-given potential and to restore the American Dream to where the condition of one's birth does not determine the outcome of one's life.

I look forward to working with my colleagues on both sides of the aisle and with members of this subcommittee in leveraging the empowerment agenda to craft additional reforms to Federal housing policies, which will improve outcomes by recognizing that poor Americans are not liabilities to be managed by some remote bureaucracy in Washington but who are untapped assets who can achieve the American Dream.

I congratulate Chairman LUETKEMEYER and Ranking Member CLEAVER for their work on this bill.

I urge my colleagues to vote in favor of H.R. 3700, and I invite my colleagues on both sides of the aisle to join in additional efforts to reform HUD and to more effectively combat poverty.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield 2 minutes to the gentleman from California (Mr. DESAULNIER).

Mr. DESAULNIER. I thank the gentlewoman for yielding.

Mr. Chairman, with this bill, we have an opportunity to address an inequity with how the Department of Housing and Urban Development treats condominiums, particularly in senior communities.

Across the country and in my district in the Bay Area, condo communities have been missing out on access to mortgages due to an unnecessarily restrictive rule. The rule's intent is good, but, in practice, it unduly harms seniors, families, and communities.

One community in my district in the East Bay of the Bay Area, Rossmoor, is home to thousands of seniors, many of whom need access to HUD-backed mortgages to enhance their financial security. I am pleased that this bill is a step in the right direction to allow these residents and residents in other condo communities around the country to benefit from the same mortgage rules that are available to other homeowners.

I appreciate the hard work done by the chairman and ranking member of the subcommittee on this important issue, and I look forward to working with them to continue to protect these deserving communities.

Mr. LUETKEMEYER. Mr. Chairman, I yield 2½ minutes to the distinguished gentleman from Pennsylvania (Mr. ROTHFUS), one of our young and up-and-coming members of the Financial Services Committee.

Mr. ROTHFUS. I thank the chairman.

Mr. Chairman, for decades, the Federal Government has spent over $1.6 trillion in an attempt to accomplish the laudable goal of ensuring that all Americans have access to affordable, decent housing.

I have visited many affordable housing sites during my time in Congress to listen to the concerns of residents, managers, and community leaders. In fact, just 2 weeks ago, I visited a public housing facility that is managed by the Housing Authority of Beaver County. These meetings and visits have underscored the importance of our housing assistance programs. If administered correctly, these efforts can be truly transformative for hardworking Americans. I have met many Pennsylvanians who have improved their lives and who have brightened their families' futures thanks, in part, to targeted Federal housing assistance provided to them in their time of need.

However, there are also cases in which outdated rules, waste, fraud, abuse, and general inefficiency have made it difficult to direct resources to those who need them the most. There are also instances in which housing assistance programs have failed to help people lift themselves out of poverty. Members of both parties recognize this reality and have worked together to identify areas for improvement. H.R. 3700, the Housing Opportunity Through Modernization Act, is a bipartisan, commonsense bill that addresses many of these issues.

Among other things, this legislation makes it easier for tenants, owners, and investors to navigate rental assistance programs by reducing duplicative and inefficient regulations that make it harder to rent or to operate affordable housing. The Housing Opportunity Through Modernization Act also incorporates safeguards to prevent well-off families from using scarce public housing units. We can all agree that housing assistance programs should be reserved for those who need help the most. This legislation also provides flexibility to public housing agencies in using Federal funds to meet local needs more effectively.

I am a proud cosponsor of this legislation, and I encourage my colleagues to support this bipartisan effort to improve Federal housing assistance. We owe it to the many Americans who rely on these programs to enact this legislation's reforms.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield myself such time as I may consume.

This bill contains several provisions which I wholeheartedly support and would like to see passed into law.

For example, this bill includes a few provisions that were taken straight from bills that I have authored, including the text of my Project-Based Voucher Improvement Act of 2015, which would increase the flexibility for public housing authorities to develop new units of housing to serve vulnerable populations, including those who are homeless in this country. It would also help to create housing opportunities in areas where vouchers are difficult to use.

I introduced the Project-Based Voucher Improvement Act to address the severe lack of affordable housing, which is contributing to the epidemic of homelessness across the country. The Section 8 project-based voucher program is a valuable tool to help preserve and create more affordable housing, especially for the poorest and most vulnerable populations. Essentially, it helps housing providers leverage outside financing in order to create and maintain affordable housing in their communities.

My bill would help us maximize the effectiveness of this critical program by facilitating the ability of PHAs to enter into agreements with private and nonprofit owners and to partner with social service agencies to provide supportive housing. This will, ultimately, help provide stable housing for our most vulnerable populations.

Gaining access to affordable housing is becoming harder and harder for far too many families. We are in the midst

of a homeless crisis in my district and in many districts around the country, and we need more affordable housing to help get vulnerable populations off the streets. By making this Section 8 project-based voucher program easier to use, we could help to overcome this challenge.

I hope that the information that has been shared by some of my colleagues has not been lost. I certainly hope that we all heard what Congresswoman BARBARA LEE said about residents who are paying 70 percent of their income for housing, and it has become commonplace around this country for our citizens to be paying 50 percent of their income for housing. This is totally unacceptable.

I am very pleased that we are focusing on housing. I am very pleased as there are certain aspects of this bill that, I think, will be very beneficial to our residents and to our constituents throughout the country. I am hopeful that we will continue on this track and that this won't be the last housing effort that we make that comes out of the Financial Services Committee. I am very pleased to be a part of it.

I am proud of all of the work that has gone into this legislation. I am very pleased that we were able to work out any differences that we may have had. I am very proud of Mr. CLEAVER and of Mr. LUETKEMEYER, as they are two gentlemen from Missouri, for getting together to do this bill. It might have helped a little bit that I am from Missouri also. I think this bill is something we can all be proud of.

I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Chairman, I yield 2 minutes to the distinguished gentleman from Texas (Mr. WILLIAMS), one of our junior members of the committee but one of the senior Members with life experience who can bring a lot of good discussion to this debate we are having this afternoon.

Mr. WILLIAMS. I thank the chairman.

Mr. Chairman, I am proud to rise in support of H.R. 3700, the Housing Opportunity Through Modernization Act of 2015.

Introduced by my good friend Chairman LUETKEMEYER and my friend Congressman CLEAVER, this bipartisan piece of legislation is the first step in many to help reform and modernize our outdated Federal housing system.

Mr. Chairman, for too long, government red tape has made many of these housing programs inefficient and ineffective, hurting the very people they aim to support. If signed into law, H.R. 3700 would seek to change that, all the while saving taxpayer-invested money.

First, as mentioned, the CBO projects this bill to be a cost saver. With the Federal deficit reaching almost $19 trillion, the savings in discretionary spending are a direct result of allowing local housing officials and agencies to better manage their programs. Like most Federal programs, inefficient regulations exist that often balloon overall costs.

Additionally, as previously mentioned, for the first time in 80 years of public housing policy, this legislation restricts the use of already scarce public housing units to those who actually need them by establishing an earnings cap. Eliminating Federal subsidies for over-income families has always been key to this discussion. While most wait lists for public housing stretch into the tens of thousands, families who should not receive subsidies, in fact, often do. Plain and simple, public housing should be reserved for those who are most in need.

Finally, H.R. 3700 ensures that our veterans have fair access to HUD housing and homeless assistance programs. With nearly 50,000 homeless vets nationwide, we can and need to do more in this area.

Mr. Chairman, as a member of the House Committee on Financial Services and of the House Subcommittee on Housing and Insurance, I thank Chairman LUETKEMEYER for his leadership on this issue over the last year, as addressing housing reform is something that is not without controversy.

I urge my colleagues to support this measure.

Ms. MAXINE WATERS of California. Mr. Chairman, I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Chairman, I have no further requests for time and am prepared to close.

I reserve the balance of my time.

□ 1530

Ms. MAXINE WATERS of California. Mr. Chair, I yield myself such time as I may consume.

I would like to close by again thanking my colleagues, Mr. CLEAVER and Mr. LUETKEMEYER, for their leadership in putting together a bipartisan affordable housing bill that addresses so many complicated issues in a responsible way and brings together so many different stakeholders in support of this bill.

There is a very long list of organizations that support this bill that includes tenant advocacy groups, public housing authority industry groups, real estate industry groups, rural housing groups, as well as community development organizations.

To name just a few, the supporters of this bill include the National Low Income Housing Coalition, the Center on Budget and Policy Priorities, the National Housing Trust, CSH, the Council of Large Public Housing Authorities, the National Association of Realtors, the Local Initiatives Support Corporation, Enterprise Community Partners, and many more.

The enthusiastic support from such a broad and diverse coalition of organizations is indicative of the hard-fought compromises that are included in this bill. In fact, I do not know of a single organization that is opposing this bill.

H.R. 3700 is made up of commonsense reforms that will make much-needed improvements to our housing programs to make them work better for both public housing agencies and the tenants they serve.

If this bill is enacted into law, it will make the first major reforms to HUD's primary rental assistance programs since 1998, and that is an achievement that we can all be proud of.

So there is a lot at stake here. I urge my colleagues to vote ''yes'' on this bill.

I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Chairman, can you tell me how much time I have remaining?

The Acting CHAIR (Mr. MARCHANT). The gentleman from Missouri has 7½ minutes remaining.

Mr. LUETKEMEYER. Mr. Chair, I apologize to the ranking member. I do have one additional speaker. If the gentlewoman is out of time, I am more than willing to allow the gentlewoman to have some of our time to be able to rebut in case there is something that is an issue.

The Acting CHAIR. The gentlewoman from California has 5½ minutes remaining.

Mr. LUETKEMEYER. Mr. Speaker, I yield 2 minutes to the gentleman from New Hampshire (Mr. GUINTA).

Mr. GUINTA. Mr. Chairman, I am proud to speak in support of H.R. 3700, the Housing Opportunity Through Modernization Act, sponsored by Representatives LUETKEMEYER and CLEAVER.

This extremely bipartisan bill makes a number of critical reforms to our Federal housing programs. These programs will streamline processes and create much-needed efficiencies for government and, most importantly, our consumers.

I am happy to see the bill moving so quickly because it will solve a number of problems low-income Americans continue to face in acquiring safe and affordable housing.

This legislation would make commonsense changes to the Department of Housing and Urban Development in order to lighten administrative burdens for housing agencies and owners to assist low-income individuals and families to live in greater dignity.

It is very encouraging to see the bipartisan work that has been done on this bill. I commend both Chairman LUETKEMEYER and Ranking Member CLEAVER of the Housing and Insurance Subcommittee. I thank Chairman LUETKEMEYER for allowing me to speak on this bill.

I urge my colleagues to vote in favor of H.R. 3700.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield myself such time as I may consume.

I will just take these last few minutes that I have to say to those people who live in public housing that this is an important support effort of government to provide public housing for those who cannot afford market-rate housing.

I have represented over the years many public housing projects in California. While I do not represent them

all anymore, I still pay attention to public housing because I understand and know how very important it is to the lives of families and to the children who depend on having safe housing and affordable housing for them.

I would simply like to say that oftentimes people who live in public housing have been demonized. There are folks who think, oh, they could do better if they wanted to. There are people who say that they don't want to remove themselves from public housing.

I would like to have people know that many of the folks that I have known who live in public housing work every day for minimum wages. Many of them are trying very hard to be independent. Many of them would like to have job training. Many of them would like to have more support for childcare efforts. Many of them are working to get their GEDs. Many of them have returned to school.

For the people who live in public housing, they don't need to feel that somehow they are getting something they don't deserve.

I am proud of this government, and I am proud of this country that will provide a safety net for the least of these and safe public housing to those who cannot afford market-rate housing.

I want our Congress to continue to see how we can do a better job even of providing safe and secure housing for those who cannot afford it.

I want us to be able to provide additional support to those who live in public housing, for those who are saying to us: Help me with job training. Help me to ensure that my children can get the kind of support living in public housing that will give them access to a good education. Help us to have better health care so we can be better able to go out and take jobs to support our families. Help us to aspire to move upward and out, even. Help us to understand what is available to us out there. When we seek out help for our problems, don't look at us as if we are people who are not investing in ourselves, who are not relying on our own abilities. Simply see us as Americans who would like to do better. See us as Americans who unfortunately find ourselves in situations where we can't do better for now, but we are looking for the opportunity to do better and to have more and to enjoy everything that this country has to offer.

So as we support this legislation today—and I support it—I am optimistic about the fact that this is going to make a lot of lives better, but I am also optimistic that this is really a beginning for how we can begin to not only give support, but involve tenants in how they can help to make decisions about the units that they are living in and how they can serve on the boards that oversee them, how they can be a part of government, helping us to understand how we can do a better job with the authority that they have given us.

So I am very proud. I am very pleased. I thank Mr. CLEAVER and Mr. LUETKEMEYER. I thank Mr. CLEAVER for telling his story about public housing. I want him to know that there are any number of Members in the Congress of the United States who have lived in public housing or their families, such as my family has lived in public housing.

I want him to know I have watched public housing that has been very helpful. I have watched public housing that has provided safe, decent, and secure opportunities for the people who live there. But I have also watched public housing when it didn't work.

The Pruitt-Igoe in St. Louis, Missouri, was an example of what didn't work. I was in that city when it was torn down. The space that it occupied is still vacant in that city. It should be a space where we had additional public housing that would support the families who so desperately need it.

So I don't take this bill lightly. I don't think about this as just another piece of legislation that we happen to get passed here in Congress, even with bipartisan support.

I think of this as an important step and a statement, a statement that says both sides of the aisle understand housing, both sides of the aisle would like to continue to do the best job that they can do to provide safe and secure housing, and that we are not going to stand by and watch homelessness continue to grow.

It was mentioned several times throughout this debate—maybe here today and when we were in committee—that, in Los Angeles County, homelessness has increased by 20 percent. People are sleeping on the sidewalks all the way up to city hall. We cannot abide that. We cannot stand by and watch that happen.

While I am pointing to Los Angeles County, there are many areas all across this Nation where homelessness is shameful and unconscionable. I am very pleased and proud that we are sending a signal here today that we won't stand for it.

I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Chairman, I yield myself such time as I may consume.

I want to close with a few remarks here. It won't take very long.

I think you can see that this is a very important and, also, very emotional issue for many, many people and it is extremely important for those folks who are in and around and utilize public housing.

In putting this bill together, we tried to listen to all the different parties as well as both sides of the aisle and address all the concerns that everybody had. We have a few amendments to go here, but I think we are going to work through those pretty quickly.

I think you can see from the support that we have seen on both sides of the aisle today, from the discussions we have had that we have come to an agreement on what is in the provisions of this bill.

You have here a whole list of 30 different letters of support from different groups from around the country that represent all the different groups, from leased housing to housing authorities, to investment individuals, to Realtors, to you name it.

We have yet to receive a single letter against this proposal. So I think you can see that we managed to find the right balance with the bill, to find the middle ground where we can all agree that we can accept the provisions that we have.

In the bill, we have done things with flexibility that people within the different housing authorities have asked for who manage these things to be able to do things more efficiently, more effectively.

We got rid of duplicative rules. We built the condos up so they could now be part of the program. We have cut the costs not by cutting programs, but by cutting out the waste and the duplicative rules and have given flexibility to those groups that need it to be able to do the job.

Is this an end-all, be-all? No. We have a lot more to do. We recognize that. This is a good first step. We believe that we need to be empowering people and enabling people to be able to do better and help themselves. We believe that, when it comes to housing, it is not just a place to live, but people need to have a place to have a life.

I yield back the balance of my time.

Mr. CAPUANO. Mr. Chair, I have a question for the bill's managers regarding the project-based voucher provisions. The bill generally limits a public housing agency's use of voucher funds for project-based vouchers to 20 percent of the authorized voucher units for the agency, but contains an exception among others providing that units of project-based assistance that are attached to units previously receiving another type of long-term subsidy provided by HUD will not count against this limitation.

We have an exciting initiative in Boston that would replace our 75-year-old Charlestown public housing development with a substantially larger, new construction mixed-income community on the same site. The public housing units are to be fully replaced with project-based vouchers. This will require a large commitment of project-based vouchers by the Boston Housing Authority, which would reduce the BHA's flexibility to commit project-based vouchers elsewhere as needed if the Charlestown commitment is not covered by the exception. Is it the intention of the bill's managers that the commitment of project-based vouchers to replace the former public housing units in a newly constructed development such as this would fall within the bill's exception for units attached to units previously receiving another type of long-term HUD subsidy?

Mr. LUETKEMEYER. Mr. Chair, Congressman CAPUANO has asked whether it is the intention of the bill's managers that the commitment of project-based vouchers to replace the former public housing units in a newly constructed development such as one he described in Boston would fall within the bill's exception for units attached to units previously

receiving another type of long-term HUD subsidy. The answer is yes. It is the managers' intention that the replacement units for the current public housing units would be covered by the bill's exception for units previously receiving long-term HUD assistance, and thus that commitment of project-based vouchers to such units would not count against the 20 percent limitation.

The Acting CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

In lieu of the amendment in the nature of a substitute recommended by the Committee on Financial Services, printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the 5-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee print 114–42. That amendment in the nature of a substitute shall be considered as read.

The text of the amendment in the nature of a substitute is as follows:

H.R. 3700

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE AND TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Housing Opportunity Through Modernization Act of 2015''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title and table of contents.

TITLE I—SECTION 8 RENTAL ASSISTANCE AND PUBLIC HOUSING

Sec. 101. Inspection of dwelling units.
Sec. 102. Income reviews.
Sec. 103. Limitation on public housing tenancy for over-income families.
Sec. 104. Limitation on eligibility for assistance based on assets.
Sec. 105. Units owned by public housing agencies.
Sec. 106. PHA project-based assistance.
Sec. 107. Establishment of fair market rent.
Sec. 108. Collection of utility data.
Sec. 109. Public housing Capital and Operating Funds.
Sec. 110. Family unification program for children aging out of foster care.

TITLE II—RURAL HOUSING

Sec. 201. Delegation of guaranteed rural housing loan approval.

TITLE III—FHA MORTGAGE INSURANCE FOR CONDOMINIUMS

Sec. 301. Modification of FHA requirements for mortgage insurance for condominiums.

TITLE IV—HOUSING REFORMS FOR THE HOMELESS AND FOR VETERANS

Sec. 401. Definition of geographic area for Continuum of Care Program.
Sec. 402. Inclusion of public housing agencies and local redevelopment authorities in emergency solutions grants.
Sec. 403. Special assistant for Veterans Affairs in the Department of Housing and Urban Development.
Sec. 404. Annual supplemental report on veterans homelessness.

TITLE V—MISCELLANEOUS

Sec. 501. Inclusion of Disaster Housing Assistance Program in certain fraud and abuse prevention measures.
Sec. 502. Energy efficiency requirements under Self-Help Homeownership Opportunity program.
Sec. 503. Data exchange standardization for improved interoperability.

TITLE I—SECTION 8 RENTAL ASSISTANCE AND PUBLIC HOUSING

SEC. 101. INSPECTION OF DWELLING UNITS.

(a) IN GENERAL.—Section 8(o)(8) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(8)) is amended—

(1) by striking subparagraph (A) and inserting the following new subparagraph:

''(A) INITIAL INSPECTION.—

''(i) IN GENERAL.—For each dwelling unit for which a housing assistance payment contract is established under this subsection, the public housing agency (or other entity pursuant to paragraph (11)) shall inspect the unit before any assistance payment is made to determine whether the dwelling unit meets the housing quality standards under subparagraph (B), except as provided in clause (ii) or (iii) of this subparagraph.

''(ii) CORRECTION OF NON-LIFE-THREATENING CONDITIONS.—In the case of any dwelling unit that is determined, pursuant to an inspection under clause (i), not to meet the housing quality standards under subparagraph (B), assistance payments may be made for the unit notwithstanding subparagraph (C) if failure to meet such standards is a result only of non-life-threatening conditions, as such conditions are established by the Secretary. A public housing agency making assistance payments pursuant to this clause for a dwelling unit shall, 30 days after the beginning of the period for which such payments are made, withhold any assistance payments for the unit if any deficiency resulting in noncompliance with the housing quality standards has not been corrected by such time. The public housing agency shall recommence assistance payments when such deficiency has been corrected, and may use any payments withheld to make assistance payments relating to the period during which payments were withheld.

''(iii) USE OF ALTERNATIVE INSPECTION METHOD FOR INTERIM PERIOD.—In the case of any property that within the previous 24 months has met the requirements of an inspection that qualifies as an alternative inspection method pursuant to subparagraph (E), a public housing agency may authorize occupancy before the inspection under clause (i) has been completed, and may make assistance payments retroactive to the beginning of the lease term after the unit has been determined pursuant to an inspection under clause (i) to meet the housing quality standards under subparagraph (B). This clause may not be construed to exempt any dwelling unit from compliance with the requirements of subparagraph (D).'';

(2) by redesignating subparagraph (G) as subparagraph (H); and

(3) by inserting after subparagraph (F) the following new subparagraph:

''(G) ENFORCEMENT OF HOUSING QUALITY STANDARDS.—

''(i) DETERMINATION OF NONCOMPLIANCE.—A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if—

''(I) the public housing agency or an inspector authorized by the State or unit of local government determines upon inspection of the unit that the unit fails to comply with such standards;

''(II) the agency or inspector notifies the owner of the unit in writing of such failure to comply; and

''(III) the failure to comply is not corrected—

''(aa) in the case of any such failure that is a result of life-threatening conditions, within 24 hours after such notice has been provided; and

''(bb) in the case of any such failure that is a result of non-life-threatening conditions, within 30 days after such notice has been provided or such other reasonable longer period as the public housing agency may establish.

''(ii) WITHHOLDING OF ASSISTANCE AMOUNTS DURING CORRECTION.—The public housing agency may withhold assistance amounts under this subsection with respect to a dwelling unit for which a notice pursuant to clause (i)(II), of failure to comply with housing quality standards under subparagraph (B) as determined pursuant to an inspection conducted under subparagraph (D) or (F), has been provided. If the unit is brought into compliance with such housing quality standards during the periods referred to in clause (i)(III), the public housing agency shall recommence assistance payments and may use any amounts withheld during the correction period to make assistance payments relating to the period during which payments were withheld.

''(iii) ABATEMENT OF ASSISTANCE AMOUNTS.—The public housing agency shall abate all of the assistance amounts under this subsection with respect to a dwelling unit that is determined, pursuant to clause (i) of this subparagraph, to be in noncompliance with housing quality standards under subparagraph (B). Upon completion of repairs by the public housing agency or the owner sufficient so that the dwelling unit complies with such housing quality standards, the agency shall recommence payments under the housing assistance payments contract to the owner of the dwelling unit.

''(iv) NOTIFICATION.—If a public housing agency providing assistance under this subsection abates rental assistance payments pursuant to clause (iii) with respect to a dwelling unit, the agency shall, upon commencement of such abatement—

''(I) notify the tenant and the owner of the dwelling unit that—

''(aa) such abatement has commenced; and

''(bb) if the dwelling unit is not brought into compliance with housing quality standards within 60 days after the effective date of the determination of noncompliance under clause (i) or such reasonable longer period as the agency may establish, the tenant will have to move; and

''(II) issue the tenant the necessary forms to allow the tenant to move to another dwelling unit and transfer the rental assistance to that unit.

''(v) PROTECTION OF TENANTS.—An owner of a dwelling unit may not terminate the tenancy of any tenant because of the withholding or abatement of assistance pursuant to this subparagraph. During the period that assistance is abated pursuant to this subparagraph, the tenant may terminate the tenancy by notifying the owner.

''(vi) TERMINATION OF LEASE OR ASSISTANCE PAYMENTS CONTRACT.—If assistance amounts under this section for a dwelling unit are abated pursuant to clause (iii) and the owner does not correct the noncompliance within 60 days after the effective date of the determination of noncompliance under clause (i), or such other reasonable longer period as the public housing agency may establish, the agency shall terminate the housing assistance payments contract for the dwelling unit.

''(vii) RELOCATION.—

''(I) LEASE OF NEW UNIT.—The agency shall provide the family residing in such a dwelling unit a period of 90 days or such longer period as the public housing agency determines is reasonably necessary to lease a new unit, beginning upon termination of the contract, to lease a new residence with tenant-based rental assistance under this section.

''(II) AVAILABILITY OF PUBLIC HOUSING UNITS.—If the family is unable to lease such a new residence during such period, the public housing agency shall, at the option of the family, provide such family a preference for occupancy in a dwelling unit of public housing that is owned or operated by the agency that first becomes available for occupancy after the expiration of such period.

''(III) ASSISTANCE IN FINDING UNIT.—The public housing agency may provide assistance to the family in finding a new residence, including use of up to two months of any assistance amounts withheld or abated pursuant to clause (ii) or (iii), respectively, for costs directly associated with relocation of the family to a new residence, which shall include security deposits as necessary and may include reimbursements for reasonable moving expenses incurred by the household, as established by the Secretary. The agency may require that a family receiving assistance for a security deposit shall remit, to the extent of such assistance, the amount of any security deposit refunds made by the owner of the dwelling unit for which the lease was terminated.

''(viii) TENANT-CAUSED DAMAGES.—If a public housing agency determines that any damage to a dwelling unit that results in a failure of the dwelling unit to comply with housing quality standards under subparagraph (B), other than any damage resulting from ordinary use, was caused by the tenant, any member of the tenant's household, or any guest or other person under the tenant's control, the agency may waive the applicability of this subparagraph, except that this clause shall not exonerate a tenant from any liability otherwise existing under applicable law for damages to the premises caused by such tenant.

''(ix) APPLICABILITY.—This subparagraph shall apply to any dwelling unit for which a housing assistance payments contract is entered into or renewed after the date of the effectiveness of the regulations implementing this subparagraph.''.

(b) EFFECTIVE DATE.—The Secretary of Housing and Urban Development shall issue notice or regulations to implement subsection (a) of this section and such subsection shall take effect upon such issuance.

SEC. 102. INCOME REVIEWS.

(a) INCOME REVIEWS FOR PUBLIC HOUSING AND SECTION 8 PROGRAMS.—Section 3 of the United States Housing Act of 1937 (42 U.S.C. 1437a) is amended—

(1) in subsection (a)—

(A) in the second sentence of paragraph (1), by striking ''at least annually'' and inserting ''pursuant to paragraph (6)''; and

(B) by adding at the end the following new paragraphs:

''(6) REVIEWS OF FAMILY INCOME.—

''(A) FREQUENCY.—Reviews of family income for purposes of this section shall be made—

''(i) in the case of all families, upon the initial provision of housing assistance for the family;

''(ii) annually thereafter, except as provided in paragraph (1) with respect to fixed-income families;

''(iii) upon the request of the family, at any time the income or deductions (under subsection (b)(5)) of the family change by an amount that is estimated to result in a decrease of 10 percent (or such lower amount as the Secretary may, by notice, establish, or permit the public housing agency or owner to establish) or more in annual adjusted income; and

''(iv) at any time the income or deductions (under subsection (b)(5)) of the family change by an amount that is estimated to result in an increase of 10 percent or more in annual adjusted income, or such other amount as the Secretary may by notice establish, except that any increase in the earned income of a family shall not be considered for purposes of this clause (except that earned income may be considered if the increase corresponds to previous decreases under clause (iii)), except that a public housing agency or owner may elect not to conduct such review in the last three months of a certification period.

''(B) IN GENERAL.—Reviews of family income for purposes of this section shall be subject to the provisions of section 904 of the Stewart B. McKinney Homeless Assistance Amendments Act of 1988 (42 U.S.C. 3544).

''(7) CALCULATION OF INCOME.—

''(A) USE OF CURRENT YEAR INCOME.—In determining family income for initial occupancy or provision of housing assistance pursuant to clause (i) of paragraph (6)(A) or pursuant to reviews pursuant to clause (iii) or (iv) of such paragraph, a public housing agency or owner shall use the income of the family as estimated by the agency or owner for the upcoming year.

''(B) USE OF PRIOR YEAR INCOME.—In determining family income for annual reviews pursuant to paragraph (6)(A)(ii), a public housing agency or owner shall, except as otherwise provided in this paragraph and paragraph (1), use the income of the family as determined by the agency or owner for the preceding year, taking into consideration any redetermination of income during such prior year pursuant to clause (iii) or (iv) of paragraph (6)(A).

''(C) OTHER INCOME.—In determining the income for any family based on the prior year's income, with respect to prior year calculations of income not subject to subparagraph (B), a public housing agency or owner may make other adjustments as it considers appropriate to reflect current income.

''(D) SAFE HARBOR.—A public housing agency or owner may, to the extent such information is available to the public housing agency or owner, determine the family's income prior to the application of any deductions based on timely income determinations made for purposes of other means-tested Federal public assistance programs (including the program for block grants to States for temporary assistance for needy families under part A of title IV of the Social Security Act, a program for Medicaid assistance under a State plan approved under title XIX of the Social Security Act, and the supplemental nutrition assistance program (as such term is defined in section 3 of the Food and Nutrition Act of 2008 (7 U.S.C. 2012))). The Secretary shall, in consultation with other appropriate Federal agencies, develop procedures to enable public housing agencies and owners to have access to such income determinations made by other means-tested Federal programs that the Secretary determines to have comparable reliability. Exchanges of such information shall be subject to the same limitations and tenant protections provided under section 904 of the Stewart B. McKinney Homeless Assistance Act Amendments of 1988 (42 U.S.C. 3544) with respect to information obtained under the requirements of section 303(i) of the Social Security Act (42 U.S.C. 503(i)).

''(E) PHA AND OWNER COMPLIANCE.—A public housing agency or owner may not be considered to fail to comply with this paragraph or paragraph (6) due solely to any de minimis errors made by the agency or owner in calculating family incomes.'';

(2) by striking subsections (d) and (e); and

(3) by redesignating subsection (f) as subsection (d).

(b) CERTIFICATION REGARDING HARDSHIP EXCEPTION TO MINIMUM MONTHLY RENT.—Not later than the expiration of the 6-month period beginning on the date of the enactment of this Act, the Secretary of Housing and Urban Development shall submit to the Congress a certification that the hardship and tenant protection provisions in clause (i) of section 3(a)(3)(B) of the United States Housing Act of 1937 (42 U.S.C. 1437a(a)(3)(B)(i)) are being enforced at such time and that the Secretary will continue to provide due consideration to the hardship circumstances of persons assisted under relevant programs of this Act.

(c) INCOME; ADJUSTED INCOME.—Section 3(b) of the United States Housing Act of 1937 (42 U.S.C. 1437a(b)) is amended by striking paragraphs (4) and (5) and inserting the following new paragraphs:

''(4) INCOME.—The term 'income' means, with respect to a family, income received from all sources by each member of the household who is 18 years of age or older or is the head of household or spouse of the head of the household, plus unearned income by or on behalf of each dependent who is less than 18 years of age, as determined in accordance with criteria prescribed by the Secretary, in consultation with the Secretary of Agriculture, subject to the following requirements:

''(A) INCLUDED AMOUNTS.—Such term includes recurring gifts and receipts, actual income from assets, and profit or loss from a business.

''(B) EXCLUDED AMOUNTS.—Such term does not include—

''(i) any imputed return on assets, except to the extent that net family assets exceed $50,000, except that such amount (as it may have been previously adjusted) shall be adjusted for inflation annually by the Secretary in accordance with an inflationary index selected by the Secretary;

''(ii) any amounts that would be eligible for exclusion under section 1613(a)(7) of the Social Security Act (42 U.S.C. 1382b(a)(7));

''(iii) deferred disability benefits from the Department of Veterans Affairs that are received in a lump sum amount or in prospective monthly amounts;

''(iv) any expenses related to aid and attendance under section 1521 of title 38, United States Code, to veterans who are in need of regular aid and attendance; and

''(v) exclusions from income as established by the Secretary by regulation or notice, or any amount required by Federal law to be excluded from consideration as income.

''(C) EARNED INCOME OF STUDENTS.—Such term does not include—

''(i) earned income, up to an amount as the Secretary may by regulation establish, of any dependent earned during any period that such dependent is attending school or vocational training on a full-time basis; or

''(ii) any grant-in-aid or scholarship amounts related to such attendance used—

''(I) for the cost of tuition or books; or

''(II) in such amounts as the Secretary may allow, for the cost of room and board.

''(D) EDUCATIONAL SAVINGS ACCOUNTS.—Income shall be determined without regard to any amounts in or from, or any benefits from, any Coverdell education savings account under section 530 of the Internal Revenue Code of 1986 or any qualified tuition program under section 529 of such Code.

''(E) RECORDKEEPING.—The Secretary may not require a public housing agency or owner to maintain records of any amounts excluded from income pursuant to this subparagraph.

''(5) ADJUSTED INCOME.—The term 'adjusted income' means, with respect to a family, the amount (as determined by the public housing agency or owner) of the income of the members of the family residing in a dwelling unit or the persons on a lease, after any deductions from income as follows:

''(A) ELDERLY AND DISABLED FAMILIES.—$525 in the case of any family that is an elderly family or a disabled family.

''(B) DEPENDENTS.—In the case of any family, $525 for each member who—

''(i) is less than 18 years of age or attending school or vocational training on a full-time basis; or

''(ii) is a person who is 18 years of age or older, resides in the household, and is certified as disabled and unable to work by the public housing agency of jurisdiction.

''(C) CHILD CARE.—The amount, if any, that exceeds 5 percent of annual family income that is used to pay for unreimbursed child care expenses, which shall include child care for preschool-age children, for before- and after-care for children in school, and for other child care necessary to enable a member of the family to be employed or further his or her education.

''(D) HEALTH AND MEDICAL EXPENSES.—The amount, if any, by which 10 percent of annual family income is exceeded by the sum of—

''(i) in the case of any elderly or disabled family, any unreimbursed health and medical care expenses; and

''(ii) any unreimbursed reasonable attendant care and auxiliary apparatus expenses for each handicapped member of the family, if determined necessary by the public housing agency or owner to enable any member of such family to be employed.

The Secretary shall, by regulation, provide hardship exemptions to the requirements of this subparagraph and subparagraph (C) for impacted families who demonstrate an inability to pay calculated rents because of financial hardship. Such regulations shall include a requirement to notify tenants regarding any changes to the determination of adjusted income pursuant to such subparagraphs based on the determination of the family's claim of financial hardship exemptions required by the preceding sentence. Such regulations shall be promulgated in consultation with tenant organizations, industry participants, and the Secretary of Health and Human Services, with an adequate comment period provided for interested parties.

''(E) PERMISSIVE DEDUCTIONS.—Such additional deductions as a public housing agency may, at its discretion, establish, except that the Secretary shall establish procedures to ensure that such deductions do not materially increase Federal expenditures.

The Secretary shall annually calculate the amounts of the deductions under subparagraphs (A) and (B), as such amounts may have been previously calculated, by applying an inflationary factor as the Secretary shall, by regulation, establish, except that the actual deduction determined for each year shall be established by rounding such amount to the next lowest multiple of $25.''.

(d) HOUSING CHOICE VOUCHER PROGRAM.—Section 8(o) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)) is amended—

(1) in paragraph (1)(D), by inserting before the period at the end the following: '', except that a public housing agency may establish a payment standard of not more than 120 percent of the fair market rent where necessary as a reasonable accommodation for a person with a disability, without approval of the Secretary. A public housing agency may use a payment standard that is greater than 120 percent of the fair market rent as a reasonable accommodation for a person with a disability, but only with the approval of the Secretary. In connection with the use of any increased payment standard established or approved pursuant to either of the preceding two sentences as a reasonable accommodation for a person with a disability, the Secretary may not establish additional requirements regarding the amount of adjusted income paid by such person for rent''; and

(2) in paragraph (5)—

(A) in the paragraph heading, by striking ''ANNUAL REVIEW'' and inserting ''REVIEWS'';

(B) in subparagraph (A)—

(i) by striking ''the provisions of'' and inserting ''paragraphs (1), (6), and (7) of section 3(a) and to''; and

(ii) by striking ''and shall be conducted'' and all that follows through the end of the subparagraph and inserting a period; and

(C) in subparagraph (B), by striking the second sentence.

(e) ENHANCED VOUCHER PROGRAM.—Section 8(t)(1)(D) of the United States Housing Act of 1937 (42 U.S.C. 1437f(t)(1)(D)) is amended by striking ''income'' each place such term appears and inserting ''annual adjusted income''.

(f) PROJECT-BASED HOUSING.—Paragraph (3) of section 8(c) of the United States Housing Act of 1937 (42 U.S.C. 1437f(c)(3)) is amended by striking the last sentence.

(g) IMPACT ON PUBLIC HOUSING REVENUES.—

(1) ADJUSTMENTS TO OPERATING FORMULA.—If the Secretary of Housing and Urban Development determines that the application of subsections (a) through (e) of this section results in a material and disproportionate reduction in the rental income of certain public housing agencies during the first year in which such subsections are implemented, the Secretary may make appropriate adjustments in the formula income for such year of those agencies experiencing such a reduction.

(2) HUD REPORTS ON REVENUE AND COST IMPACT.—In each of the first two years after the first year in which subsections (a) through (e) are implemented, the Secretary of Housing and Urban Development shall submit a report to Congress identifying and calculating the impact of changes made by such subsections and section 104 of this Act on the revenues and costs of operating public housing units, the voucher program for rental assistance under section 8 of the United States Housing Act of 1937, and the program under such section 8 for project-based rental assistance. If such report identifies a material reduction in the net income of public housing agencies nationwide or a material increase in the costs of funding the voucher program or the project-based assistance program, the Secretary shall include in such report recommendations for legislative changes to reduce or eliminate such a reduction.

(h) EFFECTIVE DATE.—The Secretary of Housing and Urban Development shall issue notice or regulations to implement this section and this section shall take effect after such issuance, except that this section may only take effect upon the commencement of a calendar year.

SEC. 103. LIMITATION ON PUBLIC HOUSING TENANCY FOR OVER-INCOME FAMILIES.

Subsection (a) of section 16 of the United States Housing Act of 1937 (42 U.S.C. 1437n(a)) is amended by adding at the end the following new paragraph:

''(5) LIMITATIONS ON TENANCY FOR OVER-INCOME FAMILIES.—

''(A) LIMITATIONS.—Except as provided in subparagraph (D), in the case of any family residing in a dwelling unit of public housing whose income for the most recent two consecutive years, as determined pursuant to income reviews conducted pursuant to section 3(a)(6), has exceeded the applicable income limitation under subparagraph (C), the public housing agency shall—

''(i) notwithstanding any other provision of this Act, charge such family as monthly rent for the unit occupied by such family an amount equal to the greater of—

''(I) the applicable fair market rental established under section 8(c) for a dwelling unit in the same market area of the same size; or

''(II) the amount of the monthly subsidy provided under this Act for the dwelling unit, which shall include any amounts from the Operating Fund and Capital Fund under section 9 used for the unit, as determined by the agency in accordance with regulations that the Secretary shall issue to carry out this subclause; or

''(ii) terminate the tenancy of such family in public housing not later than 6 months after the income determination described in subparagraph (A).

''(B) NOTICE.—In the case of any family residing in a dwelling unit of public housing whose income for a year has exceeded the applicable income limitation under subparagraph (C), upon the conclusion of such year the public housing agency shall provide written notice to such family of the requirements under subparagraph (A).

''(C) INCOME LIMITATION.—The income limitation under this subparagraph shall be 120 percent of the median income for the area, as determined by the Secretary with adjustments for smaller and larger families, except that the Secretary may establish income limitations higher or lower than 120 percent of such median income on the basis of the Secretary's findings that such variations are necessary because of prevailing levels of construction costs, or unusually high or low family incomes, vacancy rates, or rental costs.

''(D) EXCEPTION.—Subparagraph (A) shall not apply to a family occupying a dwelling unit in public housing pursuant to paragraph (5) of section 3(a) (42 U.S.C. 1437a(a)(5)).

''(E) REPORTS ON OVER-INCOME FAMILIES AND WAITING LISTS.—The Secretary shall require that each public housing agency shall—

''(i) submit a report annually, in a format required by the Secretary, that specifies—

''(I) the number of families residing, as of the end of the year for which the report is submitted, in public housing administered by the agency who had incomes exceeding the applicable income limitation under subparagraph (C); and

''(II) the number of families, as of the end of such year, on the waiting lists for admission to public housing projects of the agency; and

''(ii) make the information reported pursuant to clause (i) publicly available.''.

SEC. 104. LIMITATION ON ELIGIBILITY FOR ASSISTANCE BASED ON ASSETS.

Section 16 of the United States Housing Act of 1937 (42 U.S.C. 1437n) is amended by inserting after subsection (d) the following new subsection:

''(e) ELIGIBILITY FOR ASSISTANCE BASED ON ASSETS.—

''(1) LIMITATION ON ASSETS.—Subject to paragraph (3) and notwithstanding any other provision of this Act, a dwelling unit assisted under this Act may not be rented and assistance under this Act may not be provided, either initially or at each recertification of family income, to any family—

''(A) whose net family assets exceed $100,000, as such amount is adjusted annually by applying an inflationary factor as the Secretary considers appropriate; or

''(B) who has a present ownership interest in, a legal right to reside in, and the effective legal authority to sell, real property that is suitable for occupancy by the family as a residence, except that the prohibition under this subparagraph shall not apply to—

''(i) any property for which the family is receiving assistance under subsection (y) or (o)(12) of section 8 of this Act;

''(ii) any person that is a victim of domestic violence; or

''(iii) any family that is offering such property for sale.

''(2) NET FAMILY ASSETS.—

''(A) IN GENERAL.—For purposes of this subsection, the term 'net family assets' means, for all members of the household, the net cash value of all assets after deducting reasonable costs that would be incurred in disposing of real property, savings, stocks, bonds, and other forms of capital investment. Such term does not include interests in Indian trust land, equity in property for which the family is receiving assistance under subsection (y) or (o)(12) of section 8, equity accounts in homeownership programs of the Department of Housing and Urban Development, or Family Self Sufficiency accounts.

''(B) EXCLUSIONS.—Such term does not include—

''(i) the value of personal property, except for items of personal property of significant value, as the Secretary may establish or the public housing agency may determine;

''(ii) the value of any retirement account;

''(iii) real property for which the family does not have the effective legal authority necessary to sell such property;

''(iv) any amounts recovered in any civil action or settlement based on a claim of malpractice, negligence, or other breach of duty owed to a member of the family and arising out of law, that resulted in a member of the family being disabled;

''(v) the value of any Coverdell education savings account under section 530 of the Internal Revenue Code of 1986 or any qualified tuition program under section 529 of such Code; and

''(vi) such other exclusions as the Secretary may establish.

''(C) TRUST FUNDS.—In cases in which a trust fund has been established and the trust is not revocable by, or under the control of, any member of the family or household, the value of the

trust fund shall not be considered an asset of a family if the fund continues to be held in trust. Any income distributed from the trust fund shall be considered income for purposes of section 3(b) and any calculations of annual family income, except in the case of medical expenses for a minor.

''(3) SELF-CERTIFICATION.—

''(A) NET FAMILY ASSETS.—A public housing agency or owner may determine the net assets of a family, for purposes of this section, based on a certification by the family that the net assets of such family do not exceed $50,000, as such amount is adjusted annually by applying an inflationary factor as the Secretary considers appropriate.

''(B) NO CURRENT REAL PROPERTY OWNERSHIP.—A public housing agency or owner may determine compliance with paragraph (1)(B) based on a certification by the family that such family does not have any current ownership interest in any real property at the time the agency or owner reviews the family's income.

''(C) STANDARDIZED FORMS.—The Secretary may develop standardized forms for the certifications referred to in subparagraphs (A) and (B).

''(4) COMPLIANCE FOR PUBLIC HOUSING DWELLING UNITS.—When recertifying family income with respect to families residing in public housing dwelling units, a public housing agency may, in the discretion of the agency and only pursuant to a policy that is set forth in the public housing agency plan under section 5A for the agency, choose not to enforce the limitation under paragraph (1).

''(5) ENFORCEMENT.—When recertifying the income of a family residing in a dwelling unit assisted under this Act, a public housing agency or owner may choose not to enforce the limitation under paragraph (1) or may establish exceptions to such limitation based on eligibility criteria, but only pursuant to a policy that is set forth in the public housing agency plan under section 5A for the agency or under a policy adopted by the owner. Eligibility criteria for establishing exceptions may provide for separate treatment based on family type and may be based on different factors, such as age, disability, income, the ability of the family to find suitable alternative housing, and whether supportive services are being provided.

''(6) AUTHORITY TO DELAY EVICTIONS.—In the case of a family residing in a dwelling unit assisted under this Act who does not comply with the limitation under paragraph (1), the public housing agency or project owner may delay eviction or termination of the family based on such noncompliance for a period of not more than 6 months.''.

SEC. 105. UNITS OWNED BY PUBLIC HOUSING AGENCIES.

Paragraph (11) of section 8(o) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(11)) is amended—

(1) by striking ''(11) LEASING OF UNITS OWNED BY PHA.—If'' and inserting the following:

''(11) LEASING OF UNITS OWNED BY PHA.—

''(A) INSPECTIONS AND RENT DETERMINATIONS.—If''; and

(2) by adding at the end the following new subparagraph:

''(B) UNITS OWNED BY PHA.—For purposes of this subsection, the term 'owned by a public housing agency' means, with respect to a dwelling unit, that the dwelling unit is in a project that is owned by such agency, by an entity wholly controlled by such agency, or by a limited liability company or limited partnership in which such agency (or an entity wholly controlled by such agency) holds a controlling interest in the managing member or general partner. A dwelling unit shall not be deemed to be owned by a public housing agency for purposes of this subsection because the agency holds a fee interest as ground lessor in the property on which the unit is situated, holds a security interest under a mortgage or deed of trust on the unit, or holds a non-controlling interest in an entity which owns the unit or in the managing member or general partner of an entity which owns the unit.''.

SEC. 106. PHA PROJECT-BASED ASSISTANCE.

(a) IN GENERAL.—Paragraph (13) of section 8(o) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(13)) is amended—

(1) by striking ''structure'' each place such term appears and inserting ''project'';

(2) by striking subparagraph (B) and inserting the following new subparagraph:

''(B) PERCENTAGE LIMITATION.—

''(i) IN GENERAL.—Subject to clause (ii), a public housing agency may use for project-based assistance under this paragraph not more than 20 percent of the authorized units for the agency.

''(ii) EXCEPTION.—A public housing agency may use up to an additional 10 percent of the authorized units for the agency for project-based assistance under this paragraph, to provide units that house individuals and families that meet the definition of homeless under section 103 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11302), that house families with veterans, that provide supportive housing to persons with disabilities or elderly persons, or that are located in areas where vouchers under this subsection are difficult to use, as specified in subparagraph (D)(ii)(II). Any units of project-based assistance that are attached to units previously subject to federally required rent restrictions or receiving another type of long-term housing subsidy provided by the Secretary shall not count toward the percentage limitation under clause (i) of this subparagraph. The Secretary may, by regulation, establish additional categories for the exception under this clause.'';

(3) by striking subparagraph (D) and inserting the following new subparagraph:

''(D) INCOME-MIXING REQUIREMENT.—

''(i) IN GENERAL.—Except as provided in clause (ii), not more than the greater of 25 dwelling units or 25 percent of the dwelling units in any project may be assisted under a housing assistance payment contract for project-based assistance pursuant to this paragraph. For purposes of this subparagraph, the term 'project' means a single building, multiple contiguous buildings, or multiple buildings on contiguous parcels of land.

''(ii) EXCEPTIONS.—

''(I) CERTAIN FAMILIES.—The limitation under clause (i) shall not apply to dwelling units assisted under a contract that are exclusively made available to elderly families or to households eligible for supportive services that are made available to the assisted residents of the project, according to standards for such services the Secretary may establish.

''(II) CERTAIN AREAS.—With respect to areas in which tenant-based vouchers for assistance under this subsection are difficult to use, as determined by the Secretary, and with respect to census tracts with a poverty rate of 20 percent or less, clause (i) shall be applied by substituting '40 percent' for '25 percent', and the Secretary may, by regulation, establish additional conditions.

''(III) CERTAIN CONTRACTS.—The limitation under clause (i) shall not apply with respect to contracts or renewal of contracts under which a greater percentage of the dwelling units in a project were assisted under a housing assistance payment contract for project-based assistance pursuant to this paragraph on the date of the enactment of the Housing Opportunity Through Modernization Act of 2015.

''(IV) CERTAIN PROPERTIES.—Any units of project-based assistance under this paragraph that are attached to units previously subject to federally required rent restrictions or receiving other project-based assistance provided by the Secretary shall not count toward the percentage limitation imposed by this subparagraph (D).

''(iii) ADDITIONAL MONITORING AND OVERSIGHT REQUIREMENTS.—The Secretary may establish additional requirements for monitoring and oversight of projects in which more than 40 percent of the dwelling units are assisted under a housing assistance payment contract for project-based assistance pursuant to this paragraph.'';

(4) by striking subparagraph (F) and inserting the following new subparagraph:

''(F) CONTRACT TERM.—

''(i) TERM.—A housing assistance payment contract pursuant to this paragraph between a public housing agency and the owner of a project may have a term of up to 20 years, subject to—

''(I) the availability of sufficient appropriated funds for the purpose of renewing expiring contracts for assistance payments, as provided in appropriation Acts and in the agency's annual contributions contract with the Secretary, provided that in the event of insufficient appropriated funds, payments due under contracts under this paragraph shall take priority if other cost-saving measures that do not require the termination of an existing contract are available to the agency; and

''(II) compliance with the inspection requirements under paragraph (8), except that the agency shall not be required to make biennial inspections of each assisted unit in the development.

''(ii) ADDITION OF ELIGIBLE UNITS.—Subject to the limitations of subparagraphs (B) and (D), the agency and the owner may add eligible units within the same project to a housing assistance payments contract at any time during the term thereof without being subject to any additional competitive selection procedures.

''(iii) HOUSING UNDER CONSTRUCTION OR RECENTLY CONSTRUCTED.—An agency may enter into a housing assistance payments contract with an owner for any unit that does not qualify as existing housing and is under construction or recently has been constructed whether or not the agency has executed an agreement to enter into a contract with the owner, provided that the owner demonstrates compliance with applicable requirements prior to execution of the housing assistance payments contract. This clause shall not subject a housing assistance payments contract for existing housing under this paragraph to such requirements or otherwise limit the extent to which a unit may be assisted as existing housing.

''(iv) ADDITIONAL CONDITIONS.—The contract may specify additional conditions, including with respect to continuation, termination, or expiration, and shall specify that upon termination or expiration of the contract without extension, each assisted family may elect to use its assistance under this subsection to remain in the same project if its unit complies with the inspection requirements under paragraph (8), the rent for the unit is reasonable as required by paragraph (10)(A), and the family pays its required share of the rent and the amount, if any, by which the unit rent (including the amount allowed for tenant-based utilities) exceeds the applicable payment standard.'';

(5) in subparagraph (G), by striking ''15 years'' and inserting ''20 years'';

(6) by striking subparagraph (I) and inserting the following new subparagraph:

''(I) RENT ADJUSTMENTS.—A housing assistance payments contract pursuant to this paragraph entered into after the date of the enactment of the Housing Opportunity Through Modernization Act of 2015 shall provide for annual rent adjustments upon the request of the owner, except that—

''(i) by agreement of the parties, a contract may allow a public housing agency to adjust the rent for covered units using an operating cost adjustment factor established by the Secretary pursuant to section 524(c) of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (which shall not result in a negative adjustment), in which case the contract may require an additional adjustment, if requested, up to the reasonable rent periodically during the

term of the contract, and shall require such an adjustment, if requested, upon extension pursuant to subparagraph (G);

''(ii) the adjusted rent shall not exceed the maximum rent permitted under subparagraph (H);

''(iii) the contract may provide that the maximum rent permitted for a dwelling unit shall not be less than the initial rent for the dwelling unit under the initial housing assistance payments contract covering the units; and

''(iv) the provisions of subsection (c)(2)(C) shall not apply.'';

(7) in subparagraph (J)—

(A) in the first sentence—

(i) by striking ''shall'' and inserting ''may''; and

(ii) by inserting before the period the following: ''or may permit owners to select applicants from site-based waiting lists as specified in this subparagraph'';

(B) by striking the third sentence and inserting the following: ''The agency or owner may establish preferences or criteria for selection for a unit assisted under this paragraph that are consistent with the public housing agency plan for the agency approved under section 5A and that give preference to families who qualify for voluntary services, including disability-specific services, offered in conjunction with assisted units.''; and

(C) by striking the fifth and sixth sentences and inserting the following: ''A public housing agency may establish and utilize procedures for owner-maintained site-based waiting lists, under which applicants may apply at, or otherwise designate to the public housing agency, the project or projects in which they seek to reside, except that all eligible applicants on the waiting list of an agency for assistance under this subsection shall be permitted to place their names on such separate list, subject to policies and procedures established by the Secretary. All such procedures shall comply with title VI of the Civil Rights Act of 1964, the Fair Housing Act, section 504 of the Rehabilitation Act of 1973, and other applicable civil rights laws. The owner or manager of a project assisted under this paragraph shall not admit any family to a dwelling unit assisted under a contract pursuant to this paragraph other than a family referred by the public housing agency from its waiting list, or a family on a site-based waiting list that complies with the requirements of this subparagraph. A public housing agency shall disclose to each applicant all other options in the selection of a project in which to reside that are provided by the public housing agency and are available to the applicant.'';

(8) in subparagraph (M)(ii), by inserting before the period at the end the following: ''relating to funding other than housing assistance payments''; and

(9) by adding at the end the following new subparagraphs:

''(N) STRUCTURE OWNED BY AGENCY.—A public housing agency engaged in an initiative to improve, develop, or replace a public housing property or site may attach assistance to an existing, newly constructed, or rehabilitated structure in which the agency has an ownership interest or which the agency has control of without following a competitive process, provided that the agency has notified the public of its intent through its public housing agency plan and subject to the limitations and requirements of this paragraph.

''(O) SPECIAL PURPOSE VOUCHERS.—A public housing agency that administers vouchers authorized under subsection (o)(19) or (x) of this section may provide such assistance in accordance with the limitations and requirements of this paragraph, without additional requirements for approval by the Secretary.''.

(b) EFFECTIVE DATE.—The Secretary of Housing and Urban Development shall issue notice or regulations to implement subsection (a) of this section and such subsection shall take effect upon such issuance.

SEC. 107. ESTABLISHMENT OF FAIR MARKET RENT.

(a) IN GENERAL.—Paragraph (1) of section 8(c) of the United States Housing Act of 1937 (42 U.S.C. 1437f(c)(1)) is amended—

(1) by inserting ''(A)'' after the paragraph designation;

(2) by striking the fourth, seventh, eighth, and ninth sentences; and

(3) by adding at the end the following:

''(B) Fair market rentals for an area shall be published not less than annually by the Secretary on the site of the Department on the World Wide Web and in any other manner specified by the Secretary. Notice that such fair market rentals are being published shall be published in the Federal Register, and such fair market rentals shall become effective no earlier than 30 days after the date of such publication. The Secretary shall establish a procedure for public housing agencies and other interested parties to comment on such fair market rentals and to request, within a time specified by the Secretary, reevaluation of the fair market rentals in a jurisdiction before such rentals become effective. The Secretary shall cause to be published for comment in the Federal Register notices of proposed material changes in the methodology for estimating fair market rentals and notices specifying the final decisions regarding such proposed substantial methodological changes and responses to public comments.''.

(b) PAYMENT STANDARD.—Subparagraph (B) of section 8(o)(1) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(1)(B)) is amended by inserting before the period at the end the following: '', except that no public housing agency shall be required as a result of a reduction in the fair market rental to reduce the payment standard applied to a family continuing to reside in a unit for which the family was receiving assistance under this section at the time the fair market rental was reduced. The Secretary shall allow public housing agencies to request exception payment standards within fair market rental areas subject to criteria and procedures established by the Secretary''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect upon the date of the enactment of this Act.

SEC. 108. COLLECTION OF UTILITY DATA.

Section 8(o) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)) is amended by adding at the end the following new paragraph:

''(20) COLLECTION OF UTILITY DATA.—

''(A) PUBLICATION.—The Secretary shall, to the extent that data can be collected cost effectively, regularly publish such data regarding utility consumption and costs in local areas as the Secretary determines will be useful for the establishment of allowances for tenant-paid utilities for families assisted under this subsection.

''(B) USE OF DATA.—The Secretary shall provide such data in a manner that—

''(i) avoids unnecessary administrative burdens for public housing agencies and owners; and

''(ii) protects families in various unit sizes and building types, and using various utilities, from high rent and utility cost burdens relative to income.''.

SEC. 109. PUBLIC HOUSING CAPITAL AND OPERATING FUNDS.

(a) CAPITAL FUND REPLACEMENT RESERVES.—Section 9 of the United States Housing Act of 1937 (42 U.S.C. 1437g) is amended—

(1) in subsection (j), by adding at the end the following new paragraph:

''(7) TREATMENT OF REPLACEMENT RESERVE.—The requirements of this subsection shall not apply to funds held in replacement reserves established pursuant to subsection (n).''; and

(2) by adding at the end the following new subsection:

''(n) ESTABLISHMENT OF REPLACEMENT RESERVES.—

''(1) IN GENERAL.—Public housing agencies shall be permitted to establish a replacement reserve to fund any of the capital activities listed in subsection (d)(1).

''(2) SOURCE AND AMOUNT OF FUNDS FOR REPLACEMENT RESERVE.—At any time, a public housing agency may deposit funds from such agency's Capital Fund into a replacement reserve, subject to the following:

''(A) At the discretion of the Secretary, public housing agencies may transfer and hold in a replacement reserve funds originating from additional sources.

''(B) No minimum transfer of funds to a replacement reserve shall be required.

''(C) At any time, a public housing agency may not hold in a replacement reserve more than the amount the public housing authority has determined necessary to satisfy the anticipated capital needs of properties in its portfolio assisted under this section, as outlined in its Capital Fund 5-Year Action Plan, or a comparable plan, as determined by the Secretary.

''(D) The Secretary may establish, by regulation, a maximum replacement reserve level or levels that are below amounts determined under subparagraph (C), which may be based upon the size of the portfolio assisted under this section or other factors.

''(3) TRANSFER OF OPERATING FUNDS.—In first establishing a replacement reserve, the Secretary may allow public housing agencies to transfer more than 20 percent of its operating funds into its replacement reserve.

''(4) EXPENDITURE.—Funds in a replacement reserve may be used for purposes authorized by subsection (d)(1) and contained in its Capital Fund 5-Year Action Plan.

''(5) MANAGEMENT AND REPORT.—The Secretary shall establish appropriate accounting and reporting requirements to ensure that public housing agencies are spending funds on eligible projects and that funds in the replacement reserve are connected to capital needs.''.

(b) FLEXIBILITY OF OPERATING FUND AMOUNTS.—Paragraph (1) of section 9(g) of the United States Housing Act of 1937 (42 U.S.C. 1437g(g)(1)) is amended—

(1) by striking ''(1)'' and all that follows through ''—Of'' and inserting the following:

''(1) FLEXIBILITY IN USE OF FUNDS.—

''(A) FLEXIBILITY FOR CAPITAL FUND AMOUNTS.—Of''; and

(2) by adding at the end the following new subparagraph:

''(B) FLEXIBILITY FOR OPERATING FUND AMOUNTS.—Of any amounts appropriated for fiscal year 2016 or any fiscal year thereafter that are allocated for fiscal year 2016 or any fiscal year thereafter from the Operating Fund for any public housing agency, the agency may use not more than 20 percent for activities that are eligible under subsection (d) for assistance with amounts from the Capital Fund, but only if the public housing plan under section 5A for the agency provides for such use.''.

SEC. 110. FAMILY UNIFICATION PROGRAM FOR CHILDREN AGING OUT OF FOSTER CARE.

Section 8(x) of the United States Housing Act of 1937 (42 U.S.C. 1437f(x)) is amended—

(1) in paragraph (2)(B)—

(A) by striking ''18 months'' and inserting ''36 months'';

(B) by striking ''21 years of age'' and inserting ''24 years of age''; and

(C) by inserting after ''have left foster care'' the following: '', or will leave foster care within 90 days, in accordance with a transition plan described in section 475(5)(H) of the Social Security Act, and is homeless or is at risk of becoming homeless'';

(2) by redesignating paragraph (4) as paragraph (5); and

(3) by inserting after paragraph (3) the following new paragraph:

''(4) COORDINATION BETWEEN PUBLIC HOUSING AGENCIES AND PUBLIC CHILD WELFARE AGENCIES.—The Secretary shall, not later than the

expiration of the 180-day period beginning on the date of the enactment of the Housing Opportunity Through Modernization Act of 2015 and after consultation with other appropriate Federal agencies, issue guidance to improve coordination between public housing agencies and public child welfare agencies in carrying out the program under this subsection, which shall provide guidance on—

''(A) identifying eligible recipients for assistance under this subsection;

''(B) coordinating with other local youth and family providers in the community and participating in the Continuum of Care program established under subtitle C of title IV of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11381 et seq.);

''(C) implementing housing strategies to assist eligible families and youth;

''(D) aligning system goals to improve outcomes for families and youth and reducing lapses in housing for families and youth; and

''(E) identifying resources that are available to eligible families and youth to provide supportive services available through parts B and E of title IV of the Social Security Act (42 U.S.C. 621 et seq.; 670 et seq.) or that the head of household of a family or youth may be entitled to receive under section 477 of the Social Security Act (42 U.S.C. 677).''.

TITLE II—RURAL HOUSING

SEC. 201. DELEGATION OF GUARANTEED RURAL HOUSING LOAN APPROVAL.

Subsection (h) of section 502 of the Housing Act of 1949 (42 U.S.C. 1472(h)) is amended by adding at the end the following new paragraph:

''(18) DELEGATION OF APPROVAL.—The Secretary may delegate, in part or in full, the Secretary's authority to approve and execute binding Rural Housing Service loan guarantees pursuant to this subsection to certain preferred lenders, in accordance with standards established by the Secretary.''.

TITLE III—FHA MORTGAGE INSURANCE FOR CONDOMINIUMS

SEC. 301. MODIFICATION OF FHA REQUIREMENTS FOR MORTGAGE INSURANCE FOR CONDOMINIUMS.

Section 203 of the National Housing Act (12 U.S.C. 1709) is amended by adding at the end the following new subsection:

''(y) REQUIREMENTS FOR MORTGAGES FOR CONDOMINIUMS.—

''(1) PROJECT RECERTIFICATION REQUIREMENTS.—Notwithstanding any other law, regulation, or guideline of the Secretary, including chapter 2.4 of the Condominium Project Approval and Processing Guide of the FHA, the Secretary shall streamline the project certification requirements that are applicable to the insurance under this section for mortgages for condominium projects so that recertifications are substantially less burdensome than certifications. The Secretary shall consider lengthening the time between certifications for approved properties, and allowing updating of information rather than resubmission.

''(2) COMMERCIAL SPACE REQUIREMENTS.—Notwithstanding any other law, regulation, or guideline of the Secretary, including chapter 2.1.3 of the Condominium Project Approval and Processing Guide of the FHA, in providing for exceptions to the requirement for the insurance of a mortgage on a condominium property under this section regarding the percentage of the floor space of a condominium property that may be used for nonresidential or commercial purposes, the Secretary shall provide that—

''(A) any request for such an exception and the determination of the disposition of such request may be made, at the option of the requester, under the direct endorsement lender review and approval process or under the HUD review and approval process through the applicable field office of the Department; and

''(B) in determining whether to allow such an exception for a condominium property, factors relating to the economy for the locality in which such project is located or specific to project, including the total number of family units in the project, shall be considered.

Not later than the expiration of the 90-day period beginning on the date of the enactment of this paragraph, the Secretary shall issue regulations to implement this paragraph, which shall include any standards, training requirements, and remedies and penalties that the Secretary considers appropriate.

''(3) TRANSFER FEES.—Notwithstanding any other law, regulation, or guideline of the Secretary, including chapter 1.8.8 of the Condominium Project Approval and Processing Guide of the FHA and section 203.41 of the Secretary's regulations (24 C.F.R. 203.41), existing standards of the Federal Housing Finance Agency relating to encumbrances under private transfer fee covenants shall apply to the insurance of mortgages by the Secretary under this section to the same extent and in the same manner that such standards apply to the purchasing, investing in, and otherwise dealing in mortgages by the Federal National Mortgage Association and the Federal Home Loan Mortgage Corporation. If the provisions of part 1228 of the Director of the Federal Housing Finance Agency's regulations (12 C.F.R. part 1228) are amended or otherwise changed after the date of the enactment of this paragraph, the Secretary of Housing and Urban Development shall adopt any such amendments or changes for purposes of this paragraph, unless the Secretary causes to be published in the Federal Register a notice explaining why the Secretary will disregard such amendments or changes within 90 days after the effective date of such amendments or changes.

''(4) OWNER-OCCUPANCY REQUIREMENT.—

''(A) ESTABLISHMENT OF PERCENTAGE REQUIREMENT.—Not later than the expiration of the 90-day period beginning on the date of the enactment of this paragraph, the Secretary shall, by rule, notice, or mortgagee letter, issue guidance regarding the percentage of units that must be occupied by the owners as a principal residence or a secondary residence (as such terms are defined by the Secretary), or must have been sold to owners who intend to meet such occupancy requirements, including justifications for the percentage requirements, in order for a condominium project to be acceptable to the Secretary for insurance under this section of a mortgage within such condominium property.

''(B) FAILURE TO ACT.—If the Secretary fails to issue the guidance required under subparagraph (A) before the expiration of the 90-day period specified in such clause, the following provisions shall apply:

''(i) 35 PERCENT REQUIREMENT.—In order for a condominium project to be acceptable to the Secretary for insurance under this section, at least 35 percent of all family units (including units not covered by FHA-insured mortgages) must be occupied by the owners as a principal residence or a secondary residence (as such terms are defined by the Secretary), or must have been sold to owners who intend to meet such occupancy requirement.

''(ii) OTHER CONSIDERATIONS.—The Secretary may increase the percentage applicable pursuant to clause (i) to a condominium project on a project-by-project or regional basis, and in determining such percentage for a project shall consider factors relating to the economy for the locality in which such project is located or specific to project, including the total number of family units in the project.''.

TITLE IV—HOUSING REFORMS FOR THE HOMELESS AND FOR VETERANS

SEC. 401. DEFINITION OF GEOGRAPHIC AREA FOR CONTINUUM OF CARE PROGRAM.

(a) DEFINITION.—Subtitle C of the McKinney-Vento Homeless Assistance Act is amended—

(1) by redesignating sections 432 and 433 (42 U.S.C. 11387, 11388) as sections 433 and 434, respectively; and

(2) by inserting after section 431 (42 U.S.C. 11386e) the following new section:

''SEC. 432. GEOGRAPHIC AREAS.

''(a) REQUIREMENT TO DEFINE.—For purposes of this subtitle, the term 'geographic area' shall have such meaning as the Secretary shall by notice provide.

''(b) ISSUANCE OF NOTICE.—Not later than the expiration of the 90-day period beginning on the date of the enactment of the Housing Opportunity Through Modernization Act of 2015, the Secretary shall issue a notice setting forth the definition required by subsection (a).''.

(b) CLERICAL AMENDMENT.—The table of contents in section 101(b) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11301 note) is amended by striking the items relating to sections 432 and 433 and inserting the following new items:

''Sec. 432. Geographic areas.
''Sec. 433. Regulations.
''Sec. 434. Reports to Congress.''.

SEC. 402. INCLUSION OF PUBLIC HOUSING AGENCIES AND LOCAL REDEVELOPMENT AUTHORITIES IN EMERGENCY SOLUTIONS GRANTS.

Section 414(c) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11373(c)) is amended—

(1) in the subsection heading, by inserting '', PUBLIC HOUSING AGENCIES, AND LOCAL REDEVELOPMENT AUTHORITIES'' after ''ORGANIZATIONS''; and

(2) in the first sentence, by inserting before the period at the end the following: '', to public housing agencies (as defined under section 3(b)(6) of the United States Housing Act of 1937), or to local redevelopment authorities (as defined under State law)''.

SEC. 403. SPECIAL ASSISTANT FOR VETERANS AFFAIRS IN THE DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT.

(a) TRANSFER OF POSITION TO OFFICE OF THE SECRETARY.—Section 4 of the Department of Housing and Urban Development Act (42 U.S.C. 3533) is amended by adding at the end the following new subsection:

''(h) SPECIAL ASSISTANT FOR VETERANS AFFAIRS.—

''(1) POSITION.—There shall be in the Office of the Secretary a Special Assistant for Veterans Affairs, who shall report directly to the Secretary.

''(2) APPOINTMENT.—The Special Assistant for Veterans Affairs shall be appointed based solely on merit and shall be covered under the provisions of title 5, United States Code, governing appointments in the competitive service.

''(3) RESPONSIBILITIES.—The Special Assistant for Veterans Affairs shall be responsible for—

''(A) ensuring veterans have fair access to housing and homeless assistance under each program of the Department providing either such assistance;

''(B) coordinating all programs and activities of the Department relating to veterans;

''(C) serving as a liaison for the Department with the Department of Veterans Affairs, including establishing and maintaining relationships with the Secretary of Veterans Affairs;

''(D) serving as a liaison for the Department, and establishing and maintaining relationships with the United States Interagency Council on Homelessness and officials of State, local, regional, and nongovernmental organizations concerned with veterans;

''(E) providing information and advice regarding—

''(i) sponsoring housing projects for veterans assisted under programs administered by the Department; or

''(ii) assisting veterans in obtaining housing or homeless assistance under programs administered by the Department;

''(F) coordinating with the Secretary of Housing and Urban Development and the Secretary

of Veterans Affairs in carrying out section 404 of the Housing Opportunity Through Modernization Act of 2015; and

''(G) carrying out such other duties as may be assigned to the Special Assistant by the Secretary or by law.''.

(b) TRANSFER OF POSITION IN OFFICE OF DEPUTY ASSISTANT SECRETARY FOR SPECIAL NEEDS.—On the date that the initial Special Assistant for Veterans Affairs is appointed pursuant to section 4(h)(2) of the Department of Housing and Urban Development Act, as added by subsection (a) of this section, the position of Special Assistant for Veterans Programs in the Office of the Deputy Assistant Secretary for Special Needs of the Department of Housing and Urban Development shall be terminated.

SEC. 404. ANNUAL SUPPLEMENTAL REPORT ON VETERANS HOMELESSNESS.

(a) IN GENERAL.—The Secretary of Housing and Urban Development and the Secretary of Veterans Affairs, in coordination with the United States Interagency Council on Homelessness, shall submit annually to the Committees of the Congress specified in subsection (b), together with the annual reports required by such Secretaries under section 203(c)(1) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11313(c)(1)), a supplemental report that includes the following information with respect to the preceding year:

(1) The same information, for such preceding year, that was included with respect to 2010 in the report by the Secretary of Housing and Urban Development and the Secretary of Veterans Affairs entitled ''Veterans Homelessness: A Supplemental Report to the 2010 Annual Homeless Assessment Report to Congress''.

(2) Information regarding the activities of the Department of Housing and Urban Development relating to veterans during such preceding year, as follows:

(A) The number of veterans provided assistance under the housing choice voucher program for Veterans Affairs supported housing under section 8(o)(19) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(19)), the socioeconomic characteristics of such homeless veterans, and the number, types, and locations of entities contracted under such section to administer the vouchers.

(B) A summary description of the special considerations made for veterans under public housing agency plans submitted pursuant to section 5A of the United States Housing Act of 1937 (42 U.S.C. 1437c–1) and under comprehensive housing affordability strategies submitted pursuant to section 105 of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 12705).

(C) A description of the activities of the Special Assistant for Veterans Affairs of the Department of Housing and Urban Development.

(D) A description of the efforts of the Department of Housing and Urban Development and the other members of the United States Interagency Council on Homelessness to coordinate the delivery of housing and services to veterans.

(E) The cost to the Department of Housing and Urban Development of administering the programs and activities relating to veterans.

(F) Any other information that the Secretary of Housing and Urban Development and the Secretary of Veterans Affairs consider relevant in assessing the programs and activities of the Department of Housing and Urban Development relating to veterans.

(b) COMMITTEES.—The Committees of the Congress specified in this subsection are as follows:

(1) The Committee on Banking, Housing, and Urban Affairs of the Senate.

(2) The Committee on Veterans' Affairs of the Senate.

(3) The Committee on Appropriations of the Senate.

(4) The Committee on Financial Services of the House of Representatives.

(5) The Committee on Veterans' Affairs of the House of Representatives.

(6) The Committee on Appropriations of the House of Representatives.

TITLE V—MISCELLANEOUS

SEC. 501. INCLUSION OF DISASTER HOUSING ASSISTANCE PROGRAM IN CERTAIN FRAUD AND ABUSE PREVENTION MEASURES.

The Disaster Housing Assistance Program administered by the Department of Housing and Urban Development shall be considered a ''program of the Department of Housing and Urban Development'' under section 904 of the Stewart B. McKinney Homeless Assistance Amendments Act of 1988 (42 U.S.C. 3544) for the purpose of income verifications.

SEC. 502. ENERGY EFFICIENCY REQUIREMENTS UNDER SELF-HELP HOMEOWNERSHIP OPPORTUNITY PROGRAM.

Section 11 of the Housing Opportunity Program Extension Act of 1996 (42 U.S.C. 12805 note) is amended by inserting after subsection (f) the following new subsection:

''(g) ENERGY EFFICIENCY REQUIREMENTS.—The Secretary may not require any dwelling developed using amounts from a grant made under this section to meet any energy efficiency standards other than the standards applicable at such time pursuant to section 109 of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 12709) to housing specified in subsection (a) of such section.''.

SEC. 503. DATA EXCHANGE STANDARDIZATION FOR IMPROVED INTEROPERABILITY.

(a) DATA EXCHANGE STANDARDIZATION.—Title I of the United States Housing Act of 1937 (42 U.S.C. 1437 et seq.) is amended by adding at the end the following new section:

''SEC. 37. DATA EXCHANGE STANDARDS FOR IMPROVED INTEROPERABILITY.

''(a) DESIGNATION.—The Secretary shall, in consultation with an interagency work group established by the Office of Management and Budget, and considering State government perspectives, designate data exchange standards to govern, under this Act—

''(1) necessary categories of information that State agencies operating related programs are required under applicable law to electronically exchange with another State agency; and

''(2) Federal reporting and data exchange required under applicable law.

''(b) REQUIREMENTS.—The data exchange standards required by subsection (a) shall, to the maximum extent practicable—

''(1) incorporate a widely accepted, nonproprietary, searchable, computer-readable format, such as the eXtensible Markup Language;

''(2) contain interoperable standards developed and maintained by intergovernmental partnerships, such as the National Information Exchange Model;

''(3) incorporate interoperable standards developed and maintained by Federal entities with authority over contracting and financial assistance;

''(4) be consistent with and implement applicable accounting principles;

''(5) be implemented in a manner that is cost-effective and improves program efficiency and effectiveness; and

''(6) be capable of being continually upgraded as necessary.

''(c) RULES OF CONSTRUCTION.—Nothing in this section requires a change to existing data exchange standards for Federal reporting found to be effective and efficient.''.

(b) APPLICABILITY.—

(1) IN GENERAL.—Not later than 2 years after the date of the enactment of this Act, the Secretary of Housing and Urban Development shall issue a proposed rule to carry out the amendments made by subsection (a).

(2) REQUIREMENTS.—The rule shall—

(A) identify federally required data exchanges;

(B) include specification and timing of exchanges to be standardized;

(C) address the factors used in determining whether and when to standardize data exchanges;

(D) specify State implementation options; and

(E) describe future milestones.

The Acting CHAIR. No amendment to that amendment in the nature of a substitute shall be in order except those printed in House Report 114–411. Each such amendment may be offered only in the order printed in the report, by a Member designated in the report, shall be considered read, shall be debatable for the time specified in the report, equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. BUCHANAN

The Acting CHAIR. It is now in order to consider amendment No. 1 printed in House Report 114–411.

Mr. BUCHANAN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 16, line 2, after ''develop'' insert ''electronic''.

Page 16, line 4, strike ''income'' and insert ''benefit''.

Page 16, after line 14, insert the following:

''(E) ELECTRONIC INCOME VERIFICATION.—The Secretary shall develop a mechanism for disclosing information to a public housing agency for the purpose of verifying the employment and income of individuals and families in accordance with section 453(j)(7)(E) of the Social Security Act (42 U.S.C. 653(j)(7)(E)), and shall ensure public housing agencies have access to information contained in the 'Do Not Pay' system established by section 5 of the Improper Payments Elimination and Recovery Improvement Act of 2012 (Public Law 112-248; 126 Stat. 2392).''.

Page 16, line 15, strike ''(E)'' and insert ''(F)''.

Page 34, line 14, strike the closing quotation marks and the last period.

Page 34, after line 14, insert the following:

''(7) VERIFYING INCOME.—

''(A) Beginning in fiscal year 2018, the Secretary shall require public housing agencies to require each applicant for, or recipient of, benefits under this Act to provide authorization by the applicant or recipient (or by any other person whose income or resources are material to the determination of the eligibility of the applicant or recipient for such benefits) for the public housing agency to obtain (subject to the cost reimbursement requirements of section 1115(a) of the Right to Financial Privacy Act) from any financial institution (within the meaning of section 1101(1) of such Act) any financial record (within the meaning of section 1101(2) of such Act) held by the institution with respect to the applicant or recipient (or any such other person) whenever the public housing agency determines the record is needed in connection with a determination with respect to such eligibility or the amount of such benefits.

''(B) Notwithstanding section 1104(a)(1) of the Right to Financial Privacy Act, an authorization provided by an applicant or recipient (or any other person whose income or resources are material to the determination of the eligibility of the applicant or recipient) pursuant to subparagraph (A) of this paragraph shall remain effective until the earliest of—

''(i) the rendering of a final adverse decision on the applicant's application for eligibility for benefits under this Act;

''(ii) the cessation of the recipient's eligibility for benefits under this Act; or

''(iii) the express revocation by the applicant or recipient (or such other person referred to in subparagraph (A)) of the authorization, in a written notification to the Secretary.

''(C)(i) An authorization obtained by the public housing agency pursuant to this paragraph shall be considered to meet the requirements of the Right to Financial Privacy Act for purposes of section 1103(a) of such Act, and need not be furnished to the financial institution, notwithstanding section 1104(a) of such Act.

''(ii) The certification requirements of section 1103(b) of the Right to Financial Privacy Act shall not apply to requests by the public housing agency pursuant to an authorization provided under this clause.

''(iii) A request by the public housing agency pursuant to an authorization provided under this clause is deemed to meet the requirements of section 1104(a)(3) of the Right to Financial Privacy Act and the flush language of section 1102 of such Act.

''(iv) The public housing agency shall inform any person who provides authorization pursuant to this paragraph of the duration and scope of the authorization.

''(D) If an applicant for, or recipient of, benefits under this Act (or any such other person referred to in subparagraph (A)) refuses to provide, or revokes, any authorization made by the applicant or recipient for the public housing agency to obtain from any financial institution any financial record, the public housing agency may, on that basis, determine that the applicant or recipient is ineligible for benefits under this title.''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from Florida (Mr. BUCHANAN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. BUCHANAN. Mr. Chairman, I yield myself such time as I may consume.

I would like to first thank the subcommittee chair of Financial Services, Mr. LUETKEMEYER, for his leadership on such important issues.

As chairman of the Human Resources Subcommittee of Ways and Means, I have the distinct privilege of overseeing a number of means-tested programs aimed at providing low-income individuals and families an opportunity to move up the economic ladder.

There are a lot of lessons we have learned, and we should be using them to better serve recipients and taxpayers.

In June of last year, the Department of Housing and Urban Development's Office of Inspector General found that the Federal Government paid public housing benefits to families with excessive income and assets when those benefits should have gone to low-income families in real need.

This amendment builds on reforms made by the underlying bill. This amendment reduces that burden on families by using systems they are most likely already interacting with for other means-tested programs. It also improves accuracy for housing authorities and landlords, providing them with more timely and reliable information.

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Ultimately, it ensures that those with assets well above the eligibility limits will not be using benefits directed to those Americans who need the most help.

I encourage all my colleagues to support this amendment and support the underlying bill.

Mr. Chair, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Chairman, I claim time in opposition to the amendment.

The Acting CHAIR. The gentlewoman is recognized for 5 minutes.

Ms. MAXINE WATERS of California. Mr. Chairman, I rise in opposition to this amendment. I have concerns that there are a lot of unanswered questions regarding the new income verification system that is being proposed in this amendment, and I think it needs to be addressed.

First, it appears that there would be a cost associated with this amendment. Housing authorities would have to spend some of their operating fund dollars to comply with the new requirements in this amendment, and that takes away from other important things that they must prioritize.

It is important to note that the public housing operating fund and administrative fees are severely underfunded, so public housing authorities are already struggling to make ends meet. H.R. 3700 is intended to ease administrative burdens, but this amendment seems to be increasing burdens without any additional funding. In other words, it is an unfunded mandate.

Secondly, it is unclear whether all housing authorities have the electronic infrastructure in place to securely maintain and protect residents' personal financial data, which could include bank account information, in a manner that is inconsistent with what current financial regulators have. If housing authorities need to upgrade their systems, that would also cost money that is not provided for in this amendment.

Third, it is not clear how this amendment would work for residents who are unbanked. This amendment virtually ignores millions of Americans that are unbanked.

Fourth, this amendment seems to be addressing a problem that doesn't exist because I have not seen any evidence that residents are currently not providing accurate information when applying for housing assistance.

Lastly, H.R. 3700 already includes a provision to address over-income households in public housing to help ensure that taxpayers are not subsidizing these households. For every piece of legislation that we pass, it should be carefully considered, which is why we should not adopt this hasty amendment that has not been thoroughly studied by congressional staff or our housing groups, the administration, and carefully negotiated by both parties.

Mr. Chairman and Members, let me just say this: We have a good bill here. We have gone a long way in dealing with whatever concerns either side may have. We have a compromise piece of legislation. We have a consensus piece of legislation. Let's not mess it up. We don't need this amendment. I would ask for a ''no'' vote on the amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. BUCHANAN. Mr. Chairman, I yield such time as he may consume to the gentleman from Missouri (Mr. LUETKEMEYER).

Mr. LUETKEMEYER. Mr. Chairman, I would just like to speak in support of the amendment.

I believe the amendment reduces the burden on families for using solutions that already are likely to be in place with regards to interacting through other means testing programs. I think it improves the efficiency for public housing authorities and landlords, providing more accurate and timely eligibility information. It minimizes the risk of waste, fraud, and abuse of tax dollars and ensures limited resources are better targeted to families in need by requiring public housing agencies to access data used by other means tested programs or by assets.

This amendment further strengthens the response to the 2015 inspector general's audit, which revealed individuals with substantial assets were receiving rental subsidies. This amendment builds on the progress made by the Committee on Financial Services to better target housing assistance to the needs of low-income individuals and families.

The current system in determining eligibility for rental subsidies is burdensome to program recipients to report income that can vary as much as every week and time consuming for public housing agencies and landlords to collect and verify this information, unfair to taxpayers who expect tax dollars to be targeted to families most in need.

I think you can see what I believe is an asset here from the standpoint it is going to streamline the system. It is going to save money. I think it makes it easier for the people to access, it is going to make it easier for the individuals who are working with those folks to be able to do a better job of getting and accumulating the information as quickly as possible to better ferret out the ones who need the help and ones who don't, and therefore do a good job of managing our taxpayer dollars.

Mr. BUCHANAN. Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Chairman and Members, I basically made an appeal to my Republican colleagues to reject this amendment. I basically talked about the fact that we

have gone a long way toward reconciling our differences and that we don't need to endanger the bill at all with an amendment like this.

I am not sure exactly what the gentleman is attempting to do. We already have systems in existence by which those who wish to live in public housing have to verify their income. I don't know what is being attempted here. If the attempt is to try and go to financial institutions and say to them, is it true that this person only has $5 in their bank account or what have you? I am not sure that the housing authority would want to assume that additional responsibility and that additional cost, so I have to continue to oppose this amendment. Perhaps there is a better explanation than I have heard, but I have not heard a good explanation about why we should adopt it.

Mr. Chair, I reserve the balance of my time.

Mr. BUCHANAN. Mr. Chair, my understanding is PHAs asked for this, but let me just say my amendment will reduce the burdens on families by using solutions they are already interacting with through other means-tested programs.

I encourage all my colleagues to support this amendment and to support the underlying bill.

I yield back the balance of my time.

Ms. MAXINE WATERS of California. Mr. Chairman, I am pleased that the gentleman talked about having talked with the public housing authorities because we did, too, and they had no idea what your bill is. They didn't know anything about it, they didn't understand why it was being done, so we have a difference of opinion, I suppose, about what the public housing authorities are saying.

I am saying that based on our inquiries, they did not support your legislation because they didn't understand it. They didn't know it exists. They didn't know what it was all about.

I would, again, ask for a ''no'' vote on this amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. BUCHANAN).

The amendment was agreed to.

AMENDMENT NO. 2 OFFERED BY MS. MAXINE WATERS OF CALIFORNIA

The Acting CHAIR. It is now in order to consider amendment No. 2 printed in House Report 114–411.

Ms. MAXINE WATERS of California. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike line 17 on page 20 and all that follows through page 21, line 10, and insert the following:

''(B) MINORS, STUDENTS, AND PERSONS WITH DISABILITIES.—$480 for each member of the family residing in the household (other than the head of the household or his or her spouse) who is less than 18 years of age or is attending school or vocational training on a full-time basis, or who is 18 years of age or older and is a person with disabilities.

''(C) CHILD CARE.—Any reasonable child care expenses necessary to enable a member of the family to be employed or to further his or her education.''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentlewoman from California (Ms. MAXINE WATERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman.

Ms. MAXINE WATERS of California. Mr. Chairman, my amendment would remove the harmful provision in H.R. 3700 that would effectively raise rent for thousands of families with children who are living in HUD-assisted housing by limiting the amount they can deduct from their income for childcare expenses. These are parents, particularly single parents, who are already struggling to pay for the cost of child care in order to work or to go to school.

I believe we should not be crippling their ability to juggle these responsibilities. We should be supporting them. I believe that my Republican colleagues share my concerns. We simply did not have the data that we needed at the markup to truly understand how this provision would affect these households.

As I mentioned in my opening statement, the Republicans have indicated that they will support this amendment, which will remove this harmful language and preserve the current law. This will ensure that families with children will not be burdened with a rent increase as a result of this bill.

I would like to thank my colleagues across the aisle for working with me on this issue to find common ground.

I urge my colleagues to support my amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition to the amendment, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, if nothing else, I would just like to throw the ranking member a curve ball and actually accept one of her amendments, just to show that minor miracles can still occur within the Halls of Congress and on the floor of the United States House of Representatives. Particularly after a very robust debate this morning on the budget views and estimates, this might be a welcome departure.

Anyway, I am prepared to accept the ranking member's amendment. Again, as she said, H.R. 3700 will allow only families to deduct childcare expenses that exceed 5 percent. The ranking member's amendment would revert back to current law. I think that in this particular case there are some trade-offs to be made, and I am willing to accept this particular trade-off and work with the ranking member to forward the overall bill.

I urge all Members to accept it and vote for it.

Mr. Chairman, I yield back the balance of my time.

Ms. MAXINE WATERS of California. Mr. Chairman, I yield 2 minutes to the gentlewoman from New York (Ms. VELÁZQUEZ), the ranking member of the Committee on Small Business and a member of the Committee on Financial Services.

Ms. VELÁZQUEZ. Mr. Chairman, I rise today in support of the gentlewoman from California's amendment.

Mr. Chairman, in New York City access to safe and affordable housing is a critical issue. Just in Brooklyn, the city's housing shortage has driven rents to over $2,500 a month for a 1-bedroom apartment. As a result, a majority of households spend more than 30 percent of their income on housing, making these individuals and families rent burdened.

For this reason, the New York City Housing Authority, the Nation's largest public housing authority, provides a home to more than 4,000 New Yorkers. Unfortunately, tens of thousands of families remain on waiting lists for units.

Congress cannot dictate market rents, but we can change Federal programs empowering public housing authorities to address budgetary shortfalls, adapt to changing conditions, and better assist current and prospective tenants. That is why we provided the Secretary the ability to adjust the over-income threshold for public housing tenancy, to assist those tenants and families living in public housing where rents and incomes are well above average, like New York.

While this bill makes several reforms like these to public housing and Section 8 rental assistance, many of which are bipartisan and have been discussed for years, I am concerned about the bill's impact on families with children.

According to a recent study by the Center on Budget and Policy Priorities, H.R. 3700's changes to the childcare deduction could cost 52,000 families with children to face a rent increase of $25 or more. More than half the families affected are extremely low income and would be hard pressed to afford such an increase. Mr. Chair, $25, $50, or $75 might not sound like a lot of money for us, but for low-income families that have to struggle every day, this is a lot of money.

While updating and improving our Nation's rental assistance and public housing programs are important goals—one I will continue fighting for—they cannot be accomplished on the backs of the Nation's children.

I, therefore, urge adoption of the gentlewoman's amendment, which will

strike the burdensome childcare deduction language.

I am very impressed with the chairman today. I hope that from now on we can work in a bipartisan, humane way to address the issues of the shortage of housing in our Nation. I congratulate the ranking member.

Ms. MAXINE WATERS of California. Mr. Chairman, I would simply thank all of the Members who have worked on this bill, and I thank all of the support that I am getting for this amendment.

I want to thank the chairman. Despite the fact he had a rather difficult time on committee today, he conducted himself rather well, and I enjoyed working with him. I am very thankful that he is here to give support on this amendment and the leadership he has given.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. MAXINE WATERS).

The amendment was agreed to.

□ 1600

AMENDMENT NO. 3 OFFERED BY MS. SEWELL OF ALABAMA

The Acting CHAIR (Mr. POE of Texas). It is now in order to consider amendment No. 3 printed in House Report 114–411.

Ms. SEWELL of Alabama. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 26, after line 3, insert the following new subsection:

(h) STUDY ON IMPACT ON ELDERLY AND DISABLED FAMILIES OF DECREASED DEDUCTIONS IN INCOME.—

(1) STUDY.—The Secretary of Housing and Urban Development shall conduct a study to determine the impacts, on rents paid by elderly and disabled individuals and families assisted under the section 8 rental assistance and public housing programs under the United States Housing Act of 1937 (42 U.S.C. 1437 et seq), of any decreases in the amounts of any deductions from income (for purposes of section 3(b) of such Act (42 U.S.C. 1437a(b))), as compared to such deductions under such section 3(b) as in effect before the effectiveness of this section, resulting from the amendments made by this section.

(2) REPORT.—The Secretary shall submit to the Congress a report setting forth the results of the study conducted pursuant to paragraph (1) not later than the expiration of the 12-month period beginning on the date of the enactment of this Act.

(3) EFFECTIVE DATE.—Notwithstanding subsection (h) of this section, this subsection shall take effect on the date of the enactment of this Act.

The Acting CHAIR. Pursuant to House Resolution 594, the gentlewoman from Alabama (Ms. SEWELL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Alabama.

Ms. SEWELL of Alabama. Mr. Chair, I rise today in support of my amendment to H.R. 3700.

My amendment is commonsense and straightforward. It simply requires the Secretary of HUD to conduct a study to determine the impact of the decreased deductions on rent paid by elderly, disabled individuals, and families assisted under the Section 8 rental assistance and housing programs.

Being able to assess quality, safe, and affordable housing is critically important to all Americans. The Section 8 voucher program and other rental assistance programs play a vital role in providing this type of housing for our Nation's most vulnerable citizens, including seniors, disabled persons, and low-income families. In fact, nearly all of the households currently under HUD rental assistance include children, the elderly, or disabled individuals.

These rental assistance programs house over 10 million individuals in roughly 4.6 million rental units across the country. It is clear that these voucher and rental assistance programs continue to perform the task for which they were created, which is providing shelter for millions of Americans.

In spite of its enormous success, the Section 8 voucher program, arguably, still suffers under the weight of too many inefficient and duplicative requirements that threaten the overall effectiveness of the program.

As drafted, H.R. 3700 takes major bipartisan steps toward helping preserve our scarce housing resources while expanding housing availability. However, as we attempt to reform these programs, we must be mindful and ever diligent in ensuring that the proposed changes are beneficial to their overall implementation and that there are no negative, unintended consequences on the program's participants. To that end, my amendment allows us to gauge the effectiveness of some of the changes being made here today and their impact on the most vulnerable segments of our population: the elderly and disabled.

We all know that no program is perfect. We must work together to strike a delicate balance and ensure programs are both workable and do what they intend to do without adverse impacts on those who are greatly benefited by them. I urge my colleagues to support this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. I thank the gentlewoman from Alabama for her amendment. It is a bipartisan amendment. She makes some good points. We are happy to accept it.

As long as I am here, I would like to point out to the distinguished ranking member that anytime my side wins all the votes, I am not having a tough day. I am having a really good day.

Mr. Chairman, I yield back the balance of my time.

Ms. SEWELL of Alabama. I thank the chairman for accepting my amendment. I think that all Americans win when we act in a bipartisan manner. I am really grateful for your assistance in making this legislation stronger.

I want to thank the ranking member for her leadership on this bill, as well as my colleague, Representative CLEAVER, for his leadership on this bill.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Alabama (Ms. SEWELL).

The amendment was agreed to.

The Acting CHAIR. It is now in order to consider amendment No. 4 printed in House Report 114–411.

AMENDMENT NO. 5 OFFERED BY MR. HINOJOSA

The Acting CHAIR. It is now in order to consider amendment No. 5 printed in House Report 114–411.

Mr. HINOJOSA. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 55, after line 24, insert the following new section:

SEC. 202. GUARANTEED UNDERWRITING USER FEE.

Section 502 of the Housing Act of 1949 (42 U.S.C. 1472) is amended by adding at the end the following new subsection:

''(i) GUARANTEED UNDERWRITING USER FEE.—

''(1) AUTHORITY; MAXIMUM AMOUNT.—The Secretary may assess and collect a fee for a lender to access the automated underwriting systems of the Department in connection with such lender's participation in the single family loan program under this section and only in an amount necessary to cover the costs of information technology enhancements, improvements, maintenance, and development for automated underwriting systems used in connection with the single family loan program under this section, except that such fee shall not exceed $50 per loan.

''(2) CREDITING; AVAILABILITY.—Any amounts collected from such fees shall be credited to the Rural Development Expense Account as offsetting collections and shall remain available until expended, in the amounts provided in appropriation Acts, solely for expenses described in paragraph (1).''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from Texas (Mr. HINOJOSA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. HINOJOSA. Mr. Chairman, today I rise to offer an amendment to H.R. 3700, entitled, the Housing Opportunities Through Modernization Act of 2015.

I want to thank Mr. LUETKEMEYER for his hard work on this bill and for the bipartisan and collaborative way in which he went about this important housing reform. I also wish to thank

the ranking member, Ms. MAXINE WATERS of California, for her hard work and for always looking out for those most needy in our society and for working to improve this bill.

My amendment would authorize a nominal user fee on lenders accessing the underwriting systems for the Section 502 Single Family Housing Guaranteed Loan Program. This fee would not exceed $50 per loan and would enable the United States Department of Agriculture to make much-needed upgrades to their automated underwriting system in order to match industry standards.

Mr. Chairman, I believe that access to safe, decent, and affordable housing can transform lives. Federal programs like the Section 502 Single Family Housing Guaranteed Loan Program play a critical role in expanding home ownership and opportunity for our rural communities. This Federal program has helped over 2 million families build wealth through the equity in their home and encourages lenders to provide loans to those who cannot usually obtain conventional financing.

Through this program, lenders are enabled and encouraged to serve borrowers they might typically reject without the guarantee, increasing borrowers' access to home ownership opportunities. We owe it to our rural communities to provide the Section 502 program with the resources it needs to modernize and to continue expanding home ownership and opportunity in our most underserved rural communities.

The Single Family Housing Guaranteed Loan Program relies on the Guaranteed Underwriting System for determining loan approvals quickly and accurately. Unfortunately, the current system is in need of substantial technological improvements in order to process risk requests more efficiently. Guaranteed Underwriting System development is necessary for sound portfolio risk management and will benefit USDA field staff, rural borrowers, and private sector lenders alike.

My amendment will cover the cost of developing and maintaining the Guaranteed Underwriting System and enable the Single Family Housing Guaranteed Loan Program to be administered in a more effective manner, despite recent staffing reductions.

The nominal fee authorized by my amendment will be used to enhance and maintain the Guaranteed Underwriting System and bring it into the 21st century. It is expected that a fee ranging between $25 and $50 will generate approximately $4 million a year, starting in 2018. The fee will support important program improvements, including the delegation of underwriting to preferred lenders.

The fee will also develop the underwriting system's technological capabilities to current standards, including enhanced loan and lender oversight, metrics, and programatic controls. This efficiency upgrade will allow USDA staff to allocate the necessary time and resources to the most complex underwriting decisions.

Finally, Congress has long invested in making rural home ownership a reality. The Section 502 Single Family Housing Guaranteed Loan Program receives $24 billion a year and has helped millions of families reach the dream of home ownership.

Mr. Chairman, my amendment supports the USDA fiscal year 2016 budget request and is supported by prominent rural housing advocacy groups such as the National Rural Housing Coalition and the Housing Assistance Council. I urge all my colleagues on both sides of the aisle to support this amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition to the amendment, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, I rise in support of the amendment of the gentleman from Texas. I thank him for his leadership in this area of rural housing. I think it plays a role in helping develop a more modern and efficient management and underwriting system to assess mortgage credit risk, prevent foreclosures, and manage a billion-dollar portfolio.

This is a bipartisan amendment and a bipartisan bill. We are happy to accept it. I urge Members to adopt it.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. HINOJOSA).

The amendment was agreed to.

AMENDMENT NO. 6 OFFERED BY MS. MENG

The Acting CHAIR. It is now in order to consider amendment No. 6 printed in House Report 114–411.

Ms. MENG. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 55, after line 11, add the following new section:

SEC. 111. PUBLIC HOUSING HEATING GUIDELINES.

Section 9 of the United States Housing Act of 1937 (42 U.S.C. 1437g), as amended by the preceding provisions of this Act, is further amended by adding at the end the following new subsection:

''(o) PUBLIC HOUSING HEATING GUIDELINES.—The Secretary shall publish model guidelines for minimum heating requirements for public housing dwelling units operated by public housing agencies receiving assistance under this section.''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentlewoman from New York (Ms. MENG) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from New York.

Ms. MENG. Mr. Chair, this amendment would require HUD to publish model guidelines for minimum heating requirements for public housing units.

Unfortunately, Mr. Chair, some public housing agencies across this country have struggled with the fundamental task of providing adequate housing and heating to low-income residents.

Less than 2 months ago, the New York Daily News and Reuters published a series of articles about tenants at the Frederick Douglass Houses in New York City, complaining that they were without heat for several frigid evenings in a row.

In response to these complaints, New York City public advocate Letitia James and Legal Services New York City filed a lawsuit on behalf of the tenants, and in their filing they quote a November 25 email from Robert Knapp, head of the New York City Housing Authority's heating management services unit, stating:

NYCHA official policy . . . is heat shut off between 10 p.m. and 5 a.m. when the outside temperatures are above 20 degrees. When the outside temperature falls below 20 degrees, heat is given through the night.

Frankly, this is appalling.

Many Democratic Representatives from New York City agreed with me, and that is why we submitted a letter, led by my good friends and colleagues, Representatives ENGEL and RANGEL, to the head of NYCHA, urging it to completely abandon the current heating policy. That letter was submitted to NYCHA—the largest housing agency in the country, overseeing more than 400,000 residents living in 2,500 buildings—more than a month ago, and we have yet to receive a response. That is why I have come to the floor today.

While it is not in our authority to mandate what a building's heating requirements should be in any particular city across this vast country, clearly some help is needed. Apparently, some local agencies might need official guidance from HUD outlining the fact that it is a good idea to turn the heat on at night when the temperature outside is below freezing.

I was hopeful things would not come to this point, but right now, in the middle of winter, when almost one in five public housing residents in my city are age 62 or older, and more than a quarter of them are children under the age of 18, I feel that this matter could ultimately be one of life or death.

□ 1615

We do not want to return to an age in which tenants of local public housing authorities are forced to revert to heating their homes with stoves.

Many of us here are all too familiar with the unfortunate tragedies that occur as a result of that practice and the fires that can also occur when residents are forced to rely on individual space heaters.

For not only the safety of public housing residents across America, but

also their humanity, heating standards must be improved.

It is my hope that this amendment today, which mandates that HUD produce model heating guidelines, will assist in this endeavor. It is also my hope that all of my colleagues will support this effort.

Mr. Chairman, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition to this amendment, although I am not opposed to it.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, I listened very carefully to the gentlewoman's comments on the floor. I am prepared to accept the amendment. She makes some reasonable arguments. I urge its adoption.

I yield back the balance of my time.

Ms. MENG. I thank the Chairman for his support.

Mr. ENGEL. Will the gentlewoman yield?

Ms. MENG. I yield to the gentleman from New York.

Mr. ENGEL. Mr. Chairman, I thank the gentlewoman for yielding to me. I certainly support what she is trying to do.

Last December it came to light that the New York City Housing Authority, NYCHA, has as recently as 2013 shut down boilers in public housing properties unless outside temperatures drop below 25 degrees. This forces residents to go without heat during the coldest months of the year.

I grew up in affordable housing. I grew up in city housing. So I am particularly sensitive to everything that the New York City Housing Authority does.

I was outraged by this revelation. More than 400,000 New Yorkers live in NYCHA buildings, and, what's more, more than half of these residents live below the poverty line.

These New Yorkers, along with every American living in public housing, pay rent and, in return, depend on Housing Authority leadership to fulfill the very reasonable need, a safe and decent shelter.

A practice that forces tenants to grapple with bitter temperatures just doesn't fail to meet that need, it is reckless and demeaning.

Myself, Ms. MENG, and eight other members of the New York City delegation sent a letter to the New York City Housing Authority asking that they immediately issue guidance condemning this practice and make certain that none of their buildings continue to adhere to this outrageous policy.

It is important, though, that no American living in public housing be forced to suffer through the winter months, and that is exactly what this amendment will prevent by requiring the Secretary of Housing and Urban Development to issue guidelines on minimum heating requirements.

I urge my colleagues to vote for this and ensure that public housing residents' health and safety are protected.

I want to thank my colleague from New York (Ms. MENG) for partnering with me on this important issue, and I thank her for her leadership.

Ms. MENG. Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from New York (Ms. MENG).

The amendment was agreed to.

The Acting CHAIR. The Committee will rise informally.

The Speaker pro tempore (Mr. WOODALL) assumed the chair.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Sherman Williams, one of his secretaries.

The SPEAKER pro tempore. The Committee will resume its sitting.

HOUSING OPPORTUNITY THROUGH MODERNIZATION ACT OF 2015

The Committee resumed its sitting.

AMENDMENT NO. 7 OFFERED BY MR. PALAZZO

The Acting CHAIR (Mr. POE of Texas). It is now in order to consider amendment No. 7 printed in House Report 114–411.

Mr. PALAZZO. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 55, after line 11, insert the following new section:

SEC. 111. EXCEPTION TO PUBLIC HOUSING AGENCY RESIDENT BOARD MEMBER REQUIREMENT.

Subsection (b) of section 2 of the United States Housing Act of 1937 (42 U.S.C. 1437(b)) is amended—

(1) in paragraph (1), by striking ''paragraph (2)'' and inserting ''paragraphs (2) and (3)'';

(2) by redesignating paragraph (3) as paragraph (4); and

(3) by inserting after paragraph (2) the following new paragraph:

''(3) EXCEPTION FOR CERTAIN JURISDICTIONS.—

''(A) EXCEPTION.—A covered agency (as such term is defined in subparagraph (C) of this paragraph) shall not be required to include on the board of directors or a similar governing board of such agency a member described in paragraph (1).

''(B) ADVISORY BOARD REQUIREMENT.—Each covered agency that administers Federal housing assistance under section 8 (42 U.S.C. 1437f) that chooses not to include a member described in paragraph (1) on the board of directors or a similar governing board of the agency shall establish an advisory board of not less than 6 residents of public housing or recipients of assistance under section 8 (42 U.S.C. 1437f) to provide advice and comment to the agency or other administering entity on issues related to public housing and section 8. Such advisory board shall meet not less than quarterly.

''(C) COVERED AGENCY OR ENTITY.—For purposes of this paragraph, the term 'covered agency' means a public housing agency or such other entity that administers Federal housing assistance for—

''(I) the Housing Authority of the county of Los Angeles, California; or

''(ii) any of the States of Alaska, Iowa, and Mississippi.''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from Mississippi (Mr. PALAZZO) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Mississippi.

Mr. PALAZZO. Mr. Chairman, today's bill to improve public housing is a strong step in streamlining a massive Federal program. I want to thank Chairman HENSARLING for allowing us to have this debate.

As a former public housing authority executive, I know all too well how important it is to balance financial and managerial responsibility and oversight while, at the same time, ensuring residents' needs are met.

This amendment is simple and addresses an outdated and misinformed statute in the United States Housing Act that requires the membership of directors of a public housing agency contain one member who is directly assisted by the agency.

Opposition to this rule is not new. When HUD proposed these rules in 1999, PHAs across the United States issued statements of opposition.

Some would argue that requiring resident members to serve on the board is a blatant conflict of interest, as he or she would be making decisions that financially impact his or her family and their well-being. While I agree, I am not here to debate that today.

This amendment addresses only the PHAs in three States and one county. This is because, in our respective State constitutions, there are provisions that expressly oppose the idea of a board member of any group receiving benefits from the very agency upon which he or she serves.

This amendment does not rob the residents in specified areas of a voice in the affairs of their housing. In fact, it is a Federal requirement that each PHA have a resident advisory board comprised of at least one resident who serves as a liaison between the PHA and housing residents. I speak from experience when I say that their input is always acknowledged and much appreciated.

This commonsense provision is usually passed through the appropriations process, as it has been for decades. My amendment simply makes it permanent. I encourage adoption of this commonsense provision.

I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Chairman, I rise in opposition to this amendment.

The Acting CHAIR. The gentlewoman is recognized for 5 minutes.

Ms. MAXINE WATERS of California. Mr. Chairman and Members, I have serious concerns about providing a permanent exemption for the listed entities from existing requirements that each public housing authority must have a resident commissioner serve on the governing board.

In 1998, Congress passed this requirement into law in recognition of the need for the perspective and participation of tenants in the governance of public housing authorities. To this day, this requirement helps to ensure that residents are included in board-level decisionmaking.

However, in appropriations bills over the last decade, four entities have received an exemption from this requirement so long as they maintain a separate advisory board with at least six residents of public or assisted housing.

The Housing Authority of the County of Los Angeles is one of the four entities that received this exemption. However, last year I learned that HACOLA was not in compliance with the part of the exemption that requires that they maintain an advisory board of at least six residents, and this noncompliance had been going on for many years.

HACOLA's noncompliance resulted in a lack of meaningful engagement by residents on important policy issues affecting programs that HACOLA administers.

I successfully offered an amendment in the funding year 2016 housing funding bill to strike HACOLA's exemption. While this amendment was ultimately not included in the final omnibus, it did put Congress, HUD, and the Housing Authority on notice that failure to comply with this important law is simply unacceptable.

This demonstrates that we need to be extremely careful when providing exemptions for a requirement as important as this one. The exemption for HACOLA and others was intended to provide them with special accommodations while still ensuring meaningful tenant engagement. But HACOLA's behavior displayed blatant disregard for the law and the intent behind the law.

That is why I do not believe that we should be making this exemption permanent. Instead, I think we should be thinking about ways to enhance compliance with the existing exemption requirements.

For these reasons, of course I am going to urge my colleagues to vote ''no'' on this amendment.

Mr. Chairman and Members, it is just inconceivable that we don't understand that, if you want to not only educate tenants, but want to involve tenants in decisionmaking and help them to understand how democracy works and help them to understand the rules of public housing and what can and cannot be done and why these rules are adopted—if we don't understand that, we don't understand anything.

It is inconceivable to me that we would simply say that we do not want just one commissioner, one resident, to be a part of the governing board, and it is inconceivable to me that we don't understand that we allow for exemptions to say: Okay. If you don't want just one commissioner to serve on the board with you, we will allow you to have an advisory board of six residents that could involve themselves in the decisions that are made by the governing board.

I talk about this importance because I think it is so important, as we engage and lift people out of poverty, that they understand the rules of the game. The only way you get to understand the rules of the game is if you get to play. You get to understand how decisions are made. You get to understand what the rules are and how government works. To exclude them does not make good sense to me.

Now, I know why my own county would like to have this done. They would like to have this done because—guess what. We discovered that they were trying to sell off 241 units of Section 8-type housing at the same time that they were providing the museum with over $120 million, and they said they could not afford the upkeep of those units.

They didn't like it that we went out and talked with the residents. I went out to the homes and I said: Did you know that these units are about to be sold? Do you know what is going to happen to you and why the county is giving up these units?

No. They didn't know. They didn't have a clue because they didn't have proper notification. They didn't have one resident that served on the governing board. They didn't have an advisory committee, even though L.A. County had gotten an exemption. They refused to even comply with the exemption to simply have an advisory board.

This is not right. This does not make good sense. I don't know why you would support something like this. I urge a ''no'' vote on this amendment.

I yield back the balance of my time.

Mr. PALAZZO. Mr. Chair, I want to thank my colleague for expressing some good points. This amendment actually continues to allow residents of housing authorities to have a strong voice.

It monitors the situation not just in our housing authorities that we are trying to exempt under States where their constitution prohibits board members from being able to sit on boards where they have a monetary or fiscal interest in that. It is a huge conflict of interest.

We are not going after all 2,700-plus public housing authorities. We are just trying to make sure the States that have constitutions prohibiting such blatant disregard to common sense and having that conflict of interest are protected.

Apparently, there is a personal interest in the one jurisdiction. Hopefully, when my amendment is adopted, if we are going through the conference process with the Senate, we can work with my colleague to make sure that her State HA that she is referencing is taken care of.

But, again, my amendment I think adds more voices to the governing process for them to know what is going on in their local housing authority.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Mississippi (Mr. PALAZZO).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. PALAZZO. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Mississippi will be postponed.

□ 1630

AMENDMENT NO. 8 OFFERED BY MR. WELCH

The Acting CHAIR. It is now in order to consider amendment No. 8 printed in House Report 114–411.

Mr. WELCH. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 55, after line 11, insert the following new section:

SEC. 111. USE OF VOUCHERS FOR MANUFACTURED HOUSING.

(a) IN GENERAL.—Section 8(o)(12) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(12)) is amended—

(1) in subparagraph (A), by striking the period at the end of the first sentence and all that follows through ''of'' in the second sentence and inserting ''and rents' ''; and

(2) in subparagraph (B)—

(A) in clause (i), by striking ''the rent'' and all that follows and inserting the following: ''rent shall mean the sum of the monthly payments made by a family assisted under this paragraph to amortize the cost of purchasing the manufactured home, including any required insurance and property taxes, the monthly amount allowed for tenant-paid utilities, and the monthly rent charged for the real property on which the manufactured home is located, including monthly management and maintenance charges.'';

(B) by striking clause (ii); and

(C) in clause (iii)—

(i) by inserting after the period at the end the following: ''If the amount of the monthly assistance payment for a family exceeds the monthly rent charged for the real property on which the manufactured home is located, including monthly management and maintenance charges, a public housing agency may pay the remainder to the family, lender or utility company, or may choose to make a single payment to the family for the entire monthly assistance amount.''; and

(ii) by redesignating such clause as clause (ii).

(b) EFFECTIVE DATE.—The Secretary of Housing and Urban Development shall issue notice to implement the amendments made by subsection (a) and such amendments shall take effect upon such issuance.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from Vermont (Mr. WELCH) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Vermont.

Mr. WELCH. Mr. Chairman, first of all, I am a strong supporter of the good work that is represented in H.R. 3700, and I congratulate Chairman LUETKEMEYER and Ranking Member CLEAVER for their hard work on this, as well as Chairman HENSARLING and Ranking Member WATERS.

This bill is a really solid, bipartisan improvement over the status quo. This amendment would extend some of the benefits of H.R. 3700 to folks who live in mobile homes, and that happens to be an awful lot of Vermonters who are working real hard trying to make ends meet. The idea of a bricks and sticks house is a dream for them, but they love the mobile home they have, and they have economic challenges in that home. I think that is true not just in Vermont but really across rural America.

What this amendment would allow is for the Section 8 housing vouchers to be used for some of the obvious expenses that are associated with owning a mobile home, Mr. Chairman. Right now, only the land rent is what can be included in the voucher. But in addition to that, obviously, you have got the true cost of the mobile home that the owner pays for the housing. In addition to the land rent underneath the home, mobile homeowners often pay a number of other costs, including utilities, insurance, and financing for their mobile homes.

People renting apartments where it is not a mobile home, all of those are factored into the rent. So what this amendment would do is allow those costs to be included in the calculation for Section 8 that in our view put an unnecessary and unfair limitation on what can be considered. Compare that to the housing cost vouchers that individuals in rental units get. All of those are included in the rent.

So this amendment would address that issue by allowing the property taxes on a mobile home, as well as insurance, utilities, and financing, to be included as components of the housing costs eligible for a voucher.

It would make a huge difference in affordability for Vermonters and for Americans across this country who are working hard every day and whose option for safe shelter is a mobile home.

Mr. Chairman, I urge that my colleagues support this amendment. I thank my colleagues for the bipartisan, solid work they have done on this bill.

Mr. Chairman, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim time in opposition, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, I appreciate the gentleman from Vermont. I appreciate his amendment. I think that this helps equalize for a number of Section 8 users the ability to use manufactured housing to help equalize this with other housing options. So I think it is an important step forward.

I thank the gentleman from Vermont for his leadership, and I recommend Members vote for it.

Mr. Chairman, I yield back the balance of my time.

Mr. WELCH. Mr. Chairman, I just want to thank the gentleman from Texas for his gracious remarks. He spent a fair amount of time in the Green Mountain State, so he knows about these mobile homes. I am going to go back and tell folks that you are still the good guy you were when you were spending more time in the Green Mountain State.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Vermont (Mr. WELCH).

The amendment was agreed to.

AMENDMENT NO. 9 OFFERED BY MR. PETERS

The Acting CHAIR. It is now in order to consider amendment No. 9 printed in House Report 114–411.

Mr. PETERS. Mr. Chairman, I have an amendment at the desk on behalf of Ms. MICHELLE LUJAN GRISHAM of New Mexico.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 64, line 16, strike ''and''.

Page 64, after line 16, insert the following new subparagraph:

''(G) collaborating with the Department of Veterans Affairs on making joint recommendations to the Congress, the Secretary of Housing and Urban Development, and the Secretary of Veterans Affairs on how to better coordinate and improve services to veterans under both Department of Housing and Urban Development and Department of Veteran Affairs veterans housing programs, including ways to improve the Independent Living Program of the Department of Veteran Affairs; and''

Page 64, line 17, strike ''(G)'' and insert ''(H)''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from California (Mr. PETERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. PETERS. Mr. Chairman, I rise today to offer an amendment for my friend, Ms. MICHELLE LUJAN GRISHAM of New Mexico.

As of 2014, there were over 130,000 veterans living in shelters and transitional housing in the United States. About 56 percent of these veterans have a disability. I think we agree that that is unacceptable.

Since 2009, the Department of Housing and Urban Development and the Department of Veterans Affairs have made significant progress to reduce the number of homeless veterans. But more must be done to get veterans off the streets and into permanent housing.

This can be seen in my home district where we have one of the largest homeless populations in the country, and also perhaps the largest populations of homeless veterans.

The underlying bill improves housing services for veterans by creating a new special assistant for veterans within the Department of Housing and Urban Development. This new position will coordinate veterans' housing efforts within HUD, serve as a liaison with the VA, and ensure veterans have fair access to housing programs.

The amendment builds upon those improvements to further coordination between the VA and HUD, both of which provide a range of veteran homeless services and support. The amendment requires the Special Assistant to work with the VA and provide recommendations to each department and to Congress on how to improve coordination and housing services for our Nation's veterans.

We can do much more to not only keep veterans off the streets, but to provide them with the resources and support they need to have a safe, stable place to live and build a life after completing their service.

In San Diego, organizations like zero8hundred and the Veterans Village of San Diego offer the kind of comprehensive transition support to help veterans be successful.

These are also the collective goals of many HUD and VA programs, including the VA's Independent Living Program, which assists veterans to become more independent in their homes so they never become homeless in the first place.

Mr. Chairman, I urge my colleagues to support this amendment to ensure that HUD and VA coordinate their efforts on addressing the many different issues and aspects associated with veteran homelessness.

Mr. Chairman, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, we all know on this House floor there is not enough we can ever do for our veterans, the brave men and women who served us in uniform. I think that the author of the amendment, in attempting to get HUD and the VA to work more closely together to address problems like veterans' homelessness, is an important thing to do. I hope it has some benefit.

Mr. Chairman, again, I just want to accept the amendment and urge all Members to adopt it.

Mr. Chairman, I yield back the balance of my time.

Mr. PETERS. Mr. Chairman, I thank the chairman for his gracious support and for his work on behalf of veterans.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. PETERS).

The amendment was agreed to.

AMENDMENT NO. 10 OFFERED BY MR. PETERS

The Acting CHAIR. It is now in order to consider amendment No. 10 printed in House Report 114–411.

Mr. PETERS. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 68, after line 4, insert the following new section:

SEC. 405. REOPENING OF PUBLIC COMMENT PERIOD FOR CONTINUUM OF CARE PROGRAM REGULATIONS.

Not later than the expiration of the 30-day period beginning on the date of the enactment of this Act, the Secretary of Housing and Urban Development shall re-open the period for public comment regarding the Secretary's interim rule entitled ''Homeless Emergency Assistance and Rapid Transition to Housing: Continuum of Care Program'', published in the Federal Register on July 31, 2012 (77 Fed. Reg. 45422; Docket No. FR–5476–I–01). Upon re-opening, such comment period shall remain open for a period of not fewer than 60 days.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from California (Mr. PETERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. PETERS. Mr. Chairman, each Member of this body represents a district that is affected to some degree by homelessness. We all work diligently to grow the economy, create high-quality jobs, and create opportunity so that no one has to live on the streets. But for many in our districts, ending the scourge of homelessness is an ongoing battle that take resources and coordination from our communities.

All of our districts are supported by the Continuum of Care program, which assists local leaders working diligently to distribute funding to public and nonprofit institutions that shelter the homeless, set up transitional housing, and provide support programs.

In San Diego we recently completed our Point in Time count. My office and other public servants counted the homeless living on the street and in shelters to determine how better to serve them as we work to end homelessness. In 2014, this count found that San Diego had the fifth largest homeless population in our country. But in that same year, our Continuum of Care program received the 23rd highest level of Federal anti-homelessness funds.

San Diego is not the only city that is disadvantaged by the formula that is used to determine how Federal anti-homelessness funds are distributed. Other western cities like Houston, Las Vegas, Seattle, San Jose, and Denver also receive a disproportionately low amount of Federal resources.

My amendment would require the Secretary of Housing and Urban Development to reopen the public comment period on the Continuum of Care formula. This would allow service organizations, housing providers, community faith leaders, and elected officials the opportunity to provide input on how HUD's limited and valuable resources can be most equitably and effectively used to end homelessness in our country. The amendment would not change the formula, and it would not unfairly disadvantage the district of any Member of this body.

Since coming to Congress, I have been fighting to ensure that every city receives its fair share of Federal funding to help the homeless. I have corresponded with both Secretary Donovan and now-Secretary Castro to advocate for changes to the Continuum of Care formula and ask for a public comment period. The people working on the ground to end homelessness deserve the opportunity to weigh in on how this formula is affecting them and the work they are doing.

Mr. Chairman, I urge all my colleagues to support this amendment to ensure we are doing all we can to end the scourge of homelessness in this country.

Mr. Chairman, I reserve balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition to the amendment, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, I think the comment period does need to be reopened. It is an important issue. Voices need to be heard.

The gentleman from California is now batting a thousand. I am not sure if he has any other amendments. He may be pressing his luck after that.

Mr. Chairman, I urge adoption of the amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. PETERS. Mr. Chairman, I am well aware of what success looks like in this body, and I am finished offering amendments. I want to thank all the people, including the ranking member and Chairman HENSARLING, for their hard work on this bill. This is a good piece of work.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. PETERS).

The amendment was agreed to.

AMENDMENT NO. 11 OFFERED BY MR. ELLISON

The Acting CHAIR. It is now in order to consider amendment No. 11 printed in House Report 114–411.

Mr. ELLISON. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Add at the end of the bill the following new title:

TITLE VI—FURNISHING RENT PAYMENT INFORMATION TO CREDIT REPORTING AGENCIES

SEC. 504. FURNISHING INFORMATION ABOUT RENT PAYMENTS TO A CONSUMER REPORTING AGENCY.

(a) IN GENERAL.—Notwithstanding any other provision of law, the Secretary of Housing and Urban Development or any other person having authorized access may furnish to a consumer reporting agency (as defined in section 603 of the Fair Credit Reporting Act (15 U.S.C. 1681a)) information relating to the on-time performance of an individual in making payments under a lease agreement with respect to a dwelling unit for which any subsidy or assistance for occupancy in the dwelling unit is provided under a program administered by the Secretary of Housing and Urban Development.

(b) ADDITIONAL REQUIREMENTS FOR FURNISHERS.—Any person who furnishes such information shall—

(1) ensure that the payment information is reported in a manner that does not by itself identify the individual as a recipient of housing assistance under a program administered by the Secretary of Housing and Urban Development; and

(2) notify the individual that such information will be provided to a consumer reporting agency before providing such information to a consumer reporting agency.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from Minnesota (Mr. ELLISON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Minnesota.

Mr. ELLISON. Mr. Chairman, I want to thank the gentlewoman, Ranking Member WATERS, and Chair HENSARLING for their leadership on the committee.

Mr. Chairman, too many people are excluded from the financial mainstream. Fifty million Americans lack a credit score. Either they have no credit file at all, or they have too few trade lines to establish a credit score.

There have been some real innovations in helping these people we call ''credit invisibles'' to build an accurate score. FICO, which has a large presence in my State, has been a real leader in building more inclusive and accurate scoring methodology.

But credit scoring agencies cannot score information they don't have, and they tend to have late payment information but not on-time payment information. In other words, Mr. Chairman, if somebody doesn't pay a bill, probably it is scored. If they do pay it, probably it is not.

This is the case for HUD residents. That is why we need to make it easier for firms to provide customers' on-time payment data.

My amendment specifically aims to help some of the 3 million people who live in HUD-assisted housing. By law,

families, people with disabilities, and the elderly who receive HUD assistance pay 30 percent of their income for rent. I want to see them get credit they deserve for paying their rent on time. These folks pay their rent on time, yet it never shows up in their FICO score.

Why are we not reporting their on-time rental payment? Because the law requires each tenant to provide prior written consent before having their on-time rental payment information reported, but it does not require the same information to report late payments of rent. So they can get hit for late payment, no credit for on-time.

The prior written consent is mandated by the Privacy Act of 1974, which I believe was a well-meaning and good piece of legislation—except it needs to be updated. This piece of legislation, the Privacy Act of 1974, wants to protect the privacy of affordable housing residents, which is good, and I support that. But in this case, it is causing more harm than good. Requiring each resident to grant written permission and then have the housing provider manage all those forms is a burden.

□ 1645

We have empirical evidence to show that such rent reporting helps tenants. Recently, Credit Builders Alliance led a Rent Reporting for Credit Building pilot in eight communities. The Rent Reporting for Credit Building pilot reported rent payments of 1,255 low-income residents who lived in assisted housing.

The research found that credit-invisible residents who participated in the pilot were able to build a high nonprime of 646, or prime score of 688 with the inclusion of their rental payment history. Even if they don't want to borrow money, their scores are going up, meaning that they apply for, perhaps, lower interest rates, apply for jobs, and have a better situation all around.

To repeat: from credit-invisible to credit scores above 646, and some much higher. Even those who had a credit score already saw it go up. Seventy-nine percent—a vast majority—saw an increase in credit scores. This was an average increase of 23 points.

Credit Builders Alliance and other researchers want to expand their efforts to help more residents. Another pilot program is pending. HUD is partnering with Experian; FICO; LexisNexis; the Policy and Economic Research Council, PERC; and TransUnion to evaluate the impact of reporting rental payment history on credit scores of subsidized housing residents and the general population.

The Privacy Act requirement has hindered their effort. Already overworked housing staffs struggle to maintain the paperwork necessary to report renters' on-time payment. Housing staffs find that it is difficult to set up automated payment data transmission between property managers and the credit bureaus with an always changing database.

My amendment includes language from H.R. 4172, the Credit Access and Inclusion Act. H.R. 4172 has 20 cosponsors. Ten are Republican. Seven of the ten Republicans serve with me on the Financial Services Committee.

In conclusion, please support this amendment because it would do a number of very important things:

It would help credit invisibility for hundreds, if not thousands—millions, even, and that is not an exaggeration—of very low-income people.

It makes it easier to provide predictive data of someone's ability to pay and willingness to repay. And based on solid empirical evidence, that rental payment data can move people from unscoreable to prime or near prime.

We should help HUD-assisted tenants enter the financial mainstream. Let's implement rent reporting on a large scale.

I yield back the balance of my time.

Mr. HENSARLING. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, I listened carefully to the gentleman from Minnesota. He makes a number of important points. We have had this discussion previously. I know the gentleman from Minnesota is aware of my commitment that, within the committee, we will have a hearing that will include the subject matter of his amendment.

I think the gentleman's amendment, obviously, addresses the Fair Credit Reporting Act, which is not part of this underlying housing bill. Again, we will debate his issue, research his issue, and take testimony on his issue in the future.

I do not believe that this is the appropriate bill for his particular amendment, so I am going to urge rejection at this time.

Mr. LUETKEMEYER. Will the gentleman yield?

Mr. HENSARLING. I yield to the gentleman from Missouri.

Mr. LUETKEMEYER. Mr. Chairman, in listening to the discussion with the gentleman from Minnesota with regard to his amendment, he made the comment that they already report it whenever the people don't make their payments, and they need to be reporting it when they do make their payments. Does that mean we are going to have to start reporting car payments, house payments, and all those things, too, when people make them on time? Because this is what he is asking us to do is, every time somebody does something right, suddenly now we have got to be reporting that. If you go down that road, then I think we have got some problems.

Also, in your amendment here, you indicate that, with the data as reported, they are not able to identify if the person is a recipient of housing assistance—we are going to tie their hands, yet force them to do some stuff.

I think this is a rather ill-conceived amendment, quite frankly, Mr. Chairman. I certainly urge the body to reject it.

The Acting CHAIR. The Chair reminds Members to address their remarks to the Chair and not to other Members in the second person.

Mr. HENSARLING. Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Minnesota (Mr. ELLISON).

The amendment was rejected.

AMENDMENT NO. 12 OFFERED BY MR. AL GREEN OF TEXAS

The Acting CHAIR. It is now in order to consider amendment No. 12 printed in House Report 114–411.

Mr. AL GREEN of Texas. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, add the following new title:

TITLE VI—FHA PILOT PROGRAM FOR ADDITIONAL CREDIT RATING INFORMATION

SEC. 601. PILOT PROGRAM FOR ADDITIONAL CREDIT RATING INFORMATION FOR FHA MORTGAGORS.

Section 258 of the National Housing Act (12 U.S.C. 1715z–24) is amended as follows:

(1) AUTHORITY.—In the first sentence of subsection (a), by striking ''shall'' and inserting ''may''.

(2) EXTENSION OF PROGRAM.—By striking subsection (d).

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from Texas (Mr. AL GREEN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. AL GREEN of Texas. Mr. Chairman, this is an amendment that is known to the ranking member as well as the chairman of the committee. I will not complicate it. It is a very simple amendment. It simply says that HUD may—HUD may—develop a pilot program to consider additional credit scoring information.

We know that there are people who have insufficient credit files and, as a result, they don't get consideration for a light bill, gas bill, water bill, or phone bill. These are some of the things that we have people making payments on quite regularly timely, but they don't get considered.

We are simply asking HUD to develop a pilot program. We say ''may develop.'' There really is no requirement that HUD do it within some statutory period of time. There is no requirement that HUD will perform this in a certain way. But just see if there is some way to help people who make these payments timely such that this can become a part of the additional credit information.

Now, I am emphasizing ''additional'' because, quite frankly, I had ''alternative'' at one time, ''alternative credit scoring.'' That created some confusion because we are not using this as an alternative. This becomes additional information.

I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, because the gentleman from Texas is a friend—and you hear Members say that frequently, but in this case it is as sincere as it can be—the committee has attempted to work with the gentleman from Texas. Both sides worked in good faith. Regrettably, we did not come to a point of mutual agreement on the resolution of his amendment, so I am going to oppose it at this time.

The amendment would essentially provide a reauthorization of a program that the Obama administration even believed was too risky to establish because they had years to establish it and they chose not to.

I appreciate the effort. I appreciate the sincerity of the gentleman from Texas. I understand what he is trying to do. But I also fear that, ultimately, the impact of what the gentleman is trying to do very well could help hasten the insolvency and bankruptcy of the FHA, hurting their financials.

I am happy that the FHA, after 7 years, has finally decided to actually obey the law, but I am not sure that the program that the gentleman from Texas is advocating could not put further pressure on FHA's insurance fund, ultimately hurting those it is designed to help.

I would say again that, regardless of one's good intentions, I am still very, very fearful of pilot programs' mays and shalls that somehow get the political process involved in telling lenders, or cajoling lenders, or suggesting to lenders what credit standards they should use. That is exactly what helped bring us to the housing crisis in the first place.

No matter how well-intentioned Federal policy was, ultimately, there was Federal policy that incented, cajoled, and, in some cases, mandated financial institutions to put people into homes they could not afford to keep. It didn't do the economy any good, it didn't do the taxpayer any good, and it certainly didn't do the homeowner any good to put them in a home they could not afford to keep.

Again, I have no doubt that is not the intention of the gentleman from Texas. But I have fears—I have fears—that once we start going down this road of telling lenders essentially what type of—and, ultimately, that is what we are doing with FHA. You are, ultimately, telling lenders, or suggesting to lenders, what credit standards they should employ.

I am fearful of going down this road. We had discussed a number of compromises. We came close. Unfortunately, we didn't get there with the gentleman from Texas.

I am going to oppose this amendment, simply because of who he is, somewhat reluctantly. But, nonetheless, the bottom line is the bottom line. I will oppose the gentleman's amendment.

I reserve the balance of my time.

Mr. AL GREEN of Texas. Mr. Chairman, how much time do I have remaining?

The Acting CHAIR. The gentleman from Texas (Mr. AL GREEN) has 3½ minutes remaining.

Mr. AL GREEN of Texas. Mr. Chairman, the gentleman from Texas (Mr. HENSARLING) is imminently correct. We are friends. I say it in the sincerest way as well. He and I have collaborated on many issues, and we have gotten a lot of things done in Congress. I hope that doesn't hurt him back home, letting people know that we have worked on things together.

But, obviously, I have a different perch, and from my perch here is what I see. I see an opportunity for additional credit scoring to be used, and if it is negative, it is not going to benefit the person that is being scored. It does not prevent any other negative information from being properly scored. It simply says that HUD may use this information, indicating that persons have paid a light bill, gas bill, water bill, or phone bill as additional information. That is all it says, that it may do this and it may create the scoring.

Now, with reference to HUD, HUD has given me an indication—and I don't have it in writing to hand to you, Mr. Chairman, but I believe you would trust my word—that they are not opposing this.

One of the reasons why it wasn't done previously was a function of HUD's budget. I believe this to be the reason. And because of budgetary concerns, it did not get done—it was codified in the law—and that is why I am reintroducing it. But this is a milder version of what I introduced previously, because previously we said HUD shall do this, and this time we have made it as mild as possible.

The Realtors are very much supportive of it. This will give 50 million people who are currently with light credit files, don't have sufficient credit scores, to have some additional information to be considered.

But it does not in any way require that negative information be received in a positive manner. If it is negative, it remains negative. If you haven't paid your car note, it is still a negative. If you haven't paid your light bill, gas bill, or water bill, it is still a negative.

It only gives the opportunity to add these other things as things to consider for many people who, quite frankly, don't have a lot of traditional credit. They don't have bad credit; they just don't have traditional credit. There are a lot of my constituents who fall into this category.

Mr. Chairman, I yield back the balance of my time.

Mr. HENSARLING. Mr. Chairman, as persuasive as my friend is from Texas, he wasn't quite persuasive enough. At this particular moment, I continue to oppose the amendment of from the gentleman from Texas.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. AL GREEN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. AL GREEN of Texas. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Texas will be postponed.

□ 1700

AMENDMENT NO. 13 OFFERED BY MS. JACKSON LEE

The Acting CHAIR. It is now in order to consider amendment No. 13 printed in House Report 114–411.

Ms. JACKSON LEE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, add the following new title:

TITLE VI—REPORTS

SEC. 601. REPORT ON INTERAGENCY FAMILY ECONOMIC EMPOWERMENT STRATEGIES.

The Secretary of Housing and Urban Development, in consultation with the Secretary of Labor, shall submit a report to the Congress annually that describes—

(1) any interagency strategies of such Departments that are designed to improve family economic empowerment by linking housing assistance with essential supportive services, such as employment counseling and training, financial education and growth, childcare, transportation, meals, youth recreational activities, and other supportive services; and

(2) any actions taken in the preceding year to carry out such strategies and the extent of progress achieved by such actions.

The Acting CHAIR. Pursuant to House Resolution 594, the gentlewoman from Texas (Ms. JACKSON LEE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Texas.

Ms. JACKSON LEE. Mr. Chairman, I thank the chairman and ranking member of the full committee and express my excitement in talking about reform and real housing issues.

If there is ever an issue that we, as Members of Congress, are confronted with when we go home to our districts, it is about people who need housing, about people who don't have housing, about people who have poor housing, about seniors who need housing, about young families who need housing.

I am delighted to be part of this reformation that has been done by the Committee on Financial Services and to acknowledge the chairman and the ranking member of the subcommittee from which this comes and to congratulate this bipartisan process.

I am delighted to offer an amendment. I thank the Rules Committee for making it in order, for I think it adds to the improvement of some of the issues that we are confronted with.

My amendment indicates that the Secretary of Housing and Urban Development, in consultation with the Secretary of Labor and with other relevant agencies, shall submit a report to Congress annually that goes to the heart of some of the issues unaddressed of interagency strategies of such departments that are designed to improve family economic empowerment by linking housing assistance with essential supportive services, such as employment, counseling, training, financial education and growth, child care, transportation, meals, youth recreational activities, and other supportive services.

It goes on to say: any actions taken in the preceding year to carry out such strategies and the extent of progress achieved by such actions.

My amendment recognizes that, in addition to housing connecting low-income families to job training and supportive services, such as child care, transportation, it is key to enabling families across the country—from Texas to California, from New York to California—to access employment and other services that foster upward economic mobility and family stability. It allows them to look at their family structure and at people who are in need.

My amendment acknowledges and recognizes that helping families achieve economic empowerment requires interagency collaboration.

Let me cite, Mr. Chairman, two supportive letters from the National Coalition for the Homeless and from the Heartland Alliance, which are supporting this constructive and instructive amendment to find out what our families need to be strong.

LEADING HOUSTON HOME,
February 2, 2016.

Speaker PAUL RYAN,
Washington, DC.
Hon. BLAINE LUETKEMEYER,
Chairman, Subcommittee on Housing and Insurance Financial Services Committee, Washington, DC.
Democratic Leader NANCY PELOSI,
Washington, DC.
Hon. EMANUEL CLEAVER,
Ranking Member, Subcommittee on Housing and Insurance Financial Services Committee, Washington, DC.

DEAR SPEAKER RYAN AND LEADER PELOSI: The Coalition for the Homeless of Houston/Harris County is dedicated to preventing and ending homelessness in Houston, Harris County, and Fort Bend County. We are writing in support of H.R. 3700, the Housing Opportunity through Modernization Act. The proposed legislation includes many provisions that would increase the efficiency and effectiveness of critical rental assistance programs that serve extremely low-income households.

In particular, we are writing in support of Amendment Four, submitted by Congresswoman Sheila Jackson Lee (TX–18) to the Rules Committee. Representative Jackson Lee's Amendment Four directs the Secretary of Housing and Urban Development (HUD) to work with the Secretary of Labor to produce an annual report on interagency strategies to strengthen family economic empowerment by linking housing with essential supportive services such as employment counseling and training, financial growth, childcare, transportation, meals, and other support services.

Representative Jackson Lee's amendment recognizes that in addition to housing, connecting low-income families to job training and supportive services are key to helping families access employment and economic opportunity and achieve stability. Representative Jackson Lee's amendment also recognizes that helping families achieve economic empowerment requires interagency collaboration. We know that public systems are better at solving big problems when they work together to share capacity, knowledge, and resources. We commend Representative Jackson Lee for encouraging systems collaboration to help ensure that low-income families succeed in housing and employment. We further encourage HUD to collaborate with the Department of Health and Human Services and the Department of Agriculture, as these agencies can offer families critical supports such as child care and nutrition assistance that are necessary for success.

The Coalition for the Homeless of Houston/Harris County, as a leader of The Way Home, the collaborative model to prevent and end homelessness in Houston, Harris County, and Fort Bend County knows the importance of interagency collaboration and the incredible successes that can be achieved as a result of shared capacity, knowledge and resources. We have made tremendous progress in our community and are happy to serve as a resource moving forward. Thank you for recognizing the important role of employment in helping low-income families achieve housing and financial stability.

If you have any questions, please feel free to contact Marilyn Brown (mbrown@homelesshouston.org), President/CEO of the Coalition for the Homeless of Houston/Harris County.

Sincerely,

MARILYN L. BROWN,
President/CEO.

HEARTLAND ALLIANCE NATIONAL INITIATIVES,
February 1, 2016.

Speaker PAUL RYAN,
Washington, DC.
Hon. BLAINE LUETKEMEYER,
Chairman, Subcommittee on Housing and Insurance Financial Services Committee, Washington, DC.
Democratic Leader NANCY PELOSI,
Washington, DC.
Hon. EMANUEL CLEAVER,
Ranking Member, Subcommittee on Housing and Insurance Financial Services Committee, Washington, DC.

DEAR SPEAKER RYAN AND LEADER PELOSI, Heartland Alliance's National Initiatives on Poverty & Economic Opportunity is dedicated ending chronic unemployment and poverty. We are writing in support of H.R. 3700, the Housing Opportunity through Modernization Act. The proposed legislation includes many provisions that would increase the efficiency and effectiveness of critical rental assistance programs that serve extremely low-income households.

In particular, we are writing in support of Amendment Four, submitted by Congresswoman Sheila Jackson Lee's (TX–18) to the Rules Committee. Representative Jackson Lee's Amendment Four directs the Secretary of Housing and Urban Development to work with the Secretary of Labor to produce an annual report on interagency strategies to strengthen family economic empowerment by linking housing with essential supportive services such as employment counseling and training, financial growth, childcare, transportation, meals, and other support services.

Representative Jackson Lee's amendment recognizes that in addition to housing, connecting low-income families to job training and supportive services such as childcare and transportation are key to helping these families access employment and economic opportunity and achieve stability. Representative Jackson Lee's amendment also recognizes that helping families achieve economic empowerment requires interagency collaboration. We know that public systems are better at solving big problems when they work together to share capacity, knowledge, and resources, and we commend Representative Jackson Lee for encouraging systems collaboration to help ensure that low-income families can succeed in housing and employment. We further encourage HUD to collaborate with the Department of Health and Human Services and the Department of Agriculture, as these agencies can offer families critical supports such as child care and nutrition assistance that are necessary to for employment success.

Heartland Alliance's National Initiatives Team has a number of resources and tools that can support efforts to help individuals and families facing barriers to employment succeed in the work. We are happy to serve as a resource moving forward, and thank you for recognizing the important role of employment in helping low-income families achieve housing and financial stability.

If you have any questions, please feel free to contact Melissa Young, Director of Heartland Alliance's National Initiatives on Poverty & Economic Opportunity.

Sincerely,

MELISSA YOUNG,
Director, Heartland Alliance's National Initiatives on Poverty & Economic Opportunity.

Ms. JACKSON LEE. I am delighted to tell the story of Finney from the Houston Housing Authority where we gave her supportive services through the Family Sufficiency Program. She has gotten to the point of attaining a credit score of 640, and she is now a proud homeowner. What a legacy.

So I would ask my colleagues to support this amendment.

Mr. Chairman, how much time do I have remaining?

The Acting CHAIR. The gentlewoman from Texas has 2 minutes remaining.

MODIFICATION TO AMENDMENT NO. 13 OFFERED BY MS. JACKSON LEE

Ms. JACKSON LEE. Mr. Chairman, unfortunately, as my dear colleague from Guam missed her time in which to offer her amendment, I ask unanimous consent to modify my amendment with the modification by the gentlewoman from Guam (Ms. BORDALLO), which I have placed at the desk.

The Acting CHAIR. The Clerk will report the modification.

The Clerk read as follows:

At the end of the amendment, add the following:

Page 55, after line 11, insert the following new section:

SEC. 111. PREFERENCE FOR UNITED STATES CITIZENS OR NATIONALS.

Section 214(a)(7) of the Housing and Community Development Act of 1980 (42 U.S.C. 1436a(a)(7)) is amended by striking ''such alien'' and all that follows through the period at the end and inserting ''any citizen or

national of the United States shall be entitled to a preference or priority in receiving financial assistance before any such alien who is otherwise eligible for assistance.''.

The Acting CHAIR. Is there objection to the request of the gentlewoman from Texas?

There was no objection.

The Acting CHAIR. The amendment is modified.

Ms. JACKSON LEE. Mr. Chairman, I yield 1 minute to the gentlewoman from Guam (Ms. BORDALLO).

Ms. BORDALLO. I thank the gentlewoman from Texas for yielding.

Mr. Chairman, my amendment fixes a misinterpretation of law and gives U.S. citizens and nationals a preference over migrants from the Republic of Palau, from the Republic of the Marshall Islands, and from the Federated States of Micronesia when receiving Federal aid.

I continue to support allowing these migrants to receive housing assistance. Otherwise, our housing situation in Guam and in other affected jurisdictions would get even worse. However, it was not the intent of Congress to displace our citizens when it extended eligibility to migrants in 2000.

Unfortunately, limited resources have led many U.S. citizens in Guam to be displaced by COFA migrants who have entered our country as a result of the Compact of Free Association. Guam's local housing authority has indicated that demand for housing assistance far outweighs the resources available.

A recent Guam PDN article indicated that homeless data shows that local residents of Guam make up nearly 42 percent of the homeless on Guam, that 536 Chamorros, the indigenous people, and 42 Filipinos were considered homeless.

I ask for the support of my amendment.

Ms. JACKSON LEE. I thank the gentlewoman.

Mr. Chairman, I reserve the balance of my time.

Mr. HENSARLING. Mr. Chairman, I ask unanimous consent to claim the time in opposition to the amendment, although I am not opposed.

The Acting CHAIR. Is there objection to the request of the gentleman from Texas?

There was no objection.

The Acting CHAIR. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Chairman, first, in dealing with the amendment from the gentlewoman from Texas, I often don't have an opportunity to work with her. I am happy to work with her on this matter and to recognize that this report could, indeed, add value.

I think anything that we can do to help with family economic empowerment in the areas that she has identified, such as in employment counseling and training and the coordination of these areas, can be very valuable.

I appreciate the gentlewoman's amendment, and I am prepared to accept it. The same is true for the amendment offered by the gentlewoman from Guam (Ms. BORDALLO).

I am sorry she missed her opportunity earlier, but I am glad she has her opportunity now. I am prepared to accept her amendment as well.

I urge adoption.

Mr. Chairman, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Chairman, I thank the gentleman from Texas.

I was very pleased to help out the gentlewoman from Guam, and I want to indicate that these are two amendments that stand on their own right.

I close by indicating the purpose of the amendment offered by Ms. JACKSON LEE to again refer to Finney, a woman who tried to get a home.

She stayed in the program and completed the criteria that was needed for her to qualify. She earned wages of at least $20,000 and got that credit score and established a savings account of $1,000.

This is what we are talking about with regard to supportive services. What we want to do is to emphasize employment counseling, financial education, growth, child care, transportation, meals, youth recreational activities, and other supportive services.

I am very glad to have the support, if you will, of the National Coalition for the Homeless of Houston, Harris County, as well as of the Heartland Alliance to be able to say that this makes for a better roadmap for getting housing to people who are in need.

I celebrate the fact that we are on the floor with this reform bill, talking about housing. I ask my colleagues to support the Jackson Lee amendment.

Mr. Chairman, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Chair, let me express my appreciation to Chairman LUETKEMEYER and Ranking Member CLEAVER for their leadership, commitment and effort to modernize and improve Federal Housing programs for millions of Americans who are working their way up to economic empowerment and stability.

I also wish to thank Chairman SESSIONS, Ranking Member SLAUGHTER, and the members of the Rules Committee for making in order Jackson Lee amendment Number 13.

Mr. Chair, thank you for the opportunity to explain my amendment, which provides:

The Secretary of Housing and Urban Development, in consultation with the Secretary of Labor and other relevant agencies, shall submit a report to the Congress annually that describes—

(1) any interagency strategies of such Departments that are designed to improve family economic empowerment by linking housing assistance with essential supportive services, such as employment counseling and training, financial education and growth, childcare, transportation, meals, youth recreational activities, and other supportive services; and

(2) any actions taken in the preceding year to carry out such strategies and the extent of progress achieved by such actions.

Mr. Chair, my amendment recognizes that in addition to housing, connecting low-income families to job training and supportive services such as childcare and transportation are key to enabling families across the country from Texas to California access to employment and other services that foster upward economic mobility and family stability.

Jackson Lee amendment Number 13 acknowledges and recognizes that helping families achieve economic empowerment requires interagency collaboration.

I am pleased to submit into the RECORD letters supporting my amendment authored by the Coalition for the Homeless of Houston/Harris County and the Heartland Alliance National Initiatives on Poverty and Economic Opportunity.

Mr. Chair, we all know that public systems are better at solving big problems when there is coordination amongst various implementing agencies motivated to work together to share capacity, knowledge, and resources.

My amendment encourages agency collaboration to help ensure that low-income families can succeed in housing, in employment and in life.

Interagency collaborations between agencies such as the Department of Labor, Department of Health and Human Services and the Department of Agriculture can offer families critical support such as child care and nutrition assistance that are necessary for family stability and employment success.

Livelihood and self-dignity are tied to employment and employment is critical to achieving financial independence and stability and stimulation of the economy.

My amendment seeks to bridge the opportunities that abound when there is interagency/intersystem collaboration and the success that can come about.

Take for instance the success story of Fini Tuamokumo, a single mother of three children and former Housing Choice Voucher participant, enrolled in the Houston Housing Authority's Family Self-Sufficiency program (FSS).

Among other supportive services, the Houston Housing Authority's FSS program facilitates a pathway for public housing tenants to meet their individual goals by connecting them to community resources and homeownership assistance.

Aspiring home owners like Fini receive support and resources towards employment success and homeownership.

I am proud to report that Fini began the process, stayed the course and completed the criteria needed to qualify for homeownership: earned wages of at least $20,000 per year, a credit score of 640 or higher, the establishment of an Individualized Development (savings) Account with a minimum balance of $1,000, and completion of the FSS program's Financial Literacy and First Time Home Ownership classes.

Fini is now a proud homeowner and can now pass on the legacy of the importance of a work ethic, grit and homeownership to her children.

Fini is just one of many success stories of intersystem/interagency coordination as a nexus towards federal housing and economic empowerment.

Mr. Chair, my amendment will create the space and opportunity for the economic mobility of federal housing recipients through linking housing assistance with essential supportive services such as employment counseling and

opportunities, financial education and growth, childcare, transportation, meals, youth recreational activities and other supportive services.

For all these reasons, I urge my colleagues to join me and support Jackson Lee Amendment Number 13.

The Acting CHAIR. The question is on the amendment, as modified, offered by the gentlewoman from Texas (Ms. JACKSON LEE).

The amendment, as modified, was agreed to.

AMENDMENT NO. 14 OFFERED BY MR. PRICE OF NORTH CAROLINA

The Acting CHAIR. It is now in order to consider amendment No. 14 printed in House Report 114–411.

Mr. PRICE of North Carolina. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, add the following new title:

TITLE VI—HOUSING OPPORTUNITIES FOR PERSONS WITH AIDS

SEC. 601. FORMULA AND TERMS FOR ALLOCATIONS TO PREVENT HOMELESSNESS FOR INDIVIDUALS LIVING WITH HIV OR AIDS.

(a) IN GENERAL.—Subsection (c) of section 854 of the AIDS Housing Opportunity Act (42 U.S.C. 12903(c)) is amended by—

(1) redesignating paragraph (3) as paragraph (5); and

(2) striking paragraphs (1) and (2) and inserting the following:

''(1) ALLOCATION OF RESOURCES.—

''(A) ALLOCATION FORMULA.—The Secretary shall allocate 90 percent of the amount approved in appropriations Acts under section 863 among States and metropolitan statistical areas as follows:

''(I) 75 percent of such amounts among—

''(I) cities that are the most populous unit of general local government in a metropolitan statistical area with a population greater than 500,000, as determined on the basis of the most recent census, and with more than 2,000 individuals living with HIV or AIDS, using the data specified in subparagraph (B); and

''(II) States with more than 2,000 individuals living with HIV or AIDS outside of metropolitan statistical areas.

''(ii) 25 percent of such amounts among States and metropolitan statistical areas based on the method described in subparagraph (C).

''(B) SOURCE OF DATA.—For purposes of allocating amounts under this paragraph for any fiscal year, the number of individuals living with HIV or AIDS shall be the number of such individuals as confirmed by the Director of the Centers for Disease Control and Prevention, as of December 31 of the most recent calendar year for which such data is available.

''(C) ALLOCATION UNDER SUBPARAGRAPH (A)(ii).—For purposes of allocating amounts under subparagraph (A)(ii), the Secretary shall develop a method that accounts for—

''(I) differences in housing costs among States and metropolitan statistical areas based on the fair market rental established pursuant to section 8(c) of the United States Housing Act of 1937 (42 U.S.C. 1437f(c)) or another methodology established by the Secretary through regulation; and

''(ii) differences in poverty rates among States and metropolitan statistical areas based on area poverty indexes or another methodology established by the Secretary through regulation.

''(2) MAINTAINING GRANTS.—

''(A) CONTINUED ELIGIBILITY OF FISCAL YEAR 2016 GRANTEES.—A grantee that received an allocation in fiscal year 2016 shall continue to be eligible for allocations under paragraph (1) in subsequent fiscal years, subject to—

''(I) the amounts available from appropriations Acts under section 863;

''(ii) approval by the Secretary of the most recent comprehensive housing affordability strategy for the grantee approved under section 105; and

''(iii) the requirements of subparagraph (C).

''(B) ADJUSTMENTS.—Allocations to grantees described in subparagraph (A) shall be adjusted annually based on the administrative provisions included in fiscal year 2016 appropriations Acts.

''(C) REDETERMINATION OF CONTINUED ELIGIBILITY.—The Secretary shall redetermine the continued eligibility of a grantee that received an allocation in fiscal year 2016 at least once during the 10-year period following fiscal year 2016.

''(D) ADJUSTMENT TO GRANTS.—For each of fiscal years 2017, 2018, 2019, 2020, and 2021, the Secretary shall ensure that a grantee that received an allocation in the prior fiscal year does not receive an allocation that is 5 percent less than or 10 percent greater than the amount allocated to such grantee in the preceding fiscal year.

''(3) ALTERNATIVE GRANTEES.—

''(A) REQUIREMENTS.—The Secretary may award funds reserved for a grantee eligible under paragraph (1) to an alternative grantee if—

''(I) the grantee submits to the Secretary a written agreement between the grantee and the alternative grantee that describes how the alternative grantee will take actions consistent with the applicable comprehensive housing affordability strategy approved under section 105 of this Act;

''(ii) the Secretary approves the written agreement described in clause (I) and agrees to award funds to the alternative grantee; and

''(iii) the written agreement does not exceed a term of 10 years.

''(B) RENEWAL.—An agreement approved pursuant to subparagraph (A) may be renewed by the parties with the approval of the Secretary.

''(C) DEFINITION.—In this paragraph, the term 'alternative grantee' means a public housing agency (as defined in section 3(b) of the United States Housing Act of 1937 (42 U.S.C. 1437a(b))), a unified funding agency (as defined in section 401 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11360)), a State, a unit of general local government, or an instrumentality of State or local government.

''(4) REALLOCATIONS.—If a State or metropolitan statistical area declines an allocation under paragraph (1)(A), or the Secretary determines, in accordance with criteria specified in regulation, that a State or metropolitan statistical area that is eligible for an allocation under paragraph (1)(A) is unable to properly administer such allocation, the Secretary shall reallocate any funds reserved for such State or metropolitan statistical area as follows:

''(A) For funds reserved for a State—

''(I) to eligible metropolitan statistical areas within the State on a pro rata basis; or

''(ii) if there is no eligible metropolitan statistical areas within a State, to metropolitan cities and urban counties within the State that are eligible for grant under section 106 of the Housing and Community Development Act of 1974 (42 U.S.C. 5306), on a pro rata basis.

''(B) For funds reserved for a metropolitan statistical area, to the State in which the metropolitan statistical area is located.

''(C) If the Secretary is unable to make a reallocation under subparagraph (A) or (B), the Secretary shall make such funds available on a pro rata basis under the formula in paragraph (1)(A).''.

(b) AMENDMENT TO DEFINITIONS.—Section 853 of the AIDS Housing Opportunity Act (42 U.S.C. 12902) is amended—

(1) in paragraph (1), by inserting ''or 'AIDS' '' before ''means''; and

(2) by inserting at the end the following new paragraphs:

''(15) The term 'HIV' means infection with the human immunodeficiency virus.

''(16) The term 'individuals living with HIV or AIDS' means, with respect to the counting of cases in a geographic area during a period of time, the sum of—

''(A) the number of living non-AIDS cases of HIV in the area; and

''(B) the number of living cases of AIDS in the area.''.

The Acting CHAIR. Pursuant to House Resolution 594, the gentleman from North Carolina (Mr. PRICE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from North Carolina.

Mr. PRICE of North Carolina. Mr. Chairman, I am offering this amendment on behalf of our colleague from Alabama (Mr. ADERHOLT) and myself.

I thank the chairman, the ranking member, and the staffs on both sides for their cooperation in moving this amendment forward.

This is a bipartisan amendment that provides a long, overdue update to HUD's statutory funding formula for the Housing Opportunities for Persons with AIDS Program, also known as HOPWA.

HOPWA is the only Federal program that is solely dedicated to providing housing assistance and related supportive services for low-income people and their families who are living with HIV/AIDS.

In short, this amendment would base the distribution of HOPWA funds on the current number of people who are living with HIV/AIDS, who desperately need this support.

This would replace the current formula based, incredibly, on the cumulative number of AIDS cases since the epidemic began decades ago. Last year more than 50 percent of the people counted in the HOPWA formula were deceased.

To say the least, this has drastically reduced HOPWA's ability to aid jurisdictions where the present need is most acute. This is particularly true in rural areas and in cities that are currently bearing the brunt of the HIV/AIDS epidemic.

Mr. Chairman, Congress has sensibly adjusted other AIDS support programs, including the Ryan White program. So formula funds are distributed based on the number of living HIV and AIDS cases in a given jurisdiction. Only the HOPWA formula remains out of whack, and it is denying thousands of those

with HIV/AIDS the housing support they need.

The Price-Aderholt amendment makes three changes to the current HOPWA formula:

Firstly, it utilizes living HIV/AIDS cases as the major basis of funding distribution, consistent with changes made to the Ryan White program.

Secondly, it directs HUD to take into consideration housing costs and local poverty rates to ensure the HOPWA program can better address varied housing needs within jurisdictions.

Thirdly, the amendment provides for a gradual implementation of the new funding formula over 5 years in order to ensure that jurisdictions have adequate time to adjust to the new funding levels. A stop-loss provision is also included so that no jurisdiction can lose more than 5 percent of its funding or gain more than 10 percent of its funding on a year-over-year basis.

Mr. Chairman, ever since 1997, the Government Accountability Office has identified the need to update the HOPWA formula. The Department of Housing and Urban Development has included similar proposals to update the formula in its budget requests year after year. According to the Department's most recent formula projections, 115 out of 139 jurisdictions in this country would benefit under the proposed formula change.

The AIDS advocacy community also supports updating the HOPWA formula to account for living cases of HIV/AIDS. These groups include the National AIDS Housing Coalition, AIDS United, the National Low Income Housing Coalition, and the AIDS Institute.

In closing, this bipartisan amendment will ensure that our existing Federal dollars, without additional spending or new revenue, are allocated most efficiently and most effectively and most fairly to help those who are living with HIV/AIDS.

HOPWA is often the difference between homelessness and access to lifesaving treatment for low-income people with this awful disease. It is long past time to update the HOPWA formula to bring it in line with Ryan White and other AIDS support programs.

So I urge my colleagues to support this bipartisan amendment.

Mr. Chairman, I yield back the balance of my time.

□ 1715

Mr. NADLER. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. NADLER. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, for more than 20 years, I have been an adamant supporter of HOPWA. I share many of Mr. PRICE's concerns about the outdated formula for how HOPWA funding is allocated. However, I cannot support this amendment.

The current formula's reliance on cumulative AIDS cases is problematic and does need to be updated to better reflect the new reality of the incidence of the disease.

Mr. PRICE's proposal, while well intended, will just shift scarce resources around, cutting off thousands of current beneficiaries to move the money to different parts of the country.

If the amendment changed the formula for new HOPWA funds, if there were new HOPWA funds, it would be more acceptable, but the amendment would shift existing funds on which people now rely.

New York City is a stark example. This formula change would eventually cut the city's annual HOPWA funding by nearly 25 percent. That cut would translate into real people.

A quarter of New Yorkers living with AIDS and currently receiving HOPWA support for their housing would be thrown out of their homes. We are talking about people living with AIDS with HOPWA support being ousted from their present homes.

I understand that people in many areas living with AIDS need housing, but Congress should be focused on growing HOPWA and expanding the number of people enrolled in the program, not on throwing more people living with AIDS out of their present homes.

If people living with AIDS in Mr. PRICE's district and in other districts need more HOPWA funding—and they do—Congress should provide it to them without depriving people living with AIDS in New York, Atlanta, and San Francisco of their existing housing.

Rather than shifting around limited pools of money and helping homeless people in one part of the country by creating more homelessness in another part of the country, we should be increasing funding for HOPWA to meet the actual needs of the people living with AIDS in the United States.

That is why every year I offer an amendment to the T-HUD appropriations bill increasing HOPWA funding and will continue to do so.

I recognize Mr. PRICE's hard work and long years of advocacy for HOPWA, but I cannot support this amendment as written today.

I hope that, going forward through regular legislative order, we can identify a fair, equitable formula update that does not harm current beneficiaries, that is to say, harm people living with AIDS because of their HOPWA funding in their homes today.

Mr. PRICE OF North Carolina. Will the gentleman yield?

Mr. NADLER. I yield to the gentleman from North Carolina.

Mr. PRICE of North Carolina. Mr. Chairman, I inadvertently used the last minute of my time that I hoped to yield to Mr. QUIGLEY. I wonder if the gentleman might yield to Mr. QUIGLEY.

Mr. NADLER. Mr. Chairman, do I have 1 minute remaining?

The Acting CHAIR. The gentleman from New York has 1 minute remaining.

Mr. NADLER. Mr. Chairman, I yield 1 minute to the gentleman from Illinois (Mr. QUIGLEY).

Mr. QUIGLEY. Mr. Chairman, I rise in support of the Price-Aderholt amendment, which seeks to modernize the Housing for Persons with AIDS Program to better reflect the current case concentration and understanding of HIV/AIDS.

This will help ensure that funds are directed in a more equitable and effective manner. The AIDS population in Chicago certainly stands to benefit from such an update.

The HOPWA program is a national safety net for people battling HIV/AIDS, providing competitive formula grants since 1992. HOPWA prevents homelessness and permits thousands of households coping with the debilitating and impoverishing impact of HIV/AIDS to access and remain in care.

It is also a proven prevention mechanism by helping people achieve lower viral loads, thus becoming less infectious. This is the foundation for better individual and community health outcomes.

It is time for us to change the HOPWA distribution formula from one based on cumulative HIV/AIDS cases to a more updated formula based on current HIV/AIDS cases that reflect today's needs.

I urge a ''yes'' vote on this amendment.

Mr. NADLER. Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from North Carolina (Mr. PRICE).

The amendment was agreed to.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in House Report 114–411 on which further proceedings were postponed, in the following order:

Amendment No. 7 by Mr. PALAZZO of Mississippi.

Amendment No. 12 by Mr. AL GREEN of Texas.

The Chair will reduce to 2 minutes the minimum time for any electronic vote after the first vote in this series.

AMENDMENT NO. 7 OFFERED BY MR. PALAZZO

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Mississippi (Mr. PALAZZO) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 236, noes 178, not voting 19, as follows:

[Roll No. 50]

AYES—236

Abraham
Aderholt
Allen
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Lewis
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marino
McCarthy
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—178

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Becerra
Bera
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lieu, Ted
Lipinski
Loebsack
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meeks
Meng
Moore
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Young (AK)

NOT VOTING—19

Beyer
Castro (TX)
Fattah
Green, Gene
Gutiérrez
Huizenga (MI)
Johnson (GA)
Lofgren
Marchant
Massie
McCaul
McDermott
Moulton
Roby
Roybal-Allard
Sinema
Smith (WA)
Takai
Westmoreland

□ 1740

Mr. ASHFORD, Ms. DUCKWORTH, Messrs. KEATING and SANFORD changed their vote from ''aye'' to ''no.''

Mr. RIGELL changed his vote from ''no'' to ''aye.''

So the amendment was agreed to.

The result of the vote was announced as above recorded.

Stated for:

Mrs. ROBY. Mr. Chair, on rollcall No. 50, I was unavoidably detained. Had I been present, I would have voted ''yes.''

Stated against:

Mr. GENE GREEN of Texas. Mr. Chair, during Rollcall vote No. 50 on the Pazazzo Amendment, I was unavoidably detained. Had I been present, I would have voted ''no.''

AMENDMENT NO. 12 OFFERED BY MR. AL GREEN OF TEXAS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Texas (Mr. AL GREEN) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 181, noes 239, not voting 13, as follows:

[Roll No. 51]

AYES—181

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meng
Moore
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—239

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)

Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Scalise
Schakowsky
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—13

Castro (TX)
DeSaulnier
Fattah
Green, Gene
Huizenga (MI)
Lowenthal
Massie
McDermott
Meeks
Moulton
Mulvaney
Smith (WA)
Westmoreland

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1744

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated for:

Ms. SCHAKOWSKY. Mr. Chair, during rollcall Vote No. 51 on H.R. 3700, I mistakenly recorded my vote as "no" when I should have voted "Yes."

Mr. GENE GREEN of Texas. Mr. Chair, during rollcall vote No. 51 on the Al Green amendment, I was unavoidably detained. Had I been present, I would have voted "yes."

The Acting CHAIR. The question is on the amendment in the nature of a substitute, as amended.

The amendment was agreed to.

The Acting CHAIR. Under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. WOMACK) having assumed the chair, Mr. POE of Texas, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 3700) to provide housing opportunities in the United States through modernization of various housing programs, and for other purposes, and, pursuant to House Resolution 594, he reported the bill back to the House with an amendment adopted in the Committee of the Whole.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

Is a separate vote demanded on any amendment to the amendment reported from the Committee of the Whole?

If not, the question is on the amendment in the nature of a substitute, as amended.

The amendment was agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. LUETKEMEYER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, and the order of the House of January 25, 2016, this 5-minute vote on passage of H.R. 3700 will be followed by 5-minute votes on passage of H.R. 3762, the objections of the President to the contrary notwithstanding, and passage of H.R. 3662.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 427, nays 0, not voting 6, as follows:

[Roll No. 52]

YEAS—427

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Matsui
McCarthy
McCaul
McClintock
McCollum
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres

Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—6

Castro (TX)
Fattah
Massie
McDermott
Smith (WA)
Westmoreland

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1752

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

VETO MESSAGE ON H.R. 3762, RESTORING AMERICANS' HEALTHCARE FREEDOM RECONCILIATION ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the question whether the House, on reconsideration, will pass the bill (H.R. 3762) to provide for reconciliation pursuant to section 2002 of the concurrent resolution on the budget for fiscal year 2016, the objections of the President to the contrary notwithstanding.

In accord with the Constitution, the yeas and nays are ordered.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 241, nays 186, not voting 6, as follows:

[Roll No. 53]

YEAS—241

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—186

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—6

Castro (TX)
Fattah
Massie
McDermott
Smith (WA)
Westmoreland

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1758

So (two-thirds not being in the affirmative) the veto of the President was sustained and the bill was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The veto message and the bill are referred to the Committee on the Budget.

The Clerk will notify the Senate of the action of the House.

IRAN TERROR FINANCE TRANSPARENCY ACT

The SPEAKER pro tempore. Pursuant to the order of the House of Monday, January 25, 2016, the unfinished business is the vote on passage of the bill (H.R. 3662) to enhance congressional oversight over the administration of sanctions against certain Iranian terrorism financiers, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the passage of the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 246, nays 181, not voting 6, as follows:

[Roll No. 54]

YEAS—246

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)

Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—181

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—6

Castro (TX)
Fattah
Massie
McDermott
Smith (WA)
Westmoreland

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1804

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. CASTRO of Texas. Mr. Speaker, my vote was not recorded on Roll Call No. 50 on the Palazzo Amendment to H.R. 3700, Housing Opportunity Through Modernization Act of 2015. I am not recorded because I was absent due to the birth of my son in San Antonio, Texas. Had I been present I would have voted NAY.

Mr. Speaker, my vote was not recorded on Roll Call No. 51 on the Al Green of Texas Amendment to H.R. 3700, Housing Opportunity Through Modernization Act of 2015. I am not recorded because I was absent due to the birth of my son in San Antonio, Texas. Had I been present I would have voted AYE.

Mr. Speaker, my vote was not recorded on Roll Call No. 52 on HR. 3700, Housing Opportunity Through Modernization Act of 2015. I am not recorded because I was absent due to the birth of my son in San Antonio, Texas. Had I been present I would have voted AYE.

Mr. Speaker, my vote was not recorded on Roll Call No. 53 on H.R. 3762, the Objections of the President Notwithstanding (Veto Override). I am not recorded because I was absent due to the birth of my son in San Antonio, Texas. Had I been present I would have voted NAY.

Mr. Speaker, my vote was not recorded on Roll Call No. 54 on H.R. 3662—Iran Terror Finance Transparency Act. I am not recorded because I was absent due to the birth of my son in San Antonio, Texas. Had I been present I would have voted NAY.

PERSONAL EXPLANATION

Mr. MCDERMOTT. Mr. Speaker, on rollcall vote 51 (On the Al Green of Texas Amendment to H.R. 3700), had I been present, I would have voted "yea."

On rollcall vote 52 (On final passage of H.R. 3700), had I been present, I would have voted "yea."

On rollcall vote 53 (On passage of H.R. 3762), the Objections of the President Notwithstanding (Veto Override)), had I been present, I would have voted "nay."

On rollcall vote 54 (On passage of H.R. 3662), had I been present, I would have voted "nay."

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 1675, ENCOURAGING EMPLOYEE OWNERSHIP ACT OF 2015, AND PROVIDING FOR CONSIDERATION OF H.R. 766, FINANCIAL INSTITUTION CUSTOMER PROTECTION ACT OF 2015

Mr. STIVERS, from the Committee on Rules, submitted a privileged report (Rept. No. 114–414) on the resolution (H. Res. 595) providing for consideration of the bill (H.R. 1675) to direct the Securities and Exchange Commission to revise its rules so as to increase the threshold amount for requiring issuers to provide certain disclosures relating to compensatory benefit plans, and providing for consideration of the bill (H.R. 766) to provide requirements for the appropriate Federal banking agencies when requesting or ordering a depository institution to terminate a specific customer account, to provide for additional requirements related to subpoenas issued under the Financial Institutions Reform, Recovery, and Enforcement Act of 1989, and for other purposes, which was referred to the House Calendar and ordered to be printed.

DISTRICT OF COLUMBIA'S FISCAL YEAR 2016 BUDGET AND FINANCIAL PLAN—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–96)

The SPEAKER pro tempore (Ms. MCSALLY) laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Appropriations and ordered to be printed:

To the Congress of the United States:

Pursuant to my constitutional authority and as contemplated by section 446 of the District of Columbia Self-Government and Governmental Reorganization Act as amended in 1989, I am transmitting the District of Columbia's fiscal year (FY) 2016 Budget and Financial Plan. This transmittal does not represent an endorsement of the contents of the D.C. government's requests.

The proposed FY 2016 Budget and Financial Plan reflects the major programmatic objectives of the Mayor and the Council of the District of Columbia. For FY 2016, the District estimates total revenues and expenditures of $13.0 billion.

BARACK OBAMA.

THE WHITE HOUSE, *February 2, 2016.*

RECOGNIZING AMERICAN HEART MONTH

(Ms. ROS-LEHTINEN asked and was given permission to address the House

for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Madam Speaker, I rise today to recognize February as American Heart Month.

According to the American Heart Association, one out of every four deaths in our great country is cardiac-related, and you may be surprised to hear that heart disease claims more female victims than any other disease.

But the real tragedy, Madam Speaker, is that so many of these deaths are preventable. America's amazing medical researchers, doctors, and nurses have been doing their part to stop heart disease and save lives.

It is time for the rest of us to step up and do our part. Remember that even small improvements in diet and exercise can have big impacts on your heart health and overall well-being.

So as you think of your Valentine later this month, don't forget to love your heart, too.

WORKFORCE DEVELOPMENT

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Madam Speaker, it has been over 3 years since the Carl D. Perkins Act expired, the primary source of funding for workforce development programs across the country.

We now have the opportunity to remake Perkins in a way that works for the 21st century economy. Perkins reauthorization must deliver student-centered education that provides 21st century skills for successful careers.

Across the country students continue to seek out career pathways, but funding has been reduced from its peak level in 2010 of $1.3 billion. If we fail to match this demand for CTE, we run the risk of our economy falling behind as companies pursue skilled workers in other parts of the world.

Madam Speaker, our country and our economy need a Perkins reauthorization that focuses on skills that matter and work that pays, skills that matter and work that pays. Let's get this done.

SMALL BUSINESS DEVELOPMENT CENTER

(Mr. OLSON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. OLSON. Madam Speaker, this afternoon Jacqueline Taylor of the Texas Gulf Coast Small Business Development Center Network stopped by to share a story about the American Dream.

The dreamer's name is Derrick Harris. His company is called Soaring With Eagles. Derrick had a hard time making his company grow. He got advice about marketing and sales from Todd Scott of the local SBDC. Shortly after, Derrick was awarded contracts with the Pearland and Pasadena Independent School Districts. He now employs over 30 people.

He said: I tell every business owner I meet to contact their local SBDC. Their assistance has made a huge difference in my business.

That is the American Dream, and that is the local SBDC.

WORLD WAR I DOUGHBOY TEXAN CORPORAL SAMUEL SAMPLER

(Mr. POE of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POE of Texas. Madam Speaker, the brutal trench hand-to-hand combat of World War I claimed more American lives than Vietnam and Korea combined. The war to end all wars between European monarchies was at a standstill until the United States entered the war.

Texas boys like Corporal Samuel Sampler stood up and fought over there across the sea to successfully break the deadlocked war.

On October 18, 1918, in France, this young Army corporal became the third Texan in World War I to be awarded the Medal of Honor.

When his company suffered severe, devastating casualties during an advance, Sampler took action. Grenades in hand, he left the line and rushed in through enemy machinegun fire until he engaged the enemy directly.

His grenades hit the target, killing two and silencing all the machineguns. Twenty-eight other Germans surrendered, allowing the American doughboys to resume their advance.

The 100-year anniversary of the great war is upon us. We remember Texans like Sampler and all Americans who proudly served our country in lands far away 100 years ago and won the ultimate victory in World War I.

And that is just the way it is.

HONORING FORMER CONGRESSMAN TOM BLILEY

(Mr. BRAT asked and was given permission to address the House for 1 minute.)

Mr. BRAT. Madam Speaker, I would like to take this opportunity to honor my friend, former Congressman Tom Bliley, who proudly represented Virginia's Seventh District for 20 consecutive years, on the occasion of his 84th birthday.

He began his political career in 1968, when he was elected to the City Council of Richmond, Virginia, moving on to serve as mayor from 1970 to 1977.

He was elected to his first congressional term in 1980, and under a Democratic President he helped pass legislation that modernized the regulation of pharmaceuticals, telecommunications, and the financial markets.

I hope he had a wonderful birthday, and I wish him many more.

PROTECT TRAFFICKING VICTIMS AT THE SUPER BOWL

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Madam Speaker, the trafficking of young girls and boys continues to be a crime that plagues many of our communities.

While I am proud to have led efforts last year to help pass important legislation to combat this problem, law enforcement on the ground needs to remain vigilant to stop this horrific crime.

With the Super Bowl taking place on Sunday in California, concerns are once again being raised that traffickers will bring children in from out of town for exploitation.

It is also an opportunity for law enforcement to reach out to these victims to try to bring them out of the shadows and bring traffickers to justice.

That is why it is encouraging to see the FBI take a different victim-centered approach this year that focuses on first gaining the trust of young victims, sometimes as young as 12, 13, and 14 years old. This helps victims get the services they need and brings the traffickers to justice with their arrest.

Madam Speaker, a victim-centered approach is the right way to attack this problem. I commend the FBI on their efforts during the Super Bowl this week.

CONTINUING THE CRUSADE AGAINST BOKO HARAM

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Madam Speaker, almost 2 years ago I led a bipartisan delegation, the first congressional delegation, to Nigeria to assess and address the crisis of Boko Haram.

At that time, it was in the immediate aftermath of the taking of the Chibok girls in a previous administration. Boko Haram was doing the kind of raiding and rabble-rousing that may have been part of burning villages.

That time has now passed. And in the last 48 hours, Boko Haram poured gasoline on children and burned them. Boko Haram has now become a marauding and crusading, vile, evil, and vicious group. It takes in the space and areas of Nigeria, Cameroon, Chad, and Niger.

It is important for us, as Members of Congress working with the administration, to call upon these nations to again collaborate and work together.

They have pledged their support to ISIL. I am very glad that, in the course of the Homeland Security Committee, Judiciary Committee, Intelligence Committee, Armed Forces Committee, Boko Haram is not going to get away.

There will not be boots on the ground, but we must stomp out Boko

Haram because they are killing children all in Africa and they are dastardly committers of violence against civil society.

□ 1815

PALESTINIAN TERRORISTS REMAIN UNPROSECUTED

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Texas (Mr. GOHMERT) is recognized for 60 minutes as the designee of the majority leader.

Mr. GOHMERT. Madam Speaker, news has come out, February 2, Groundhog Day, in this article from Adam Kredo entitled, ''The Obama Administration Has Not Prosecuted a Single Palestinian Terrorist Who Killed Americans.''

''The Obama administration has not prosecuted a single Palestinian terrorist responsible for killing Americans abroad, despite a congressional mandate ordering the Justice Department to take action against these individuals'' . . . ''Palestinian terrorists have murdered at least 64 Americans, including two unborn children, since 1993. Yet the U.S. Government has failed to take legal action against those who committed the crimes, lawmakers disclosed during a Tuesday hearing on the Justice Department's failure to live up to its mandate to bring these terrorists to justice.

''Many of the terrorists continue to roam free across the Middle East, with one hosting a Hamas-affiliated television show in Jordan.

''With criticism mounting from Congress and U.S. victims of terrorism, Justice Department officials say they are working to initiate cases, but warn that this could take 'many years' to play out.

''The Justice Department has repeatedly declined to comment when faced with questions from Congress about the lack of prosecutions, according to Representative RON DESANTIS of Florida, chair of the House Oversight and Government Reform Subcommittee on National Security.

''The Justice Department 'has not been able to cite one example for this committee of even a single terrorist who has been prosecuted in the U.S. for any of the 64 attacks against Americans in Israel,' DeSantis said. 'Indeed, many of these terrorists roam free as the result of prisoner exchanges or evasion.

'' 'This is not what Congress intended' when it created the DOJ's Office of Justice for Victims of Overseas Terrorism in 2005,' DeSantis added. 'This is not what the American people want, and this does not provide justice to the victims' families that has been so tragically elusive.'

''The Justice Department has sought to evade questions about its failure to prosecute known terrorists responsible for the murder of U.S. citizens.

''This includes its failure to level charges against Ahlam Tamimi, the Palestinian woman responsible for blowing up a Jerusalem pizza shop in 2001. The attacks killed 15, including a pregnant American woman. Tamimi currently resides in Jordan and hosts a television show on the Hamas-owned Al Quds station.

'' 'When the Oversight and Government Reform Committee questioned the Department of Justice about this case, the Department declined to comment,' DeSantis said. 'If in fact bringing to justice the perpetrators of terrorism against Americans in Israel is a high priority for the DOJ, then surely people of this nature should be prosecuted for their crimes.' '' . . . ''American victims of terrorist attacks abroad who testified at the hearing offered sharp criticism of the Justice Department for failing to take on terrorists in the U.S. courts.

''Sari Singer, who was injured in a 2003 Palestinian terror attack on a bus in Jerusalem, said that she has lost faith in the government.''

Singer said, ''I grew up believing that my country would be there for me and protect me no matter where I was in the world. These last years have left me feeling let down.''

I would insert parenthetically, Madam Speaker, that she shares that same feeling with the victims in our State Department of the attacks at Benghazi, and the many hours people waited thinking surely our government will come to our aid.

So it sounds like victims of terrorists abroad share this, whether it is from Benghazi or whether it is from other terrorist attacks, that the administration is not going to be there for you.

The article goes on: ''Peter Schwartz, whose nephew Ezra was shot in the head by a Palestinian terrorist in November 2015, said that the Obama administration has not been forthcoming about any potential investigations into the incident'' . . . ''The Obama administration was criticized in August when it sought to limit the restitution American victims of terrorism could receive. The administration argued in a legal briefing issued to the court that a large cash award to these victims could complicate the administration's efforts to foster peace between Israel and the Palestinians.''

Clearly, the administration's interests, as Sari Singer observed, is not with American victims of foreign terrorism. It is with the foreign terrorists that maybe if we sidle up to them enough, maybe if we will be nice to them and not punish them, then maybe they won't keep killing American citizens. That is false thinking.

Madam Speaker, I can't help but think as we find out this week that this administration has released $100 billion to the largest supporter of terrorism in the world—Iran—and Iran has made clear that once they got this money from the Obama administration that they were going to increase their help to terrorists like Hamas and Hezbollah. In other words, they told us in advance that when America cedes to Iran $100 billion extra, they are going to be able to help more terrorists commit more of their acts of terrorism.

Now, back when I was a judge or even back years and years ago as a prosecutor, we always approached cases that if you assisted somebody, say you gave them money, and they told you before you gave them the money that they are going to use some of this money to commit a criminal act, then we always felt like you could prosecute those people. Jurors could bear that out because if you knowingly aid, assist—even encourage—you don't even have to give them money. If you just encourage them to commit a violent act or encourage them to go about what they plan to do, and they already said, ''We plan to commit more terrorism with what you give us,'' then you were an accomplice. Under the laws federally, and as well as in the laws I am aware of in most States, certainly in Texas, you would be charged as a principal. So if you gave money to someone knowing that they said, ''We are going to use money and help kill people and help terrorism,'' and then they committed the terrorism, you could be convicted of the same terrorism of those you gave the money to help.

It is interesting that those principles seem to apply to all other Americans, but this administration feels surely they won't apply to this administration. Sure, Iran has said they are going to support more terrorism once they get all this extra money from the Obama administration. But apparently the Obama administration, according to these pleadings they filed, if you just be nice to the terrorists, let them keep their own money, gee, they will probably quit killing Americans. It doesn't work that way.

Let's take a look at who this administration, this Commander in Chief's administration, is willing to punish. I have a letter here that was sent by my friend, our fellow colleague, DUNCAN HUNTER, to the chairman of the Senate Agriculture Committee when he discusses Sergeant First Class Charles Martland and points out he is considered a first-rate warrior.

''While in Afghanistan in 2011, at a remote outpost, Martland confronted an Afghan Local Police commander for kidnapping a young boy and raping him repeatedly over several days. The issue was brought to the attention of Martland and his fellow soldiers after the boy's mother asked for help, after she also was attacked by the ALP—or Afghan Local Police—commander.

□ 1830

''When Martland and Captain Danny Quinn confronted the rapist, he admitted to the charge and laughed in their faces—at which point Martland and Quinn took matters into their own hands. This occurred after two separate

but similar human rights violations, including another rape, near the outpost, resulting in no punitive action whatsoever.

''The Afghan Local Police commander was dragged to the perimeter gate, where he was thrown out and told never to come back. It is important to note that the Afghan Local Police commander left on his own, only to deliberately exaggerate his injuries. Multiple sources have confirmed this fact, including a linguist and authorities who were never interviewed by Army investigators after the incident.

''For this action, Martland was removed from the outpost and faced reprimand. He later was allowed to reenlist, only to face a Qualitative Management Program review board in February 2015.''

That would be a year ago.

''The Army argued that the black mark on his record, which states he assaulted 'a corrupt Afghan commander' is cause to expel him from duty, despite the fact that he has the full support of his command and immediate leadership. In fact, the Department of Defense Inspector General reported to me that''—this is a letter from DUNCAN HUNTER—'' 'personnel are very supportive of the Sergeant and his efforts to remain in the U.S. Army. . . .' And there continue to be efforts within his command to not 'inadvertently hamper his efforts.' This was in response to an alleged gag order put on Martland and his fellow soldiers''—apparently, about trying to stop the rapes that were going on in Afghanistan.

''Importantly, Martland was permitted to resubmit an appeal to the Qualitative Management Program decision after his first appeal was denied outright. And recently, a decision within Army Human Resources Command recommended that the Army uphold the judgment that Martland be removed from service, although a final decision has yet to be made about his future.''

Madam Speaker, we have an American hero in Sergeant First Class Charles Martland. Dragging a child rapist out of the confined area that this child rapist was using to be a serial rapist, doing harm to children in Afghanistan, is an act of heroism, not an act to be condemned. In fact, courts I am aware of, certainly juries in Texas, would say that was acting in defense of a third person. This man is guilty of nothing except a heroic act to save children and women from being raped by a corrupt police commander.

But under this administration, where we give money to supporters of terrorism, the largest supporters of terrorism in the world, and where we beg courts not to give large reimbursements to victims of terrorism, our own American victims of foreign terrorism because that might not help, it might make the foreign terrorists mad if they have a judgment against them, then it seems like this is perfectly consistent with the policies of this administration. We give money to terrorists who say they are going to use it to support terrorism; we don't give money to victims of terrorism.

In fact, this administration should have done what the House passed and implored the administration to do, and that is to make sure that not a dime was allowed to be released to Iran until the verdicts outstanding against Iran by American victims of Iranian terrorism were paid first. But in its haste to get all this money to those who say they are going to use a bunch of it to support terrorism, the American victims were left in the lurch. It is more than irresponsible. It is unconscionable what has been going on.

At some point, people in this administration have got to figure out what most of the American people have figured out, and that is you are not going to stop terrorism by trying to be sweet and kind to the terrorists. Some of us learned it on the playground growing up. I guess now that the Federal Government has control of education to such an extent that schools are forced to teach to the test—I have even had elementary schools tell me: We have had to do away with recess in elementary school because we just don't have time. We have got to teach them to the test so that we can get that Federal money and we can stay open.

But if you allow recess and kids are on the playground and you have kids that were smaller like I was, you learn you are not going to stop bullying by giving your money to a bully. If you give a bully money, not only do they not respect you, they have more contempt and it encourages their bullying. You can't do that. You have to stand up to bullying. You find out when you do that, sometimes you will have a teacher, like my fifth grade teacher, that took up for the bullies, but you will ultimately find more teachers will not tolerate that kind of conduct.

This administration never learned that. Maybe there was no chance to learn that in the young schools in Indonesia. Maybe that is why we have a Commander in Chief that thinks we should reward the terrorists, the supporters of terrorism, and punish the victims of terrorism by not letting them have proper financial restitution.

But it is tragic what is going on. It is tragic.

There are a number of stories about Sergeant Martland, including from my friend Jay Sekulow. He said:

''Yet, for his actions, he was immediately pulled from the battlefield and this decorated war hero is now facing expulsion from the military.''

This administration's priorities are so completely out of step with truth, justice, and the American way—what used to be the American way. Perhaps the American way has been fundamentally transformed in the last 7 years, so now the American way has become that we help terrorists, give them money, and we punish those who are victims.

Well, of course, we know that our Secretary of State thanked Iran for their activities. I haven't heard whether or not Secretary of State Kerry has thanked Iran for this latest story. This from foxnews.com, ''Iran's Supreme Leader Awards Medals to Troops Who 'Captured' U.S. Sailors.'' The story says:

''Iran's supreme leader has awarded medals to five members of the Iranian Navy whom he said 'captured intruding' U.S. Navy sailors during a tense incident in January.

''Ayatollah Ali Khamenei awarded the Order of Fat'h medal to Admiral Ali Fadavi, the head of the navy of the Revolutionary Guards, and four commanders who seized the two U.S. Navy vessels, according to Reuters. Iran's state media reported the news on Sunday.

''Order of Fat'h given by Chief Commander of Armed Forces to IRGC Navy commanders who captured intruding U.S. marines''. . .''In a tweet from his account Sunday, Khamenei misidentified those who were 'captured' as being members of the Marines.

''On January 12, Iran captured the ten sailors whose boats 'misnavigated' into Iranian waters, according to Defense Secretary Ash Carter. Though the sailors were released the following day, Iran released video of the sailors being captured, detained and apologizing for the incursion.

''Though Iran initially accused the sailors of spying, Fadavi later said an investigation had established the sailors were led astray by 'a broken navigation system' and the trespassing was 'not hostile or for spying purposes'.

''The sailors were attempting to navigate from Kuwait to Bahrain when they crossed into Iranian waters.''

Well, Madam Speaker, we have got satellites that could show exactly what happened. I would think that if this administration wanted to defend our sailors, they would show the satellite footage of where they were and we would be able to see for sure whether or not they did cross into Iranian waters.

But consistent with these reports and stories we have already looked at this evening, it seems if they are going to act consistent with this administration's prior actions, this administration wouldn't want to embarrass the Iranian military, the supporters of terrorism, and so we wouldn't want to show that they were liars. So we won't show by satellite footage exactly where our sailors were, and we won't show exactly where our other naval vessels were. These were reported to be small vessels. Well, you don't have small Navy vessels unless they are near much larger Navy vessels. Normally, if they are larger Navy vessels, there are other small vessels that can go rather quickly.

If you have the Navy vessels there, there is a good chance there is a carrier nearby, an airstrip, where jets could be there in no time whatsoever. It used to

be under other Commanders in Chief, not this one, but other Commanders in Chief, that if we had sailors who were in danger of being captured by a country, particularly the largest supporter of terrorism in the world, our jets would be put in the air. They would get there immediately. They would keep flying overhead and protecting those sailors until the Navy itself could get there to rescue them.

For some reason, this administration thought it was a better idea not to put our aircraft in the air—kind of reminiscent of Benghazi. We are not going to send aircraft that could have been there in minutes. But, heck, I was asking a former commander at Ramstein Air Base clear up in Germany. He didn't realize where I was going.

I asked: How long would it take, say, to get to North Africa from Ramstein?

He said: About 3, 3½ hours at the most.

I said: So you could have been at Benghazi in 3½ hours?

He said: Oh, well, we had ordnance on the planes that particular evening, and it would have taken awhile to reconfigure those.

Well, if you can get clear from Ramstein Air Base to Benghazi in 3, 3½ hours, tops—we have got planes a whole lot closer to where these Navy vessels were—they should have been able to be there in minutes. I am sure some commander or some admiral who is afraid of the Commander in Chief would never admit that, not these days.

But the fact is this once proud United States military who protected its own for the last 70 years and now it calls upon the largest supporter of terrorism to come get our sailors and to have them kneel on their knees, hands behind their heads, as if they are POWs, embarrass them to the maximum, for that, Secretary of State Kerry thanked Iran.

Well, Madam Speaker, I see my friend from Nebraska is here. I yield to my friend.

□ 1845

NEBRASKA VALUES

Mr. FORTENBERRY. Madam Speaker, I thank the gentleman from Texas for yielding.

I want to point out something about Mr. GOHMERT. He was speaking about our military a moment ago. He, himself, is a veteran. He served in the United States Army during the Vietnam war, and I appreciate his service.

Madam Speaker, I also want to share something with the body today. I write a weekly report, generally, called the Fort Report. This week, I sent one that I hoped would have a broader meaning to the House of Representatives and, perhaps, to anyone else who might encounter this. It is entitled, ''Nebraska Values.'' It is stories about America's political and economic and cultural crises. As we all know, they are dominating the headlines across our Nation. There is widespread, bipartisan dissatisfaction with the status quo, and it is propelling a new conversation against the dysfunction and gridlock that have long thwarted effective government here in Washington, D.C.

As families across our Nation face pressing challenges, it is sad, but elected officials often prioritize divisive rhetoric instead of empathy and understanding. Now our disagreements have widened into chasms. It is exhausting—exhausting to America's spirit—and it is distracting us from the possibilities that are before us. In the midst of this contentious Presidential primary season, Madam Speaker, maybe it is time to just pause, change the subject, and celebrate some of the best examples that our country has to offer.

In a small town gym in Beemer, Nebraska, at Beemer Elementary School, the community recently gathered to celebrate the life of Joseph Lemm. While deep sadness marked the occasion, the community's desire to gather and tell stories and honor this remarkable man pointed to a much deeper understanding of the values that bind us.

Joe chose to put on three different uniforms in his life—first, by enlisting in the United States Air Force after high school. Then he went on to have a career with the New York City Police Department and, finally, with the New York Air National Guard. Joe served three tours of duty in Iraq and Afghanistan. This past December, Joseph Lemm gave his all for his country, along with five other Americans who were killed in Afghanistan. Although Joe left Nebraska a very long time ago, I am quite certain that he carried his early formation with him throughout his life of service, and I suspect my State, Nebraska, was never far from Joe's heart.

Before the service that memorialized him, I saw Joe's mother, Shirley. Shirley embraced me as though we were family members, and, perhaps, we were. She embraced our Governor, Governor Ricketts, and United States Senator SASSE in the same way. Everyone in the gym in the little town of Beemer knew, in the midst of this deep grief and loss, that Joseph Lemm's life had great value, had great purpose.

Madam Speaker, several weeks ago, Washington, D.C., was buried in an avalanche of snow, the remnants of which are still around. I was intending to come back to Washington but had to cancel that trip, and I had more time than I had anticipated in my hometown of Lincoln. As I was in my office, I noticed some young people who were walking around the complex in their signature blue Future Farmers of America jackets, the FFA jackets. I love those jackets, Madam Speaker. They are emblazoned with the name of their hometown below the FFA symbol. These young people had gathered along with others from the Distributive Education Clubs of America; the Future Business Leaders of America; the Family, Career and Community Leaders of America; Educators Rising; and the Future Health Professionals Skills USA to talk about a very important issue: food security.

In Nebraska, we are very fortunate to have a very, very low unemployment rate. We have the convergence of some extraordinary natural resources, that of our farming and ranch community; we have manufacturing; we have a financial sector; we have had a long tradition of solid community leadership, which has left our economic situation much better than most across the country. Even so, even in our State, we face problems with structural poverty.

These young students came together because they recognized the need to engage in the issue of children who face hunger—of children who return from school hungry, of children who have to worry about not having enough to eat when they get up in the morning. These young people were there, gathered to lead the way—to find realtime solutions in their own small communities, to help the impoverished, vulnerable members who are all around them.

Madam Speaker, that same snowstorm that kept me out of Washington, though, did not deter hundreds of other Nebraska students who left the comforts of their homes and drove on buses through the night to exercise their fundamental American rights: the freedom to assemble and the freedom of speech.

In the face of that devastating blizzard a couple of weeks ago, these principled boys and girls participated in the annual March for Life. They are young people in our country who refuse to accept the current settlement in our wounded culture. They refuse to stare at pain and woundedness and then walk away. They refuse to accept what has been fostered upon us for the last four decades of brokenness, of fracturing in family life, and the deep wounds that abortion has caused in so many women. They are demanding that we do better as a country. They are saying to all of us that women deserve better, that we deserve better. They traveled to Washington to explicitly express this pro-life perspective and to proclaim that we should care for unborn children, for their mothers, and for our society as a whole.

This is the new generation—the Millennial Generation—that, in many ways, is standing upon the ash heap of broken tradition, and they are longing for more. They are saying there is a better way no matter how deep and difficult the problem is. Although our Nation, particularly in our politics, still experiences deep and sad divisions over the question of abortion, I do think we should all commend these students for responsibly exercising their rights to peaceably demonstrate, for standing up for what they believe. That is a source of renewal and strength in America. Sometimes it discomforts us. Sometimes it challenges those of us in power when truth has spoken to us. Sometimes it bumps up against systems that seem stacked against the ordinary person.

These young people are not willing to accept the current economic, political, and cultural settlement in our country. They are saying let's strive for more. Let's imagine what we could be. Let's put aside the pain. Let's heal the past and look forward when all life is celebrated as a beautiful gift. I respect what they did, and I think, again, all of us here can look to these young people who have responsibly demonstrated in front of us as good future stewards of a rebuilt America.

So, Madam Speaker, that is really what I wanted to say to you today. I am proud of these Nebraskans who have continued to demonstrate a better pathway for America in public servants and in military heroes, such as Joseph Lemm, who gave his life for his country, in the young people back home who are deciding to tackle systemic childhood poverty and hunger, and in the students who trekked all this way in hazardous conditions to stand in defense of vulnerable persons.

Perhaps, in the example of these young people, we can find an answer to what is right about America at a time when so much seems to be going wrong. We can carry forward the best of our traditions, those put forward by small communities and families that are really the renewing social force that will help turn our country around.

Mr. GOHMERT. Madam Speaker, I am very grateful to my friend from Nebraska. Mr. FORTENBERRY and I came in together, and I am so glad we did. We have been friends ever since. What a noteworthy tribute he had to pay. I am grateful for that tribute.

Madam Speaker, we have had so many Americans who have given, as Lincoln said, the last full measure of devotion for freedom, for liberty, for people who were not even Americans, because that is who Americans have been.

I know our current President is fond of saying that is who we are, and then he provides access to $100 billion for Iran—the largest supporter of terrorism. It says it is going to keep supporting terrorism, just with a lot more money now that the President has made all of this available. The President says that is not who we are, and then he shows us that we open our arms to terrorists from all over the world.

So many Americans gave their lives and gave their limbs for liberty in Iraq, for liberty in Afghanistan. In fact, in Afghanistan, if I recall my figures correctly, in the 7¼ years under Commander in Chief Bush, from October of 2001 until January of 2009, there were just over 500 precious American lives given for the cost of freedom in Afghanistan. Supposedly, we were told by this President, the war was pretty much over. He sent more troops for a while to Afghanistan; but even after, supposedly, the war has been over and troops have been left over there, we keep getting Americans killed.

It is because of the rules of engagement that so needlessly tie their hands. It is because this administration would rather punish Green Beret Sergeant First Class Martland for stopping a serial child rapist. It would rather punish him—throw him out, end his military career—because this administration, at least here in this country, does not want to offend the serial child rapist in Afghanistan.

No wonder people around the world have lost so much respect for the United States in the last 7 years. They know that stuff is going on. They knew that Sergeant Martland stood up for the child and for the woman. They knew what he did. They spread the word. Then the word spreads when Sergeant Martland makes international news because this administration wants to punish him for dragging him out of the compound—not killing, not beheading, not disemboweling—in an act of defense of many third persons. They find out this administration punished the military hero, the Green Beret who protected the victims.

It is incredible. I mean, any administration that would do that would probably turn around and, if it heard about some entity that was allowing unborn babies to be killed and was selling body parts, might be tempted to punish the people who exposed it instead of punishing those who did such a heinous act.

□ 1900

Those who have read Scripture know there will come a time when right is wrong, wrong is right, the good are punished, and the evil are rewarded. But we also know the day will come when the ultimate judge of the world will set things straight.

So this is a story from Martha Mendoza, Maya Alleruzzo, and Bram Janssen from the Associated Press: ''Oldest Christian monastery in Iraq is razed.'' This is heartbreaking.

This is a monastery Americans were devoted to restoring. It is a monastery where people came to know Jesus of Nazareth for the last 1400 years. It is a place where God did miracles in people's lives. It is a place where our military were very, very careful to protect because they knew the Christian significance.

As this administration miscalculated—apparently, our intelligence agencies did not miscalculate. Apparently, our intelligence agencies made very clear to this administration that ISIS is not a JV team, that these are dangerous people and they have to be stopped and you have to ramp it up.

So it wasn't our intelligence. We didn't have bad intelligence. The reports are out there. The administration, thinking it knew better than those on the ground in the area, did not take ISIS seriously.

Now, this Christian monastery over 1400 years old has been razed. The story from Iraq:

''The oldest Christian monastery in Iraq has been reduced to a field of rubble, yet another victim of the Islamic State group's relentless destruction of ancient cultural sites.

''For 1,400 years the compound survived assaults by nature and man, standing as a place of worship recently for U.S. troops. In earlier centuries, generations of monks tucked candles in the niches and prayed in the cool chapel. The Greek letters chi and rho, representing the first two letters of Christ's name, were carved near the entrance.

''Now satellite photos obtained exclusively by The Associated Press confirm the worst fears of church authorities and preservationists—St. Elijah's Monastery of Mosul has been completely wiped out.

''In his office in exile in Irbil, Iraq, the Rev. Paul Thabit Habib, 39, stared quietly at before- and after-images of the monastery that once perched on a hillside above his hometown of Mosul. Shaken, he flipped back to his own photos for comparison.

'' 'I can't describe my sadness,' he said in Arabic. 'Our Christian history in Mosul is being barbarically leveled. We see it as an attempt to expel us from Iraq, eliminating and finishing our existence in this land.'

''The Islamic State group, which broke from al-Qaeda and now controls large parts of Iraq and Syria, has killed thousands of civilians and forced out hundreds of thousands of Christians, threatening a religion that has endured in the region for 2,000 years. Along the way, its fighters have destroyed buildings and ruined historical and culturally significant structures they consider contrary to their interpretation of Islam.''

Madam Speaker, I find it interesting that these writers know what leaders in this administration still, after all these years, have not figured out. It is Martha Mendoza, Maya Alleruzzo, and Bram Janssen.

They point out in this article that these people believe that these sites are contrary to their interpretation of Islam. Yet, this administration says, no, it has nothing to do with Islam.

The article continues:

''Those who knew the monastery wondered about its fate after the extremists swept through in June 2014 and largely cut communications to the area.

''Now, St. Elijah's has joined a growing list of more than 100 demolished religious and historic sites, including mosques, tombs, shrines and churches in Syria and Iraq. The extremists have defaced or ruined ancient monuments in Nineveh, Palmyra and Hatra. Museums and libraries have been looted, books burned, artwork crushed—or trafficked.

'' 'A big part of tangible history has been destroyed,' said Rev. Manuel Yousif Boji. A Chaldean Catholic pastor in Southfield, Michigan, he remembers attending Mass at St. Elijah's almost 60 years ago while a seminarian in Mosul.'

'' 'These persecutions have happened to our church more than once, but we

believe in the power of truth, the power of God,' said Boji. He is part of the Detroit area's Chaldean community, which became the largest outside Iraq after the sectarian bloodshed that followed the U.S. invasion in 2003. Iraq's Christian population has dropped from 1.3 million then to 300,000 now, church authorities say.''

Christians are under persecution, being killed in greater numbers than any time in our history. Yet, it is not the Christians being persecuted in greater numbers than any time in history. It is not the group that many in the world recognize are the most persecuted religion in the world.

This administration wants to welcome those of the religion of persecution rather than the most persecuted group in the world, that being Christians, although just recently this article from CNS News, ''550 Syrian Refugees Admitted to U.S. Since the Paris Attacks''—and, of the most persecuted highest number killed in the history of the world, Christians, this administration admitted two.

An article from the Texas Tribune points out that Governor Greg Abbott and my friend, Democrat U.S. Rep. HENRY CUELLAR, ''pressed the U.S. Department of Homeland Security on Monday to explain why the agency plans to reduce its aerial surveillance on the Texas-Mexico border.''

''Monday's request comes as CBP is reporting a new surge in the number of undocumented immigrants crossing the Rio Grande. From October to December of 2015, about 10,560 unaccompanied minors entered Texas illegally through the Rio Grande Valley sector of the U.S. Border Patrol. That marks a 115 percent increase over the same time frame in 2014.''

Madam Speaker, what is clear is that, as this administration says, oh, we are arresting fewer people coming into the country illegally, these kind of reports make clear, well, yeah, if you close your eyes, you will keep arresting even fewer. That is what they are doing. They are closing our eyes to our ability to see people that are violating our law.

At the same time, we get this report from the Washington Examiner that sanctuary cities now cross the 300 mark, with Dallas and Philadelphia added to it.

Madam Speaker, with so much to be depressed about, I want to commend the people of the State of Iowa, where I spent a couple of days last week and where I have spent other times many days in the past. When I am among the Iowans, I feel like I am back home in East Texas. The people are wonderful.

I had somebody ask earlier today about: What do you think about your party?

I said: What do you mean?

He said: Well, you look at the people that won the Iowa caucuses.

So?

The comment was made: Well, in the Democratic caucus or primary, you had two White Socialists—this was the comment from this person—and in the Republican primary, the first and third vote-getters were Cuban, Hispanic Americans, and the fourth was African American. Isn't that interesting the way things have turned?

Well, I have enjoyed coming to love the people of Iowa, and I look forward to the days ahead because of them.

Madam Speaker, I yield back the balance of my time.

WATER SECURITY

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Madam Speaker, I want to pick up on some issues of security. We have heard for the last hour discussions of security, and there are many different aspects to the question of security.

Are we secure in this world in which we live? Well, there are a lot of problems. To be sure, we can worry about China and the South China Sea, and we do. Certainly, in the Middle East, where I recently visited the Gulf States and Iran, there are a lot of concerns there.

As you move into Iraq, there are the issues of ISIL, al Qaeda and, of course, the great tragedy that is occurring in Syria where, basically, cities are simply being destroyed, obviously, the churches, the monasteries, the mosques—boom—housing.

There are well over 270,000 people—Christians, Muslims, and others—killed in the Syrian civil war and the resultant desire by people to get out of there. Immigration issues are abounding. Certainly, they affect us here in the United States.

There are many other security issues beyond those that make the headlines. There are security issues in our homes. For example, do we have a job? Well, that is a big issue.

Often here on the floor, in days gone by, I would stand with my colleagues and we would talk about creating jobs in the United States. We would talk about strategies of Make It In America, strategies to use our tax dollars to buy American-made products and services so that our money could be used to employ our own people and to support our own businesses.

These are all very, very important strategies. They do happen to do with individual security, community security, and family security. So security has many, many pieces.

Tonight I want to talk about one type of security. This is something that affects every human being, every animal, large or small, from an elephant to the smallest mouse. This security issue is one that affects every form of life. It is called water. It is called water.

This is the most basic of security issues. You don't go but a day or 2, maybe 3, days, if you are not doing much and it is really not very hot, without water. It is essential. This is a bottom-line security issue.

If you don't have water, you are insecure. If you don't have water, you will very soon be dead. If you have poisonous water, you may not die immediately, but it will certainly affect you.

Let's take a look at this. This is water from Flint, Michigan, United States of America. There are roughly 100,000 human beings in Flint, Michigan.

Well, among the most essential of all of the things we need for life, for security, is water. That is Flint, Michigan, water, a city of 100,000 people in the United States.

□ 1915

Oh, we would like to think of ourselves as being the most advanced place in the world. That is Flint, Michigan, water. Nine thousand children under the age of 4 or 5 have been drinking that water contaminated with lead for about 14 months.

I am not going to go into the reasons why that tragedy is occurring. There are many. There is an FBI investigation and there are questions about the Governor of Michigan and the way in which it was done, but I am not going to go there today.

I want to go to something else that we are responsible for here in the House of Representatives and our colleagues across the Capitol in the U.S. Senate. I want to talk about our responsibility here because this is our business.

If we are concerned about security—and we are—we should—and we do—talk about al Qaeda. We should—and we do—talk about ISIS. We should—and we do—talk about refugees and whether they are safe or not. We talk about San Bernardino and the great tragedy there. We should talk about it, and we should do something about it.

There is another side of security that we have specific responsibility to deal with. In 1974, we set out to clean up the waters of the United States with the Clean Water Act. Over the years, it has been amended. In 1996, we set standards for clean water and we provided some funding.

If someone were to grade us on our success in addressing one of the fundamental security issues, that is, the ability to have clean, drinkable water, here is the scorecard. Let's take a look at it. Let's see.

We can run down through aviation, bridges. Oh, by the way, this is from the American Society of Civil Engineers. They produce a scorecard on how well this great Nation, the United States of America, is doing on providing fundamental security.

Aviation, bridges, dams, drinking water: D. Today, at a hearing on water, the Society of Civil Engineers said we have got a D on drinking water.

Somebody asked them: Is that the bottom grade?

They said: Well, pretty much because if you go to an F, it is too much paperwork. So they just stop at D. D.

We fancy ourselves to be the greatest place in the world, the most advanced economy. All the way down this list are D's, a couple of C's. Our infrastructure doesn't rank among the best in the world. In fact, we rank about where developing countries are.

So what is the result of all of this? Well, Flint, Michigan, water, would you drink it? For 100,000 people in Flint, Michigan, that is their water supply. Without water, you don't live.

Closer to my home in Porterville, California, a city of a few tens of thousands of people, no water. So they truck it in. I have got one of those on my ranch. It is called a livestock water trough. That is where the kids get their water in the United States of America.

Oh, we think we are good. Security comes in many forms. Drinking water. So why does this happen? Why is it that, in this great Nation, all of us, 435 here, and another 100 across the Capitol—why is it Flint Michigan, Porterville, California, a half a dozen other cities in California, no water or contaminated water?

Just in December it was reported that, in about a half a dozen communities in the San Joaquin Valley of California, the uranium in the water has reached a level beyond that which is allowed. That is okay. It is only going to be cancer.

Uranium, fine. Flint, Michigan, Porterville, communities throughout this Nation. Oh, Toledo, Ohio. I remember Toledo, Ohio, last year shut down its water system because of contamination from algae in the lake. America. Why? Why?

Here is why. A sharp drop in government infrastructure spending. Oh, government infrastructure spending. Federal Government infrastructure spending. For 435 of us; this is our job.

Oh, let's see. This is 2002. Somewhere—oh, these are real dollars, disinflated, $325 billion. In 2014—that is 12 years later—$210 billion. That is what happens. That is what happens when you don't have water in Porterville. That is what happens when you have uranium and the inability to take it out because you can't afford the systems. That is what happens in Flint, Michigan.

Let's take another look at those numbers, another way to look at it. Spending on clean water and drinking water infrastructure. In 2014 dollars—these are constant dollars across the way—1973, is that Ronald Reagan? I think so. No. Actually, it was a little later.

That wasn't Reagan. It is the end of—what did we spend in 1973 in consistent 2014 dollars? We spent about $10 billion. Okay. In 1990, we spent about $6 billion. Again, these are dollars all consistent for 2016 dollars. In 1999, we are down to about just under $4 billion. In 2005, we get down to about $3.5 billion. In 2016, bingo, $2 billion.

You wonder why we have a D? You wonder why the water systems break. 240,000 water mains broke last year in the United States. You see the pictures of the sinkholes. That is not a geological issue. That is a water main issue. A water main is broken, washed out the street, washed out the community, and the houses fall into it. Not all of them, but that is basically it. 240,000 of those last year.

What are we doing? Are we building new, high-quality water systems for our community? No, we are not. I will tell you what we are doing. Over the next few years, we are going to spend a trillion dollars in the next 20 years on rebuilding—that is a trillion dollars, not a billion—a trillion dollars—on rebuilding our entire nuclear warfare system. Every bomb, new airplanes, new missiles, new intercontinental ballistic missiles, new submarines, a trillion dollars. And this number competes with that trillion dollars.

We make choices around here, folks. We make choices on how we are going to spend your tax money. We are going to spend it on nuclear bombs that go big in a big way, on new stealth bombers, new intercontinental ballistic missiles, new submarines, new dial-a-bomb—dial it up, it goes big; dial it down, it goes small—so that we can use it as a tactical nuclear weapon. Whoa. We are making choices here.

I can go on for some time about this. I get pretty excited about it. I get pretty dismayed. When I am in Brussels, as I was last week, returning from the Gulf States—Oman, Dubai, Abu Dhabi, Qatar, Bahrain—looking at what is going on there, this is what I saw: I saw enormous problems. But I also saw a modern infrastructure. Go to Brussels. Look at their airport. Then go to an American airport.

Water. Water. Flint, Michigan, water. State of Michigan, United States of America, that is the water that 100,000 Americans are forced to drink. We have got a Clean Water Act. We have got the laws in place to build our water systems.

So what do we do? Well, I guess we would rather rebuild the B61 nuclear bomb rather than building a water system for Americans for the security of 100,000 people.

I live a long way from Flint, Michigan, but the guy I am going to call on, that is his home. That is where he was raised. Those are the people he represents.

DAN KILDEE, you have been on this issue for weeks and months. You have been sounding the alarm. You have been calling us out. You have been calling us out, all 435 of us and the Senate and the administration. You have been calling us out, and you are doing the work of securing the safety of the people in your community. Please join me, DAN KILDEE, from Michigan.

Mr. KILDEE. Well, first of all, let me thank my friend, Mr. GARAMENDI, not just for that introduction and for his comments about my hometown, but for his leadership on this issue.

This is the critical issue that really determines whether we are competitive as a Nation. But it goes beyond competitiveness. It is the issue that will determine whether we have true national security. But it goes beyond national security. Sometimes it is a matter of life and death. Sometimes it is really a matter of health.

In my hometown, the issue of failed infrastructure, particularly of the State of Michigan and their failure to manage infrastructure, let alone reinvest in it potentially, will affect not just 100,000 people, all of the citizens there, but, most importantly, will affect the trajectory of the lives of 9,000 children under the age of 6 who, for the last year and a half, have been drinking water that has elevated lead levels well beyond what normally would be required in order to take drastic action to correct the problem.

And it was largely overlooked because of a failed philosophy of government in the State of Michigan that put short-term interest, short-term dollars-and-cents measures of success, ahead of not just long-term investment, but ahead of the lives of children that has resulted in this terrible tragedy.

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I will just take a moment to tell you what happened and to support the efforts of my friend Mr. GARAMENDI in continuing to raise this question.

The letter grade graph he showed regarding clean drinking water showed in the aggregate a grade of D. In Flint, it was an F. It was a failing grade.

So, the failure to invest in infrastructure, and particularly urban infrastructure—roads, bridges, and water—led to significant economic difficulty in my hometown of Flint. The failure of the State to support cities—and, in fact, they cut direct support in cities—resulted in my hometown going into financial stress. The State then appointed a receiver to take over the city.

Rather than provide support, rather than rebuild, it appointed a receiver, a financial manager, to go in with one tool, and one tool only, and that was a scalpel, to cut the budget of a city that was really begging for investment. Instead of investment, more cuts.

One of the cuts was, for a temporary period of time until a regional pipeline to Lake Huron was completed, to draw drinking water from the Flint River, which for decades functioned as an open industrial sewer.

In the State of Michigan, where we have the world's greatest source of surface water, freshwater, there was a decision to use the Flint River. But because of our aging infrastructure, old infrastructure, and lots of lead pipes, including thousands and thousands of lead service lines to homes, and the failure of the State to manage this process and treat the water effectively, highly corrosive water leached lead into the drinking water, and 100,000

people have been subjected to elevated lead levels. Thousands of children have potentially been affected.

The sad story here is that it all could have easily been prevented with just a little bit of investment and better management of the infrastructure. But we take water infrastructure for granted, as if all we have to do is turn on the faucet and the water will appear. No, it takes investment; it takes money; it takes resources. In this case, the State's failure has resulted in something that we hope is not repeated across this country; but without investment, there will be more Flint, Michigans.

So what we need now is to call upon the State particularly to make the kind of investment in Flint to make it right. As I said, 9,000 children in the city of Flint under the age of 6 have substantially elevated lead levels from the water that showed up in their blood in tests done by a courageous pediatrician, Dr. Mona Hanna-Attisha, who was one of the people who blew the whistle on this.

So now we have a crisis in Flint. We have a loss of faith in government. But it is a crisis because this city is really at risk. We need significant investment to make it right. That investment would come in the form of a long overdue replacement of those lead service lines, that lead piping that is outdated, obsolete, and dangerous. Because of the failure to deal with this when it was a less expensive investment, we now have, I think, a very important moral responsibility on the State of Michigan to take care of the unique needs that these children will face as they go through their developmental stages. We need early childhood education for all of them. We need good nutritional programming—and not just to make it available, but to ensure sure they have good nutrition. We need additional help in the schools. We need behavioral support.

There are consequences. There are human consequences to this failure. It is not just that the water looks bad, smells bad, tastes bad. It is unhealthy.

Again, I hope Flint's experience can be an experience for the rest of the country, because the way our State treated the people of Flint was as if they didn't matter. They allowed this infrastructure to atrophy, allowed the city to atrophy, didn't support redevelopment, didn't support even the basic need of $140 a day to provide corrosion control treatment in this aging water system. All of that could have prevented this terrible tragedy, but they didn't do it.

So now the State of Michigan bears the principal responsibility. I am doing everything I can to get Federal help for this, but the State of Michigan bears the principal responsibility. As far as I am concerned, it is up to them to make it right.

The message that my friend has been bringing to this Congress when it comes to this question of infrastructure is that Flint proves that it matters what we do here. It matters what we do in this House. The fact is we have known as a Nation for a long time that, if we are going to be safe, if we are going to be competitive, if we are going to be healthy, we have to invest in that which we take for granted.

Think about it, water, drinkable water. Most people in this room, most people in America never give it a second thought. You just turn on the faucet and it is there. It is literally what we depend upon for our very lives. In Flint, Michigan, because of this terrible failure, not only was it not safe, but we poisoned 9,000 children as a result.

There are consequences to what we do here, and there are consequences to what we don't do here. So for those Members who have expressed their sympathy, I appreciate that, I sincerely do. But the children of Flint, the people of Flint, and, frankly, the people of Porterville and everywhere else need more than sympathy. We need investment. We need this Congress and this country to step up and do what it is right and invest in our own future, because if we don't, as you can tell, there are consequences.

Thank you for your leadership on this.

Mr. GARAMENDI. Mr. KILDEE, thank you so very much for the work that you are doing sounding the alarm and driving all of us. I know you did this morning in our Caucus. You alerted us to it. You motivated us. And, in fact, I am talking about it tonight because of your motivation that you gave to me and to our colleagues this morning.

You spoke here a little bit about the human consequences. I would like you to take another run around this on how we bear—the community of America, and more specifically, Michigan—the responsibility of caring for addressing the human problem that now exists.

Mr. KILDEE. I thank you for that question, because that is really the core of what we are dealing with right now.

We need a lot of help in Flint. This could have been avoided. But now that this has occurred, there is some work we need to do to fix the pipes. There is some work we need to do to make sure the emergency needs are met—temporary water. But the real need is this human need.

Lead is a neurotoxin. It affects development of the brain. The citizens who are most at risk are those children who are still in those early developmental stages, particularly children age 6 and under. Literally, children feeding, drinking formula made with this water will have the trajectory of their lives potentially affected.

The thing that I think is important to keep in mind is, first of all, Flint is a tough town. We can live through this; we can get through this; we can succeed; but we are going to need resources. We need resources, really, to come from the people who did this to us, which is the State government with, I think, a completely bankrupt philosophy that basically says you are on your own.

Well, you are not on your own when it comes to drinking water. We all expect drinking water to be clean. We have every right to expect that. It is a human right.

But what we need now and what I think is morally required is to wrap our arms around these kids. We know that when it comes to brain development and challenges the kids might face, whether it is from a developmental question from some other source or derived from lead exposure, the more we do to help those children develop as early as possible, the better they will do in the long term.

So, I will have legislation that I will introduce this week that puts Federal support in—and requires the State of Michigan to come up with its share, because they did this—so that we expand Head Start, Early Head Start, and that we give those kids the early opportunity to expand their minds; also, that we get them nutritional support, because we know that good, nutritious food—milk, for example—is very helpful in getting kids through lead exposure with minimal impact.

Now, it is only to mitigate the damages and help these kids overcome, but what we need to do now as a community is what we would do for any child facing a developmental challenge. It is early childhood education. It is nutritional support. It is a school nurse, for example. We have gone so far in this country that we don't even fund the basics that we all grew up with. We all had a school nurse. You go to Flint, Michigan, a city of 100,000 people, and we have one school nurse.

Also, it is after-school programming, enrichment opportunities. Most of the kids in my hometown, sadly, already have hurdles in front of them because of the misfortune of being born into poverty. They don't have the kind of opportunities that many kids take for granted: piano lessons, dance, art, after-school activities, gym time, a summer program. Maybe for the older kids, a summer job.

That is the kind of help that will be required in order to move these kids from where they were headed before this crisis occurred and what the trajectory of their lives looks like right now.

So the point is there are human consequences for the failure to do this right in the first place. And when we have a State government that failed these kids, they now have a moral obligation to step up and actually take care of their needs going forward.

Mr. GARAMENDI. If I might interrupt you for a moment, this morning you spoke of a young child that was interviewed. Would you please share that?

Mr. KILDEE. I will. I read this. It came from a writer from Detroit, a guy named Mitch Albom, who most people

know for having written a bestseller, ''Tuesdays with Morrie.'' He came to Flint to interview children and to talk about what this whole experience meant to them.

One young man said something which, in a very poignant way, in a really eloquent way, describes what exactly happened in Flint. The little boy said that he was afraid that he wouldn't be smart now, that he wouldn't be smart.

It just occurred to me what a terrible crime this is, the failure of adults to manage the government in a way that takes the concerns of the life of a child into account and looks only at a balance sheet, only at a quarterly earnings statement—maybe the longest term that they look at it is an annual financial report—and wouldn't consider the fact that the result would be to have a young 8- or 9-year-old boy say to himself, ''I am afraid I won't be smart.''

What does that do to that kid's hopes for himself, whether the cognitive, behavioral, or developmental impact of lead would have any substantial effect on him or her, kids that are in Flint? The fact that the lack of action by the government gives them doubt about their own future, doubt about their own capacity is just heartbreaking.

Mr. GARAMENDI. Mr. KILDEE, thank you very, very much.

''I am afraid I won't be smart enough.'' I wonder if we should ask ourselves if we are smart enough. Are we smart enough? There are 435 of us facing a myriad of questions around this world and some of them in our own hometowns. Are we smart enough?

Mr. Speaker, I yield back the balance of my time.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Ms. KAPTUR (at the request of Ms. PELOSI) for February 1 on account of travel delay.

ADJOURNMENT

Mr. GARAMENDI. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 7 o'clock and 44 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, February 3, 2016, at 10 a.m. for morning-hour debate.

EXPENDITURE REPORTS CONCERNING OFFICIAL FOREIGN TRAVEL

Reports concerning the foreign currencies and U.S. dollars utilized for Official Foreign Travel during the fourth quarter of 2015, pursuant to Public Law 95–384, are as follows:

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE BUDGET, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES											
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. TOM PRICE, Chairman, Jan. 5, 2016.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ETHICS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES											
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. CHARLES W. DENT, Chairman, Jan. 11, 2016.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE JUDICIARY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Bob Goodlatte	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Hon. Hank Johnson	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Hon. Sheila Jackson Lee	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Shelley Husband	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Joe Keeley	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Stephanie Gadbois	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Peter Larkin	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
John Manning	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
James Park	10/9	10/19	Vietnam, Singapore, Malaysia, Philippines.		644.00		(3)		1,269.00		1,913.00
Hon. Steve King	11/5	11/13	Serbia, Iraq, Turkey, Sweden, Hungary		696.00		15,485.60		1,177.45		17,359.05
Hon. Bob Goodlatte	10/24	10/25	Haiti		111.00		938.43		150.00		1,199.43
Hon. John Conyers	10/24	10/26	Haiti		222.00		770.10		300.00		1,292.10
Tracy Short	10/24	10/26	Haiti		222.00		770.10		300.00		1,292.10
Lindsay Yates	10/24	10/26	Haiti		222.00		735.10		300.00		1,257.10
Keenan Keller	10/24	10/26	Haiti		222.00		770.10		300.00		1,292.10

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE JUDICIARY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Cynthia Martin	10/24	10/26	Haiti		222.00		770.10		300.00		1,292.10
Committee total					7,713.00		20,239.53		14,248.45		42,200.98

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. BOB GOODLATTE, Chairman, Jan. 22, 2016.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON NATURAL RESOURCES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES											
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. ROB BISHOP, Chairman, Jan. 7. 2016.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES											
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. LAMAR SMITH, Chairman, Jan. 6, 2016.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, JOINT COMMITTEE ON TAXATION, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES											
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

SEN. ORRIN G. HATCH, Chairman, Jan. 12, 2016.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

4164. A letter from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting the Department's direct final rule — Black Stem Rust; Additions of Rust-Resistant Species and Varieties [Docket No.: APHIS-2015-0079] received January 28, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

4165. A letter from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting the Department's affirmation of interim final rule — Lacey Act Implementation Plan; Definitions for Exempt and Regulated Articles [Docket No.: APHIS-2009-0018] (RIN: 0579-AD11) received January 28, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

4166. A letter from the Management and Program Analyst, ORMS, D & R, Forest Service, Department of Agriculture, transmitting the Department's final rule — Stewardship End Result Contracting Projects (RIN: 0596-AD25) received January 28, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

4167. A letter from the Acting Secretary of the Army, Department of Defense, transmitting the Army's report on gifts made for the benefit of U.S. Military Academy Army Band for FY 2015, pursuant to 10 U.S.C. 974(d)(3); 113-66, Sec. 351; (127 Stat. 741); to the Committee on Armed Services.

4168. A letter from the Director, Office of Financial Research, Department of the Treasury, transmitting the Office's 2015 Annual Report to Congress, pursuant to 12 U.S.C. 5344(d); Public Law 111-203, Sec. 154(d); (124 Stat. 1418); to the Committee on Financial Services.

4169. A letter from the Associate General Counsel for Legislation and Regulations, Office of the Deputy Secretary, Department of Housing and Urban Development, transmitting the Department's final rule — Federal Housing Administration (FHA): Removal of 24 CFR 280--Nehemiah Housing Opportunity Grants Program [Docket No.: FR-5878-F-01] (RIN: 2502-AJ31) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

4170. A letter from the PRAO Branch Chief, Food and Nutrition Service, Department of Agriculture, transmitting the Department's final rule — Supplemental Nutrition Assistance Program: Review of Major Changes in Program Design and Management Evaluation Systems [FNS-2011-0035] (RIN: 0584-AD86) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

4171. A letter from the General Counsel, Pension Benefit Guaranty Corporation, transmitting the Corporation's final rule — Allocation of Assets in Single-Employer Plans; Interest Assumptions for Valuing Benefits received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

4172. A letter from the General Counsel, Pension Benefit Guaranty Corporation, transmitting the Corporation's final rule — Partitions of Eligible Multiemployer Plans (RIN: 1212-AB29) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

4173. A letter from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting the Department's final rule — Energy Conservation Program: Test Procedure for Pumps [Docket No.: EERE-2013-BT-TP-0055] (RIN: 1905-AD50) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

4174. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's final rule — Medical Examination of Aliens —— Revisions to Medical Screening Process [Docket No.: CDC-2015-0045] (RIN: 0920-AA28) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

4175. A letter from the Chief Counsel, National Telecommunications and Information Administration, Department of Commerce, transmitting the Department's final rule — Amendments to 47 CFR Part 301 to Implement Certain Provisions of the Spectrum Pipeline Act [Docket No.: 160108022-6022-01] (RIN: 0660-AA31) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

4176. A letter from the Secretary, Department of Commerce, transmitting a report certifying that the export of the listed items to the People's Republic of China is not detrimental to the U.S. space launch industry, pursuant to 22 U.S.C. 2778 note; Public Law 105-261, Sec. 1512 (as amended by Public Law 105-277, Sec. 146); (112 Stat. 2174); to the Committee on Foreign Affairs.

4177. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to transnational criminal organizations that was declared in Executive Order 13581 of July 24, 2011, pursuant to 50 U.S.C. 1641(c); Public Law 94-412, Sec. 401(c); (90 Stat. 1257) and 50 U.S.C. 1703(c); Public Law 95-223, Sec 204(c); (91 Stat. 1627); to the Committee on Foreign Affairs.

4178. A letter from the Secretary, Department of Commerce, transmitting the Department's 2016 Report to Congress on Foreign Policy-Based Export Controls, pursuant to 50 U.S.C. app. 4605(f)(2); Public Law 96-72, Sec. 6(f)(2) (as amended by Public Law 99-64, Sec. 108(e)); (99 Stat. 133); to the Committee on Foreign Affairs.

4179. A letter from the Executive Director, Mississippi River Commission, Department of the Army, Department of Defense, transmitting the Department's Annual Report for the Mississippi River Commission for calendar year 2015, pursuant to 5 U.S.C. 552b(j); Public Law 94-409, Sec. 3(a); (90 Stat. 1241); to the Committee on Oversight and Government Reform.

4180. A letter from the Assistant Administrator for Fisheries, NMFS, Office of Sustainable Fisheries, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Establish a Single Small Business Size Standard for Commercial Fishing Businesses [Docket No.: 150227193-5999-02] (RIN: 0648-BE92) received January 29, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Natural Resources.

4181. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, Office of Sustainable Fisheries, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — International Fisheries; Pacific Tuna Fisheries; Vessel Register Required Information, International Maritime Organization Numbering Scheme [Docket No.: 150902807-5999-02] (RIN: 0648-BE99) received January 29, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Natural Resources.

4182. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, Office of Sustainable Fisheries, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; Seabird Avoidance Measures [Docket No.: 140214140-5999-01] (RIN: 0648-BD92) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Natural Resources.

4183. A letter from the Secretary, Federal Trade Commission, transmitting the Commission's Report to Congress on the Pandemic and All-Hazards Preparedness Act's usage of the Act's Antitrust Laws Exemption, pursuant to 42 U.S.C. 247d-6a note; Public Law 109-417, Sec. 405(a)(8); (120 Stat. 2877); to the Committee on the Judiciary.

4184. A letter from the Chair, United States Sentencing Commission, transmitting the Commission's amendment to the federal sentencing guidelines, policy statements, and official commentary, together with the reason for amendment, pursuant to 28 U.S.C. 994(o); to the Committee on the Judiciary.

4185. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Prohibition Against Certain Flights in Specified Areas of the Sanaa (OYSC) Flight Information Region (FIR) [Docket No.: FAA-2015-8672; Amdt. No.: 91-340] (RIN: 2120-AK72) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4186. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Prohibition Against Certain Flights in the Territory and Airspace of Somalia [Docket No.: FAA-2007-27602; Amdt. No.: 91-339] (RIN: 2120-AK75) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4187. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Establishment of Class E Airspace; Los Angeles, CA [Docket No.: FAA-2015-1139; Airspace Docket No.: 15-AWP-4] received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4188. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Sikorsky Aircraft Corporation Helicopters [Docket No.: FAA-2014-0335; Directorate Identifier 2013-SW-021-AD; Amendment 39-18358; AD 2015-26-10] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4189. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Airplanes [Docket No.: FAA-2014-0648; Directorate Identifier 2013-NM-136-AD; Amendment 39-18344; AD 2015-25-06] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4190. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Alpha Aviation Concept Limited Airplanes [Docket No.: FAA-2015-3956; Directorate Identifier 2015-CE-032-AD; Amendment 39-18345; AD 2015-25-07] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4191. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Helicopters [Docket No.: FAA-2015-2714; Directorate Identifier 2014-SW-052-AD; Amendment 39-18349; AD 2015-26-01] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4192. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Bombardier, Inc. Airplanes [Docket No.: FAA-2015-1199; Directorate Identifier 2014-NM-008-AD; Amendment 39-18351; AD 2015-26-03] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4193. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Airplanes [Docket No.: FAA-2015-0076; Directorate Identifier 2013-NM-246-AD; Amendment 39-18350; AD 2015-26-02] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4194. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Airplanes [Docket No.: FAA-2015-0083; Directorate Identifier 2014-NM-131-AD; Amendment 39-18347; AD 2015-25-09] (RIN: 2120-AA64) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4195. A letter from the Senior Regulations Analyst, Federal Motor Carrier Safety Administration, MC-PRR, Department of Transportation, transmitting the Department's final rule — Electronic Logging Devices and Hours of Service Supporting Documents [Docket No.: FMCSA-2010-0167] (RIN: 2126-AB20) received January 28, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

4196. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's final rule — Temporary Assistance for Needy Families (TANF) Program, State Reporting On Policies and Practices To Prevent Use of TANF Funds in Electronic Benefit Transfer Transactions in Specified Locations (RIN: 0970-AC56) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

4197. A letter from the Chief, Publications and Regulations Branch, Internal Revenue

Service, transmitting the Service's IRB only rule — Revenue Procedure: Update of CC: International No-Rule Revenue Procedure 2015-7 (Rev. Proc. 2016-7) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

4198. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Revenue Procedure 2016-6 (Rev. Proc. 2016-6) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

4199. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Revenue Procedure 2016-4 (Rev. Proc. 2016-4) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

4200. A letter from the Administrator, Transportation Security Administration, Department of Homeland Security, transmitting the Administration's certification that the level of screening services and protection services at the Punta Gorda Airport in Florida will be equal to or greater than the level that would be provided at the airport by TSA Transportation Security Officers, pursuant to 49 U.S.C. 44920(d)(1); Public Law 107-71, Sec. 108(a); (115 Stat. 613); to the Committee on Homeland Security.

4201. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's Major final rule — Medicaid Program; Covered Outpatient Drugs [CMS-2345-FC] (RIN: 0938-AQ41) received January 27, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); jointly to the Committees on Energy and Commerce and Ways and Means.

4202. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's Major final rule — Medicaid Program; Face-to-Face Requirements for Home Health Services; Policy Changes and Clarifications Related to Home Health [CMS-2348-F] (RIN: 0938-AQ36) received January 28, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); jointly to the Committees on Ways and Means and Energy and Commerce.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. SMITH of Texas: Committee on Science, Space, and Technology. H.R. 3293. A bill to provide for greater accountability in Federal funding for scientific research, to promote the progress of science in the United States that serves that national interest (Rept. 114–412). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 2017. A bill to amend the Federal Food, Drug, and Cosmetic Act to improve and clarify certain disclosure requirements for restaurants and similar retail food establishments, and to amend the authority to bring proceedings under section 403A; with an amendment (Rept. 114–413). Referred to the Committee of the Whole House on the state of the Union.

Mr. STIVERS: Committee on Rules. House Resolution 595. Resolution providing for consideration of the bill (H.R. 1675) to direct the Securities and Exchange Commission to revise its rules so as to increase the threshold amount for requiring issuers to provide certain disclosures relating to compensatory benefit plans, and providing for consideration of the bill (H.R. 766) to provide requirements for the appropriate Federal banking agencies when requesting or ordering a depository institution to terminate a specific customer account, to provide for additional requirements related to subpoenas issued under the Financial Institutions Reform, Recovery, and Enforcement Act of 1989, and for other purposes (Rept. 114–414). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. EMMER of Minnesota (for himself, Mr. WALZ, Mr. KLINE, Mr. PAULSEN, Ms. MCCOLLUM, Mr. ELLISON, Mr. PETERSON, and Mr. NOLAN):

H.R. 4425. A bill to designate the facility of the United States Postal Service located at 110 East Powerhouse Road in Collegeville, Minnesota, as the ''Eugene J. McCarthy Post Office''; to the Committee on Oversight and Government Reform.

By Mr. MEADOWS:

H.R. 4426. A bill to expand school choice in the District of Columbia; to the Committee on Oversight and Government Reform.

By Mr. POMPEO (for himself, Mr. HUDSON, and Mr. MULLIN):

H.R. 4427. A bill to amend section 203 of the Federal Power Act; to the Committee on Energy and Commerce.

By Mrs. BLACK (for herself, Ms. SEWELL of Alabama, Mr. ROE of Tennessee, Mr. DUNCAN of Tennessee, Mr. FLEISCHMANN, Mr. DESJARLAIS, Mr. COOPER, Mrs. BLACKBURN, Mr. FINCHER, Mr. COHEN, Mr. BYRNE, Mrs. ROBY, Mr. ROGERS of Alabama, Mr. ADERHOLT, Mr. BROOKS of Alabama, Mr. DAVID SCOTT of Georgia, Mr. GRIFFITH, Mr. WESTERMAN, Mr. CRAWFORD, Mr. HILL, Mr. WOMACK, Mr. BISHOP of Georgia, Mr. PALMER, Mr. VELA, Mr. WHITFIELD, Mr. HARPER, Mr. BOUSTANY, Mr. RICHMOND, Mr. ALLEN, Mr. GUTHRIE, Mr. CARTER of Georgia, and Mr. HINOJOSA):

H.R. 4428. A bill to amend title XVIII of the Social Security Act to ensure fairness in Medicare hospital payments by establishing a floor for the area wage index applied with respect to certain hospitals; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KNIGHT:

H.R. 4429. A bill to amend title 49, United States Code, to direct the Secretary of Transportation to issue minimum uniform safety standards for underground natural gas storage facilities, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. TITUS (for herself, Mrs. COMSTOCK, Ms. HAHN, and Mr. HUFFMAN):

H.R. 4430. A bill to amend title 49, United States Code, to include training for certain employees of air carriers to combat human trafficking, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BLUMENAUER:

H.R. 4431. A bill to direct the Attorney General to reimburse State and local law enforcement agencies for costs incurred in carrying out law enforcement activities associated with the armed occupation of the Malheur National Wildlife Refuge, and for other purposes; to the Committee on the Judiciary.

By Mr. BLUMENAUER:

H.R. 4432. A bill to establish an interim rule for the operation of small unmanned aircraft for commercial purposes, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. DUCKWORTH (for herself, Mr. BERA, Mr. GARAMENDI, Mr. HONDA, Mr. KEATING, Ms. LEE, Ms. NORTON, Mr. POCAN, Mr. RUSH, Mr. RYAN of Ohio, Mr. TAKAI, Mr. TONKO, Mr. VAN HOLLEN, Mr. CONYERS, and Mr. MCDERMOTT):

H.R. 4433. A bill to amend the Higher Education Act of 1965 to increase the income protection allowances; to the Committee on Education and the Workforce.

By Mr. GIBSON (for himself, Mr. ENGEL, Mr. TONKO, and Mr. COLLINS of New York):

H.R. 4434. A bill to extend the deadline for commencement of construction of a hydroelectric project; to the Committee on Energy and Commerce.

By Mr. GENE GREEN of Texas (for himself, Ms. DEGETTE, Mr. KENNEDY, Ms. MATSUI, Mr. TONKO, and Mr. LOEBSACK):

H.R. 4435. A bill to improve access to mental health and substance use disorder prevention, treatment, crisis, and recovery services; to the Committee on Energy and Commerce, and in addition to the Committees on the Judiciary, Ways and Means, Education and the Workforce, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. HASTINGS (for himself, Mr. DIAZ-BALART, and Mr. CLAWSON of Florida):

H.R. 4436. A bill to amend the Water Resources Development Act of 2000 to provide for expedited project implementation relating to the comprehensive Everglades restoration plan; to the Committee on Transportation and Infrastructure.

By Mr. MILLER of Florida (for himself and Ms. BROWN of Florida):

H.R. 4437. A bill to extend the deadline for the submittal of the final report required by the Commission on Care; to the Committee on Veterans' Affairs.

By Mrs. MILLER of Michigan:

H.R. 4438. A bill making emergency supplemental appropriations to the Environmental Protection Agency to assist the State of Michigan and its residents impacted by the contaminated water crisis; to the Committee on Appropriations, and in addition to the Committee on the Budget, for a period to be subsequently determined by the Speaker, in

each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. NORTON:

H.R. 4439. A bill to amend title 40, United States Code, to require that certain public buildings contain a lactation room for public use, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. POMPEO:

H.R. 4440. A bill to amend the Act entitled ''An Act to provide for the construction of the Cheney division, Wichita Federal reclamation project, Kansas, and for other purposes'' to extend the authority of the Secretary of the Interior to carry out the Equus Beds Division of the Wichita Project; to the Committee on Natural Resources.

By Mr. AL GREEN of Texas (for himself, Ms. ADAMS, Ms. BASS, Mr. BISHOP of Georgia, Mr. CARSON of Indiana, Mr. FATTAH, Ms. FUDGE, Ms. JACKSON LEE, Mr. JEFFRIES, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. LEWIS, Mr. MEEKS, Ms. MOORE, Mr. RANGEL, Mr. RUSH, Mr. SCOTT of Virginia, Ms. WILSON of Florida, Mr. BUTTERFIELD, Ms. CLARKE of New York, Ms. LEE, Ms. MAXINE WATERS of California, Ms. BROWN of Florida, and Mr. DANNY K. DAVIS of Illinois):

H. Con. Res. 110. Concurrent resolution honoring and praising the National Association for the Advancement of Colored People on the occasion of its 107th anniversary; to the Committee on the Judiciary.

By Mr. MEEHAN (for himself, Mr. ISRAEL, and Mr. DEUTCH):

H. Con. Res. 111. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony as part of the commemoration of the days of remembrance of victims of the Holocaust; to the Committee on House Administration.

By Mr. BRADY of Pennsylvania:

H. Res. 596. A resolution recognizing the 146th anniversary of the ratification of the 15th amendment to the Constitution of the United States; to the Committee on the Judiciary.

By Mr. AL GREEN of Texas (for himself, Ms. ADAMS, Ms. BASS, Mr. BISHOP of Georgia, Mr. CARSON of Indiana, Mr. FATTAH, Ms. FUDGE, Ms. JACKSON LEE, Mr. JEFFRIES, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. LEWIS, Mr. MEEKS, Ms. MOORE, Mr. RANGEL, Mr. RUSH, Mr. SCOTT of Virginia, Ms. WILSON of Florida, Mr. BUTTERFIELD, Ms. CLARKE of New York, Ms. LEE, Ms. MAXINE WATERS of California, Ms. BROWN of Florida, and Mr. DANNY K. DAVIS of Illinois):

H. Res. 597. A resolution recognizing the significance of Black History Month; to the Committee on Education and the Workforce.

By Mr. RYAN of Ohio:

H. Res. 598. A resolution congratulating the University of Mount Union football team for winning the 2015 National Collegiate Athletic Association Division III Football Championship; to the Committee on Education and the Workforce.

By Ms. WILSON of Florida (for herself, Ms. ADAMS, Mr. CÁRDENAS, Mr. CARSON of Indiana, Ms. CLARK of Massachusetts, Ms. CLARKE of New York, Mr. CONYERS, Mr. DANNY K. DAVIS of Illinois, Mr. DESAULNIER, Mr. FATTAH, Ms. FUDGE, Mr. GRIJALVA, Mr. HONDA, Ms. JACKSON LEE, Mr. LARSEN of Washington, Ms. LEE, Ms. NORTON, Mr. POCAN, Mr. RANGEL, Mr. SCHIFF, and Mr. VAN HOLLEN):

H. Res. 599. A resolution recognizing January 2016 as ''National Mentoring Month'', and for other purposes; to the Committee on Education and the Workforce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. EMMER of Minnesota:

H.R. 4425.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress in Article I, Section 8, Clause 7: ''The Congress shall have Power . . . To establish Post Offices and post roads''

By Mr. MEADOWS:

H.R. 4426.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution.

By Mr. POMPEO:

H.R. 4427.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mrs. BLACK:

H.R. 4428.

Congress has the power to enact this legislation pursuant to the following:

United States Constitution Article I Section 8

By Mr. KNIGHT:

H.R. 4429.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Ms. TITUS:

H.R. 4430.

Congress has the power to enact this legislation pursuant to the following:

Amendment XIII

Section 1, ''Neither slavery nor involuntary servitude, except as punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.''

Section 2, ''Congress shall have power to enforce this article by appropriate legislation.''

By Mr. BLUMENAUER:

H.R. 4431.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

By Mr. BLUMENAUER:

H.R. 4432.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the U.S. Constitution (the ''Commerce Clause'')

By Ms. DUCKWORTH:

H.R. 4433.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution

By Mr. GIBSON:

H.R. 4434.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18 of the United States Constitution

By Mr. GENE GREEN of Texas:

H.R. 4435.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the Constitution.

By Mr. HASTINGS:

H.R. 4436.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. MILLER of Florida:

H.R. 4437.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mrs. MILLER of Michigan:

H.R. 4438.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 9, clause 7 and Article I, section 8 of the Constitution of the United States.

By Ms. NORTON:

H.R. 4439.

Congress has the power to enact this legislation pursuant to the following:

clause 18 of section 8 of article I of the Constitution.

By Mr. POMPEO:

H.R. 4440.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 27: Mr. GOHMERT.

H.R. 188: Mr. CUMMINGS, Mr. GRAYSON, Mrs. NAPOLITANO, and Ms. VELÁZQUEZ.

H.R. 267: Mr. ELLISON.

H.R. 317: Mr. HINOJOSA.

H.R. 546: Mr. HIMES, Mrs. ELLMERS of North Carolina, Mr. LAHOOD, and Mr. BOST.

H.R. 556: Mr. CRAMER.

H.R. 592: Mr. COOK and Mr. MICA.

H.R. 624: Mr. DEFAZIO.

H.R. 711: Mr. SHUSTER, Mr. HASTINGS, Mrs. COMSTOCK, Mr. YOUNG of Iowa, and Mrs. BLACK.

H.R. 775: Mr. COFFMAN, Mr. HANNA, Mr. HUNTER, Ms. ROYBAL-ALLARD, and Mr. CRAMER.

H.R. 812: Mr. NEWHOUSE.

H.R. 814: Mr. DENT, Mr. FRANKS of Arizona, and Mr. MICA.

H.R. 842: Mr. CICILLINE.

H.R. 846: Mr. ASHFORD.

H.R. 868: Ms. MCSALLY.

H.R. 911: Mr. RIBBLE.

H.R. 921: Mr. SIRES, Mr. LAMBORN, Mrs. NAPOLITANO, and Mr. LATTA.

H.R. 939: Ms. MOORE, Mr. POCAN, Mr. HONDA, and Mr. RANGEL.

H.R. 973: Mr. KINZINGER of Illinois.

H.R. 997: Mr. TIBERI.

H.R. 1062: Mr. BRIDENSTINE, Mr. MARINO, and Mr. PALAZZO.

H.R. 1086: Mr. COLLINS of New York.

H.R. 1209: Mr. JEFFRIES.

H.R. 1218: Mr. QUIGLEY.

H.R. 1221: Ms. NORTON.

H.R. 1233: Mrs. ELLMERS of North Carolina and Mr. MEADOWS.

H.R. 1258: Ms. BROWN of Florida.

H.R. 1343: Mr. SCHIFF.

H.R. 1397: Mr. CARTER of Georgia.

H.R. 1399: Ms. TITUS.

H.R. 1459: Ms. EDWARDS.

H.R. 1475: Mr. BYRNE, Mr. NEAL, and Mrs. CAPPS.

H.R. 1486: Mr. YOHO, Mr. ROHRABACHER, Mr. RIBBLE, Mr. RICE of South Carolina, Mrs. LOVE, Mr. THOMPSON of Pennsylvania, Mr. WALDEN, Mr. EMMER of Minnesota, Mr. TOM PRICE of Georgia, Mr. ROKITA, Mr. KELLY of Pennsylvania, Mrs. WALORSKI, Mr. HURT of Virginia, and Mr. GRAVES of Louisiana.

H.R. 1492: Mr. GRIJALVA and Ms. CLARKE of New York.

H.R. 1550: Mrs. KIRKPATRICK.

H.R. 1552: Mr. ISRAEL.

H.R. 1572: Mr. FLEMING.
H.R. 1594: Ms. JACKSON LEE.
H.R. 1769: Ms. LORETTA SANCHEZ of California, Ms. WASSERMAN SCHULTZ, Mr. JOHNSON of Georgia, Ms. SPEIER, Mr. PASCRELL, Mr. CÁRDENAS, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. DOGGETT, Mr. LOWENTHAL, and Mr. SIRES.
H.R. 1781: Mrs. BEATTY and Mr. NOLAN.
H.R. 1784: Mr. LAHOOD.
H.R. 1887: Mr. BLUMENAUER, Mr. MEEKS, and Ms. MENG.
H.R. 1977: Mr. SERRANO.
H.R. 2090: Mr. SWALWELL of California and Mr. JEFFRIES.
H.R. 2125: Mr. SEAN PATRICK MALONEY of New York and Mr. POCAN.
H.R. 2144: Mr. KINZINGER of Illinois.
H.R. 2150: Mr. DAVID SCOTT of Georgia.
H.R. 2170: Mr. DEUTCH.
H.R. 2191: Ms. CASTOR of Florida.
H.R. 2197: Mr. ASHFORD.
H.R. 2215: Mrs. KIRKPATRICK.
H.R. 2224: Ms. ESHOO and Ms. TITUS.
H.R. 2237: Ms. BORDALLO.
H.R. 2264: Mr. BISHOP of Georgia, Mr. SEAN PATRICK MALONEY of New York, Mr. LUETKEMEYER, Ms. SPEIER, Mr. ISRAEL, Mr. ROYCE, Mr. HECK of Nevada, and Mr. BISHOP of Utah.
H.R. 2293: Ms. HAHN, Mr. WILLIAMS, Ms. ADAMS, Ms. LORETTA SANCHEZ of California, Mr. REICHERT, Mr. TAKAI, Mr. DOGGETT, Mr. CRENSHAW, Mr. PITTENGER, Mr. ROYCE, and Mr. KLINE.
H.R. 2342: Ms. SPEIER and Mr. ISRAEL.
H.R. 2404: Mr. COSTA, Mr. DAVID SCOTT of Georgia, Ms. LEE, and Mr. HONDA.
H.R. 2411: Ms. KAPTUR, Mr. LOEBSACK, Ms. WASSERMAN SCHULTZ, and Mr. CICILLINE.
H.R. 2430: Mrs. WATSON COLEMAN, Ms. CLARKE of New York, and Mr. RUSH.
H.R. 2450: Mr. KENNEDY.
H.R. 2460: Mr. SEAN PATRICK MALONEY of New York.
H.R. 2509: Mr. WEBSTER of Florida.
H.R. 2515: Mr. CRAMER, Mr. KING of New York, and Mr. HARPER.
H.R. 2520: Mr. JOLLY and Mr. AMODEI.
H.R. 2521: Mr. AL GREEN of Texas and Mr. COHEN.
H.R. 2590: Mr. RYAN of Ohio.
H.R. 2597: Mr. POLIS.
H.R. 2622: Ms. LOFGREN.
H.R. 2635: Mr. MURPHY of Florida.
H.R. 2651: Mr. HECK of Washington.
H.R. 2663: Mrs. NAPOLITANO and Mr. PETERSON.
H.R. 2737: Mr. GRAYSON and Mr. RICHMOND.
H.R. 2752: Mr. KLINE, Mr. ZELDIN, and Mr. FITZPATRICK.
H.R. 2775: Ms. JUDY CHU of California.
H.R. 2799: Mr. MARCHANT.
H.R. 2802: Mr. ROGERS of Kentucky.
H.R. 2805: Mr. LEVIN and Mr. RENACCI.
H.R. 2894: Mr. JONES.
H.R. 2911: Mr. SMITH of Missouri.
H.R. 3053: Mr. HARRIS.
H.R. 3099: Mr. BRADY of Pennsylvania and Miss RICE of New York.
H.R. 3159: Mr. KING of New York.
H.R. 3209: Mr. HASTINGS.
H.R. 3229: Ms. MCSALLY.
H.R. 3289: Mr. HUFFMAN.
H.R. 3299: Mr. HASTINGS and Mr. KINZINGER of Illinois.
H.R. 3339: Ms. DEGETTE and Mr. DEFAZIO.
H.R. 3381: Mr. KENNEDY, Ms. DELBENE, and Mr. COLLINS of New York.
H.R. 3399: Mr. BUTTERFIELD, Mr. CÁRDENAS, Mr. NADLER, Mr. ELLISON, and Mr. SCHIFF.
H.R. 3434: Mr. WITTMAN.
H.R. 3484: Mr. SHERMAN.
H.R. 3514: Mrs. BEATTY.
H.R. 3516: Mr. ABRAHAM.
H.R. 3528: Mr. MCGOVERN.
H.R. 3539: Mr. GRIJALVA.
H.R. 3648: Ms. PINGREE and Ms. LOFGREN.
H.R. 3684: Mr. TAKAI and Ms. KAPTUR.
H.R. 3739: Mr. ASHFORD.
H.R. 3741: Mr. VARGAS.
H.R. 3779: Mr. LATTA.
H.R. 3797: Mr. MURPHY of Pennsylvania.
H.R. 3808: Mr. GUINTA.
H.R. 3880: Mr. GOODLATTE.
H.R. 3917: Mr. WALZ, Ms. DUCKWORTH, Mr. DAVID SCOTT of Georgia, and Ms. NORTON.
H.R. 3936: Mrs. WALORSKI.
H.R. 3952: Mrs. MCMORRIS RODGERS and Mr. COLLINS of New York.
H.R. 3957: Mr. DESANTIS.
H.R. 3965: Mrs. DAVIS of California.
H.R. 3982: Mr. CARTWRIGHT.
H.R. 4013: Mr. CICILLINE and Mr. RYAN of Ohio.
H.R. 4063: Ms. LOFGREN.
H.R. 4069: Mr. RANGEL.
H.R. 4116: Mr. MULVANEY, Mr. LUETKEMEYER, and Mr. HECK of Washington.
H.R. 4146: Mr. RYAN of Ohio.
H.R. 4147: Mr. RYAN of Ohio.
H.R. 4153: Mr. COSTELLO of Pennsylvania.
H.R. 4164: Mr. LATTA.
H.R. 4167: Mr. OLSON and Mr. O'ROURKE.
H.R. 4177: Mr. SANFORD and Mr. HARPER.
H.R. 4207: Mr. THOMPSON of Mississippi and Mr. HONDA.
H.R. 4216: Mr. TIBERI, Mr. HASTINGS, and Mr. MICHAEL F. DOYLE of Pennsylvania.
H.R. 4223: Mr. RANGEL.
H.R. 4230: Mr. SCOTT of Virginia and Ms. TITUS.
H.R. 4235: Ms. FUDGE.
H.R. 4247: Mr. KATKO.
H.R. 4249: Mr. CUMMINGS and Mr. TAKANO.
H.R. 4251: Mr. HUELSKAMP, Mr. WALZ, and Mr. ABRAHAM.
H.R. 4279: Mr. JOYCE.
H.R. 4281: Ms. GABBARD, Mr. HILL, and Mr. GOHMERT.
H.R. 4285: Mr. GOHMERT.
H.R. 4293: Mr. HOLDING and Mr. RENACCI.
H.R. 4294: Mr. HOLDING, Mr. RENACCI, and Ms. JENKINS of Kansas.
H.R. 4300: Mr. SANFORD.
H.R. 4313: Mr. FRANKS of Arizona.
H.R. 4336: Mr. LUETKEMEYER, Mrs. KIRKPATRICK, Mr. KLINE, Mr. HULTGREN, and Mr. BABIN.
H.R. 4362: Mr. BRAT.
H.R. 4365: Mr. BLUMENAUER.
H.R. 4371: Mr. GOSAR, Mr. DUNCAN of South Carolina, Mr. MEADOWS, Mr. GROTHMAN, Mr. LOUDERMILK, Mr. SESSIONS, Mr. SALMON, and Mr. STUTZMAN.
H.R. 4376: Mr. JEFFRIES, Mr. POCAN, and Mr. TAKANO.
H.R. 4380: Mr. MOULTON, Ms. NORTON, and Mrs. CAROLYN B. MALONEY of New York.
H.R. 4389: Mr. POCAN and Mr. POLIS.
H.R. 4399: Mr. ELLISON, Ms. ESHOO, and Mr. HONDA.
H.R. 4400: Ms. LEE.
H.R. 4405: Mr. LANGEVIN.
H.J. Res. 55: Mr. ZELDIN.
H. Res. 112: Mrs. NAPOLITANO.
H. Res. 207: Mr. LARSON of Connecticut and Mr. BLUM.
H. Res. 393: Mr. RUIZ.
H. Res. 451: Mr. SESSIONS.
H. Res. 540: Ms. LOFGREN and Mr. KEATING.
H. Res. 541: Mr. QUIGLEY.
H. Res. 548: Mr. KILMER.
H. Res. 551: Ms. ROS-LEHTINEN.
H. Res. 561: Mr. SCHIFF.
H. Res. 569: Ms. HAHN and Mr. LEWIS.
H. Res. 571: Mr. COOK, Mr. BYRNE, Mr. DESANTIS, and Mr. RENACCI.
H. Res. 575: Mr. POLIS, Ms. LOFGREN, Mr. MCGOVERN, Mr. LEVIN, Ms. SLAUGHTER, Mr. GUTIÉRREZ, and Mr. DESAULNIER.
H. Res. 584: Mr. MCGOVERN.
H. Res. 585: Mr. BRAT, Ms. KAPTUR, and Mr. HUDSON.
H. Res. 589: Mr. SCOTT of Virginia and Mr. MEEKS.
H. Res. 590: Mr. MILLER of Florida.
H. Res. 592: Mr. CARTWRIGHT, Mr. HARRIS, and Mr. LAHOOD.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

The amendment to be offered by Representative SHERMAN (CA) or a designee to H.R. 766, the Financial Institution Customer Protection Act of 2015, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

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Vol. 162 WASHINGTON, TUESDAY, FEBRUARY 2, 2016 *No. 19*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Infinite Spirit, generous giver of life's joys, from Your vantage point of eternity, look afresh into our times. Teach our lawmakers to serve You as they should so that they will do what is best for our Nation and world. As they seek to do Your will, help them to see Your glorious image in humanity and search for opportunities to empower those on life's margins.

Lord, inspire our Senators to trust the unfolding of Your loving providence so that they will not become weary in doing what is right. May they live with such integrity that Your purposes will be accomplished on Earth. Remind us all that it is in giving that we receive and through dying to self that we are born to eternal life.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Ms. COLLINS). The Republican leader is recognized.

ENERGY POLICY MODERNIZATION BILL

Mr. MCCONNELL. Madam President, there are a lot of reasons to like the broad bipartisan Energy bill which is before us. You will like it if you are an American interested in producing more energy. You will like it if you are interested in paying less for energy. You will like it if you are an American interested in saving energy. There are a lot of important reasons to support the Energy Policy Modernization Act.

Here's another one. You will like it if you are an American interested in bolstering your country's long-term national security. That is always important, and Americans are telling us it is especially important today. They see our commanders, for instance, attempting to juggle myriad threats from across the globe with diminishing force structure. Well, if we are interested in improving our overall strategic position, then there are ways this broad bipartisan Energy bill can help.

First, the Energy Policy Modernization Act is designed to boost America's liquefied natural gas exports. That doesn't just hold potential for America's economy, it holds potential for America's global leadership, including the security of our allies. We know that Russia is the dominant supplier of natural gas to Western Europe, and we know that building America's own export capacity can enhance European energy security in the long run. So, in broad strokes, ''by increasing our ability to export natural gas—in the form of liquefied natural gas or LNG—to Europe, the U.S. can weaken Russia's strategic stronghold while boosting our domestic economy by increasing energy exports.'' That is how Congressman CALVERT, a Republican, and Congressman ISRAEL, a Democrat, put it in an op-ed they authored last year after returning from a trip to Ukraine.

Here is what a former Obama energy adviser wrote in November: ''Increased LNG trade can also enhance energy security for our allies,'' he said. ''[Russian state-owned energy giant] Gazprom's grip on Europe is weakening, and U.S. LNG will accelerate that shift even as Russia seeks to counter it. . . .''

Enhancing America's own export capacity is also important when you consider that Iran has just been freed from Western sanctions and is looking to expand its own trade in energy resources, including its natural gas potential. Robust LNG exports to Asia can also enhance America's stature there, too, and give our allies in the region a stable source of energy.

Boosting America's natural gas exports is one reason to support the bill, but here is another. The Energy Policy Modernization Act is designed to reduce our foreign reliance on minerals and raw materials needed for everything from military assets to smart phones.

We can strengthen American mineral security by developing our world-class American mineral base. The necessary modern policies can move us ahead, and this bill contains positive steps forward.

Here's what else this bill would do. The Energy Policy Modernization Act is designed to defend our national energy grid from terrorist cyber attacks. It would help prepare us by authorizing additional cyber security research, it would help deter attacks by erecting stronger cyber security defenses, and it would help provide for faster and more effective responses when threats do arise.

At the end of the day, here is what you can say about the Energy Policy Modernization Act. It aims to make America more secure in an era of insecurity. It aims to make America more prosperous in a time of economic uncertainty. It is a bipartisan bill that deserves to pass. It is great to see so many Republicans and Democrats in this Chamber who actually agree with that. It is great to see both sides working with the bill managers to process amendments and move this legislation along.

I ask Members to continue working in the same spirit of cooperation.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

FLINT, MICHIGAN, WATER CRISIS

Mr. REID. Madam President, in recent weeks the Nation has become concerned, afraid, and even outraged to learn that nearly 100,000 people who are residents of the city of Flint, MI, have been poisoned. About 9,000 of those poisoned are children under the age of 6 years.

Two years ago, in an effort to pinch pennies, an unelected emergency manager appointed by Governor Rick Snyder switched the water supply from the city of Flint, MI, water source to the Flint River. Water from the Flint River is contaminated with lead, bacteria that causes Legionnaires' disease, and lots of other bad things. As a result, the residents of Flint, MI, were forced to drink the water.

There is no trick photography here. This is a person in Flint, MI. You could go to any house you wanted to go to. This is the water that they were drinking and bathing in. It is hard to comprehend that this went on for such a long time.

Can you imagine taking a bath in this, brushing your teeth, or drinking it? How about bathing a new baby? This is your little bathtub.

Through no fault of their own, the people of Flint, MI, are being forced to endure a public health crisis that could have been avoided. This is a manmade crisis. We will never know the full extent of the damage to the people who live in Flint, MI—especially to the children. They have been harmed because they have been poisoned by the acts of the leadership in the State of Michigan, especially the Governor of the State of Michigan. The reckless decision to switch to unsafe drinking water was forced upon 100,000 people. These people in Flint, MI, are now exposed to water with high levels of lead—frighteningly high levels of lead—among other things. This is not just lead. There is bacteria, and they haven't determined the full extent of it. It is established.

I can remember when I first came to this body many, many years ago. I had the good fortune to chair a number of hearings in the environment committee dealing with lead poisoning.

At the time that we studied it, lead poisoning was lead that children ingested—children who lived in developments where there were large amounts of lead-based paint. The children who ate this lead—not on purpose—were not what they could have been. It affected their brains.

This lead in water, lead anyplace, affects the brain. It affects adults, too, but especially children. Lead causes serious problems for adults, as I mentioned, but it is especially dangerous for children, causing lifetime effects. You can't get well. They have a program where they try to take the blood out and run it through a purifier. It takes a long time, but there are no safe levels of lead for children.

After the city made this wrong decision to switch its water source, it was really very quickly that the citizens of Flint complained that the water was discolored, and it also smelled. Everyone began to develop rashes.

The response of State government was appalling. Rick Snyder, the Governor of Michigan, is one of those who berates government all the time. Emails released from his office just last week referred to a resident who said she was told by a State nurse in January 2015, a little over a year ago—she was complaining about her son's elevated blood levels. The nurse told this woman: It is just a few IQ points. It is not the end of the world.

Can you imagine a health care worker telling someone: It is your baby, but it is just a few IQ points. No big deal. It is not the end of the world. This was a State nurse.

The water was so poisonous that General Motors, the manufacturer of automobile parts there, stopped using the source for their Flint engine operations because the parts corroded during the manufacturing process. They had to stop using this water. People were still drinking this water and bathing in this water.

Despite overwhelming evidence that a city in his State had lead poisoning, Governor Snyder failed to act and protect the people of Flint. This went on for a long time.

As Flint struggles to recover from this terrible public health problem, an investigation will determine who exactly is to blame for this reckless decision. We know who caused the problem.

This was a manmade disaster, as I said earlier, but now we must act to protect the residents of Flint. This protection should start with repairs to their water infrastructure. Like many cities—and there are quite a few in the Midwest—Flint has lead pipes, but the highly corrosive nature of the Flint River damaged them. It ate away at the insides of those pipes. Now these lead pipes are leaching into the clean water supply from Lake Huron. It will cost over $1 billion to replace Flint's corroded water infrastructure.

The people in Flint, MI, are struggling. There has been money spent there. Flint had been doing quite well until this came along. There was a new vitality. But now people are afraid to eat in restaurants, and the businesses have been terribly damaged because people don't believe the water is pure. A lot of these restaurants, for example, put in their own water supply and water purification system, but people don't believe it. They are afraid.

We need this done now. The State and Federal Government must cooperate now to end this crisis, which requires that we make investments. I repeat: now.

President Obama has declared a state of emergency in Flint, MI, and given FEMA, the Federal Emergency Management Agency, the authority to provide resources for the people of Flint. The problem is that right now they are just getting bottled water. The infrastructure is so bad.

Governor Snyder has finally—finally—declared a state of emergency and finally apologized for his administration's slow response. The Governor's apology is too late. The residents of Flint have already been poisoned.

It is too bad the people on that side of the aisle disparage the government all the time. It is too intrusive. It is too involved. It is detrimental to our society.

The Governor of Michigan is one of the leading cheerleaders of that theory. He denigrates government every single chance he gets. But to whom does he turn when the State of Michigan is in trouble? To the Federal Government. When emergency strikes, the Federal Government steps in. That is one of the responsibilities we have to protect America.

So I hope Senate Republicans will support our efforts to protect the people of Flint in this time of need. Senator MURKOWSKI—the chair of that important committee that has jurisdiction of the bill that is before this body today—is working with Senator CANTWELL. They are committed to doing something to help in this. Let's make sure we support them.

Sadly, some of the same Republicans who have called for relief when their States faced natural disasters are disparaging government action in Flint. For example, last year, Texas was devastated with historic flooding. But who stepped in? It was the Federal Government that stepped in to provide disaster relief for the people of Texas.

That is why I was disappointed to see the senior Senator from Texas say: ''While we all have sympathy for what's happened in Flint, this is primarily a local and state responsibility.'' He didn't say that when the flooding was taking place in Texas.

Last year, as Florida was hit with extreme flooding, the junior Senator from Florida called for Federal disaster assistance. But when it comes to the children and families of Flint, the Senator, who finished third last night in the Iowa caucuses, cautions against any action. This is what he said about Flint: ''I believe the federal government's role in some of these things (is) largely limited unless it involves a federal jurisdictional issue.''

Well, the issue was that the State of Michigan didn't do what it was supposed to do.

The junior Senator from Florida is not alone. Republican Senators routinely rush to the floor to demand Federal aid when trouble hits their backyard. That is the right thing to do. Americans help each other in times of crisis.

This week the Senate has a chance to help the families suffering through a

public health crisis. I hope Republicans who have had difficulties in the past and have requested Federal aid for their States won't turn their backs on the people of Michigan.

If a Federal Government response is necessary for natural disasters, shouldn't the Federal Government help respond to these manmade disasters? The examples I gave in Texas and Florida were not manmade disasters; this is.

We remain committed to giving the people of Flint, MI, what they need during this crisis—help from the Federal Government to restore clean, safe water. But the Federal Government cannot do it all. The people of Flint, MI, should understand that the Governor of Michigan is costing them a lot of money, and it is going to cost the taxpayers of Michigan a lot more because the Federal Government cannot do it all.

Senator STABENOW and Senator PETERS have proposed an amendment to the bill before us that provides emergency relief to address the Flint water crisis. I support that. The people of Flint have been poisoned. We owe our fellow citizens swift action to address this medical emergency.

I urge my colleagues, especially my Republican friends, to support the Stabenow-Peters amendment to give the people of Flint the relief they so desperately need.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business until 11 a.m., with Senators permitted to speak therein for up to 10 minutes each.

The Senator from Utah.

ORDER OF PROCEDURE

Mrs. BOXER. Madam President, parliamentary inquiry.

The PRESIDING OFFICER. The Senator will state her parliamentary inquiry.

Mrs. BOXER. Yes, is it a fact that the Senator from Utah will have 10 minutes and then the floor will be open for other Senators at that time?

The PRESIDING OFFICER. The order for business is every Senator is entitled to speak for up to 10 minutes each until the hour of 11 a.m.

Mrs. BOXER. Well, that was my parliamentary inquiry. So each Senator has 10 minutes, and then at the expiration of 10 minutes, the floor would be open; is that correct?

The PRESIDING OFFICER. Absent any consent agreement to the contrary, the Senator is correct.

Mrs. BOXER. Thank you so much.

The PRESIDING OFFICER. The Senator from Utah.

JUDICIAL REDRESS ACT

Mr. HATCH. Madam President, I rise today to emphasize the importance of the Judicial Redress Act. This is a bill that the Senate Judiciary Committee favorably reported last week by an overwhelmingly bipartisan vote of 19 to 1.

As I speak, the Senate majority and minority leaders are in the process of clearing this legislation by unanimous consent. I am optimistic the Senate will pass the Judicial Redress Act in the coming days and that ultimately we will send this legislation to the President's desk.

I thank Senator CHRIS MURPHY for introducing this important bill with me and for the broad support we have built among both Republicans and Democrats.

I also wish to acknowledge the good work of Representatives JIM SENSENBRENNER and JOHN CONYERS for their efforts in the House. They have been stalwarts in advancing this important legislation in the House of Representatives. It has been a true bipartisan, bicameral event.

Simply stated, the Judicial Redress Act would extend certain data protections and remedies available to U.S. citizens under the Privacy Act to European citizens by allowing them to correct flawed information in their records and, in rare instances, the option to pursue legal remedies if Federal agencies improperly disclose their data.

Our legislation fights an inequity—a reciprocal benefit that has been withheld from our European allies with little justification. Cross-border data flows between the United States and Europe are the highest in the world. Today most countries in the European Union affirmatively provide data protection rights to Americans on European soil. Our European allies and their citizens should likewise have access to the core benefits of the Privacy Act when in the United States. It is the right and fair thing to do. Passing the Judicial Redress Act is critical to ratification of the Data Privacy and Protection Agreement, commonly called the ''umbrella agreement.'' This agreement allows for data transfers between European and American law enforcement officials for the purpose of fighting and investigating crime, including terrorism.

European officials have said they will not ratify the umbrella agreement until Congress provides EU citizens with limited judicial redress. Our bill is key to providing reciprocity to our European allies and will serve as the catalyst to finalizing the long-awaited data protection deal.

The U.S. Department of Justice, which supports this legislation, states that failure to finalize the umbrella agreement ''would dramatically reduce cooperation and significantly hinder counterterrorism efforts.'' Given the global state of affairs, we simply cannot risk losing the critical benefits of the umbrella agreement.

As chairman of the Senate Republican High-Tech Task Force, I am always seeking ways to keep our American technology industry at the forefront of the global economy. I am convinced that passing the Judicial Redress Act will build much needed good will with our European allies. We are currently negotiating a new safe harbor agreement—an international agreement that allows U.S. technology companies to move digital information between the European Union and the United States.

For years, safe harbor rules have benefited U.S. technology companies that provide cloud services to their European customers. Without a safe harbor agreement, however, U.S. cloud-based companies seeking to do business in Europe would be forced to negotiate with 28 individual countries in the European Union over how their citizens' data is collected and stored. Such a requirement would disrupt and chill transatlantic business operations, jeopardize countless American jobs, and stifle American domestic innovation.

Indeed, businesses of all sizes and in all sectors would face profound consequences if we do not conclude a new safe harbor agreement.

The economic damage would be significant and relatively immediate, and the consequences could be catastrophic, especially for small enterprises. Failure to reach an agreement would impact the economies of both the United States and our friends in the European Union.

If we are unable to reach a final safe harbor agreement soon, Congress must be prepared to take appropriate action to ensure that these negative consequences do not come to fruition.

In the meantime, it is critically important that Congress pass the Judicial Redress Act. I am pleased that the Senate is swiftly moving toward this end, and I am optimistic that we will have a successful resolution in the coming days.

I thank my colleagues on both sides of the floor for their support in this effort.

I yield the floor.

The PRESIDING OFFICER. The Senator from California.

Mrs. BOXER. Madam President, I ask unanimous consent that I be allowed to speak for up to 20 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

FLINT, MICHIGAN, WATER CRISIS AND ALISO CANYON NATURAL GAS LEAK

Mrs. BOXER. Madam President, I am on the floor to talk about a situation that is occurring in my home State with a leak—a natural gas leak that is

creating havoc in one of my communities. But before I do, I wish to comment on the issue that my Democratic leader talked about, which is the poisoning of children in Flint, MI, due to lead in the drinking water.

Maybe I am old-fashioned, but I believe that when you hurt a child, that is the lowest thing you can do. There is nothing lower in life than hurting an innocent child. That means if you abuse a child, if you taunt a child—but when you poison a child and their brain is damaged for the rest of their life—that is the lowest thing an adult can do. Any adult who knew that these children were being poisoned and looked the other way, in my view, is liable. You don't hurt a child. You don't hurt a child—let alone for life—and destroy their mind.

I know that Senators STABENOW and PETERS are working hard with the Republicans to come up with something to help the people there, and I hope that it will work out. I know that in my committee on the environment we have been working with them, along with Senator INHOFE, so we can do something. But it is after the fact. It is not as if you can make this damage go away.

What shocked me was that on the heels of this tragedy and travesty in Flint, MI, we were marking up a bill, and the Republicans, to a person, supported the ability of people spraying pesticides into drinking water not to have to get a permit anymore and to take away the authority of the EPA to require a permit if you are going to spray harmful pesticides with toxins into a drinking water supply.

This is what my Republican friends did in the environment committee. I think they ought to change the name of that committee to the pollution committee. What is that? In addition, the underlying bill says you can never regulate the lead in fishing tackle under TSCA. Lead. Hello? We now know what lead does when it gets into drinking water. If there are ways to have less toxic fishing tackle, shouldn't we try to make that happen if it is available?

So here we have a bill called the sportsmen's bill. Lots of things in there are wonderful and I support wholeheartedly, but now we are going to say you can never regulate the lead in fishing tackle under TSCA? Then you are going to say you don't need a permit to spray pesticides into a water supply? You have to be kidding.

We talk a lot about defending the American people. We have to do it abroad and at home because dead is dead. It is a serious issue when you expose people to toxins. They get cancer. They have brain damage.

I am hopeful we can do something for the people of Flint and stand with them, but I will tell you it is not going to let people off the hook. Anybody who knew this was happening and turned away or said: Who cares? It is a poor community, they will be punished at some point, even if in their own heart. We cannot disconnect from that incident to what we are doing today in saying you no longer need a permit to dump pesticides into drinking water. What are people thinking? Are we so beholden to special moneyed interests that we can't tell them they have to have responsibility? Defending our people means having a smart policy to defend them from terror, which I support, but it also means protecting and defending them with reasonable rules and regulations so we don't poison them here at home or hurt the brains of their kids.

I want to show something that is happening in my State as we speak. This is quite a picture. It shows what a gas leak looks like: plumes of methane gas above a community. This is an infrared camera. This is what is happening from a natural gas leak. It didn't happen yesterday and it didn't happen a month ago. It happened on October 23, and it is still out of control. I have submitted an amendment on behalf of myself and Senator FEINSTEIN today to get some of the brightest minds from the Department of Energy—and there are very bright minds over there—to take a look at what the heck is happening and why it is that this is running amuck. It is now burning longer than the BP oilspill. I remember so well because I worked so hard on the committee with all of my colleagues, with Senator Landrieu and others, to get to the bottom of why it was happening, and we sent Stephen Chu, who was then Secretary of Energy. Guess what. In the BP spill, he figured out a better way to track the spill and therefore contain it by using gamma rays, as I remember.

As of last week, almost 3,700 households have been relocated to hotels and other temporary housing because the residents who live right here are experiencing headaches, nausea, dizziness, nose bleeds, and other side effects stemming from the rotten egg smell, the chemicals that give the natural gas its artificial odor.

This is Aliso Canyon. Schools have temporarily closed because the kids and teachers can't stand the smell all day. People's homes, their furniture, everything they have left behind are becoming infused with this horrid smell and the chemicals. It is a disaster for these residents and for many local businesses struggling to stay afloat. We see here, this is the Aliso Canyon leaking well site, but the plume is all over this community.

I want to share a couple of other photos because we know a picture is worth a thousand words. These are children, sick of being sick at school. This is a mom who is having serious headaches. That is why this amendment is so important because this is what is happening and, by the way, could happen probably anywhere where there are these natural gas storage sites. There are 400 in America—400, in America. This is the first, and we had better deal with it and figure out how to deal with it because right now it is running amuck.

One of my constituents said: My husband and I moved there over 3 years ago. We poured a lot of money into this home, our dream home, thinking it was a perfect area to move. I am expecting. We had difficulties trying to conceive. The joy has been robbed from us because we have had to relocate twice. I am fearful to bring my newborn baby back to Porter Ranch.

That is the community here, Porter Ranch. She said: I am fearful to bring my newborn baby back to Porter Ranch when the time comes and they say the coast is clear.

Another one. This particular individual, Scott McClure, was quoted in the L.A. Times:

> I can't go outside and play baseball with my sons. I can't go on walks with my family. My youngest son has been moved to another school. My property value has dropped dramatically. I get headaches, stomach aches. . . .

The California Air Resources Board estimates that more than 86.5 million kilograms of methane—a powerful greenhouse gas—have been emitted into the atmosphere. So we move from a disaster for our families—reflected in this woman's face—to a disaster for the environment because it is, so far, 2.2 million tons of carbon dioxide. That is the equivalent of the methane that has poured into the atmosphere. That is more greenhouse gas than 468,000 cars emit in 1 year. Just think, in over 3 months this one leak has emitted as much as half a million cars do in an entire year. We have worked so hard across party lines here to make sure our cars have good fuel economy and don't emit so much of this greenhouse gas, and now we have seen as much as half a million cars in an entire year. That is what has come into the atmosphere.

This leaking well is 8,600 feet deep. The leak is thought to be around 500 feet below the surface. The gas company has unsuccessfully attempted to kill the well seven times by plugging it with brine and gravel. They are now attempting to drill a relief well down to the reservoir and cut the resisting well at its base, but this may not be completed in another month. If it isn't successful, they will have to start over again.

So—October 23. We are now starting February, and these people have lived with this extraordinary disaster over them. I pray that this nightmare will be over and people can move back to their homes and that they have the peace of mind that their homes are clean and their air is clean and the community will return to normal. In the meantime, we have to figure out what caused this leak and how to prevent it from happening again at Aliso Canyon and everywhere around the country where there are 400 similar sites.

On January 6, 2016, the Governor of the State of California declared an

emergency for Los Angeles County due to the Aliso Canyon natural gas leak. State regulators have been working with the gas company and with Federal PHMSA and EPA. PHMSA is hazardous pipeline. They check to make sure those hazardous pipelines—the pipelines that carry this hazardous material—are safe. They have been working as they have been providing consultation.

I want to say that the working group on climate change called in the Federal people who were working in PHMSA and the EPA. They are doing conference calls and they are working, but it is not enough. It is not enough. We need the best minds—the best minds—and that is why Senator FEINSTEIN and I have offered this amendment today. It is at the desk.

Under the amendment, the Department of Energy Secretary would lead a broad review of this leak, including the cause, the response, and the impacts on communities and the environment. They will issue a finding to all of us, all of our committees, as we listen, and to the President, within 6 months, but if they find something in the course of their investigation that can solve this leak or prevent another leak—in the Presiding Officer's State or anybody's State—they would have to come forward and make it clear and report that finding.

The task force includes representatives of PHMSA—the Pipeline and Hazardous Materials Safety Administration—Department of Health and Human Services, Environmental Protection Agency, the Federal Energy Regulatory Commission, and the Department of Commerce. We have a small task force here. Is it now seven? Seven. The reason is, we don't want some big bureaucracy. We want a small task force to meet, headed by Secretary Moniz, who is an outstanding scientist, and we want them to help solve this crisis and provide relief for the thousands of affected residents when they come in with their analysis. We want to make sure—we want to make sure—this doesn't happen again in anybody's State, because when you have a constituent like this in your State who comes out and says: My God, I don't know what to do, that is what is on this face. I don't know what to do. I am scared. My kids are breathing this. I am breathing this. Where do I go? So we need our brightest minds, absolutely, dealing with this, and that is what our amendment does.

Again, we have more than 400 underground natural gas storage facilities. We have nine in California. This is a public health and public safety issue that is critical for people not only in my State but across the Nation.

Again, we know our most sacred responsibility is to keep our people safe. Whenever we say that, people right away think about what is happening abroad and homeland security and taking on ISIL and doing everything we have to do to keep our people safe. We have the Super Bowl coming up in my beautiful State. Believe me, we are focused on that. This is a great nation. We know how to take care of our people. Therefore, when we see a woman or children like this saying they are sick and we see this—and this is what the people of California are seeing in their living rooms, the picture of this out-of-control plume going on since October 23—we think: Wait a minute. This is the greatest country in the world, with the greatest minds in the world, the greatest science in the world. We have so many wonderful things, and we can't stop this leak? My God. It is ridiculous.

I was frustrated after I had that meeting because we are very much alike in many ways. We want to solve a problem, and we don't want bureaucracy to get in the way. We want to get the best people. Who cares who gets the credit? Sit around and get it done. When I had this meeting with those Federal officials who were on these conference calls, I got a clear sense, after all my years of experience—and I have had a lot. When I started out, I didn't have all this gray hair.

The bottom line is, I know from experience that it doesn't feel like somebody is truly in charge. That is why Senator FEINSTEIN and I are giving this amendment all of our heart and soul. We hope that our friends on the other side will sign off on it because I know the Democratic side has. I believe they will. We are working with them right now on a couple of issues.

If this passes and becomes the law of the land, we will finally have someone in charge here at the Federal level, someone so bright, so smart—Secretary Moniz. I have a lot of faith in him. I think a lot of us do. He is in it for the right reasons. I think if he goes in there and they start to take a look at this, they may well find something right away that has been overlooked that could stop this horrific leak.

I want to close with this: Californians are leaders in so many areas—technology, entertainment, and trade. We would be the seventh or eighth largest economy in the world.

I don't want to be a leader showing the way to the future with this kind of a travesty. I want to solve the problem. I want to tell my friends here in the Senate that we have the technology to solve it; we have leak-detection systems to find these problems before they happen. This particular yard started in the fifties. If you built a house in the fifties, you have to keep making improvements. I don't know the history of all of this, and I am not getting into that now. We are where we are. But I would suggest that if this natural gas yard was set up in the fifties, I don't think there were a lot of homes around at that time. Let's be clear. We have to think about these things, where we place these facilities. If I were in another State right now—and I am going to do this in California: I am going to look at the eight other facilities in my State. God forbid, if they have a leak, what is going to happen and how can we prevent it? Maybe there is an easy way to maintain these pipes in a way that makes sense. If we can find that out, we can stop this. We can say: This was horrible. We stopped it, and we are going to be able to prevent other explosions like this from happening. And if they do happen, we will know how to deal with it.

We are not going to subject kids to this where they have to go out with signs—and, by the way, masks around their necks—that say ''relocate our school'' and ''sick of being sick at school'' and dislocate these kids, and they have been dislocated. They have been dislocated from their school. You know how it is for a kid. You have your world. Your world is your home. Your world is your school. Your world is your family. That is it. When you disrupt that, it is very difficult on our children.

I hope and pray that we will get this done today and that we will get the Department of Energy ready to go on this. Even if we pass it here and we don't get it quickly to the House and they don't do it quickly, I think we will send a signal to the Department of Energy that they can look at this now and help in a way where they would have the confidence that we would all be behind that here in the Senate.

I am looking forward to a vote on this. I hope we have a voice vote. We don't need a recorded vote on something like this. I am going to continue to work with the Republican leaders on this. I hope we can move forward.

I thank you so much for your patience and your time.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

ENERGY POLICY MODERNIZATION BILL

Mr. THUNE. Madam President, one of the things the Republicans were determined to do when we took the majority in the Senate last January was to get the Senate working again for American families.

Under Democratic control, the Senate had basically ground to a halt. The Democratic leadership spent its time pushing partisan show votes instead of putting in any real work on the challenges that are facing our Nation. Republicans were committed to changing that. Since we took the majority last January, we have worked hard to once again make the Senate a place for serious debate and serious legislation. We have succeeded.

Last year we passed a number of significant bipartisan bills, including a

major reform of No Child Left Behind and a multiyear transportation bill that will strengthen our infrastructure and put Americans to work.

This week we are beginning consideration of a bipartisan energy bill to modernize our Nation's energy policies for the 21st century. This bill is the product of months of work by Republican and Democratic Senators and staffers on the Energy and Natural Resources Committee. Senators held four full committee hearings and spent countless hours hammering out the legislation that is before us today. This bill is a great example of the kind of substantive, bipartisan legislation we can produce when the Senate is working the way it is supposed to work.

Among many other things, this bill will streamline the application process to make it easier for American companies to export liquefied natural gas. The natural gas industry in the United States has grown by leaps and bounds in recent years, and our economy will benefit tremendously when U.S. companies start exporting American liquefied natural gas this year. Liquefied natural gas exports from the United States will also strengthen our allies in Europe by allowing them to rely on the United States for their import needs instead of relying on aggressive nations like Russia.

I have also submitted several amendments to this bill, including an amendment to streamline the permitting process for wind development. American wind developers cite permitting delays as one of the chief obstacles to development of this clean energy source. My amendment will remove this roadblock and allow wind generation and the jobs that it creates to move forward more quickly.

I have also submitted an amendment that would examine whether hydroelectric dams in places like the Missouri River in my home State of South Dakota could be paired with future hydrokinetic generation to better harness the great energy potential of our rivers.

I have submitted an amendment to prevent the Environmental Protection Agency from moving ahead with a lower ground-level ozone standard until 85 percent of the U.S. counties that are not yet able to meet the old smog standard are able to meet the old requirements. We should prioritize the worst cases of smog in America before imposing significant economic burdens or limiting energy generation in other areas.

One thing Republicans always say when we talk about energy is that we need an ''all of the above'' energy policy. What do we mean by that? We mean that we need to focus on developing all of our Nation's energy resources, from renewable fuels, such as wind and solar, to traditional sources of energy, such as oil and natural gas. That is the only way to make sure Americans have access to a stable, reliable energy supply and to keep our energy sector thriving.

The bill we are considering today is an ''all of the above'' energy bill. It invests in a wide range of clean energies, from nuclear, to hydroelectric, to geothermal. It supports traditional sources of energy. It modernizes our Nation's electrical grid. It promotes energy efficiency. It encourages conservation. That is the kind of energy policy we need to take our energy sector into the 21st century.

Unfortunately, the President has repeatedly blocked domestic energy development and the jobs it would create. He rejected the Keystone XL Pipeline—a project that his own State Department found would have virtually no impact on the environment and that would have supported 42,000 jobs during construction. He has blocked attempts to tap our vast domestic oil reserves in Alaska. His EPA has imposed a steady stream of burdensome regulations that are making it more expensive to produce American energy. The President's national energy tax will drive up energy bills for poor and middle-class families and reduce our Nation's energy security, while doing very little to help our environment. Similarly, the President's waters of the United States rule will place heavy regulatory burdens on farmers, ranches, homeowners, and small businesses across the country.

President Obama might like to think that the United States can rely on a few boutique renewable energies, but the truth is that our Nation is simply not there yet. Efforts to impede other, more traditional and reliable types of energy production simply punish American families who then face soaring energy prices and fewer jobs in the energy sector.

Robust domestic energy production coupled with commonsense energy efficiency measures will create jobs, enhance the reliability of our energy supply, spur economic development, and help keep energy costs low. Those are the kinds of energy policies that this bill supports.

Last Friday we learned that the economy grew at a rate of seven-tenths of 1 percent in the fourth quarter of 2015. Needless to say, that is not where we need to be in terms of economic growth. The recession may have technically ended 6½ years ago, but our economy has never fully rebounded. Economic growth has been persistently weak during the Obama recovery, and there are no signs of substantial improvement in the near future. In historical terms, the Obama recovery is the weakest economic recovery since the Eisenhower administration. If you rank the 66 years since 1950 in terms of economic growth, the Obama years rank 45th, 46th, 47th, 48th, 54th, 55th, and 66th. Let me repeat that. If you rank the 66 years since 1950 in terms of economic growth, the Obama years rank 45th, 46th, 47th, 48th, 54th, 55th, and 66th—or dead last. It is no wonder the American people are tired of living in the Obama economy.

Given this weak economic growth, removing impediments to energy development is more important than ever. A thriving energy sector can help us overcome the weakness of the Obama recovery and usher in a new era of stronger economic growth.

According to former CBO Director Douglas Holtz-Eakin, the difference between a 2.5-percent growth rate and a 3.5-percent growth rate would have a major impact on the quality of life for low- and middle-income families. If our economy grew at just 1 percentage point faster per year, we would have 2½ million more jobs and average incomes would be nearly $9,000 higher—$9,000 higher. That is the difference between owning your own home and renting one. It is the difference between being able to send your kids to college and forcing them to go deeply into debt to pay for their education. It is the difference between a secure retirement and being forced to work well into old age. Additionally, an additional percentage point in economic growth will reduce our annual deficits by $300 billion. That in turn would further improve the health of our economy.

The American people have suffered long enough in the Obama economy. They are ready for a new era of strong economic growth; an era built upon free enterprise, not big government programs; an era that focuses on growth, opportunity, and income mobility, not redistribution of shrinking economic resources; an era that rewards innovators and entrepreneurs rather than punishes them.

Over the next year, Americans who are ready for a change from Obama's failed policies will hear from congressional Republicans who are increasingly focused on getting our economy working again. Reforming our Tax Code and reining in regulations, repealing and replacing ObamaCare, strengthening our international security by rebuilding our military, and reforming outdated poverty programs will be the foundation of our agenda for a more prosperous future.

Americans will also continue to hear from a Republican-led Senate that it is focused on moving bipartisan bills to improve economic security for American families. The bill before us today is one of those bills. It will help consumers use less energy and free up energy producers to develop resources and create jobs.

I am glad the Senate is focused on an ''all of the above'' energy approach that supports energy growth and development in this country. I thank Senator MURKOWSKI for her leadership and work on this bill. I look forward to working on more bills here in the Senate that will strengthen economic security for American families. That is what we should be about—better, more robust growth in the American economy that creates better paying jobs for American workers and families.

I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts is recognized.

Mr. MARKEY. Madam President, I ask unanimous consent to speak for up to 10 minutes.

The PRESIDING OFFICER. Is there objection?

Hearing none, it is so ordered.

PRESCRIPTION DRUG ADDICTION

Mr. MARKEY. Madam President, I am here to talk about a public health epidemic that kills more people in the United States every year than gun violence or motor vehicle accidents. Last year, drug overdoses killed nearly 50,000 Americans. Almost 60 percent of those overdoses were caused by prescription opioids or heroin. Drug overdoses are increasing the death rate of young adults in the United States to levels not experienced since the AIDS epidemic, more than 20 years ago. These skyrocketing death rates make them the first generation since the time of the Vietnam war to experience higher death rates in early adulthood than the generation that preceded them.

So we ask ourselves: What specifically is causing this tidal wave of addiction and overdoses? Well, the answer is clear. Over the last 10 years, the Drug Enforcement Agency has increased the amount of oxycodone it has approved for manufacturing by 150 percent.

For 2016, the DEA has told Big Pharma it is OK to make nearly 1.4 million grams of oxy. That is enough for almost 15 billion 10-milligram pills. Let me say that again: That is enough for almost 15 billion 10-milligram pills to be sold in America this year. That is a full bottle of potent painkillers for every man, woman, and child in the United States of America for 2016. This tsunami of opioid addiction is swallowing families as quickly as Big Pharma wants Americans to swallow its pills. Yet, despite this raging epidemic, you would think the Food and Drug Administration, the agency responsible for the safety of all prescription drugs in the United States, would welcome every bit of expert advice it can get from doctors and other public health professionals. In fact, the FDA's own rules call for it to establish an independent advisory committee of experts to assist the agency when it considers a question that is controversial or of great public interest, such as whether to allow a new addictive prescription painkiller to be marketed in the United States. Instead, the FDA has put up a sign in its window: ''No Help Wanted.'' The FDA began turning its back on advisory committees in 2013 when an expert panel established to review the powerful new opioid painkiller Zohydro voted 11 to 2 against recommending its approval, but the FDA approved the drug anyway, overruling the concerns voiced by experienced physicians on the panel. Those experts criticized the agency for ignoring this incredible growing epidemic. The advisory panel warned that this Oxycontin epidemic—this heavily abused prescription painkiller that the FDA first approved back in 1995—needed a new test for safety. They warned about the growing dangers of addiction, abuse, and dependence associated with the entire class of opioid painkillers. Justifiably, the FDA was lambasted for its decision to approve Zohydro by public health experts, doctors, Governors, and Members of Congress. But despite the warning of real-world dangers of abuse and dependence on these new supercharged opioid painkillers, the FDA willfully blinded itself to warning signs.

In 2014, in the wake of the Zohydro decision, the FDA twice skipped the advisory committee process altogether when it approved the new prescription opioids Targiniq and Hysingla. Then, in August 2015, the FDA did it again. This time it bypassed an advisory committee on the question of a new use for Oxycontin for children aged 11 to 16. This time the FDA even ignored its own rules that specifically called for an advisory committee when a question of pediatric dosing is involved. In other words, there is a special category when children are involved that calls for advisory committees, and the FDA ignored that.

At this point it became clear that the FDA was intentionally choosing to forgo an advisory committee in order to avoid another overwhelming vote recommending against approval of a prescription opioid. Why? Because the FDA would then have had to ignore yet another group of experts in order to continue its relentless march to put more drugs into the marketplace.

With the Oxycontin-for-kids decision, the FDA's reckless attitude toward expert advice on drug safety went too far. Children whose brains are not yet fully developed are especially vulnerable to drug dependency and abuse. Yet the agency focused its so-called safety analysis only on concerns about proper dosing, saying that it needed only to tell doctors the proper doses for children who needed the drug.

Well, that is just plain wrong. We use experts to determine if child car seats are safe, if toothpaste is safe, and if vaccines are safe. We should use experts to determine if the opioid painkillers are safe for our families. We need to immediately reform the Food and Drug Administration opioid approval process if we want to stop this epidemic of prescription drug and heroin addiction.

Last week I placed a hold on the nomination of Dr. Robert Califf to head the FDA. Before I can support this nomination, the FDA must make three needed changes to its opioid approval process. First, the FDA needs to make sure that every opioid approval question is reviewed by an external panel of experts. Second, the FDA needs to consider addiction, abuse, and dependence as part of its determination of whether an opioid is safe. The FDA cannot continue to operate as if safety just means dosage, when it should include all of the dangers, as well, of these painkillers. And third, the FDA should rescind its decision on Oxycontin for kids and then convene an advisory panel, as it should have done in the first place. Then the FDA can consider the Oxycontin-for-kids decision with the benefit of that panel's independent advice and with the proper meaning of safety in mind.

The FDA must commit to shift the way it approaches and evaluates addiction before I can consider supporting Dr. Califf's nomination.

The prescription drug and heroin epidemic knows no geographic boundaries, and our response should know no political boundary. That is why Majority Leader MITCH MCCONNELL and I worked together to identify solutions to this crisis. Last spring, Senator MCCONNELL and I joined together in calling for a Surgeon General's report on the opioid crisis.

Last fall, Surgeon General Vivek Murthy announced that he will be issuing a new report on the substance abuse crisis this year. Fifty years ago, there was a historic report on smoking that changed the way our country viewed that. This is the same kind of report that we need from our Surgeon General for our country to see, but that is just the first step in a larger comprehensive national strategy that I am fighting for this year.

We need to stop the overprescription of pain medication that is leading to heroin addiction and fueling this crisis. That starts with the prescribers. We need to ensure that all prescribers of opioid painkillers are educated about the dangers of addiction and appropriate and responsible prescribing practices.

I have a bill that requires every prescriber of opioid pain medication in this country, as a condition of receiving their DEA prescribing license, to be trained in the best practices of using pain medications and methods to identify and manage an opioid-use disorder. Stopping overprescription also includes narrowing the pipeline at the front end.

The PRESIDING OFFICER (Mr. ROUNDS). The Senator's time has expired.

Mr. MARKEY. Mr. President, I ask unanimous consent to continue for 2 additional minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. MARKEY. Mr. President, this means that the DEA needs to reduce the quotas of oxycodone and hydrocodone that it approves for manufacture each year. The DEA is allowing Big Pharma to manufacture too many of these pain pills. Although the United States is less than 5 percent of the world's population, Americans consume 80 percent of the global supply of opioid painkillers and 99 percent of the world's supply of hydrocodone, the active ingredient in Vicodin. Tragically,

we have become the ''United States of oxy.''

With the opioid epidemic reaching epic proportions, our Federal budget should reflect the magnitude and importance of investing in treatment and recovery services.

In Massachusetts, approximately 65,000 people are currently dependent on opioids. Some 50,000 need treatment but are not receiving it. Treatment for prescription drug and heroin addiction is absolutely at the top of the list of the things this Congress should deal with, and that is why we need to work together. We need to make sure that the treatment is there for each of these patients, and that includes ensuring that patients receive from a physician the help they may need from Suboxone. Right now, that is denied to many different patients.

I have been in Congress for 39 years. I have never actually seen an issue like this that has grown so quickly and affects so many families in our country. Not a day goes by in the State of Massachusetts where someone doesn't come up to me and talk to me about a family member who has been affected by this epidemic. It is time for us to join together in a bipartisan fashion to produce the kind of legislation to give hope to families and let them know that relief is on the way, and that prevention and treatment will be there to help their families deal with this crisis.

I hope we can accomplish that goal this year, and I believe we can do it on a bipartisan basis.

I yield back the remainder of my time with thanks to the Senator from Alaska for her indulgence.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

ENERGY POLICY MODERNIZATION ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of S. 2012, which the clerk will report.

The legislative clerk read as follows:

A bill (S. 2012) to provide for the modernization of the energy policy of the United States, and for other purposes.

Pending:

Murkowski amendment No. 2953, in the nature of a substitute.

Murkowski (for Cassidy/Markey) amendment No. 2954 (to amendment No. 2953), to provide for certain increases in, and limitations on, the drawdown and sales of the Strategic Petroleum Reserve.

Murkowski amendment No. 2963 (to amendment No. 2953), to modify a provision relating to bulk-power system reliability impact statements.

The PRESIDING OFFICER. The Senator from Alaska.

DRUG ADDICTION

Ms. MURKOWSKI. Mr. President, before I begin my remarks this morning about the Energy Policy Modernization Act, I wish to acknowledge my colleague from Massachusetts. I come from a very large, remote State. About 80 percent of the communities in Alaska are not connected by a road, so one would think that our isolation would insulate us from some of the scourges that we see when it comes to drugs and drug addiction. Unfortunately, that is not the case. In my State we are seeing the same level of addiction. While the numbers might not be as eye-popping as Massachusetts or New Hampshire and other parts of the country, that is because we have fewer people. But on a per capita basis, the numbers are staggering and very worrying.

As my colleague from Massachusetts notes, this is not something that should be a Republican or a Democratic problem or have a Republican or Democratic solution. This should have all of us working together because what is happening and what we are seeing is simply unacceptable. It is destroying families and communities, and we must work together. I appreciate his comments here before the body this morning.

Mr. President, I hope the Senate is prepared for another good, busy day of debate on our broad bipartisan energy bill.

Late yesterday, while we were not taking votes, we were in session for a few hours—but what we were able to do during that time period was approve eight more amendments by voice vote. We are now up to 19 amendments accepted so far. The latest batch from yesterday featured a proposal from Senators GARDNER, COONS, PORTMAN, and SHAHEEN to boost energy savings projects that will limit the cost of government and save taxpayer dollars.

We also approved an amendment from Senators FLAKE, MCCASKILL, and BOOKER to evaluate the number of duplicative green buildings programs within the Federal Government. I think we all appreciate the need to be more efficient, but do we need to have dozens and dozens of duplicative programs to build this out? That is what that amendment addressed.

We also approved an amendment from Senators INHOFE, MARKEY, and BOOKER to renew a brownfields restoration program run by the EPA.

So we did OK yesterday, approving eight amendments by voice votes, which is not bad for a Monday around here when we were not scheduled to have votes, but I think we can do better than that. I think we can pick up the pace, and we are ready to do that.

We will have two rollcall votes that are scheduled for 2:30 this afternoon. The first one is an amendment by the Senator from Utah, Mr. LEE, amendment No. 3023, and it would limit Presidential authority to permanently withdraw Federal lands as national monuments. This is an issue that I have joined the Senator from Utah on, as well as many Senators from around the West, who have concerns that we would see vast areas of our particular States permanently withdrawn—something that again resonates very strongly in my State, where 61 percent of our State is held in Federal land. I am pleased that my colleague from Utah has offered this amendment, and I am hopeful the Senate will adopt it.

The second amendment we will have this afternoon is the Franken amendment No. 3115. This would impose a nationwide efficiency mandate. This is a matter that we had before the energy committee when we were in markup in July, and many Members are already familiar with it.

I am aware that some Members are still filing amendments, but I think my advice to them is to know they are chasing the train down the tracks at this point in time. We had a total of 230 amendments filed as of this morning, so we have a lot to sort through as we are trying to deal with the debate and just kind of keep things moving.

A number of Members are also hoping to secure a vote on their priorities, so we have a line now. Those who are just thinking about filing should know where you are in this process. Senator CANTWELL and I intend to continue to process amendments as quickly as we can and we ask for the cooperation of Members to help that effort move along.

I do want to thank the ranking member on the energy committee. Senator CANTWELL and her staff have been working very hard and very well with me and my staff as we are working to process this bill. The level of back-and-forth has been very constructive, very helpful, and I appreciate it, and I want to give special recognition to the yeoman's work that the staff are doing right now.

We will be setting up additional rollcall votes today. We will hopefully be able to reach agreement on amendments that we can clear on both sides as well.

As we have moved through the debate process on this important Energy bill, we have seen some good, strong amendments. I mentioned some already. We have had amendments from both parties. We have had them offered by Members from all areas of the country. We have seen some particularly good ones that focus on hydropower. I wish to take a few moments this morning to speak about hydropower and the amazing supply source that hydropower provides for our Nation.

Hydropower harnesses the forces of flowing water to generate electricity, and it has many virtues as an energy resource. It is not only emissions free and renewable, it is also capable of producing stable, reliable, and affordable base power. How about that: stable, affordable, and reliable base power. It is emissions free. It is renewable. It is not defined yet as renewable, and we address that in this bill. Right now, hydropower produces about 6 percent of our Nation's electricity and nearly half of our renewable energy. That is more

than wind and solar combined and enough electricity to power some 30 million American homes.

Up in Alaska, hydropower provides—the number is right about 24 percent of our electricity. It provides energy for communities throughout the State, most notably in the southeastern part of the State where I was born and raised. It is very significant there. It is also in what we call the railbelt area. It is an amazing contributor to our State's energy base. We continue, though, to have vast potential with hundreds of sites in Alaska alone just waiting to be developed. We are a leader on hydropower, but we are hardly alone in having untapped potential.

According to an official from the Department of Energy who testified before the energy committee back in 2011, our country could realize ''an additional 300 gigawatts of hydropower through efficiency and capacity upgrades at existing facilities, powering nonpowered dams, new small hydro development, and pump storage hydropower.''

So let me repeat what that really means: An additional 300 gigawatts of hydropower, not through some big megadam but through efficiency, through capacity upgrades at existing facilities, powering up our nonpowered dams, new small hydro development—we see a lot of that in Alaska—and pump storage hydropower. With that, 300 gigawatts of additional power.

Putting it into context, 1 gigawatt can power hundreds of thousands of homes. We have an estimated 300 gigawatts of potential hydropower—a huge benefit to our country in terms of what we could get from our hydro resources, and it will not take much to start taking advantage of it. That is the beauty of it.

It may surprise some to know that right now only 3 percent of our Nation's existing 80,000 dams around the country currently produce electricity. Just 3 percent of 80,000 dams that are already out there are producing electricity. Think about what we could do if we electrify just the top 100—just the top 100 out of 80,000. We could generate enough electricity for nearly 3 million more homes and create thousands of jobs. Meanwhile, simply upgrading the turbines at existing hydropower dams could yield a similar amount of additional electric generating capacity.

We talk a lot about efficiency around here. Well, let us apply the efficiency with what we have with our existing facilities. What most of us agree on is that hydropower is a great American resource. It is renewable, it is affordable, it is always on, and nearly every State has potential in some way. Yet, despite all of this—despite the tremendous benefits that it provides and despite our tremendous untapped potential—America's hydropower development has stalled. Why? It has stalled, quite honestly, because of redtape and environmental opposition.

This was the subject of a recent op-ed piece that I cowrote with Jay Faison, who is the founder of the ClearPath Foundation. It is called ''Stop Wasting America's Hydropower Potential.'' It ran in the New York Times last month, and we have gotten some pretty good, positive comments. I ask unanimous consent that this op-ed be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the New York Times, Jan. 14, 2016]

STOP WASTING AMERICA'S HYDROPOWER POTENTIAL

(By Lisa Murkowski and Jay Faison)

President Obama has described climate change as one of the biggest challenges facing our country and has said he is open to new ideas to address it. He can start by supporting legislation to increase the nation's hydropower capacity, one of our vital renewable energy resources.

Hydropower harnesses the force of flowing water to generate electricity. It already produces about 6 percent of the nation's electricity and nearly half of its renewable energy, more than wind and solar combined. This is enough electricity to power 30 million homes and, according to the Department of Energy, avoids some 200 million metric tons of carbon dioxide emissions each year. That amounts to taking about 40 million cars off the road for one year.

But we could be doing much more to harness the huge potential of hydropower, even without building new dams.

For instance, only 3 percent of the nation's 80,000 dams now produce electricity. Electrifying just the 100 top impoundments—primarily locks and dams on the Ohio, Mississippi, Alabama and Arkansas Rivers that are operated by the Army Corps of Engineers—would generate enough electricity for nearly three million more homes and create thousands of jobs.

And upgrading and modernizing the turbines at existing hydropower dams could yield a similar amount of additional electricity-generating capacity.

Despite the benefits of this technology, American hydropower development has stalled because of government red tape and environmental opposition. Less capacity has been added each decade since the 1970s, even as our infrastructure ages. Half of our plants use turbines or other major equipment designed and installed more than 50 years ago.

At the heart of the problem is a broken federal permitting process that has created an unnavigable gantlet for hydropower projects. While mandatory environmental reviews must be stringent to protect waterways and wildlife, federal bureaucrats insist on duplicative, sequential processes that exacerbate regulatory uncertainty, delay approvals and drive up consumer costs.

Compounding the roadblocks are environmental groups that claim to adhere to sound science but hold remarkably outdated views of hydropower and its benefits. Rather than acknowledge technological advances and the environmental safeguards in our laws, these groups have filed lawsuits to dismantle dams or stop their construction.

Add it all up, and it can now take well over a decade to relicense an existing hydropower dam. For the California customers of Pacific Gas and Electric, relicensing costs have run as high as $50 million a dam—all for the privilege of continuing to operate an existing renewable energy project.

One-third of the nation's hydropower dams will require license renewals by 2030. We need to make this process more efficient by reducing bureaucratic and administrative delays that end up increasing electricity rates and slowing hydropower's expansion.

Fortunately, Congress has stepped in to get hydropower development back on track. Legislation in both chambers, including a measure in the Senate that was approved by a bipartisan vote in committee, would direct agencies to expedite the permitting of new projects and the relicensing of existing ones, and would advance the use of hydropower nationwide.

But while Congress has chosen to lead on this important issue, President Obama has threatened to veto the House bill, claiming it would undermine environmental safeguards. The challenge is finding a way to bring state and federal agencies to the table with the applicants at the beginning of the process so they can identify potential problems and coordinate environmental reviews. The legislation would not change the authority of federal agencies to impose environmental conditions.

There is much more that we can do. Upgrading existing dams is just one of the approaches that holds big promise. Coordinating hydropower projects on a regionwide basis might allow for permitting on a more timely basis and provide better opportunities for environmental mitigation. There is also tremendous potential for electricity generation using new marine hydrokinetic technologies that convert the energy of waves, tides and river and ocean currents into electricity. And it is important to recognize the huge, untapped potential for hydropower in Alaska.

With hydropower, Congress has given the president an opportunity to address climate change and ''bridge the divide'' between parties. If he is serious about expanding the use of clean, renewable energy, he should at last give hydropower the attention it deserves in his final year.

[From the Register-Guard, Jan. 20, 2016]

PRESERVE HYDRO ASSETS

On Sept. 29, 1963, a crowd of 1,800 people gathered near the headwaters of the McKenzie River for the dedication of the Eugene Water & Electric Board's Carmen Smith project. A band played, box lunches were served, Gov. Mark Hatfield spoke and power flowed from a hydroelectric complex for which Eugene voters had approved a $23.5 million bond issue three years earlier.

Carmen Smith has been generating electricity ever since, and now its license to operate on a public waterway needs to be renewed. EWEB submitted its relicensing application to the Federal Energy Regulatory Commission 10 years ago. The relicensing process—along with improvements to the project, most of them related to fish passage—will cost an estimated $226 million.

It is costing 10 times as much and taking more than three times as long to relicense the project as it did to build it in the first place.

To be sure, a million dollars isn't worth what it used to be, more is known about the environmental effects of hydroelectric projects than was the case half a century ago, and appreciation of the importance of the McKenzie River's fish habitat has grown. Still, the high cost of relicensing has tipped the value of the Carmen Smith project into negative territory. Low power prices are to blame—but another factor is a relicensing process that is predicated on the notion that hydroelectric projects are valuable enough to carry a heavy load of added costs.

The $226 million price tag for relicensing stems in part from an agreement that EWEB negotiated in 2008 with government agencies, environmental groups and Native American tribes. The other parties to the agreement

pledged to support a new license of Carmen Smith, and EWEB agreed to retrofit its components to improve fish passage and make other improvements. With electricity selling at $100 per megawatt hour or more, power generated by the Carmen Smith complex would easily cover the costs.

In today's markets, however, electricity is selling for one-third that amount on a good day—and sometimes, buyers can't be found at any price. Without a reduction in relicensing costs, Carmen Smith will become a money loser. Parties to the 2008 agreement are close to accepting a revision that would lower the costs by $55 million to $60 million. EWEB would close a relatively small generating turbine at the complex's Trail Bridge Dam, eliminating the need for a costly fish screen. Even with that change, prospects of a positive cash flow from Carmen Smith are dicey.

EWEB is not the only utility whose hydroelectric plants are being weighed down by relicensing costs. One-third of the nation's dams will need new licenses by 2030. These are mostly dams whose construction bonds have long been paid off, an advantage that until recently allowed the relicensing process to become a vehicle for the addition of environmental, recreational and other improvements. In some cases, such improvements are no longer affordable. In other cases, the costs of licensing acts as a barrier to the electrification of dams or other impoundments, blocking the development of a reliable, carbon-free power source.

Many hydro projects need environmental upgrades, and should not be relicensed without them. But the process should not drag on for a decade, and it ought to recognize the environmental benefits of hydropower—benefits in danger of being buried under a mountain of relicensing costs.

Ms. MURKOWSKI. At the heart of the problem is a broken Federal permitting process that has created an unnavigable gauntlet for our hydropower projects. It can now take well over a decade to relicense an existing dam. I will say it again. We are not talking about licensing a new dam; we are talking about relicensing an existing dam—a process that can take over a decade. For the California consumers of Pacific Gas and Electric, relicensing costs have run as high as $50 million per dam simply to continue an existing project. We are not building anything new. We want to relicense it. It is costing $50 million and taking over 10 years.

There was a recent editorial in a Eugene, OR, newspaper, the Register-Guard, which called for the preservation of hydropower assets, and it noted that the existing Carmon Smith project has been mired in the relicensing process for over 10 years, with a pricetag estimated at $226 million. It amounts to 10 times as much and 3 times as long as it took to build the project when it was constructed in 1963. What is wrong with this picture? Taking 10 times as much—requiring 10 times as much money—$226 million—and taking 3 times as long to build as when they built that project back in 1963. We are going in the wrong direction. This is not progress. We are headed exactly in the wrong direction.

We can change that. Let us put it in the context of what we have existing in this country right now. I said that right now hydro is providing about 6 percent of our energy and about half of our renewables. One-third of our Nation's existing hydropower projects will require license renewals by 2030. One-third of the existing facilities are going to have to go through this decade-long relicensing process, which will cost millions of dollars. What we need to do is make the relicensing process more efficient by reducing bureaucratic and administrative delays that end up increasing electricity rates, slowing hydropower's expansion, and actually delaying the adoption of environmental mitigation measures. If you are concerned about the environment, you ought to be interested in making sure we have a better process because if we fail to improve the relicensing process, we are going to start losing hydropower projects, and we will backslide as other forms of generation replace them, just as we are seeing with nuclear power in some parts of our country. We are going to go backward.

Whether your issue is climate change or whether it is electric reliability or just good, affordable energy, we should be able to agree that this is a situation we want to avoid. We do not want to be going backward on this.

Coming from Washington State, Senator CANTWELL understands and clearly appreciates the value of our hydropower resources. I have been very pleased to be able to work with her on many of these initiatives, as well as with many other members of our committee, on some of the bipartisan reforms we have contained within the Energy Policy Modernization Act. What we realize is that our current policies are holding this resource back and that we need to update, we need to modernize them, if we ever want to harness the amazing potential of domestic hydropower. Our joint hydropower language attempts to bring State and Federal agencies to the table with the applicants at the beginning of the process so they can identify where the potential problems may be and coordinate environmental reviews.

Because hydropower licenses are issued by the FERC, our bill authorizes the Federal Energy Regulatory Commission to be the lead agency so they set a schedule and they coordinate all the needed Federal authorizations. The schedule is to be established on a case-by-case basis, in consultation with other agencies, and if a resource agency then cannot meet a deadline, the White House Council on Environmental Quality is then tasked with resolving these interagency disputes.

In terms of a step that is long overdue, we formally designate hydropower as a renewable resource for the purpose of all Federal programs.

When I first came to the Senate some years ago and focused on energy issues, I just really had a hard time with the fact that hydropower was not considered a renewable resource.

I was born in Ketchikan, AK. It is in the middle of a rainforest. I was raised in southeastern Alaska, where the annual precipitation is something that would take most people's breath away. If I were to tell the people of Juneau or Wrangell or Ketchikan that what is coming out of the sky today is not a renewable resource, I would be laughed out of the room. Hopefully we take care of this and formally designate hydropower as a renewable resource for the purposes of all Federal programs.

We have very good, commonsense ideas carefully crafted within our bill. Our language does not alter the authority of Federal agencies to impose mandatory environmental conditions or weaken the stringent environmental review process. For those who are afraid that somehow or another we are going to run roughshod over the environmental regulators, that is not the case. What we are doing is, through efficiency, streamlining, and some coordination, we are going to be able to make a difference in our Nation's ability to develop hydropower, and that is why the members of the Energy and Natural Resources Committee overwhelmingly supported the hydropower provisions in the bill we have before us today.

There is always more good news we can add. We have looked at the amendments other Members have offered. We have already accepted an amendment from Senator DAINES to extend the deadline for the relicensing of a hydropower project in Montana. We also have a number of other amendments from other Members from both sides of the aisle, and I am hoping we will be able to add them to the bill. For example, Senator GILLIBRAND has filed an amendment to extend the deadline for a hydroproject in her home State of New York. Senator BURR has filed an amendment to extend the deadline of a hydroproject in his home State of North Carolina. Senator KAINE has filed an amendment to extend the deadline for hydroprojects in his State of Virginia. All of these projects would add power to nonpowered dams. These projects already have licenses, but what they need is more time to deal with the technical and regulatory issues that often arise before construction can begin.

We have a fair number of our western Members who are understandably prioritizing hydropower. Senator BARRASSO is filing an amendment to authorize the use of active capacity of the Fontenelle Reservoir in southwest Wyoming. Senators FLAKE and FEINSTEIN have come together with a pretty good amendment to improve the way the Army Corps of Engineers operates dams to increase their efficiency. Is this not just good common sense?

It probably comes as no surprise that I have a couple of amendments that will benefit Alaska, including one that will expand the existing project at Terror Lake and allow the local community there—Kodiak—to remain powered almost entirely by renewable energy. Right now they are 99.7 percent powered by renewable energy between wind

and their hydrocapacity. We want them to get to that full 100 percent.

Finally, I want to recognize the Senator from Massachusetts, Mr. MARKEY, who has a proposal to encourage the development of pumped storage hydropower assets—one of the best ways to store baseload power and a technology that could help to smooth out the intermittency of other renewable resources. We are working on that one—checking it out—but it looks good.

These are good proposals. As we continue our voting and clearing process here today, I am confident we will be able to accept many more of them.

Again, I want to acknowledge the work and partnership I have with Senator CANTWELL on many of these hydro issues. Her State certainly enjoys the benefit of lower cost energy because of the investments made in hydro.

We have more work ahead of us. I know Members are anxious to talk on their amendments that they may have an interest in moving toward this afternoon, but this Senator is glad to be back on the bill, and hopefully we will have an exciting and energetic day.

With that, I yield the floor to my ranking member.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, I want to thank my colleague from Alaska for her focus on the hydropower bills we may be considering here, and I am thankful for the focus from all my colleagues on hydropower and ways we can continue to improve the efficiency of our resources and make sure we are continuing to diversify.

I think we have outlined a good plan for today. Obviously we need the cooperation of our colleagues to keep moving forward on this legislation. We are going to have a couple of votes.

I am so pleased my colleague from Minnesota is here to talk about one of our first votes, a federal energy efficiency resource standard. He has been a leader on this issue.

Yesterday I outlined some of the great States in this Nation that have already adopted what are called energy efficiency resource standards, which have shown great success in helping to save energy and driving down demand, thereby saving money for both businesses and homeowners. I think it is something that will also receive a lot of enthusiasm as we move forward.

I know that we have many ideas; that is what I like about this Energy bill—it was bipartisan coming out of the committee, and so far it has been bipartisan on the Senate floor in working out these issues. I hope my colleagues will understand that there will be a point where we do have to move off of this bill. Hopefully, with the cooperation of Members, we can make a great deal of progress today on additional votes besides the two that are pending, set more votes for later this evening, and also continue the process of getting some of these other issues resolved in the meantime.

Again, I thank our colleagues for turning their focus to this. I thank my colleague for outlining where we have already been on the bill as it relates to the amendments we adopted last night and the continued progress. I think it comes down to the fact that as our economy changes, energy production needs to have the attention of our committee. We need to continue to be able to help empower this transformation that our economy is seeing on energy, and working together in a bipartisan fashion helps us to get there. It is good for our homeowners, it is good for businesses, and it is good for our economy.

With that, I yield the floor and encourage our colleagues to support my colleague Senator FRANKEN on his EERS amendment we will be voting on shortly.

The PRESIDING OFFICER. The Senator from Minnesota.

Mr. FRANKEN. Mr. President, I ask unanimous consent to speak for up to 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FRANKEN. Thank you, Mr. President.

I rise today to talk about the importance of updating our Nation's energy policy. I thank Chairwoman MURKOWSKI, Ranking Member CANTWELL, and their staffs for their hard work in crafting a bipartisan energy bill.

Congress hasn't passed a comprehensive energy bill since 2007, and a lot has changed in the energy sector since then. We have seen a transformation in renewable energy. Electricity generation from wind power has grown by more than 400 percent. Wind energy now supplies electricity for 20 million Americans. The growth of solar energy is equally impressive. In its early days, solar power was known for powering satellites and space stations. Now we are seeing residential and utility-scale solar power becoming important components of the grid. Since the passage of the last Energy bill in 2007, our solar generation capacity has increased more than 2,000 percent. During that time, the cost of solar energy has dropped more than 60 percent. We have to build on these trends and reorient our energy sector toward a clean energy future. Comprehensive energy legislation needs to promote innovation, deploy clean energy technology, and create good-paying jobs.

The bipartisan Energy bill we are currently debating is an important step forward. It improves our Nation's energy efficiency through commonsense measures, such as updating building codes. It invests in energy storage, which will turn intermittent renewable energy into baseload power. It also helps States and tribes to access funds to deploy more clean energy technologies. These are good measures, and that is why I voted to support this bill out of the energy committee.

However, the current bill does not go far enough to fight the challenge of climate change. Climate change presents a Sputnik moment—an opportunity to rise to the challenge and defeat the threat of climate change. In response to Sputnik, we mobilized American ingenuity and innovation. We ended up not just winning the space race and sending a man to the Moon, we did all sorts of great things for the American economy and for our society.

By rising to the challenge of climate change, we can bet again on American ingenuity. We have the opportunity not just to clean up our air but also to drive innovation and create jobs. That is why I am offering my American Energy Efficiency Act as an amendment to this bill. This amendment, which is cosponsored by Senators HEINRICH, WARREN, and SANDERS, establishes a national energy efficiency standard that requires electric and natural gas utilities to help their customers use their electricity more efficiently. This is something that 25 States are already doing, and what those programs have shown us is that energy efficiency standards work.

Our amendment will send market signals that we are serious about energy efficiency. It will unleash the manufacturing and deployment of all kinds of energy-efficient products throughout our economy. It will help households and businesses save money on their electricity bills. According to the American Council for an Energy-Efficient Economy—the experts in energy efficiency who rated the energy savings in the Portman-Shaheen bill—our amendment will generate more than three times the energy savings of the entire Portman-Shaheen energy efficiency title in the base bill. By the year 2030, our amendment will generate 20 percent energy savings across the country and result in about $145 billion in net savings to consumers.

Our amendment is modeled on the experience of States that have adopted energy efficiency standards. In fact, the first State to adopt efficiency standards was Texas. Similar programs have been adopted by both red and blue States. What we have seen with these programs is that they work. They are saving energy, and they are saving consumers money, both in businesses and homes.

My State of Minnesota passed its energy efficiency standards under a Republican Governor—Governor Tim Pawlenty—in 2007. We have a goal of 1.5 percent annual energy savings, and we don't just meet that goal, we exceed it. These energy efficiency standards also send a market signal to companies to innovate and deploy energy savings technologies.

The State of Arkansas set its energy savings targets in 2011, and according to the Arkansas Advanced Energy Foundation, the program has generated $1 billion in sales by energy efficiency companies. The standard has also helped create 9,000 well-paying jobs in the State. The program has been so successful that the State public service commission recently extended the energy efficiency goals through 2019.

Arizona implemented its energy efficiency savings targets in 2011. Just 3 years after its implementation, Arizona went from being 29th to the 15th most energy-efficient State in the country. Through the program, utilities have saved electricity equivalent to powering 133,000 homes for 1 year. Businesses and residents have already saved $540 million from reduced energy and water usage. These savings put more in people's pockets. That means more money to buy groceries, a new car, or to pay for college.

The States have shown that energy efficiency standards work. We should learn from Pennsylvania, Illinois, Colorado, and 22 other States and bring this successful experiment to the whole country.

I again applaud the efforts of Senator MURKOWSKI and Senator CANTWELL in bringing this bipartisan Energy bill to the floor.

I urge my colleagues to support my amendment when it comes to a vote this afternoon. My amendment will make this good piece of legislation stronger. It will reduce emissions. It will save Americans money. It will unleash clean energy innovation and jobs throughout the Nation. I urge all of my colleagues to vote yes on this amendment and to bet on our future.

This is a Sputnik moment. When we responded to Sputnik, we did amazing things. This is a piece of it. I urge my colleagues to support my amendment.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CASSIDY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CASSIDY. Mr. President, I speak on amendment No. 3192, which is revolutionary. At some point I will yield to my colleague the Senator from Louisiana to further discuss this amendment.

Mr. President, the amendment I filed today is a byproduct of the work and bipartisan agreement of members representing the gulf, the Atlantic, and the Arctic regions of our country. I specifically thank Senators MURKOWSKI, WARNER, SCOTT, VITTER, KAINE, and TILLIS for their contributions in our efforts to bring greater equity revenue sharing from funds derived from offshore energy production.

For years, energy activities in coastal gulf States and adjacent offshore waters have produced billions of barrels of oil and trillions of cubic feet of natural gas for American energy consumers. The States along the gulf coast and the Arctic, et cetera, have supported offshore energy development for the rest of the country, providing the support for and paying for the infrastructure needed to bring this energy to market. With all of this development, as you might guess, there have been increased costs associated with supporting this increased traffic, additional use of local and State resources, as well as transportation corridors—such as pipelines, vessels, and trucks—to get this energy delivered to those consumers driving vehicles all across the United States.

Maybe most importantly, in addition to the critical areas that support this energy supply, in my State in particular we are experiencing unparalleled land loss due to Federal decisions as to how the lower Mississippi River will be channeled for the benefit of the inland country as well as those efforts associated with this oil and gas development. We can see the effects of this unparalleled land loss. When Hurricanes Katrina and Rita hit our coast, there was no longer the wetlands that buffered the impact of tidal action. Those wetlands eroded, so those hurricanes hit with greater force, causing greater damage to our State. After Hurricane Katrina, you only have to remember those news reports from New Orleans to understand how devastating that could be—all related to decisions made by the Federal Government.

Addressing these historic costs of hosting a capital-intensive industry, while ensuring resilient domestic energy supply, can be obtained only through equitable revenue sharing. What Louisiana does under our State constitution with any revenue that is shared from the Federal Government related to drilling off the coast of the Gulf of Mexico—100 percent is dedicated to coastal restoration; 100 percent is dedicated to restoring the wetlands that would prevent another Hurricane Katrina from devastating New Orleans or any other coastal community in our State.

There are other benefits for the rest of the country. This amendment that we have filed would increase funding for the Land and Water Conservation Fund by over $600 million, so the rest of the country benefits as well.

This amendment brings greater equity in revenue sharing with the gulf States by lifting the Gulf of Mexico Energy Security Act, or the GOMESA revenue sharing cap, while allowing mid-Atlantic States and Alaska to share in future revenue from offshore energy production. All energy-producing States deserve to share the revenue derived from energy developed both onshore and offshore. Responsible revenue sharing allows States hosting energy production to mitigate for the historic and prospective infrastructure demands of energy production and allows States to make strategic investments ensuring future generations of resiliency for this vital infrastructure and natural resources.

Mr. President, I yield to my colleague from Louisiana, Senator VITTER, for his thoughts on this issue.

Mr. VITTER. Mr. President, I thank Senator CASSIDY.

Mr. President, I also rise in strong support of this amendment, the Cassidy amendment, which would increase revenue sharing for States for offshore and oil and gas development.

Revenue sharing is a critical issue that I have advocated with others for many years, certainly including Senator CASSIDY, his predecessor, and Committee Chair MURKOWSKI. I am pleased that our coalition in support of this strong, positive concept has grown in recent years and it now includes colleagues from the mid-Atlantic States. I am particularly pleased that that is evidenced by this amendment being supported and coauthored by the two Senators from Virginia and Senator SCOTT.

Revenue sharing with oil and gas producing States is, No. 1, fair to those States that incur real environmental and other costs due to production activity that benefits the Nation; and, No. 2, it is good, positive pro-American energy policy.

It is fair because, again, energy-producing States incur costs and impacts from that production, including environmental costs. Those States need to be properly compensated to deal with those real costs and impacts.

Secondly, and just as importantly, this is positive, productive policy that furthers pro-American energy agenda. It encourages the production of American energy. It incents domestic drilling and activity and domestic energy production over the long term. That energy production is essential to job creation and an overall healthy economy. If it weren't for the oil and gas jobs that accompanied the energy sector boom earlier this decade, we would still be in a technical recession.

One point I wish to emphasize is that many of those jobs have been created by small firms in the oil and gas services industry and support sectors. These small business jobs are something I have highlighted in my role as chair of the Committee on Small Business and Entrepreneurship.

This amendment before the Senate, the Cassidy amendment, would increase revenue sharing for gulf States, and it would establish revenue sharing for new production from Alaska, Virginia, North Carolina, South Carolina, and Georgia. This is a clear gain for those States and those regions. But, more importantly, it is a clear gain for the country because in the medium and long term, we will get more American energy production and be more self-sufficient.

Let me be clear what revenue sharing means for States such as my home of Louisiana. In Louisiana we spend 100 percent of those revenues on valid environmental works, specifically coastal restoration.

We lose a football field of land in Louisiana's coastal area—just in coastal Louisiana—every 38 minutes. Think about that. Close your eyes, and picture a football field losing that amount of Louisiana coastal land every 38 minutes, 24 hours a day, 7 days a week, 52

weeks a year, with no time off for holidays or weekends. This is our most significant environmental issue by far in Louisiana, so our State has committed itself to spending all of the money we receive from revenue sharing to restoring, rebuilding, and stabilizing our coast.

This is vitally important for us. It is also vitally important for the rest of the country because Louisiana supplies so much energy to the rest of the country—so many fisheries, fish, and seafood to the rest of the country. Our ports in the midst of that coastal area are vital to trade and commerce for the rest of the country.

What this amendment does is expand revenue sharing to Alaska and the mid-Atlantic States. Between 2027 and 2031, those States would receive 37.5 percent of revenue sharing from oil and gas production off of their coasts, which is what Louisiana and the Gulf States receive now.

The amendment would also lift the cap on revenue sharing that the gulf States are burdened with under the GOMESA act of 2006. Under that law, revenue sharing with gulf States is capped arbitrarily at $500 million a year, but in those operative years of this amendment, that would be increased to $1 billion a year.

Revenue sharing is vital when it comes to adequately compensating the States that incur costs and impacts, so it is vital for fairness. But, again, it is vital to encourage more American energy production and more self-sufficiency. For our Nation—not just the States impacted—that means growth, and that means energy independence. That is a win, in fact, for our foreign policy—less dependence on unstable and sometimes very unfriendly nations in the Middle East.

We want to continue to play a critical role in meeting America's energy needs. We want to do that in Louisiana; other States want to do that. This amendment and this concept will very much encourage us to do that and continue to forge a path of American energy independence, which is great for economic growth.

I wish to briefly take a moment to compliment my colleague from Louisiana, Senator CASSIDY. He has worked very hard on this issue, this amendment, and other critical energy issues as a member of the energy committee and also before that as a Member of the House of Representatives. I am very grateful for this opportunity to work with him on this amendment and this concept that we have been working on and furthering for some time.

I urge all of my colleagues to support this commonsense, pro-American energy, pro-American jobs amendment. This will move us in the right direction for energy independence, for economic growth, and for a sound foreign policy that decreases our reliance and dependence of any sort on nations in the Middle East.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mrs. FISCHER). The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. PORTMAN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. PORTMAN. Madam President, I will be speaking later, as we are expecting Senator SHAHEEN from New Hampshire.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. SHAHEEN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. SHAHEEN. Madam President, I am delighted to be on the floor today, again, with my good friend from Ohio, Senator PORTMAN, to discuss our energy efficiency bill, the Energy Savings and Industrial Competitiveness Act, which is almost entirely now a part of the broad Energy Policy Modernization Act that is on the floor today.

The Energy Policy Modernization Act is a broad bipartisan approach to improve our Nation's energy policies on efficiency, infrastructure, supply, and accountability. I wish to thank the chair of the energy committee, Senator MURKOWSKI, and Ranking Member CANTWELL for the good work they have done to put together this bipartisan piece of legislation that is going to address a number of our energy challenges and also permanently reauthorize the Land and Water Conservation Fund. Now, as I said, a fundamental component of this bill started out as Shaheen-Portman. Now we call it Portman-Shaheen. But as my colleagues know, Senator PORTMAN and I have been working on this energy efficiency legislation since we first introduced it in 2011.

I am a proponent of energy efficiency because it is the easiest, cheapest way to reduce energy costs, to combat climate change, and to create private sector jobs. In addition to being affordable, energy efficiency benefits aren't confined to a certain fuel source or to a particular region of the country. You can like efficiency if you are a supporter of fossil fuels or if you are a supporter of new alternative energies.

Our piece of this comprehensive bill represents nearly 5 years of meetings, negotiations, compromise, and broad stakeholder outreach. The end result is an affordable, bipartisan approach to boost the use of energy efficiency technologies in manufacturing, in buildings, and across the Federal Government.

According to the American Council for an Energy-Efficient Economy, when fully implemented, our efficiency bill will create nearly 200,000 jobs, reduce carbon emissions by the equivalent of taking 22 million cars off the road, and save consumers $16 billion a year. And it does this with absolutely no mandates.

Critical to the negotiation of this legislation has been the joint effort between Senator PORTMAN and myself, and between our staffs, to work out with stakeholder groups the concerns they had in the energy efficiency legislation and to come up with compromises that we all thought not only helped build support for the legislation but that actually make it a better bill.

So on buildings, which use about 40 percent of our energy in this country, the proposals in our legislation would improve energy savings by strengthening outdated model building codes to make new homes and commercial buildings more energy efficient. Again, I point out that it does that without any mandates. It is a carefully crafted agreement that has been negotiated with everyone, from the home builders to the realtors to a number of our friends in labor. So I think this is a compromise, and the language in the bill is a compromise for which there is broad support.

The bill also encourages energy efficiency in the industrial sector, which consumes more energy than any other sector of our economy. Again, the provisions in the legislation would encourage the private sector to develop innovative energy efficient technologies for industrial applications and to invest in a workforce that is trained to deploy energy efficiency practices to manufacturers, and they would encourage the Department of Energy to work more closely with stakeholders on commercialization of new technologies.

Finally, the energy efficiency piece of this legislation would encourage the Federal Government, the Nation's largest energy consumer, to adopt more efficient building standards and technologies, such as smart meters. With stronger efficiency standards for Federal facilities, we can save taxpayers millions of dollars.

Senator PORTMAN and I have introduced our bill three times. Each time, this legislation has received broad bipartisan support from our Senate colleagues, broad bipartisan support in the energy committee, and it has received strong support from a diverse group of stakeholders—everyone from trade associations and the U.S. Chamber of Commerce to the National Association of Manufacturers, labor organizations, and the environmental community—all, I think, because efficiency is something that we can all agree on.

At long last, I am excited to see that the full Senate is again taking up this legislation as part of a bigger, more comprehensive bill.

Before I turn it over to Senator PORTMAN, who is here, I would also point out that two other provisions I have been working on are included in this comprehensive bill. One is smart manufacturing legislation, which uses technology to integrate all aspects of

manufacturing so that businesses can manufacture more while using less energy. The other provision deals with grid integration, because, as we know, this is one of the issues that the committee took up as part of this bill: How do we address our aging transmission and distribution infrastructure? The grid integration bill will ensure the broader deployment of clean and efficient technologies, such as solar, combined heat and power, and energy storage. I think that is important to strengthen this Nation's energy security.

Finally, I will close by saying that the Senate is working this week on a comprehensive energy bill for the first time since 2007, if it becomes law. Since then, we have seen a dramatic change in our economy, and we have seen a dramatic change in the world economy with respect to energy. The United States has greatly reduced our energy imports. We are now the world's top producer of oil and natural gas. In many places around the world, electricity generated by renewable sources, such as wind and solar, is cheap enough to compete effectively with electricity generated by fossil fuels. Just at the end of the year, we saw more than 180 countries come together to form a global plan to reduce greenhouse gas emissions and mitigate the effects of climate change. So we are truly experiencing a revolution in energy production and energy technology. It is way past time for our energy policies in America to catch up with that revolution.

I, again, thank the chair and ranking member and the entire energy committee, and, again, my colleague Senator PORTMAN for the great work he has done and that we have done together to bring this portion of the bill to the floor.

I yield to Senator PORTMAN.

Mr. PORTMAN. Madam President, I thank my colleague from New Hampshire, and I tell her that the third time is the charm. Right? We have had the bill before us twice now. We really think this is the opportunity for us to do something good for our constituents and for our country. This is an opportunity for us to pass energy efficiency legislation. It will help create more jobs, make the environment cleaner, make our businesses more competitive, make us less dependent on foreign sources of oil, and help with the trade deficit because of that. So this is a win-win for everybody, and, because of that, I thank Senator SHAHEEN for her work on this. We have been working on this for 4 years together. The last vote we had in the energy committee on this legislation was a 20-to-2 vote. As we have worked on this over time, we have received more and more support as people understood what we were doing and why it was so important for their States and for our country.

The economic growth in this last quarter was 0.7 percent, meaning less than 1 percent growth. That is discouraging. We have to look around and say: What can we do to help to get this economy moving again? One area is energy. There is no question about it. We believe our legislation will help. It is going to create jobs. We have the number out there, as Senator SHAHEEN talked about, and just under 200,000 jobs could be created by our legislation. We have an analysis that shows this. But this broader energy bill would also help. That is one reason we need to move forward on this.

We are grateful that our legislation is part of this broader bill called the Energy Policy Modernization Act. This legislation is one that Senator MURKOWSKI and Senator CANTWELL have been talking about on the floor. I support that broader legislation, also, as does Senator SHAHEEN, and we like it because it is a broader bill that looks at the energy issue as an ''all the above.'' In other words, we should be using various sources of energy and producing more energy, but we should also be using what we have more efficiently.

We are delighted that our legislation—the Portman-Shaheen legislation—is title I of this broader bill. This is an opportunity for us to do something really good for the economy—this broader bill, as well as our specific bill. We think our specific bill is really important with regard to jobs.

One thing I hear back home from our manufacturing companies is that they would like to become more competitive so that they can create more jobs in Ohio and in America. We are starting to bring some jobs back because energy prices are relatively low, natural gas and oil in particular. But one of the issues they are facing overseas is that other countries are more energy efficient and their manufacturing companies are more efficient. So they are competing with companies that have a lower cost to produce the same product. So one reason they are excited about this legislation—and why the National Association of Manufacturers is for this legislation and has worked with us from the start—is that this provides them access to new technologies on energy efficiency that will let them compete globally with other companies and create more jobs. This is going to result in more jobs coming to Ohio, more jobs coming to New Hampshire, and more jobs coming to America. We like that about the legislation. It also has more jobs because these energy efficiency retrofits are going to create more jobs and activity here in this country. So as buildings become more efficient, we will need workers to work on that. We have some training programs in our legislation, for instance, to provide for that workforce. So we are going to create more jobs.

As to energy independence, the underlying bill lets us actually produce more energy here but use it more efficiently. I like producing more and using less. It is a nice combination, and it lets us say to other countries in the world that we are going to be energy independent and not subject to the dangerous and volatile parts of the world where our energy comes from. We are going to be a net exporter over time. Energy efficiency helps us to be able to do that.

Our trade deficit is driven by a couple things. I am a former U.S. Trade Representative, and, yes, countries like China and other countries aren't playing by the rules. That is a problem, and we need to address that. But another one is energy. We still do need to bring in more energy than we are exporting. That is an opportunity for us to help our economy overall with efficiency and to help improve our trade deficit, which improves our environment.

Senator SHAHEEN talked about improving the environment, but the analysis she was using is that 21 million cars being taken off the road is the equivalent savings that is in this legislation for emissions. That is because of the energy efficiency. This is an opportunity for us to be much more energy efficient in terms of our economy and be more competitive but also to clean the environment. This is a good example.

By the way, it is not a big regulatory approach, as some other approaches are. It doesn't have any mandates in it, so it is not going to kill jobs. It is actually going to create jobs and yet help the environment. That is a good combination for us. It is one we are excited about because it is a way for us to both help the economy and help the environment. That is important too.

We are excited about getting this across the finish line because we know it is the right legislation. It is the right time. We think there is an opportunity for us to actually do something that is bipartisan, something we can get through the House and get to the President's desk for his signature.

One reason we are excited about the prospects of getting something done is that we have so much support around the country. There are over 260 trade association groups that have now supported this legislation. By the way, they range from the National Association of Manufacturers—as I talked about earlier—to the Sierra Club, to the Alliance to Save Energy, to the U.S. Chamber of Commerce. That is not a group that normally gets together on legislation. So this is an opportunity for us to get a lot of groups involved and focused because it does make good economic sense, good energy sense, and good environmental sense. While helping others in the private sector, the bill does not have mandates. I think that is very important. This is legislation that provides incentives but not mandates.

The final piece I want to talk about is one that everybody should be for. It is going to actually help reduce the costs of the Federal Government and therefore help us all as taxpayers; that is, to take on the Federal Government's efficiency challenge. We believe

the U.S. Federal Government is the largest energy user in the United States and may well be the largest energy user in the world. This is let's practice what we preach.

The Federal Government is talking about green technologies, energy efficiency, and so on, but in our own Federal Government we see huge gaps and huge opportunities. This legislation goes after that and specifically puts in place requirements for the Federal Government to be much more efficient with how it uses energy. That will make a big difference in terms of everything we talked about with regard to the environment and the benefits of efficiency, but it also helps the taxpayer because at the end of the day, we will be spending less on energy for the Federal Government as taxpayers.

It is another part of the legislation that I think is important and one where I would hope everybody would be supportive. Overall, we believe this legislation will save consumers $13.7 billion annually in reduced energy costs. This is a big deal. This is something that if we can get it through the Senate this week and get it through the House and get it to the President for his signature, it will make a real difference for the families I represent and whom all of us in this Chamber have the honor to represent.

I thank Senator SHAHEEN for her patience over what has been 4, 5 years working on this together with me and the good work she has done and others have done to give us this opportunity to be able to help those folks whom we represent with an ''all of the above'' energy strategy that is good for jobs, good for the environment, and good for the taxpayer.

The PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Madam President, as the Presiding Officer knows, we are busy working to complete action on the Energy Policy Modernization Act. I want to start by saying some good words about the leadership of Senator MURKOWSKI, the chairman of the energy committee, and her ranking member, Senator CANTWELL, who have gotten us to this point. Unless we drop the ball in the next couple of days, we ought to be able to wrap up our debate and deliberation on this very important bill that will help our country move forward with energy policies that reflect the times we are living in.

I also think we ought to reflect on what those times are because it was just a few short years ago when all of the pundits and experts were predicting peak oil. In other words, all the oil that could be discovered, they said, had been discovered and we would then be in a period of decline from that point forward. In the United States we also found ourselves in the main dependent upon imported oil from the Middle East. As you know, both of those have turned around. In other words, because of the innovation and good old all-American know-how, we are now exporting more energy.

To Senator MURKOWSKI's credit, she led the effort to lift the ban on exporting crude oil, so now American-produced energy can be made available on world markets. Just as significantly, we can make sure our friends and allies around the world aren't captive to people like Vladimir Putin, who uses energy as a weapon and threatens to cut off the energy supply, particularly of those countries in its orbit in the Baltics unless they are willing to go along with his heavy-handed tactics.

This is a very good story. This legislation will update our energy policies with that reality in mind and enable our country to continue to grow its role as a leading global energy power. I pause here to say that this is not just from people who come from an energy State as I do, such as from Texas or Alaska or North Dakota. The energy story is the story of world history in so many ways.

One of my favorite books is written by Daniel Yergin, a Pulitzer Prize-winning author. One of the books he has written is called ''The Prize,'' which tracks the history of the globe and in an incredible sort of way, but he makes the point that so much of our history has been determined by the need for and attempt to gain access to reliable energy supplies and how important that is not only to our military to be able to fight and win our Nation's wars but to our economy, to the businesses that need access to reasonably priced energy and to consumers, obviously.

We are seeing the benefit now, those of us who filled our gas tank recently, of inexpensive gasoline prices because the price of oil has come down because of increased world supply. There comes a point where it is challenging to the industry, but they have been through ups and downs in the past, and I am sure they will make the appropriate adjustments.

In this legislation, in addition to addressing and modernizing our energy policies, we are doing things such as modernizing the electric grid. That is what keeps the lights on at night and keeps our thermostats working when it is cold and we have snowstorms like we had in Washington recently.

This bill will make our electricity supply more reliable and more economical in the long run. Just like we did with crude oil, this bill will help expedite the approval process for liquefied natural gas exports. It is amazing to me to think that a few short years ago we were building import terminals that would actually receive natural gas being exported from other countries to being brought to the United States to help us with our energy needs. Now those have been retrofitted and reversed so these export terminals are now exporting American energy to markets around the world.

I want to spend a couple of minutes talking about some amendments that I have offered to the underlying bill. Again, I must compliment the bill managers for working with various Senators to try to work in, either through a voice vote or by some acceptance of amendments, provisions which are designed to improve this legislation. My amendments that I want to mention now are designed to address Texas's needs and the American people's needs from preventing overreach by the administration, particularly when it comes to your energy production and supply.

One amendment I have offered specifically targets an upcoming rule offered by the Bureau of Safety and Environmental Enforcement, known as BSEE. BSEE is an organization that most people are completely unaware of, but it is set to hand down a rule referred to as the so-called well control rule that deals with highly technical and complex safety producers for offshore wells.

Certainly, since the BP blowout in the Gulf of Mexico, we have become all too aware of the dangers of uncontrolled blowout of offshore drilling, but there has been a lot of very important study, work, and education that has been acquired since that time. The industry has done a lot to make itself safer.

You can imagine, if you are a publicly traded company or if you are not a publicly traded company, you sure don't want to be in the middle of another crisis like we saw with the BP blowout in the Gulf of Mexico for all sorts of reasons: People lost their lives, cost hundreds of millions of dollars, and of course the environmental impact along the gulf coast, including States like Texas. In typical bureaucratic fashion, the Bureau of Safety and Environmental Enforcement, BSEE, has refused to engage in discussions that might help clear up some confusion among stakeholders. They have been unwilling to take the time to fully vet the negative impact on their proposed rules and to talk to the people who know the most about it, and that would be the people who would be most affected by the rule.

My amendment would require BSEE to resubmit the rule but first by taking additional comments from stakeholders, and it would require the rulemaking organization to have additional workshops with industry experts so everybody can understand what they are trying to accomplish and to do it more efficiently and better.

So often the very people who have the most expertise are in the industry the government tries to regulate. I know there is a natural reluctance to try to consult with and learn from the regulated industry, but the fact is, often—and it is true in this case—it is that industry that understands the process and both the risks and what protective measures need to be taken in order to accomplish the objective. So rather than just issuing a rule that is complex and highly technical without consulting the stakeholders who are sitting down and having a reasonable conversation trying to figure out

what you are trying to accomplish, have you thought of this, have you thought of doing it differently or a better way, that doesn't happen. Unfortunately, that is where we are with BSEE.

In addition, I have submitted an amendment that protects property owners along a 116-mile stretch of the Red River, which borders the States of Texas and Oklahoma. This has to do with another bureaucracy called the Bureau of Land Management. A few years ago, the Bureau of Land Management claimed to actually own tens of thousands of acres along the Red River. As you can imagine, that came as quite a shock to the people who thought they owned that property, and now many of them are stuck today fighting the U.S. Government—their government—in court to reclaim the property that is rightfully theirs.

My amendment would help protect these landowners from this massive land grab. It would require a legitimate survey of the land in question to be conducted and approved by the authorities. It seems so commonsensical, but unfortunately common sense isn't all that common when you see the bureaucracy at work. With this amendment, these landowners would finally get a reasonably efficient means of resolution to this frustrating abuse of Federal Government power.

Another amendment I have submitted would address how States, counties, and other affected parties enter into a conversation about the Endangered Species Act. Too often States and local communities, not to mention private property owners, are left in the dark while interest groups they don't know much about conduct closed-door discussions with Federal authorities about potential listing of endangered species.

My amendment will give all of the stakeholders the opportunity to have a seat at the table and to have a conversation—it doesn't seem like a lot to ask—so both the regulators and the regulated can talk about the real impact those regulations will have on their daily lives and better inform the regulatory process.

These amendments get to different specific problems, but the common theme uniting them is a desire to try to lessen the interference by the government in our everyday lives. By pushing back against overbearing, costly regulations that don't actually accomplish the goal that even the regulators say they want to accomplish and ensuring that State and local communities and stakeholders play a role in this conversation which should be part of the regulatory process, the American people would be better served by this legislation.

As we continue these discussions on this bill, I hope my colleagues will consider these amendments and others like them to help get the government out of the way or to help correct the bureaucracy when it is misguided and misinformed about how to actually accomplish consensus goals.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

AMENDMENT NO. 3023 TO AMENDMENT NO. 2953

Mr. LEE. Madam President, I call up my amendment No. 3023.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Utah [Mr. LEE] proposes an amendment numbered 3023 to amendment No. 2953.

Mr. LEE. Madam President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To modify the authority of the President of the United States to declare national monuments)

At the end of subtitle E of title IV, add the following:

SEC. 44____. MODIFICATION OF AUTHORITY TO DECLARE NATIONAL MONUMENTS.

Section 320301 of title 54, United States Code, is amended by adding at the end the following:

''(e) EFFECTIVE DATE.—A proclamation or reservation issued after the date of enactment of this subsection under subsection (a) or (b) shall expire 3 years after proclaimed or reserved unless specifically approved by—

''(1) a Federal law enacted after the date of the proclamation or reservation; and

''(2) a State law, for each State where the land covered by the proclamation or reservation is located, enacted after the date of the proclamation or reservation.''.

Mr. LEE. Madam President, I ask unanimous consent to speak for up to an additional 15 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. LEE. Madam President, if there is one thing we know about American politics—if there is one thing we have learned from the 2016 Presidential race thus far—it is that there is a deep and growing mistrust between the American people and the Federal Government. This institution, Congress, is held in shamefully low regard by the people we were elected to represent, but so, too, are the scores of bureaucratic agencies that are based in Washington, DC, but extend their reach into the most remote corners of American life.

In my home State of Utah, the public's distrust of Washington is rooted not in ideology, but experience. In particular, the experience of living in a State where a whopping two-thirds of the land is owned by the Federal Government and managed by distant, unaccountable agencies that are either indifferent or downright hostile to the interests of the local communities that they are supposed to serve. I have lost track of the number of stories I have heard from the people of Utah about their run-ins with Federal land management agencies, but there is one story that every Utahan knows: President Bill Clinton's infamous use of the Antiquities Act in 1996 to designate as a national monument more than 1.5 million acres of land in southern Utah—what would become known as the Grand Staircase-Escalante National Monument.

What Utahans remember about this episode is not just what President Clinton did, but how he did it. Signed into law in 1906, the Antiquities Act gives the President power to unilaterally designate tracts of Federal land as ''historic landmarks, historic and prehistoric structures, and other objects of historic or scientific interest.'' The purpose of the law is to enable the Executive to act quickly to protect archaeological sites on Federal lands from looting, destruction, or vandalism.

But the Antiquities Act is not supposed to be carte blanche for the President. In fact, it is quite the opposite. The language of the law is clear. It instructs the President to restrict the designation of national monuments under the Antiquities Act to the ''smallest area compatible with proper care and management of the objects to be protected.'' So you can imagine the surprise, and, in fact, the indignation across the State of Utah following President Clinton's decision to annex a stretch of land roughly 1½ times the size of the State of Delaware and then to give control over that land to a Federal bureaucracy that routinely maintains a maintenance backlog that is several billion dollars higher than its multibillion-dollar annual budget.

Even worse than the enormous size of the designation was the Clinton administration's hostility toward the people of Utah and the communities that would be most directly and severely affected by his decision. Not only did President Clinton announce the monument designation in Arizona—over 100 miles from the Utah State border—but he refused to consult or even notify Utah's congressional delegation until the day before his announcement. Consulting with the people who live and work in the communities around a potential national monument area isn't just a matter of following political etiquette, it is a matter of ensuring that Federal land policy does not rob citizens of their livelihood, which is exactly what happened as a result of the Grand Staircase designation.

Utah's economy is built on the farm and agriculture industry, and livestock is the State's single largest sector of farm income. But of the 45 million acres of rangeland in Utah, nearly three-quarters is owned and managed by the Federal Government.

Since the 1940s, Federal agencies have slashed livestock grazing across the Utah landscape by more than 50 percent—a policy of economic deprivation that accelerated after 1996 on rangeland within the Grand Staircase case. Even today the Bureau of Land Management shows no sign of relenting.

For most people, the Grand Staircase episode is a case study of government-sponsored injustice and a form of bureaucratic tyranny. For me, it brings to mind the line from America's Declaration of Independence in which the colonists charge that the King of Great Britain ''has erected a multitude of New Offices and sent hither swarms of officers to harass our people, and eat out their substance.''

But for President Obama and the radical environmental groups that have co-opted Federal land agencies, it is the textbook model for the application of the Antiquities Act. In fact, it appears that President Obama is considering using his final year in the White House to target another vast tract of land in southern Utah for designation as a national monument. Covering 1.9 million acres of Federal land in San Juan County, this area, known as Bears Ears, is roughly the same size as the Grand Staircase. Both are situated near the southern edge of the State, and both possess an abundance of national beauty unrivaled by any place in the world.

The similarities don't end there. Each area is home to a group of Utahans deeply connected to the Federal land targeted by environmental activists for a national monument designation. In the case of the Grand Staircase, it is the ranchers, and in the case of Bears Ears, it is the Kaayelii Navajo. The Kaayelii believe that a national monument designation in Bears Ears, their ancestral home, would threaten their livelihood and destroy their very way of life.

Their concerns are well founded. In the 1920s and 1930s, hundreds of Navajo families settled on homesteads located in national monuments only to find themselves steadily pushed out by imperious Federal agencies all too eager to eradicate the private use of public lands. So it should come as no surprise to us today that the Kaayelii are protesting the unilateral Federal takeover of Bears Ears and calling on the Obama administration to forgo the high-handed approach to land conservation that was employed by President Clinton in 1996.

The Kaayelii, of course, are not opposed to the protection or the conservation of public lands. They care about the preservation of Bears Ears just as much as anyone else. To them, the land is not just beautiful, it is also sacred. They depend on it for their economic and spiritual survival, which is why all they are asking for is a seat at the table so that their ancestral land isn't given over, sight unseen, to the arbitrary and arrogant control of Federal land management agencies.

I agree with the Kaayelii. The President of the United States has no business seizing vast stretches of public land to be micromanaged and mismanaged by Federal agencies, especially if the people who live, work, and depend on the land stand in opposition to such a takeover. There is no denying that the people of San Juan County reject the presumption that they should have no say in the management of the land in their community. The truth is that most of those who have mobilized to support a monument designation at Bears Ears, including several Native American groups, live outside of Utah in States such as Colorado, New Mexico, and Arizona.

By contrast, the people of San Juan County, UT—the people whose lives and livelihoods are intricately tied to Bears Ears—stand united in their opposition to a monument designation. That is why I have offered amendment No. 3023, which would update the Antiquities Act in order to protect the right of the Kaayelii and their fellow citizens of San Juan County to participate in the government's efforts to protect and preserve public land.

Here is how my amendment works: It preserves the President's authority to designate tracts of Federal land as national monuments, but it also reserves a seat at the table for people who would be directly affected by Executive action. It does so by opening the policymaking process to the people's elected representatives at the State and Federal levels so they can weigh in on monument designations.

Under my amendment, Congress and the legislature of the State in which a monument has been designated would have 3 years to pass resolutions ratifying the designation. If they fail to do so, the national monument designation will expire. Some critics might claim that this amendment would take unprecedented steps to curtail the President's monument designation authority under the Antiquities Act. This is not true. This, in fact, is nonsense. The truth is that Congress has twice passed legislation amending the Antiquities Act. In 1950, Congress wholly prohibited Presidential designation of national monuments under the Antiquities Act in the State of Wyoming. Some 30 years later, Congress passed another law requiring congressional approval of national monuments in Alaska larger than 5,000 acres.

If you have ever visited Wyoming or Alaska, you know that these provisions have not led to the parade of horribles conjured up by radical environmental activists who seem intent on achieving nothing short of ironfisted Federal control of all Federal lands.

In reality, the States of Wyoming and Alaska have proven that national monument designations are not necessary to protect and conserve America's most beautiful, treasured public lands. So why should the people of Wyoming and Alaska enjoy these reasonable, commonsense protections under the law while the people of Utah—and indeed, the people of every other State in the Union—do not enjoy the same protections? There is no good answer to this question except, of course, the adoption of my amendment.

To anyone who might suggest that the people of these communities in and around national monuments are not prepared to participate in the monument process and policy process that leads to the creation of a monument, I invite you to visit San Juan County in southeastern Utah. You will see a community that is not only well informed about the issues and actively engaged in the political process, but also genuinely dedicated to finding a solution that works for everyone.

The people of San Juan County—from the Kaayelii to the county commissioners—have the determination that is necessary to forge a legislative solution to the challenges facing public lands in their community, and that is exactly what you would expect. San Juan is a hardscrabble community. It is one of the most disadvantaged in the entire State of Utah, but you wouldn't know it from the people there. The citizens of San Juan County are hardworking, honest, decent, and happy people. Yet for far too long, Federal land management agencies have given the people of San Juan County and the people all across America little reason to trust the Federal Government.

My amendment gives us an opportunity to change that. If Congress wants to regain the trust of the American people, we are going to have to earn it, and one of the ways we can earn it is by returning power to the people, and that is what this amendment would do. Passing this amendment giving all Americans a voice in the land management decisions of their community would be a meaningful and important step toward earning back that trust. I urge my colleagues to lend their support to this amendment and the vital public trust that it will help us to rebuild.

I thank the Presiding Officer, and I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Madam President, I am hopeful that before we go to the caucus lunches, we will be able to move forward on a few more amendments and the scheduling of votes. Hopefully we will be able to do that in a few minutes.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. MURKOWSKI. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. MURKOWSKI. Madam President, we are making some good progress here in the intervening hours since we came to the floor this morning and began business.

Working with the ranking member on the Energy and Natural Resources Committee, we have come to an agreement to announce a series of amendments that will be voted on. I want to acknowledge the effort that has gone back and forth on both sides to make

sure folks have an opportunity to weigh in and vote on amendments that are important to them. I think we have a good series here that we will announce.

It is our hope that as we move to vote on these amendments, we will also continue the good work we have done to try to advance some other measures that will be able to go by voice votes, and we will be working on those throughout the day.

Madam President, I ask unanimous consent that it be in order to call up the following amendments: No. 3182, Rounds, as modified; No. 3030, Barrasso; No. 2996, Sullivan; No. 3176, Schatz; No. 3095, Durbin; and No. 3125, Whitehouse; that following the disposition of the Franken amendment No. 3115, the Senate proceed to vote in relation to the above amendments in the order listed with no second-degree amendments in order prior to the votes; that a 60-vote affirmative threshold be required for adoption; and that there be 2 minutes of debate equally divided prior to each vote.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. MURKOWSKI. Madam President, I would note that there will now be a series of eight votes when we commence at 2:30 this afternoon, and recognizing that there are committees meeting and other Senate business going on, we would hope to be able to process these votes relatively efficiently, respecting that 10-minute vote parameter, so that we can move through them in a manner that respects others' schedules.

With that, Madam President, I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:49 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

ENERGY POLICY MODERNIZATION ACT OF 2015—Continued

The PRESIDING OFFICER. Under the previous order, the time until 2:30 p.m. will be equally divided in the usual form.

The Senator from Arizona.

AMENDMENT NO. 3023

Mr. FLAKE. Mr. President, I rise today in support of Lee amendment No. 3023, which places commonsense limitations on the ability of the executive branch to unilaterally lock up large swaths of public land. Specifically, the amendment provides Congress and the applicable State legislatures a 3-year window to approve Presidentially declared national monuments, ensuring that land use decisions finally have the input from the impacted States.

Arizona knows all too well the effects of restrictive Federal land designations. Like most Western States, a significant portion of Arizona is under Federal ownership. Arizona leads the Nation with a total of 21 national parks and monuments. Like most, our Federal land is a mix of single-purpose lands set aside for recreation and multiple-use lands providing opportunities for grazing, mining, and timber production. The ability to use these lands for multiple purposes is critical; however, a national monument designation can take away that opportunity with one stroke of the President's pen.

It is also worth noting that a monument designation has the potential to change the character of the water rights associated with Federal lands—an outcome I am working to prevent with separate stand-alone legislation.

There is a real concern that the President will take unilateral action to increase the Federal Government's ownership of Federal lands. In fact, one recent proposal would lock up another 1.7 million acres right in Arizona to create yet another national monument. That is an area larger than the entire State of Delaware. The negative impact of such a land grab would likely extend to activities such as hunting, livestock grazing, wildfire prevention, mining, and other recreation activities. Last March Senator MCCAIN and I sent a letter to the President urging him to not unilaterally pursue this monument designation. This sentiment is echoed by a large number of individuals throughout Arizona, including State and local officials, several municipalities, and a wide range of sportsmen's groups.

The Lee amendment would give these stakeholders a voice in the monument designation process, and I am happy to be a cosponsor and to support this amendment on the floor today.

I also look forward to considering several amendments I have submitted on this legislation as well regarding safeguarding hydropower production, reimbursing national parks after a government shutdown occurs, and creating a database to increase transparency for WAPA customers.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. CANTWELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. CANTWELL. Mr. President, we are about to vote shortly on the Lee amendment.

I rise to speak in opposition to that amendment and to remind my colleagues that this is a vote that we took around the same time last year.

The Antiquities Act is one of our Nation's most successful conservation laws. It was signed into law in 1906 and used by President Theodore Roosevelt to designate Devils Tower in Wyoming as its first national monument.

In the 110 years since its enactment, the Antiquities Act has been used by 16 different Presidents—8 Republicans, 8 Democrats—to designate more than 140 national monuments, including the San Juan Islands and the Hanford Reach in the State of Washington. Nearly half of our national parks, including national icons, such as the Grand Canyon and Olympic National Park, were designated as national monuments under the Antiquities Act. However, the amendment of the Senator from Utah would effectively end the President's ability to use the Antiquities Act to protect these threatened lands. His amendment requires that the national monument designation will expire after 3 years unless Congress enacts a law specifically approving the designation, and the State in which the monument would be located would also have to approve the designation. So this amendment requires State and Federal approval over a Federal land designation, which is unprecedented, giving away Federal land management responsibilities to States and a veto over these conservation efforts.

I hope that, as my colleagues look at this first vote, they will oppose this amendment. As I said, I strongly do, and I hope our colleagues will look at their past record on this as well, because I am pretty sure we are all on record on our side in opposition to this amendment in the past.

With that, I know we are probably ready to proceed to the vote.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, I rise to speak in support of my amendment No. 3023.

The purpose of this amendment is simple—to put in the hands of the people the right to decide whether a monument close to them will be designated. My amendment would leave intact the President's authority to designate a monument such that we could protect land from imminent destruction, but it puts a fuse on that. It puts a finite limit on that authority so that within 3 years that monument designation would expire unless both the host State has acted to embrace it and Congress has affirmatively enacted the monument designation into law.

The American people demand and deserve nothing less than to have decisions such as these put in the hands of their elected representatives rather than simply handed over to one single official who doesn't stand accountable to the American people.

I encourage my colleagues to support this amendment.

The PRESIDING OFFICER. The question is on agreeing to amendment No. 3023.

Mr. LEE. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alabama (Mr. SHELBY).

Further, if present and voting, the Senator from Alabama (Mr. SHELBY) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 47, nays 48, as follows:

[Rollcall Vote No. 10 Leg.]

YEAS—47

Barrasso	Fischer	Paul
Blunt	Flake	Perdue
Boozman	Grassley	Portman
Burr	Hatch	Risch
Capito	Heller	Roberts
Cassidy	Hoeven	Rounds
Coats	Inhofe	Sasse
Cochran	Isakson	Scott
Collins	Johnson	Sessions
Corker	Lankford	Sullivan
Cornyn	Lee	Thune
Cotton	Manchin	Tillis
Crapo	McCain	Toomey
Daines	McConnell	Vitter
Enzi	Moran	Wicker
Ernst	Murkowski	

NAYS—48

Alexander	Franken	Murphy
Ayotte	Gardner	Murray
Baldwin	Gillibrand	Nelson
Bennet	Heinrich	Peters
Blumenthal	Heitkamp	Reed
Booker	Hirono	Reid
Boxer	Kaine	Schatz
Brown	King	Schumer
Cantwell	Kirk	Shaheen
Cardin	Klobuchar	Stabenow
Carper	Leahy	Tester
Casey	Markey	Udall
Coons	McCaskill	Warner
Donnelly	Menendez	Warren
Durbin	Merkley	Whitehouse
Feinstein	Mikulski	Wyden

NOT VOTING—5

Cruz	Rubio	Shelby
Graham	Sanders	

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Minnesota.

AMENDMENT NO. 3115 TO AMENDMENT NO. 2953

(Purpose: To establish a Federal energy efficiency resource standard for electricity and natural gas suppliers)

Mr. FRANKEN. Mr. President, I call up amendment No. 3115 and ask that it be reported by number.

The PRESIDING OFFICER. The clerk will report the amendment by number.

The senior assistant legislative clerk read as follows:

The Senator from Minnesota [Mr. FRANKEN] proposes an amendment numbered 3115 to amendment No. 2953.

(The amendment is printed in the RECORD of January 28, 2016, under ''Text of Amendments.'')

Mr. FRANKEN. Mr. President, I ask for order so my colleagues might hear my wise remarks.

The PRESIDING OFFICER. The Senate will come to order.

Mr. FRANKEN. Mr. President, I call on my colleagues to support my amendment No. 3115 that I offer with Senators HEINRICH, WARREN, and SANDERS. This amendment establishes a national energy efficiency standard that requires electric and natural gas utilities to help their customers use energy more efficiently. Our amendment is modeled on the experience of Minnesota and 24 other States that have already adopted energy efficiency standards, including States such as Texas, Arizona, and Arkansas. The State programs are working great, helping reduce energy usage, saving customers, consumers, and businesses money on their electricity bills, creating well-paying jobs, and reducing greenhouse gas emissions. According to the American Council for an Energy-Efficient Economy, our amendment will generate more than three times the energy savings of the entire Portman-Shaheen energy efficiency title, which is a great title in and of itself, in the base bill. By the year 2030, our amendment will generate 20 percent energy savings across the country and result in about $145 billion in net savings to consumers.

We like to say that States are the laboratories of democracy, and half our States have shown that these policies work. So it is time to build on their successes and bring this successful experiment to the entire country. I ask my colleagues to join me in supporting this important amendment.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. Mr. President, I urge that Members oppose this amendment that would impose a Federal mandate on retail electricity and natural gas suppliers to reduce a certain percentage of electricity or natural gas that their customers use annually. We have considered this before. We have seen it. It has been under consideration for about a decade. Most recently, the energy committee rejected this same proposal as we were moving forward on this bipartisan Energy bill.

A national mandate like this depends on the behavior of end-use customers. The concern that you take a one-size-fits-all policy that refuses to recognize very real regional differences that are in play out there with energy use is problematic. As the Senator from Minnesota said, 25 States already have this in place, but what we do by imposing a new national mandate is we upend those existing State programs.

We have a good, bipartisan efficiency measure contained in this. That is why a Federal EERS has not worked before. Now is not the right time to move forward with it.

Mr. President, I ask unanimous consent that the votes in this series be 10 minutes in length so we can move through the amendments we have in front of us.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

All time has expired.

The question occurs on agreeing to the amendment.

Mr. MCCONNELL. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alabama (Mr. SHELBY).

Further, if present and voting, the Senator from Alabama (Mr. SHELBY) would have voted ''nay.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER (Mr. LANKFORD). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 43, nays 52, as follows:

[Rollcall Vote No. 11 Leg.]

YEAS—43

Baldwin	Franken	Nelson
Bennet	Gillibrand	Peters
Blumenthal	Heinrich	Reed
Booker	Hirono	Reid
Boxer	Kaine	Schatz
Brown	King	Schumer
Cantwell	Klobuchar	Shaheen
Cardin	Leahy	Stabenow
Carper	Markey	Udall
Casey	McCaskill	Warner
Collins	Menendez	Warren
Coons	Merkley	Whitehouse
Donnelly	Mikulski	Wyden
Durbin	Murphy	
Feinstein	Murray	

NAYS—52

Alexander	Flake	Paul
Ayotte	Gardner	Perdue
Barrasso	Grassley	Portman
Blunt	Hatch	Risch
Boozman	Heitkamp	Roberts
Burr	Heller	Rounds
Capito	Hoeven	Sasse
Cassidy	Inhofe	Scott
Coats	Isakson	Sessions
Cochran	Johnson	Sullivan
Corker	Kirk	Tester
Cornyn	Lankford	Thune
Cotton	Lee	Tillis
Crapo	Manchin	Toomey
Daines	McCain	Vitter
Enzi	McConnell	Wicker
Ernst	Moran	
Fischer	Murkowski	

NOT VOTING—5

Cruz	Rubio	Shelby
Graham	Sanders	

THE PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from South Dakota.

AMENDMENT NO. 3182, AS MODIFIED, TO AMENDMENT NO. 2953

Mr. ROUNDS. Mr. President, I call up my amendment No. 3182, as modified.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from South Dakota [Mr. ROUNDS] proposes an amendment numbered 3182, as modified, to amendment No. 2953.

The amendment, as modified, is as follows:

(Purpose: To direct the Secretary of the Interior to establish a conservation incentives landowner education program)

At the end of title V, add the following:

SEC. 50___. CONSERVATION INCENTIVES LANDOWNER EDUCATION PROGRAM.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of the Interior shall establish a conservation incentives landowner education program (referred to in this section as the ''program'').

(b) PURPOSE OF PROGRAM.—The program shall provide information on Federal conservation programs available to landowners interested in undertaking conservation actions on the land of the landowners, including options under each conservation program available to achieve the conservation goals of the program, such as—

(1) fee title land acquisition;

(2) donation; and

(3) perpetual and term conservation easements or agreements.

(c) AVAILABILITY.—The Secretary of the Interior shall ensure that the information provided under the program is made available to—

(1) interested landowners; and

(2) the public.

(d) NOTIFICATION.—In any case in which the Secretary of the Interior contacts a landowner directly about participation in a Federal conservation program, the Secretary shall, in writing—

(1) notify the landowner of the program; and

(2) make available information on the conservation program options that may be available to the landowner.

The PRESIDING OFFICER. There is 2 minutes equally divided.

The Senator from South Dakota.

Mr. ROUNDS. Mr. President, conservation easements are an important tool when we talk about rural America. They are used on a regular basis, but whenever entering into a conservation easement with the government, farmers, ranchers, and landowners should be made aware of all of the options made available to them, not just permanent easements. While there are many programs and options available, all too often landowners are not aware of these options and will unknowingly enter into a contract with the government because they don't realize there are also shorter term options available to them.

This amendment will aggregate information for landowners and will allow landowners to choose from conservation options that are shorter term and are not a permanent contract with the government.

I ask that my colleagues support this amendment.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, this amendment would direct the Department of the Interior to create a new education program to educate landowners about conservation programs. It also requires that if the Interior Department contacts landowners about selling property or participating in a Federal conservation program, that the landowner be provided information about the Federal conservation programs available. I think this information is already publicly available, so I don't oppose establishing it as a conservation education program, and I am happy to move this amendment by a voice vote.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. Mr. President, I appreciate Senator ROUNDS bringing this measure before us. It appears we do have an agreement to do a voice vote on the Rounds amendment, as modified; therefore, I ask unanimous consent that the 60-vote threshold with respect to Rounds amendment No. 3182, as modified, be vitiated.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The question is on agreeing to the amendment.

The amendment (No. 3182), as modified, was agreed to.

The PRESIDING OFFICER. The Senator from Wyoming.

AMENDMENT NO. 3030 TO AMENDMENT NO. 2953

Mr. BARRASSO. Mr. President, I call up amendment No. 3030.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from Wyoming [Mr. BARRASSO] proposes an amendment numbered 3030 to amendment No. 2953.

Mr. BARRASSO. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To establish deadlines and expedite permits for certain natural gas gathering lines on Federal land and Indian land)

At the appropriate place, insert the following:

SEC. _____. NATURAL GAS GATHERING ENHANCEMENT.

(a) CERTAIN NATURAL GAS GATHERING LINES LOCATED ON FEDERAL LAND AND INDIAN LAND.—

(1) IN GENERAL.—Subtitle B of title III of the Energy Policy Act of 2005 (Public Law 109–58; 119 Stat. 685) is amended by adding at the end the following:

''SEC. 319. CERTAIN NATURAL GAS GATHERING LINES LOCATED ON FEDERAL LAND AND INDIAN LAND.

''(a) DEFINITIONS.—In this section:

''(1) GAS GATHERING LINE AND ASSOCIATED FIELD COMPRESSION UNITS.—

''(A) IN GENERAL.—The term 'gas gathering line and associated field compression unit' means—

''(i) a pipeline that is installed to transport natural gas production associated with 1 or more wells drilled and completed to produce oil or gas; and

''(ii) if necessary, 1 or more compressors to raise the pressure of that transported natural gas to higher pressures suitable to enable the gas to flow into pipelines and other facilities.

''(B) EXCLUSIONS.—The term 'gas gathering line and associated field compression unit' does not include a pipeline or compression unit that is installed to transport natural gas from a processing plant to a common carrier pipeline or facility.

''(2) FEDERAL LAND.—

''(A) IN GENERAL.—The term 'Federal land' means land the title to which is held by the United States.

''(B) EXCLUSIONS.—The term 'Federal land' does not include—

''(i) a unit of the National Park System;

''(ii) a unit of the National Wildlife Refuge System;

''(iii) a component of the National Wilderness Preservation System; or

''(iv) Indian land.

''(3) INDIAN LAND.—The term 'Indian land' means land the title to which is held by—

''(A) the United States in trust for an Indian tribe or an individual Indian; or

''(B) an Indian tribe or an individual Indian subject to a restriction by the United States against alienation.

''(b) CERTAIN NATURAL GAS GATHERING LINES.—

''(1) IN GENERAL.—Subject to paragraph (2), the issuance of a sundry notice or right-of-way for a gas gathering line and associated field compression unit that is located on Federal land or Indian land and that services any oil or gas well shall be considered to be an action that is categorically excluded (as defined in section 1508.4 of title 40, Code of Federal Regulations (as in effect on the date of enactment of this section)) for purposes of the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) if the gas gathering line and associated field compression unit are—

''(A) within a field or unit for which an approved land use plan or an environmental document prepared pursuant to the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) analyzed transportation of natural gas produced from 1 or more oil or gas wells in that field or unit as a reasonably foreseeable activity; and

''(B) located adjacent to or within—

''(i) any existing disturbed area; or

''(ii) an existing corridor for a right-of-way.

''(2) APPLICABILITY.—Paragraph (1) shall apply to Indian land, or a portion of Indian land, for which the Indian tribe with jurisdiction over the Indian land submits to the Secretary of the Interior a written request that paragraph (1) apply to that Indian land (or portion of Indian land).

''(c) EFFECT ON OTHER LAW.—Nothing in this section affects or alters any requirement—

''(1) relating to prior consent under—

''(A) section 2 of the Act of February 5, 1948 (25 U.S.C. 324); or

''(B) section 16(e) of the Act of June 18, 1934 (25 U.S.C. 476(e)) (commonly known as the 'Indian Reorganization Act');

''(2) under section 306108 of title 54, United States Code; or

''(3) under any other Federal law (including regulations) relating to tribal consent for rights-of-way across Indian land.''.

(2) ASSESSMENTS.—Title XVIII of the Energy Policy Act of 2005 (Public Law 109–58; 119 Stat. 1122) (as amended by section 2311) is amended by adding at the end the following:

''SEC. 1842. NATURAL GAS GATHERING SYSTEM ASSESSMENTS.

''(a) DEFINITION OF GAS GATHERING LINE AND ASSOCIATED FIELD COMPRESSION UNIT.—In this section, the term 'gas gathering line and associated field compression unit' has the meaning given the term in section 319.

''(b) STUDY.—Not later than 1 year after the date of enactment of this section, the Secretary of the Interior, in consultation with other appropriate Federal agencies, States, and Indian tribes, shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a study identifying—

''(1) any actions that may be taken, under Federal law (including regulations), to expedite permitting for gas gathering lines and associated field compression units that are located on Federal land or Indian land, for the purpose of transporting natural gas associated with oil and gas production on any land to a processing plant or a common carrier pipeline for delivery to markets; and

''(2) any proposed changes to Federal law (including regulations) to expedite permitting for gas gathering lines and associated field compression units that are located on Federal land, for the purpose of transporting natural gas associated with oil and gas production on any land to a processing plant or a common carrier pipeline for delivery to markets.

''(c) REPORT.—Not later than 1 year after the date of enactment of this section, and every 1 year thereafter, the Secretary of the Interior, in consultation with other appropriate Federal agencies, States, and Indian tribes, shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a report that describes—

''(1) the progress made in expediting permits for gas gathering lines and associated field compression units that are located on Federal land or Indian land, for the purpose of transporting natural gas associated with oil and gas production on any land to a processing plant or a common carrier pipeline for delivery to markets; and

''(2) any issues impeding that progress.''.

(3) TECHNICAL AMENDMENTS.—

(A) Section 1(b) of the Energy Policy Act of 2005 (Public Law 109–58; 119 Stat. 594) is amended by adding at the end of subtitle B of title III the following:

''Sec. 319. Natural gas gathering lines located on Federal land and Indian land.''.

(B) Section (1)(b) of the Energy Policy Act of 2005 (Public Law 109–58; 119 Stat. 594) is amended by adding at the end of title XXVIII the following:

''Sec. 1842. Natural gas gathering system assessments.''.

(b) DEADLINES FOR PERMITTING NATURAL GAS GATHERING LINES UNDER THE MINERAL LEASING ACT.—Section 28 of the Mineral Leasing Act (30 U.S.C. 185) is amended by adding at the end the following:

''(z) NATURAL GAS GATHERING LINES.—The Secretary of the Interior or other appropriate agency head shall issue a sundry notice or right-of-way for a gas gathering line and associated field compression unit (as defined in section 319(a) of the Energy Policy Act of 2005) that is located on Federal land not later than 90 days after the date on which the applicable agency head receives the request for issuance unless the Secretary or agency head finds that the sundry notice or right-of-way would violate division A of subtitle III of title 54, United States Code, or the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).''.

Mr. BARRASSO. Mr. President, we all want to reduce the flaring of natural gas in oil wells, and to do that we need natural gas gathering lines. These are small pipelines that capture natural gas from oil wells where it would otherwise be flared off into the atmosphere.

This is a bipartisan amendment. I am delighted to be here with Senator HEITKAMP, who is a cosponsor. This bipartisan amendment expedites the permitting of the gathering lines on Federal land and, subject to tribal consent, also on Indian lands. This is a commonsense solution that helps taxpayers, Indian Country, and our environment.

I yield to my lead cosponsor, the junior Senator from North Dakota.

Ms. HEITKAMP. Mr. President, I thank my great friend from the State of Wyoming.

Many of you have talked about the challenges you have in terms of seeing the flaring. If you want to stop waste, whether it is economic waste because of a lack of royalties, both Federal and State, or if you want to stop flaring and waste and do a great environmental thing, you will vote yes on this amendment.

What this amendment fundamentally does is shorten the time period for pipeline easements across Federal land—easements where today it takes 2 or 3 weeks to get a private or State easement—which takes over a year. During that period of time, we have seen flaring across North Dakota and across the West.

Please vote yes for this amendment. It is a great environmental and economic amendment.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, speaking in opposition to this amendment, it is basically like Keystone ''light.'' The proponents want to have no environmental review of natural gas gathering pipelines, and that is why we should oppose it. With two exceptions, the amendment would require the Secretary of the Interior or Agriculture to approve the right to waive any gathering pipelines, unless they violate the Endangered Species Act or the National Historic Preservation Act. It would require the Secretary of the Interior or Agriculture to approve the right to waive with pipelines.

I consulted with the Department of the Interior, which had grave concerns about waiving those laws here. This amendment would significantly limit the Department's ability to gather relevant, scientific, technical information, and the public views about how to manage our public lands. So I encourage our colleagues to vote no.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mr. BARRASSO. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alabama (Mr. SHELBY).

Further, if present and voting, the Senator from Alabama (Mr. SHELBY) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 52, nays 43, as follows:

[Rollcall Vote No. 12 Leg.]

YEAS—52

Alexander	Fischer	Murkowski
Ayotte	Flake	Paul
Barrasso	Gardner	Perdue
Blunt	Grassley	Portman
Boozman	Hatch	Risch
Burr	Heitkamp	Roberts
Capito	Heller	Rounds
Cassidy	Hoeven	Sasse
Coats	Inhofe	Scott
Cochran	Isakson	Sessions
Collins	Johnson	Sullivan
Corker	Kirk	Thune
Cornyn	Lankford	Tillis
Cotton	Lee	Toomey
Crapo	Manchin	Vitter
Daines	McCain	Wicker
Enzi	McConnell	
Ernst	Moran	

NAYS—43

Baldwin	Gillibrand	Peters
Bennet	Heinrich	Reed
Blumenthal	Hirono	Reid
Booker	Kaine	Schatz
Boxer	King	Schumer
Brown	Klobuchar	Shaheen
Cantwell	Leahy	Stabenow
Cardin	Markey	Tester
Carper	McCaskill	Udall
Casey	Menendez	Warner
Coons	Merkley	Warren
Donnelly	Mikulski	Whitehouse
Durbin	Murphy	Wyden
Feinstein	Murray	
Franken	Nelson	

NOT VOTING—5

Cruz	Rubio	Shelby
Graham	Sanders	

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Alaska.

AMENDMENT NO. 2996 TO AMENDMENT NO. 2953

Mr. SULLIVAN. Mr. President, I call up my amendment No. 2996.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from Alaska [Mr. SULLIVAN] proposes an amendment numbered 2996 to amendment No. 2953.

Mr. SULLIVAN. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To require each agency to repeal or amend 1 or more rules before issuing or amending a rule)

At the appropriate place, insert the following:

SEC. ___. REPEAL OF RULES REQUIRED BEFORE ISSUING OR AMENDING RULE.

(a) DEFINITIONS.—In this section—

(1) the term ''agency'' has the meaning given the term in section 551 of title 5, United States Code;

(2) the term ''covered rule'' means a rule of an agency that causes a new financial or administrative burden on businesses in the United States or on the people of the United States, as determined by the head of the agency;

(3) the term ''rule''—

(A) has the meaning given the term in section 551 of title 5, United States Code; and

(B) includes—

(i) any rule issued by an agency pursuant to an Executive Order or Presidential memorandum; and

(ii) any rule issued by an agency due to the issuance of a memorandum, guidance document, bulletin, or press release issued by an agency; and

(4) the term ''Unified Agenda'' means the Unified Agenda of Federal Regulatory and Deregulatory Actions.

(b) PROHIBITION ON ISSUANCE OF CERTAIN RULES.—

(1) IN GENERAL.—An agency may not—

(A) issue a covered rule that does not amend or modify an existing rule of the agency, unless—

(i) the agency has repealed 1 or more existing covered rules of the agency; and

(ii) the cost of the covered rule to be issued is less than or equal to the cost of the covered rules repealed under clause (i), as determined and certified by the head of the agency; or

(B) issue a covered rule that amends or modifies an existing rule of the agency, unless—

(i) the agency has repealed or amended 1 or more existing covered rules of the agency; and

(ii) the cost of the covered rule to be issued is less than or equal to the cost of the covered rules repealed or amended under clause (i), as determined and certified by the head of the agency.

(2) APPLICATION.—Paragraph (1) shall not apply to the issuance of a covered rule by an agency that—

(A) relates to the internal policy or practice of the agency or procurement by the agency; or

(B) is being revised to be less burdensome to decrease requirements imposed by the covered rule or the cost of compliance with the covered rule.

(c) CONSIDERATIONS FOR REPEALING RULES.—In determining whether to repeal a covered rule under subparagraph (A)(i) or (B)(i) of subsection (b)(1), the head of the agency that issued the covered rule shall consider—

(1) whether the covered rule achieved, or has been ineffective in achieving, the original purpose of the covered rule;

(2) any adverse effects that could materialize if the covered rule is repealed, in particular if those adverse effects are the reason the covered rule was originally issued;

(3) whether the costs of the covered rule outweigh any benefits of the covered rule to the United States;

(4) whether the covered rule has become obsolete due to changes in technology, economic conditions, market practices, or any other factors; and

(5) whether the covered rule overlaps with a covered rule to be issued by the agency.

(d) PUBLICATION OF COVERED RULES IN UNIFIED AGENDA.—

(1) REQUIREMENTS.—Each agency shall, on a semiannual basis, submit jointly and without delay to the Office of Information and Regulatory Affairs for publication in the Unified Agenda a list containing—

(A) each covered rule that the agency intends to issue during the 6-month period following the date of submission;

(B) each covered rule that the agency intends to repeal or amend in accordance with subsection (b) during the 6-month period following the date of submission; and

(C) the cost of each covered rule described in subparagraphs (A) and (B).

(2) PROHIBITION.—An agency may not issue a covered rule unless the agency complies with the requirements under paragraph (1).

Mr. SULLIVAN. Mr. President, we all know that our economy is overregulated, and this overregulation undermines our ability to grow our economy and create good jobs. I am sure all the Senators know that just this last quarter we grew at 0.7 percent GDP growth. We can't even break 1 percent GDP growth now.

Take a look at this chart. This is one of the big problems. Federal regulations only grow. They only grow year after year. They never go away. They are never sunsetted.

Even President Obama recognizes this is a problem. In his State of the Union address, the President said: ''I think there are outdated regulations that need to be changed. There is red tape that . . . [must] be cut.''

My amendment is an opportunity to do just that. It is a simple, one-in, one-out requirement for agencies. When an agency issues a new reg, it has to sunset or get rid of an old reg. Now, it is up to the agency to choose which reg it is going to get rid of, but it has to abide by the one-in, one-out rule.

This is not a partisan idea. In fact, this is becoming a consensus idea.

The PRESIDING OFFICER. The time of the Senator has expired.

Mr. SULLIVAN. The U.K. and Canada are doing this.

Many of my colleagues on the other side of the aisle are very interested in this idea. I ask for their support of this amendment.

The PRESIDING OFFICER. The Senator from Delaware.

Mr. CARPER. Mr. President, as the ranking member of the committee on homeland security, I rise in opposition to this amendment.

Our friend who is offering this amendment today indicates that Federal agencies are always promulgating regulations, and we never stand any of them down; we never retire them. As it turns out, about 5 or 6 years ago, President Obama said to Cass Sunstein, who runs OIRA, part of OMB: I want you to begin a top-to-bottom review of regulations. Find the ones that don't serve a purpose, and let's get rid of them.

Over the next 5 years, that effort will bear fruit. It is not like saving a couple of million dollars. Over the next 5 years, it is going to save $22 billion. So we actually do have a process, and this is one that has really been provided by leadership from the administration.

The other avenue was provided by our Democratic leader from years ago when he authored something called the Congressional Review Act. It is not always effective; it doesn't always work, but it is actually a way to stand down regulations that we don't want to see stood up.

So there are two ways to do this. We always have an opportunity whenever regulations are proposed. We can speak to them. We can testify to them. We can urge that they be changed while they are in production.

I urge us to vote no on this amendment.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mr. GRASSLEY. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There is a sufficient second.

The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alabama (Mr. SHELBY).

Further, if present and voting, the Senator from Alabama (Mr. SHELBY) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 49, nays 46, as follows:

[Rollcall Vote No. 13 Leg.]

YEAS—49

Alexander	Fischer	Paul
Ayotte	Flake	Perdue
Barrasso	Gardner	Portman
Blunt	Grassley	Risch
Boozman	Hatch	Roberts
Burr	Heller	Rounds
Capito	Hoeven	Sasse
Cassidy	Inhofe	Scott
Coats	Isakson	Sessions
Cochran	Johnson	Sullivan
Corker	Kirk	Thune
Cornyn	Lankford	Tillis
Cotton	Lee	Toomey
Crapo	McCain	Vitter
Daines	McConnell	Wicker
Enzi	Moran	
Ernst	Murkowski	

NAYS—46

Baldwin	Gillibrand	Nelson
Bennet	Heinrich	Peters
Blumenthal	Heitkamp	Reed
Booker	Hirono	Reid
Boxer	Kaine	Schatz
Brown	King	Schumer
Cantwell	Klobuchar	Shaheen
Cardin	Leahy	Stabenow
Carper	Manchin	Tester
Casey	Markey	Udall
Collins	McCaskill	Warner
Coons	Menendez	Warren
Donnelly	Merkley	Whitehouse
Durbin	Mikulski	Wyden
Feinstein	Murphy	
Franken	Murray	

NOT VOTING—5

Cruz	Rubio	Shelby
Graham	Sanders	

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Hawaii.

AMENDMENT NO. 3176 TO AMENDMENT NO. 2953

(Purpose: To amend the Internal Revenue Code of 1986 to phase out tax preferences for fossil fuels on the same schedule as the phase out of the tax credits for wind facilities)

Mr. SCHATZ. Mr. President, I call up amendment No. 3176 and ask that it be reported by number.

The PRESIDING OFFICER. The clerk will report the amendment by number.

The senior assistant legislative clerk read as follows:

The Senator from Hawaii [Mr. SCHATZ] proposes an amendment numbered 3176 to amendment No. 2953.

(The amendment is printed in the RECORD of February 1, 2016, under ''Text of Amendments.'')

Mr. SCHATZ. Mr. President, this amendment is based on a very simple idea: that there should be a level playing field for fossil fuels and for clean energy. Right now we have subsidies on both the fossil fuel side and on the clean energy side through our Tax Code. Periodically, we need to recalibrate our energy policy based on market conditions, fiscal circumstances, and what is happening in the world.

Again, here is the idea: We should make sure to reevaluate tax preferences for fossil fuels and clean energy at the same time. If we are serious about creating a level playing field, we should phase out incentives for fossil fuels as we phased them out for wind and solar power. Majorities of both Democrats and Republicans support the repeal of these tax preferences, and so I hope my colleagues will join me in a big bipartisan vote for putting our clean sources of energy on equal footing with their fossil fuel counterparts.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. Mr. President, we have seen an iteration of this before. It is Groundhog Day, but there is a difference with the approach that has been taken with regard to targeting oil and gas production with this basket of fossil fuel subsidies, where we are talking about the repeal of five very important tax provisions that are vital to our domestic small and midsize operators.

The sponsor is correct. It does tie the expiration of these provisions to the expiration of wind tax credits, which most of us would agree should be phased out.

I am in favor of reforming our Tax Code to make it more straightforward and fair. I would welcome that discussion for us to engage in broad-based tax reform on the Senate floor, but the Energy Policy Modernization Act is not the place to do it. It is not the appropriate venue for a tax amendment. As my colleagues know, all revenue-raising measures must originate within the House. The adoption of this tax-related amendment would therefore create an impermissible blue-slip problem.

I urge its rejection.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Ms. MURKOWSKI. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alabama (Mr. SHELBY).

Further, if present and voting, the Senator from Alabama (Mr. SHELBY) would have voted ''nay.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER (Mr. ROUNDS). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 45, nays 50, as follows:

[Rollcall Vote No. 14 Leg.]

YEAS—45

Alexander	Feinstein	Murray
Ayotte	Franken	Nelson
Baldwin	Gillibrand	Peters
Bennet	Heinrich	Reed
Blumenthal	Hirono	Reid
Booker	Kaine	Schatz
Boxer	King	Schumer
Brown	Klobuchar	Shaheen
Cantwell	Leahy	Stabenow
Cardin	Markey	Tester
Carper	McCaskill	Udall
Casey	Menendez	Warner
Collins	Merkley	Warren
Coons	Mikulski	Whitehouse
Durbin	Murphy	Wyden

NAYS—50

Barrasso	Flake	Murkowski
Blunt	Gardner	Paul
Boozman	Grassley	Perdue
Burr	Hatch	Portman
Capito	Heitkamp	Risch
Cassidy	Heller	Roberts
Coats	Hoeven	Rounds
Cochran	Inhofe	Sasse
Corker	Isakson	Scott
Cornyn	Johnson	Sessions
Cotton	Kirk	Sullivan
Crapo	Lankford	Thune
Daines	Lee	Tillis
Donnelly	Manchin	Toomey
Enzi	McCain	Vitter
Ernst	McConnell	Wicker
Fischer	Moran	

NOT VOTING—5

Cruz	Rubio	Shelby
Graham	Sanders	

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Illinois.

AMENDMENT NO. 3095 TO AMENDMENT NO. 2953

Mr. DURBIN. Mr. President, I call up amendment No. 3095 and ask that it be reported by number.

The PRESIDING OFFICER. The clerk will report the amendment by number.

The senior assistant legislative clerk read as follows:

The Senator from Illinois [Mr. DURBIN] proposes an amendment numbered 3095 to amendment No. 2953.

The amendment is as follows:

(Purpose: To increase funding for the Office of Science of the Department of Energy)

On page 352, strike lines 17 through 21 and insert the following:

''(8) $5,423,000,000 for fiscal year 2016;
''(9) $5,808,000,000 for fiscal year 2017;
''(10) $6,220,000,000 for fiscal year 2018;
''(11) $6,661,000,000 for fiscal year 2019; and
''(12) $7,134,000,000 for fiscal year 2020.''.

Mr. DURBIN. Mr. President, this bipartisan amendment which I am offering with Senator ALEXANDER would increase funding levels for the Department of Energy Office of Science to a rate of 5 percent annual real growth for 5 years.

The Office of Science is an incredible organization—24 scientists, 10 national labs, research in 300 colleges and universities in all 50 States. It was their work which led to the development of the MRI, and they are currently working on imaging systems to identify Alzheimer's in its early stages. It is an incredible operation. This commitment will pay us back many times over.

I yield to my friend and colleague from Tennessee.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I urge a ''yes'' vote because I think an important part of a Republican progrowth policy is support for government-sponsored research. That is how we got 3–D mapping and horizontal drilling that led to unconventional gas and oil. That is how we are going to get the cost of carbon capture low enough to make it commercial. That is how we are going to get solar panels cheap enough to make them useful.

We should reduce wasteful spending on subsidies for mature energy technology and double energy research, and this would do that on a conservative path. At 5 percent a year, it would take 10 years to double the $5 billion of energy spending we have today.

I urge a ''yes'' vote.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. Mr. President, I understand that we have an agreement to voice vote the Durbin amendment. Therefore, I ask unanimous consent that the 60-vote threshold with respect to the Durbin amendment No. 3095 be rescinded.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Is there any further debate on the amendment?

Hearing none, the question occurs on agreeing to the amendment.

The amendment (No. 3095) was agreed to.

The PRESIDING OFFICER. The Senator from Rhode Island.

AMENDMENT NO. 3125 TO AMENDMENT NO. 2953

Mr. WHITEHOUSE. Mr. President, I call up amendment No. 3125 and ask that it be reported by number.

The PRESIDING OFFICER. The clerk will report the amendment by number.

The senior assistant legislative clerk read as follows:

The Senator from Rhode Island [Mr. WHITEHOUSE] proposes an amendment numbered 3125 to amendment No. 2953.

The amendment is as follows:

(Purpose: To require campaign finance disclosures for certain persons benefitting from fossil fuel activities)

At the appropriate place, insert the following:

SEC. ___. CAMPAIGN FINANCE DISCLOSURES BY FOSSIL FUEL BENEFICIARIES.

(a) IN GENERAL.—Section 304 of the Federal Election Campaign Act of 1974 (52 U.S.C.

30104) is amended by adding at the end the following new subsection:

''(j) DISCLOSURE BY FOSSIL FUEL BENEFICIARIES.—

''(1) IN GENERAL.—

''(A) INITIAL DISCLOSURE.—Every covered entity which has made covered disbursements and received covered transfers in an aggregate amount in excess of $10,000 during the period beginning on January 1, 2014, and ending on the date that is 165 days after the date of the enactment of this subsection shall file with the Commission a statement containing the information described in paragraph (2) not later than the date that is 180 days after the date of the enactment of this subsection.

''(B) SUBSEQUENT DISCLOSURES.—Every covered entity which makes covered disbursements (other than covered disbursement reported under subparagraph (A)) and received covered transfers (other than a covered transfer reported under subparagraph (A)) in an aggregate amount in excess of $10,000 during any calendar year shall, within 48 hours of each disclosure date, file with the Commission a statement containing the information described in paragraph (2).

''(2) CONTENTS OF STATEMENT.—Each statement required to be filed under this subsection shall be made under penalty of perjury and shall contain the following information:

''(A) The identification of the person making the disbursement or receiving the transfer, of any person sharing or exercising direction or control over the activities of such person, and of the custodian of the books and accounts of the person making the disbursement or receiving the transfer.

''(B) The principal place of business of the person making the disbursement or receiving the transfer, if not an individual.

''(C) The amount of each disbursement or transfer of more than $200 during the period covered by the statement and the identification of the person to whom the disbursement was made or from whom the transfer was received.

''(D) The elections to which the disbursements or transfers pertain and the names (if known) of the candidates involved.

''(E) If the disbursements were paid out of a segregated bank account which consists of funds contributed solely by individuals who are United States citizens or nationals or lawfully admitted for permanent residence (as defined in section 101(a)(20) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(20))) directly to this account for electioneering communications, the names and addresses of all contributors who contributed an aggregate amount of $1,000 or more to that account during—

''(i) in the case of a statement under paragraph (1)(A), during the period described in such paragraph, and

''(ii) in the case of a statement under paragraph (1)(B), the period beginning on the first day of the preceding calendar year and ending on the disclosure date.

Nothing in this subparagraph is to be construed as a prohibition on the use of funds in such a segregated account for a purpose other than covered disbursements.

''(F) If the disbursements were paid out of funds not described in subparagraph (E), the names and addresses of all contributors who contributed an aggregate amount of $1,000 or more to the person making the disbursement during—

''(i) in the case of a statement under paragraph (1)(A), during the period described in such paragraph, and

''(ii) in the case of a statement under paragraph (1)(B), the period beginning on the first day of the preceding calendar year and ending on the disclosure date.

''(3) COVERED ENTITY.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'covered entity' means—

''(i) any person who is described in subparagraph (B), and

''(ii) any person who owns 5 percent or more of any person described in subparagraph (B).

''(B) PERSON DESCRIBED.—A person is described in this subparagraph if such person has received revenues or stands to receive revenues of $1,000,000 or greater from fossil fuel activities.

''(C) FOSSIL FUEL ACTIVITIES.—For purposes of this paragraph, the term 'fossil fuel activities' includes the extraction, production, refining, transportation, or combustion of oil, natural gas, or coal.

''(4) COVERED DISBURSEMENT.—For purposes of this subsection, the term 'covered disbursement' means a disbursement for any of the following:

''(A) An independent expenditure.

''(B) A broadcast, cable, or satellite communication (other than a communication described in subsection (f)(3)(B)) which—

''(i) refers to a clearly identified candidate for Federal office;

''(ii) is made—

''(I) in the case of a communication which refers to a candidate for an office other than President or Vice President, during the period beginning on January 1 of the calendar year in which a general or runoff election is held and ending on the date of the general or runoff election (or in the case of a special election, during the period beginning on the date on which the announcement with respect to such election is made and ending on the date of the special election); or

''(II) in the case of a communication which refers to a candidate for the office of President or Vice President, is made in any State during the period beginning 120 days before the first primary election, caucus, or preference election held for the selection of delegates to a national nominating convention of a political party is held in any State (or, if no such election or caucus is held in any State, the first convention or caucus of a political party which has the authority to nominate a candidate for the office of President or Vice President) and ending on the date of the general election; and

''(iii) in the case of a communication which refers to a candidate for an office other than President or Vice President, is targeted to the relevant electorate (within the meaning of subsection (f)(3)(C)).

''(C) A transfer to another person for the purposes of making a disbursement described in subparagraph (A) or (B).

''(5) COVERED TRANSFER.—For purposes of this subsection, the term 'covered transfer' means any amount received by a covered entity for the purposes of making a covered disbursement.

''(6) DISCLOSURE DATE.—For purposes of this subsection, the term 'disclosure date' means—

''(A) the first date during any calendar year by which a person has made covered disbursements and received covered transfers aggregating in excess of $10,000; and

''(B) any other date during such calendar year by which a person has made covered disbursements and received covered transfers aggregating in excess of $10,000 since the most recent disclosure date for such calendar year.

''(7) CONTRACTS TO DISBURSE; COORDINATION WITH OTHER REQUIREMENTS; ETC,.—Rules similar to the rules of paragraphs (5), (6), and (7) of subsection (f) shall apply for purposes of this subsection.''.

Mr. WHITEHOUSE. Mr. President, this is the last vote in this tranche of votes, and I hope this can be a bipartisan vote. We all understand that a shadow has fallen over this Chamber since Citizens United, and that is the shadow of dark money. The American public is sick about the special interests that have so much sway. They are even more sick of special interests having secret sway because of secret spending. This secret spending influences what we can and cannot do. It influences our deliberations. It has even constrained the shape of the very bill on the floor right now. As one Kentucky newspaper said, it has also created a tsunami of slime in our elections.

This vote gives us the chance to push back and to put a little daylight on the secret money that is being spent in our elections. I very much hope that, consistent with past Republican support for sunshine and disclosure, we can get a bipartisan vote in favor of disclosure of the big-money donors who are now putting secret money into our elections—in this case, particularly in the energy sector.

I ask for the votes of my colleague in favor of this amendment.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. Mr. President, I do think that at some point in time it is fair to discuss disclosure when it comes to campaign finance and campaign finance disclosure. However what this amendment does is require campaign finance disclosures from individuals receiving over $1 million from fossil fuel activities—no other activities.

What activities are we talking about? It defines fossil fuel activities as those including ''the extraction, production, refining, transportation, or combustion of oil, natural gas, or coal.'' That is pretty broad. We are talking about explorers, producers, refiners, perhaps even the automotive industry, the rail industry, powerplants, and many others.

We can have a discussion about campaign finance disclosure and what may or may not be appropriate. We defeated an amendment similar to this when we had the Keystone debate last January. We tabled another. The time and the place to debate this issue is not in this Energy Policy Modernization Act. Therefore, I will be opposing the amendment and encourage my colleagues to do the same.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Ms. MURKOWSKI. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator

from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alabama (Mr. SHELBY).

Further, if present and voting, the Senator from Alabama (Mr. SHELBY) would have voted ''nay.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER (Ms. AYOTTE). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 43, nays 52, as follows:

[Rollcall Vote No. 15 Leg.]

YEAS—43

Baldwin	Gillibrand	Peters
Bennet	Heinrich	Reed
Blumenthal	Hirono	Reid
Booker	Kaine	Schatz
Boxer	King	Schumer
Brown	Klobuchar	Shaheen
Cantwell	Leahy	Stabenow
Cardin	Markey	Tester
Carper	McCaskill	Udall
Casey	Menendez	Warner
Coons	Merkley	Warren
Donnelly	Mikulski	Whitehouse
Durbin	Murphy	Wyden
Feinstein	Murray	
Franken	Nelson	

NAYS—52

Alexander	Fischer	Murkowski
Ayotte	Flake	Paul
Barrasso	Gardner	Perdue
Blunt	Grassley	Portman
Boozman	Hatch	Risch
Burr	Heitkamp	Roberts
Capito	Heller	Rounds
Cassidy	Hoeven	Sasse
Coats	Inhofe	Scott
Cochran	Isakson	Sessions
Collins	Johnson	Sullivan
Corker	Kirk	Thune
Cornyn	Lankford	Tillis
Cotton	Lee	Toomey
Crapo	Manchin	Vitter
Daines	McCain	Wicker
Enzi	McConnell	
Ernst	Moran	

NOT VOTING—5

Cruz	Rubio	Shelby
Graham	Sanders	

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Alaska.

Ms. MURKOWSKI. Madam President, we have just concluded this series of eight votes. You combine that with the rollcall votes we had yesterday, as well as the voice votes we have taken, and we are up to 27 amendments that we have processed. We are moving right along.

I appreciate the cooperation of Members on both sides and the staff who are working as we speak to see if we can pull together yet another block of amendments we will be able to accept by voice vote. We will not have any more rollcall votes for the remainder of today, but know that we are working aggressively to try to process as many amendments as we can by voice vote and then set up a process tomorrow.

We will notify Members in terms of when we might be able to expect votes on amendments. I thank colleagues for the good work today. We encourage you to come down to the floor, speak to your amendments, speak to the issues you are hoping to advance. We would like to get this bill through to completion by the end of this week. I thank Members for their support.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk for the Murkowski substitute amendment No. 2953.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on amendment No. 2953, the substitute amendment to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

Mitch McConnell, Lisa Murkowski, Cory Gardner, Mike Crapo, John Cornyn, John Barrasso, Steve Daines, Richard Burr, Bill Cassidy, Pat Roberts, John Hoeven, Shelley Moore Capito, John Thune, James E. Risch, Lamar Alexander, John McCain, Rob Portman.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk for the underlying bill, S. 2012.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Calendar No. 218, S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

Mitch McConnell, Lisa Murkowski, Cory Gardner, Mike Crapo, John Cornyn, John Barrasso, Steve Daines, Richard Burr, Bill Cassidy, Pat Roberts, John Hoeven, Shelley Moore Capito, John Thune, James E. Risch, Lamar Alexander, John McCain, Rob Portman.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the mandatory quorum call under rule XXII of the Standing Rules of the Senate with respect to the cloture motions be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Ohio.

Mr. BROWN. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BROWN. Mr. President, the crisis in Flint, MI, is a tragedy that was entirely preventable. This week we have a chance to do something about it. Senator STABENOW and Senator PETERS from Michigan have submitted an amendment that I hope, when we go back on the bill, we will consider. As we do so, it is important to remember that Flint is far from the only town in this country where families face exposure to dangerous levels of lead.

In Sebring, in northeast Ohio, near Youngstown, we know there are troubling amounts of lead in the water. Families are scared that their drinking water isn't safe. They are afraid they are facing another Flint. No parent should have to worry that the water coming out of their faucets might in fact be poisoning their children. Pregnant women shouldn't have to fear their tap water.

In Sebring, just as in Flint, families were left in the dark about the safety of their water. For months, local officials failed to notify residents about the lead, and the State EPA failed to step in. I spoke with the mayor. I spoke recently—just this week—to State Representative Boccieri and State Senator Schiavoni, who represent Sebring and that part of the county, about what our response should be.

The amendment before us this week will help put a stop to the failure—in Michigan, the failure of the Governor, and in Columbus, it appears to be the failure of the State EPA. It requires the Federal Environmental Protection Agency to notify the public directly if there is a danger from lead in the water system if a State fails to do so within 15 days. No more arguing about whose responsibility it is while families continue drinking water that we know is not safe. No more finger-pointing after the fact. This amendment says that when there is a problem with the water, people have a right to know and that it is the EPA's job to make sure they do. The sooner we know about lead contamination, the sooner we can get to work to fix it. That is why notification is critical. But notification is just the beginning. The amendment before us this week will be just the beginning of our work to protect Americans from unsafe levels of lead.

The Centers for Disease Control estimates that at least 4 million American households—4 million American households with children—are exposed to high levels of lead. We know what that does to their brain development. We know the impact it has for the rest of their lives. Four million households in this country have children who are exposed to high levels of lead even though we know it isn't safe.

This problem stretches far beyond Flint, MI, and far beyond just our water systems. Corroded lead pipes are a major health hazard, but they are far from the only source of lead poisoning. We know that too many of our children

are exposed to lead through paint—mostly in older homes and mostly in lower income homes—and even the dirt in their backyards. Imagine that.

The devastating effects of lead poisoning fall disproportionately on low-income children and on children of color. They are more likely to live in older homes closer to the city center and in rental housing that is poorly maintained. I have seen it firsthand in Ohio. The Cleveland Plain Dealer conducted an investigation last fall. They found that some 40,000 Cuyahoga County children have tested positive for lead poisoning in the last 10 years. Think about that—40,000 children in that community alone have been tested for lead poisoning over the past 10 years and have tested positive.

Paint chips shed from molding and windowsills in older homes turn into dust that is easily ingested. Sometimes babies pick up lead chips and chew on them because they are colorful.

The danger hasn't subsided. More than 187,000 homes in Cuyahoga County are putting their occupants at risk of lead poisoning. That is why our efforts can't stop with Michigan and can't stop with lead in our water.

The good news is, we can combat this. I know we can because we have done it before. In 2012 a number of my colleagues—Senators FRANKEN from Minnesota, CASEY from Pennsylvania, and MERKLEY from Oregon—wrote to the EPA about the danger posed by former lead smelter sites in urban residential communities. I was in one of those neighborhoods and talked to people who had seen far too much lead in the dirt where their children play in front or behind their houses. Because of our efforts and some diligent reporting by reporters at USA TODAY, the EPA has acted to reexamine hundreds of former lead factory sites, helping communities address and deal with this problem. Think about this: You move into a home. You didn't know that 40 years ago this neighborhood had a lead smelting plant. Your children play in it. You have no idea that soil is contaminated from that lead smelter that closed decades ago.

We also worked to combat the threat of lead in our children's toys. In 2007 Ashland University professor Jeff Weidenhamer found that more than one in seven Halloween toys he purchased and tested through his classes contained dangerous levels of lead, most of them made in China, most of them painted by companies contracting with U.S. toy companies. Who is responsible for that? Surely the Chinese companies' subcontractors that put the lead paint on the toys but certainly the U.S. toy companies that contracted with them and didn't care enough or know enough to check the quality of these toys. Following that shocking discovery, we worked with Professor Weidenhamer and other experts to pass the bipartisan Consumer Product Safety Improvement Act in 2008. When Professor Weidenhamer conducted the same test on toys in 2011, none of them tested positive for dangerous levels of lead.

In spite of the fact that many people sitting in this body won their elections by saying that the government can never do anything good, that the government can never have an impact on our lives, and that the government is too big, that is what the government did—we passed a consumer protection bill in 2008. Two years later we found that comparable toys don't have lead paint in them. So we know we can make progress when we work together and strengthen consumer protections to ensure that agencies tasked with protecting children have the resources they need.

We need to take the lead in our water, in our communities, and in our homes just as seriously as lead in toys. It is not enough to just respond to the crisis at hand. We should do that in Flint, we should do that in Sebring, and we should do that in smaller communities in Ohio in older homes—all of those things. But it is not enough just to respond. Once children have been exposed, the effects can't be erased. We have to do more to help protect families from being exposed to lead in the first place.

We did the right thing in December when we funded critical programs at the CDC and at Housing and Urban Development that helped prevent lead poisoning and monitor lead levels in children, but we can't stop there. We are seeing in Flint, we are seeing in Sebring, OH, and we are seeing in cities across our country that current efforts are not enough. Senator STABENOW and Senator PETERS' amendment is a first good step. I hope we will use this opportunity to examine what more we can do to protect our children, especially those young enough that their brain is developing. Lead poisoning arrests much of their brain development and affects the rest of their lives. We have to do whatever we can to protect our children from the terrible effects of lead poisoning.

The PRESIDING OFFICER. The Senator from Hawaii.

Mr. SCHATZ. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING STATE SENATOR GIL KAHELE

Mr. SCHATZ. Mr. President, what is aloha? It is not a catchphrase. As it is commonly understood, it is synonymous with kindness, with love, with hospitality, with a Hawaiian perspective, but it is difficult for those not from Hawaii to fully understand its meaning and for those of us from Hawaii to fully explain.

No one embodied the spirit of aloha more than State senator Gil Kahele, who died suddenly last week. He was a living personification of the idea that we are all in this together, that it really does mean something to live together in an island State in the most isolated populated place on the planet and the most beautiful place in the world.

Senator Kahele devoted his life to public service, but political office for him was an afterthought. Gil was a veteran of the U.S. Marine Corps. He worked for the State's department of defense for 33 years and eventually became director of public works at the Pohakuloa Training Area.

Gil took office in 2011 and dedicated his efforts to the people of Senate District 1. He was the chair of the Tourism and International Affairs Committee. Gil was committed to supporting the needs of his district and was instrumental in securing funding for the College of Pharmacy at the University of Hawaii at Hilo.

The circumstances of my election in 2014 were unusual in the extreme, and they brought me to Gil. On election night, I was ahead by fewer than 2,000 votes, but there were parts of Hawaii Island—two precincts in particular—that were unable to vote because of a category 4 hurricane that hit the southern part of the Big Island, the Puna District. As a result, the day after the primary election day, we realized we weren't quite done, and so we went to Puna. But more than the election not being done, the people of Puna were without water and power. Their food was rotting, their roads weren't clear, and they had no working utilities. So we went to work—not gathering votes but gathering provisions; not walking door to door to campaign but literally standing on the road handing out blocks of ice for the folks in Puna. We did this every day for a week, with Gil and the Kahele ohana, until a sense of normalcy was eventually restored. For their family, this was just what you do if you are a person like Gil Kahele, born in a grass shack in the fishing village of Miolii, a Native Hawaiian who served his country, his State, his community, and his family the best way he knew how—with aloha.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WYDEN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

WILDFIRE PREVENTION FUNDING

Mr. WYDEN. Mr. President, last year more acreage in our forests burned than ever before. I know the Presiding Officer understands what this has been like in the West over the last few years. Senator CRAPO and I have dedicated something like 5 years of our professional lives to coming up with practical approaches to deal with this mushrooming problem. There are a whole host of issues that go into making a sensible forestry policy to make sure that we can protect our treasures

in the West, have jobs in the woods that are sustainable, and keep our forests healthy.

In order to do that, one of the most important reforms that are necessary is the one that Senator CRAPO and I have been working on. I really began on this before I was the chairman of the Energy and Natural Resources Committee. Senator CRAPO and I literally have teamed up now for half a decade to end a particularly inefficient and harmful economic and environmental policy that we call fire borrowing. Fire borrowing takes place when Congress fails to budget enough money to fight wildfires, forcing agencies to raid their other accounts, including accounts to prevent wildfires.

Obviously, there may be some listening in who don't represent western communities. But what Senator CRAPO and I have tried to convey to our colleagues is that fire borrowing doesn't just threaten fire prevention and suppression. It is quicksand that is dragging down all of the programs at the Forest Service: timber sales, stream restoration, trail maintenance, recreation, and many more.

So Senator CRAPO and I said that this was too important to have yet another issue that gets thrown around, batted around like another bit of cannon fodder for partisan kind of drills. We have put together legislation with 21 cosponsors in the Senate and 145 in the House to end fire borrowing. Our legislation is supported by a coalition of more than 250 groups of anglers, sportsmen, environmentalists, and timber companies. It is pretty hard to get more than a handful of people to agree on much of anything here in Washington, DC. What Senator CRAPO and I have been talking about now has more than 250 organizations behind it.

Despite the overwhelming support for this effort, the bill has been stuck. Tonight what Senator CRAPO and I are going to talk about is how we can work together with our colleagues to unstick this and to get it done. We felt that all along we had been doing what it took to make this happen. We talked to our colleagues of both parties. We negotiated. We talked to House Members. We talked to Senate offices. We talked to the administration. We talked to timber and environmental people. All we said is that it makes sense, even though there are a whole host of changes that you can pursue for a sensible fire policy to end fire borrowing for good, to end the erosion of the Forest Service budget, and to start focusing on prevention. Wouldn't it make more sense to concentrate on prevention, going in there and thinning out the forests and using sensible fire prevention strategies rather than not to do the prevention and have the forests get hot and dry? Then we have lightning strikes in our part of the world. All of a sudden you have an inferno on your hands, and they don't have enough money to put all these fires out. So you borrow from the prevention fund and the problem gets worse.

What Senator CRAPO and I said is that we will work with all of the budget authorities. We were very much involved with Chairman ENZI in this. We could come up with some budget process issues that would be acceptable here in the Senate and also to our colleagues in the House.

There was a colloquy last week among the chairs of the Energy, Budget, and Agriculture Committees that indicated that they very much want a resolution of the issue. I am pleased that they are interested in hearings and working on legislation and moving in February and March. I felt that this was a promising start to the year because that is what Senator CRAPO and I were after last July when we got a great many Senators together and we said that we were going to try to get this worked out so that it could have been done last fall. We all said that we were going to get together and get this resolved.

Obviously, for a variety of reasons it didn't happen. But I think what we heard last week strikes me as a beginning to finally getting this unstuck, and I have been so appreciative of working with the Senator on this now for something like 5 years. I would be interested in the Senator's reaction with respect to this situation.

The PRESIDING OFFICER. The Senator from Idaho.

Mr. CRAPO. Mr. President, I strongly agree with my friend and colleague Senator WYDEN from Oregon. He is absolutely right that we have been working on this for probably 5 years as we have worked to identify the solution and then build the coalition of support to implement the solution that is necessary for this critical problem.

I am also very appreciative, as Senator WYDEN has said, that we had the chairman of the Energy Committee, the chairman of the Budget Committee, and the chairman of the Agriculture Committee engaged in a colloquy last week discussing the urgency of resolving this issue. I believe we are now getting to a point at which the understanding of how critical it is to resolve this issue has penetrated deeply into the political fiber of both the Senate and the House. Now we need to take that momentum and continue to move forward.

As we take stock of last year's fire season, the statistics are sobering. Senator WYDEN referenced a little bit of it. Let me just add to that a little bit.

Nationally, last year, we had 68,151 fires that burned 10.1 million acres and cost over $1.7 billion in suppression operations. These fires accounted for the loss of roughly 4,600 structures, and, most tragically, the lives of 13 wild land firefighters.

This set of statistics is a set of statistics that is growing every year. We are seeing more fires and more catastrophic fires every year because we are not managing our forests properly, and we are not dealing with the crisis that is creating in forest fires.

There is a very important statistic that I think everyone in America should understand about this critical issue. I just said that there were 68,151 fires in America last year. One percent of those fires cost 30 percent of the firefighting budget. Those are the fires that became catastrophes. They became catastrophic. The solution we have come together on to help address this issue is simply to make a very obvious conclusion and to put it into the law; that is, when we get a fire that is 1 percent of the fires that cost 30 percent of the firefighting and do so much of the damage, we declare that they are natural disasters—just like the earthquakes, the hurricanes, the tornadoes, the floods and the other disasters that we acknowledge here in Congress and deal with as disasters when we finance the efforts to fight them and to respond to them.

With these numbers in mind, I want to again thank the committee chairmen who came to the floor last week and engaged in a colloquy to express how serious this issue is. It is getting to a crisis point. As those Senators last week noted, when it comes to how we fight wildfires, we are in a crisis.

For more than a decade, as fires have raged across the West, we have seriously underbudgeted for the necessary suppression costs with these disasters. To make matters worse, the lack of resources to fight the worst of our annual fires has forced land management agencies into what Senator WYDEN has so ably described—fire borrowing that results in less money for the very activities that can prevent the large devastating fires from happening in the first place. What happens is our management agencies, the Forest Service, Bureau of Land Management, and those who deal with the wild lands and grasses that burn, have had to borrow from all of their other funds so that they can't adequately manage the land. As a result, we end up with more bad fires, and every year the catastrophic fires grow.

When the Forest Service is forced to borrow to fight fires, they are actually borrowing against jobs, recreational opportunities, and proper forest management. The best way to think of fire borrowing is less timber, less jobs, and less access to these beautiful lands because while it is fire borrowing, in many cases it delays the repayment in ways that actually cancel projects, undercut the ability to implement proper forest management, lose jobs, and reduce access to our public lands. Perhaps the most destructive is the fact that less work in the woods means that the harmful cycle just gets worse.

As Senator WYDEN has noted, to address this problem, we have consistently introduced legislation for years now that would treat the devastating fires as the disasters that they are.

I need to back up for a second. We talk about the fact that there is a cost that is not being provided for by Congress and that this fire borrowing has

to happen, but I think it is critical to note that our solution has been scored by both the Congressional Budget Office and by the OMB at the White House as having zero budget impact. It will not increase the deficit because we do end up paying to fight these fires, it is just the way that we end up paying to fight them is the way we deal with so much of our catastrophic health care—at the emergency room with the most expensive solutions, the worst outcomes, and we don't deal with the underlying crisis.

While there is broad agreement from lawmakers on both sides of the aisle and in both Houses of Congress that a fix to fire borrowing is needed, there have been different approaches to the solution. Senator WYDEN and I have been very willing to work with those who have different ideas about how we need to solve this problem and can actually make adjustments in our legislation as we move forward to deal with issues and concerns that others have raised.

We are now at the crisis point, and now we need to move forward and put a final resolution in place. Senator WYDEN and I have worked with these lawmakers and will continue to work with them. We are simply here tonight to say that we are very pleased to see that the leadership of the critical committees in the Senate and others who are so concerned about this issue are in agreement that we need to put this on the front burner and engage with developing a solution and putting it into law.

I look forward to working with Senator WYDEN, the chairman of our Energy, Budget, and Agriculture Committees, and all the interested stakeholders whom Senator WYDEN mentioned—250 groups from across the political spectrum. This is one of those issues in which those groups that so often have different perspectives on how to manage our public lands are in agreement, and we need to take this support—the political agreement that is taking place and the political awareness of the crisis that is happening—and move forward to the implementation of a solution.

I appreciate the opportunity to come to the floor tonight and talk with Senator WYDEN one more time about this as we move to the final stages of implementing this important legislation.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Mr. President, I thank my friend from Idaho, and in wrapping this up I wish to convey what the bottom line really is here.

Senator CRAPO and I do not want to be back on the floor of the U.S. Senate in the winter of 2017 once again talking about how something got stuck or somebody didn't agree with somebody on one small aspect of this, and as a result fire borrowing is still in place. What Senator CRAPO and I are saying is we want to work with all sides. It is going to have to be bipartisan and it is going to have to be bicameral. Those are probably the most important words in this whole discussion. It is going to have to be bipartisan and it is going to have to be bicameral.

We have lots of committees involved. We have the Energy and Natural Resources Committee that I am on and the Agriculture, Nutrition, and Forestry Committee, and the Budget Committee that both of us have been on. We have lots of committees in the Senate, and we have partners in the House who have also played a meaningful role.

I would like to think that Senator CRAPO and I were able to move that bipartisan, bicameral process a fair way down the road at the end of last year, but what we are saying is: Let's now vow, as a body and working with our colleagues, to make sure we are not back here in the winter of 2017 after yet another horrendous fire season and once again saying: You know, this Forest Service practice is a textbook case of inefficiency, and we are explaining what fire borrowing is and how it does so much damage in the forest and to forest health.

This is about the betterment of rural resource-dependent communities, especially in the West and around the country. Senator CRAPO and I have worked together on other past efforts, such as the secure rural schools legislation and the Healthy Forests Restoration Act. We were both involved in those efforts and they were, in fact, bipartisan and bicameral.

Tonight our hope is, as a result of this discussion and what we heard on the floor of the Senate last week, that in fact after more than 5 years of effort on this issue, that this time the Congress, on both sides of the Capitol, will come together and will work with the administration. They indicated support for what we were doing last year and will indicate support early on for efforts that are bipartisan and bicameral. The sooner we can get on with that, the better. That is why it is good news that the committees will be starting hearings and legislative consideration shortly, and we look forward to working with our colleagues.

I yield at this time.

The PRESIDING OFFICER. The Senator from Massachusetts.

TRANS-PACIFIC PARTNERSHIP AGREEMENT

Ms. WARREN. Mr. President, on Thursday, 12 countries will sign a massive trade agreement to change the rules for 40 percent of the world's economy, but the Trans-Pacific Partnership will not go into effect unless Congress approves it. I urge my colleagues to reject the TPP and stop an agreement that will tilt the playing field even more in favor of big multinational corporations and against working families.

Much of the debate over this trade agreement has been described as a fight over America's role in setting the rules of international trade, but this is a deliberate diversion. In fact, the United States has free-trade agreements with half of the TPP countries. Most of the TPP's 30 chapters don't even deal with traditional trade issues. No. Most of TPP is about letting multinational corporations rig the rules on everything from patent protection to food safety standards all to benefit themselves.

The first clue about whom the TPP helps is who wrote it. Twenty-eight trained advisory committees were formed to whisper in the ear of our trade negotiators to urge them to move this way or that way during negotiations. Who are the special privileged whisperers? Well, 85 percent are corporate executives or industry lobbyists. Many of the committees—including those on chemicals and pharmaceuticals, aerospace equipment, textiles and clothing, and financial services—are 100 percent industry representatives. In 15 advisory committees, no one—no one—was in the room who represented American workers or American consumers. There was no one in the room who worried about the enforcement of environmental issues or protection against human rights abuses. Nope. Day after day, meeting after meeting, our official negotiators listened to the whispers of the giant industries and heard little from anyone else.

The second clue about what is going on is that it all happened behind closed doors. The U.S. Trade Representative, Michael Froman, says that the United States has been working to negotiate this trade deal for over 5½ years, but the text of the agreement was hidden from public view until just 3 months ago, and when I say hidden, I mean hidden. The drafts were kept under lock and key so that even Members of the Senate had to go to a secure location to see them, and then we weren't allowed to say anything to anyone about what we had actually seen. A rigged process produces a rigged outcome. When the people whispering in the ears of our negotiators are mostly top executives and lobbyists for big corporation—and when the public is shut out of the negotiating process—the final deal tilts in favor of corporate interests.

Evidence of this tilt can be seen in a key TPP provision, investor-state dispute settlement, ISDS. With ISDS, big companies get the right to challenge laws they don't like, not in courts but in front of industry-friendly arbitration panels that sit outside any court system. Those panels can force taxpayers to write huge checks to big corporations with no appeals. Workers, environmentalists, and human rights advocates don't get the special right, only corporations do.

Most Americans don't think of keeping dangerous pesticides out of our food or keeping our drinking water clean as trade issues, but all over the globe companies have used ISDS to demand compensation for laws they don't like. Just last year a mining company

won an ISDS case when Canada denied the company permits to blast off the coast of Nova Scotia. Today, Canadian taxpayers are on the hook for up to $300 million all because their government tried to protect its environment and tried to protect the livelihood of local fishermen.

ISDS hasn't been a problem just for other countries. We have seen the dangers of ISDS right here at home. Last year, the U.S. State Department concluded, and President Obama agreed, that the Keystone XL Pipeline would not serve the national interests of the United States. It was a long fight, but the administration, applying American law, decided that the pipeline was a threat to our air, to our water, and to our climate and denied the permit, but the oil company that wants to build this pipeline doesn't think the buck stops with our President. Now this foreign oil company is using the ISDS provision in NAFTA to demand more than $15 billion in damages from the United States just because we turned down the Keystone Pipeline.

The Nation's top experts in law and economics have warned us about the dangers of ISDS. Nobel Prize-winning economist Joe Stiglitz, Harvard law professor Laurence Tribe, and others recently noted that if ISDS panels force countries to pay high enough fines, the countries will voluntarily drop the health, safety, labor, and environmental laws that big corporations don't like. That is exactly what Germany did in 2011 when they cut back on environmental regulations after an ISDS lawsuit.

Everyone understands the risks associated with ISDS. In fact, the issue got so hot over tobacco companies using ISDS to roll back health standards around, the world that the TPP negotiators decided to limit the use of ISDS to challenge tobacco laws. That is a pretty bold admission that ISDS can be used to weaken public health laws.

I am glad tobacco laws are protected from ISDS, but what about food safety laws or drug safety laws or any other regulation that is designed to protect our citizens? Under TPP every other company, regardless of the health or safety impact, will be able to use ISDS.

Congress will have to vote straight up or down on TPP. We will not have a chance to strip out any of the worst provisions like ISDS. That is why I oppose the TPP, and I hope Congress will use its constitutional authority to stop this deal before it makes things even worse and more dangerous for America's hardest working families.

Thank you, Mr. President.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. GARDNER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. DAINES). Without objection, it is so ordered.

Mr. GARDNER. Mr. President, I would like to take a moment to applaud the great work that Chairman MURKOWSKI and Ranking Member CANTWELL are doing this week on the Energy bill to get this bill to the floor—the Energy Policy Modernization Act of 2016. They have been leaders and have shown their commitment to developing and advancing what is truly a bipartisan bill.

This legislation is a result of nearly a year's work on the Energy and Natural Resources Committee, with four legislative hearings leading up to a July markup. There have been many hours put into the base text, and we had a strong bipartisan vote to report the bill out of committee 18 to 4. It is also nice to see Members over the past several days, and last week as well, having the opportunity to amend the bill on the floor—to make it even stronger through an open amendment process throughout this past week.

The Energy Policy Modernization Act will mean more energy efficiency, more energy generation, and more jobs in the energy sector. Promoting energy efficiency and clean alternative power sources is something that has been a focus of my service, and I am pleased that I have had a chance in my role on the Energy and Natural Resources Committee to continue shaping Federal energy policy in the U.S. Senate.

We have before us this week an opportunity to really advance our national energy policy and to think about what our national energy policy means for this country—energy being a cornerstone of our economy and our security. It means more jobs, it means more growth, and perhaps even one of the most potent foreign policy tools this Nation has to offer our allies.

I wish to take a little bit of time to highlight several provisions of the bill that I helped champion and sponsor to get included in the base of the text.

Section 1006 would encourage the use of something called energy savings performance contracts and utility energy savings contracts in Federal buildings. It is a long name for something that probably doesn't fit very well on a bumper sticker. But what energy savings performance contracts and utility energy savings contracts do is something very simple. They are tools that will allow innovative public and private partnerships to occur, that allow private companies to use private dollars to make energy efficient upgrades to Federal buildings. The private companies are then reimbursed for upgrades once the Federal buildings' energy costs are lower. So, in essence, we are taking private sector ingenuity and know-how and private sector investments and putting them into Federal buildings to lower utility costs, to make sure we are doing a better job of heating or cooling or turning the lights on in our buildings, all through private sector know-how, with no cost to the taxpayer, resulting in taxpayer savings and, of course, thousands of private sector jobs.

Last night we had an amendment that passed by voice vote which requires Federal agencies to implement energy savings projects at Federal facilities. For the past several years, we have been carrying out mandatory Federal energy audits that outline energy savings projects for Federal facilities that are aimed at reducing energy consumption and saving tax dollars, but Federal agencies were not required to implement these changes. So we were actually spending Federal dollars to find out how we can save Federal dollars. Yet we would put that report on a shelf where it could gather dust, and we actually didn't implement the taxpayer savings that the reports suggested. We are not talking about just a little bit of savings; we are talking about billions upon billions of dollars of savings that we could put upon the Federal Government simply by making the billions of square feet of office space that the Federal Government has more energy efficient—all, again, by using private sector know-how and private sector ingenuity, with zero taxpayer dollars involved. This amendment that we added last night would make sure those requirements—those findings of energy savings—are actually put into place. Instead of just gathering dust on the shelf, we are going to make them a reality.

Section 3002 of the bill would reauthorize a Department of Energy program for 10 additional years to provide funding to retrofit existing dams and river conduits with electricity-generating technology. It is estimated by the Department of Energy that there is up to 12 gigawatts of untapped hydropower development within the Nation's existing dam infrastructure—12 gigawatts already there, untapped. Right now we estimate that only about 3 percent of the Nation's 80,000 existing dams are used to generate clean hydroelectric power. If people are concerned about zero emissions and carbon emissions, hydropower is one of the greatest opportunities we have—hydroelectric generation—to produce clean energy, a renewable resource and emission free.

We have heard from the Colorado Small Hydro Association that there are new Colorado hydroelectric projects benefiting from this program that were originally authorized in the Energy Policy Act of 2005. These projects include new small hydro projects near Ouray, Creede, Grand Lake, and Ridgeway, CO.

Another measure I have been working on over the past several years is section 2201, which expedites the approval of liquefied natural gas export applications. I carried this measure in the House where we passed it with bipartisan support, and now we are going to be able to pass it with bipartisan support in the U.S. Senate.

When we think about the foreign policy potential that expediting liquefied natural gas has for this country and the world, it is truly significant. We

now can send to our allies in Eastern Europe and around the globe—nations that are currently dependent on energy from tyrannical governments or governments that would use their energy contracts and pricing to try to gouge their neighbors or to manipulate markets for their own gain of an unscrupulous leader—it is a foreign policy tool that the United States can now provide to our allies abundant, affordable energy. This bill will allow that liquefied natural gas permitting process to be expedited. Nations can't wait to get their hands on U.S. energy. The Department of Energy has said that they can comply with the terms of this bill. It is a no-brainer.

I also sponsored language in section 4101 of the bill to commission a study of the feasibility and the potential benefits that could be brought about by an energy-water Center Of Excellence within the Department of Energy's national laboratories. In Colorado we are home to the National Renewable Energy Laboratory. We are also home to some of the most incredible waterways our Nation has to offer. We are also home, of course, to the high plains areas of the Western Slope and the Eastern Plains that need more attention when it comes to how we are going to develop our energy sources while also making sure we are protecting our water and making sure we are being good conservationists when it comes to our water. An energy-water Center Of Excellence would aid in efforts to establish a comprehensive approach for managing energy and water resources in the future.

In section 3017, I worked to clarify that oilseed crops are eligible to qualify for the same research provisions as biomass. Meeting future demand for energy and fuel will require a variety of sources, and science and research indicate that oilseed crops have the potential to play a significant role. The Central Great Plains Research Station in Akron, CO, is researching right now oilseed productivity under varying water availability. Meeting our energy needs in an increasingly drought-ridden area will only become harder and harder. Without the necessary research, we may not have an appropriate response, but with continued innovation, we will have a great one.

Oilseeds can hold the key to providing safe, clean energy that is water efficient—a key for the increasingly drought-ridden West.

One of the things we know we have to consider in agriculture, as farmers sometimes face challenging and sometimes historic lows in commodity prices, is to make sure we are finding new ways and new value to the crops they can raise. The development of oilseeds, development of dryland oilseed technologies is an incredible way for us to bring value-added opportunities to rural America.

These are only a few of the provisions that I have worked to advance in this bill, and I wish to thank, again, Chairman MURKOWSKI and so many of our colleagues for including these provisions so important to States like Colorado and the Presiding Officer's State of Montana, and for what we have been able to do in this Energy bill.

We are spending this time on energy because it is so important to this country. Why is it important? Because it means jobs. It means an economic foundation. Abundant and affordable energy means the opportunity for a small business to open up. It means the ability of our neighbors to be able to afford to cool or heat their homes, to be able to turn on the light switch when they wake up in the morning and go home at night.

Over the past year we have looked back at the work the Senate has done, and really the past year has been a very productive one in the Senate for the American people. We have focused on four things in the Senate—four corners—something that I call my four corners plan: Working on education, passing a bipartisan education bill; areas such as our economy, and providing tax relief to small businesses and people around the country; passing a bipartisan transportation bill to make sure we are getting goods to and from the market. We have worked on the environment by passing the Land and Water Conservation Fund. In fact, this bill will address the great program of the Land and Water Conservation Fund, which has benefited all 50 States across the country with projects in every single one. This bill, the Energy Modernization Policy Act that we are working on today, will address the fourth corner of my four corner plan, and that is energy. We will hopefully produce hundreds of thousands of jobs around Colorado and the country, directly or indirectly related to energy development and energy production, whether that is clean energy, renewable energy, energy efficiency, traditional energy, transmission of that energy to and from consumers; whether it is produced in the sparsely populated southeastern areas of Colorado or the densely populated areas of Colorado's front range and beyond. I hope our colleagues will agree to support and pass this legislation so that it actually continues American leadership when it comes to energy policy.

So I thank the Presiding Officer for his leadership. I know in Montana this Energy bill is an important step forward because it represents an all-of-the-above energy policy. I want to thank the Presiding Officer for his leadership in Montana, and I also want to thank the chairman of the committee, Senator MURKOWSKI, for her leadership as well.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. MURKOWSKI. Mr. President, we have been working hard this afternoon. I think we had a very productive day. We processed eight amendments, which was very good for the process we are in. I have appreciated Members' cooperation with that.

We have been working through the back-and-forth to come up with a package of amendments that we can process by voice vote. It has been good. It has been a little lengthier than we had anticipated, but I think we are in a good place now and I am pleased with that. Again, tomorrow we will look to set up a series of additional votes. Members can expect that beginning probably in the afternoon, but we are also looking to adopt additional votes as we try to reach that unanimous consent agreement.

AMENDMENTS NOS. 3064; 3065, AS MODIFIED; 3179; 3145; 3174; 3140, AS MODIFIED; 3156; 3143; 3194, AS MODIFIED; 3205; AND 3160 TO AMENDMENT NO. 2953

Ms. MURKOWSKI. Mr. President, at this point in time we are now ready to process some amendments by voice vote.

I ask unanimous consent that the following amendments be called up and reported by number: Hirono amendment No. 3064; Hirono amendment No. 3065, with modification; Klobuchar amendment No. 3179; Inhofe-Carper amendment No. 3145; Heitkamp amendment No. 3174; Collins-Klobuchar amendment No. 3140, with modification; Baldwin amendment No. 3156; Carper-Inhofe amendment No. 3143; Boxer-Feinstein amendment No. 3194, with modification; Inhofe-King amendment No. 3205; and Booker amendment No. 3160.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The clerk will report the amendments by number.

The legislative clerk read as follows:

The Senator from Alaska [Ms. MURKOWSKI], for others, proposes amendments numbered 3064; 3065, as modified; 3179; 3145; 3174; 3140, as modified; 3156; 3143; 3194, as modified; 3205; and 3160 en bloc to amendment No. 2953.

The amendments are as follows:

AMENDMENT NO. 3064

(Purpose: To modify a provision relating to the energy workforce pilot grant program)

In section 3602(d)(1)(B), after ''State'' insert the following: ''(as defined in 202 of the Energy Conservation and Production Act (42 U.S.C. 6802)) (referred to in this section as the 'State')''.

AMENDMENT NO. 3065, AS MODIFIED

(Purpose: To modify a provision relating to the energy workforce pilot grant program)

In section 3602(d), strike paragraph (3) and insert the following:

(3) work with Indian tribes (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b)), tribal organizations (as defined in section 3765 of title 38, United States Code), and Native American veterans (as defined in section 3765 of title 38, United States Code), including veterans who are a descendant of an

Alaska Native (as defined in Section 3(r) of the Alaska Native Claims Settlement Act (432 U.S.C. 1602(r).''

AMENDMENT NO. 3179

(Purpose: To modify the areas of focus under the grid storage program)

On page 174, line 5, insert '', electric thermal, electromechanical,'' after ''materials''.

AMENDMENT NO. 3145

(Purpose: To provide that for purposes of the Federal purchase requirement, renewable energy includes thermal energy)

At the end of title III, add the following:

Subtitle I—Thermal Energy

SEC. 3801. MODIFYING THE DEFINITION OF RENEWABLE ENERGY TO INCLUDE THERMAL ENERGY.

(a) IN GENERAL.—Section 203 of the Energy Policy Act of 2005 (42 U.S.C. 15852) (as amended by section 3001(b)) is amended—

(1) in subsection (a), by inserting ''a number equivalent to'' before ''the total amount of electric energy'';

(2) in subsection (b)—

(A) by redesignating paragraph (2) as paragraph (3);

(B) by inserting after paragraph (1) the following:

''(2) QUALIFIED WASTE HEAT RESOURCE.—The term 'qualified waste heat resource' means—

''(A) exhaust heat or flared gas from any industrial process;

''(B) waste gas or industrial tail gas that would otherwise be flared, incinerated, or vented;

''(C) a pressure drop in any gas for an industrial or commercial process; or

''(D) such other forms of waste heat as the Secretary determines appropriate.''; and

(C) in paragraph (3) (as redesignated by subparagraph (A))—

(i) by striking ''produced from'' and inserting ''produced or, if resulting from a thermal energy project placed in service after December 31, 2014, thermal energy generated from, or avoided by,''; and

(ii) by inserting ''qualified waste heat resource,'' after ''municipal solid waste,''; and

(3) in subsection (c)—

(A) by redesignating paragraphs (1) through (3) as subparagraphs (A) through (C), respectively, and indenting appropriately;

(B) in the matter preceding subparagraph (A) (as so redesignated), by striking ''For purposes'' and inserting the following:

''(1) IN GENERAL.—For purposes''; and

(C) by adding at the end the following:

''(2) SEPARATE CALCULATION.—

''(A) IN GENERAL.—For purposes of determining compliance with the requirements of this section, any energy consumption that is avoided through the use of renewable energy shall be considered to be renewable energy produced.

''(B) DENIAL OF DOUBLE BENEFIT.—Avoided energy consumption that is considered to be renewable energy produced under subparagraph (A) shall not also be counted for purposes of achieving compliance with another Federal energy efficiency goal.''.

(b) CONFORMING AMENDMENT.—Section 2410q(a) of title 10, United States Code, is amended by striking ''section 203(b)(2) of the Energy Policy Act of 2005 (42 U.S.C. 15852(b)(2))'' and inserting ''section 203(b) of the Energy Policy Act of 2005 (42 U.S.C. 15852(b))''.

AMENDMENT NO. 3174

(Purpose: To affirm a Federal commitment to carbon capture utilization and storage research, development, and implementation and to study the costs and benefits of contracting authority for price stabilization)

On page 302, between lines 14 and 15, insert the following:

SEC. 3401. SENSE OF THE SENATE ON CARBON CAPTURE, USE, AND STORAGE DEVELOPMENT AND DEPLOYMENT.

It is the sense of the Senate that—

(1) carbon capture, use, and storage deployment is—

(A) an important part of the clean energy future and smart research and development investments of the United States; and

(B) critical—

(i) to increasing the energy security of the United States;

(ii) to reducing emissions; and

(iii) to maintaining a diverse and reliable energy resource;

(2) the fossil energy programs of the Department should continue to focus on research and development of technologies that will improve the capture, transportation, use (including for the production through biofixation of carbon-containing products), and injection processes essential for carbon capture, use, and storage activities in the electrical and industrial sectors;

(3) the Secretary should continue to partner with the private sector and explore avenues to bring down the cost of carbon capture, including through loans, grants, and sequestration credits to help make carbon capture, use, and storage technologies more competitive compared to other technologies that are a part of the clean energy future of the United States; and

(4) the Secretary should continue working with international partners on pre-existing agreements, projects, and information sharing activities of the Secretary to develop the latest and most cutting-edge carbon capture, use, and storage technologies for the electrical and industrial sectors.

On page 302, line 15, strike ''**3401**'' and insert ''**3402**''.

On page 302, line 21, strike ''**3402**'' and insert ''**3403**''.

On page 311, between lines 7 and 8, insert the following:

SEC. 3404. REPORT ON PRICE STABILIZATION SUPPORT.

(a) DEFINITION OF ELECTRIC GENERATION UNIT.—In this section, the term ''electric generation unit'' means an electric generation unit that—

(1) uses coal-based generation technology; and

(2) is capable of capturing carbon dioxide emissions from the unit.

(b) REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall prepare and submit to the appropriate committees of Congress a report—

(1) on the benefits and costs of entering into long-term binding contracts on behalf of the Federal Government with qualified parties to provide price stabilization support for certain industrial sources for capturing carbon dioxide from electricity generated at an electric generation unit or carbon dioxide captured from an electric generation unit and sold to a purchaser for—

(A) the recovery of crude oil; or

(B) other purposes for which a commercial market exists; and

(2) that—

(A) contains an analysis of how the Department would establish, implement, and maintain a contracting program described in paragraph (1); and

(B) outlines options for how price stabilization contracts may be structured and regulations that would be necessary to implement a contracting program described in paragraph (1).

AMENDMENT NO. 3140, AS MODIFIED

(Purpose: To require certain Federal agencies to establish consistent policies relating to forest biomass energy to help address the energy needs of the United States)

At the end of part IV of subtitle A of title III, add the following:

SEC. 30___. POLICIES RELATING TO BIOMASS ENERGY.

To support the key role that forests in the United States can play in addressing the energy needs of the United States, the Secretary, the Secretary of Agriculture, and the Administrator of the Environmental Protection Agency shall, consistent with their missions, jointly—

(1) ensure that Federal policy relating to forest bioenergy—

(A) is consistent across all Federal departments and agencies; and

(B) recognizes the full benefits of the use of forest biomass for energy, conservation, and responsible forest management; and

(2) establish clear and simple policies for the use of forest biomass as an energy solution, including policies that—

(A) reflect the carbon-neutrality of forest bioenergy and recognize biomass as a renewable energy source, provided the use of forest biomass for energy production does not cause conversion of forests to non-forest use.

(B) encourage private investment throughout the forest biomass supply chain, including in—

(i) working forests;

(ii) harvesting operations;

(iii) forest improvement operations;

(iv) forest bioenergy production;

(v) wood products manufacturing; or

(vi) paper manufacturing;

(C) encourage forest management to improve forest health; and

(D) recognize State initiatives to produce and use forest biomass.

AMENDMENT NO. 3156

(Purpose: To strike a repeal under a provision relating to manufacturing energy efficiency)

Beginning on page 130, strike line 18 and all that follows through page 131, line 5.

Beginning on page 419, line 26, strike ''(as amended'' and all that follows through ''1201(d)(3))'' on page 420, line 1.

AMENDMENT NO. 3143

(Purpose: To reauthorize the diesel emissions reduction program)

At the end of part III of subtitle D of title I, add the following:

SEC. 131__. REAUTHORIZATION OF DIESEL EMISSIONS REDUCTION PROGRAM.

Section 797(a) of the Energy Policy Act of 2005 (42 U.S.C. 16137(a)) is amended by striking ''2016'' and inserting ''2021''.

AMENDMENT NO. 3194, AS MODIFIED

(Purpose: To direct the Secretary of Energy to establish a task force to analyze and assess the Aliso Canyon natural gas leak)

At the appropriate place, insert the following:

SEC. _____. ALISO CANYON NATURAL GAS LEAK TASK FORCE.

(b) ESTABLISHMENT OF TASK FORCE.—Not later than 15 days after the date of enactment of this Act, the Secretary shall lead and establish an Aliso Canyon Task Force (referred to in this section as the ''task force'').

(c) MEMBERSHIP OF TASK FORCE.—In addition to the Secretary, the task force shall be composed of—

(1) 1 representative from the Pipeline and Hazardous Materials Safety Administration;

(2) 1 representative from the Department of Health and Human Services;

(3) 1 representative from the Environmental Protection Agency;

(4) 1 representative from the Department of the Interior;

(5) 1 representative from the Department of Commerce; and

(6) 1 representative from the Federal Energy Regulatory Commission.

(d) REPORT.—

(1) FINAL REPORT.—

(A) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the task force shall submit a final report that contains the information described in subparagraph (B) to—

(i) the Committee on Energy and Natural Resources of the Senate;

(ii) the Committee on Natural Resources of the House of Representatives;

(iii) the Committee on Environment and Public Works of the Senate;

(iv) the Committee on Transportation and Infrastructure of the House of Representatives;

(v) the Committee on Commerce, Science, and Transportation of the Senate;

(vi) the Committee on Energy and Commerce of the House of Representatives;

(vii) the Committee on Health, Education, Labor, and Pensions of the Senate;

(viii) the Committee on Education and the Workforce of the House of Representatives;

(ix) the President; and

(x) relevant Federal and State agencies.

(B) INFORMATION INCLUDED.—The report submitted under subparagraph (A) shall include, at a minimum—

(i) an analysis and conclusion of the cause of the Aliso Canyon natural gas leak;

(ii) an analysis of measures taken to stop the natural gas leak, with an immediate focus on other, more effective measures that could be taken;

(iii) an assessment of the impact of the natural gas leak on health, safety, the environment, and the economy of the residents and property surrounding Aliso Canyon;

(iv) an analysis of how Federal and State agencies responded to the natural gas leak;

(v) in order to lessen the negative impacts of natural gas leaks, recommendations on how to improve—

(I) the response to a future leak; and

(II) coordination between all appropriate Federal, State, and local agencies in the response to the Aliso Canyon natural gas leak and future natural gas leaks;

(vi) an analysis of the potential for a similar natural gas leak to occur at other underground natural gas storage facilities in the United States;

(vii) recommendations on how to prevent any future natural gas leaks;

(viii) recommendations on whether to continue operations at Aliso Canyon and other facilities in close proximity to residential populations based on an assessment of the risk of a future natural gas leak;

(ix) a recommendation on information that is not currently collected but that would be in the public interest to collect and distribute to agencies and institutions for the continued study and monitoring of natural gas infrastructure in the United States;

(x) an analysis of the impact of the Aliso Canyon natural gas leak on wholesale and retail electricity prices; and

(xi) an analysis of the impact of the Aliso Canyon natural gas leak on the reliability of the bulk-power system.

(2) PUBLICATION.—The final report under paragraph (1) shall be made available to the public in an electronically accessible format.

(3) If, before the final report is submitted under paragraph (1) the task force finds methods to solve the natural gas leak at Aliso Canyon; better protect the affected communities; or finds methods to help prevent other leaks, they must immediately issue such findings to the same entities that are to receive the final report.

(e) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section such sums as may be necessary.

AMENDMENT NO. 3205

(Purpose: To provide for the use of geomatic data in consideration of applications for Federal authorization)

On page 196, between lines 7 and 8, insert the following:

(d) GEOMATIC DATA.—If a Federal or State department or agency considering an aspect of an application for Federal authorization requires the applicant to submit environmental data, the department or agency shall consider any such data gathered by geomatic techniques, including tools and techniques used in land surveying, remote sensing, cartography, geographic information systems, global navigation satellite systems, photogrammetry, geophysics, geography, or other remote means.

AMENDMENT NO. 3160

(Purpose: To strike a provision relating to identifyng and characterizing methane hydrate resources using remote sensing and seismic data in the Atlantic Ocean Basin)

On page 263, line 5, strike ''or the Atlantic Ocean Basin''.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the Senate now vote on these amendments en bloc.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Ms. MURKOWSKI. Mr. President, I know of no further debate on these amendments.

The PRESIDING OFFICER. Is there further debate?

If not, the question occurs on agreeing to the amendments en bloc.

The amendments (Nos. 3064; 3065, as modified; 3179; 3145; 3174; 3140, as modified; 3156; 3143; 3194, as modified; 3205; and 3160) were agreed to en bloc.

Ms. MURKOWSKI. Mr. President, I appreciate again the cooperation and the working relationship with my ranking member, as well as her very strong and able team working with mine, as well as the floor staff who have been doing a great job.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, we just cleared several amendments in a bipartisan fashion, working back and forth across the aisle, and I so appreciate our colleagues working so diligently on these tonight. If we want to keep making progress, obviously we have to keep communicating, but I thank everybody involved with getting these amendments done.

To my colleague from Alaska, thanks for her diligence in focusing on these issues. Hopefully we will resolve these issues tomorrow. The cloture motion has been filed, so we need to keep moving forward so that we can resolve these issues by the end of this week.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. CANTWELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENT NO. 3140, AS MODIFIED

Ms. CANTWELL. Mr. President, I did want to mention on amendment No. 3140 that I want to thank everybody who worked on that particular amendment tonight. I know tomorrow we are going to have a colloquy continuing the dialogue among all our colleagues who care about these issues as they relate to energy and biomass and making sure we are all continuing to work on this together. I want to point out that there will be a colloquy on that tomorrow.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

MONTAGNARDS OF VIETNAM

Mr. BURR. Mr. President, I want to take a moment today to recognize the Montagnard community in my State of North Carolina and in other places across the Nation. I am proud to say that North Carolina is home to the largest population of Montagnards in the Unites States and home to the largest population of Montagnards outside of Vietnam.

Many Americans may not know about the history behind the United States's special relationship with the Montagnards, which is a history that goes back to the days of the Vietnam war. The Montagnards are an indigenous tribespeople of the central highlands of Vietnam, and during the Vietnam war, it was the Montagnards who were trained by the CIA and Special Operations Forces to fight alongside our troops against the North Vietnamese and Viet Cong.

At their own great risk, the Montagnards provided critical intelligence support to our troops on the ground, no doubt saving countless American lives. After the war, the United States took in hundreds of Montagnards into our country as refugees because of the severe persecution they faced from the Vietnamese Government for that very reason. While this indeed is a long overdue recognition, I will be submitting later this week a Senate resolution recognizing their service and sacrifice.

However, I believe our recognition of the Montagnards should not stop at what took place decades ago because even today, in 2016, the government of Vietnam continues to discriminate against them for the loyalty and assistance they provided to the United States some 40 years ago. The government of Vietnam continues to persist in its oppression of the Montagnards' basic human rights: the freedom to practice their Christian faith freely without fear of persecution and the right to education, land ownership, and a decent standard of living. This kind of persecution is well documented in the latest human rights and religious freedom reports published by the State Department and the U.S. Commission on International Religious Freedom.

The United States of America has an obligation to stand up for the thousands of suffering Montagnards in Vietnam—some of whom were once our comrades-in-arms. I have heard from many Vietnam war veterans in my State who can tell you how much their military assistance and friendship had meant to them. We should not look the other way; we must continue pressing the Vietnamese Government to respect their fundamental human rights. With this Senate resolution, we send a loud and clear message to the Montagnard people: you are not forgotten.

The United States can do better—we must do better—to support this marginalized tribespeople in Vietnam with whom we share a unique and historic bond.

I would ask my colleagues to join me in supporting this resolution.

Thank you.

ADDITIONAL STATEMENTS

REMEMBERING DONALD ''BUDDY'' WRAY

● Mr. BOOZMAN. Mr. President, today I wish to recognize the life and legacy of Arkansas businessman and former Tyson Foods executive Donald ''Buddy'' Wray.

Buddy spent his life building Tyson Foods into one of the world's leading food companies. He was equally committed to serving northwest Arkansas and leaves behind a legacy as a respected community leader.

Buddy started his career as a service technician in 1961, working as the liaison for the many family-contracted farms ensuring the health of the flocks. He rose through the ranks of the company.

As a regular fixture at Tyson, his dedication led him to become the chief operation officer in 1992 and, a year later, the president of the company, a position he held until his retirement in 2000.

His commitment and love for the company led him to serve as part-time consultant, but he returned to full-time service in 2008. Chairman John Tyson says Buddy was ''instrumental in everything the company did for over 50 years.''

Buddy was a strong voice for the Arkansas poultry industry, always keeping the needs of the farmer close to his heart. He was named the Distinguished Alumni of the Year in 2000 by the University of Arkansas. In 2004, the university established the Donald ''Buddy'' Wray Chair in Food Safety within the Dale Bumpers College of Agriculture. His exemplary dedication to agriculture was noted in 2012 when he was inducted into the Arkansas Agriculture Hall of Fame. In 2015, he was inducted into the Arkansas Business Hall of Fame.

Buddy truly transformed agriculture and was an advocate for Arkansas. My thoughts and prayers are with his wife of 50 years, Linda; children Cindy, Scott, Jana; their eight grandchildren; and the rest of the Wray family.●

RECOGNIZING MARSH DOG

● Mr. VITTER. Mr. President, small businesses have the unique ability to tackle issues in their communities head on through thoughtful, innovative solutions. This week I am proud to recognize Marsh Dog of Baton Rouge, LA, as being small business of the week for their commitment to preserving and protecting Louisiana's vulnerable coastlines.

In 1998, the Louisiana Department of Wildlife and Fisheries placed a bounty on the nutria rat in an effort to curb the reproduction of the invasive species, which has wreaked environment havoc on Louisiana's vulnerable coastal habitats. In response to the bounty, businesses across the State began inventing creative ways to recycle by-products of the rodent.

During this time, Hansel Harlan, the future founder of Marsh Dog, became increasingly concerned with the ingredients he found in mass market dog food products. After reading about the many recalls and the harmful ingredients circulating within the dog food industry, Harlan began toying with the idea of creating custom treats for his canine companion. After a few trial runs and on the suggestion of his sister Veni, Hansel included nutria rat meat into his recipe, creating an all-natural, eco-conscious snack his dog immediately enjoyed. Harlan and Veni, with the blessing of their K–9 taste tester, began developing and marketing the innovative product.

Today Marsh Dog enjoys great success and praise from their customers and environmental groups across the State. In addition to receiving a grant from the Barataria-Terrebonne National Estuary Program in 2011, which proved to be the endorsement that catapulted their success, Marsh Dog was also named Conservation Business of the Year by Louisiana Wildlife Federation.

Hansel and Veni embody what it means to be innovative entrepreneurs. They created a solution for two impactful problems in their community, while also growing a successful small business, is a remarkable feat that deserves celebration.

Congratulations again to Marsh Dog of Baton Rouge, LA, this week's small business of the week, and I look forward to having my rescue dog Ranger try your treats.●

RECOGNIZING PATTON'S WESTERN WEAR

● Mr. VITTER. Mr. President, oftentimes small businesses grow from the humblest of beginnings, providing livelihoods for hard-working entrepreneurs and their families. In rare cases, these small businesses defy all odds, building successful establishments that integrate into their adopted communities, all while supporting local economies and traditions. This week I am proud to recognize Patton's Western Wear of Ruston, LA, as small business of the week for their perseverance in building a solid and successful family-owned and operated retail group that has left its mark across the State of Louisiana.

In 2007, Robert, Patrick, and Thomas Patton used their farming background and extensive experience in retail to open their own western store in Ruston, LA. Catering to the western and oilfield communities of north central Louisiana and southern Arkansas, the Patton brothers began building a reputation for providing a diverse selection of products and quality customer service. One year later, the

brothers experienced such success that they expanded their small business and opened a second western-style store in Lake Charles, LA. In choosing Ruston and Lake Charles, which lie on opposite sides of Louisiana, the Patton brothers have since acquired a loyal clientele that includes everyone from cowboys to college students.

Today the Patton brothers manage their small business by remaining true to their western roots. They are active in the rodeo community, supporting over 100 individual rodeos each year, and have also sponsored a bull rider in the National Finals Rodeo in Las Vegas, NV, for 4 years in a row. Recognized as a Best of the Delta business, the group now operates four locations throughout Louisiana, having most recently opened the doors to their newest location in Shreveport in June 2015.

The Patton brothers continue to show entrepreneurs across the country that it is possible to turn a passion into a business—even from the humblest of means. Through dedicated service to their community, exceptional commitment to customer service, and an excellent retail strategy, the Patton brothers have made their mark across Louisiana and into Arkansas and Texas.

Congratulations again to Patton's Western Wear for being selected as small business of the week, and I look forward to your continued growth and success.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mr. Williams, one of his secretaries.

PRESIDENTIAL MESSAGE

DISTRICT OF COLUMBIA'S FISCAL YEAR (FY) 2016 BUDGET AND FINANCIAL PLAN—PM 39

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on Homeland Security and Governmental Affairs:

To the Congress of the United States:

Pursuant to my constitutional authority and as contemplated by section 446 of the District of Columbia Self-Government and Governmental Reorganization Act as amended in 1989, I am transmitting the District of Columbia's fiscal year (FY) 2016 Budget and Financial Plan. This transmittal does not represent an endorsement of the contents of the D.C. government's requests.

The proposed FY 2016 Budget and Financial Plan reflects the major programmatic objectives of the Mayor and the Council of the District of Columbia. For FY 2016, the District estimates total revenues and expenditures of $13.0 billion.

BARACK OBAMA.

THE WHITE HOUSE, *February 2, 2016.*

MESSAGE FROM THE HOUSE

At 12:13 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 2152. An act to establish a comprehensive United States Government policy to encourage the efforts of countries in sub-Saharan Africa to develop an appropriate mix of power solutions, including renewable energy, for more broadly distributed electricity access in order to support poverty reduction, promote development outcomes, and drive economic growth, and for other purposes.

The message also announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 400. An act to require the Secretary of State and the Administrator of the United States Agency for International Development to submit reports on definitions of placement and recruitment fees for purposes of enabling compliance with the Trafficking Victims Protection Act of 2000, and for other purposes.

H.R. 2187. An act to direct the Securities and Exchange Commission to revise its regulations regarding the qualifications of natural persons as accredited investors.

H.R. 2209. An act to require the appropriate Federal banking agencies to treat certain municipal obligations as level 2A liquid assets, and for other purposes.

H.R. 3784. An act to amend the Securities Exchange Act of 1934 to establish an Office of the Advocate for Small Business Capital Formation and a Small Business Capital Formation Advisory Committee, and for other purposes.

H.R. 4168. An act to amend the Small Business Investment Incentive Act of 1980 to require an annual review by the Securities and Exchange Commission of the annual government-business forum on capital formation that is held pursuant to such Act.

The message further announced that the House agrees to the amendment of the Senate to the bill (H.R. 515) to protect children and others from sexual abuse and exploitation, including sex trafficking and sex tourism, by providing advance notice of intended travel by registered sex offenders outside the United States to the government of the country of destination, requesting foreign governments to notify the United States when a known sex offender is seeking to enter the United States, and for other purposes, and agrees to the amendment of the Senate to the title of the bill.

The message also announced that the House agrees to the amendment of the Senate to the bill (H.R. 4188) to authorize appropriations for the Coast Guard for fiscal years 2016 and 2017, and for other purposes.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 400. An act to require the Secretary of State and the Administrator of the United States Agency for International Development to submit reports on definitions of placement and recruitment fees for purposes of enabling compliance with the Trafficking Victims Protection Act of 2000, and for other purposes; to the Committee on Foreign Relations.

H.R. 2187. An act to direct the Securities and Exchange Commission to revise its regulations regarding the qualifications of natural persons as accredited investors; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 2209. An act to require the appropriate Federal banking agencies to treat certain municipal obligations as level 2A liquid assets, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 3784. An act to amend the Securities Exchange Act of 1934 to establish an Office of the Advocate for Small Business Capital Formation and a Small Business Capital Formation Advisory Committee, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

H.R. 4168. An act to amend the Small Business Investment Incentive Act of 1980 to require an annual review by the Securities and Exchange Commission of the annual government-business forum on capital formation that is held pursuant to such Act.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. CORKER, from the Committee on Foreign Relations, with an amendment in the nature of a substitute:

H.R. 757. A bill to improve the enforcement of sanctions against the Government of North Korea, and for other purposes.

H.R. 1493. A bill to protect and preserve international cultural property at risk due to political instability, armed conflict, or natural or other disasters, and for other purposes.

S. 1882. A bill to support the sustainable recovery and rebuilding of Nepal following the recent, devastating earthquakes near Kathmandu.

By Mr. CORKER, from the Committee on Foreign Relations, without amendment:

S. 2426. A bill to direct the Secretary of State to develop a strategy to obtain observer status for Taiwan in the International Criminal Police Organization, and for other purposes.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mrs. MURRAY (for herself, Ms. COLLINS, Mr. MORAN, Mrs. MCCASKILL, and Mr. KING):

S. 2478. A bill to amend title 31, United States Code, to require the Secretary of the Treasury to provide for the purchase of paper United States savings bonds with tax refunds; to the Committee on Finance.

By Mr. BLUMENTHAL (for himself and Mr. COATS):

S. 2479. A bill to amend Public Health Service Act to expand access to prescription drug monitoring programs; to the Committee on Health, Education, Labor, and Pensions.

By Ms. BALDWIN:

S. 2480. A bill to amend title 5, United States Code, to protect unpaid interns in the Federal Government from workplace harassment and discrimination, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. NELSON:

S. 2481. A bill to amend the Water Resources Development Act of 2000 to provide for expedited project implementation relating to the comprehensive Everglades restoration plan; to the Committee on Environment and Public Works.

By Mr. ROUNDS:

S. 2482. A bill to amend title 10, United States Code, to require the Secretary of Defense to provide training to employment personnel of the Department of Defense on matters relating to authorities for recruitment and retention of employees at the United States Cyber Command, and for other purposes; to the Committee on Armed Services.

By Mr. UDALL (for himself, Mrs. GILLIBRAND, Mr. WHITEHOUSE, Mr. MERKLEY, Mr. WARNER, and Mr. HEINRICH):

S. 2483. A bill to prohibit States from carrying out more than one Congressional redistricting after a decennial census and apportionment, to require States to conduct such redistricting through independent commissions, and for other purposes; to the Committee on the Judiciary.

By Mr. SCHATZ (for himself, Mr. WICKER, Mr. COCHRAN, Mr. CARDIN, Mr. THUNE, and Mr. WARNER):

S. 2484. A bill to amend titles XVIII and XI of the Social Security Act to promote cost savings and quality care under the Medicare program through the use of telehealth and remote patient monitoring services, and for other purposes; to the Committee on Finance.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. KLOBUCHAR (for herself and Mr. PERDUE):

S. Res. 353. A resolution raising awareness and encouraging the prevention of stalking by designating January 2016, as ''National Stalking Awareness Month''; considered and agreed to.

By Mrs. FISCHER (for herself and Mr. SASSE):

S. Res. 354. A resolution congratulating the University of Nebraska-Lincoln volleyball team for winning the 2015 National Collegiate Athletic Association Division I Volleyball Championship; considered and agreed to.

By Ms. HEITKAMP (for herself, Mr. BARRASSO, Mr. TESTER, Mrs. MURRAY, Mr. FRANKEN, Mr. UDALL, Mr. HEINRICH, Ms. BALDWIN, Ms. HIRONO, Ms. STABENOW, Mr. MORAN, Mr. HOEVEN, Mr. DAINES, Mr. THUNE, Ms. CANTWELL, Ms. KLOBUCHAR, Mr. SULLIVAN, Mr. ROUNDS, Mr. PETERS, and Mr. LANKFORD):

S. Res. 355. A resolution designating the week beginning February 7, 2016, as ''National Tribal Colleges and Universities Week''; considered and agreed to.

By Mr. ISAKSON (for himself, Mr. WHITEHOUSE, Mr. BOOKER, Mr. BROWN, Mrs. CAPITO, Mr. CASSIDY, Mr. CORNYN, and Mr. WYDEN):

S. Res. 356. A resolution recognizing January 2016 as National Mentoring Month; considered and agreed to.

ADDITIONAL COSPONSORS

S. 50

At the request of Mr. VITTER, the name of the Senator from South Dakota (Mr. THUNE) was added as a cosponsor of S. 50, a bill to amend the Public Health Service Act to prohibit certain abortion-related discrimination in governmental activities.

S. 391

At the request of Mr. PAUL, the name of the Senator from Georgia (Mr. PERDUE) was added as a cosponsor of S. 391, a bill to preserve and protect the free choice of individual employees to form, join, or assist labor organizations, or to refrain from such activities.

S. 1315

At the request of Mr. WYDEN, the names of the Senator from Oregon (Mr. MERKLEY) and the Senator from Idaho (Mr. RISCH) were added as cosponsors of S. 1315, a bill to protect the right of law-abiding citizens to transport knives interstate, notwithstanding a patchwork of local and State prohibitions.

S. 1409

At the request of Mr. MARKEY, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 1409, a bill to amend title XIX of the Social Security Act to require States to suspend, rather than terminate, an individual's eligibility for medical assistance under the State Medicaid plan while such individual is an inmate of a public institution.

S. 1460

At the request of Mr. BROWN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1460, a bill to amend title 38, United States Code, to extend the Yellow Ribbon G.I. Education Enhancement Program to cover recipients of the Marine Gunnery Sergeant John David Fry scholarship, and for other purposes.

S. 1717

At the request of Mr. PORTMAN, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 1717, a bill to amend title 46, United States Code, to exempt old vessels that only operate within inland waterways from the fire-retardant materials requirement if the owners of such vessels make annual structural alterations to at least 10 percent of the areas of the vessels that are not constructed of fire-retardant materials.

S. 1887

At the request of Mr. CASEY, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1887, a bill to protect and preserve international cultural property at risk due to political instability, armed conflict, or natural or other disasters, and for other purposes.

S. 1944

At the request of Mr. SULLIVAN, the names of the Senator from Georgia (Mr. PERDUE) and the Senator from Montana (Mr. DAINES) were added as cosponsors of S. 1944, a bill to require each agency to repeal or amend 1 or more rules before issuing or amending a rule.

S. 1982

At the request of Mr. CARDIN, the name of the Senator from North Carolina (Mr. BURR) was added as a cosponsor of S. 1982, a bill to authorize a Wall of Remembrance as part of the Korean War Veterans Memorial and to allow certain private contributions to fund the Wall of Remembrance.

S. 2386

At the request of Mrs. GILLIBRAND, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 2386, a bill to authorize the establishment of the Stonewall National Historic Site in the State of New York as a unit of the National Park System, and for other purposes.

S. 2423

At the request of Mrs. SHAHEEN, the names of the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Oregon (Mr. WYDEN) and the Senator from Rhode Island (Mr. WHITEHOUSE) were added as cosponsors of S. 2423, a bill making appropriations to address the heroin and opioid drug abuse epidemic for the fiscal year ending September 30, 2016, and for other purposes.

S. 2426

At the request of Mr. GARDNER, the names of the Senator from Georgia (Mr. PERDUE) and the Senator from New Mexico (Mr. HEINRICH) were added as cosponsors of S. 2426, a bill to direct the Secretary of State to develop a strategy to obtain observer status for Taiwan in the International Criminal Police Organization, and for other purposes.

S. 2437

At the request of Ms. MIKULSKI, the names of the Senator from Oregon (Mr. WYDEN) and the Senator from California (Mrs. BOXER) were added as cosponsors of S. 2437, a bill to amend title 38, United States Code, to provide for the burial of the cremated remains of persons who served as Women's Air Forces Service Pilots in Arlington National Cemetery, and for other purposes.

S. 2444

At the request of Mr. INHOFE, the name of the Senator from Wyoming (Mr. ENZI) was added as a cosponsor of S. 2444, a bill to amend title 18, United States Code, to provide for the disposition, within 60 days, of an application to exempt a projectile from classification as armor piercing ammunition.

S. 2451

At the request of Mr. TOOMEY, his name was added as a cosponsor of S. 2451, a bill to designate the area between the intersections of International Drive, Northwest and Van

Ness Street, Northwest and International Drive, Northwest and International Place, Northwest in Washington, District of Columbia, as ''Liu Xiaobo Plaza'', and for other purposes.

S. 2466

At the request of Mr. PETERS, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 2466, a bill to amend the Safe Water Drinking Act to authorize the Administrator of the Environmental Protection Agency to notify the public if a State agency and public water system are not taking action to address a public health risk associated with drinking water requirements.

AMENDMENT NO. 2996

At the request of Mr. SULLIVAN, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of amendment No. 2996 proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3023

At the request of Mr. LEE, the names of the Senator from Utah (Mr. HATCH) and the Senator from Arizona (Mr. FLAKE) were added as cosponsors of amendment No. 3023 proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3039

At the request of Mr. HOEVEN, the names of the Senator from Montana (Mr. DAINES) and the Senator from North Dakota (Ms. HEITKAMP) were added as cosponsors of amendment No. 3039 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3089

At the request of Ms. KLOBUCHAR, the names of the Senator from Minnesota (Mr. FRANKEN) and the Senator from Michigan (Mr. PETERS) were added as cosponsors of amendment No. 3089 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3095

At the request of Mr. DURBIN, the names of the Senator from Wisconsin (Ms. BALDWIN), the Senator from Illinois (Mr. KIRK) and the Senator from Washington (Mrs. MURRAY) were added as cosponsors of amendment No. 3095 proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3107

At the request of Ms. BALDWIN, the names of the Senator from Michigan (Mr. PETERS), the Senator from Connecticut (Mr. BLUMENTHAL) and the Senator from Wisconsin (Mr. JOHNSON) were added as cosponsors of amendment No. 3107 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3112

At the request of Mr. KING, his name was added as a cosponsor of amendment No. 3112 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3145

At the request of Mr. INHOFE, the name of the Senator from Nevada (Mr. HELLER) was added as a cosponsor of amendment No. 3145 proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3157

At the request of Mr. INHOFE, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of amendment No. 3157 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3160

At the request of Mr. BOOKER, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of amendment No. 3160 proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3166

At the request of Mrs. SHAHEEN, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of amendment No. 3166 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3168

At the request of Mr. PORTMAN, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of amendment No. 3168 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3170

At the request of Mr. SULLIVAN, the names of the Senator from Louisiana (Mr. VITTER) and the Senator from New Hampshire (Mrs. SHAHEEN) were added as cosponsors of amendment No. 3170 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3171

At the request of Ms. HEITKAMP, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of amendment No. 3171 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3173

At the request of Ms. HEITKAMP, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of amendment No. 3173 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3174

At the request of Ms. HEITKAMP, the names of the Senator from Wyoming (Mr. BARRASSO), the Senator from Indiana (Mr. COATS), the Senator from Wyoming (Mr. ENZI) and the Senator from Indiana (Mr. DONNELLY) were added as cosponsors of amendment No. 3174 proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

AMENDMENT NO. 3183

At the request of Ms. HIRONO, the names of the Senator from Delaware (Mr. COONS), the Senator from Ohio (Mr. BROWN) and the Senator from Michigan (Mr. PETERS) were added as cosponsors of amendment No. 3183 intended to be proposed to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 353—RAISING AWARENESS AND ENCOURAGING THE PREVENTION OF STALKING BY DESIGNATING JANUARY 2016, AS ''NATIONAL STALKING AWARENESS MONTH''

Ms. KLOBUCHAR (for herself and Mr. PERDUE) submitted the following resolution; which was considered and agreed to:

S. RES. 353

Whereas 15 percent of women in the United States, at some point during their lifetimes, have experienced stalking victimization, during which the women felt very fearful or believed that they or someone close to them would be harmed or killed;

Whereas, during a 1-year period, an estimated 7,500,000 individuals in the United States reported that they had been victims of stalking, and 75 percent of those individuals reported that they had been stalked by someone they knew;

Whereas 11 percent of victims of stalking reported having been stalked for more than 5 years;

Whereas two-thirds of stalkers pursue their victims at least once a week;

Whereas victims of stalking are forced to take drastic measures to protect themselves, including changing their identities, relocating, changing jobs, or obtaining protection orders;

Whereas the prevalence of anxiety, insomnia, social dysfunction, and severe depression is much higher among victims of stalking than the general population;

Whereas many victims of stalking do not report stalking to the police or contact a victim service provider, shelter, or hotline;

Whereas stalking is a crime under Federal law and the laws of all 50 States, the District of Columbia, and the territories of the United States;

Whereas stalking affects victims of every race, age, culture, gender, sexual orientation, physical and mental ability, and economic status;

Whereas national organizations, local victim service organizations, campuses, prosecutor's offices, and police departments stand ready to assist victims of stalking and are working diligently to develop effective and innovative responses to stalking;

Whereas there is a need to improve the response of the criminal justice system to stalking through more aggressive investigation and prosecution;

Whereas there is a need for an increase in the availability of victim services across the United States, and the services must include programs tailored to meet the needs of victims of stalking;

Whereas individuals 18 to 24 years old experience the highest rates of stalking victimization, and rates of stalking among college students exceed rates of stalking among the general population;

Whereas up to 75 percent of women in college who experience behavior relating to stalking experience other forms of victimization, including sexual or physical victimization;

Whereas there is a need for an effective response to stalking on each campus; and

Whereas the Senate finds that ''National Stalking Awareness Month'' provides an opportunity to educate the people of the United States about stalking: Now, therefore, be it

Resolved, That the Senate—

(1) designates January 2016, as ''National Stalking Awareness Month'';

(2) applauds the efforts of service providers for victims of stalking, police, prosecutors, national and community organizations, campuses, and private sector supporters to promote awareness of stalking;

(3) encourages policymakers, criminal justice officials, victim service and human service agencies, institutions of higher education, and nonprofit organizations to increase awareness of stalking and the availability of services for victims of stalking; and

(4) urges national and community organizations, businesses in the private sector, and the media to promote awareness of the crime of stalking through ''National Stalking Awareness Month''.

SENATE RESOLUTION 354—CONGRATULATING THE UNIVERSITY OF NEBRASKA-LINCOLN VOLLEYBALL TEAM FOR WINNING THE 2015 NATIONAL COLLEGIATE ATHLETIC ASSOCIATION DIVISION I VOLLEYBALL CHAMPIONSHIP

Mrs. FISCHER (for herself and Mr. SASSE) submitted the following resolution; which was considered and agreed to:

S. RES. 354

Whereas, on December 19, 2015, the University of Nebraska-Lincoln Cornhuskers won the 2015 National Collegiate Athletic Association (referred to in this preamble as the ''NCAA'') Division I Volleyball Championship in Omaha, Nebraska in an overwhelming victory over the University of Texas Longhorns by a score of 25 to 23, 25 to 23, and 25 to 21;

Whereas the University of Nebraska-Lincoln has won 4 NCAA volleyball Championships;

Whereas the Cornhuskers ended their championship season with a 16-match winning streak and finished the year with a record of 32 wins and 4 losses;

Whereas all members of the University of Nebraska-Lincoln volleyball team, including Annika Albrecht, Olivia Boender, Kelsey Fien, Mikaela Foecke, Meghan Haggerty, Cecilia Hall, Briana Holman, Kelly Hunter, Kenzie Maloney, Alicia Ostrander, Tiani Reeves, Amber Rolfzen, Kadie Rolfzen, Brooke Smith, Sydney Townsend, and Justine Wong-Orantes, contributed to this outstanding victory;

Whereas head coach John Cook, assistant coach Chris Tamas, assistant coach Dani Busboom Kelly, volunteer assistant coach Jen Tamas, director of operations Lindsay Peterson, video coordinator Natalie Morgan, and graduate managers Dan Mader, Mike Owen, and Peter Netisingha guided this outstanding group of women to a national championship;

Whereas Mikaela Foecke was named the Most Outstanding Player of the 2015 NCAA Championship;

Whereas Justine Wong-Orantes was named the Big Ten Defensive Player of the Year, becoming the first Nebraska player ever to earn that award;

Whereas Kadie Rolfzen, Amber Rolfzen, and Justine Wong-Orantes were recognized as All-Americans by the American Volleyball Coaches Association, and Mikaela Foecke and Kelly Hunter received honorable mention; and

Whereas an NCAA record-breaking crowd of 17,561 volleyball fans attended the championship game, reflecting the tremendous spirit and dedication of Nebraska fans supporting the Cornhuskers as the team won the national championship: Now, therefore, be it

Resolved, That the Senate—

(1) congratulates the University of Nebraska-Lincoln volleyball team as the winner of the 2015 National Collegiate Athletic Association Division I Volleyball Championship;

(2) commends the University of Nebraska players, coaches, and staff for their hard work and dedication;

(3) recognizes the students, alumni, and loyal fans that supported the Cornhuskers on their journey to win another Division I Championship; and

(4) respectfully requests that the Secretary of the Senate prepare an official copy of this resolution for presentation to—

(A) the president of University of Nebraska;

(B) the athletic director of the University of Nebraska-Lincoln; and

(C) the head coach of the University of Nebraska-Lincoln volleyball team.

SENATE RESOLUTION 355—DESIGNATING THE WEEK BEGINNING FEBRUARY 7, 2016, AS ''NATIONAL TRIBAL COLLEGES AND UNIVERSITIES WEEK''

Ms. HEITKAMP (for herself, Mr. BARRASSO, Mr. TESTER, Mrs. MURRAY, Mr. FRANKEN, Mr. UDALL, Mr. HEINRICH, Ms. BALDWIN, Ms. HIRONO, Ms. STABENOW, Mr. MORAN, Mr. HOEVEN, Mr. DAINES, Mr. THUNE, Ms. CANTWELL, Ms. KLOBUCHAR, Mr. SULLIVAN, Mr. ROUNDS, Mr. PETERS, and Mr. LANKFORD) submitted the following resolution; which was considered and agreed to:

S. RES. 355

Whereas there are 37 Tribal Colleges and Universities operating on more than 85 campuses in 16 States;

Whereas Tribal Colleges and Universities are tribally chartered or federally chartered institutions of higher education, which creates a unique relationship between Tribal Colleges and Universities and the Federal Government;

Whereas Tribal Colleges and Universities serve students from more than 250 federally recognized Indian tribes;

Whereas Tribal Colleges and Universities offer students access to knowledge and skills grounded in cultural traditions and values, including indigenous languages, which—

(1) enhances Indian communities; and

(2) enriches the United States as a nation;

Whereas Tribal Colleges and Universities provide access to high-quality postsecondary educational opportunities for—

(1) American Indians;

(2) Alaska Natives; and

(3) other individuals that live in some of the most isolated and economically depressed areas in the United States;

Whereas Tribal Colleges and Universities are accredited institutions of higher education that effectively prepare students to succeed in—

(1) the academic pursuits of the students; and

(2) the global and highly competitive workforce;

Whereas Tribal Colleges and Universities have open enrollment policies, and approximately 24 percent of the students at Tribal Colleges and Universities are non-Indian individuals; and

Whereas the collective mission and the considerable achievements of Tribal Colleges and Universities deserve national recognition: Now, therefore, be it

Resolved, That the Senate—

(1) designates the week beginning February 7, 2016, as ''National Tribal Colleges and Universities Week''; and

(2) calls on the people of the United States and interested groups to observe National Tribal Colleges and Universities Week with appropriate ceremonies, activities, and programs to demonstrate support for Tribal Colleges and Universities.

SENATE RESOLUTION 356—RECOGNIZING JANUARY 2016 AS NATIONAL MENTORING MONTH

Mr. ISAKSON (for himself, Mr. WHITEHOUSE, Mr. BOOKER, Mr. BROWN, Mrs. CAPITO, Mr. CASSIDY, Mr. CORNYN, and Mr. WYDEN) submitted the following resolution; which was considered and agreed to:

S. RES. 356

Whereas, in 2002, the Harvard T.H. Chan School of Public Health and MENTOR: the National Mentoring Partnership established National Mentoring Month;

Whereas the goals of National Mentoring Month are—

(1) to raise awareness of mentoring;

(2) to recruit individuals to mentor; and

(3) to encourage organizations to engage and integrate quality in mentoring into the efforts of the organizations;

Whereas young people across the United States make everyday choices that lead up to the big decisions in life without the guidance and support on which many other people rely;

Whereas a mentor is a caring, consistent presence who devotes time to a young person to help that young person—

(1) discover personal strength; and

(2) achieve the potential of that young person through a structured and trusting relationship;

Whereas quality mentoring—

(1) encourages positive choices;

(2) promotes self-esteem;

(3) supports academic achievement; and

(4) introduces young people to new ideas;

Whereas mentoring programs have shown to be effective in combating school violence

and discipline problems, substance abuse, incarceration, and truancy;

Whereas research shows that young people who were at risk for not completing high school but who had a mentor were, as compared to similarly situated young people without a mentor—

(1) 55 percent more likely to be enrolled in college;

(2) 81 percent more likely to report participating regularly in sports or extracurricular activities;

(3) more than twice as likely to say they held a leadership position in a club or sports team; and

(4) 78 percent more likely to pay it forward by volunteering regularly in their communities;

Whereas 90 percent of young people who were at risk for not completing high school but who had a mentor said they are now interested in becoming mentors themselves;

Whereas youth development experts agree that mentoring encourages smart daily behaviors (such as finishing homework, having healthy social interactions, and saying no when it counts) that have a noticeable influence on the growth and success of a young person;

Whereas mentors help young people set career goals and use the personal contacts of the mentors to help young people meet industry professionals and find jobs;

Whereas all of the described benefits of mentors serve to link youth to economic and social opportunity while also strengthening the fiber of communities in the United States; and

Whereas despite the described benefits, 9,000,000 young people in the United States feel isolated from meaningful connections with adults outside their homes, constituting a ''mentoring gap'' that demonstrates a need for collaboration and resources: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes January 2016 as National Mentoring Month;

(2) recognizes the men and women who serve as staff and volunteers at quality mentoring programs and who help the young people of the United States find inner strength and reach their full potential;

(3) acknowledges that mentoring is beneficial because mentoring encourages educational achievement, reduces juvenile delinquency, improves life outcomes, and strengthens communities;

(4) promotes the establishment and expansion of quality mentoring programs across the United States to equip young people with the tools needed to lead healthy and productive lives; and

(5) supports initiatives to close the ''mentoring gap'' that exists for the many young people in the United States without meaningful connections with adults outside their homes.

AMENDMENTS SUBMITTED AND PROPOSED

SA 3184. Mr. TOOMEY (for himself and Mr. CASEY) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table.

SA 3185. Mr. DAINES submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3186. Mrs. FISCHER (for herself, Mr. COCHRAN, Mr. GRASSLEY, Mr. GARDNER, Mrs. ERNST, and Mr. MORAN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3187. Mr. TOOMEY submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3188. Mr. SULLIVAN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3189. Ms. KLOBUCHAR (for herself and Mr. TILLIS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3190. Ms. CANTWELL (for herself and Mrs. MURRAY) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3191. Mr. MERKLEY (for himself, Mr. SCHATZ, and Mr. MARKEY) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3192. Mr. CASSIDY (for himself, Ms. MURKOWSKI, Mr. KAINE, Mr. SCOTT, Mr. VITTER, Mr. TILLIS, and Mr. WARNER) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3193. Mr. BOOKER submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3194. Mrs. BOXER (for herself and Mrs. FEINSTEIN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra.

SA 3195. Mr. MERKLEY (for himself and Mr. WYDEN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3196. Mr. KIRK submitted an amendment intended to be proposed by him to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3197. Ms. COLLINS (for herself, Ms. MIKULSKI, and Ms. HIRONO) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3198. Mr. BROWN (for himself and Mr. KIRK) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3199. Mr. MARKEY submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3200. Mr. WHITEHOUSE (for himself, Mr. MARKEY, Mr. SCHATZ, and Mr. SANDERS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3201. Mr. WARNER (for himself and Mr. KAINE) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3202. Mr. ISAKSON (for himself, Mr. BENNET, Mr. PORTMAN, Mrs. SHAHEEN, and Mr. COONS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3203. Mr. COONS submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3204. Mr. CARPER submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3205. Mr. INHOFE (for himself and Mr. KING) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra.

SA 3206. Mr. BARRASSO submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3207. Mr. THUNE submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3208. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3209. Mr. LANKFORD submitted an amendment intended to be proposed by him to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3210. Mr. LANKFORD submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3211. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3212. Mr. HELLER (for himself, Mr. HEINRICH, Mr. GARDNER, Mr. TESTER, Mr. BENNET, and Mr. RISCH) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3213. Mr. WARNER (for himself and Mr. PETERS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3214. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3215. Mr. CARDIN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3216. Mr. KAINE (for himself, Mr. VITTER, and Ms. BALDWIN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3217. Mrs. SHAHEEN submitted an amendment intended to be proposed by her to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3218. Ms. STABENOW (for herself, Mr. BOOZMAN, Ms. BALDWIN, Mr. CARPER, and Mr. ISAKSON) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3219. Mr. CASEY submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the

bill S. 2012, supra; which was ordered to lie on the table.

SA 3220. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3221. Mr. UDALL (for himself, Mr. PORTMAN, Mrs. BOXER, Mr. ALEXANDER, Mr. WYDEN, and Mr. BROWN) submitted an amendment intended to be proposed by him to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3222. Mr. WYDEN (for himself and Mr. MANCHIN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3223. Mrs. FEINSTEIN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3224. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3225. Mr. GARDNER submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3226. Mr. THUNE submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3227. Mr. TILLIS submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3228. Ms. MURKOWSKI (for herself and Ms. CANTWELL) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3229. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3230. Mr. FRANKEN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

SA 3231. Mr. HELLER (for himself and Mr. REED) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 3184. Mr. TOOMEY (for himself and Mr. CASEY) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE ____—COAL REFUSE POWER PLANTS

SEC. __01. SHORT TITLE.

This title may be cited as the ''Satisfying Energy Needs and Saving the Environment Act'' or the ''SENSE Act''.

SEC. __02. STANDARDS FOR COAL REFUSE POWER PLANTS.

(a) DEFINITIONS.—In this title:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Environmental Protection Agency.

(2) BOILER OPERATING DAY.—The term ''boiler operating day'' has the meaning given the term in section 63.10042 of title 40, Code of Federal Regulations (or a successor regulation).

(3) COAL REFUSE.—The term ''coal refuse'' means any byproduct of coal mining, physical coal cleaning, or coal preparation operation that contains coal, matrix material, clay, and other organic and inorganic material.

(4) COAL REFUSE ELECTRIC UTILITY STEAM GENERATING UNIT.—The term ''coal refuse electric utility steam generating unit'' means an electric utility steam generating unit that—

(A) is in operation as of the date of enactment of this Act;

(B) uses fluidized bed combustion technology to convert coal refuse into energy; and

(C) uses coal refuse as at least 75 percent of the annual fuel consumed, by heat input, of the unit.

(5) COAL REFUSE-FIRED FACILITY.—The term ''coal refuse-fired facility'' means a facility in which the coal refuse electric utility steam generating units are—

(A) located on 1 or more contiguous or adjacent properties;

(B) specified in the same Major Group (2-digit code), as described in the Standard Industrial Classification Manual (1987); and

(C) under common control of the same person (or persons under common control).

(6) CROSS-STATE AIR POLLUTION RULE.—The terms ''Cross-State Air Pollution Rule'' and ''CSAPR'' mean the regulatory program promulgated by the Administrator to address the interstate transport of air pollution in parts 51, 52, and 97 of title 40, Code of Federal Regulations (or successor regulations).

(7) ELECTRIC UTILITY STEAM GENERATING UNIT.—The term ''electric utility steam generating unit'' means—

(A) an electric utility steam generating unit, as the term is defined in section 63.10042 of title 40, Code of Federal Regulations (or a successor regulation); or

(B) an electricity generating unit or electric generating unit, as the terms are used in CSAPR.

(8) PHASE I.—The term ''Phase I'' means, with respect to CSAPR, the initial compliance period under CSAPR, identified for the 2015 and 2016 annual compliance periods.

(b) APPLICATION OF CSAPR TO CERTAIN COAL REFUSE ELECTRIC UTILITY STEAM GENERATING UNITS.—

(1) COAL REFUSE ELECTRIC UTILITY STEAM GENERATING UNITS COMBUSTING BITUMINOUS COAL REFUSE.—

(A) APPLICABILITY.—This paragraph applies to any coal refuse electric utility steam generating unit that—

(i) combusts coal refuse derived from the mining and processing of bituminous coal; and

(ii) is subject to sulfur dioxide allowance surrender provisions pursuant to CSAPR.

(B) CONTINUED APPLICABILITY OF PHASE I ALLOWANCE ALLOCATIONS.—In carrying out CSAPR, the Administrator shall provide that, for any compliance period, the allocation (whether through a Federal implementation plan or State implementation plan) of sulfur dioxide allowances for a coal refuse electric utility steam generating unit described in subparagraph (A) is equivalent to the allocation of the unit-specific sulfur dioxide allowance allocation identified for that unit for Phase I, as referenced in the notice entitled ''Availability of Data on Allocations of Cross-State Air Pollution Rule Allowances to Existing Electricity Generating Units'' (79 Fed. Reg. 71674 (December 3, 2014)).

(C) RULES FOR ALLOWANCE ALLOCATIONS.—For any compliance period under CSAPR that commences on or after January 1, 2017, any sulfur dioxide allowance allocation provided by the Administrator to a coal refuse electric utility steam generating unit described in subparagraph (A)—

(i) shall not be transferable for use by any other source not located at the same coal refuse-fired facility as the relevant coal refuse electric utility steam generating unit;

(ii) may be transferable for use by another source located at the same coal refuse-fired facility as the relevant coal refuse electric utility steam generating unit;

(iii) may be banked for application to compliance obligations in future compliance periods under CSAPR; and

(iv) shall be surrendered on the date on which the operation of the coal refuse electric utility steam generating unit permanently ceases.

(2) OTHER SOURCES.—

(A) NO INCREASE IN OVERALL STATE BUDGET OF SULFUR DIOXIDE ALLOWANCE ALLOCATIONS.—For purposes of paragraph (1), the Administrator may not, for any compliance period under CSAPR, increase the total budget of sulfur dioxide allowance allocations for a State in which a unit described in paragraph (1)(A) is located.

(B) COMPLIANCE PERIODS 2017 THROUGH 2020.—For any compliance period under CSAPR that commences on or after January 1, 2017, but before December 31, 2020, the Administrator shall carry out subparagraph (A) by proportionally reducing, as necessary, the unit-specific sulfur dioxide allowance allocations from each source that—

(i) is located in a State in which a unit described in paragraph (1)(A) is located;

(ii) permanently ceases operation, or converts the primary fuel source from coal to natural gas, before the relevant compliance period; and

(iii) otherwise receives an allocation of sulfur dioxide allowances under CSAPR for the relevant compliance period.

(c) EMISSION LIMITATIONS TO ADDRESS HYDROGEN CHLORIDE AND SULFUR DIOXIDE AS HAZARDOUS AIR POLLUTANTS.—

(1) APPLICABILITY.—For purposes of regulating emissions of hydrogen chloride or sulfur dioxide from a coal refuse electric utility steam generating unit under section 112 of the Clean Air Act (42 U.S.C. 7412), the Administrator—

(A) shall authorize the operator of the coal refuse electric utility steam generating unit to elect that the coal refuse electric utility steam generating unit comply with either—

(i) an emissions standard for emissions of hydrogen chloride that meets the requirements of paragraph (2); or

(ii) an emission standard for emissions of sulfur dioxide that meets the requirements of paragraph (2); and

(B) may not require that the coal refuse electric utility steam generating unit comply with both an emission standard for emissions of hydrogen chloride and an emission standard for emissions of sulfur dioxide.

(2) RULES FOR EMISSION LIMITATIONS.—

(A) IN GENERAL.—The Administrator shall require an operator of a coal refuse electric utility steam generating unit to comply, at the election of the operator, with not more than 1 of the following emission standards:

(i) An emission standard for emissions of hydrogen chloride from a coal refuse electric utility steam generating unit that is not more stringent than an emission rate of 0.002 pounds per million British thermal units of heat input.

(ii) An emission standard for emissions of hydrogen chloride from a coal refuse electric

utility steam generating unit that is not more stringent than an emission rate of 0.02 pounds per megawatt-hour.

(iii) An emission standard for emissions of sulfur dioxide from a coal refuse electric utility steam generating unit that is not more stringent than an emission rate of 0.20 pounds per million British thermal units of heat input.

(iv) An emission standard for emissions of sulfur dioxide from a coal refuse electric utility steam generating unit that is not more stringent than an emission rate of 1.5 pounds per megawatt-hour.

(v) An emission standard for emissions of sulfur dioxide from a coal refuse electric utility steam generating unit that is not more stringent than capture and control of 93 percent of sulfur dioxide across the coal refuse electric utility steam generating unit or group of coal refuse electric utility steam generating units, as determined by comparing—

(I) the expected sulfur dioxide generated from combustion of fuels emissions calculated based on as-fired fuel samples; to

(II) the actual sulfur dioxide emissions as measured by a sulfur dioxide continuous emission monitoring system.

(B) MEASUREMENT.—An emission standard described in subparagraph (A) shall be measured as a 30-boiler operating day rolling average per coal refuse electric utility steam generating unit or group of coal refuse electric utility steam generating units located at a single coal refuse-fired facility.

SA 3185. Mr. DAINES submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE ____—MINERAL ECONOMIC COMMITTEE

SEC. ___01. MINERAL ECONOMIC COMMITTEE.

(a) IN GENERAL.—In accordance with this section, the Secretary of the Interior (referred to in this title as the ''Secretary'') shall establish a Mineral Economic Committee (referred to in this title as the ''Committee'') in order to further a more consultative process with key Federal, State, tribal, environmental, and energy stakeholders.

(b) PURPOSE.—The purpose of the Committee shall be to provide advice and guidance, through the Director of the Office of Natural Resource Revenue, to the Secretary and the Director of the Bureau of Land Management on the management of Federal and Indian mineral leases and revenues under the law governing the Department of the Interior.

(c) ACTIVITIES.—The Committee shall—

(1) review and comment on revenue management and other mineral- and energy-related policies; and

(2) provide a forum to convey the views of mineral lessees, operators, revenue payers, revenue recipients, governmental agencies, and public interest groups.

(d) CHARTER.—Not later than 180 days after the date of enactment of this Act, the Secretary shall form the Committee in accordance with—

(1) the lapsed charter of the Royalty Policy Committee that was signed by the Secretary on March 26, 2010; and

(2) this section.

(e) MEMBERSHIP.—

(1) IN GENERAL.—To ensure fair and balanced representation with consideration for the efficiency and fiscal economy of the Committee, the Committee shall include—

(A) non-Federal members; and

(B) Federal members.

(2) NON-FEDERAL MEMBERS.—

(A) APPOINTMENT.—The Secretary shall appoint to the Committee non-Federal members in accordance with subparagraph (B) and an alternate for each non-Federal member.

(B) COMPOSITION.—The non-Federal members of the Committee shall be composed of the following:

(i) Not fewer than 5 Governors (or designees) of States that receive over $10,000,000 annually in royalty revenues from Federal mineral leases.

(ii) Not fewer than 5 representatives of Indian tribes producing Federal oil, gas, or coal on the land of the Indian tribes.

(iii) Not more than 5 representatives of various mineral or energy interests.

(iv) Not more than 3 representatives of public interest groups or nongovernmental organizations.

(C) TERM.—

(i) IN GENERAL.—Non-Federal members and the alternate for each non-Federal member shall serve on the Committee for staggered terms.

(ii) DURATION.—

(I) IN GENERAL.—Subject to subclause (II), each non-Federal member and the alternate for each non-Federal member shall serve on the Committee for not more than 3 years in duration.

(II) EXTENSION OF TERM.—Notwithstanding subclause (I), in the case of any new or reappointed non-Federal member of the Committee with a term that expires in the same calendar year as the terms of more than ⅓ of the other non-Federal members, the term of that new or reappointed non-Federal member may be extended for an additional 1-year or 2-year term.

(III) TERM LIMIT.—

(aa) IN GENERAL.—A non-Federal member shall not serve on the Committee for more than 6 consecutive calendar years.

(bb) BREAK IN SERVICE.—A non-Federal member subject to the term limit described in item (aa) shall be eligible for reappointment not earlier than 2 years after the date on which that non-Federal member discontinued service on the Committee.

(D) REVOCATION OF APPOINTMENT.—The Secretary may revoke the appointment of any non-Federal member or any alternate if the appointed non-Federal member or alternate fails to attend 2 consecutive Committee meetings.

(3) FEDERAL MEMBERS.—

(A) IN GENERAL.—The Federal members of the Committee shall be nonvoting, ex-officio members of the Committee.

(B) COMPOSITION.—The Federal members of the Committee shall be composed of—

(i) the Assistant Secretary of Indian Affairs (or a designee);

(ii) the Director of the Bureau of Land Management (or a designee);

(iii) the Director of the Office of Natural Resources Revenue (or a designee);

(iv) the Chairperson and Ranking Member of the Committee on Energy and Natural Resources of the Senate (or designees); and

(v) the Chairperson and Ranking Member of the Committee on Natural Resources of the House of Representatives (or designees).

(f) MEETINGS.—The Committee shall meet—

(1) not less than once each calendar year; and

(2) to consider any pending or proposed regulation related to—

(A) the management of Federal and Indian mineral leases and revenues; and

(B) any other mineral- or energy-related policy.

(g) STATE AND TRIBAL RESOURCES BOARD.—

(1) IN GENERAL.—The Committee shall establish a subcommittee, to be known as the ''State and Tribal Resources Board'', comprised of the members described in clauses (i) and (ii) of subsection (e)(2)(B).

(2) DURATION.—The State and Tribal Resources Board established under paragraph (1) shall terminate on the date that is 10 years after the date on which the Committee is established under this section.

(h) TERMINATION OF COMMITTEE.—The Committee shall terminate not later than 10 years after the date on which the Committee is established under this section.

(i) FUNDING.—Funding made available to carry out this section shall be available only to the extent and in the amount provided in advance in appropriations Acts.

SEC. ___02. PROPOSED REGULATIONS AND POLICIES.

(a) CONSULTATION AND REPORT.—Not later than 180 days after the issuance of any proposed regulation or policy related to mineral leasing policy on Federal land (including valuation methodologies and royalty and lease rates for oil, gas, or coal), including any proposed regulation that is pending as of the date of enactment of this Act, the Committee shall—

(1) assess the proposed regulation or policy; and

(2) issue a report that describes the potential impact, including any State and tribal impact described in subsection (b), of the proposed regulation or policy.

(b) STATE AND TRIBAL IMPACT CERTIFICATION.—

(1) IN GENERAL.—Before the date on which any regulation related to mineral leasing policy on Federal land (including valuation methodologies and royalty and lease rates for oil, gas, or coal) is finalized, the State and Tribal Resources Board shall certify the impact of the new regulation on school funding, public safety, and other essential State or tribal government services.

(2) DELAY REQUEST.—If the State and Tribal Resources Board determines that a regulation described in paragraph (1) will have a negative State or tribal budgetary impact, the State and Tribal Resources Board may request a delay in the finalization of the regulation for the purposes of further—

(A) stakeholder consultation;

(B) budgetary review; and

(C) development of a proposal to mitigate the negative economic impact.

(3) LIMITATION.—A delay in the finalization of a regulation requested under paragraph (2) shall not exceed 180 days from the date on which the State and Tribal Resources Board requested the delay in finalization.

(c) REVISION OF PROPOSED REGULATION.—

(1) IN GENERAL.—Before the date on which any regulation related to mineral leasing policy on Federal land (including valuation methodologies and royalty and lease rates for oil, gas, or coal) is finalized, the Secretary shall revise the proposed regulation to avoid any negative impact reported by the Committee under subsection (a)(2).

(2) FINAL RULE.—Any final rule revised under paragraph (1) shall include the revisions made by the Secretary in accordance with that paragraph.

(d) FUNDING FOR COMMITTEE ACTIVITIES.—Funding made available to carry out Committee activities under this section shall be available only to the extent and in the amount provided in advance in appropriations Acts.

SEC. ___03. PROGRAMMATIC REVIEW.

(a) IN GENERAL.—The programmatic review of coal leasing on Federal land (as described in section 4 of the order of the Secretary entitled ''Discretionary Programmatic Environmental Impact Statement to Modernize

the Federal Coal Program'', numbered 3338, and dated January 15, 2016) shall be completed not later than January 15, 2019.

(b) PARTICIPANTS IN PROGRAMMATIC REVIEW.—

(1) IN GENERAL.—In carrying out the programmatic review described in subsection (a), the Secretary shall confer with, and take into consideration the views of, representatives appointed to the review board described in paragraph (2).

(2) REVIEW BOARD.—The Governors of States in which more than $10,000,000 in Federal coal revenues are collected annually shall appoint not fewer than 3 representatives, 2 of whom shall be members of the State and Tribal Resources Board, to a review board that shall confer with the Secretary in carrying out the programmatic review described in subsection (a).

(c) LIMITATION.—No funds may be used to carry out the programmatic review of coal leasing on Federal land described in subsection (a) after January 15, 2019.

(d) NO IMPLEMENTATION REQUIREMENT.—Nothing in this section requires the Secretary to implement the programmatic review of coal leasing on Federal land described in subsection (a) after January 20, 2017.

SEC. ___04. EMERGENCY LEASING OF COAL RESERVES ON FEDERAL LAND.

(a) IN GENERAL.—In response to an application under subpart 3425 of part 3420 of subchapter C of chapter II of subtitle B of title 43, Code of Federal Regulations (or successor regulation), the Secretary may hold an emergency lease sale for coal reserves on Federal land if the applicant demonstrates that—

(1)(A) the coal reserves on Federal land are needed not later than 5 years after the date on which the application is submitted to the Secretary—

(i) to maintain an existing mining operation at a rate of production, as of the date on which the application is submitted to the Secretary, that is the average of the annual production rates for the 5 calendar years before the date on which the application is submitted to the Secretary; or

(ii) to supply coal for any contract signed before January 15, 2016, as substantiated by a complete copy of the supply or delivery contract; or

(B) if the Secretary—

(i) does not lease the coal deposit on Federal land, that coal deposit would be bypassed in the reasonably foreseeable future; or

(ii) leases the coal deposit on Federal land, a portion of the tract containing the coal deposit would be used not later than 5 years after the date on which the application is submitted to the Secretary; and

(2) the need for the coal on Federal land has resulted from a circumstance—

(A) beyond the control of the applicant; or

(B) that could not have been reasonably foreseen in time to allow the planning necessary for the consideration of leasing the tract under section 3420.3 of title 43, Code of Federal Regulations (or successor regulation).

(b) LENGTH OF LEASE.—

(1) IN GENERAL.—If an applicant qualifies for an emergency lease under only clause (i) of subsection (a)(1)(A), the emergency lease shall not exceed 8 years of recoverable reserves at a rate of production not to exceed the average of the annual production rates for the 5 calendar years before the date on which the application is submitted to the Secretary under subpart 3425 of part 3420 of subchapter C of chapter II of subtitle B of title 43, Code of Federal Regulations (or successor regulation).

(2) HIGHER RATE OF PRODUCTION.—If an applicant qualifies for an emergency lease under clauses (i) and (ii) of subsection (a)(1)(A), the higher rate of production shall apply.

(c) NOTICE TO GOVERNOR.—Not later than 90 days after the date on which the Secretary receives an emergency lease application, the Secretary shall provide notice of the emergency lease application to the Governor of the affected State.

SA 3186. Mrs. FISCHER (for herself, Mr. COCHRAN, Mr. GRASSLEY, Mr. GARDNER, Mrs. ERNST, and Mr. MORAN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION PROCESS SAFETY MANAGEMENT STANDARD.

(a) WITHDRAWAL OF POLICY.—

(1) IN GENERAL.—The Secretary of Labor, acting through the Assistant Secretary of Labor for Occupational Safety and Health, shall withdraw the revised enforcement policy relating to the exemption of retail facilities from coverage of the process safety management of highly hazardous chemicals standard under section 1910.119(a)(2)(i) of title 29, Code of Federal Regulations, issued as a memorandum by the Occupational Safety and Health Administration on July 22, 2015.

(2) ENFORCEMENT.—The Secretary of Labor, acting through the Assistant Secretary of Labor for Occupational Safety and Health, shall enforce section 1910.119(a)(2)(i) of title 29, Code of Federal Regulations (or any corresponding similar regulation or ruling) in the same manner as such section was enforced on July 21, 2015, unless such section is amended in accordance with subsection (b).

(b) REQUIREMENTS FOR RULEMAKING.—

(1) PROPOSED RULE.—The Secretary may publish any proposed rule relating to the exemption of retail facilities from coverage of the process safety management of highly hazardous chemicals standard under section 1910.119(a)(2)(i) of title 29, Code of Federal Regulations (or any corresponding similar regulation or ruling) only if—

(A) the Secretary, acting through the Assistant Secretary of Labor for Occupational Safety and Health, arranges for an independent third party to conduct a cost analysis of such proposed rule, and the Secretary includes such analysis in the publication of the proposed rule; and

(B) the Bureau of the Census establishes a code for farm supply retailers under sector 44–45 (relating to retail trade) of the North American Industry Classification System.

(2) NOTICE AND COMMENT.—In promulgating any rule related to the exemption described in paragraph (1), the Secretary of Labor, acting through the Assistant Secretary of Labor for Occupational Safety and Health, shall—

(A) provide notice and comment rulemaking in accordance with section 553 of title 5, United States Code; and

(B) invite meaningful public participation in such rulemaking.

SA 3187. Mr. TOOMEY submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

On page 169, line 6, after ''717b(a))'' insert the following: ''and the Secretary shall deem the application to be consistent with the public interest''.

SA 3188. Mr. SULLIVAN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44____. CORRECTION OF SURVEY FOR CERTAIN LAND IN THE STATE OF ALASKA.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of the Interior shall—

(1) correct the United States Survey numbered 11630 to conform with the map entitled ''Swan Lake Project Boundary–Lot 2'' and dated February 1, 2016; and

(2) issue a land patent to the State of Alaska for all Federal land within the corrected survey area pursuant to section 6(a) of the Act of July 7, 1958 (commonly known as the ''Alaska Statehood Act'') (48 U.S.C. note prec. 21; Public Law 85–508).

(b) EFFECT.—All actions taken by the Secretary of the Interior in carrying out this section—

(1) are nondiscretionary actions authorized and directed by Congress; and

(2) shall be considered to comply with all procedural and other requirements of the laws of the United States.

SA 3189. Ms. KLOBUCHAR (for herself and Mr. TILLIS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

On page 123, between lines 19 and 20, insert the following:

SEC. 1107. INCLUSION OF SMART GRID CAPABILITY ON ENERGY GUIDE LABELS.

Section 324(a)(2) of the Energy Policy and Conservation Act (42 U.S.C. 6294(a)(2)) is amended by adding at the end the following:

''(J) SPECIAL NOTES ON SMART GRID CAPABILITIES.—

''(i) INITIATION OF RULEMAKING.—Not later than 1 year after the date of the enactment of this subparagraph, the Commission shall initiate a rulemaking to consider making a special note in a prominent manner on any Energy Guide label for any product that includes smart grid capability that—

''(I) smart grid capability is a feature of that product; and

''(II) the use and value of that feature depend on the smart grid capability of the utility system in which the product is installed and the active utilization of that feature by the customer.

''(ii) COMPLETION OF RULEMAKING.—Not later than 3 years after the date of the enactment of this subparagraph, the Commission shall complete the rulemaking initiated under clause (i).''.

SA 3190. Ms. CANTWELL (for herself and Mrs. MURRAY) submitted an amendment intended to be proposed to

amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE VI—YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT

SEC. 6001. SHORT TITLE.

This title may be cited as the ''Yakima River Basin Water Enhancement Project Phase III Act of 2016''.

SEC. 6002. MODIFICATION OF TERMS, PURPOSES, AND DEFINITIONS.

(a) MODIFICATION OF TERMS.—Title XII of Public Law 103–434 (108 Stat. 4550) is amended—

(1) by striking ''Yakama Indian'' each place it appears (except section 1204(g)) and inserting ''Yakama''; and

(2) by striking ''Superintendent'' each place it appears and inserting ''Manager''.

(b) MODIFICATION OF PURPOSES.—Section 1201 of Public Law 103–434 (108 Stat. 4550) is amended—

(1) by striking paragraph (1) and inserting the following:

''(1) to protect, mitigate, and enhance fish and wildlife and the recovery and maintenance of self-sustaining harvestable populations of fish and other aquatic life, both anadromous and resident species, throughout their historic distribution range in the Yakima Basin through—

''(A) improved water management and the constructions of fish passage at storage and diversion dams, as authorized under the Hoover Power Plant Act of 1984 (43 U.S.C. 619 et seq.);

''(B) improved instream flows and water supplies;

''(C) improved water quality, watershed, and ecosystem function;

''(D) protection, creation, and enhancement of wetlands; and

''(E) other appropriate means of habitat improvement;'';

(2) in paragraph (2), by inserting '', municipal, industrial, and domestic water supply and use purposes, especially during drought years, including reducing the frequency and severity of water supply shortages for proratable irrigation entities'' before the semicolon at the end;

(3) by striking paragraph (4);

(4) by redesignating paragraph (3) as paragraph (4);

(5) by inserting after paragraph (2) the following:

''(3) to authorize the Secretary to make water available for purchase or lease for meeting municipal, industrial, and domestic water supply purposes;'';

(6) by redesignating paragraphs (5) and (6) as paragraphs (6) and (8), respectively;

(7) by inserting after paragraph (4) (as so redesignated) the following:

''(5) to realize sufficient water savings from implementing the Yakima River Basin Integrated Water Resource Management Plan, so that not less than 85,000 acre feet of water savings are achieved by implementing the first phase of the Integrated Plan pursuant to section 1213(a), in addition to the 165,000 acre feet of water savings targeted through the Basin Conservation Program, as authorized on October 31, 1994;'';

(8) in paragraph (6) (as so redesignated)—

(A) by inserting ''an increase in'' before ''voluntary''; and

(B) by striking ''and'' at the end;

(9) by inserting after paragraph (6) (as so redesignated) the following:

''(7) to encourage an increase in the use of, and reduce the barriers to, water transfers, leasing, markets, and other voluntary transactions among public and private entities to enhance water management in the Yakima River basin;'';

(10) in paragraph (8) (as redesignated by paragraph (6)), by striking the period at the end and inserting a semicolon; and

(11) by adding at the end the following:

''(9) to improve the resilience of the ecosystems, economies, and communities in the Basin as they face drought, hydrologic changes, and other related changes and variability in natural and human systems, for the benefit of both the people and the fish and wildlife of the region; and

''(10) to authorize and implement the Yakima River Basin Integrated Water Resource Management Plan as Phase III of the Yakima River Basin Water Enhancement Project, as a balanced and cost-effective approach to maximize benefits to the communities and environment in the Basin.''.

(c) MODIFICATION OF DEFINITIONS.—Section 1202 of Public Law 103–434 (108 Stat. 4550) is amended—

(1) by redesignating paragraphs (6), (7), (8), (9), (10), (11), (12), (13), and (14) as paragraphs (8), (10), (11), (13), (14), (15), (16), (18), and (19), respectively;

(2) by inserting after paragraph (5) the following:

''(6) DESIGNATED FEDERAL OFFICIAL.—The term 'designated Federal official' means the Commissioner of Reclamation (or a designee), acting pursuant to the charter of the Conservation Advisory Group.

''(7) INTEGRATED PLAN.—The terms 'Integrated Plan' and 'Yakima River Basin Integrated Water Resource Plan' mean the plan and activities authorized by the Yakima River Basin Water Enhancement Project Phase III Act of 2016 and the amendments made by that Act, to be carried out in cooperation with and in addition to activities of the State of Washington and Yakama Nation.'';

(3) by inserting after paragraph (8) (as redesignated by paragraph (1)) the following:

''(9) MUNICIPAL, INDUSTRIAL, AND DOMESTIC WATER SUPPLY AND USE.—The term 'municipal, industrial, and domestic water supply and use' means the supply and use of water for—

''(A) domestic consumption (whether urban or rural);

''(B) maintenance and protection of public health and safety;

''(C) manufacture, fabrication, processing, assembly, or other production of a good or commodity;

''(D) production of energy;

''(E) fish hatcheries; or

''(F) water conservation activities relating to a use described in subparagraphs (A) through (E).'';

(4) by inserting after paragraph (11) (as redesignated by paragraph (1)) the following:

''(12) PRORATABLE IRRIGATION ENTITY.—The term 'proratable irrigation entity' means a district, project, or State-recognized authority, board of control, agency, or entity located in the Yakima River basin that—

''(A) manages and delivers irrigation water to farms in the basin; and

''(B) possesses, or the members of which possess, water rights that are proratable during periods of water shortage.''; and

(5) by inserting after paragraph (16) (as redesignated by paragraph (1)) the following:

''(17) YAKIMA ENHANCEMENT PROJECT; YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT.—The terms 'Yakima Enhancement Project' and 'Yakima River Basin Water Enhancement Project' mean the Yakima River basin water enhancement project authorized by Congress pursuant to this Act and other Acts (including Public Law 96–162 (93 Stat. 1241), section 109 of Public Law 98–381 (16 U.S.C. 839b note; 98 Stat. 1340), Public Law 105–62 (111 Stat. 1320), and Public Law 106–372 (114 Stat. 1425)) to promote water conservation, water supply, habitat, and stream enhancement improvements in the Yakima River basin.''.

SEC. 6003. YAKIMA RIVER BASIN WATER CONSERVATION PROGRAM.

Section 1203 of Public Law 103–434 (108 Stat. 4551) is amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) in the second sentence, by striking ''title'' and inserting ''section''; and

(ii) in the third sentence, by striking ''within 5 years of the date of enactment of this Act''; and

(B) in paragraph (2), by striking ''irrigation'' and inserting ''the number of irrigated acres'';

(2) in subsection (c)—

(A) in paragraph (2)—

(i) in each of subparagraphs (A) through (D), by striking the comma at the end and inserting a semicolon;

(ii) in subparagraph (E), by striking the comma at the end and inserting ''; and'';

(iii) in subparagraph (F), by striking ''Department of Wildlife of the State of Washington, and'' and inserting ''Department of Fish and Wildlife of the State of Washington.''; and

(iv) by striking subparagraph (G);

(B) in paragraph (3)—

(i) in each of subparagraphs (A) through (C), by striking the comma at the end and inserting a semicolon;

(ii) in subparagraph (D), by striking '', and'' and inserting a semicolon;

(iii) in subparagraph (E), by striking the period at the end and inserting ''; and''; and

(iv) by adding at the end the following:

''(F) provide recommendations to advance the purposes and programs of the Yakima Enhancement Project, including the Integrated Plan.''; and

(C) by striking paragraph (4) and inserting the following:

''(4) AUTHORITY OF DESIGNATED FEDERAL OFFICIAL.—The designated Federal official may—

''(A) arrange and provide logistical support for meetings of the Conservation Advisory Group;

''(B) use a facilitator to serve as a moderator for meetings of the Conservation Advisory Group or provide additional logistical support; and

''(C) grant any request for a facilitator by any member of the Conservation Advisory Group.'';

(3) in subsection (d), by adding at the end the following:

''(4) PAYMENT OF LOCAL SHARE BY STATE OR FEDERAL GOVERNMENT.—

''(A) IN GENERAL.—The State or the Federal Government may fund not more than the 17.5 percent local share of the costs of the Basin Conservation Program in exchange for the long-term use of conserved water, subject to the requirement that the funding by the Federal Government of the local share of the costs shall provide a quantifiable public benefit in meeting Federal responsibilities in the Basin and the purposes of this title.

''(B) USE OF CONSERVED WATER.—The Yakima Project Manager may use water resulting from conservation measures taken under this title, in addition to water that the Bureau of Reclamation may acquire from any willing seller through purchase, donation, or lease, for water management uses pursuant to this title.'';

(4) in subsection (e), by striking the first sentence and inserting the following: ''To

participate in the Basin Conservation Program, as described in subsection (b), an entity shall submit to the Secretary a proposed water conservation plan.'';

(5) in subsection (i)(3)—

(A) by striking ''purchase or lease'' each place it appears and inserting ''purchase, lease, or management''; and

(B) in the third sentence, by striking ''made immediately upon availability'' and all that follows through ''Committee'' and inserting ''continued as needed to provide water to be used by the Yakima Project Manager as recommended by the System Operations Advisory Committee and the Conservation Advisory Group''; and

(6) in subsection (j)(4), in the first sentence, by striking ''initial acquisition'' and all that follows through ''flushing flows'' and inserting ''acquisition of water from willing sellers or lessors specifically to provide improved instream flows for anadromous and resident fish and other aquatic life, including pulse flows to facilitate outward migration of anadromous fish''.

SEC. 6004. YAKIMA BASIN WATER PROJECTS, OPERATIONS, AND AUTHORIZATIONS.

(a) YAKAMA NATION PROJECTS.—Section 1204 of Public Law 103–434 (108 Stat. 4555) is amended—

(1) in subsection (a)(2), in the first sentence, by striking ''not more than $23,000,000'' and inserting ''not more than $100,000,000''; and

(2) in subsection (g)—

(A) by striking the subsection heading and inserting ''REDESIGNATION OF YAKAMA INDIAN NATION TO YAKAMA NATION.—'';

(B) by striking paragraph (1) and inserting the following:

''(1) REDESIGNATION.—The Confederated Tribes and Bands of the Yakama Indian Nation shall be known and designated as the 'Confederated Tribes and Bands of the Yakama Nation'.''; and

(C) in paragraph (2), by striking ''deemed to be a reference to the 'Confederated Tribes and Bands of the Yakama Indian Nation'.'' and inserting ''deemed to be a reference to the 'Confederated Tribes and Bands of the Yakama Nation'.''.

(b) OPERATION OF YAKIMA BASIN PROJECTS.—Section 1205 of Public Law 103–434 (108 Stat. 4557) is amended—

(1) in subsection (a)—

(A) in paragraph (4)—

(i) in subparagraph (A)—

(I) in clause (i)—

(aa) by inserting ''additional'' after ''secure'';

(bb) by striking ''flushing'' and inserting ''pulse''; and

(cc) by striking ''uses'' and inserting ''uses, in addition to the quantity of water provided under the treaty between the Yakama Nation and the United States'';

(II) by striking clause (ii);

(III) by redesignating clause (iii) as clause (ii); and

(IV) in clause (ii) (as so redesignated) by inserting ''and water rights mandated'' after ''goals''; and

(ii) in subparagraph (B)(i), in the first sentence, by inserting ''in proportion to the funding received'' after ''Program'';

(2) in subsection (b) (as amended by section 6002(a)(2)), in the second sentence, by striking ''instream flows for use by the Yakima Project Manager as flushing flows or as otherwise'' and inserting ''fishery purposes, as''; and

(3) in subsection (e), by striking paragraph (1) and inserting the following:

''(1) IN GENERAL.—Additional purposes of the Yakima Project shall be any of the following:

''(A) To recover and maintain self-sustaining harvestable populations of native fish, both anadromous and resident species, throughout their historic distribution range in the Yakima Basin.

''(B) To protect, mitigate, and enhance aquatic life and wildlife.

''(C) Recreation.

''(D) Municipal, industrial, and domestic use.''.

(c) LAKE CLE ELUM AUTHORIZATION OF APPROPRIATIONS.—Section 1206(a)(1) of Public Law 103–434 (108 Stat. 4560), is amended, in the matter preceding subparagraph (A), by striking ''at September'' and all that follows through ''to—'' and inserting ''not more than $12,000,000 to—''.

(d) ENHANCEMENT OF WATER SUPPLIES FOR YAKIMA BASIN TRIBUTARIES.—Section 1207 of Public Law 103–434 (108 Stat. 4560) is amended—

(1) in the heading, by striking ''**SUPPLIES**'' and inserting ''**MANAGEMENT**'';

(2) in subsection (a)—

(A) in the matter preceding paragraph (1), by striking ''supplies'' and inserting ''management'';

(B) in paragraph (1), by inserting ''and water supply entities'' after ''owners''; and

(C) in paragraph (2)—

(i) in subparagraph (A), by inserting ''that choose not to participate or opt out of tributary enhancement projects pursuant to this section'' after ''water right owners''; and

(ii) in subparagraph (B), by inserting ''nonparticipating'' before ''tributary water users'';

(3) in subsection (b)—

(A) in paragraph (1)—

(i) by striking the paragraph designation and all that follows through ''(but not limited to)—'' and inserting the following:

''(1) IN GENERAL.—The Secretary, following consultation with the State of Washington, tributary water right owners, and the Yakama Nation, and on agreement of appropriate water right owners, is authorized to conduct studies to evaluate measures to further Yakima Project purposes on tributaries to the Yakima River. Enhancement programs that use measures authorized by this subsection may be investigated and implemented by the Secretary in tributaries to the Yakima River, including Taneum Creek, other areas, or tributary basins that currently or could potentially be provided supplemental or transfer water by entities, such as the Kittitas Reclamation District or the Yakima-Tieton Irrigation District, subject to the condition that activities may commence on completion of applicable and required feasibility studies, environmental reviews, and cost-benefit analyses that include favorable recommendations for further project development, as appropriate. Measures to evaluate include—'';

(ii) by indenting subparagraphs (A) through (F) appropriately;

(iii) in subparagraph (A), by inserting before the semicolon at the end the following: '', including irrigation efficiency improvements (in coordination with programs of the Department of Agriculture), consolidation of diversions or administration, and diversion scheduling or coordination'';

(iv) by redesignating subparagraphs (C) through (F) as subparagraphs (E) through (H), respectively;

(v) by inserting after subparagraph (B) the following:

''(C) improvements in irrigation system management or delivery facilities within the Yakima River basin when those improvements allow for increased irrigation system conveyance and corresponding reduction in diversion from tributaries or flow enhancements to tributaries through direct flow supplementation or groundwater recharge;

''(D) improvements of irrigation system management or delivery facilities to reduce or eliminate excessively high flows caused by the use of natural streams for conveyance or irrigation water or return water;'';

(vi) in subparagraph (E) (as redesignated by clause (iv)), by striking ''ground water'' and inserting ''groundwater recharge and'';

(vii) in subparagraph (G) (as redesignated by clause (iv)), by inserting ''or transfer'' after ''purchase''; and

(viii) in subparagraph (H) (as redesignated by clause (iv)), by inserting ''stream processes and'' before ''stream habitats'';

(B) in paragraph (2)—

(i) in the matter preceding subparagraph (A), by striking ''the Taneum Creek study'' and inserting ''studies under this subsection'';

(ii) in subparagraph (B)—

(I) by striking ''and economic'' and inserting '', infrastructure, economic, and land use''; and

(II) by striking ''and'' at the end;

(iii) in subparagraph (C), by striking the period at the end and inserting ''; and''; and

(iv) by adding at the end the following:

''(D) any related studies already underway or undertaken.''; and

(C) in paragraph (3), in the first sentence, by inserting ''of each tributary or group of tributaries'' after ''study'';

(4) in subsection (c)—

(A) in the heading, by inserting ''**AND NONSURFACE STORAGE**'' after ''**NONSTORAGE**''; and

(B) in the matter preceding paragraph (1), by inserting ''and nonsurface storage'' after ''nonstorage'';

(5) by striking subsection (d);

(6) by redesignating subsection (e) as subsection (d); and

(7) in paragraph (2) of subsection (d) (as so redesignated)—

(A) in the first sentence—

(i) by inserting ''and implementation'' after ''investigation'';

(ii) by striking ''other'' before ''Yakima River''; and

(iii) by inserting ''and other water supply entities'' after ''owners''; and

(B) by striking the second sentence.

(e) CHANDLER PUMPING PLANT AND POWERPLANT-OPERATIONS AT PROSSER DIVERSION DAM.—Section 1208(d) of Public Law 103–434 (108 Stat. 4562; 114 Stat. 1425) is amended by inserting ''negatively'' before ''affected''.

(f) INTERIM COMPREHENSIVE BASIN OPERATING PLAN.—Section 1210(c) of Public Law 103–434 (108 Stat. 4564) is amended by striking ''$100,000'' and inserting ''$200,000''.

(g) ENVIRONMENTAL COMPLIANCE.—Section 1211 of Public Law 103–434 (108 Stat. 4564) is amended by striking ''$2,000,000'' and inserting ''$5,000,000''.

SEC. 6005. AUTHORIZATION OF PHASE III OF YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT.

Title XII of Public Law 103–434 (108 Stat. 4550) is amended by adding at the end the following:

''SEC. 1213. AUTHORIZATION OF THE INTEGRATED PLAN AS PHASE III OF YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT.

''(a) INTEGRATED PLAN.—

''(1) IN GENERAL.—The Secretary shall implement the Integrated Plan as Phase III of the Yakima River Basin Water Enhancement Project in accordance with this section and applicable laws.

''(2) INITIAL DEVELOPMENT PHASE OF THE INTEGRATED PLAN.—

''(A) IN GENERAL.—The Secretary, in coordination with the State of Washington and Yakama Nation and subject to feasibility studies, environmental reviews, and the availability of appropriations, shall implement an initial development phase of the Integrated Plan, to—

''(i) complete the planning, design, and construction or development of upstream

and downstream fish passage facilities, as previously authorized by the Hoover Power Plant Act of 1984 (43 U.S.C. 619 et seq.) at Cle Elum Reservoir and another Yakima Project reservoir identified by the Secretary as consistent with the Integrated Plan, subject to the condition that, if the Yakima Project reservoir identified by the Secretary contains a hydropower project licensed by the Federal Energy Regulatory Commission, the Secretary shall cooperate with the Federal Energy Regulatory Commission in a timely manner to ensure that actions taken by the Secretary are consistent with the applicable hydropower project license;

''(ii) negotiate long-term agreements with participating proratable irrigation entities in the Yakima Basin and, acting through the Bureau of Reclamation, coordinate between Bureaus of the Department of the Interior and with the heads of other Federal agencies to negotiate agreements concerning leases, easements, and rights-of-way on Federal land, and other terms and conditions determined to be necessary to allow for the non-Federal financing, construction, operation, and maintenance of—

''(I) new facilities needed to access and deliver inactive storage in Lake Kachess for the purpose of providing drought relief for irrigation (known as the 'Kachess Drought Relief Pumping Plant'); and

''(II) a conveyance system to allow transfer of water between Keechelus Reservoir to Kachess Reservoir for purposes of improving operational flexibility for the benefit of both fish and irrigation (known as the 'K to K Pipeline');

''(iii) participate in, provide funding for, and accept non-Federal financing for—

''(I) water conservation projects, not subject to the provisions of the Basin Conservation Program described in section 1203, that are intended to partially implement the Integrated Plan by providing 85,000 acre-feet of conserved water to improve tributary and mainstem stream flow; and

''(II) aquifer storage and recovery projects;

''(iv) study, evaluate, and conduct feasibility analyses and environmental reviews of fish passage, water supply (including groundwater and surface water storage), conservation, habitat restoration projects, and other alternatives identified as consistent with the purposes of this Act, for the initial and future phases of the Integrated Plan;

''(v) coordinate with and assist the State of Washington in implementing a robust water market to enhance water management in the Yakima River basin, including—

''(I) assisting in identifying ways to encourage and increase the use of, and reduce the barriers to, water transfers, leasing, markets, and other voluntary transactions among public and private entities in the Yakima River basin;

''(II) providing technical assistance, including scientific data and market information; and

''(III) negotiating agreements that would facilitate voluntary water transfers between entities, including as appropriate, the use of federally managed infrastructure; and

''(vi) enter into cooperative agreements with, or, subject to a minimum non-Federal cost-sharing requirement of 50 percent, make grants to, the Yakama Nation, the State of Washington, Yakima River basin irrigation districts, water districts, conservation districts, other local governmental entities, nonprofit organizations, and land owners to carry out this title under such terms and conditions as the Secretary may require, including the following purposes:

''(I) Land and water transfers, leases, and acquisitions from willing participants, so long as the acquiring entity shall hold title and be responsible for any and all required operations, maintenance, and management of that land and water.

''(II) To combine or relocate diversion points, remove fish barriers, or for other activities that increase flows or improve habitat in the Yakima River and its tributaries in furtherance of this title.

''(III) To implement, in partnership with Federal and non-Federal entities, projects to enhance the health and resilience of the watershed.

''(B) COMMENCEMENT DATE.—The Secretary shall commence implementation of the activities included under the initial development phase pursuant to this paragraph—

''(i) on the date of enactment of this section; and

''(ii) on completion of applicable feasibility studies, environmental reviews, and cost-benefit analyses that include favorable recommendations for further project development.

''(3) INTERMEDIATE AND FINAL PHASES.—

''(A) IN GENERAL.—The Secretary, in coordination with the State of Washington and in consultation with the Yakama Nation, shall develop plans for intermediate and final development phases of the Integrated Plan to achieve the purposes of this Act, including conducting applicable feasibility studies, environmental reviews, and other relevant studies needed to develop the plans.

''(B) INTERMEDIATE PHASE.—The Secretary shall develop an intermediate development phase to implement the Integrated Plan that, subject to authorization and appropriation, would commence not later than 10 years after the date of enactment of this section.

''(C) FINAL PHASE.—The Secretary shall develop a final development phase to implement the Integrated Plan that, subject to authorization and appropriation, would commence not later than 20 years after the date of enactment of this section.

''(4) CONTINGENCIES.—The implementation by the Secretary of projects and activities identified for implementation under the Integrated Plan shall be—

''(A) subject to authorization and appropriation;

''(B) contingent on the completion of applicable feasibility studies, environmental reviews, and cost-benefit analyses that include favorable recommendations for further project development;

''(C) implemented on public review and a determination by the Secretary that design, construction, and operation of a proposed project or activity is in the best interest of the public; and

''(D) in compliance with all applicable laws, including the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq).

''(5) PROGRESS REPORT.—

''(A) IN GENERAL.—Not later than 5 years after the date of enactment of this section, the Secretary, in conjunction with the State of Washington and in consultation with the Yakama Nation, shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a progress report on the development and implementation of the Integrated Plan.

''(B) REQUIREMENTS.—The progress report under this paragraph shall—

''(i) provide a review and reassessment, if needed, of the objectives of the Integrated Plan, as applied to all elements of the Integrated Plan;

''(ii) assess, through performance metrics developed at the initiation of, and measured throughout the implementation of, the Integrated Plan, the degree to which the implementation of the initial development phase addresses the objectives and all elements of the Integrated Plan;

''(iii) identify the amount of Federal funding and non-Federal contributions received and expended during the period covered by the report;

''(iv) describe the pace of project development during the period covered by the report;

''(v) identify additional projects and activities proposed for inclusion in any future phase of the Integrated Plan to address the objectives of the Integrated Plan, as applied to all elements of the Integrated Plan; and

''(vi) for water supply projects—

''(I) provide a preliminary discussion of the means by which—

''(aa) water and costs associated with each recommended project would be allocated among authorized uses; and

''(bb) those allocations would be consistent with the objectives of the Integrated Plan; and

''(II) establish a plan for soliciting and formalizing subscriptions among individuals and entities for participation in any of the recommended water supply projects that will establish the terms for participation, including fiscal obligations associated with subscription.

''(b) FINANCING, CONSTRUCTION, OPERATION, AND MAINTENANCE OF KACHESS DROUGHT RELIEF PUMPING PLANT AND K TO K PIPELINE.—

''(1) AGREEMENTS.—Long-term agreements negotiated between the Secretary and participating proratable irrigation entities in the Yakima Basin for the non-Federal financing, construction, operation, and maintenance of the Drought Relief Pumping Plant and K to K Pipeline shall include provisions regarding—

''(A) responsibilities of the participating proratable irrigation entities for the planning, design, and construction of infrastructure in consultation and coordination with the Secretary;

''(B) property titles and responsibilities of the participating proratable irrigation entities for the maintenance of and liability for all infrastructure constructed under this title;

''(C) operation and integration of the projects by the Secretary in the operation of the Yakima Project;

''(D) costs associated with the design, financing, construction, operation, maintenance, and mitigation of projects, with the costs of Federal oversight and review to be nonreimbursable to the participating proratable irrigation entities and the Yakima Project; and

''(E) responsibilities for the pumping and operational costs necessary to provide the total water supply available made inaccessible due to drought pumping during the preceding 1 or more calendar years, in the event that the Kachess Reservoir fails to refill as a result of pumping drought storage water during the preceding 1 or more calendar years, which shall remain the responsibility of the participating proratable irrigation entities.

''(2) USE OF KACHESS RESERVOIR STORED WATER.—

''(A) IN GENERAL.—The additional stored water made available by the construction of facilities to access and deliver inactive storage in Kachess Reservoir under subsection (a)(2)(A)(ii)(I) shall—

''(i) be considered to be Yakima Project water;

''(ii) not be part of the total water supply available, as that term is defined in various court rulings; and

''(iii) be used exclusively by the Secretary—

''(I) to enhance the water supply in years when the total water supply available is not sufficient to provide 70 percent of proratable

entitlements in order to make that additional water available up to 70 percent of proratable entitlements to the Kittitas Reclamation District, the Roza Irrigation District, or other proratable irrigation entities participating in the construction, operation, and maintenance costs of the facilities under this title under such terms and conditions to which the districts may agree, subject to the conditions that—

''(aa) the Bureau of Indian Affairs, the Wapato Irrigation Project, and the Yakama Nation, on an election to participate, may also obtain water from Kachess Reservoir inactive storage to enhance applicable existing irrigation water supply in accordance with such terms and conditions to which the Bureau of Indian Affairs and the Yakama Nation may agree; and

''(bb) the additional supply made available under this clause shall be available to participating individuals and entities in proportion to the proratable entitlements of the participating individuals and entities, or in such other proportion as the participating entities may agree; and

''(II) to facilitate reservoir operations in the reach of the Yakima River between Keechelus Dam and Easton Dam for the propagation of anadromous fish.

''(B) EFFECT OF PARAGRAPH.—Nothing in this paragraph affects (as in existence on the date of enactment of this section) any contract, law (including regulations) relating to repayment costs, water right, or Yakama Nation treaty right.

''(3) COMMENCEMENT.—The Secretary shall not commence entering into agreements pursuant to subsection (a)(2)(A)(ii) or subsection (b)(1) or implementing any activities pursuant to the agreements before the date on which—

''(A) all applicable and required feasibility studies, environmental reviews, and cost-benefit analyses have been completed and include favorable recommendations for further project development, including an analysis of—

''(i) the impacts of the agreements and activities conducted pursuant to subsection (a)(2)(A)(ii) on adjacent communities, including potential fire hazards, water access for fire districts, community and homeowner wells, future water levels based on projected usage, recreational values, and property values; and

''(ii) specific options and measures for mitigating the impacts, as appropriate;

''(B) the Secretary has made the agreements and any applicable project designs, operations plans, and other documents available for public review and comment in the Federal Register for a period of not less than 60 days; and

''(C) the Secretary has made a determination, consistent with applicable law, that the agreements and activities to which the agreements relate—

''(i) are in the public interest; and

''(ii) could be implemented without significant adverse impacts to the environment.

''(4) ELECTRICAL POWER ASSOCIATED WITH KACHESS DROUGHT RELIEF PUMPING PLANT.—

''(A) IN GENERAL.—The Administrator of the Bonneville Power Administration, pursuant to the Pacific Northwest Electric Power Planning and Conservation Act (16 U.S.C. 839 et seq.), shall provide to the Secretary project power to operate the Kachess Pumping Plant constructed under this title if inactive storage in Kachess Reservoir is needed to provide drought relief for irrigation, subject to the requirements of subparagraphs (B) and (C).

''(B) DETERMINATION.—Power may be provided under subparagraph (A) only if—

''(i) there is in effect a drought declaration issued by the State of Washington;

''(ii) there are conditions that have led to 70 percent or less water delivery to proratable irrigation districts, as determined by the Secretary; and

''(iii) the Secretary determines that it is appropriate to provide power under that subparagraph.

''(C) PERIOD OF AVAILABILITY.—Power under subparagraph (A) shall be provided until the date on which the Secretary determines that power should no longer be provided under that subparagraph, but for not more than a 1-year period or the period during which the Secretary determines that drought mitigation measures are necessary in the Yakima River basin.

''(D) RATE.—The Administrator of the Bonneville Power Administration shall provide power under subparagraph (A) at the then-applicable lowest Bonneville Power Administration rate for public body, cooperative, and Federal agency customers firm obligations, which as of the date of enactment of this section is the priority firm Tier 1 rate, and shall not include any irrigation discount.

''(E) LOCAL PROVIDER.—During any period in which power is not being provided under subparagraph (A), the power needed to operate the Kachess Pumping Plant shall be obtained by the Secretary from a local provider.

''(F) COSTS.—The cost of power for such pumping, station service power, and all costs of transmitting power from the Federal Columbia River Power System to the Yakima Enhancement Project pumping facilities shall be borne by irrigation districts receiving the benefits of that water.

''(G) DUTIES OF COMMISSIONER.—The Commissioner of Reclamation shall be responsible for arranging transmission for deliveries of Federal power over the Bonneville system through applicable tariff and business practice processes of the Bonneville system and for arranging transmission for deliveries of power obtained from a local provider.

''(c) DESIGN AND USE OF GROUNDWATER RECHARGE PROJECTS.—

''(1) IN GENERAL.—Any water supply that results from an aquifer storage and recovery project shall not be considered to be a part of the total water supply available if—

''(A) the water for the aquifer storage and recovery project would not be available for use, but instead for the development of the project;

''(B) the aquifer storage and recovery project will not otherwise impair any water supply available for any individual or entity entitled to use the total water supply available; and

''(C) the development of the aquifer storage and recovery project will not impair fish or other aquatic life in any localized stream reach.

''(2) PROJECT TYPES.—The Secretary may provide technical assistance for, and participate in, any of the following 3 types of groundwater recharge projects (including the incorporation of groundwater recharge projects into Yakima Project operations, as appropriate):

''(A) Aquifer recharge projects designed to redistribute Yakima Project water within a water year for the purposes of supplementing stream flow during the irrigation season, particularly during storage control, subject to the condition that if such a project is designed to supplement a mainstem reach, the water supply that results from the project shall be credited to instream flow targets, in lieu of using the total water supply available to meet those targets.

''(B) Aquifer storage and recovery projects that are designed, within a given water year or over multiple water years—

''(i) to supplement or mitigate for municipal uses;

''(ii) to supplement municipal supply in a subsurface aquifer; or

''(iii) to mitigate the effect of groundwater use on instream flow or senior water rights.

''(C) Aquifer storage and recovery projects designed to supplement existing irrigation water supply, or to store water in subsurface aquifers, for use by the Kittitas Reclamation District, the Roza Irrigation District, or any other proratable irrigation entity participating in the repayment of the construction, operation, and maintenance costs of the facilities under this section during years in which the total water supply available is insufficient to provide to those proratable irrigation entities all water to which the entities are entitled, subject to the conditions that—

''(i) the Bureau of Indian Affairs, the Wapato Irrigation Project, and the Yakama Nation, on an election to participate, may also obtain water from aquifer storage to enhance applicable existing irrigation water supply in accordance with such terms and conditions to which the Bureau of Indian Affairs and the Yakama Nation may agree; and

''(ii) nothing in this subparagraph affects (as in existence on the date of enactment of this section) any contract, law (including regulations) relating to repayment costs, water right, or Yakama Nation treaty right.

''(d) FEDERAL COST-SHARE.—

''(1) IN GENERAL.—The Federal cost-share of a project carried out under this section shall be determined in accordance with the applicable laws (including regulations) and policies of the Bureau of Reclamation.

''(2) INITIAL PHASE.—The Federal cost-share for the initial development phase of the Integrated Plan shall not exceed 50 percent of the total cost of the initial development phase.

''(3) STATE AND OTHER CONTRIBUTIONS.—The Secretary may accept as part of the non-Federal cost-share of a project carried out under this section, and expend as if appropriated, any contribution (including in-kind services) by the State of Washington or any other individual or entity that the Secretary determines will enhance the conduct and completion of the project.

''(4) LIMITATION ON USE OF OTHER FEDERAL FUNDS.—Except as otherwise provided in this title, other Federal funds may not be used to provide the non-Federal cost-share of a project carried out under this section.

''(e) SAVINGS AND CONTINGENCIES.—Nothing in this section shall—

''(1) be a new or supplemental benefit for purposes of the Reclamation Reform Act of 1982 (43 U.S.C. 390aa et seq.);

''(2) affect any contract in existence on the date of enactment of the Yakima River Basin Water Enhancement Project Phase III Act of 2016 that was executed pursuant to the reclamation laws;

''(3) affect any contract or agreement between the Bureau of Indian Affairs and the Bureau of Reclamation;

''(4) affect, waive, abrogate, diminish, define, or interpret the treaty between the Yakama Nation and the United States; or

''(5) constrain the continued authority of the Secretary to provide fish passage in the Yakima Basin in accordance with the Hoover Power Plant Act of 1984 (43 U.S.C. 619 et seq.).

''SEC. 1214. OPERATIONAL CONTROL OF WATER SUPPLIES.

''The Secretary shall retain authority and discretion over the management of project supplies to optimize operational use and flexibility to ensure compliance with all applicable Federal and State laws, treaty rights of the Yakama Nation, and legal obligations, including those contained in this

Act. That authority and discretion includes the ability of the United States to store, deliver, conserve, and reuse water supplies deriving from projects authorized under this title.''.

SA 3191. Mr. MERKLEY (for himself, Mr. SCHATZ, and Mr. MARKEY) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. SENSE OF THE SENATE REGARDING CLIMATE CHANGE.

It is the sense of the Senate that—

(1) a global temperature increase of 3.6 degrees Fahrenheit or greater will lead to significant disruption to the natural systems of the earth, including—

(A) increased droughts;

(B) more intense wildfires;

(C) rising seas;

(D) increased desertification; and

(E) acidifying oceans;

(2) the impacts referred to in paragraph (1) will result in economic disruption, including significant impacts on the farming, fishing, forestry, recreation, and other sectors of the United States economy;

(3) the international community, representing more than 195 countries, agreed to take steps to avert 3.6 degrees Fahrenheit of global temperature rise;

(4) in order to tackle climate change and achieve the goal of averting 3.6 degrees Fahrenheit of global temperature rise, all countries must meet and build on their pledged efforts and do their fair share to address climate change by transitioning to clean sources of energy;

(5) the final rule of the Administrator of the Environmental Protection Agency entitled ''Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units'' (80 Fed. Reg. 64662 (October 23, 2015)) (referred to in this section as the ''Clean Power Plan''), has put the United States on a path to cut carbon emissions from the electricity sector by 32 percent from 2005 levels by 2030 and transition to a clean energy economy;

(6) to adequately address the threat of climate change to the United States economy, the President who takes office in January 2017, will need to fully implement the Clean Power Plan and other elements of the Climate Action Plan of President Obama and develop additional measures to continue progress toward greater reduction in greenhouse gas emissions and a faster transition to clean energy; and

(7) the President who takes office in January 2017, should work with Congress to develop a comprehensive plan by June 1, 2017, that—

(A) builds on the Climate Action Plan of President Obama; and

(B) continues—

(i) carbon emission reductions by the United States; and

(ii) global leadership of the United States in addressing climate change.

SA 3192. Mr. CASSIDY (for himself, Ms. MURKOWSKI, Mr. KAINE, Mr. SCOTT, Mr. VITTER, Mr. TILLIS, and Mr. WARNER) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle B of title III, add the following:

SEC. 3105. OIL AND GAS.

(a) DISPOSITION OF OUTER CONTINENTAL SHELF REVENUES TO GULF PRODUCING STATES.—Section 105(f) of the Gulf of Mexico Energy Security Act of 2006 (43 U.S.C. 1331 note; Public Law 109–432) is amended by striking paragraph (1) and inserting the following:

''(1) IN GENERAL.—Subject to paragraph (2), the total amount of qualified outer Continental Shelf revenues described in section 102(9)(A)(ii) that are made available under subsection (a)(2) shall not exceed—

''(A) for each of fiscal years 2017 through 2026, $500,000,000;

''(B) for each of fiscal years 2027 through 2031, $999,000,000; and

''(C) for each of fiscal years 2032 through 2055, $500,000,000.''.

(b) DISTRIBUTION OF REVENUE TO ALASKA.—Section 9 of the Outer Continental Shelf Lands Act (43 U.S.C. 1338) is amended—

(1) by striking ''All rentals,'' and inserting the following:

''(a) IN GENERAL.—Except as provided in subsections (b) and (c), all rentals,''; and

(2) by adding at the end the following:

''(b) DISTRIBUTION OF REVENUE TO ALASKA.—

''(1) DEFINITIONS.—In this subsection:

''(A) COASTAL POLITICAL SUBDIVISION.—The term 'coastal political subdivision' means a county-equivalent or municipal subdivision of the State—

''(i) all or part of which lies within the coastal zone of the State (as defined in section 304 of the Coastal Zone Management Act of 1972 (16 U.S.C. 1453)); and

''(ii)(I) the closest coastal point of which is not more than 200 nautical miles from the geographical center of any leased tract in the Alaska outer Continental Shelf region; or

''(II)(aa) the closest point of which is more than 200 nautical miles from the geographical center of a leased tract in the Alaska outer Continental Shelf region; and

''(bb) that is determined by the State to be a significant staging area for oil and gas servicing, supply vessels, operations, suppliers, or workers.

''(B) QUALIFIED REVENUES.—

''(i) IN GENERAL.—The term 'qualified revenues' means all revenues derived from all rentals, royalties, bonus bids, and other sums due and payable to the United States from energy development in the Alaska outer Continental Shelf region.

''(ii) EXCLUSIONS.—The term 'qualified revenues' does not include revenues generated from leases subject to section 8(g).

''(C) STATE.—The term 'State' means the State of Alaska.

''(2) FISCAL YEARS 2027–2031.—For each of fiscal years 2027 through 2031, the Secretary shall deposit—

''(A) 62.5 percent of qualified revenues in the general fund of the Treasury, of which 12.5 percent shall be allocated to the Tribal Resilience Fund established by section 3105(e) of the Energy Policy Modernization Act of 2016;

''(B) 28 percent of qualified revenues in a special account in the Treasury, to be distributed by the Secretary to the State;

''(C) 7.5 percent of qualified revenues in a special account in the Treasury, to be distributed by the Secretary to coastal political subdivisions; and

''(D) 2 percent of qualified revenues in the general account of the Denali Commission.

''(3) ALLOCATION AMONG COASTAL POLITICAL SUBDIVISIONS.—Of the amount paid by the Secretary to coastal political subdivisions under paragraph (2)(C)—

''(A) 90 percent shall be allocated in amounts (based on a formula established by the Secretary by regulation) that are inversely proportional to the respective distances between the point in each coastal political subdivision that is closest to the geographic center of the applicable leased tract and not more than 200 miles from the geographic center of the leased tract; and

''(B) 10 percent shall be divided equally among each coastal political subdivision that—

''(i) is more than 200 nautical miles from the geographic center of a leased tract; and

''(ii) the State of Alaska determines to be a significant staging area for oil and gas servicing, supply vessels, operations, suppliers, or workers.

''(4) TIMING.—The amounts required to be deposited under paragraph (2) for the applicable fiscal year shall be made available in accordance with that paragraph during the fiscal year immediately following the applicable fiscal year.

''(5) ADMINISTRATION.—Amounts made available under paragraph (2) shall—

''(A) be made available, without further appropriation, in accordance with this subsection;

''(B) remain available until expended; and

''(C) be in addition to any amounts appropriated under any other provision of law.''.

(c) DISPOSITION OF REVENUES TO ATLANTIC STATES.—Section 9 of the Outer Continental Shelf Lands Act (43 U.S.C. 1338) (as amended by subsection (b)) is amended by adding at the end the following:

''(c) DISTRIBUTION OF REVENUE TO ATLANTIC STATES.—

''(1) DEFINITIONS.—In this subsection:

''(A) ATLANTIC STATE.—The term 'Atlantic State' means any of the following States, which are adjacent to the South Atlantic planning area:

''(i) Georgia.

''(ii) North Carolina.

''(iii) South Carolina.

''(iv) Virginia.

''(B) QUALIFIED REVENUES.—

''(i) IN GENERAL.—The term 'qualified revenues' means all revenues derived from all rentals, royalties, bonus bids, and other sums due and payable to the United States from energy development in the Atlantic planning region.

''(ii) EXCLUSIONS.—The term 'qualified revenues' does not include revenues generated from leases subject to section 8(g).

''(C) SOUTH ATLANTIC PLANNING AREA.—The term 'South Atlantic planning area' means the area of the outer Continental Shelf (as defined in section 2 of the Outer Continental Shelf Lands Act (43 U.S.C. 1331)) that is located between the northern lateral seaward administrative boundary of the Commonwealth of Virginia and the southernmost lateral seaward administrative boundary of the State of Georgia.

''(2) DEPOSIT.—For each of fiscal years 2027 through 2031, the Secretary shall deposit—

''(A) 62.5 percent of any qualified revenues in the general fund of the Treasury, of which 12.5 percent shall be split equally among, and allocated to, or deposited in, as applicable—

''(i) programs for energy efficiency, renewable energy, and nuclear at the Department of Energy;

''(ii) the National Park Service Critical Maintenance and Revitalization Conservation Fund established by section 104908 of title 54, United States Code, for use in accordance with subsection (d) of that section; and

''(iii) the Secretary of Transportation to administer and award TIGER discretionary grants; and

''(B) 37.5 percent of any qualified revenues in a special account in the Treasury from which the Secretary shall disburse amounts to the Atlantic States in accordance with paragraph (3).

''(3) ALLOCATION TO STATES.—

''(A) IN GENERAL.—Subject to subparagraphs (B) and (C), effective for fiscal year 2017 and each fiscal year thereafter, the Secretary of the Treasury shall allocate the qualified revenues described in paragraph (2)(B) to each Atlantic State in amounts (based on a formula established by the Secretary, by regulation) that are inversely proportional to the respective distances between—

''(i) the point on the coastline of each Atlantic State that is closest to the geographical center of the applicable leased tract; and

''(ii) the geographical center of that leased tract.

''(B) MINIMUM ALLOCATION.—The amount allocated to an Atlantic State for each fiscal year under subparagraph (A) shall be not less than 10 percent of the amounts available under paragraph (2)(B).

''(C) STATE ALLOCATION.—Of the amounts received by a State under subparagraph (A), the Atlantic State may use, at the discretion of the Governor of the State—

''(i) 10 percent—

''(I) to enhance State land and water conservation efforts;

''(II) to improve State public transportation projects;

''(III) to establish alternative, renewable, and clean energy production and generation within each State; and

''(IV) to enhance beach nourishment and costal dredging; and

''(ii) 2.5 percent to enhance geological and geophysical education for the energy future of the United States.

''(4) TIMING.—The amounts required to be deposited under paragraph (2) for the applicable fiscal year shall be made available in accordance with that paragraph during the fiscal year immediately following the applicable fiscal year.''.

(d) TRIBAL RESILIENCE PROGRAM.—

(1) DEFINITION OF INDIAN TRIBE.—In this subsection, the term ''Indian tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b).

(2) ESTABLISHMENT.—The Secretary shall establish a program—

(A) to improve the resilience of Indian tribes to the effects of a changing climate;

(B) to support Native American leaders in building strong, resilient communities; and

(C) to ensure the development of modern, cost-effective infrastructure.

(3) GRANTS.—Subject to the availability of appropriations and amounts in the Tribal Resilience Fund established by subsection (e)(1), in carrying out the program described in paragraph (2), the Secretary shall make adaptation grants, in amounts not to exceed $200,000,000 total per fiscal year, to Indian tribes for eligible activities described in paragraph (4).

(4) ELIGIBLE ACTIVITIES.—An Indian tribe receiving a grant under paragraph (3) may only use grant funds for 1 or more of the following eligible activities:

(A) Development and delivery of adaptation training.

(B) Adaptation planning, vulnerability assessments, emergency preparedness planning, and monitoring.

(C) Capacity building through travel support for training, technical sessions, and cooperative management forums.

(D) Travel support for participation in ocean and coastal planning.

(E) Development of science-based information and tools to enable adaptive resource management and the ability to plan for resilience.

(F) Relocation of villages or other communities experiencing or susceptible to coastal or river erosion.

(G) Construction of infrastructure to support emergency evacuations.

(H) Restoration or repair of infrastructure damaged by melting permafrost or coastal or river erosion.

(I) Installation and management of energy systems that reduce energy costs and greenhouse gas emissions compared to the energy systems in use before that installation and management.

(J) Construction and maintenance of social or cultural infrastructure that the Secretary determines supports resilience.

(5) APPLICATIONS.—An Indian tribe desiring an adaptation grant under paragraph (3) shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require, including a description of the eligible activities to be undertaken using the grant.

(6) CAPITAL PROJECTS.—Of amounts made available to carry out this program, not less than 90 percent shall be used for the engineering, design, and construction or implementation of capital projects.

(7) INTERAGENCY COOPERATION.—The Secretary and the Administrator of the Environmental Protection Agency shall establish under the White House Council on Native American Affairs an interagency subgroup on tribal resilience—

(A) to work with Indian tribes to collect and share data and information, including traditional ecological knowledge, about how the effects of a changing climate are relevant to Indian tribes and Alaska Natives; and

(B) to identify opportunities for the Federal Government to improve collaboration and assist with adaptation and mitigation efforts that promote resilience.

(8) TRIBAL RESILIENCE LIAISON.—The Secretary shall establish a tribal resilience liaison—

(A) to coordinate with Indian tribes and relevant Federal agencies; and

(B) to help ensure tribal engagement in climate conversations at the Federal level.

(e) TRIBAL RESILIENCE FUND.—

(1) ESTABLISHMENT.—There is established in the Treasury a fund, to be known as the ''Tribal Resilience Fund'' (referred to in this subsection as the ''Fund'').

(2) DEPOSITS.—The Fund shall consist of the following:

(A) Amounts made available through an appropriation Act for deposit in the Fund.

(B) Amounts deposited into the Fund under subsection (b)(2)(A) of section 9 of the Outer Continental Shelf Lands Act (43 U.S.C. 1338) (as added by subsection (b)(2)).

(3) AUTHORIZATION OF APPROPRIATIONS.—

(A) IN GENERAL.—In addition to the amounts estimated by the Secretary to be deposited in the Fund under paragraph (2), there are authorized to be appropriated annually to the Fund out of any money in the Treasury not otherwise appropriated such amounts as are necessary to make the income of the Fund not more than $200,000,000 for fiscal year 2027 and each fiscal year thereafter.

(B) AVAILABILITY OF DEPOSITS.—

(i) IN GENERAL.—Amounts deposited in the Fund under this paragraph shall remain available until expended, without fiscal year limitation.

(ii) USE.—Amounts deposited in the Fund under this paragraph and made available for obligation or expenditure from the Fund may be obligated or expended only to carry out the Tribal Resilience Program under subsection (d).

SA 3193. Mr. BOOKER submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title IV, add the following:

SEC. 46___. COMMUNITY AND SHARED SOLAR PROJECTS PRIZE.

Section 1008 of the Energy Policy Act of 2005 (42 U.S.C. 16396) (as amended by section 4601) is amended by adding at the end the following:

''(h) COMMUNITY AND SHARED SOLAR PROJECTS PRIZE COMPETITION.—

''(1) DEFINITIONS.—

''(A) COMMUNITY SOLAR.—In this subsection:

''(i) IN GENERAL.—The term 'community solar' means a jointly owned or third-party owned shared solar photovoltaic system that allocates electricity to multiple businesses or households.

''(ii) EXCLUSIONS.—The term 'community solar' does not include—

''(I) a financing mechanism in which a security holder has only an economic interest and does not use the energy; or

''(II) a collective purchasing program in which community members buy separate photovoltaic systems collectively.

''(B) ELIGIBLE APPLICANT.—The term 'eligible applicant' means—

''(i) a utility;

''(ii) a private business;

''(iii) a nonprofit organization; or

''(iv) a municipality.

''(2) AUTHORITY.—Not later than 1 year after the date of enactment of this subsection, as part of the program carried out under this section, the Secretary shall establish and award to eligible applicants competitive technology financial awards or relevant cash prizes for community solar project designs.

''(3) REQUIREMENTS.—

''(A) IN GENERAL.—In awarding prizes under paragraph (2), the Secretary shall select innovative community solar project designs that—

''(i) increase access to solar energy;

''(ii) reduce upfront costs for participants;

''(iii) provide the greatest return on investment;

''(iv) can be replicated in other communities;

''(v) improve economies of scale;

''(vi) create local jobs; and

''(vii) provide local benefits through energy diversification.

''(B) CONSIDERATION.—In awarding prizes under paragraph (2), the Secretary shall select innovative community solar project designs that consider low- and moderate-income populations in the requirements described in subparagraph (A).

''(4) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this subsection such sums as are necessary.''.

SA 3194. Mrs. BOXER (for herself and Mrs. FEINSTEIN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms.

MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; as follows:

At the appropriate place, insert the following:

SEC. _____. ALISO CANYON NATURAL GAS LEAK TASK FORCE.

(a) FINDINGS.—Congress finds that—

(1) on October 23, 2015, a natural gas leak was discovered at a well within the Aliso Canyon Natural Gas Storage Facility in Los Angeles County in the State of California, and as of January 27, 2016, attempts by the Southern California Gas Company (referred to in this section as the ''Company'') to stop the leak have not been successful;

(2) the leak appears to be caused by damage to the well casing at approximately 500 feet underground;

(3) the Company has attempted several times to plug the well, but as of January 28, 2016, those efforts have been unsuccessful;

(4) many residents in the nearby community have reported adverse physical symptoms including dizziness, nausea, and nosebleeds as a result of the natural gas leak, and the continuing emissions from the leak have resulted in the relocation of thousands of people away from their homes and livelihoods;

(5) local schools have temporarily closed, many businesses have been negatively impacted, and regular public services such as mail delivery have also been disrupted;

(6) more than 86,500,000 kilograms of methane, a powerful greenhouse gas, have been emitted into the atmosphere, which is—

(A) the equivalent of 2,200,000 metric tons of carbon dioxide; or

(B) more greenhouse gas than 468,000 cars emit in 1 year;

(7) agencies of the State of California issued an emergency order on December 10, 2015, prohibiting injection of natural gas into the Aliso Canyon Storage Facility until further authorization; and

(8) on January 6, 2016, the Governor of the State of California declared a state of emergency for Los Angeles County due to the Aliso Canyon natural gas leak.

(b) ESTABLISHMENT OF TASK FORCE.—Not later than 15 days after the date of enactment of this Act, the Secretary shall lead and establish an Aliso Canyon Task Force (referred to in this section as the ''task force'').

(c) MEMBERSHIP OF TASK FORCE.—In addition to the Secretary, the task force shall be composed of—

(1) 1 representative from the Pipeline and Hazardous Materials Safety Administration;

(2) 1 representative from the Department of Health and Human Services;

(3) 1 representative from the Environmental Protection Agency;

(4) 1 representative from the Department of the Interior;

(5) 1 representative from the Department of Commerce; and

(6) 1 representative from the Federal Energy Regulatory Commission.

(d) REPORT.—

(1) FINAL REPORT.—

(A) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the task force shall submit a final report that contains the information described in subparagraph (B) to—

(i) the Committee on Energy and Natural Resources of the Senate;

(ii) the Committee on Natural Resources of the House of Representatives;

(iii) the Committee on Environment and Public Works of the Senate;

(iv) the Committee on Transportation and Infrastructure of the House of Representatives;

(v) the Committee on Commerce, Science, and Transportation of the Senate;

(vi) the Committee on Energy and Commerce of the House of Representatives;

(vii) the Committee on Health, Education, Labor, and Pensions of the Senate;

(viii) the Committee on Education and the Workforce of the House of Representatives;

(ix) the President; and

(x) relevant Federal and State agencies.

(B) INFORMATION INCLUDED.—The report submitted under subparagraph (A) shall include, at a minimum—

(i) an analysis and conclusion of the cause of the Aliso Canyon natural gas leak;

(ii) an analysis of measures taken to stop the natural gas leak, with an immediate focus on other, more effective measures that could be taken;

(iii) an assessment of the impact of the natural gas leak on health, safety, the environment, and the economy of the residents and property surrounding Aliso Canyon;

(iv) an analysis of how Federal and State agencies responded to the natural gas leak;

(v) in order to lessen the negative impacts of natural gas leaks, recommendations on how to improve—

(I) the response to a future leak; and

(II) coordination between all appropriate Federal, State, and local agencies in the response to the Aliso Canyon natural gas leak and future natural gas leaks;

(vi) an analysis of the potential for a similar natural gas leak to occur at other underground natural gas storage facilities in the United States;

(vii) recommendations on how to prevent any future natural gas leaks;

(viii) recommendations on whether to continue operations at Aliso Canyon and other facilities in close proximity to residential populations based on an assessment of the risk of a future natural gas leak;

(ix) a recommendation on information that is not currently collected but that would be in the public interest to collect and distribute to agencies and institutions for the continued study and monitoring of natural gas infrastructure in the United States;

(x) an analysis of the impact of the Aliso Canyon natural gas leak on wholesale and retail electricity prices; and

(xi) an analysis of the impact of the Aliso Canyon natural gas leak on the reliability of the bulk-power system.

(2) PUBLICATION.—The final report under paragraph (1) shall be made available to the public in an electronically accessible format.

(3) If, before the final report is submitted under paragraph (1) the task force finds methods to solve the natural gas leak at Aliso Canyon; better protect the affected communities; or finds methods to help prevent other leaks, they must immediately issue such findings to the same entities that are to receive the final report.

(e) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section such sums as may be necessary.

SA 3195. Mr. MERKLEY (for himself and Mr. WYDEN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44_____. KLAMATH PROJECT WATER AND POWER.

(a) ADDRESSING WATER MANAGEMENT AND POWER COSTS FOR IRRIGATION.—The Klamath Basin Water Supply Enhancement Act of 2000 (Public Law 106–498; 114 Stat. 2221) is amended—

(1) by redesignating sections 4 through 6 as sections 5 through 7, respectively; and

(2) by inserting after section 3 the following:

''SEC. 4. POWER AND WATER MANAGEMENT.

''(a) DEFINITIONS.—In this section:

''(1) COVERED POWER USE.—The term 'covered power use' means a use of power to develop or manage water for irrigation, wildlife purposes, or drainage on land that is—

''(A) associated with the Klamath Project, including land within a unit of the National Wildlife Refuge System that receives water due to the operation of Klamath Project facilities; or

''(B) irrigated by the class of users covered by the agreement dated April 30, 1956, between the California Oregon Power Company and Klamath Basin Water Users Protective Association and within the Off Project Area (as defined in the Upper Basin Comprehensive Agreement entered into on April 18, 2014), only if each applicable owner and holder of a possessory interest of the land is a party to that agreement (or a successor agreement that the Secretary determines provides a comparable benefit to the United States).

''(2) KLAMATH PROJECT.—

''(A) IN GENERAL.—The term 'Klamath Project' means the Bureau of Reclamation project in the States of California and Oregon.

''(B) INCLUSIONS.—The term 'Klamath Project' includes any dams, canals, and other works and interests for water diversion, storage, delivery, and drainage, flood control, and similar functions that are part of the project described in subparagraph (A).

''(3) POWER COST BENCHMARK.—The term 'power cost benchmark' means the average net delivered cost of power for irrigation and drainage at Reclamation projects in the area surrounding the Klamath Project that are similarly situated to the Klamath Project, including Reclamation projects that—

''(A) are located in the Pacific Northwest; and

''(B) receive project-use power.

''(b) WATER, ENVIRONMENTAL, AND POWER ACTIVITIES.—The Secretary may carry out any activities, including entering into an agreement or contract or otherwise making financial assistance available—

''(1) to plan, implement, and administer programs to align water supplies and demand for irrigation water users associated with the Klamath Project, with a primary emphasis on programs developed or endorsed by local entities comprised of representatives of those water users;

''(2) to plan and implement activities and projects that—

''(A) avoid or mitigate environmental effects of irrigation activities; or

''(B) restore habitats in the Klamath Basin watershed, including restoring tribal fishery resources held in trust; and

''(3) to limit the net delivered cost of power for covered power uses.

''(c) REDUCING POWER COSTS.—

''(1) IN GENERAL.—Not later than 180 days after the date of enactment of the Energy Policy Modernization Act of 2016, the Secretary, in consultation with interested irrigation interests, shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a report that—

''(A) identifies the power cost benchmark; and

''(B) recommends actions that, in the judgment of the Secretary, are necessary and appropriate to ensure that the net delivered

power cost for covered power use is equal to or less than the power cost benchmark, including a description of—

''(i) actions to immediately reduce power costs and to have the net delivered power cost for covered power use be equal to or less than the power cost benchmark in the near term, while longer-term actions are being implemented;

''(ii) actions that prioritize water and power conservation and efficiency measures and, to the extent actions involving the development or acquisition of power generation are included, renewable energy technologies (including hydropower);

''(iii) the potential costs and timeline for the actions recommended under this subparagraph;

''(iv) provisions for modifying the actions and timeline to adapt to new information or circumstances; and

''(v) a description of public input regarding the proposed actions, including input from water users that have covered power use and the degree to which those water users concur with the recommendations.

''(2) IMPLEMENTATION.—Not later than 180 days after the date of submission of the report under paragraph (1), the Secretary shall implement the recommendations described in the report, subject to availability of appropriations, on the fastest practicable timeline.

''(3) ANNUAL REPORTS.—The Secretary shall submit to each Committee described in paragraph (1) annual reports describing progress achieved in meeting the requirements of this subsection.

''(d) TREATMENT OF POWER PURCHASES.—Any purchase of power by the Secretary under this section shall be considered to be an authorized sale for purposes of section 5(b)(3) of the Pacific Northwest Electric Power Planning and Conservation Act (16 U.S.C. 839c(b)(3)).

''(e) GOALS.—The goals of activities under subsections (b) and (c) shall include, as applicable—

''(1) the short-term and long-term reduction and resolution of conflicts relating to water in the Klamath Basin watershed; and

''(2) compatibility and utility for resolving other natural resource conflicts, particularly through collaboratively developed agreements.

''(f) PUMPING PLANT D.—The Secretary may enter into 1 or more agreements with the Tulelake Irrigation District to reimburse the Tulelake Irrigation District for not more than 69 percent of the cost incurred by the Tulelake Irrigation District for the operation and maintenance of Pumping Plant D.''.

(b) CONVEYANCE OF NON-PROJECT WATER; REPLACEMENT OF C CANAL.—

(1) DEFINITION OF KLAMATH PROJECT.—In this subsection:

(A) IN GENERAL.—The term ''Klamath Project'' means the Bureau of Reclamation project in the States of California and Oregon, as authorized under the Act of June 17, 1902 (32 Stat. 388, chapter 1093).

(B) INCLUSIONS.—The term ''Klamath Project'' includes any dams, canals, and other works and interests for water diversion, storage, delivery, and drainage, flood control, and similar functions that are part of the project described in subparagraph (A).

(2) CONVEYANCE OF NON-PROJECT WATER.—

(A) IN GENERAL.—An entity operating under a contract entered into with the United States for the operation and maintenance of Klamath Project works or facilities, and an entity operating any work or facility not owned by the United States that receives Klamath Project water, may use any of the Klamath Project works or facilities to convey non-Klamath Project water for any authorized purpose of the Klamath Project, subject to subparagraphs (B) and (C).

(B) PERMITS; MEASUREMENT.—An addition, conveyance, and use of water pursuant to subparagraph (A) shall be subject to the requirements that—

(i) the applicable entity shall secure all permits required under State or local laws; and

(ii) all water delivered into, or taken out of, a Klamath Project facility pursuant to that subparagraph shall be measured.

(C) EFFECT.—A use of Klamath Project water under this paragraph shall not—

(i) adversely affect the delivery of water to any water user or land served by the Klamath Project; or

(ii) result in any additional cost to the United States.

(3) REPLACEMENT OF C CANAL FLUME.—The replacement of the C Canal flume within the Klamath Project shall be considered to be, and shall receive the treatment authorized for, emergency extraordinary operation and maintenance work in accordance with Federal reclamation law (the Act of June 17, 1902 (32 Stat. 388, chapter 1093), and Acts supplemental to and amendatory of that Act (43 U.S.C. 371 et seq.)).

SA 3196. Mr. KIRK submitted an amendment intended to be proposed by him to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. FEDERAL DISASTER FUNDING FOR RECOVERY FROM LARGE-SCALE CYBER INCIDENTS.

Section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122) is amended—

(1) in paragraph (2), by striking ''or explosion'' and inserting ''explosion, or cyber incident''; and

(2) by adding at the end the following:

''(13) CRITICAL INFRASTRUCTURE.—The term 'critical infrastructure' has the meaning given the term in section 1016(e) of Public Law 107–56 (42 U.S.C. 5195c(e)).

''(14) CYBER INCIDENT.—The term 'cyber incident' means actions taken against critical infrastructure through the use of computer networks that result in a significant adverse effect on the provision of essential services (as described in section 427(a)(1)), which—

''(A) lasts for a period of more than 24-hours; and

''(B) affects the provision of essential services in more than 1 State.''.

SA 3197. Ms. COLLINS (for herself, Ms. MIKULSKI, and Ms. HIRONO) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

On page 157, strike line 24 and insert the following:

tion.

''SEC. 225. CRITICAL ELECTRIC INFRASTRUCTURE AT GREATEST RISK.

''(a) DEFINITIONS.—In this section:

''(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' means—

''(A) the Select Committee on Intelligence of the Senate;

''(B) the Permanent Select Committee on Intelligence of the House of Representatives;

''(C) the Committee on Energy and Natural Resources of the Senate; and

''(D) the Committee on Energy and Commerce of the House of Representatives.

''(2) CRITICAL ELECTRIC INFRASTRUCTURE.—The term 'critical electric infrastructure' means a system or asset of the bulk-power system, whether physical or virtual, the incapacity or destruction of which would negatively affect national security, economic security, public health or safety, or any combination of those matters.

''(3) COVERED ENTITY.—The term 'covered entity' means an entity identified pursuant to section 9(a) of Executive Order 13636 of February 12, 2013 (78 Fed. Reg. 11742), relating to identification of critical infrastructure where a cybersecurity incident could reasonably result in catastrophic regional or national effects on public health or safety, economic security, or national security, that owns or operates critical electric infrastructure.

''(4) SECRETARY.—The term 'Secretary' means the Secretary of Energy.

''(b) MITIGATION STRATEGY REQUIRED FOR CRITICAL ELECTRIC INFRASTRUCTURE AT GREATEST RISK.—Not later than 1 year after the date of enactment of this Act, the Commission, in consultation with the Secretary and each covered entity, shall identify and propose prioritized, risk-based actions to mitigate cyber risk for each covered entity such that, to the greatest extent practicable, a cyber security incident affecting that covered entity would be less likely to result in catastrophic regional or national effects on public health or safety, economic security, or national security, given current and projected cyber risks.

''(c) REPORT REQUIRED.—Not later than 60 days after the date on which the Commission has taken the actions required under subsection (b), the Commission shall submit to the appropriate congressional committees a report describing—

''(1) the current and projected cyber risks considered by the Commission; and

''(2) a summary of the type of actions proposed by the Commission.''.

SA 3198. Mr. BROWN (for himself and Mr. KIRK) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title I, add the following:

SEC. 10___. INCREASING WATER EFFICIENCY IN FEDERAL BUILDINGS.

(a) DEFINITIONS.—In this section:

(1) ANSI-ACCREDITED PLUMBING CODE.—The term ''ANSI-accredited plumbing code'' means a construction code for a plumbing system of a building that meets applicable codes established by the American National Standards Institute.

(2) ANSI-AUDITED DESIGNATOR.—The term ''ANSI-audited designator'' means an accredited developer that is recognized by the American National Standards Institute.

(3) GREEN PLUMBERS USA TRAINING PROGRAM.—The term ''Green Plumbers USA training program'' means the training and certification program teaching sustainability and water-savings practices that is established by the Green Plumbers organization.

(4) HELMETS TO HARDHATS PROGRAM.—The term ''Helmets to Hardhats program'' means

the national, nonprofit program that connects National Guard, Reserve, retired, and transitioning active-duty military service members with skilled training and quality career opportunities in the construction industry.

(5) PLUMBING EFFICIENCY RESEARCH COALITION.—The term ''Plumbing Efficiency Research Coalition'' means the industry coalition comprised of plumbing manufacturers, code developers, plumbing engineers, and water efficiency experts established to advance plumbing research initiatives that support the development of water efficiency and sustainable plumbing products, systems, and practices.

(b) WATER EFFICIENCY STANDARDS.—The Secretary shall work with ANSI-audited designators to promote the implementation and use in the construction of Federal building of plumbing products, systems, and practices that meet standards and codes that achieve the highest level of water efficiency and conservation practicable consistent with construction budgets and the goals of Executive Order 13514 (42 U.S.C. 4321 note; relating to Federal leadership in environmental, energy, and economic performance), including—

(1) the most recent version of the ANSI-accredited plumbing code; and

(2) if no ANSI-accredited plumbing code exists, alternative plumbing standards and codes established by the Secretary.

(c) TRAINING PROGRAMS.—The Secretary shall work with nationally recognized plumbing training programs that meet applicable plumbing licensing requirements to provide competency training for individuals who install and repair plumbing systems in Federal and other buildings, including—

(1) the Helmets to Hardhats training program; and

(2) the Green Plumbers USA training program.

(d) WATER EFFICIENCY RESEARCH.—The Secretary shall promote plumbing research that increases water efficiency and conservation in plumbing products, systems, and practices used in Federal and other buildings and reduces the unintended consequences of reduced flows in the building drains and water supply systems of the United States, which may include working with the Andrew W. Breidenbach Environmental Research Center and the Plumbing Efficiency Research Coalition—

(1) to provide and exchange experts to conduct water efficiency and conservation plumbing-related studies;

(2) to assist in creating public awareness of reports of the Plumbing Efficiency Research Coalition; and

(3) to provide financial assistance if applicable and available.

SA 3199. Mr. MARKEY submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title I, add the following:

SEC. 10___.

(a) USE OF FUNDS.—Section 544 of the Energy Independence and Security Act of 2007 (42 U.S.C. 17154) is amended—

(1) in the matter preceding paragraph (1), by striking ''An eligible entity'' and inserting the following:

''(a) IN GENERAL.—An eligible entity''; and

(2) by adding at the end the following:

''(b) PRIORITY.—An eligible entity receiving a grant under this subtitle shall prioritize projects that use LED lighting, solar electricity generating, or energy efficiency building technologies at buildings and facilities within the jurisdiction of the eligible entity.''.

(b) REVIEW AND EVALUATION.—Section 547 of the Energy Independence and Security Act of 2007 (42 U.S.C. 17157) is amended by adding at the end the following:

''(c) PROCUREMENT IMPROVEMENT.—Not later than 1 year after the date of enactment of this subsection, the Secretary, in consultation with eligible entities, shall revise the grant and procurement practices of the Department of Energy to ensure the most effective allocation and use of the funds made available under section 548.''.

(c) FUNDING.—Section 548(a) of the Energy Independence and Security Act of 2007 (42 U.S.C. 17158(a)) is amended—

(1) in paragraph (1), by striking ''2008 through 2012'' and inserting ''2018 through 2020''; and

(2) in paragraph (2), by striking subparagraphs (A) through (C) and inserting the following:

''(A) $20,000,000 for fiscal year 2017; and

''(B) $25,000,000 for each of fiscal years 2018 through 2020.''.

SA 3200. Mr. WHITEHOUSE (for himself, Mr. MARKEY, Mr. SCHATZ, and Mr. SANDERS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. SENSE OF THE SENATE REGARDING ACTIVITIES OF CERTAIN COMPANIES.

(a) SENSE OF THE SENATE REGARDING TOBACCO COMPANIES.—It is the sense of the Senate that—

(1) according to peer-reviewed scientific research and Federal courts, tobacco companies have long known about the harmful health effects of their products; and

(2) contrary to the scientific findings of the tobacco companies and of others about the danger tobacco poses to human health, tobacco companies—

(A) used a sophisticated and deceitful campaign that included funding think tanks to deny, counter, and obstruct peer-reviewed science; and

(B) used that misinformation campaign to mislead the public and cast doubt in order to protect their financial interest.

(b) SENSE OF THE SENATE REGARDING LEAD-RELATED MANUFACTURERS.—It is the sense of the Senate that—

(1) according to peer-reviewed scientific research and State courts, the harmful effects of lead in paint and other products were known to the paint industry, gasoline manufacturers, and lead producers throughout the 20th century; and

(2) contrary to the scientific findings of those companies and of others about the danger lead poses to human health, those companies—

(A) used a sophisticated and deceitful campaign that included funding think tanks to deny, counter, and obstruct peer-reviewed research; and

(B) used that misinformation campaign to mislead the public and cast doubt in order to protect their financial interest.

(c) SENSE OF THE SENATE REGARDING FOSSIL FUEL COMPANIES.—It is the sense of the Senate that—

(1) according to peer-reviewed scientific research and investigative reporting, fossil fuel companies have long known about the harmful climate effects of their products; and

(2) contrary to the scientific findings of the fossil fuel companies and of others about the danger fossil fuels pose to the climate, fossil fuel companies—

(A) used a sophisticated and deceitful campaign that included funding think tanks to deny, counter, and obstruct peer-reviewed research; and

(B) used that misinformation campaign to mislead the public and cast doubt in order to protect their financial interest?.

(d) SENSE OF THE SENATE REGARDING CERTAIN CORPORATIONS.—It is the sense of the Senate that the Senate—

(1) disapproves of activities by certain corporations and organizations funded by those corporations to deliberately undermine peer-reviewed scientific research about the dangers of their products and cast doubt on science in order to protect their financial interests; and

(2) urges fossil fuel companies to cooperate with active or future investigations into their climate-change related activities and what the companies knew and when they knew it.

SA 3201. Mr. WARNER (for himself and Mr. KAINE) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE VI—MISCELLANEOUS

SEC. 6001. INTERAGENCY TRANSFER OF LAND ALONG GEORGE WASHINGTON MEMORIAL PARKWAY.

(a) DEFINITION.—In this section:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(2) RESEARCH CENTER.—The term ''Research Center'' means the Federal Highway Administration's Turner-Fairbank Highway Research Center.

(3) MAP.—The term ''Map'' means the map titled ''George Washington Memorial Parkway—Claude Moore Farm Proposed Boundary Adjustment'', numbered 850__130815, and dated December 2015.

(b) ADMINISTRATIVE JURISDICTION TRANSFER.—

(1) TRANSFER OF JURISDICTION.—The Secretary and the Secretary of Transportation, as appropriate, are authorized to exchange administrative jurisdiction of—

(A) approximately 0.342 acres of Federal land under the jurisdiction of the Department of the Interior within the boundary of the George Washington Memorial Parkway, generally depicted as ''B'' on the Map; and

(B) the approximately 0.479 acres of Federal land within the boundary of the Research Center land under the jurisdiction of the Department of Transportation adjacent to the boundary of the George Washington Memorial Parkway, generally depicted as ''A'' on the Map.

(2) USE RESTRICTION.—The Secretary shall restrict the use of 0.139 acres of Federal land within the boundary of the George Washington Memorial Parkway immediately adjacent to part of the north perimeter fence of the Research Center, generally depicted as ''C'' on the Map, by prohibiting the storage, construction, or installation of any item that may obstruct the view from the Research Center into the George Washington Memorial Parkway.

(3) REIMBURSEMENT OR CONSIDERATION.—The transfers of administrative jurisdiction under this section shall occur without reimbursement or consideration.

(4) COMPLIANCE WITH AGREEMENT.—

(A) AGREEMENT.—The National Park Service and the Federal Highway Administration shall comply with all terms and conditions of the Agreement entered into by the parties on September 11, 2002, regarding the transfer of administrative jurisdiction, management, and maintenance of the lands discussed in that Agreement.

(B) ACCESS TO RESTRICTED LAND.—

(i) IN GENERAL.—Subject to clauses (ii) and (iii), the Secretary shall allow the Research Center to access the land described in paragraph (1)(B) for purposes of maintenance in accordance with National Park Service standards, including grass mowing, weed control, tree maintenance, fence maintenance, and maintenance of the visual appearance of the land.

(ii) PRUNING AND REMOVAL OF TRESS.—No tree on the land described in paragraph (1)(B) that is 6 inches or more in diameter shall be pruned or removed without the advance written permission of the Secretary.

(iii) PESTICIDES.—The use of pesticides on the land described in paragraph (1)(B) shall be approved in writing by the Secretary prior to application of the pesticides.

(c) MANAGEMENT OF TRANSFERRED LANDS.—

(1) INTERIOR LAND.—The Federal land transferred to the Secretary under this section shall be included in the boundaries of the George Washington Memorial Parkway and shall be administered by the National Park Service as part of the parkway subject to applicable laws and regulations.

(2) TRANSPORTATION LAND.—The Federal land transferred to the Secretary of Transportation under this section shall be included in the boundary of the Research Center and shall be removed from the boundary of parkway.

(3) RESTRICTED-USE LAND.—The Federal land the Secretary has designated for restricted use under subsection (b)(2) shall be maintained by the Research Center.

(d) MAP ON FILE.—The Map shall be available for public inspection in the appropriate offices of the National Park Service, Department of Interior.

SA 3202. Mr. ISAKSON (for himself, Mr. BENNET, Mr. PORTMAN, Mrs. SHAHEEN, and Mr. COONS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title I, add the following:

Subtitle F—Housing

SEC. 1501. DEFINITIONS.

In this subtitle, the following definitions shall apply:

(1) COVERED LOAN.—The term ''covered loan'' means a loan secured by a home that is insured by the Federal Housing Administration under title II of the National Housing Act (12 U.S.C. 1707 et seq.).

(2) HOMEOWNER.—The term ''homeowner'' means the mortgagor under a covered loan.

(3) MORTGAGEE.—The term ''mortgagee'' means an original lender under a covered loan or the holder of a covered loan at the time at which that mortgage transaction is consummated.

SEC. 1502. ENHANCED ENERGY EFFICIENCY UNDERWRITING CRITERIA.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Housing and Urban Development shall, in consultation with the advisory group established in section 1505(c), develop and issue guidelines for the Federal Housing Administration to implement enhanced loan eligibility requirements, for use when testing the ability of a loan applicant to repay a covered loan, that account for the expected energy cost savings for a loan applicant at a subject property, in the manner set forth in subsections (b) and (c).

(b) REQUIREMENTS TO ACCOUNT FOR ENERGY COST SAVINGS.—

(1) IN GENERAL.—The enhanced loan eligibility requirements under subsection (a) shall require that, for all covered loans for which an energy efficiency report is voluntarily provided to the mortgagee by the homeowner, the Federal Housing Administration and the mortgagee shall take into consideration the estimated energy cost savings expected for the owner of the subject property in determining whether the loan applicant has sufficient income to service the mortgage debt plus other regular expenses.

(2) USE AS OFFSET.—To the extent that the Federal Housing Administration uses a test such as a debt-to-income test that includes certain regular expenses, such as hazard insurance and property taxes—

(A) the expected energy cost savings shall be included as an offset to these expenses; and

(B) the Federal Housing Administration may not use the offset described in subparagraph (A) to qualify a loan applicant for insurance under title II of the National Housing Act (12 U.S.C. 1707 et seq.) with respect to a loan that would not otherwise meet the requirements for such insurance.

(3) TYPES OF ENERGY COSTS.—Energy costs to be assessed under this subsection shall include the cost of electricity, natural gas, oil, and any other fuel regularly used to supply energy to the subject property.

(c) DETERMINATION OF ESTIMATED ENERGY COST SAVINGS.—

(1) IN GENERAL.—The guidelines to be issued under subsection (a) shall include instructions for the Federal Housing Administration to calculate estimated energy cost savings using—

(A) the energy efficiency report;

(B) an estimate of baseline average energy costs; and

(C) additional sources of information as determined by the Secretary of Housing and Urban Development.

(2) REPORT REQUIREMENTS.—For the purposes of paragraph (1), an energy efficiency report shall—

(A) estimate the expected energy cost savings specific to the subject property, based on specific information about the property;

(B) be prepared in accordance with the guidelines to be issued under subsection (a); and

(C) be prepared—

(i) in accordance with the Residential Energy Service Network's Home Energy Rating System (commonly known as ''HERS'') by an individual certified by the Residential Energy Service Network, unless the Secretary of Housing and Urban Development finds that the use of HERS does not further the purposes of this subtitle;

(ii) in accordance with the Alaska Housing Finance Corporation energy rating system by an individual certified by the Alaska Housing Finance Corporation as an authorized Energy Rater; or

(iii) by other methods approved by the Secretary of Housing and Urban Development, in consultation with the Secretary and the advisory group established in section 1505(c), for use under this subtitle, which shall include a third-party quality assurance procedure.

(3) USE BY APPRAISER.—If an energy efficiency report is used under subsection (b), the energy efficiency report shall be provided to the appraiser to estimate the energy efficiency of the subject property and for potential adjustments for energy efficiency.

(d) PRICING OF LOANS.—

(1) IN GENERAL.—The Federal Housing Administration may price covered loans originated under the enhanced loan eligibility requirements required under this section in accordance with the estimated risk of the loans.

(2) IMPOSITION OF CERTAIN MATERIAL COSTS, IMPEDIMENTS, OR PENALTIES.—In the absence of a publicly disclosed analysis that demonstrates significant additional default risk or prepayment risk associated with the loans, the Federal Housing Administration shall not impose material costs, impediments, or penalties on covered loans merely because the loan uses an energy efficiency report or the enhanced loan eligibility requirements required under this section.

(e) LIMITATIONS.—

(1) IN GENERAL.—The Federal Housing Administration may price covered loans originated under the enhanced loan eligibility requirements required under this section in accordance with the estimated risk of those loans.

(2) PROHIBITED ACTIONS.—The Federal Housing Administration shall not—

(A) modify existing underwriting criteria or adopt new underwriting criteria that intentionally negate or reduce the impact of the requirements or resulting benefits that are set forth or otherwise derived from the enhanced loan eligibility requirements required under this section; or

(B) impose greater buy back requirements, credit overlays, or insurance requirements, including private mortgage insurance, on covered loans merely because the loan uses an energy efficiency report or the enhanced loan eligibility requirements required under this section.

(f) APPLICABILITY AND IMPLEMENTATION DATE.—Not later than 3 years after the date of enactment of this Act, and before December 31, 2019, the enhanced loan eligibility requirements required under this section shall be implemented by the Federal Housing Administration to—

(1) apply to any covered loan for the sale, or refinancing of any loan for the sale, of any home;

(2) be available on any residential real property (including individual units of condominiums and cooperatives) that qualifies for a covered loan; and

(3) provide prospective mortgagees with sufficient guidance and applicable tools to implement the required underwriting methods.

SEC. 1503. ENHANCED ENERGY EFFICIENCY UNDERWRITING VALUATION GUIDELINES.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Housing and Urban Development shall—

(1) in consultation with the Federal Financial Institutions Examination Council and the advisory group established in section 1505(c), develop and issue guidelines for the Federal Housing Administration to determine the maximum permitted loan amount based on the value of the property for all covered loans made on properties with an energy efficiency report that meets the requirements of section 1502(c)(2); and

(2) in consultation with the Secretary, issue guidelines for the Federal Housing Administration to determine the estimated energy savings under subsection (c) for properties with an energy efficiency report.

(b) REQUIREMENTS.—The enhanced energy efficiency underwriting valuation guidelines required under subsection (a) shall include—

(1) a requirement that if an energy efficiency report that meets the requirements of section 1502(c)(2) is voluntarily provided to the mortgagee, such report shall be used by the mortgagee or the Federal Housing Administration to determine the estimated energy savings of the subject property; and

(2) a requirement that the estimated energy savings of the subject property be added to the appraised value of the subject property by a mortgagee or the Federal Housing Administration for the purpose of determining the loan-to-value ratio of the subject property, unless the appraisal includes the value of the overall energy efficiency of the subject property, using methods to be established under the guidelines issued under subsection (a).

(c) DETERMINATION OF ESTIMATED ENERGY SAVINGS.—

(1) AMOUNT OF ENERGY SAVINGS.—The amount of estimated energy savings shall be determined by calculating the difference between the estimated energy costs for the average comparable houses, as determined in guidelines to be issued under subsection (a), and the estimated energy costs for the subject property based upon the energy efficiency report.

(2) DURATION OF ENERGY SAVINGS.—The duration of the estimated energy savings shall be based upon the estimated life of the applicable equipment, consistent with the rating system used to produce the energy efficiency report.

(3) PRESENT VALUE OF ENERGY SAVINGS.—The present value of the future savings shall be discounted using the average interest rate on conventional 30-year mortgages, in the manner directed by guidelines issued under subsection (a).

(d) ENSURING CONSIDERATION OF ENERGY EFFICIENT FEATURES.—Section 1110 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 3339) is amended—

(1) in paragraph (2), by striking ''; and'' at the end;

(2) in paragraph (3), by striking the period at the end and inserting ''; and''; and

(3) by inserting after paragraph (3) the following:

''(4) that State certified and licensed appraisers have timely access, whenever practicable, to information from the property owner and the lender that may be relevant in developing an opinion of value regarding the energy-saving improvements or features of a property, such as—

''(A) labels or ratings of buildings;

''(B) installed appliances, measures, systems or technologies;

''(C) blueprints;

''(D) construction costs;

''(E) financial or other incentives regarding energy-efficient components and systems installed in a property;

''(F) utility bills;

''(G) energy consumption and benchmarking data; and

''(H) third-party verifications or representations of energy and water efficiency performance of a property, observing all financial privacy requirements adhered to by certified and licensed appraisers, including section 501 of the Gramm-Leach-Bliley Act (15 U.S.C. 6801).

Unless a property owner consents to a lender, an appraiser, in carrying out the requirements of paragraph (4), shall not have access to the commercial or financial information of the owner that is privileged or confidential.''.

(e) TRANSACTIONS REQUIRING STATE CERTIFIED APPRAISERS.—Section 1113 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 3342) is amended—

(1) in paragraph (1), by inserting before the semicolon the following: '', or any real property on which the appraiser makes adjustments using an energy efficiency report''; and

(2) in paragraph (2), by inserting after before the period at the end the following: '', or an appraisal on which the appraiser makes adjustments using an energy efficiency report''.

(f) PROTECTIONS.—

(1) AUTHORITY TO IMPOSE LIMITATIONS.—The guidelines to be issued under subsection (a) shall include such limitations and conditions as determined by the Secretary of Housing and Urban Development to be necessary to protect against meaningful under or over valuation of energy cost savings or duplicative counting of energy efficiency features or energy cost savings in the valuation of any subject property that is used to determine a loan amount.

(2) ADDITIONAL AUTHORITY.—At the end of the 7-year period following the implementation of enhanced eligibility and underwriting valuation requirements under this subtitle, the Secretary of Housing and Urban Development may modify or apply additional exceptions to the approach described in subsection (b), where the Secretary of Housing and Urban Development finds that the unadjusted appraisal will reflect an accurate market value of the efficiency of the subject property or that a modified approach will better reflect an accurate market value.

(g) APPLICABILITY AND IMPLEMENTATION DATE.—Not later than 3 years after the date of enactment of this Act, and before December 31, 2019, the Federal Housing Administration shall implement the guidelines required under this section, which shall—

(1) apply to any covered loan for the sale, or refinancing of any loan for the sale, of any home; and

(2) be available on any residential real property, including individual units of condominiums and cooperatives, that qualifies for a covered loan.

SEC. 1504. MONITORING.

Not later than 1 year after the date on which the enhanced eligibility and underwriting valuation requirements are implemented under this subtitle, and every year thereafter, the Federal Housing Administration shall issue and make available to the public a report that—

(1) enumerates the number of covered loans of the Federal Housing Administration for which there was an energy efficiency report, and that used energy efficiency appraisal guidelines and enhanced loan eligibility requirements;

(2) includes the default rates and rates of foreclosures for each category of loans; and

(3) describes the risk premium, if any, that the Federal Housing Administration has priced into covered loans for which there was an energy efficiency report.

SEC. 1505. RULEMAKING.

(a) IN GENERAL.—The Secretary of Housing and Urban Development shall prescribe regulations to carry out this subtitle, in consultation with the Secretary and the advisory group established in subsection (c), which may contain such classifications, differentiations, or other provisions, and may provide for such proper implementation and appropriate treatment of different types of transactions, as the Secretary of Housing and Urban Development determines are necessary or proper to effectuate the purposes of this subtitle, to prevent circumvention or evasion thereof, or to facilitate compliance therewith.

(b) RULE OF CONSTRUCTION.—Nothing in this subtitle shall be construed to authorize the Secretary of Housing and Urban Development to require any homeowner or other party to provide energy efficiency reports, energy efficiency labels, or other disclosures to the Federal Housing Administration or to a mortgagee.

(c) ADVISORY GROUP.—To assist in carrying out this subtitle, the Secretary of Housing and Urban Development shall establish an advisory group, consisting of individuals representing the interests of—

(1) mortgage lenders;

(2) appraisers;

(3) energy raters and residential energy consumption experts;

(4) energy efficiency organizations;

(5) real estate agents;

(6) home builders and remodelers;

(7) consumer advocates;

(8) State energy officials; and

(9) others as determined by the Secretary of Housing and Urban Development.

SEC. 1506. ADDITIONAL STUDY.

(a) IN GENERAL.—Not later than 18 months after the date of enactment of this Act, the Secretary of Housing and Urban Development shall reconvene the advisory group established in section 1505(c), in addition to water and locational efficiency experts, to advise the Secretary of Housing and Urban Development on the implementation of the enhanced energy efficiency underwriting criteria established in sections 1502 and 1503.

(b) RECOMMENDATIONS.—The advisory group established in section 1505(c) shall provide recommendations to the Secretary of Housing and Urban Development on any revisions or additions to the enhanced energy efficiency underwriting criteria deemed necessary by the group, which may include alternate methods to better account for home energy costs and additional factors to account for substantial and regular costs of homeownership such as location-based transportation costs and water costs. The Secretary of Housing and Urban Development shall forward any legislative recommendations from the advisory group to Congress for its consideration.

SA 3203. Mr. COONS submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44___. STUDY OF WAIVERS OF CERTAIN COST-SHARING REQUIREMENTS.

Not later than 180 days after the date of enactment of this Act, the Secretary shall—

(1) complete a study on the ability of, and any actions before the date of enactment of this Act by, the Secretary to waive the cost-sharing requirement under section 988 of the Energy Policy Act of 2005 (42 U.S.C. 16352); and

(2) based on the results of the study under paragraph (1), make recommendations to Congress for the issuance of, and factors that should be considered with respect to, waivers of the cost-sharing requirement by the Secretary.

SA 3204. Mr. CARPER submitted an amendment intended to be proposed to

amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ____—PREVENTING RADIOLOGICAL TERRORISM ACT

SEC. __001. SHORT TITLE.

This title may be cited as the ''Preventing Radiological Terrorism Act of 2016''.

SEC. __002. STRATEGY FOR SECURING HIGH ACTIVITY RADIOLOGICAL SOURCES.

(a) IN GENERAL.—The Administrator for Nuclear Security shall—

(1) in coordination with the Chairman of the Nuclear Regulatory Commission and the Secretary of Homeland Security, develop a strategy to enhance the security of all risk-significant radiological materials as soon as possible; and

(2) not later than 120 days after the date of the enactment of this Act, submit to the appropriate congressional committees a report describing the strategy required by paragraph (1).

(b) ELEMENTS.—The report required by subsection (a)(2) shall include the following:

(1) A description of activities of the National Nuclear Security Administration, ongoing as of the date of the enactment of this Act—

(A) to secure risk-significant radiological materials; and

(B) to secure radiological materials and prevent the illicit trafficking of such materials as part of the Global Nuclear Detection Architecture.

(2) A list of any gaps in the legal authority of United States Government agencies needed to secure all risk-significant radiological materials.

(3) An estimate of the cost of securing all risk-significant radiological materials.

(4) A list, in the classified annex authorized by subsection (c), of all locations where risk-significant radiological material is kept under conditions that fail to meet the enhanced physical security standards promulgated by the Office of Global Material Security of the National Nuclear Security Administration.

(c) FORM OF REPORT.—The report required by subsection (a) shall be submitted in unclassified form and shall include a classified annex.

(d) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services, the Committee on Energy and Natural Resources, the Committee on Environment and Public Works, and the Committee on Homeland Security and Governmental Affairs of the Senate; and

(B) the Committee on Armed Services, the Committee on Energy and Commerce, and the Committee on Homeland Security of the House of Representatives.

(2) RISK-SIGNIFICANT RADIOLOGICAL MATERIAL.—The term ''risk-significant radiological material'' means category 1 and category 2 radioactive materials, as determined by the Nuclear Regulatory Commission, located within the United States.

(3) SECURE.—The terms ''secure'' and ''security'', with respect to risk-significant radiological materials, refer to all activities to prevent terrorists from acquiring such sources, including enhanced physical security and tracking measures, removal and disposal of such sources that are not used, replacement of such sources with nonradiological technologies where feasible, and detection of illicit trafficking of such sources.

SEC. __003. PREVENTING TERRORIST ACCESS TO DOMESTIC RADIOLOGICAL SOURCES.

(a) COMMERCIAL LICENSES.—Section 103 of the Atomic Energy Act of 1954 (42 U.S.C. 2133) is amended—

(1) in subsection d., in the third sentence, by inserting ''under a circumstance described in subsection g., or'' after ''within the United States''; and

(2) by adding at the end the following:

''g. In addition to the limitations described in subsection d. and the limitations provided at the discretion of the Commission, the Commission shall not grant a license to any individual who is—

''(1) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(2) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(A) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(B) providing material support or resources for terrorism; or

''(C) the making of a terrorist threat or terroristic threat.

''h. The Commission shall suspend immediately any license granted under this section if the Commission discovers that the licensee is providing unescorted access to any employee who is—

''(1) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(2) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(A) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(B) providing material support or resources for terrorism; or

''(C) the making of a terrorist threat or terroristic threat.

''i. The Commission may lift the suspension of a license made pursuant to subsection h. if—

''(1) the licensee has revoked unescorted access privileges to the employee;

''(2) the licensee has alerted the appropriate Federal, State, and local law enforcement offices of the provision and revocation of unescorted access to the employee; and

''(3) the Commission has conducted a review of the security of the licensee and determined that reinstatement of the licensee would not be inimical to the national security interests of the United States.''.

(b) MEDICAL THERAPY AND RESEARCH AND DEVELOPMENT.—Section 104 of the Atomic Energy Act of 1954 (42 U.S.C. 2134) is amended—

(1) in subsection d., in the third sentence, by inserting ''under a circumstance described in subsection e., or'' after ''within the United States''; and

(2) by adding at the end the following:

''e. In addition to the limitations described in subsection d. and the limitations provided at the discretion of the Commission, the Commission shall not grant a license to any individual who is—

''(1) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(2) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(A) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(B) providing material support or resources for terrorism; or

''(C) the making of a terrorist threat or terroristic threat.

''f. The Commission shall suspend immediately any license granted under this section if the Commission discovers that the licensee is providing unescorted access to any employee who is—

''(1) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(2) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(A) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(B) providing material support or resources for terrorism; or

''(C) the making of a terrorist threat or terroristic threat.

''g. The Commission may lift the suspension of a license made pursuant to subsection f. if—

''(1) the licensee has revoked unescorted access privileges to the employee;

''(2) the licensee has alerted the appropriate Federal, State, and local law enforcement offices of the provision and revocation of unescorted access to the employee; and

''(3) the Commission has conducted a review of the security of the licensee and determined that reinstatement of the licensee would not be inimical to the national security interests of the United States.''.

(c) COOPERATION WITH STATES.—Section 274 b. of the Atomic Energy Act of 1954 (42 U.S.C. 2021(b)) is amended—

(1) by redesignating paragraphs (1) through (3) as subparagraphs (A) through (C), respectively, and indenting appropriately;

(2) in the matter preceding subparagraph (A) (as so redesignated), by striking ''b. Except as'' and inserting the following:

''b. AUTHORIZATION TO ENTER INTO AGREEMENTS.—

''(1) IN GENERAL.—Subject to paragraph (2), except as''; and

(3) by adding at the end the following:

''(2) REQUIREMENT.—

''(A) IN GENERAL.—The Commission shall not enter into an agreement with the Governor of a State under paragraph (1) unless the Governor agrees that the State—

''(i) shall not grant a license to any individual who is—

''(I) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(II) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(aa) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(bb) providing material support or resources for terrorism; or

''(cc) the making of a terrorist threat or terroristic threat; and

''(ii) shall suspend the license of a licensee if the Commission or the State discovers that the licensee is providing unescorted access to any employee who is—

''(I) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(II) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(aa) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(bb) providing material support or resources for terrorism; or

''(cc) the making of a terrorist threat or terroristic threat.

''(B) EXISTING AGREEMENTS.—With respect to a State with an agreement in effect as of the date of enactment of this paragraph, the Commission shall terminate the agreement pursuant to subsection j. unless the Governor of the State agrees that the State shall not grant a license to any individual who is—

''(i) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(ii) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(I) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(II) providing material support or resources for terrorism; or

''(III) the making of a terrorist threat or terroristic threat.

''(C) SUSPENSION OF EXISTING AGREEMENTS.—With respect to a State with an agreement in effect as of the date of enactment of this paragraph, the Governor of the State shall suspend immediately any license granted by the State if the Commission or the State discovers that the licensee is providing unescorted access to any employee who is—

''(i) listed in the terrorist screening database maintained by the Federal Government Terrorist Screening Center of the Federal Bureau of Investigation; or

''(ii) convicted of any offense under any Federal, State, or local law or ordinance, an element of which is—

''(I) engaging in conduct constituting, in preparation of, in aid of, or related to terrorism;

''(II) providing material support or resources for terrorism; or

''(III) the making of a terrorist threat or terroristic threat.

''(D) LIFTING OF SUSPENSION.—The Governor of the State may lift the suspension of a license made pursuant to subparagraph (A)(ii) or subparagraph (C) if—

''(i) the licensee has revoked unescorted access privileges to the employee;

''(ii) the licensee has alerted the appropriate Federal, State, and local law enforcement offices of the provision and revocation of unescorted access to the employee; and

''(iii) the Commission has conducted a review of the security of the licensee and determined that reinstatement of the licensee would not be inimical to the national security interests of the United States.

''(E) TERMINATION.—If the Governor of a State does not suspend a license under subparagraph (A)(ii) or subparagraph (C), the Commission shall suspend the agreement with the Governor of the State until the Governor of the State suspends the license.''.

SEC. __004. OUTREACH TO STATE AND LOCAL LAW ENFORCEMENT AGENCIES ON RADIOLOGICAL THREATS.

Section 201(d) of the Homeland Security Act of 2002 (6 U.S.C. 121(d)) is amended by adding at the end the following:

''(26)(A) Not later than every 2 years, the Secretary shall submit a written certification to Congress that field staff of the Department have briefed State and local law enforcement representatives about radiological security threats.

''(B) A briefing conducted under subparagraph (A) shall include information on—

''(i) the presence and current security status of all risk-significant radiological materials housed within the jurisdiction of the law enforcement agency being briefed;

''(ii) the threat that risk-significant radiological materials could pose to their communities and to the national security of the United States if these sources were lost, stolen or subject to sabotage by criminal or terrorist actors; and

''(iii) guidelines and best pest practices for mitigating the impact of emergencies involving risk-significant radiological materials.

''(C) The National Nuclear Security Administration, the Nuclear Regulatory Commission, and Federal law enforcement agencies shall provide information to the Department in order for the Department to submit the written certification described in subparagraph (A).

''(D) A written certification described in subparagraph (A) shall include a report on the activity of the field staff of the Department to brief State and local law enforcement representatives, including, as provided to field staff of the Department by State and local law enforcement agencies—

''(i) an aggregation of incidents regarding radiological material; and

''(ii) information on current activities undertaken to address the vulnerabilities of these risk-significant radiological materials.

''(E) In this paragraph, the term 'risk-significant radiological material' means category 1 and category 2 radioactive materials, as determined by the Nuclear Regulatory Commission, located within the United States.''.

SA 3205. Mr. INHOFE (for himself and Mr. KING) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; as follows:

On page 196, between lines 7 and 8, insert the following:

(d) GEOMATIC DATA.—If a Federal or State department or agency considering an aspect of an application for Federal authorization requires the applicant to submit environmental data, the department or agency shall consider any such data gathered by geomatic techniques, including tools and techniques used in land surveying, remote sensing, cartography, geographic information systems, global navigation satellite systems, photogrammetry, geophysics, geography, or other remote means.

SA 3206. Mr. BARRASSO submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44_____. AUTHORITY TO MAKE ENTIRE ACTIVE CAPACITY OF FONTENELLE RESERVOIR AVAILABLE FOR USE.

(a) IN GENERAL.—The Secretary of the Interior, in cooperation with the State of Wyoming, may amend the Definite Plan Report for the Seedskadee Project authorized under the first section of the Act of April 11, 1956 (commonly known as the ''Colorado River Storage Project Act'') (43 U.S.C. 620), to provide for the study, design, planning, and construction activities that will enable the use of all active storage capacity (as may be defined or limited by legal, hydrologic, structural, engineering, economic, and environmental considerations) of Fontenelle Dam and Reservoir, including the placement of sufficient riprap on the upstream face of Fontenelle Dam to allow the active storage capacity of Fontenelle Reservoir to be used for those purposes for which the Seedskadee Project was authorized.

(b) COOPERATIVE AGREEMENTS.—

(1) IN GENERAL.—The Secretary of the Interior may enter into any contract, grant, cooperative agreement, or other agreement that is necessary to carry out subsection (a).

(2) STATE OF WYOMING.—

(A) IN GENERAL.—The Secretary of the Interior shall enter into a cooperative agreement with the State of Wyoming to work in cooperation and collaboratively with the State of Wyoming for planning, design, related preconstruction activities, and construction of any modification of the Fontenelle Dam under subsection (a).

(B) REQUIREMENTS.—The cooperative agreement under subparagraph (A) shall, at a minimum, specify the responsibilities of the Secretary of the Interior and the State of Wyoming with respect to—

(i) completing the planning and final design of the modification of the Fontenelle Dam under subsection (a);

(ii) any environmental and cultural resource compliance activities required for the modification of the Fontenelle Dam under subsection (a) including compliance with—

(I) the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.);

(II) the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.); and

(III) subdivision 2 of division A of subtitle III of title 54, United States Code; and

(iii) the construction of the modification of the Fontenelle Dam under subsection (a).

(c) FUNDING BY STATE OF WYOMING.—Pursuant to the Act of March 4, 1921 (41 Stat. 1404, chapter 161; 43 U.S.C. 395), and as a condition of providing any additional storage under subsection (a), the State of Wyoming shall provide to the Secretary of the Interior funds for any work carried out under subsection (a).

(d) OTHER CONTRACTING AUTHORITY.—

(1) IN GENERAL.—The Secretary of the Interior may enter into contracts with the State of Wyoming, on such terms and conditions as the Secretary of the Interior and the State of Wyoming may agree, for division of any additional active capacity made available under subsection (a).

(2) TERMS AND CONDITIONS.—Unless otherwise agreed to by the Secretary of the Interior and the State of Wyoming, a contract entered into under paragraph (1) shall be subject to the terms and conditions of Bureau of Reclamation Contract No. 14–06–400–2474 and Bureau of Reclamation Contract No. 14–06–400–6193.

(e) SAVINGS PROVISIONS.—Unless expressly provided in this section, nothing in this section modifies, conflicts with, preempts, or otherwise affects—

(1) the Act of December 31, 1928 (43 U.S.C. 617 et seq.) (commonly known as the ''Boulder Canyon Project Act'');

(2) the Colorado River Compact of 1922, as approved by the Presidential Proclamation of June 25, 1929 (46 Stat. 3000);

(3) the Act of July 19, 1940 (43 U.S.C. 618 et seq.) (commonly known as the ''Boulder Canyon Project Adjustment Act'');

(4) the Treaty between the United States of America and Mexico relating to the utilization of waters of the Colorado and Tijuana Rivers and of the Rio Grande, and supplementary protocol signed November 14, 1944, signed at Washington February 3, 1944 (59 Stat. 1219);

(5) the Upper Colorado River Basin Compact as consented to by the Act of April 6, 1949 (63 Stat. 31);

(6) the Act of April 11, 1956 (commonly known as the ''Colorado River Storage Project Act'') (43 U.S.C. 620 et seq.);

(7) the Colorado River Basin Project Act (Public Law 90–537; 82 Stat. 885); or

(8) any State of Wyoming or other State water law.

SA 3207. Mr. THUNE submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. GROUND-LEVEL OZONE STANDARDS.

Notwithstanding any other provision of law (including regulations), in implementing the final rule entitled ''National Ambient Air Quality Standards for Ozone'' (80 Fed. Reg. 65292 (October 26, 2015)), the Administrator of the Environmental Protection Agency—

(1) shall not implement or enforce a national primary or secondary ambient air quality standard for ozone that is lower than the standard established under section 50.15 of title 40, Code of Federal Regulations (as in effect on January 1, 2015), until at least 85 percent of the counties that were nonattainment areas under that standard as of January 30, 2015, achieve full compliance with that standard; and

(2) shall only consider all or part of a county to be a nonattainment area under the standard on the basis of direct air quality monitoring.

SA 3208. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. INDEPENDENT RELIABILITY ANALYSIS.

(a) DEFINITIONS.—In this section:

(1) ELECTRIC RELIABILITY ORGANIZATION.—The term ''Electric Reliability Organization'' has the meaning given the term in section 215(a) of the Federal Power Act (16 U.S.C. 824o(a)).

(2) FINAL RULE.—The term ''final rule'' means the final rule of the Administrator entitled ''Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units'' (80 Fed. Reg. 64662 (October 23, 2015)).

(b) RELIABILITY ANALYSIS REQUIRED.—

(1) IN GENERAL.—Notwithstanding any other provision of law, the final rule shall not go into effect until the date on which the Federal Energy Regulatory Commission and the Electric Reliability Organization jointly conduct an independent reliability analysis of the final rule to evaluate anticipated effects of implementation and enforcement of the final rule on—

(A) electric reliability and resource adequacy;

(B) the electricity generation portfolio of the United States;

(C) the operation of wholesale electricity markets; and

(D) energy delivery and infrastructure, including electric transmission facilities and natural gas pipelines.

(2) ANALYSES FROM OTHER ENTITIES.—The Electric Reliability Organization, regional entities, regional transmission organizations, independent system operators, and other reliability coordinators and planning authorities shall timely conduct analyses and provide such information as may be reasonably requested by the Commission.

(3) AVAILABILITY.—Not later than 120 days after the date of enactment of this Act, the Federal Energy Regulatory Commission shall submit to Congress and make publicly available—

(A) the reliability analysis described in paragraph (1); and

(B) any relevant special assessment or seasonal or long-term reliability assessment completed by the Electric Reliability Organization.

SA 3209. Mr. LANKFORD submitted an amendment intended to be proposed by him to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. REPEAL OF CREDIT FOR ELECTRICITY PRODUCED FROM CERTAIN RENEWABLE RESOURCES.

(a) REPEAL OF CREDIT.—

(1) REPEAL OF CERTAIN QUALIFIED ENERGY RESOURCES.—

(A) IN GENERAL.—Section 45 of the Internal Revenue Code of 1986 is amended—

(i) in subsection (c)—

(I) in paragraph (1), by striking subparagraphs (B) through (I), and

(II) by striking paragraphs (2) through (10), and

(ii) in subsection (d), by striking paragraphs (2) through (11).

(B) EFFECTIVE DATE.—The amendments made by this paragraph shall apply to electricity, and refined coal, produced and sold after December 31, 2026.

(2) REPEAL OF CREDIT FOR WIND FACILITIES AND ELIMINATION OF SECTION 45 OF THE INTERNAL REVENUE CODE OF 1986.—

(A) IN GENERAL.—Subpart D of part IV of subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by striking section 45 (and by striking the item relating to such section in the table of sections for such subpart).

(B) CONFORMING AMENDMENTS.—

(i) Section 38 of such Code is amended—

(I) in subsection (b), by striking paragraph (8), and

(II) in subsection (c)(4)(B), by striking clause (iii).

(ii) Section 45J of such Code is amended by adding at the end the following new subsection:

''(f) REFERENCES TO SECTION 45.—Any reference in this section to any provision of section 45 shall be treated as a reference to such provision as in effect immediately before its repeal.''.

(iii) Section 45K(g)(2) of such Code is amended by striking subparagraph (E).

(iv) Section 48 of such Code is amended by adding at the end the following new subsection:

''(e) REFERENCES TO SECTION 45.—Any reference in this section to any provision of section 45 shall be treated as a reference to such provision as in effect immediately before its repeal.''.

(v) Section 54(d)(2)(A) of such Code is amended by inserting ''(as in effect immediately before its repeal)'' after ''section 45(d)''.

(vi) Section 54C(d)(1) of such Code is amended by inserting ''(as in effect immediately before its repeal)'' after ''section 45(d)''.

(vii) Section 54D(f)(1)(A)(iv) of such Code is amended by inserting ''(as in effect immediately before its repeal)'' after ''section 45(d)''.

(viii) Section 55(c)(1) of such Code is amended by striking ''45(e)(11)(C),''.

(C) EFFECTIVE DATE.—The amendments made by this paragraph shall take effect on January 1, 2032.

(b) SENSE OF CONGRESS REGARDING FURTHER EXTENSION.—It is the sense of the Congress that the credit under section 45 of the Internal Revenue Code of 1986 should be allowed to expire and should not be extended beyond the expiration dates specified in such section as of the date of the enactment of this Act.

SA 3210. Mr. LANKFORD submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

On page 426, after line 23, add the following:

(e) CERTAIN LAND ACQUISITION REQUIREMENTS.—Section 200306 of title 54, United States Code (as amended by subsection (d)), is amended by adding at the end the following:

''(e) NON-ROAD DEFERRED MAINTENANCE BACKLOG.—If the non-road deferred maintenance backlog on Federal land is greater than $1,000,000,000, acquisitions of land under this section may not exceed the level of deferred maintenance backlog funding.

''(f) MAINTENANCE NEEDS.—In making an acquisition of land under this section, funds appropriated for the acquisition shall include any funds necessary to address maintenance needs at the time of acquisition on the acquired land.

''(g) CONGRESSIONAL APPROVAL OF CERTAIN LAND ACQUISITIONS.—For any acquisition of land under this section for which the cost of the land is greater than $50,000 per acre—

''(1) before acquiring the land, the Secretary shall submit to Congress a report that describes the land proposed to be acquired; and

''(2) no acquisition may be made unless the proposed acquisition is—

''(A) reported to Congress in accordance with paragraph (1); and

''(B) approved by the enactment of a bill or joint resolution.''.

SA 3211. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. WAIVER OF JONES ACT REQUIREMENTS FOR OIL AND GASOLINE TANKERS.

(a) IN GENERAL.—Section 12112 of title 46, United States Code, is amended—

(1) in subsection (a), by striking ''A coastwise'' and inserting ''Except as provided in subsection (b), a coastwise'';

(2) by redesignating subsection (b) as subsection (c); and

(3) by inserting after subsection (a) the following:

''(b) WAIVER FOR OIL, GASOLINE, AND LIQUEFIED NATURAL GAS TANKERS.—The requirements of subsection (a) shall not apply to an oil, gasoline, or liquefied natural gas tanker vessel or barge and a coastwise endorsement may be issued for any such tanker vessel or barge that otherwise qualifies under the laws

of the United States to engage in the coastwise trade.''.

(b) REGULATIONS.—Not later than 90 days after the date of the enactment of this Act, the Commandant of the United States Coast Guard shall issue regulations to implement the amendments made by subsection (a). Such regulations shall require that an oil, gasoline, or liquefied natural gas tanker vessel or barge permitted to engaged in the coastwise trade pursuant to subsection (b) of section 12112 of title 46, United States Code, as amended by subsection (a), meets all appropriate safety and security requirements.

SA 3212. Mr. HELLER (for himself, Mr. HEINRICH, Mr. GARDNER, Mr. TESTER, Mr. BENNET, and Mr. RISCH) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

On page 244, between lines 13 and 14, insert the following:

Subpart B—Development of Geothermal, Solar, and Wind Energy on Public Land

SEC. 3011A. DEFINITIONS.

In this subpart:

(1) COVERED LAND.—The term ''covered land'' means land that is—

(A) public land administered by the Secretary; and

(B) not excluded from the development of geothermal, solar, or wind energy under—

(i) a land use plan established under the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.); or

(ii) other Federal law.

(2) EXCLUSION AREA.—The term ''exclusion area'' means covered land that is identified by the Bureau of Land Management as not suitable for development of renewable energy projects.

(3) PRIORITY AREA.—The term ''priority area'' means covered land identified by the land use planning process of the Bureau of Land Management as being a preferred location for a renewable energy project.

(4) PUBLIC LAND.—The term ''public land'' has the meaning given the term ''public lands'' in section 103 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1702).

(5) RENEWABLE ENERGY PROJECT.—The term ''renewable energy project'' means a project carried out on covered land that uses wind, solar, or geothermal energy to generate energy.

(6) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(7) VARIANCE AREA.—The term ''variance area'' means covered land that is—

(A) not an exclusion area; and

(B) not a priority area.

SEC. 3011B. LAND USE PLANNING; SUPPLEMENTS TO PROGRAMMATIC ENVIRONMENTAL IMPACT STATEMENTS.

(a) PRIORITY AREAS.—

(1) IN GENERAL.—The Secretary, in consultation with the Secretary of Energy, shall establish priority areas on covered land for geothermal, solar, and wind energy projects.

(2) DEADLINE.—

(A) GEOTHERMAL ENERGY.—For geothermal energy, the Secretary shall establish priority areas as soon as practicable, but not later than 5 years, after the date of enactment of this Act.

(B) SOLAR ENERGY.—For solar energy, the solar energy zones established by the 2012 western solar plan of the Bureau of Land Management shall be considered to be priority areas for solar energy projects.

(C) WIND ENERGY.—For wind energy, the Secretary shall establish priority areas as soon as practicable, but not later than 3 years, after the date of enactment of this Act.

(b) VARIANCE AREAS.—To the maximum extent practicable, variance areas shall be considered for renewable energy project development, consistent with the principles of multiple use as defined in the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.).

(c) REVIEW AND MODIFICATION.—Not less frequently than once every 10 years, the Secretary shall—

(1) review the adequacy of land allocations for geothermal, solar, and wind energy priority and variance areas for the purpose of encouraging new renewable energy development opportunities; and

(2) based on the review carried out under paragraph (1), add, modify, or eliminate priority, variance, and exclusion areas.

(d) COMPLIANCE WITH THE NATIONAL ENVIRONMENTAL POLICY ACT.—For purposes of this section, compliance with the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) shall be accomplished—

(1) for geothermal energy, by supplementing the October 2008 final programmatic environmental impact statement for geothermal leasing in the western United States;

(2) for solar energy, by supplementing the July 2012 final programmatic environmental impact statement for solar energy projects; and

(3) for wind energy, by supplementing the July 2005 final programmatic environmental impact statement for wind energy projects.

(e) NO EFFECT ON PROCESSING APPLICATIONS.—A requirement to prepare a supplement to a programmatic environmental impact statement under this section shall not result in any delay in processing an application for a renewable energy project.

(f) COORDINATION.—In developing a supplement required by this section, the Secretary shall coordinate, on an ongoing basis, with appropriate State, tribal, and local governments, transmission infrastructure owners and operators, developers, and other appropriate entities to ensure that priority areas identified by the Secretary are—

(1) economically viable (including having access to transmission);

(2) likely to avoid or minimize conflict with habitat for animals and plants, recreation, and other uses of covered land; and

(3) consistent with section 202 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1712), including subsection (c)(9) of that section.

(g) REMOVAL FROM CLASSIFICATION.—In carrying out subsections (a), (c), and (d), if the Secretary determines an area previously suited for development should be removed from priority or variance classification, not later than 90 days after the date of the determination, the Secretary shall submit to Congress a report on the determination.

SEC. 3011C. ENVIRONMENTAL REVIEW ON COVERED LAND.

(a) IN GENERAL.—If the Secretary determines that a proposed renewable energy project has been sufficiently analyzed by a programmatic environmental impact statement conducted under section 3011B(d), the Secretary shall not require any additional review under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

(b) ADDITIONAL ENVIRONMENTAL REVIEW.—If the Secretary determines that additional environmental review under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) is necessary for a proposed renewable energy project, the Secretary shall rely on the analysis in the programmatic environmental impact statement conducted under section 3011B(d), to the maximum extent practicable when analyzing the potential impacts of the project.

SEC. 3011D. PROGRAM TO IMPROVE RENEWABLE ENERGY PROJECT PERMIT COORDINATION.

(a) ESTABLISHMENT.—The Secretary shall establish a program to improve Federal permit coordination with respect to renewable energy projects on covered land.

(b) MEMORANDUM OF UNDERSTANDING.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary shall enter into a memorandum of understanding for purposes of this section, including to specifically expedite the environmental analysis of applications for projects proposed in a variance area, with—

(A) the Secretary of Agriculture; and

(B) the Assistant Secretary of the Army for Civil Works.

(2) STATE PARTICIPATION.—The Secretary may request the Governor of any interested State to be a signatory to the memorandum of understanding under paragraph (1).

(c) DESIGNATION OF QUALIFIED STAFF.—

(1) IN GENERAL.—Not later than 90 days after the date on which the memorandum of understanding under subsection (b) is executed, all Federal signatories, as appropriate, shall identify for each of the Bureau of Land Management Renewable Energy Coordination Offices an employee who has expertise in the regulatory issues relating to the office in which the employee is employed, including, as applicable, particular expertise in—

(A) consultation regarding, and preparation of, biological opinions under section 7 of the Endangered Species Act of 1973 (16 U.S.C. 1536);

(B) permits under section 404 of Federal Water Pollution Control Act (33 U.S.C. 1344);

(C) regulatory matters under the Clean Air Act (42 U.S.C. 7401 et seq.);

(D) planning under section 14 of the National Forest Management Act of 1976 (16 U.S.C. 472a);

(E) the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.);

(F) the Migratory Bird Treaty Act (16 U.S.C. 703 et seq.); and

(G) the preparation of analyses under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

(2) DUTIES.—Each employee assigned under paragraph (1) shall—

(A) be responsible for addressing all issues relating to the jurisdiction of the home office or agency of the employee; and

(B) participate as part of the team of personnel working on proposed energy projects, planning, monitoring, inspection, enforcement, and environmental analyses.

(d) ADDITIONAL PERSONNEL.—The Secretary may assign additional personnel for the renewable energy coordination offices as are necessary to ensure the effective implementation of any programs administered by those offices, including inspection and enforcement relating to renewable energy project development on covered land, in accordance with the multiple use mandate of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.).

(e) RENEWABLE ENERGY COORDINATION OFFICES.—In implementing the program established under this section, the Secretary may establish additional renewable energy coordination offices or temporarily assign the qualified staff described in subsection (c) to a State, district, or field office of the Bureau of Land Management to expedite the permitting of renewable energy projects, as the Secretary determines to be necessary.

(f) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than February 1 of the first fiscal year beginning after the

date of enactment of this Act, and each February 1 thereafter, the Secretary shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a report describing the progress made pursuant to the program under this subpart during the preceding year.

(2) INCLUSIONS.—Each report under this subsection shall include—

(A) projections for renewable energy production and capacity installations; and

(B) a description of any problems relating to leasing, permitting, siting, or production.

On page 244, line 14, strike ''**Subpart B**'' and insert ''**Subpart C**''.

SA 3213. Mr. WARNER (for himself and Mr. PETERS) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title II, insert the following:

SEC. 23___. REPORT ON USING SMART TECHNOLOGIES TO ADVANCE ENERGY EFFICIENCY AND GRID MODERNIZATION.

Not later than 1 year after the date of enactment of this Act, the Secretary shall submit to the Committees on Energy and Natural Resource and Finance of the Senate and the Committees on Natural Resources and Financial Services of the House of Representatives a report that includes recommendations of the Secretary regarding measures (including measures to be enacted by Congress) that could be carried out throughout the United States to use smart technologies to advance energy efficiency and grid modernization in the 21st century energy economy, unless a similar report and recommendations are included in a separate analysis prepared and submitted to Congress by not later than 1 year after that date of enactment, such as the Quadrennial Energy Review under section 801 of the Department of Energy Organization Act (42 U.S.C. 7321) (as amended by section 4402(a)).

SA 3214. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44____. ENERGY EMERGENCY RESPONSE EFFORTS OF THE DEPARTMENT.

(a) CONGRESSIONAL DECLARATION OF PURPOSE.—Section 102 of the Department of Energy Organization Act (42 U.S.C. 7112) is amended by adding at the end the following:

''(20) To facilitate the development and implementation of a strategy for responding to energy infrastructure and supply emergencies through—

''(A) continuously monitoring and publishing information on the energy delivery and supply infrastructure of the United States, including electricity, liquid fuels, natural gas, and coal;

''(B) managing Federal strategic energy reserves;

''(C) advising national leadership during emergencies on ways to respond to and minimize energy disruptions; and

''(D) working with Federal agencies and State and local governments—

''(i) to enhance energy emergency preparedness; and

''(ii) to respond to and mitigate energy emergencies.''.

(b) UNDER SECRETARY FOR SCIENCE AND ENERGY.—Section 202(b)(4) of the Department of Energy Organization Act (42 U.S.C. 7132(b)(4)) (as amended by section 4404(a)(3)) is amended, in subparagraph (B), by inserting ''and applied energy'' before ''programs of the''.

(c) RESPONSIBILITIES OF ASSISTANT SECRETARIES.—Section 203(a) of the Department of Energy Organization Act (42 U.S.C. 7133(a)) is amended by adding at the end the following:

''(12) Emergency response functions, including assistance in the prevention of, or in the response to, an emergency disruption of energy supply, transmission, and distribution.''.

SA 3215. Mr. CARDIN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44___. EXEMPTION FROM COST-SHARING REQUIREMENTS FOR CERTAIN RESEARCH AND DEVELOPMENT PROGRAMS.

Section 988 of the Energy Policy Act of 2005 (42 U.S.C. 16352) is amended by adding at the end the following:

''(g) EXEMPTION.—The Secretary may exempt from the requirements of subsection (b) a small business concern (as defined in section 3 of the Small Business Act (15 U.S.C. 632)) that is eligible to receive an award under the SBIR program (as defined in section 9(e) of that Act (15 U.S.C. 638(e))) of the Department.''.

SA 3216. Mr. KAINE (for himself, Mr. VITTER, and Ms. BALDWIN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 3602 and insert the following:

SEC. 3602. ENERGY WORKFORCE PILOT GRANT PROGRAM.

(a) GRANTS FOR JOB TRAINING AND EDUCATION PROGRAMS.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary, in consultation with the Secretary of Labor, the Secretary of Education, and the Secretary of Transportation, shall establish a pilot program to award grants on a competitive basis to eligible entities for job training and education programs that lead to an industry-recognized credential.

(2) IMPLEMENTATION GRANTS.—The Secretary may award grants, to nonprofit organizations with a track record of at least 10 years of expertise in working with community colleges on developing workforce development programs, to provide assistance to the Secretary in implementing the requirements of this section, including developing the grant program described in paragraph (1).

(b) ELIGIBILITY.—To be eligible to receive a grant under subsection (a)(1), an entity shall be a public organization or a consortium of public organizations that—

(1) includes an advisory board with proportional participation, as determined by the Secretary, of relevant organizations, including representatives from—

(A) relevant energy industry organizations, including public and private employers;

(B) labor organizations;

(C) postsecondary education organizations; and

(D) workforce development boards;

(2) demonstrates experience in implementing and operating job training and education programs;

(3) demonstrates the ability to recruit individuals who plan to work in the energy industries, and support those individuals in the successful completion of relevant job training and education programs; and

(4) provides students who complete the proposed job training and education program with an industry-recognized credential.

(c) APPLICATIONS.—An eligible entity desiring a grant under subsection (1)(1) shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require, including a description of the proposed program leading to the industry-recognized credential.

(d) PRIORITY.—In selecting eligible entities to receive grants under subsection (a)(1), the Secretary shall prioritize an applicant that—

(1) provides the job training and education program through—

(A) a community college or institution of higher education that includes basic science and math education in the curriculum of the community college or institution of higher education; or

(B) an apprenticeship program registered with the Department of Labor or a State;

(2) works with the Secretary of Defense or a veterans organization to transition members of the Armed Forces and veterans to careers in the energy sector;

(3) works with an Indian tribe (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b));

(4) applies as a State or regional consortium, providing the job training and education program through a community college or institution of higher education described in paragraph (1), to leverage best practices already available in the State or region in which the community college or institution of higher education is located;

(5) is a consortium that includes a State-supported entity;

(6) includes an apprenticeship program registered with the Department of Labor or a State as part of the job training and education program;

(7) provides support services and career coaching;

(8) provides introductory energy workforce development activities;

(9) works with minority-serving institutions to provide job training to increase the number of skilled minorities and women in the energy sector;

(10) provides job training for displaced and unemployed workers in the energy sector;

(11) establishes a community college or 2-year technical college-based ''Center of Excellence'' for an energy and maritime workforce technical training program, such as a program of a community college located in a coastal area;

(12) is located in close proximity to marine or port facilities in the Gulf of Mexico, Atlantic Ocean, Pacific Ocean, or Great Lakes; or

(13) has established associations with—

(A) port authorities or other established seaport or inland port facilities; and

(B) appropriate Federal agencies.

(e) ADDITIONAL CONSIDERATION.—In making grants under subsection (a)(1), the Secretary shall consider regional diversity.

(f) LIMITATION ON APPLICATIONS.—An eligible entity may not submit, either individually or as part of a joint application, more than 1 application for a grant under subsection (a)(1) during any 1 fiscal year.

(g) LIMITATIONS ON AMOUNT OF GRANT.—The amount of an individual grant under subsection (a)(1) for any 1 year shall not exceed $1,000,000.

(h) COST SHARING.—

(1) FEDERAL SHARE.—The Federal share of the cost of a job training and education program carried out using a grant under subsection (a)(1) shall be not greater than 65 percent.

(2) NON-FEDERAL SHARE.—

(A) IN GENERAL.—Not less than 50 percent of the non-Federal share of the cost of a job training and education program carried out using a grant under subsection (a)(1) shall be provided in cash.

(B) LIMITATION.—Not more than 50 percent of the non-Federal contribution of the cost of a job training and education program carried out using a grant under subsection (a)(1) shall be in kind, fairly evaluated, including plant, equipment, or services.

(i) REDUCTION OF DUPLICATION.—Prior to submitting an application for a grant under subsection (a)(1), each applicant shall consult with the appropriate Federal agencies and coordinate the proposed activities of the applicant with existing State and local programs.

(j) TECHNICAL ASSISTANCE.—The Secretary shall provide technical assistance and capacity building to national and State energy partnerships, including the entities described in subsection (b)(1), to leverage the existing (as of the date of the provision) job training and education programs of the Department.

(k) REPORT.—The Secretary shall submit to Congress and make publicly available on the website of the Department an annual report on the program established under this section, including a description of—

(1) the entities receiving grants under subsection (a)(1);

(2) the activities carried out using the grants;

(3) best practices used to leverage the investment of the Federal Government;

(4) the rate of employment for participants after completing a job training and education program carried out using such a grant; and

(5) an assessment of the results achieved by the program established under this section.

(l) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $20,000,000 for each of fiscal years 2017 through 2020.

SA 3217. Mrs. SHAHEEN submitted an amendment intended to be proposed by her to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. SMALL BUSINESS ENERGY EFFICIENCY.

Section 501(d)(3) of the Small Business Investment Act of 1958 (15 U.S.C. 695(d)(3)) is amended—

(1) in subparagraph (K), by striking ''producers, or'' and inserting ''producers,'';

(2) in subparagraph (L), by striking the period at the end and inserting '', or''; and

(3) by inserting after subparagraph (L) the following:

''(M) enhanced ability for small business concerns to achieve savings through energy efficiency.''.

SA 3218. Ms. STABENOW (for herself, Mr. BOOZMAN, Ms. BALDWIN, Mr. CARPER, and Mr. ISAKSON) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 3703 and insert the following:

SEC. 3703. ELIGIBLE PROJECTS.

Section 1703(b)(1) of the Energy Policy Act of 2005 (42 U.S.C. 16513(b)(1)) is amended by inserting ''(excluding the burning, to generate electricity, of commonly recycled paper that has been segregated from solid waste to generate electricity or commonly recycled paper that is collected as part of a collection system that commingles the paper with other solid waste at any point from collection through the materials recovery process)'' after ''systems''.

SA 3219. Mr. CASEY submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

On page 370, strike lines 14 and 15 and insert the following:

proper voltage and frequency;

(vii) ensure the availability of a financial day-ahead transmission market that will be aligned with the existing financial monthly transmission market; and

(viii) provide an enhanced opportunity

SA 3220. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 325, strike line 9 and all that follows through page 327, line 5 and insert the following:

(1) DEFINITION OF RECYCLED CARBON FIBER.—In this subsection, the term ''recycled carbon fiber'' includes—

(A) carbon fiber composite recycling; and

(B) carbon fiber recovery or reuse of carbon fiber composites and the components of carbon fiber composites.

(2) STUDY.—The Secretary shall conduct a study on—

(A) the technology of recycled carbon fiber, carbon fiber recovery, and production waste carbon fiber; and

(B) the potential lifecycle energy savings and economic impact of recycled carbon fiber and carbon fiber recovery.

(3) FACTORS FOR CONSIDERATION.—In conducting the study under paragraph (2), the Secretary shall consider—

(A) the quantity of recycled carbon fiber, recovered carbon fiber, or production waste carbon fiber that would make the use of recycled carbon fiber, carbon fiber recovery, or production waste carbon fiber economically viable;

(B) any existing or potential barriers to carbon fiber recovery, recycling carbon fiber, or using recovered or recycled carbon fiber;

(C) any financial incentives that may be necessary for the development of carbon fiber recovery, recycled carbon fiber, or production waste carbon fiber;

(D) the potential lifecycle savings in energy from carbon fiber recovery or producing recycled carbon fiber, as compared to producing new carbon fiber;

(E) the best and highest uses for recovered carbon fiber and recycled carbon fiber;

(F) the potential reduction in carbon dioxide emissions from carbon fiber recovery and producing recycled carbon fiber, as compared to producing new carbon fiber;

(G) any economic benefits gained from using recovered carbon fiber and recycled carbon fiber or production waste carbon fiber;

(H) workforce training and skills needed to address labor demands in the development of recovered carbon fiber and recycled carbon fiber or production waste carbon fiber; and

(I) how the Department can leverage existing efforts in the industry on the use of production waste carbon fiber.

(4) REPORT.—Not later than 1 year after the date of enactment of this Act, the Secretary shall submit to Congress a report describing the results of the study conducted under paragraph (2).

(b) RECYCLED CARBON FIBER DEMONSTRATION PROJECT.—On completion of the study required under subsection (a)(2), the Secretary shall consult with the

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SA 3221. Mr. UDALL (for himself, Mr. PORTMAN, Mrs. BOXER, Mr. ALEXANDER, Mr. WYDEN, and Mr. BROWN) submitted an amendment intended to be proposed by him to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. WATERSENSE.

(a) IN GENERAL.—Part B of title III of the Energy Policy and Conservation Act is amended by adding after section 324A (42 U.S.C. 6294a) the following:

''SEC. 324B. WATERSENSE.

''(a) ESTABLISHMENT OF WATERSENSE PROGRAM.—

''(1) IN GENERAL.—There is established within the Environmental Protection Agency a voluntary WaterSense program to identify and promote water-efficient products, buildings, landscapes, facilities, processes, and services that, through voluntary labeling of, or other forms of communications regarding, products, buildings, landscapes, facilities, processes, and services while meeting strict performance criteria, sensibly—

''(A) reduce water use;

''(B) reduce the strain on public and community water systems and wastewater and stormwater infrastructure;

''(C) conserve energy used to pump, heat, transport, and treat water; and

''(D) preserve water resources for future generations.

''(2) INCLUSIONS.—The Administrator of the Environmental Protection Agency (referred to in this section as the 'Administrator') shall, consistent with this section, identify water-efficient products, buildings, landscapes, facilities, processes, and services, including categories such as—

''(A) irrigation technologies and services;

''(B) point-of-use water treatment devices;

''(C) plumbing products;

''(D) reuse and recycling technologies;

''(E) landscaping and gardening products, including moisture control or water enhancing technologies;

''(F) xeriscaping and other landscape conversions that reduce water use;

''(G) whole house humidifiers; and

''(H) water-efficient buildings or facilities.

''(b) DUTIES.—The Administrator, coordinating as appropriate with the Secretary, shall—

''(1) establish—

''(A) a WaterSense label to be used for items meeting the certification criteria established in accordance with this section; and

''(B) the procedure, including the methods and means, and criteria by which an item may be certified to display the WaterSense label;

''(2) enhance public awareness regarding the WaterSense label through outreach, education, and other means;

''(3) preserve the integrity of the WaterSense label by—

''(A) establishing and maintaining feasible performance criteria so that products, buildings, landscapes, facilities, processes, and services labeled with the WaterSense label perform as well or better than less water-efficient counterparts;

''(B) overseeing WaterSense certifications made by third parties;

''(C) as determined appropriate by the Administrator, using testing protocols, from the appropriate, applicable, and relevant consensus standards, for the purpose of determining standards compliance; and

''(D) auditing the use of the WaterSense label in the marketplace and preventing cases of misuse; and

''(4) not more often than 6 years after adoption or major revision of any WaterSense specification, review and, if appropriate, revise the specification to achieve additional water savings;

''(5) in revising a WaterSense specification—

''(A) provide reasonable notice to interested parties and the public of any changes, including effective dates, and an explanation of the changes;

''(B) solicit comments from interested parties and the public prior to any changes;

''(C) as appropriate, respond to comments submitted by interested parties and the public; and

''(D) provide an appropriate transition time prior to the applicable effective date of any changes, taking into account the timing necessary for the manufacture, marketing, training, and distribution of the specific water-efficient product, building, landscape, process, or service category being addressed; and

''(6) not later than December 31, 2018, consider for review and revision any WaterSense specification adopted before January 1, 2012.

''(c) TRANSPARENCY.—The Administrator shall, to the maximum extent practicable and not less than annually, regularly estimate and make available to the public the production and relative market shares and savings of water, energy, and capital costs of water, wastewater, and stormwater attributable to the use of WaterSense-labeled products, buildings, landscapes, facilities, processes, and services.

''(d) DISTINCTION OF AUTHORITIES.—In setting or maintaining specifications for Energy Star pursuant to section 324A, and WaterSense under this section, the Secretary and Administrator shall coordinate to prevent duplicative or conflicting requirements among the respective programs.

''(e) NO WARRANTY.—A WaterSense label shall not create an express or implied warranty.''.

(b) CONFORMING AMENDMENT.—The table of contents for the Energy Policy and Conservation Act (42 U.S.C. prec. 6201) is amended by inserting after the item relating to section 324A the following:

''Sec. 324B. WaterSense.''.

SA 3222. Mr. WYDEN (for himself and Mr. MANCHIN) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title II, add the following:

SEC. 220__. MARKET-DRIVEN REINSTATEMENT OF OIL EXPORT BAN.

(a) DEFINITIONS.—In this section:

(1) AVERAGE NATIONAL PRICE OF GASOLINE.—The term ''average national price of gasoline'' means the average of retail regular gasoline prices in the United States, as calculated (on a weekday basis) by, and published on the Internet website of, the Energy Information Administration.

(2) GASOLINE INDEX PRICE.—The term ''gasoline index price'' means the average of retail regular gasoline prices in the United States, as calculated (on a monthly basis) by, and published on the Internet website of, the Energy Information Administration, during the 60-month period preceding the date of the calculation.

(b) REINSTATEMENT OF OIL EXPORT BAN.—

(1) IN GENERAL.—Effective on the date on which the event described in paragraph (2) occurs, subsections (a), (b), (c), and (d) of section 101 of division O of the Consolidated Appropriations Act, 2016 (Public Law 114–113), are repealed, and the provisions of law amended or repealed by those subsections are restored or revived as if those subsections had not been enacted.

(2) EVENT DESCRIBED.—The event referred to in paragraph (1) is the date on which the average national price of gasoline has been 50 percent greater than the gasoline index price for 30 consecutive days.

(c) PRESIDENTIAL AUTHORITY.—Notwithstanding subsection (b), the President may affirmatively allow the export of crude oil from the United States to continue for a period of not more than 1 year after the date of the reinstatement described in subsection (b), if the President—

(1) declares a national emergency and formally notices the declaration of a national emergency in the Federal Register; or

(2) finds and reports to Congress that a ban on the export of crude oil pursuant to this section has caused undue economic hardship.

(d) EFFECTIVE DATE.—This section takes effect on the date that is 5 years after the date of enactment of the Consolidated Appropriations Act, 2016 (Public Law 114–113).

SA 3223. Mrs. FEINSTEIN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. GREENHOUSE GAS EMISSIONS REPORT.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Energy Information Administration shall prepare and publish a report on the influence of the provisions of this Act on greenhouse gas emissions.

SA 3224. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title IV, add the following:

SEC. 42___. CLEAN ENERGY TECHNOLOGY INNOVATION REGIONAL PARTNERSHIPS.

(a) PURPOSE.—The purpose of this section is to accelerate the pace of innovation in clean energy technologies through the formation of regional clean energy innovation partnerships that are responsive to the energy resources, customer needs, and innovation capabilities of various regions of the country.

(b) DEFINITION OF CLEAN ENERGY TECHNOLOGY.—In this section, the term ''clean energy technology'' means any process or product, or system of products and processes, that—

(1) can be applied at any stage of the energy cycle, from production to consumption, the application of which will result in the reduction of net greenhouse gas emissions; and

(2) can result in the reduction of 1 or more of—

(A) demand for water resources;

(B) waste;

(C) emissions of air pollutants other than greenhouse gas emissions; or

(D) concentrations of contaminants in wastewater discharges.

(c) RESEARCH AND DEVELOPMENT PROGRAM.—

(1) IN GENERAL.—The Secretary shall carry out a program of research, development, demonstration, and commercial application of clean energy technologies through regional clean energy innovation partnerships established under subsection (e).

(2) DELEGATION AUTHORIZED.—The Secretary may delegate the responsibilities of the Secretary under this subsection, on the condition that—

(A) sufficient high-level management oversight is maintained; and

(B) the partnerships are implemented as a cross-cutting initiative not subject to any single technology program.

(d) CLEAN ENERGY INNOVATION REGIONS.—

(1) ESTABLISHMENT.—The Secretary shall by rulemaking establish up to 10 clean energy regions in the United States based on the analysis and application of the criteria described in paragraph (2).

(2) CRITERIA.—The criteria referred to in paragraph (1) include—

(A)(i) geographic continuity; or

(ii) in the case of Alaska, Hawaii, and the territories and possessions of the United States, geographic similarities; and

(B) the presence of major energy innovation resources, including research universities, National Laboratories (as defined in section 2 of the Energy Policy Act of 2005 (42 U.S.C. 15801)), and other research institutions.

(3) STATES.—The Secretary shall place a State in only 1 region under this subsection.

(e) CLEAN ENERGY INNOVATION REGIONAL PARTNERSHIPS.—

(1) ESTABLISHMENT.—The Secretary may, through an open, competitive process, select for designation as a clean energy innovation regional partnership not more than 1 eligible partnership, consisting of 2 or more eligible entities, for each region established under subsection (d).

(2) ELIGIBILITY.—Entities eligible to be part of a partnership include—

(A) institutions of higher education;

(B) National Laboratories;
(C) other research institutions;
(D) units of State or local government;
(E) tribal governments;
(F) regional organizations;
(G) economic development organizations; and
(H) non-governmental entities and corporations.

(3) REQUIREMENT FOR PARTNERSHIPS.—To be eligible to be selected as a clean energy innovation regional partnership under paragraph (1), a partnership shall be an organization described in section 501(c) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of that Code.

(4) APPLICATION PROCESS.—An eligible partnership desiring selection as a clean energy innovation regional partnership under paragraph (1) shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require, including, at a minimum—

(A) a description of all entities comprising the proposed partnership;

(B) identification of appropriate information on the qualifications of the key management personnel of the proposed partnership;

(C) a full description of the governance structure and management processes of the partnership, including conflict of interest policy;

(D) a description of the policies and procedures for managing new intellectual property created by the partnership;

(E) a description of how the applicant would carry out the activities of the clean energy innovation regional partnership, as described in this subsection; and

(F) a recommendation for the clean energy innovation regional partnership program of the scope of work for initial year activities and future program focus.

(5) SELECTION CRITERIA.—The Secretary shall establish criteria for the selection of clean energy innovation regional partnerships, including—

(A) strength of the governance structure, including representation of the regional energy economy;

(B) expertise and experience of key research management personnel;

(C) demonstrated knowledge of regional energy markets and technologies;

(D) capability for regional energy analysis and planning;

(E) capability to conduct assessments of innovative clean energy technologies;

(F) commitments of co-funding from non-Federal sources;

(G) capability for attracting matching funds from both non-Federal and non-governmental sources for follow-on investment in widespread application of successful projects; and

(H) capability and experience in managing technology transfer programs.

(6) FUNCTIONS.—A clean energy innovation regional partnership selected under this subsection shall be responsible for—

(A) developing an annual clean energy regional innovation plan;

(B) establishing open, transparent processes for soliciting project applications consistent with the plan;

(C) selecting projects for financial assistance;

(D) awarding financial assistance, including grants, cost-sharing, prizes, revolving funds and loans, or other forms of credit enhancement;

(E) incentivizing collaborative research, development, demonstration, and deployment programs within the designated region of the partnership;

(F) facilitating the use of National Laboratory resources and other Federal research facilities;

(G) collaborating with other funding entities to provide financial assistance for regional clean energy innovation projects consistent with the annual plan developed under subparagraph (A);

(H) arranging for sharing of prototyping and production facilities for clean energy technologies;

(I) promoting training opportunities in clean energy technologies;

(J) providing information sharing and conducting technology transfer activities, including assistance to clean energy technology start-up ventures;

(K) coordinating with other regional clean energy innovation partnerships on projects relevant to more than 1 region; and

(L) performing such other duties and providing such reports as the Secretary may require.

(7) LIMITATIONS.—A clean energy innovation regional partnership selected under this subsection shall not—

(A) perform in-house research, development, demonstration, or deployment activities; or

(B) use Federal funding for the construction or rehabilitation of buildings or facilities.

(8) CONFLICT OF INTEREST.—

(A) PROCEDURES.—The Secretary shall establish procedures—

(i) to ensure that each board member, officer, or employee of the clean energy innovation regional partnership selected under this subsection who is in a decision making capacity to exercise any of the functions described in paragraph (6) shall disclose to the Secretary any financial interests in, or financial relationships with, applicants for, or recipients of, awards under this section, including any financial interests in, or financial relationships with, applicants for, or recipients of, awards under this section of the spouse or minor child of the board member, officer, or employee; and

(ii) to require any board member, officer, or employee with a financial relationship or interest disclosed under clause (i) to recuse himself or herself from any oversight functions under paragraph (6) with respect to that applicant or recipient.

(B) FAILURE TO COMPLY.—The Secretary may disqualify an application or revoke an award under this section if a board member, officer, or employee has failed to comply with procedures required under subparagraph (A).

(f) FUNDING AGREEMENT.—

(1) MULTIYEAR AGREEMENT.—The Secretary may enter into a funding agreement for up to 5 years, with options for renewal, with each clean energy innovation regional partnership selected under this subsection.

(2) FUNDING INSTRUMENT.—The Secretary may fund agreements under paragraph (1) through grants, cooperative agreements, or other transactions under section 646 of the Department of Energy Organization Act (42 U.S.C. 7256), as determined appropriate by the Secretary.

(3) FUNDING LIMITATIONS.—

(A) IN GENERAL.—Each funding agreement entered into under paragraph (1) shall be subject to the funding levels and allocations established by the Secretary under subsection (j).

(B) ADDITIONAL LIMITATION.—No funds shall be provided under an agreement entered into under paragraph (1) for the cost of—

(i) facilities occupied by the clean energy innovation regional partnership; or

(ii) any in-house research project activities as described in subsection (e)(7)(A).

(g) ANNUAL PLAN.—

(1) IN GENERAL.—Each clean energy innovation regional partnership shall carry out a program pursuant to an annual plan prepared by the partnership and approved by the Secretary.

(2) PLAN CONTENT.—The annual plan shall—

(A) describe the ongoing and prospective activities of the partnership; and

(B) meet the requirements established by the Secretary under paragraph (3).

(3) REQUIREMENTS.—The Secretary shall establish requirements for the content of each annual plan, which shall include—

(A) a proposed portfolio of clean energy programs and projects, including both individual technologies and system approaches, reflecting regional characteristics and priorities, with priority given to clean energy technologies that meet the most characteristics described in subsection (e)(5);

(B) a description of the process, including a list of any solicitations, for making awards to carry out research development, demonstration, or commercial application activities, including—

(i) the topics of those activities;

(ii) a description of who would be eligible to apply;

(iii) selection criteria to be used; and

(iv) the duration of awards;

(C) a description of the status of ongoing projects, including the progress in meeting project milestones;

(D) a description of the policies and procedures for managing the dissemination of new intellectual property developed under the annual plan;

(E) a description of technology transfer and commercialization activities that may follow from successful projects; and

(F) a description of all other activities planned to carry out the functions described subsection (e)(6).

(4) PLAN DEVELOPMENT.—

(A) SOLICITATION RECOMMENDATIONS.—Before drafting an annual plan under this subsection, each clean energy innovation regional partnership shall establish a process to solicit specific written recommendations from stakeholders within the region.

(B) CONSULTATION.—Each clean energy innovation regional partnership shall consult regularly with the Secretary in the preparation of the annual plan.

(5) PUBLICATION.—The Secretary shall publish in the Federal Register, and provide opportunity for comment for, each annual plan submitted under this subsection.

(6) PLAN APPROVAL.—

(A) IN GENERAL.—The Secretary shall review and approve or disapprove, in whole or in part, each annual plan submitted under this subsection.

(B) AUTOMATIC APPROVAL.—If the Secretary does not approve or disapprove an annual plan by the date that is 60 days after the date of submission of the annual plan, the annual shall be deemed approved.

(7) PLAN IMPLEMENTATION.—

(A) AWARDS.—On approval of the annual plan by the Secretary, each clean energy innovation regional partnership shall make awards to research performers to carry out research, development, demonstration, and commercial application activities under the program under this section.

(B) CONFLICT OF INTEREST.—An entity that is a member of the clean energy innovation regional partnership may receive an award under subparagraph (A) on the condition that the conflict of interest procedures described in subsection (e)(8)(A) are followed.

(C) OVERSIGHT.—The clean energy innovation regional partnership shall oversee the implementation of awards under this subsection, consistent with the annual plan of the clean energy innovation regional partnership, including through—

(i) disbursing funds; and

(ii) monitoring activities carried by the recipient of an award for compliance with the terms and conditions of the award.

(h) ADMINISTRATIVE COSTS.—

(1) AUTHORIZATION.—The Secretary may allow each clean energy innovation regional partnership to allocate a portion, not to exceed 10 percent in any 1 fiscal year, of the funding received under subsection (f), to be used to implement the annual plan of the clean energy innovation regional partnership.

(2) ADVANCE.—The Secretary may advance funds to a clean energy innovation regional partnership on or after the date of selection of the clean energy innovation regional partnership under subsection (e)(1), which shall be deducted from amounts to be provided in the funding agreement entered into under subsection (f).

(i) AUDIT.—The Secretary shall audit each clean energy innovation regional partnership on a periodic basis, as appropriate, to determine the extent to which funds provided to each clean energy innovation regional partnership, and funds provided under awards made under subsection (g)(7)(A) have been expended in a manner consistent with the purposes and requirements of this section.

(j) FUNDING.—

(1) FUND ESTABLISHMENT.—There is established in the Treasury of the United States a trust fund to be known as the ''Clean Energy Innovation Regional Partnership Fund'' (referred to in this subsection as the ''Fund'').

(2) AUTHORIZATION.—The Secretary of the Treasury may transfer to the Fund, from the General Fund of the Treasury—

(A) for fiscal 2017, $110,000,000;

(B) for fiscal 2018, $500,000,000;

(C) for fiscal 2019, $800,000,000;

(D) for fiscal 2020, $1,350,000,000; and

(E) for fiscal 2021, $1,750,000,000.

(3) AVAILABILITY.—

(A) PERIOD.—Amounts transferred to the Fund under paragraph (2) shall remain available until expended.

(B) OBLIGATION AUTHORITY.—Amounts in the Fund shall be available to the Secretary for obligation under this section only in amounts provided in annual appropriations Acts.

(4) ALLOCATION.—The Secretary shall allocate the funding available for obligation under paragraph (3) for each fiscal year among approved annual plans for clean energy innovation regional partnerships based on a formula that takes into account certain criteria that include—

(A) regional energy consumption expenditures;

(B) regional energy production levels;

(C) regional Population; and

(D) such other region-specific factors that the Secretary may specify.

(5) STUDY; REPORT.—

(A) STUDY.—The Secretary shall conduct a study of the feasibility of establishing 1 or more funding sources that can provide a dedicated, stable source of financing for clean energy innovation regional partnership.

(B) REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall submit to Congress a report that contains findings and recommendations based on the study conducted under subparagraph (A).

SA 3225. Mr. GARDNER submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. VOLUNTARY VEGETATION MANAGEMENT OUTSIDE RIGHTS-OF-WAY.

(a) AUTHORIZATION.—The Secretary of the Interior or the Secretary of Agriculture may authorize an owner or operator of an electric transmission or distribution facility to manage vegetation selectively within 150 feet of the exterior boundary of the right-of-way near structures for selective thinning and fuel reduction.

(b) REQUIREMENTS.—Management of vegetation under this section shall—

(1) be limited to wildfire prevention, such as hazardous fuel buildup near structures and hazard trees;

(2) be at the expense of the right-of-way holder; and

(3) not include commercial timber harvesting, logging, prescribed burning, or clear cutting.

(c) STATUS OF REMOVED VEGETATION.—Any vegetation removed pursuant to this section shall be the property of the United States and not available for sale by the owner or operator.

(d) LIMITATION ON LIABILITY.—An owner or operator of an electric transmission or distribution facility shall not be held liable for wildfire, damage, loss, or injury, including the cost of fire suppression, resulting from activities carried out pursuant to subsection (a), except in the case of harm resulting from the gross negligence or criminal misconduct of the owner or operator.

SA 3226. Mr. THUNE submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44___. BLACK HILLS NATIONAL CEMETERY BOUNDARY MODIFICATION.

(a) DEFINITIONS.—In this section:

(1) CEMETERY.—The term ''Cemetery'' means the Black Hills National Cemetery in Sturgis, South Dakota.

(2) FEDERAL LAND.—The term ''Federal land'' means the approximately 200 acres of Bureau of Land Management land adjacent to the Cemetery, generally depicted as ''Proposed National Cemetery Expansion'' on the map entitled ''Proposed Expansion of Black Hills National Cemetery-South Dakota'' and dated September 28, 2015.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(b) TRANSFER AND WITHDRAWAL OF BUREAU OF LAND MANAGEMENT LAND FOR CEMETERY USE.—

(1) TRANSFER OF ADMINISTRATIVE JURISDICTION.—

(A) IN GENERAL.—Subject to valid existing rights, administrative jurisdiction over the Federal land is transferred from the Secretary to the Secretary of Veterans Affairs for use as a national cemetery in accordance with chapter 24 of title 38, United States Code.

(B) LEGAL DESCRIPTIONS.—

(i) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary shall publish in the Federal Register a notice containing a legal description of the Federal land.

(ii) EFFECT.—A legal description published under clause (i) shall have the same force and effect as if included in this section, except that the Secretary may correct any clerical and typographical errors in the legal description.

(iii) AVAILABILITY.—Copies of the legal description published under clause (i) shall be available for public inspection in the appropriate offices of—

(I) the Bureau of Land Management; and

(II) the National Cemetery Administration.

(iv) COSTS.—The Secretary of Veterans Affairs shall reimburse the Secretary for the costs incurred by the Secretary in carrying out this subparagraph, including the costs of any surveys and other reasonable costs.

(2) WITHDRAWAL.—Subject to valid existing rights, for any period during which the Federal land is under the administrative jurisdiction of the Secretary of Veterans Affairs, the Federal land—

(A) is withdrawn from all forms of appropriation under the public land laws, including the mining laws, the mineral leasing laws, and the geothermal leasing laws; and

(B) shall be treated as property as defined under section 102(9) of title 40, United States Code.

(3) BOUNDARY MODIFICATION.—The boundary of the Cemetery is modified to include the Federal land.

(4) MODIFICATION OF PUBLIC LAND ORDER.—Public Land Order 2112, dated June 6, 1960 (25 Fed. Reg. 5243), is modified to exclude the Federal land.

(c) SUBSEQUENT TRANSFER OF ADMINISTRATIVE JURISDICTION.—

(1) NOTICE.—On a determination by the Secretary of Veterans Affairs that all or a portion of the Federal land is not being used for purposes of the Cemetery, the Secretary of Veterans Affairs shall notify the Secretary of the determination.

(2) TRANSFER OF ADMINISTRATIVE JURISDICTION.—Subject to paragraphs (3) and (4), the Secretary of Veterans Affairs shall transfer to the Secretary administrative jurisdiction over the Federal land subject to a notice under paragraph (1).

(3) DECONTAMINATON.—The Secretary of Veterans Affairs shall be responsible for the costs of any decontamination of the Federal land subject to a notice under paragraph (1) that the Secretary determines to be necessary for the Federal land to be restored to public land status.

(4) RESTORATION TO PUBLIC LAND STATUS.—The Federal land subject to a notice under paragraph (1) shall only be restored to public land status on—

(A) acceptance by the Secretary of the Federal land subject to the notice; and

(B) a determination by the Secretary that the Federal land subject to the notice is suitable for—

(i) restoration to public land status; and

(ii) the operation of 1 or more of the public land laws with respect to the Federal land.

(5) ORDER.—If the Secretary accepts the Federal land under paragraph (4)(A) and makes a determination of suitability under paragraph (4)(B), the Secretary may—

(A) open the accepted Federal land to operation of 1 or more of the public land laws; and

(B) issue an order to carry out the opening authorized under subparagraph (A).

SA 3227. Mr. TILLIS submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44___. WILD HORSES IN AND AROUND THE CURRITUCK NATIONAL WILDLIFE REFUGE.

(a) AGREEMENT REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of the Interior (referred to in this section as the ''Secretary'') shall enter into an agreement with the Corolla Wild Horse Fund (a nonprofit corporation established under the laws of the State of North Carolina), the County of Currituck, North Carolina, and the State of North Carolina to provide for management of free-roaming wild horses in and around the Currituck National Wildlife Refuge.

(2) TERMS.—The agreement shall—

(A) allow a herd of not fewer than 110 and not more than 130 free-roaming wild horses in and around the refuge, with a target population of between 120 and 130 free-roaming wild horses;

(B) provide for cost-effective management of the horses while ensuring that natural resources within the refuge are not adversely impacted;

(C) provide for introduction of a small number of free-roaming wild horses from the herd at Cape Lookout National Seashore as is necessary to maintain the genetic viability of the herd in and around the Currituck National Wildlife Refuge; and

(D) specify that the Corolla Wild Horse Fund shall pay the costs associated with—

(i) coordinating a periodic census and inspecting the health of the horses;

(ii) maintaining records of the horses living in the wild and in confinement;

(iii) coordinating the removal and placement of horses and monitoring of any horses removed from the Currituck County Outer Banks; and

(iv) administering a viable population control plan for the horses, including auctions, adoptions, contraceptive fertility methods, and other viable options.

(b) CONDITIONS FOR EXCLUDING WILD HORSES FROM REFUGE.—The Secretary shall not exclude free-roaming wild horses from any portion of the Currituck National Wildlife Refuge unless—

(1) the Secretary finds that the presence of free-roaming wild horses on a portion of that refuge threatens the survival of an endangered species for which that land is designated as critical habitat under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.);

(2) the finding is based on a credible peer-reviewed scientific assessment; and

(3) the Secretary provides a period of public notice and comment on that finding.

(c) REQUIREMENTS FOR INTRODUCTION OF HORSES FROM CAPE LOOKOUT NATIONAL SEASHORE.—During the effective period of the memorandum of understanding between the National Park Service and the Foundation for Shackleford Horses, Inc. (a non-profit corporation organized under the laws of and doing business in the State of North Carolina) signed in 2007, no horse may be removed from Cape Lookout National Seashore for introduction at Currituck National Wildlife Refuge except—

(1) with the approval of the Foundation; and

(2) consistent with the terms of the memorandum (or any successor agreement) and the Management Plan for the Shackleford Banks Horse Herd signed in January 2006 (or any successor management plan).

(d) NO LIABILITY CREATED.—Nothing in this section creates liability for the United States for any damage caused by the free-roaming wild horses to any person or property located inside or outside the boundaries of the Currituck National Wildlife Refuge.

SA 3228. Ms. MURKOWSKI (for herself and Ms. CANTWELL) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At end, add the following:

TITLE VI—NATURAL RESOURCES

Subtitle A—Land Conveyances and Related Matters

SEC. 6001. ARAPAHO NATIONAL FOREST BOUNDARY ADJUSTMENT.

(a) IN GENERAL.—The boundary of the Arapaho National Forest in the State of Colorado is adjusted to incorporate the approximately 92.95 acres of land generally depicted as ''The Wedge'' on the map entitled ''Arapaho National Forest Boundary Adjustment'' and dated November 6, 2013, and described as lots three, four, eight, and nine of section 13, Township 4 North, Range 76 West, Sixth Principal Meridian, Colorado. A lot described in this subsection may be included in the boundary adjustment only after the Secretary of Agriculture obtains written permission for such action from the lot owner or owners.

(b) BOWEN GULCH PROTECTION AREA.—The Secretary of Agriculture shall include all Federal land within the boundary described in subsection (a) in the Bowen Gulch Protection Area established under section 6 of the Colorado Wilderness Act of 1993 (16 U.S.C. 539j).

(c) LAND AND WATER CONSERVATION FUND.—For purposes of section 200306(a)(2)(B)(i) of title 54, United States Code, the boundaries of the Arapaho National Forest, as modified under subsection (a), shall be considered to be the boundaries of the Arapaho National Forest as in existence on January 1, 1965.

(d) PUBLIC MOTORIZED USE.—Nothing in this section opens privately owned lands within the boundary described in subsection (a) to public motorized use.

(e) ACCESS TO NON-FEDERAL LANDS.—Notwithstanding the provisions of section 6(f) of the Colorado Wilderness Act of 1993 (16 U.S.C. 539j(f)) regarding motorized travel, the owners of any non-Federal lands within the boundary described in subsection (a) who historically have accessed their lands through lands now or hereafter owned by the United States within the boundary described in subsection (a) shall have the continued right of motorized access to their lands across the existing roadway.

SEC. 6002. LAND CONVEYANCE, ELKHORN RANCH AND WHITE RIVER NATIONAL FOREST, COLORADO.

(a) LAND CONVEYANCE REQUIRED.—Consistent with the purpose of the Act of March 3, 1909 (43 U.S.C. 772), all right, title, and interest of the United States (subject to subsection (b)) in and to a parcel of land consisting of approximately 148 acres as generally depicted on the map entitled ''Elkhorn Ranch Land Parcel–White River National Forest'' and dated March 2015 shall be conveyed by patent to the Gordman-Leverich Partnership, a Colorado Limited Liability Partnership (in this section referred to as ''GLP'').

(b) EXISTING RIGHTS.—The conveyance under subsection (a)—

(1) is subject to the valid existing rights of the lessee of Federal oil and gas lease COC–75070 and any other valid existing rights; and

(2) shall reserve to the United States the right to collect rent and royalty payments on the lease referred to in paragraph (1) for the duration of the lease.

(c) EXISTING BOUNDARIES.—The conveyance under subsection (a) does not modify the exterior boundary of the White River National Forest or the boundaries of Sections 18 and 19 of Township 7 South, Range 93 West, Sixth Principal Meridian, Colorado, as such boundaries are in effect on the date of the enactment of this Act.

(d) TIME FOR CONVEYANCE; PAYMENT OF COSTS.—The conveyance directed under subsection (a) shall be completed not later than 180 days after the date of the enactment of this Act. The conveyance shall be without consideration, except that all costs incurred by the Secretary of the Interior relating to any survey, platting, legal description, or other activities carried out to prepare and issue the patent shall be paid by GLP to the Secretary prior to the land conveyance.

SEC. 6003. LAND EXCHANGE IN CRAGS, COLORADO.

(a) PURPOSES.—The purposes of this section are—

(1) to authorize, direct, expedite, and facilitate the land exchange set forth herein; and

(2) to promote enhanced public outdoor recreational and natural resource conservation opportunities in the Pike National Forest near Pikes Peak, Colorado, via acquisition of the non-Federal land and trail easement.

(b) DEFINITIONS.—In this section:

(1) BHI.—The term ''BHI'' means Broadmoor Hotel, Inc., a Colorado corporation.

(2) FEDERAL LAND.—The term ''Federal land'' means all right, title, and interest of the United States in and to approximately 83 acres of land within the Pike National Forest, El Paso County, Colorado, together with a non-exclusive perpetual access easement to BHI to and from such land on Forest Service Road 371, as generally depicted on the map entitled ''Proposed Crags Land Exchange–Federal Parcel–Emerald Valley Ranch'', dated March 2015.

(3) NON-FEDERAL LAND.—The term ''non-Federal land'' means the land and trail easement to be conveyed to the Secretary by BHI in the exchange and is—

(A) approximately 320 acres of land within the Pike National Forest, Teller County, Colorado, as generally depicted on the map entitled ''Proposed Crags Land Exchange–Non-Federal Parcel–Crags Property'', dated March 2015; and

(B) a permanent trail easement for the Barr Trail in El Paso County, Colorado, as generally depicted on the map entitled ''Proposed Crags Land Exchange–Barr Trail Easement to United States'', dated March 2015, and which shall be considered as a voluntary donation to the United States by BHI for all purposes of law.

(4) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture, unless otherwise specified.

(c) LAND EXCHANGE.—

(1) IN GENERAL.—If BHI offers to convey to the Secretary all right, title, and interest of BHI in and to the non-Federal land, the Secretary shall accept the offer and simultaneously convey to BHI the Federal land.

(2) LAND TITLE.—Title to the non-Federal land conveyed and donated to the Secretary under this section shall be acceptable to the Secretary and shall conform to the title approval standards of the Attorney General of the United States applicable to land acquisitions by the Federal Government.

(3) PERPETUAL ACCESS EASEMENT TO BHI.—The nonexclusive perpetual access easement to be granted to BHI as shown on the map referred to in subsection (b)(2) shall allow—

(A) BHI to fully maintain, at BHI's expense, and use Forest Service Road 371 from its junction with Forest Service Road 368 in accordance with historic use and maintenance patterns by BHI; and

(B) full and continued public and administrative access and use of FSR 371 in accordance with the existing Forest Service travel management plan, or as such plan may be revised by the Secretary.

(4) ROUTE AND CONDITION OF ROAD.—BHI and the Secretary may mutually agree to improve, relocate, reconstruct, or otherwise alter the route and condition of all or portions of such road as the Secretary, in close consultation with BHI, may determine advisable.

(5) EXCHANGE COSTS.—BHI shall pay for all land survey, appraisal, and other costs to the Secretary as may be necessary to process and consummate the exchange directed by this section, including reimbursement to the Secretary, if the Secretary so requests, for staff time spent in such processing and consummation.

(d) EQUAL VALUE EXCHANGE AND APPRAISALS.—

(1) APPRAISALS.—The values of the lands to be exchanged under this section shall be determined by the Secretary through appraisals performed in accordance with—

(A) the Uniform Appraisal Standards for Federal Land Acquisitions;

(B) the Uniform Standards of Professional Appraisal Practice;

(C) appraisal instructions issued by the Secretary; and

(D) shall be performed by an appraiser mutually agreed to by the Secretary and BHI.

(2) EQUAL VALUE EXCHANGE.—The values of the Federal and non-Federal land parcels exchanged shall be equal, or if they are not equal, shall be equalized as follows:

(A) SURPLUS OF FEDERAL LAND VALUE.—If the final appraised value of the Federal land exceeds the final appraised value of the non-Federal land parcel identified in subsection (b)(3)(A), BHI shall make a cash equalization payment to the United States as necessary to achieve equal value, including, if necessary, an amount in excess of that authorized pursuant to section 206(b) of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1716(b)).

(B) USE OF FUNDS.—Any cash equalization moneys received by the Secretary under subparagraph (A) shall be—

(i) deposited in the fund established under Public Law 90–171 (commonly known as the ''Sisk Act''; 16 U.S.C. 484a); and

(ii) made available to the Secretary for the acquisition of land or interests in land in Region 2 of the Forest Service.

(C) SURPLUS OF NON-FEDERAL LAND VALUE.—If the final appraised value of the non-Federal land parcel identified in subsection (b)(3)(A) exceeds the final appraised value of the Federal land, the United States shall not make a cash equalization payment to BHI, and surplus value of the non-Federal land shall be considered a donation by BHI to the United States for all purposes of law.

(3) APPRAISAL EXCLUSIONS.—

(A) SPECIAL USE PERMIT.—The appraised value of the Federal land parcel shall not reflect any increase or diminution in value due to the special use permit existing on the date of the enactment of this Act to BHI on the parcel and improvements thereunder.

(B) BARR TRAIL EASEMENT.—The Barr Trail easement donation identified in subsection (b)(3)(B) shall not be appraised for purposes of this section.

(e) MISCELLANEOUS PROVISIONS.—

(1) WITHDRAWAL PROVISIONS.—

(A) WITHDRAWAL.—Lands acquired by the Secretary under this section shall, without further action by the Secretary, be permanently withdrawn from all forms of appropriation and disposal under the public land laws (including the mining and mineral leasing laws) and the Geothermal Steam Act of 1930 (30 U.S.C. 1001 et seq.).

(B) WITHDRAWAL REVOCATION.—Any public land order that withdraws the Federal land from appropriation or disposal under a public land law shall be revoked to the extent necessary to permit disposal of the Federal land parcel to BHI.

(C) WITHDRAWAL OF FEDERAL LAND.—All Federal land authorized to be exchanged under this section, if not already withdrawn or segregated from appropriation or disposal under the public lands laws upon enactment of this Act, is hereby so withdrawn, subject to valid existing rights, until the date of conveyance of the Federal land to BHI.

(2) POSTEXCHANGE LAND MANAGEMENT.—Land acquired by the Secretary under this section shall become part of the Pike-San Isabel National Forest and be managed in accordance with the laws, rules, and regulations applicable to the National Forest System.

(3) EXCHANGE TIMETABLE.—It is the intent of Congress that the land exchange directed by this section be consummated no later than 1 year after the date of the enactment of this Act.

(4) MAPS, ESTIMATES, AND DESCRIPTIONS.—

(A) MINOR ERRORS.—The Secretary and BHI may by mutual agreement make minor boundary adjustments to the Federal and non-Federal lands involved in the exchange, and may correct any minor errors in any map, acreage estimate, or description of any land to be exchanged.

(B) CONFLICT.—If there is a conflict between a map, an acreage estimate, or a description of land under this section, the map shall control unless the Secretary and BHI mutually agree otherwise.

(C) AVAILABILITY.—Upon enactment of this Act, the Secretary shall file and make available for public inspection in the headquarters of the Pike-San Isabel National Forest a copy of all maps referred to in this section.

SEC. 6004. CERRO DEL YUTA AND RÍO SAN ANTONIO WILDERNESS AREAS.

(a) DEFINITIONS.—In this section:

(1) MAP.—The term ''map'' means the map entitled ''Río Grande del Norte National Monument Proposed Wilderness Areas'' and dated July 28, 2015.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(3) WILDERNESS AREA.—The term ''wilderness area'' means a wilderness area designated by subsection (b)(1).

(b) DESIGNATION OF CERRO DEL YUTA AND RÍO SAN ANTONIO WILDERNESS AREAS.—

(1) IN GENERAL.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.), the following areas in the Río Grande del Norte National Monument are designated as wilderness and as components of the National Wilderness Preservation System:

(A) CERRO DEL YUTA WILDERNESS.—Certain land administered by the Bureau of Land Management in Taos County, New Mexico, comprising approximately 13,420 acres as generally depicted on the map, which shall be known as the ''Cerro del Yuta Wilderness''.

(B) RÍO SAN ANTONIO WILDERNESS.—Certain land administered by the Bureau of Land Management in Río Arriba County, New Mexico, comprising approximately 8,120 acres, as generally depicted on the map, which shall be known as the ''Río San Antonio Wilderness''.

(2) MANAGEMENT OF WILDERNESS AREAS.—Subject to valid existing rights, the wilderness areas shall be administered in accordance with the Wilderness Act (16 U.S.C. 1131 et seq.) and this section, except that with respect to the wilderness areas designated by this subsection—

(A) any reference to the effective date of the Wilderness Act shall be considered to be a reference to the date of enactment of this Act; and

(B) any reference in the Wilderness Act to the Secretary of Agriculture shall be considered to be a reference to the Secretary.

(3) INCORPORATION OF ACQUIRED LAND AND INTERESTS IN LAND.—Any land or interest in land within the boundary of the wilderness areas that is acquired by the United States shall—

(A) become part of the wilderness area in which the land is located; and

(B) be managed in accordance with—

(i) the Wilderness Act (16 U.S.C. 1131 et seq.);

(ii) this section; and

(iii) any other applicable laws.

(4) GRAZING.—Grazing of livestock in the wilderness areas, where established before the date of enactment of this Act, shall be administered in accordance with—

(A) section 4(d)(4) of the Wilderness Act (16 U.S.C. 1133(d)(4)); and

(B) the guidelines set forth in appendix A of the Report of the Committee on Interior and Insular Affairs to accompany H.R. 2570 of the 101st Congress (H. Rept. 101–405).

(5) BUFFER ZONES.—

(A) IN GENERAL.—Nothing in this section creates a protective perimeter or buffer zone around the wilderness areas.

(B) ACTIVITIES OUTSIDE WILDERNESS AREAS.—The fact that an activity or use on land outside a wilderness area can be seen or heard within the wilderness area shall not preclude the activity or use outside the boundary of the wilderness area.

(6) RELEASE OF WILDERNESS STUDY AREAS.—Congress finds that, for purposes of section 603(c) of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1782(c)), the public land within the San Antonio Wilderness Study Area not designated as wilderness by this subsection—

(A) has been adequately studied for wilderness designation;

(B) is no longer subject to section 603(c) of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1782(c)); and

(C) shall be managed in accordance with this section.

(7) MAPS AND LEGAL DESCRIPTIONS.—

(A) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary shall file the map and legal descriptions of the wilderness areas with—

(i) the Committee on Energy and Natural Resources of the Senate; and

(ii) the Committee on Natural Resources of the House of Representatives.

(B) FORCE OF LAW.—The map and legal descriptions filed under subparagraph (A) shall have the same force and effect as if included in this section, except that the Secretary may correct errors in the legal description and map.

(C) PUBLIC AVAILABILITY.—The map and legal descriptions filed under subparagraph (A) shall be on file and available for public inspection in the appropriate offices of the Bureau of Land Management.

(8) NATIONAL LANDSCAPE CONSERVATION SYSTEM.—The wilderness areas shall be administered as components of the National Landscape Conservation System.

(9) FISH AND WILDLIFE.—Nothing in this section affects the jurisdiction of the State of New Mexico with respect to fish and wildlife located on public land in the State.

(10) WITHDRAWALS.—Subject to valid existing rights, any Federal land within the wilderness areas designated by paragraph (1), including any land or interest in land that is acquired by the United States after the date of enactment of this Act, is withdrawn from—

(A) entry, appropriation, or disposal under the public land laws;

(B) location, entry, and patent under the mining laws; and

(C) operation of the mineral leasing, mineral materials, and geothermal leasing laws.

(11) TREATY RIGHTS.—Nothing in this section enlarges, diminishes, or otherwise modifies any treaty rights.

SEC. 6005. CLARIFICATION RELATING TO A CERTAIN LAND DESCRIPTION UNDER THE NORTHERN ARIZONA LAND EXCHANGE AND VERDE RIVER BASIN PARTNERSHIP ACT OF 2005.

Section 104(a)(5) of the Northern Arizona Land Exchange and Verde River Basin Partnership Act of 2005 (Public Law 109–110; 119 Stat. 2356) is amended by inserting before the period at the end '', which, notwithstanding section 102(a)(4)(B), includes the N½, NE¼, SW¼, SW¼, the N½, N½, SE¼, SW¼, and the N½, N½, SW¼, SE¼, sec. 34, T. 22 N., R. 2 E., Gila and Salt River Meridian, Coconino County, comprising approximately 25 acres''.

SEC. 6006. COOPER SPUR LAND EXCHANGE CLARIFICATION AMENDMENTS.

Section 1206(a) of the Omnibus Public Land Management Act of 2009 (Public Law 111–11; 123 Stat. 1018) is amended—

(1) in paragraph (1)—

(A) in subparagraph (C), by striking ''120 acres'' and inserting ''107 acres''; and

(B) in subparagraph (E)(ii), by inserting ''improvements,'' after ''buildings,''; and

(2) in paragraph (2)—

(A) in subparagraph (D)—

(i) in clause (i), by striking ''As soon as practicable after the date of enactment of this Act, the Secretary and Mt. Hood Meadows shall select'' and inserting ''Not later than 120 days after the date of the enactment of the Energy Policy Modernization Act of 2016, the Secretary and Mt. Hood Meadows shall jointly select'';

(ii) in clause (ii), in the matter preceding subclause (I), by striking ''An appraisal under clause (i) shall'' and inserting ''Except as provided under clause (iii), an appraisal under clause (i) shall assign a separate value to each tax lot to allow for the equalization of values and''; and

(iii) by adding at the end the following:

''(iii) FINAL APPRAISED VALUE.—

''(I) IN GENERAL.—Subject to subclause (II), after the final appraised value of the Federal land and the non-Federal land are determined and approved by the Secretary, the Secretary shall not be required to reappraise or update the final appraised value for a period of up to 3 years, beginning on the date of the approval by the Secretary of the final appraised value.

''(II) EXCEPTION.—Subclause (I) shall not apply if the condition of either the Federal land or the non-Federal land referred to in subclause (I) is significantly and substantially altered by fire, windstorm, or other events.

''(iv) PUBLIC REVIEW.—Before completing the land exchange under this Act, the Secretary shall make available for public review the complete appraisals of the land to be exchanged.'';

(B) in subparagraph (F), by striking ''16 months after the date of enactment of this Act'' and inserting ''1 year after the date of the enactment of the Energy Policy Modernization Act of 2016''; and

(C) by striking subparagraph (G) and inserting the following:

''(G) REQUIRED CONVEYANCE CONDITIONS.—Prior to the exchange of the Federal and non-Federal land—

''(i) the Secretary and Mt. Hood Meadows may mutually agree for the Secretary to reserve a conservation easement to protect the identified wetland in accordance with applicable law, subject to the requirements that—

''(I) the conservation easement shall be consistent with the terms of the September 30, 2015, mediation between the Secretary and Mt. Hood Meadows; and

''(II) in order to take effect, the conservation easement shall be finalized not later than 120 days after the date of enactment of the Energy Policy Modernization Act of 2016; and

''(ii) the Secretary shall reserve a 24-foot-wide nonexclusive trail easement at the existing trail locations on the Federal land that retains for the United States existing rights to construct, reconstruct, maintain, and permit nonmotorized use by the public of existing trails subject to the right of the owner of the Federal land—

''(I) to cross the trails with roads, utilities, and infrastructure facilities; and

''(II) to improve or relocate the trails to accommodate development of the Federal land.

''(H) EQUALIZATION OF VALUES.—

''(i) IN GENERAL.—Notwithstanding subparagraph (A), in addition to or in lieu of monetary compensation, a lesser area of Federal land or non-Federal land may be conveyed if necessary to equalize appraised values of the exchange properties, without limitation, consistent with the requirements of this Act and subject to the approval of the Secretary and Mt. Hood Meadows.

''(ii) TREATMENT OF CERTAIN COMPENSATION OR CONVEYANCES AS DONATION.—If, after payment of compensation or adjustment of land area subject to exchange under this Act, the amount by which the appraised value of the land and other property conveyed by Mt. Hood Meadows under subparagraph (A) exceeds the appraised value of the land conveyed by the Secretary under subparagraph (A) shall be considered a donation by Mt. Hood Meadows to the United States.''.

SEC. 6007. EXPEDITED ACCESS TO CERTAIN FEDERAL LAND.

(a) DEFINITIONS.—In this section:

(1) ELIGIBLE.—The term ''eligible'', with respect to an organization or individual, means that the organization or individual, respectively, is—

(A) acting in a not-for-profit capacity; and

(B) composed entirely of members who, at the time of the good Samaritan search-and-recovery mission, have attained the age of majority under the law of the State where the mission takes place.

(2) GOOD SAMARITAN SEARCH-AND-RECOVERY MISSION.—The term ''good Samaritan search-and-recovery mission'' means a search conducted by an eligible organization or individual for 1 or more missing individuals believed to be deceased at the time that the search is initiated.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior or the Secretary of Agriculture, as applicable.

(b) PROCESS.—

(1) IN GENERAL.—Each Secretary shall develop and implement a process to expedite access to Federal land under the administrative jurisdiction of the Secretary for eligible organizations and individuals to request access to Federal land to conduct good Samaritan search-and-recovery missions.

(2) INCLUSIONS.—The process developed and implemented under this subsection shall include provisions to clarify that—

(A) an eligible organization or individual granted access under this section—

(i) shall be acting for private purposes; and

(ii) shall not be considered to be a Federal volunteer;

(B) an eligible organization or individual conducting a good Samaritan search-and-recovery mission under this section shall not be considered to be a volunteer under section 102301(c) of title 54, United States Code;

(C) chapter 171 of title 28, United States Code (commonly known as the ''Federal Tort Claims Act''), shall not apply to an eligible organization or individual carrying out a privately requested good Samaritan search-and-recovery mission under this section; and

(D) chapter 81 of title 5, United States Code (commonly known as the ''Federal Employees Compensation Act''), shall not apply to an eligible organization or individual conducting a good Samaritan search-and-recovery mission under this section, and the conduct of the good Samaritan search-and-recovery mission shall not constitute civilian employment.

(c) RELEASE OF FEDERAL GOVERNMENT FROM LIABILITY.—The Secretary shall not require an eligible organization or individual to have liability insurance as a condition of accessing Federal land under this section, if the eligible organization or individual—

(1) acknowledges and consents, in writing, to the provisions described in subparagraphs (A) through (D) of subsection (b)(2); and

(2) signs a waiver releasing the Federal Government from all liability relating to the access granted under this section and agrees to indemnify and hold harmless the United States from any claims or lawsuits arising from any conduct by the eligible organization or individual on Federal land.

(d) APPROVAL AND DENIAL OF REQUESTS.—

(1) IN GENERAL.—The Secretary shall notify an eligible organization or individual of the approval or denial of a request by the eligible organization or individual to carry out a good Samaritan search-and-recovery mission under this section by not later than 48 hours after the request is made.

(2) DENIALS.—If the Secretary denies a request from an eligible organization or individual to carry out a good Samaritan search-and-recovery mission under this section, the Secretary shall notify the eligible organization or individual of—

(A) the reason for the denial of the request; and

(B) any actions that the eligible organization or individual can take to meet the requirements for the request to be approved.

(e) PARTNERSHIPS.—Each Secretary shall develop search-and-recovery-focused partnerships with search-and-recovery organizations—

(1) to coordinate good Samaritan search-and-recovery missions on Federal land under the administrative jurisdiction of the Secretary; and

(2) to expedite and accelerate good Samaritan search-and-recovery mission efforts for missing individuals on Federal land under the administrative jurisdiction of the Secretary.

(f) REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretaries shall submit to Congress a joint report describing—

(1) plans to develop partnerships described in subsection (e)(1); and

(2) efforts carried out to expedite and accelerate good Samaritan search-and-recovery mission efforts for missing individuals on Federal land under the administrative jurisdiction of each Secretary pursuant to subsection (e)(2).

SEC. 6008. BLACK HILLS NATIONAL CEMETERY BOUNDARY EXPANSION.

(a) DEFINITIONS.—In this section:

(1) BLM LAND.—The term ''BLM land'' means the approximately 191.24 acres of Bureau of Land Management land within Meade County, South Dakota, which is more particularly described as follows:

(A) In sec. 23, T. 5 N, R. 5 E., Black Hills Meridian—

(i) the land in the SW¼SW¼ located south of the tread of the Centennial Trail;

(ii) the land in the SE¼SW¼ located south of the tread of the Centennial Trail and southwest of the southwesterly railroad

right-of-way boundary described and authorized under MTM–14260; and

(iii) the land in the SW¼SE¼ located southwest of the southwesterly railroad right-of-way boundary.

(B) In sec. 26, T. 5 N, R. 5 E., Black Hills Meridian—

(i) lots 5, 11, and 12; and

(ii) in lot 10, the land located southwest of the southwesterly railroad right-of-way boundary described and authorized under MTM–14260 and NW¼NW¼.

(2) CEMETERY.—The term ''Cemetery'' means the Black Hills National Cemetery in Sturgis, South Dakota.

(b) TRANSFER OF ADMINISTRATIVE JURISDICTION.—

(1) IN GENERAL.—Administrative jurisdiction over the BLM land is transferred from the Secretary of the Interior to the Secretary of Veterans Affairs for inclusion in the Cemetery.

(2) BOUNDARY MODIFICATION.—On the transfer of the BLM land under paragraph (1), the boundary of the Cemetery is modified to include the BLM land.

(3) MODIFICATION OF PUBLIC LAND ORDER.—On the transfer of the BLM land under paragraph (1), Public Land Order 2112, dated June 6, 1960 (25 Fed. Reg. 5243), is modified to exclude the BLM land.

Subtitle B—National Park Management, Studies, and Related Matters

SEC. 6101. REFUND OF FUNDS USED BY STATES TO OPERATE NATIONAL PARKS DURING SHUTDOWN.

(a) IN GENERAL.—The Director of the National Park Service shall refund to each State all funds of the State that were used to reopen and temporarily operate a unit of the National Park System during the period in October 2013 in which there was a lapse in appropriations for the unit.

(b) FUNDING.—Funds of the National Park Service that are appropriated after the date of enactment of this Act shall be used to carry out this section.

SEC. 6102. LOWER FARMINGTON AND SALMON BROOK RECREATIONAL RIVERS.

(a) DESIGNATION.—Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by adding at the end the following new paragraph:

''(213) LOWER FARMINGTON RIVER AND SALMON BROOK, CONNECTICUT.—Segments of the main stem and its tributary, Salmon Brook, totaling approximately 62 miles, to be administered by the Secretary of the Interior as follows:

''(A) The approximately 27.2-mile segment of the Farmington River beginning 0.2 miles below the tailrace of the Lower Collinsville Dam and extending to the site of the Spoonville Dam in Bloomfield and East Granby as a recreational river.

''(B) The approximately 8.1-mile segment of the Farmington River extending from 0.5 miles below the Rainbow Dam to the confluence with the Connecticut River in Windsor as a recreational river.

''(C) The approximately 2.4-mile segment of the main stem of Salmon Brook extending from the confluence of the East and West Branches to the confluence with the Farmington River as a recreational river.

''(D) The approximately 12.6-mile segment of the West Branch of Salmon Brook extending from its headwaters in Hartland, Connecticut to its confluence with the East Branch of Salmon Brook as a recreational river.

''(E) The approximately 11.4-mile segment of the East Branch of Salmon Brook extending from the Massachusetts-Connecticut State line to the confluence with the West Branch of Salmon Brook as a recreational river.''.

(b) MANAGEMENT.—

(1) IN GENERAL.—The river segments designated by subsection (a) shall be managed in accordance with the management plan and such amendments to the management plan as the Secretary determines are consistent with this section. The management plan shall be deemed to satisfy the requirements for a comprehensive management plan pursuant to section 3(d) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(d)).

(2) COMMITTEE.—The Secretary shall coordinate the management responsibilities of the Secretary under this section with the Lower Farmington River and Salmon Brook Wild and Scenic Committee, as specified in the management plan.

(3) COOPERATIVE AGREEMENTS.—

(A) IN GENERAL.—In order to provide for the long-term protection, preservation, and enhancement of the river segment designated by subsection (a), the Secretary is authorized to enter into cooperative agreements pursuant to sections 10(e) and 11(b)(1) of the Wild and Scenic Rivers Act with—

(i) the State of Connecticut;

(ii) the towns of Avon, Bloomfield, Burlington, East Granby, Farmington, Granby, Hartland, Simsbury, and Windsor in Connecticut; and

(iii) appropriate local planning and environmental organizations.

(B) CONSISTENCY.—All cooperative agreements provided for under this section shall be consistent with the management plan and may include provisions for financial or other assistance from the United States.

(4) LAND MANAGEMENT.—

(A) ZONING ORDINANCES.—For the purposes of the segments designated in subsection (a), the zoning ordinances adopted by the towns in Avon, Bloomfield, Burlington, East Granby, Farmington, Granby, Hartland, Simsbury, and Windsor in Connecticut, including provisions for conservation of floodplains, wetlands and watercourses associated with the segments, shall be deemed to satisfy the standards and requirements of section 6(c) of the Wild and Scenic Rivers Act (16 U.S.C. 1277(c)).

(B) ACQUISITION OF LAND.—The provisions of section 6(c) of the Wild and Scenic Rivers Act (16 U.S.C. 1277(c)) that prohibit Federal acquisition of lands by condemnation shall apply to the segments designated in subsection (a). The authority of the Secretary to acquire lands for the purposes of the segments designated in subsection (a) shall be limited to acquisition by donation or acquisition with the consent of the owner of the lands, and shall be subject to the additional criteria set forth in the management plan.

(5) RAINBOW DAM.—The designation made by subsection (a) shall not be construed to—

(A) prohibit, pre-empt, or abridge the potential future licensing of the Rainbow Dam and Reservoir (including any and all aspects of its facilities, operations and transmission lines) by the Federal Energy Regulatory Commission as a federally licensed hydroelectric generation project under the Federal Power Act, provided that the Commission may, in the discretion of the Commission and consistent with this section, establish such reasonable terms and conditions in a hydropower license for Rainbow Dam as are necessary to reduce impacts identified by the Secretary as invading or unreasonably diminishing the scenic, recreational, and fish and wildlife values of the segments designated by subsection (a); or

(B) affect the operation of, or impose any flow or release requirements on, the unlicensed hydroelectric facility at Rainbow Dam and Reservoir.

(6) RELATION TO NATIONAL PARK SYSTEM.—Notwithstanding section 10(c) of the Wild and Scenic Rivers Act (16 U.S.C. 1281(c)), the Lower Farmington River shall not be administered as part of the National Park System or be subject to regulations which govern the National Park System.

(c) FARMINGTON RIVER, CONNECTICUT, DESIGNATION REVISION.—Section 3(a)(156) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended in the first sentence—

(1) by striking ''14-mile'' and inserting ''15.1-mile''; and

(2) by striking ''to the downstream end of the New Hartford-Canton, Connecticut town line'' and inserting ''to the confluence with the Nepaug River''.

(d) DEFINITIONS.—For the purposes of this section:

(1) MANAGEMENT PLAN.—The term ''management plan'' means the management plan prepared by the Salmon Brook Wild and Scenic Study Committee entitled the ''Lower Farmington River and Salmon Brook Management Plan'' and dated June 2011.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

SEC. 6103. SPECIAL RESOURCE STUDY OF PRESIDENT STREET STATION.

(a) DEFINITIONS.—In this section:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(2) STUDY AREA.—The term ''study area'' means the President Street Station, a railroad terminal in Baltimore, Maryland, the history of which is tied to the growth of the railroad industry in the 19th century, the Civil War, the Underground Railroad, and the immigrant influx of the early 20th century.

(b) SPECIAL RESOURCE STUDY.—

(1) STUDY.—The Secretary shall conduct a special resource study of the study area.

(2) CONTENTS.—In conducting the study under paragraph (1), the Secretary shall—

(A) evaluate the national significance of the study area;

(B) determine the suitability and feasibility of designating the study area as a unit of the National Park System;

(C) consider other alternatives for preservation, protection, and interpretation of the study area by the Federal Government, State or local government entities, or private and nonprofit organizations;

(D) consult with interested Federal agencies, State or local governmental entities, private and nonprofit organizations, or any other interested individuals; and

(E) identify cost estimates for any Federal acquisition, development, interpretation, operation, and maintenance associated with the alternatives.

(3) APPLICABLE LAW.—The study required under paragraph (1) shall be conducted in accordance with section 100507 of title 54, United States Code.

(4) REPORT.—Not later than 3 years after the date on which funds are first made available for the study under paragraph (1), the Secretary shall submit to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report that describes—

(A) the results of the study; and

(B) any conclusions and recommendations of the Secretary.

SEC. 6104. SPECIAL RESOURCE STUDY OF THURGOOD MARSHALL'S ELEMENTARY SCHOOL.

(a) DEFINITIONS.—In this section:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(2) STUDY AREA.—The term ''study area'' means—

(A) P.S. 103, the public school located in West Baltimore, Maryland, which Thurgood Marshall attended as a youth; and

(B) any other resources in the neighborhood surrounding P.S. 103 that relate to the early life of Thurgood Marshall.

(b) SPECIAL RESOURCE STUDY.—

(1) STUDY.—The Secretary shall conduct a special resource study of the study area.

(2) CONTENTS.—In conducting the study under paragraph (1), the Secretary shall—

(A) evaluate the national significance of the study area;

(B) determine the suitability and feasibility of designating the study area as a unit of the National Park System;

(C) consider other alternatives for preservation, protection, and interpretation of the study area by the Federal Government, State or local government entities, or private and nonprofit organizations;

(D) consult with interested Federal agencies, State or local governmental entities, private and nonprofit organizations, or any other interested individuals; and

(E) identify cost estimates for any Federal acquisition, development, interpretation, operation, and maintenance associated with the alternatives.

(3) APPLICABLE LAW.—The study required under paragraph (1) shall be conducted in accordance with section 100507 of title 54, United States Code.

(4) REPORT.—Not later than 3 years after the date on which funds are first made available to carry out the study under paragraph (1), the Secretary shall submit to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report that describes—

(A) the results of the study; and

(B) any conclusions and recommendations of the Secretary.

SEC. 6105. SPECIAL RESOURCE STUDY OF JAMES K. POLK PRESIDENTIAL HOME.

(a) IN GENERAL.—The Secretary of the Interior (referred to in this section as the ''Secretary'') shall conduct a special resource study of the site of the James K. Polk Home in Columbia, Tennessee, and adjacent property (referred to in this section as the ''site'').

(b) CRITERIA.—The Secretary shall conduct the study under subsection (a) in accordance with section 100507 of title 54, United States Code.

(c) CONTENTS.—In conducting the study under subsection (a), the Secretary shall—

(1) evaluate the national significance of the site;

(2) determine the suitability and feasibility of designating the site as a unit of the National Park System;

(3) include cost estimates for any necessary acquisition, development, operation, and maintenance of the site;

(4) consult with interested Federal, State, or local governmental entities, private and nonprofit organizations, or other interested individuals; and

(5) identify alternatives for the management, administration, and protection of the site.

(d) REPORT.—Not later than 3 years after the date on which funds are made available to carry out the study under subsection (a), the Secretary shall submit to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report that describes—

(1) the findings and conclusions of the study; and

(2) any recommendations of the Secretary.

SEC. 6106. NORTH COUNTRY NATIONAL SCENIC TRAIL ROUTE ADJUSTMENT.

(a) ROUTE ADJUSTMENT.—Section 5(a)(8) of the National Trails System Act (16 U.S.C. 1244(a)(8)) is amended in the first sentence—

(1) by striking ''thirty two hundred miles, extending from eastern New York State'' and inserting ''4,600 miles, extending from the Appalachian Trail in Vermont''; and

(2) by striking ''Proposed North Country Trail'' and all that follows through ''June 1975.'' and inserting '' 'North Country National Scenic Trail, Authorized Route' dated February 2014, and numbered 649/116870.''.

(b) NO CONDEMNATION.—Section 5(a)(8) of the National Trails System Act (16 U.S.C. 1244(a)(8)) is amended by adding at the end the following: ''No land or interest in land outside of the exterior boundary of any Federally administered area may be acquired by the Federal Government for the trail by condemnation.''.

SEC. 6107. DESIGNATION OF JAY S. HAMMOND WILDERNESS AREA.

(a) DESIGNATION.—The approximately 2,600,000 acres of National Wilderness Preservation System land located within the Lake Clark National Park and Preserve designated by section 201(e)(7)(a) of the Alaska National Interest Lands Conservation Act (16 U.S.C. 410hh(e)(7)(a)) shall be known and designated as the ''Jay S. Hammond Wilderness Area''.

(b) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the wilderness area referred to in subsection (a) shall be deemed to be a reference to the ''Jay S. Hammond Wilderness Area''.

SEC. 6108. ADVISORY COUNCIL ON HISTORIC PRESERVATION.

Section 304101(a) of title 54, United States Code, is amended—

(1) by redesignating paragraphs (8), (9), (10), and (11) as paragraphs (9), (10), (11), and (12), respectively; and

(2) by inserting after paragraph (7) the following:

''(8) The General Chairman of the National Association of Tribal Historic Preservation Officers.''.

SEC. 6109. ESTABLISHMENT OF A VISITOR SERVICES FACILITY ON THE ARLINGTON RIDGE TRACT.

(a) DEFINITION OF ARLINGTON RIDGE TRACT.—In this section, the term ''Arlington Ridge tract'' means the parcel of Federal land located in Arlington County, Virginia, known as the ''Nevius Tract'' and transferred to the Department of the Interior in 1953, that is bounded generally by—

(1) Arlington Boulevard (United States Route 50) to the north;

(2) Jefferson Davis Highway (Virginia Route 110) to the east;

(3) Marshall Drive to the south; and

(4) North Meade Street to the west.

(b) ESTABLISHMENT OF VISITOR SERVICES FACILITY.—Notwithstanding section 2863(g) of the Military Construction Authorization Act for Fiscal Year 2002 (Public Law 107–107; 115 Stat. 1332), the Secretary of the Interior may construct a structure for visitor services to include a public restroom facility on the Arlington Ridge tract in the area of the United States Marine Corps War Memorial.

Subtitle C—Sportsmen's Access and Land Management Issues

PART I—NATIONAL POLICY

SEC. 6201. CONGRESSIONAL DECLARATION OF NATIONAL POLICY.

(a) IN GENERAL.—Congress declares that it is the policy of the United States that Federal departments and agencies, in accordance with the missions of the departments and agencies, Executive Orders 12962 and 13443 (60 Fed. Reg. 30769 (June 7, 1995); 72 Fed. Reg. 46537 (August 16, 2007)), and applicable law, shall—

(1) facilitate the expansion and enhancement of hunting, fishing, and recreational shooting opportunities on Federal land, in consultation with the Wildlife and Hunting Heritage Conservation Council, the Sport Fishing and Boating Partnership Council, State and tribal fish and wildlife agencies, and the public;

(2) conserve and enhance aquatic systems and the management of game species and the habitat of those species on Federal land, including through hunting and fishing, in a manner that respects—

(A) State management authority over wildlife resources; and

(B) private property rights; and

(3) consider hunting, fishing, and recreational shooting opportunities as part of all Federal plans for land, resource, and travel management.

(b) EXCLUSION.—In this subtitle, the term ''fishing'' does not include commercial fishing in which fish are harvested, either in whole or in part, that are intended to enter commerce through sale.

PART II—SPORTSMEN'S ACCESS TO FEDERAL LAND

SEC. 6211. DEFINITIONS.

In this part:

(1) FEDERAL LAND.—The term ''Federal land'' means—

(A) any land in the National Forest System (as defined in section 11(a) of the Forest and Rangeland Renewable Resources Planning Act of 1974 (16 U.S.C. 1609(a))) that is administered by the Secretary of Agriculture, acting through the Chief of the Forest Service; and

(B) public lands (as defined in section 103 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1702)), the surface of which is administered by the Secretary of the Interior, acting through the Director of the Bureau of Land Management.

(2) SECRETARY CONCERNED.—The term ''Secretary concerned'' means—

(A) the Secretary of Agriculture, with respect to land described in paragraph (1)(A); and

(B) the Secretary of the Interior, with respect to land described in paragraph (1)(B).

SEC. 6212. FEDERAL LAND OPEN TO HUNTING, FISHING, AND RECREATIONAL SHOOTING.

(a) IN GENERAL.—Subject to subsection (b), Federal land shall be open to hunting, fishing, and recreational shooting, in accordance with applicable law, unless the Secretary concerned closes an area in accordance with section 6213.

(b) EFFECT OF PART.—Nothing in this part opens to hunting, fishing, or recreational shooting any land that is not open to those activities as of the date of enactment of this Act.

SEC. 6213. CLOSURE OF FEDERAL LAND TO HUNTING, FISHING, AND RECREATIONAL SHOOTING.

(a) AUTHORIZATION.—

(1) IN GENERAL.—Subject to paragraph (2) and in accordance with section 302(b) of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1732(b)), the Secretary concerned may designate any area on Federal land in which, and establish any period during which, for reasons of public safety, administration, or compliance with applicable laws, no hunting, fishing, or recreational shooting shall be permitted.

(2) REQUIREMENT.—In making a designation under paragraph (1), the Secretary concerned shall designate the smallest area for the least amount of time that is required for public safety, administration, or compliance with applicable laws.

(b) CLOSURE PROCEDURES.—

(1) IN GENERAL.—Except in an emergency, before permanently or temporarily closing any Federal land to hunting, fishing, or recreational shooting, the Secretary concerned shall—

(A) consult with State fish and wildlife agencies; and

(B) provide public notice and opportunity for comment under paragraph (2).

(2) PUBLIC NOTICE AND COMMENT.—

(A) IN GENERAL.—Public notice and comment shall include—

(i) a notice of intent—

(I) published in advance of the public comment period for the closure—

(aa) in the Federal Register;

(bb) on the website of the applicable Federal agency;

(cc) on the website of the Federal land unit, if available; and

(dd) in at least 1 local newspaper;

(II) made available in advance of the public comment period to local offices, chapters, and affiliate organizations in the vicinity of the closure that are signatories to the memorandum of understanding entitled ''Federal Lands Hunting, Fishing, and Shooting Sports Roundtable Memorandum of Understanding''; and

(III) that describes—

(aa) the proposed closure; and

(bb) the justification for the proposed closure, including an explanation of the reasons and necessity for the decision to close the area to hunting, fishing, or recreational shooting; and

(ii) an opportunity for public comment for a period of—

(I) not less than 60 days for a permanent closure; or

(II) not less than 30 days for a temporary closure.

(B) FINAL DECISION.—In a final decision to permanently or temporarily close an area to hunting, fishing, or recreation shooting, the Secretary concerned shall—

(i) respond in a reasoned manner to the comments received;

(ii) explain how the Secretary concerned resolved any significant issues raised by the comments; and

(iii) show how the resolution led to the closure.

(c) TEMPORARY CLOSURES.—

(1) IN GENERAL.—A temporary closure under this section may not exceed a period of 180 days.

(2) RENEWAL.—Except in an emergency, a temporary closure for the same area of land closed to the same activities—

(A) may not be renewed more than 3 times after the first temporary closure; and

(B) must be subject to a separate notice and comment procedure in accordance with subsection (b)(2).

(3) EFFECT OF TEMPORARY CLOSURE.—Any Federal land that is temporarily closed to hunting, fishing, or recreational shooting under this section shall not become permanently closed to that activity without a separate public notice and opportunity to comment in accordance with subsection (b)(2).

(d) REPORTING.—On an annual basis, the Secretaries concerned shall—

(1) publish on a public website a list of all areas of Federal land temporarily or permanently subject to a closure under this section; and

(2) submit to the Committee on Energy and Natural Resources and the Committee on Agriculture, Nutrition, and Forestry of the Senate and the Committee on Natural Resources and the Committee on Agriculture of the House of Representatives a report that identifies—

(A) a list of each area of Federal land temporarily or permanently subject to a closure;

(B) the acreage of each closure; and

(C) a survey of—

(i) the aggregate areas and acreage closed under this section in each State; and

(ii) the percentage of Federal land in each State closed under this section with respect to hunting, fishing, and recreational shooting.

(e) APPLICATION.—This section shall not apply if the closure is—

(1) less than 14 days in duration; and

(2) covered by a special use permit.

SEC. 6214. SHOOTING RANGES.

(a) IN GENERAL.—Except as provided in subsection (b), the Secretary concerned may, in accordance with this section and other applicable law, lease or permit the use of Federal land for a shooting range.

(b) EXCEPTION.—The Secretary concerned shall not lease or permit the use of Federal land for a shooting range, within—

(1) a component of the National Landscape Conservation System;

(2) a component of the National Wilderness Preservation System;

(3) any area that is—

(A) designated as a wilderness study area;

(B) administratively classified as—

(i) wilderness-eligible; or

(ii) wilderness-suitable; or

(C) a primitive or semiprimitive area;

(4) a national monument, national volcanic monument, or national scenic area; or

(5) a component of the National Wild and Scenic Rivers System (including areas designated for study for potential addition to the National Wild and Scenic Rivers System).

SEC. 6215. FEDERAL ACTION TRANSPARENCY.

(a) MODIFICATION OF EQUAL ACCESS TO JUSTICE PROVISIONS.—

(1) AGENCY PROCEEDINGS.—Section 504 of title 5, United States Code, is amended—

(A) in subsection (c)(1), by striking '', United States Code'';

(B) by redesignating subsection (f) as subsection (i); and

(C) by striking subsection (e) and inserting the following:

''(e)(1) Not later than March 31 of the first fiscal year beginning after the date of enactment of the Energy Policy Modernization Act of 2016, and every fiscal year thereafter, the Chairman of the Administrative Conference of the United States, after consultation with the Chief Counsel for Advocacy of the Small Business Administration, shall submit to Congress and make publicly available online a report on the amount of fees and other expenses awarded during the preceding fiscal year under this section.

''(2) Each report under paragraph (1) shall describe the number, nature, and amount of the awards, the claims involved in the controversy, and any other relevant information that may aid Congress in evaluating the scope and impact of such awards.

''(3)(A) Each report under paragraph (1) shall account for all payments of fees and other expenses awarded under this section that are made pursuant to a settlement agreement, regardless of whether the settlement agreement is sealed or otherwise subject to a nondisclosure provision.

''(B) The disclosure of fees and other expenses required under subparagraph (A) shall not affect any other information that is subject to a nondisclosure provision in a settlement agreement.

''(f) As soon as practicable, and in any event not later than the date on which the first report under subsection (e)(1) is required to be submitted, the Chairman of the Administrative Conference of the United States shall create and maintain online a searchable database containing, with respect to each award of fees and other expenses under this section made on or after the date of enactment of the Energy Policy Modernization Act of 2016, the following information:

''(1) The case name and number of the adversary adjudication, if available, hyperlinked to the case, if available.

''(2) The name of the agency involved in the adversary adjudication.

''(3) A description of the claims in the adversary adjudication.

''(4) The name of each party to whom the award was made as such party is identified in the order or other court document making the award.

''(5) The amount of the award.

''(6) The basis for the finding that the position of the agency concerned was not substantially justified.

''(g) The online searchable database described in subsection (f) may not reveal any information the disclosure of which is prohibited by law or a court order.

''(h) The head of each agency shall provide to the Chairman of the Administrative Conference of the United States in a timely manner all information requested by the Chairman to comply with the requirements of subsections (e), (f), and (g).''.

(2) COURT CASES.—Section 2412(d) of title 28, United States Code, is amended by adding at the end the following:

''(5)(A) Not later than March 31 of the first fiscal year beginning after the date of enactment of the Energy Policy Modernization Act of 2016, and every fiscal year thereafter, the Chairman of the Administrative Conference of the United States shall submit to Congress and make publicly available online a report on the amount of fees and other expenses awarded during the preceding fiscal year pursuant to this subsection.

''(B) Each report under subparagraph (A) shall describe the number, nature, and amount of the awards, the claims involved in the controversy, and any other relevant information that may aid Congress in evaluating the scope and impact of such awards.

''(C)(i) Each report under subparagraph (A) shall account for all payments of fees and other expenses awarded under this subsection that are made pursuant to a settlement agreement, regardless of whether the settlement agreement is sealed or otherwise subject to a nondisclosure provision.

''(ii) The disclosure of fees and other expenses required under clause (i) shall not affect any other information that is subject to a nondisclosure provision in a settlement agreement.

''(D) The Chairman of the Administrative Conference of the United States shall include and clearly identify in each annual report under subparagraph (A), for each case in which an award of fees and other expenses is included in the report—

''(i) any amounts paid under section 1304 of title 31 for a judgment in the case;

''(ii) the amount of the award of fees and other expenses; and

''(iii) the statute under which the plaintiff filed suit.

''(6) As soon as practicable, and in any event not later than the date on which the first report under paragraph (5)(A) is required to be submitted, the Chairman of the Administrative Conference of the United States shall create and maintain online a searchable database containing, with respect to each award of fees and other expenses under this subsection made on or after the date of enactment of the Energy Policy Modernization Act of 2016, the following information:

''(A) The case name and number, hyperlinked to the case, if available.

''(B) The name of the agency involved in the case.

''(C) The name of each party to whom the award was made as such party is identified in the order or other court document making the award.

''(D) A description of the claims in the case.

''(E) The amount of the award.

''(F) The basis for the finding that the position of the agency concerned was not substantially justified.

''(7) The online searchable database described in paragraph (6) may not reveal any information the disclosure of which is prohibited by law or a court order.

''(8) The head of each agency (including the Attorney General of the United States) shall provide to the Chairman of the Administrative Conference of the United States in a timely manner all information requested by the Chairman to comply with the requirements of paragraphs (5), (6), and (7).''.

(3) TECHNICAL AND CONFORMING AMENDMENTS.—Section 2412 of title 28, United States Code, is amended—

(A) in subsection (d)(3), by striking ''United States Code,''; and

(B) in subsection (e)—

(i) by striking ''of section 2412 of title 28, United States Code,'' and inserting ''of this section''; and

(ii) by striking ''of such title'' and inserting ''of this title''.

(b) JUDGMENT FUND TRANSPARENCY.—Section 1304 of title 31, United States Code, is amended by adding at the end the following:

''(d) Beginning not later than the date that is 60 days after the date of enactment of the Energy Policy Modernization Act of 2016, and unless the disclosure of such information is otherwise prohibited by law or a court order, the Secretary of the Treasury shall make available to the public on a website, as soon as practicable, but not later than 30 days after the date on which a payment under this section is tendered, the following information with regard to that payment:

''(1) The name of the specific agency or entity whose actions gave rise to the claim or judgment.

''(2) The name of the plaintiff or claimant.

''(3) The name of counsel for the plaintiff or claimant.

''(4) The amount paid representing principal liability, and any amounts paid representing any ancillary liability, including attorney fees, costs, and interest.

''(5) A brief description of the facts that gave rise to the claim.

''(6) The name of the agency that submitted the claim.''.

PART III—FILMING ON FEDERAL LAND MANAGEMENT AGENCY LAND

SEC. 6221. COMMERCIAL FILMING.

(a) IN GENERAL.—Section 1 of Public Law 106–206 (16 U.S.C. 460l–6d) is amended—

(1) by redesignating subsections (a) through (f) as subsections (b) through (g), respectively;

(2) by inserting before subsection (b) (as so redesignated) the following:

''(a) DEFINITION OF SECRETARY.—The term 'Secretary' means the Secretary of the Interior or the Secretary of Agriculture, as applicable, with respect to land under the respective jurisdiction of the Secretary.'';

(3) in subsection (b) (as so redesignated)—

(A) in paragraph (1)—

(i) in the first sentence, by striking ''of the Interior or the Secretary of Agriculture (hereafter individually referred to as the 'Secretary' with respect to land (except land in a System unit as defined in section 100102 of title 54, United States Code) under their respective jurisdictions)''; and

(ii) in subparagraph (B), by inserting '', except in the case of film crews of 3 or fewer individuals'' before the period at the end; and

(B) by adding at the end the following:

''(3) FEE SCHEDULE.—Not later than 180 days after the date of enactment of the Energy Policy Modernization Act of 2016, to enhance consistency in the management of Federal land, the Secretaries shall publish a single joint land use fee schedule for commercial filming and still photography.'';

(4) in subsection (c) (as so redesignated), in the second sentence, by striking ''subsection (a)'' and inserting ''subsection (b)'';

(5) in subsection (d) (as so redesignated), in the heading, by inserting ''Commercial'' before ''Still'';

(6) in paragraph (1) of subsection (f) (as so redesignated), by inserting ''in accordance with the Federal Lands Recreation Enhancement Act (16 U.S.C. 6801 et seq.),'' after ''without further appropriation,'';

(7) in subsection (g) (as so redesignated)—

(A) by striking ''The Secretary shall'' and inserting the following:

''(1) IN GENERAL.—The Secretary shall''; and

(B) by adding at the end the following:

''(2) CONSIDERATIONS.—The Secretary shall not consider subject matter or content as a criterion for issuing or denying a permit under this Act.''; and

(8) by adding at the end the following:

''(h) EXEMPTION FROM COMMERCIAL FILMING OR STILL PHOTOGRAPHY PERMITS AND FEES.—The Secretary shall not require persons holding commercial use authorizations or special recreation permits to obtain an additional permit or pay a fee for commercial filming or still photography under this Act if the filming or photography conducted is—

''(1) incidental to the permitted activity that is the subject of the commercial use authorization or special recreation permit; and

''(2) the holder of the commercial use authorization or special recreation permit is an individual or small business concern (within the meaning of section 3 of the Small Business Act (15 U.S.C. 632)).

''(i) EXCEPTION FROM CERTAIN FEES.—Commercial filming or commercial still photography shall be exempt from fees under this Act, but not from recovery of costs under subsection (c), if the activity—

''(1) is conducted by an entity that is a small business concern (within the meaning of section 3 of the Small Business Act (15 U.S.C. 632));

''(2) is conducted by a crew of not more than 3 individuals; and

''(3) uses only a camera and tripod.

''(j) APPLICABILITY TO NEWS GATHERING ACTIVITIES.—

''(1) IN GENERAL.—News gathering shall not be considered a commercial activity.

''(2) INCLUDED ACTIVITIES.—In this subsection, the term 'news gathering' includes, at a minimum, the gathering, recording, and filming of news and information related to news in any medium.''.

(b) CONFORMING AMENDMENTS.—Chapter 1009 of title 54, United States Code, is amended—

(1) by striking section 100905; and

(2) in the table of sections for chapter 1009 of title 54, United States Code, by striking the item relating to section 100905.

PART IV—BOWS, WILDLIFE MANAGEMENT, AND ACCESS OPPORTUNITIES FOR RECREATION, HUNTING, AND FISHING

SEC. 6231. BOWS IN PARKS.

(a) IN GENERAL.—Chapter 1049 of title 54, United States Code (as amended by section 5001(a)), is amended by adding at the end the following:

''§ 104909. Bows in parks

''(a) DEFINITION OF NOT READY FOR IMMEDIATE USE.—The term 'not ready for immediate use' means—

''(1) a bow or crossbow, the arrows of which are secured or stowed in a quiver or other arrow transport case; and

''(2) with respect to a crossbow, uncocked.

''(b) VEHICULAR TRANSPORTATION AUTHORIZED.—The Director shall not promulgate or enforce any regulation that prohibits an individual from transporting bows and crossbows that are not ready for immediate use across any System unit in the vehicle of the individual if—

''(1) the individual is not otherwise prohibited by law from possessing the bows and crossbows;

''(2) the bows or crossbows that are not ready for immediate use remain inside the vehicle of the individual throughout the period during which the bows or crossbows are transported across System land; and

''(3) the possession of the bows and crossbows is in compliance with the law of the State in which the System unit is located.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 1049 of title 54, United States Code (as amended by section 5001(b)), is amended by inserting after the item relating to section 104908 the following:

''104909. Bows in parks.''.

SEC. 6232. WILDLIFE MANAGEMENT IN PARKS.

(a) IN GENERAL.—Chapter 1049 of title 54, United States Code (as amended by section 6231(a)), is amended by adding at the end the following:

''SEC. 104910. WILDLIFE MANAGEMENT IN PARKS.

''(a) USE OF QUALIFIED VOLUNTEERS.—If the Secretary determines it is necessary to reduce the size of a wildlife population on System land in accordance with applicable law (including regulations), the Secretary may use qualified volunteers to assist in carrying out wildlife management on System land.

''(b) REQUIREMENTS FOR QUALIFIED VOLUNTEERS.—Qualified volunteers providing assistance under subsection (a) shall be subject to—

''(1) any training requirements or qualifications established by the Secretary; and

''(2) any other terms and conditions that the Secretary may require.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 1049 of title 54 (as amended by section 6231(b)), United States Code, is amended by inserting after the item relating to section 104909 the following:

''104910. Wildlife management in parks.''.

SEC. 6233. IDENTIFYING OPPORTUNITIES FOR RECREATION, HUNTING, AND FISHING ON FEDERAL LAND.

(a) DEFINITIONS.—In this section:

(1) SECRETARY.—The term ''Secretary'' means—

(A) the Secretary of the Interior, with respect to land administered by—

(i) the Director of the National Park Service;

(ii) the Director of the United States Fish and Wildlife Service; and

(iii) the Director of the Bureau of Land Management; and

(B) the Secretary of Agriculture, with respect to land administered by the Chief of the Forest Service.

(2) STATE OR REGIONAL OFFICE.—The term ''State or regional office'' means—

(A) a State office of the Bureau of Land Management; or

(B) a regional office of—

(i) the National Park Service;

(ii) the United States Fish and Wildlife Service; or

(iii) the Forest Service.

(3) TRAVEL MANAGEMENT PLAN.—The term ''travel management plan'' means a plan for the management of travel—

(A) with respect to land under the jurisdiction of the National Park Service, on park roads and designated routes under section 4.10 of title 36, Code of Federal Regulations (or successor regulations);

(B) with respect to land under the jurisdiction of the United States Fish and Wildlife Service, on the land under a comprehensive conservation plan prepared under section 4(e) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(e));

(C) with respect to land under the jurisdiction of the Forest Service, on National Forest System land under part 212 of title 36, Code of Federal Regulations (or successor regulations); and

(D) with respect to land under the jurisdiction of the Bureau of Land Management, under a resource management plan developed under the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.).

(b) PRIORITY LISTS REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, annually during the 10-year period beginning on the date on which the first priority list is completed, and every 5 years after the end of the 10-year period, the Secretary shall prepare a priority list, to be made publicly available on the website of the applicable Federal agency referred to in subsection (a)(1), which shall identify the location and acreage of land within the jurisdiction of each State or regional office on which the public is allowed, under Federal or State law, to hunt, fish, or use the land for other recreational purposes but—

(A) to which there is no public access or egress; or

(B) to which public access or egress to the legal boundaries of the land is significantly restricted (as determined by the Secretary).

(2) MINIMUM SIZE.—Any land identified under paragraph (1) shall consist of contiguous acreage of at least 640 acres.

(3) CONSIDERATIONS.—In preparing the priority list required under paragraph (1), the Secretary shall consider with respect to the land—

(A) whether access is absent or merely restricted, including the extent of the restriction;

(B) the likelihood of resolving the absence of or restriction to public access;

(C) the potential for recreational use;

(D) any information received from the public or other stakeholders during the nomination process described in paragraph (5); and

(E) any other factor as determined by the Secretary.

(4) ADJACENT LAND STATUS.—For each parcel of land on the priority list, the Secretary shall include in the priority list whether resolving the issue of public access or egress to the land would require acquisition of an easement, right-of-way, or fee title from—

(A) another Federal agency;

(B) a State, local, or tribal government; or

(C) a private landowner.

(5) NOMINATION PROCESS.—In preparing a priority list under this section, the Secretary shall provide an opportunity for members of the public to nominate parcels for inclusion on the priority list.

(c) ACCESS OPTIONS.—With respect to land included on a priority list described in subsection (b), the Secretary shall develop and submit to the Committees on Appropriations and Energy and Natural Resources of the Senate and the Committees on Appropriations and Natural Resources of the House of Representatives a report on options for providing access that—

(1) identifies how public access and egress could reasonably be provided to the legal boundaries of the land in a manner that minimizes the impact on wildlife habitat and water quality;

(2) specifies the steps recommended to secure the access and egress, including acquiring an easement, right-of-way, or fee title from a willing owner of any land that abuts the land or the need to coordinate with State land management agencies or other Federal, State, or tribal governments to allow for such access and egress; and

(3) is consistent with the travel management plan in effect on the land.

(d) PROTECTION OF PERSONALLY IDENTIFYING INFORMATION.—In making the priority list and report prepared under subsections (b) and (c) available, the Secretary shall ensure that no personally identifying information is included, such as names or addresses of individuals or entities.

(e) WILLING OWNERS.—For purposes of providing any permits to, or entering into agreements with, a State, local, or tribal government or private landowner with respect to the use of land under the jurisdiction of the government or landowner, the Secretary shall not take into account whether the State, local, or tribal government or private landowner has granted or denied public access or egress to the land.

(f) MEANS OF PUBLIC ACCESS AND EGRESS INCLUDED.—In considering public access and egress under subsections (b) and (c), the Secretary shall consider public access and egress to the legal boundaries of the land described in those subsections, including access and egress—

(1) by motorized or non-motorized vehicles; and

(2) on foot or horseback.

(g) EFFECT.—

(1) IN GENERAL.—This section shall have no effect on whether a particular recreational use shall be allowed on the land included in a priority list under this section.

(2) EFFECT OF ALLOWABLE USES ON AGENCY CONSIDERATION.—In preparing the priority list under subsection (b), the Secretary shall only consider recreational uses that are allowed on the land at the time that the priority list is prepared.

PART V—FEDERAL LAND TRANSACTION FACILITATION ACT

SEC. 6241. FEDERAL LAND TRANSACTION FACILITATION ACT.

(a) IN GENERAL.—The Federal Land Transaction Facilitation Act is amended—

(1) in section 203(2) (43 U.S.C. 2302(2)), by striking ''on the date of enactment of this Act was'' and inserting ''is'';

(2) in section 205 (43 U.S.C. 2304)—

(A) in subsection (a), by striking ''(as in effect on the date of enactment of this Act)''; and

(B) by striking subsection (d);

(3) in section 206 (43 U.S.C. 2305), by striking subsection (f); and

(4) in section 207(b) (43 U.S.C. 2306(b))—

(A) in paragraph (1)—

(i) by striking ''96–568'' and inserting ''96–586''; and

(ii) by striking ''; or'' and inserting a semicolon;

(B) in paragraph (2)—

(i) by inserting ''Public Law 105–263;'' before ''112 Stat.''; and

(ii) by striking the period at the end and inserting a semicolon; and

(C) by adding at the end the following:

''(3) the White Pine County Conservation, Recreation, and Development Act of 2006 (Public Law 109–432; 120 Stat. 3028);

''(4) the Lincoln County Conservation, Recreation, and Development Act of 2004 (Public Law 108–424; 118 Stat. 2403);

''(5) subtitle F of title I of the Omnibus Public Land Management Act of 2009 (16 U.S.C. 1132 note; Public Law 111–11);

''(6) subtitle O of title I of the Omnibus Public Land Management Act of 2009 (16 U.S.C. 460www note, 1132 note; Public Law 111–11);

''(7) section 2601 of the Omnibus Public Land Management Act of 2009 (Public Law 111–11; 123 Stat. 1108); or

''(8) section 2606 of the Omnibus Public Land Management Act of 2009 (Public Law 111–11; 123 Stat. 1121).''.

(b) FUNDS TO TREASURY.—Of the amounts deposited in the Federal Land Disposal Account, there shall be transferred to the general fund of the Treasury $1,000,000 for each of fiscal years 2016 through 2025.

PART VI—MISCELLANEOUS

SEC. 6251. RESPECT FOR TREATIES AND RIGHTS.

Nothing in this subtitle or the amendments made by this subtitle—

(1) affects or modifies any treaty or other right of any federally recognized Indian tribe; or

(2) modifies any provision of Federal law relating to migratory birds or to endangered or threatened species.

SEC. 6252. NO PRIORITY.

Nothing in this subtitle or the amendments made by this subtitle provides a preference to hunting, fishing, or recreational shooting over any other use of Federal land or water.

Subtitle D—Water Infrastructure and Related Matters

PART I—FONTENELLE RESERVOIR

SEC. 6301. AUTHORITY TO MAKE ENTIRE ACTIVE CAPACITY OF FONTENELLE RESERVOIR AVAILABLE FOR USE.

(a) IN GENERAL.—The Secretary of the Interior, in cooperation with the State of Wyoming, may amend the Definite Plan Report for the Seedskadee Project authorized under the first section of the Act of April 11, 1956 (commonly known as the ''Colorado River Storage Project Act'') (43 U.S.C. 620), to provide for the study, design, planning, and construction activities that will enable the use of all active storage capacity (as may be defined or limited by legal, hydrologic, structural, engineering, economic, and environmental considerations) of Fontenelle Dam and Reservoir, including the placement of sufficient riprap on the upstream face of Fontenelle Dam to allow the active storage capacity of Fontenelle Reservoir to be used for those purposes for which the Seedskadee Project was authorized.

(b) COOPERATIVE AGREEMENTS.—

(1) IN GENERAL.—The Secretary of the Interior may enter into any contract, grant, cooperative agreement, or other agreement that is necessary to carry out subsection (a).

(2) STATE OF WYOMING.—

(A) IN GENERAL.—The Secretary of the Interior shall enter into a cooperative agreement with the State of Wyoming to work in cooperation and collaboratively with the State of Wyoming for planning, design, related preconstruction activities, and construction of any modification of the Fontenelle Dam under subsection (a).

(B) REQUIREMENTS.—The cooperative agreement under subparagraph (A) shall, at a minimum, specify the responsibilities of the Secretary of the Interior and the State of Wyoming with respect to—

(i) completing the planning and final design of the modification of the Fontenelle Dam under subsection (a);

(ii) any environmental and cultural resource compliance activities required for the modification of the Fontenelle Dam under subsection (a) including compliance with—

(I) the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.);

(II) the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.); and

(III) subdivision 2 of division A of subtitle III of title 54, United States Code; and

(iii) the construction of the modification of the Fontenelle Dam under subsection (a).

(c) FUNDING BY STATE OF WYOMING.—Pursuant to the Act of March 4, 1921 (41 Stat. 1404, chapter 161; 43 U.S.C. 395), and as a condition of providing any additional storage under subsection (a), the State of Wyoming shall provide to the Secretary of the Interior funds for any work carried out under subsection (a).

(d) OTHER CONTRACTING AUTHORITY.—

(1) IN GENERAL.—The Secretary of the Interior may enter into contracts with the State of Wyoming, on such terms and conditions as the Secretary of the Interior and the State of Wyoming may agree, for division of any additional active capacity made available under subsection (a).

(2) TERMS AND CONDITIONS.—Unless otherwise agreed to by the Secretary of the Interior and the State of Wyoming, a contract entered into under paragraph (1) shall be subject to the terms and conditions of Bureau of Reclamation Contract No. 14–06–400–2474 and Bureau of Reclamation Contract No. 14–06–400–6193.

SEC. 6302. SAVINGS PROVISIONS.

Unless expressly provided in this part, nothing in this part modifies, conflicts with, preempts, or otherwise affects—

(1) the Act of December 31, 1928 (43 U.S.C. 617 et seq.) (commonly known as the ''Boulder Canyon Project Act'');

(2) the Colorado River Compact of 1922, as approved by the Presidential Proclamation of June 25, 1929 (46 Stat. 3000);

(3) the Act of July 19, 1940 (43 U.S.C. 618 et seq.) (commonly known as the ''Boulder Canyon Project Adjustment Act'');

(4) the Treaty between the United States of America and Mexico relating to the utilization of waters of the Colorado and Tijuana Rivers and of the Rio Grande, and supplementary protocol signed November 14, 1944, signed at Washington February 3, 1944 (59 Stat. 1219);

(5) the Upper Colorado River Basin Compact as consented to by the Act of April 6, 1949 (63 Stat. 31);

(6) the Act of April 11, 1956 (commonly known as the ''Colorado River Storage Project Act'') (43 U.S.C. 620 et seq.);

(7) the Colorado River Basin Project Act (Public Law 90–537; 82 Stat. 885); or

(8) any State of Wyoming or other State water law.

PART II—BUREAU OF RECLAMATION TRANSPARENCY

SEC. 6311. FINDINGS.

Congress finds that—

(1) the water resources infrastructure of the Bureau of Reclamation provides important benefits related to irrigated agriculture, municipal and industrial water, hydropower, flood control, fish and wildlife, and recreation in the 17 Reclamation States;

(2) as of 2013, the combined replacement value of the infrastructure assets of the Bureau of Reclamation was $94,500,000,000;

(3) the majority of the water resources infrastructure facilities of the Bureau of Reclamation are at least 60 years old;

(4) the Bureau of Reclamation has previously undertaken efforts to better manage the assets of the Bureau of Reclamation, including an annual review of asset maintenance activities of the Bureau of Reclamation known as the ''Asset Management Plan''; and

(5) actionable information on infrastructure conditions at the asset level, including information on maintenance needs at individual assets due to aging infrastructure, is needed for Congress to conduct oversight of Reclamation facilities and meet the needs of the public.

SEC. 6312. DEFINITIONS.

In this part:

(1) ASSET.—

(A) IN GENERAL.—The term ''asset'' means any of the following assets that are used to achieve the mission of the Bureau of Reclamation to manage, develop, and protect water and related resources in an environmentally and economically sound manner in the interest of the people of the United States:

(i) Capitalized facilities, buildings, structures, project features, power production equipment, recreation facilities, or quarters.

(ii) Capitalized and noncapitalized heavy equipment and other installed equipment.

(B) INCLUSIONS.—The term ''asset'' includes assets described in subparagraph (A) that are considered to be mission critical.

(2) ASSET MANAGEMENT REPORT.—The term ''Asset Management Report'' means—

(A) the annual plan prepared by the Bureau of Reclamation known as the ''Asset Management Plan''; and

(B) any publicly available information relating to the plan described in subparagraph (A) that summarizes the efforts of the Bureau of Reclamation to evaluate and manage infrastructure assets of the Bureau of Reclamation.

(3) MAJOR REPAIR AND REHABILITATION NEED.—The term ''major repair and rehabilitation need'' means major nonrecurring maintenance at a Reclamation facility, including maintenance related to the safety of dams, extraordinary maintenance of dams, deferred major maintenance activities, and all other significant repairs and extraordinary maintenance.

(4) RECLAMATION FACILITY.—The term ''Reclamation facility'' means each of the infrastructure assets that are owned by the Bureau of Reclamation at a Reclamation project.

(5) RECLAMATION PROJECT.—The term ''Reclamation project'' means a project that is owned by the Bureau of Reclamation, including all reserved works and transferred works owned by the Bureau of Reclamation.

(6) RESERVED WORKS.—The term ''reserved works'' means buildings, structures, facilities, or equipment that are owned by the Bureau of Reclamation for which operations and maintenance are performed by employees of the Bureau of Reclamation or through a contract entered into by the Bureau of Reclamation, regardless of the source of funding for the operations and maintenance.

(7) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(8) TRANSFERRED WORKS.—The term ''transferred works'' means a Reclamation facility at which operations and maintenance of the facility is carried out by a non-Federal entity under the provisions of a formal operations and maintenance transfer contract or other legal agreement with the Bureau of Reclamation.

SEC. 6313. ASSET MANAGEMENT REPORT ENHANCEMENTS FOR RESERVED WORKS.

(a) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Secretary shall submit to Congress an Asset Management Report that—

(1) describes the efforts of the Bureau of Reclamation—

(A) to maintain in a reliable manner all reserved works at Reclamation facilities; and

(B) to standardize and streamline data reporting and processes across regions and areas for the purpose of maintaining reserved works at Reclamation facilities; and

(2) expands on the information otherwise provided in an Asset Management Report, in accordance with subsection (b).

(b) INFRASTRUCTURE MAINTENANCE NEEDS ASSESSMENT.—

(1) IN GENERAL.—The Asset Management Report submitted under subsection (a) shall include—

(A) a detailed assessment of major repair and rehabilitation needs for all reserved works at all Reclamation projects; and

(B) to the extent practicable, an itemized list of major repair and rehabilitation needs of individual Reclamation facilities at each Reclamation project.

(2) INCLUSIONS.—To the extent practicable, the itemized list of major repair and rehabilitation needs under paragraph (1)(B) shall include—

(A) a budget level cost estimate of the appropriations needed to complete each item; and

(B) an assignment of a categorical rating for each item, consistent with paragraph (3).

(3) RATING REQUIREMENTS.—

(A) IN GENERAL.—The system for assigning ratings under paragraph (2)(B) shall be—

(i) consistent with existing uniform categorization systems to inform the annual budget process and agency requirements; and

(ii) subject to the guidance and instructions issued under subparagraph (B).

(B) GUIDANCE.—As soon as practicable after the date of enactment of this Act, the Secretary shall issue guidance that describes the applicability of the rating system applicable under paragraph (2)(B) to Reclamation facilities.

(4) PUBLIC AVAILABILITY.—Except as provided in paragraph (5), the Secretary shall make publicly available, including on the Internet, the Asset Management Report required under subsection (a).

(5) CONFIDENTIALITY.—The Secretary may exclude from the public version of the Asset Management Report made available under paragraph (4) any information that the Secretary identifies as sensitive or classified, but shall make available to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a version of the report containing the sensitive or classified information.

(c) UPDATES.—Not later than 2 years after the date on which the Asset Management Report is submitted under subsection (a) and biennially thereafter, the Secretary shall update the Asset Management Report, subject to the requirements of section 6314(b)(2).

(d) CONSULTATION.—To the extent that such consultation would assist the Secretary in preparing the Asset Management Report under subsection (a) and updates to the Asset Management Report under subsection (c), the Secretary shall consult with—

(1) the Secretary of the Army (acting through the Chief of Engineers); and

(2) water and power contractors.

SEC. 6314. ASSET MANAGEMENT REPORT ENHANCEMENTS FOR TRANSFERRED WORKS.

(a) IN GENERAL.—The Secretary shall coordinate with the non-Federal entities responsible for the operation and maintenance of transferred works in developing reporting requirements for Asset Management Reports with respect to major repair and rehabilitation needs for transferred works that are similar to the reporting requirements described in section 6313(b).

(b) GUIDANCE.—

(1) IN GENERAL.—After considering input from water and power contractors of the Bureau of Reclamation, the Secretary shall develop and implement a rating system for transferred works that incorporates, to the maximum extent practicable, the rating system for major repair and rehabilitation needs for reserved works developed under section 6313(b)(3).

(2) UPDATES.—The ratings system developed under paragraph (1) shall be included in the updated Asset Management Reports under section 6313(c).

SEC. 6315. OFFSET.

Notwithstanding any other provision of law, in the case of the project authorized by section 1617 of the Reclamation Projects Authorization and Adjustment Act of 1992 (43 U.S.C. 390h–12c), the maximum amount of the Federal share of the cost of the project

under section 1631(d)(1) of that Act (43 U.S.C. 390h–13(d)(1)) otherwise available as of the date of enactment of this Act shall be reduced by $2,000,000.

PART III—YAKIMA RIVER BASIN WATER ENHANCEMENT

SEC. 6321. SHORT TITLE.

This part may be cited as the ''Yakima River Basin Water Enhancement Project Phase III Act of 2016''.

SEC. 6322. MODIFICATION OF TERMS, PURPOSES, AND DEFINITIONS.

(a) MODIFICATION OF TERMS.—Title XII of Public Law 103–434 (108 Stat. 4550) is amended—

(1) by striking ''Yakama Indian'' each place it appears (except section 1204(g)) and inserting ''Yakama''; and

(2) by striking ''Superintendent'' each place it appears and inserting ''Manager''.

(b) MODIFICATION OF PURPOSES.—Section 1201 of Public Law 103–434 (108 Stat. 4550) is amended—

(1) by striking paragraph (1) and inserting the following:

''(1) to protect, mitigate, and enhance fish and wildlife and the recovery and maintenance of self-sustaining harvestable populations of fish and other aquatic life, both anadromous and resident species, throughout their historic distribution range in the Yakima Basin through—

''(A) improved water management and the constructions of fish passage at storage and diversion dams, as authorized under the Hoover Power Plant Act of 1984 (43 U.S.C. 619 et seq.);

''(B) improved instream flows and water supplies;

''(C) improved water quality, watershed, and ecosystem function;

''(D) protection, creation, and enhancement of wetlands; and

''(E) other appropriate means of habitat improvement;'';

(2) in paragraph (2), by inserting '', municipal, industrial, and domestic water supply and use purposes, especially during drought years, including reducing the frequency and severity of water supply shortages for proratable irrigation entities'' before the semicolon at the end;

(3) by striking paragraph (4);

(4) by redesignating paragraph (3) as paragraph (4);

(5) by inserting after paragraph (2) the following:

''(3) to authorize the Secretary to make water available for purchase or lease for meeting municipal, industrial, and domestic water supply purposes;'';

(6) by redesignating paragraphs (5) and (6) as paragraphs (6) and (8), respectively;

(7) by inserting after paragraph (4) (as so redesignated) the following:

''(5) to realize sufficient water savings from implementing the Yakima River Basin Integrated Water Resource Management Plan, so that not less than 85,000 acre feet of water savings are achieved by implementing the first phase of the Integrated Plan pursuant to section 1213(a), in addition to the 165,000 acre feet of water savings targeted through the Basin Conservation Program, as authorized on October 31, 1994;'';

(8) in paragraph (6) (as so redesignated)—

(A) by inserting ''an increase in'' before ''voluntary''; and

(B) by striking ''and'' at the end;

(9) by inserting after paragraph (6) (as so redesignated) the following:

''(7) to encourage an increase in the use of, and reduce the barriers to, water transfers, leasing, markets, and other voluntary transactions among public and private entities to enhance water management in the Yakima River basin;'';

(10) in paragraph (8) (as redesignated by paragraph (6)), by striking the period at the end and inserting a semicolon; and

(11) by adding at the end the following:

''(9) to improve the resilience of the ecosystems, economies, and communities in the Basin as they face drought, hydrologic changes, and other related changes and variability in natural and human systems, for the benefit of both the people and the fish and wildlife of the region; and

''(10) to authorize and implement the Yakima River Basin Integrated Water Resource Management Plan as Phase III of the Yakima River Basin Water Enhancement Project, as a balanced and cost-effective approach to maximize benefits to the communities and environment in the Basin.''.

(c) MODIFICATION OF DEFINITIONS.—Section 1202 of Public Law 103–434 (108 Stat. 4550) is amended—

(1) by redesignating paragraphs (6), (7), (8), (9), (10), (11), (12), (13), and (14) as paragraphs (8), (10), (11), (13), (14), (15), (16), (18), and (19), respectively;

(2) by inserting after paragraph (5) the following:

''(6) DESIGNATED FEDERAL OFFICIAL.—The term 'designated Federal official' means the Commissioner of Reclamation (or a designee), acting pursuant to the charter of the Conservation Advisory Group.

''(7) INTEGRATED PLAN.—The terms 'Integrated Plan' and 'Yakima River Basin Integrated Water Resource Plan' mean the plan and activities authorized by the Yakima River Basin Water Enhancement Project Phase III Act of 2016 and the amendments made by that part, to be carried out in cooperation with and in addition to activities of the State of Washington and Yakama Nation.'';

(3) by inserting after paragraph (8) (as redesignated by paragraph (1)) the following:

''(9) MUNICIPAL, INDUSTRIAL, AND DOMESTIC WATER SUPPLY AND USE.—The term 'municipal, industrial, and domestic water supply and use' means the supply and use of water for—

''(A) domestic consumption (whether urban or rural);

''(B) maintenance and protection of public health and safety;

''(C) manufacture, fabrication, processing, assembly, or other production of a good or commodity;

''(D) production of energy;

''(E) fish hatcheries; or

''(F) water conservation activities relating to a use described in subparagraphs (A) through (E).'';

(4) by inserting after paragraph (11) (as redesignated by paragraph (1)) the following:

''(12) PRORATABLE IRRIGATION ENTITY.—The term 'proratable irrigation entity' means a district, project, or State-recognized authority, board of control, agency, or entity located in the Yakima River basin that—

''(A) manages and delivers irrigation water to farms in the basin; and

''(B) possesses, or the members of which possess, water rights that are proratable during periods of water shortage.''; and

(5) by inserting after paragraph (16) (as redesignated by paragraph (1)) the following:

''(17) YAKIMA ENHANCEMENT PROJECT; YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT.—The terms 'Yakima Enhancement Project' and 'Yakima River Basin Water Enhancement Project' mean the Yakima River basin water enhancement project authorized by Congress pursuant to this Act and other Acts (including Public Law 96–162 (93 Stat. 1241), section 109 of Public Law 98–381 (16 U.S.C. 839b note; 98 Stat. 1340), Public Law 105–62 (111 Stat. 1320), and Public Law 106–372 (114 Stat. 1425)) to promote water conservation, water supply, habitat, and stream enhancement improvements in the Yakima River basin.''.

SEC. 6323. YAKIMA RIVER BASIN WATER CONSERVATION PROGRAM.

Section 1203 of Public Law 103–434 (108 Stat. 4551) is amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) in the second sentence, by striking ''title'' and inserting ''section''; and

(ii) in the third sentence, by striking ''within 5 years of the date of enactment of this Act''; and

(B) in paragraph (2), by striking ''irrigation'' and inserting ''the number of irrigated acres'';

(2) in subsection (c)—

(A) in paragraph (2)—

(i) in each of subparagraphs (A) through (D), by striking the comma at the end and inserting a semicolon;

(ii) in subparagraph (E), by striking the comma at the end and inserting ''; and'';

(iii) in subparagraph (F), by striking ''Department of Wildlife of the State of Washington, and'' and inserting ''Department of Fish and Wildlife of the State of Washington.''; and

(iv) by striking subparagraph (G);

(B) in paragraph (3)—

(i) in each of subparagraphs (A) through (C), by striking the comma at the end and inserting a semicolon;

(ii) in subparagraph (D), by striking '', and'' and inserting a semicolon;

(iii) in subparagraph (E), by striking the period at the end and inserting ''; and''; and

(iv) by adding at the end the following:

''(F) provide recommendations to advance the purposes and programs of the Yakima Enhancement Project, including the Integrated Plan.''; and

(C) by striking paragraph (4) and inserting the following:

''(4) AUTHORITY OF DESIGNATED FEDERAL OFFICIAL.—The designated Federal official may—

''(A) arrange and provide logistical support for meetings of the Conservation Advisory Group;

''(B) use a facilitator to serve as a moderator for meetings of the Conservation Advisory Group or provide additional logistical support; and

''(C) grant any request for a facilitator by any member of the Conservation Advisory Group.'';

(3) in subsection (d), by adding at the end the following:

''(4) PAYMENT OF LOCAL SHARE BY STATE OR FEDERAL GOVERNMENT.—

''(A) IN GENERAL.—The State or the Federal Government may fund not more than the 17.5 percent local share of the costs of the Basin Conservation Program in exchange for the long-term use of conserved water, subject to the requirement that the funding by the Federal Government of the local share of the costs shall provide a quantifiable public benefit in meeting Federal responsibilities in the Basin and the purposes of this title.

''(B) USE OF CONSERVED WATER.—The Yakima Project Manager may use water resulting from conservation measures taken under this title, in addition to water that the Bureau of Reclamation may acquire from any willing seller through purchase, donation, or lease, for water management uses pursuant to this title.'';

(4) in subsection (e), by striking the first sentence and inserting the following: ''To participate in the Basin Conservation Program, as described in subsection (b), an entity shall submit to the Secretary a proposed water conservation plan.'';

(5) in subsection (i)(3)—

(A) by striking ''purchase or lease'' each place it appears and inserting ''purchase, lease, or management''; and

(B) in the third sentence, by striking ''made immediately upon availability'' and all that follows through ''Committee'' and inserting ''continued as needed to provide water to be used by the Yakima Project Manager as recommended by the System Operations Advisory Committee and the Conservation Advisory Group''; and

(6) in subsection (j)(4), in the first sentence, by striking ''initial acquisition'' and all that follows through ''flushing flows'' and inserting ''acquisition of water from willing sellers or lessors specifically to provide improved instream flows for anadromous and resident fish and other aquatic life, including pulse flows to facilitate outward migration of anadromous fish''.

SEC. 6324. YAKIMA BASIN WATER PROJECTS, OPERATIONS, AND AUTHORIZATIONS.

(a) YAKAMA NATION PROJECTS.—Section 1204 of Public Law 103–434 (108 Stat. 4555) is amended—

(1) in subsection (a)(2), in the first sentence, by striking ''not more than $23,000,000'' and inserting ''not more than $100,000,000''; and

(2) in subsection (g)—

(A) by striking the subsection heading and inserting ''REDESIGNATION OF YAKAMA INDIAN NATION TO YAKAMA NATION.—'';

(B) by striking paragraph (1) and inserting the following:

''(1) REDESIGNATION.—The Confederated Tribes and Bands of the Yakama Indian Nation shall be known and designated as the 'Confederated Tribes and Bands of the Yakama Nation'.''; and

(C) in paragraph (2), by striking ''deemed to be a reference to the 'Confederated Tribes and Bands of the Yakama Indian Nation'.'' and inserting ''deemed to be a reference to the 'Confederated Tribes and Bands of the Yakama Nation'.''.

(b) OPERATION OF YAKIMA BASIN PROJECTS.—Section 1205 of Public Law 103–434 (108 Stat. 4557) is amended—

(1) in subsection (a)—

(A) in paragraph (4)—

(i) in subparagraph (A)—

(I) in clause (i)—

(aa) by inserting ''additional'' after ''secure'';

(bb) by striking ''flushing'' and inserting ''pulse''; and

(cc) by striking ''uses'' and inserting ''uses, in addition to the quantity of water provided under the treaty between the Yakama Nation and the United States'';

(II) by striking clause (ii);

(III) by redesignating clause (iii) as clause (ii); and

(IV) in clause (ii) (as so redesignated) by inserting ''and water rights mandated'' after ''goals''; and

(ii) in subparagraph (B)(i), in the first sentence, by inserting ''in proportion to the funding received'' after ''Program'';

(2) in subsection (b) (as amended by section 6322(a)(2)), in the second sentence, by striking ''instream flows for use by the Yakima Project Manager as flushing flows or as otherwise'' and inserting ''fishery purposes, as''; and

(3) in subsection (e), by striking paragraph (1) and inserting the following:

''(1) IN GENERAL.—Additional purposes of the Yakima Project shall be any of the following:

''(A) To recover and maintain self-sustaining harvestable populations of native fish, both anadromous and resident species, throughout their historic distribution range in the Yakima Basin.

''(B) To protect, mitigate, and enhance aquatic life and wildlife.

''(C) Recreation.

''(D) Municipal, industrial, and domestic use.''.

(c) LAKE CLE ELUM AUTHORIZATION OF APPROPRIATIONS.—Section 1206(a)(1) of Public Law 103–434 (108 Stat. 4560), is amended, in the matter preceding subparagraph (A), by striking ''at September'' and all that follows through ''to—'' and inserting ''not more than $12,000,000 to—''.

(d) ENHANCEMENT OF WATER SUPPLIES FOR YAKIMA BASIN TRIBUTARIES.—Section 1207 of Public Law 103–434 (108 Stat. 4560) is amended—

(1) in the heading, by striking ''**SUPPLIES**'' and inserting ''**MANAGEMENT**'';

(2) in subsection (a)—

(A) in the matter preceding paragraph (1), by striking ''supplies'' and inserting ''management'';

(B) in paragraph (1), by inserting ''and water supply entities'' after ''owners''; and

(C) in paragraph (2)—

(i) in subparagraph (A), by inserting ''that choose not to participate or opt out of tributary enhancement projects pursuant to this section'' after ''water right owners''; and

(ii) in subparagraph (B), by inserting ''nonparticipating'' before ''tributary water users'';

(3) in subsection (b)—

(A) in paragraph (1)—

(i) by striking the paragraph designation and all that follows through ''(but not limited to)—'' and inserting the following:

''(1) IN GENERAL.—The Secretary, following consultation with the State of Washington, tributary water right owners, and the Yakama Nation, and on agreement of appropriate water right owners, is authorized to conduct studies to evaluate measures to further Yakima Project purposes on tributaries to the Yakima River. Enhancement programs that use measures authorized by this subsection may be investigated and implemented by the Secretary in tributaries to the Yakima River, including Taneum Creek, other areas, or tributary basins that currently or could potentially be provided supplemental or transfer water by entities, such as the Kittitas Reclamation District or the Yakima-Tieton Irrigation District, subject to the condition that activities may commence on completion of applicable and required feasibility studies, environmental reviews, and cost-benefit analyses that include favorable recommendations for further project development, as appropriate. Measures to evaluate include—'';

(ii) by indenting subparagraphs (A) through (F) appropriately;

(iii) in subparagraph (A), by inserting before the semicolon at the end the following: '', including irrigation efficiency improvements (in coordination with programs of the Department of Agriculture), consolidation of diversions or administration, and diversion scheduling or coordination'';

(iv) by redesignating subparagraphs (C) through (F) as subparagraphs (E) through (H), respectively;

(v) by inserting after subparagraph (B) the following:

''(C) improvements in irrigation system management or delivery facilities within the Yakima River basin when those improvements allow for increased irrigation system conveyance and corresponding reduction in diversion from tributaries or flow enhancements to tributaries through direct flow supplementation or groundwater recharge;

''(D) improvements of irrigation system management or delivery facilities to reduce or eliminate excessively high flows caused by the use of natural streams for conveyance or irrigation water or return water;'';

(vi) in subparagraph (E) (as redesignated by clause (iv)), by striking ''ground water'' and inserting ''groundwater recharge and'';

(vii) in subparagraph (G) (as redesignated by clause (iv)), by inserting ''or transfer'' after ''purchase''; and

(viii) in subparagraph (H) (as redesignated by clause (iv)), by inserting ''stream processes and'' before ''stream habitats'';

(B) in paragraph (2)—

(i) in the matter preceding subparagraph (A), by striking ''the Taneum Creek study'' and inserting ''studies under this subsection'';

(ii) in subparagraph (B)—

(I) by striking ''and economic'' and inserting '', infrastructure, economic, and land use''; and

(II) by striking ''and'' at the end;

(iii) in subparagraph (C), by striking the period at the end and inserting ''; and''; and

(iv) by adding at the end the following:

''(D) any related studies already underway or undertaken.''; and

(C) in paragraph (3), in the first sentence, by inserting ''of each tributary or group of tributaries'' after ''study'';

(4) in subsection (c)—

(A) in the heading, by inserting ''**AND NONSURFACE STORAGE**'' after ''**NONSTORAGE**''; and

(B) in the matter preceding paragraph (1), by inserting ''and nonsurface storage'' after ''nonstorage'';

(5) by striking subsection (d);

(6) by redesignating subsection (e) as subsection (d); and

(7) in paragraph (2) of subsection (d) (as so redesignated)—

(A) in the first sentence—

(i) by inserting ''and implementation'' after ''investigation'';

(ii) by striking ''other'' before ''Yakima River''; and

(iii) by inserting ''and other water supply entities'' after ''owners''; and

(B) by striking the second sentence.

(e) CHANDLER PUMPING PLANT AND POWERPLANT-OPERATIONS AT PROSSER DIVERSION DAM.—Section 1208(d) of Public Law 103–434 (108 Stat. 4562; 114 Stat. 1425) is amended by inserting ''negatively'' before ''affected''.

(f) INTERIM COMPREHENSIVE BASIN OPERATING PLAN.—Section 1210(c) of Public Law 103–434 (108 Stat. 4564) is amended by striking ''$100,000'' and inserting ''$200,000''.

(g) ENVIRONMENTAL COMPLIANCE.—Section 1211 of Public Law 103–434 (108 Stat. 4564) is amended by striking ''$2,000,000'' and inserting ''$5,000,000''.

SEC. 6325. AUTHORIZATION OF PHASE III OF YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT.

Title XII of Public Law 103–434 (108 Stat. 4550) is amended by adding at the end the following:

''SEC. 1213. AUTHORIZATION OF THE INTEGRATED PLAN AS PHASE III OF YAKIMA RIVER BASIN WATER ENHANCEMENT PROJECT.

''(a) INTEGRATED PLAN.—

''(1) IN GENERAL.—The Secretary shall implement the Integrated Plan as Phase III of the Yakima River Basin Water Enhancement Project in accordance with this section and applicable laws.

''(2) INITIAL DEVELOPMENT PHASE OF THE INTEGRATED PLAN.—

''(A) IN GENERAL.—The Secretary, in coordination with the State of Washington and Yakama Nation and subject to feasibility studies, environmental reviews, and the availability of appropriations, shall implement an initial development phase of the Integrated Plan, to—

''(i) complete the planning, design, and construction or development of upstream and downstream fish passage facilities, as previously authorized by the Hoover Power

Plant Act of 1984 (43 U.S.C. 619 et seq.) at Cle Elum Reservoir and another Yakima Project reservoir identified by the Secretary as consistent with the Integrated Plan, subject to the condition that, if the Yakima Project reservoir identified by the Secretary contains a hydropower project licensed by the Federal Energy Regulatory Commission, the Secretary shall cooperate with the Federal Energy Regulatory Commission in a timely manner to ensure that actions taken by the Secretary are consistent with the applicable hydropower project license;

''(ii) negotiate long-term agreements with participating proratable irrigation entities in the Yakima Basin and, acting through the Bureau of Reclamation, coordinate between Bureaus of the Department of the Interior and with the heads of other Federal agencies to negotiate agreements concerning leases, easements, and rights-of-way on Federal land, and other terms and conditions determined to be necessary to allow for the non-Federal financing, construction, operation, and maintenance of—

''(I) new facilities needed to access and deliver inactive storage in Lake Kachess for the purpose of providing drought relief for irrigation (known as the 'Kachess Drought Relief Pumping Plant'); and

''(II) a conveyance system to allow transfer of water between Keechelus Reservoir to Kachess Reservoir for purposes of improving operational flexibility for the benefit of both fish and irrigation (known as the 'K to K Pipeline');

''(iii) participate in, provide funding for, and accept non-Federal financing for—

''(I) water conservation projects, not subject to the provisions of the Basin Conservation Program described in section 1203, that are intended to partially implement the Integrated Plan by providing 85,000 acre-feet of conserved water to improve tributary and mainstem stream flow; and

''(II) aquifer storage and recovery projects;

''(iv) study, evaluate, and conduct feasibility analyses and environmental reviews of fish passage, water supply (including groundwater and surface water storage), conservation, habitat restoration projects, and other alternatives identified as consistent with the purposes of this Act, for the initial and future phases of the Integrated Plan;

''(v) coordinate with and assist the State of Washington in implementing a robust water market to enhance water management in the Yakima River basin, including—

''(I) assisting in identifying ways to encourage and increase the use of, and reduce the barriers to, water transfers, leasing, markets, and other voluntary transactions among public and private entities in the Yakima River basin;

''(II) providing technical assistance, including scientific data and market information; and

''(III) negotiating agreements that would facilitate voluntary water transfers between entities, including as appropriate, the use of federally managed infrastructure; and

''(vi) enter into cooperative agreements with, or, subject to a minimum non-Federal cost-sharing requirement of 50 percent, make grants to, the Yakama Nation, the State of Washington, Yakima River basin irrigation districts, water districts, conservation districts, other local governmental entities, nonprofit organizations, and land owners to carry out this title under such terms and conditions as the Secretary may require, including the following purposes:

''(I) Land and water transfers, leases, and acquisitions from willing participants, so long as the acquiring entity shall hold title and be responsible for any and all required operations, maintenance, and management of that land and water.

''(II) To combine or relocate diversion points, remove fish barriers, or for other activities that increase flows or improve habitat in the Yakima River and its tributaries in furtherance of this title.

''(III) To implement, in partnership with Federal and non-Federal entities, projects to enhance the health and resilience of the watershed.

''(B) COMMENCEMENT DATE.—The Secretary shall commence implementation of the activities included under the initial development phase pursuant to this paragraph—

''(i) on the date of enactment of this section; and

''(ii) on completion of applicable feasibility studies, environmental reviews, and cost-benefit analyses that include favorable recommendations for further project development.

''(3) INTERMEDIATE AND FINAL PHASES.—

''(A) IN GENERAL.—The Secretary, in coordination with the State of Washington and in consultation with the Yakama Nation, shall develop plans for intermediate and final development phases of the Integrated Plan to achieve the purposes of this Act, including conducting applicable feasibility studies, environmental reviews, and other relevant studies needed to develop the plans.

''(B) INTERMEDIATE PHASE.—The Secretary shall develop an intermediate development phase to implement the Integrated Plan that, subject to authorization and appropriation, would commence not later than 10 years after the date of enactment of this section.

''(C) FINAL PHASE.—The Secretary shall develop a final development phase to implement the Integrated Plan that, subject to authorization and appropriation, would commence not later than 20 years after the date of enactment of this section.

''(4) CONTINGENCIES.—The implementation by the Secretary of projects and activities identified for implementation under the Integrated Plan shall be—

''(A) subject to authorization and appropriation;

''(B) contingent on the completion of applicable feasibility studies, environmental reviews, and cost-benefit analyses that include favorable recommendations for further project development;

''(C) implemented on public review and a determination by the Secretary that design, construction, and operation of a proposed project or activity is in the best interest of the public; and

''(D) in compliance with all applicable laws, including the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq).

''(5) PROGRESS REPORT.—

''(A) IN GENERAL.—Not later than 5 years after the date of enactment of this section, the Secretary, in conjunction with the State of Washington and in consultation with the Yakama Nation, shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a progress report on the development and implementation of the Integrated Plan.

''(B) REQUIREMENTS.—The progress report under this paragraph shall—

''(i) provide a review and reassessment, if needed, of the objectives of the Integrated Plan, as applied to all elements of the Integrated Plan;

''(ii) assess, through performance metrics developed at the initiation of, and measured throughout the implementation of, the Integrated Plan, the degree to which the implementation of the initial development phase addresses the objectives and all elements of the Integrated Plan;

''(iii) identify the amount of Federal funding and non-Federal contributions received and expended during the period covered by the report;

''(iv) describe the pace of project development during the period covered by the report;

''(v) identify additional projects and activities proposed for inclusion in any future phase of the Integrated Plan to address the objectives of the Integrated Plan, as applied to all elements of the Integrated Plan; and

''(vi) for water supply projects—

''(I) provide a preliminary discussion of the means by which—

''(aa) water and costs associated with each recommended project would be allocated among authorized uses; and

''(bb) those allocations would be consistent with the objectives of the Integrated Plan; and

''(II) establish a plan for soliciting and formalizing subscriptions among individuals and entities for participation in any of the recommended water supply projects that will establish the terms for participation, including fiscal obligations associated with subscription.

''(b) FINANCING, CONSTRUCTION, OPERATION, AND MAINTENANCE OF KACHESS DROUGHT RELIEF PUMPING PLANT AND K TO K PIPELINE.—

''(1) AGREEMENTS.—Long-term agreements negotiated between the Secretary and participating proratable irrigation entities in the Yakima Basin for the non-Federal financing, construction, operation, and maintenance of the Drought Relief Pumping Plant and K to K Pipeline shall include provisions regarding—

''(A) responsibilities of the participating proratable irrigation entities for the planning, design, and construction of infrastructure in consultation and coordination with the Secretary;

''(B) property titles and responsibilities of the participating proratable irrigation entities for the maintenance of and liability for all infrastructure constructed under this title;

''(C) operation and integration of the projects by the Secretary in the operation of the Yakima Project;

''(D) costs associated with the design, financing, construction, operation, maintenance, and mitigation of projects, with the costs of Federal oversight and review to be nonreimbursable to the participating proratable irrigation entities and the Yakima Project; and

''(E) responsibilities for the pumping and operational costs necessary to provide the total water supply available made inaccessible due to drought pumping during the preceding 1 or more calendar years, in the event that the Kachess Reservoir fails to refill as a result of pumping drought storage water during the preceding 1 or more calendar years, which shall remain the responsibility of the participating proratable irrigation entities.

''(2) USE OF KACHESS RESERVOIR STORED WATER.—

''(A) IN GENERAL.—The additional stored water made available by the construction of facilities to access and deliver inactive storage in Kachess Reservoir under subsection (a)(2)(A)(ii)(I) shall—

''(i) be considered to be Yakima Project water;

''(ii) not be part of the total water supply available, as that term is defined in various court rulings; and

''(iii) be used exclusively by the Secretary—

''(I) to enhance the water supply in years when the total water supply available is not sufficient to provide 70 percent of proratable entitlements in order to make that additional water available up to 70 percent of

proratable entitlements to the Kittitas Reclamation District, the Roza Irrigation District, or other proratable irrigation entities participating in the construction, operation, and maintenance costs of the facilities under this title under such terms and conditions to which the districts may agree, subject to the conditions that—

''(aa) the Bureau of Indian Affairs, the Wapato Irrigation Project, and the Yakama Nation, on an election to participate, may also obtain water from Kachess Reservoir inactive storage to enhance applicable existing irrigation water supply in accordance with such terms and conditions to which the Bureau of Indian Affairs and the Yakama Nation may agree; and

''(bb) the additional supply made available under this clause shall be available to participating individuals and entities in proportion to the proratable entitlements of the participating individuals and entities, or in such other proportion as the participating entities may agree; and

''(II) to facilitate reservoir operations in the reach of the Yakima River between Keechelus Dam and Easton Dam for the propagation of anadromous fish.

''(B) EFFECT OF PARAGRAPH.—Nothing in this paragraph affects (as in existence on the date of enactment of this section) any contract, law (including regulations) relating to repayment costs, water right, or Yakama Nation treaty right.

''(3) COMMENCEMENT.—The Secretary shall not commence entering into agreements pursuant to subsection (a)(2)(A)(ii) or subsection (b)(1) or implementing any activities pursuant to the agreements before the date on which—

''(A) all applicable and required feasibility studies, environmental reviews, and cost-benefit analyses have been completed and include favorable recommendations for further project development, including an analysis of—

''(i) the impacts of the agreements and activities conducted pursuant to subsection (a)(2)(A)(ii) on adjacent communities, including potential fire hazards, water access for fire districts, community and homeowner wells, future water levels based on projected usage, recreational values, and property values; and

''(ii) specific options and measures for mitigating the impacts, as appropriate;

''(B) the Secretary has made the agreements and any applicable project designs, operations plans, and other documents available for public review and comment in the Federal Register for a period of not less than 60 days; and

''(C) the Secretary has made a determination, consistent with applicable law, that the agreements and activities to which the agreements relate—

''(i) are in the public interest; and

''(ii) could be implemented without significant adverse impacts to the environment.

''(4) ELECTRICAL POWER ASSOCIATED WITH KACHESS DROUGHT RELIEF PUMPING PLANT.—

''(A) IN GENERAL.—The Administrator of the Bonneville Power Administration, pursuant to the Pacific Northwest Electric Power Planning and Conservation Act (16 U.S.C. 839 et seq.), shall provide to the Secretary project power to operate the Kachess Pumping Plant constructed under this title if inactive storage in Kachess Reservoir is needed to provide drought relief for irrigation, subject to the requirements of subparagraphs (B) and (C).

''(B) DETERMINATION.—Power may be provided under subparagraph (A) only if—

''(i) there is in effect a drought declaration issued by the State of Washington;

''(ii) there are conditions that have led to 70 percent or less water delivery to proratable irrigation districts, as determined by the Secretary; and

''(iii) the Secretary determines that it is appropriate to provide power under that subparagraph.

''(C) PERIOD OF AVAILABILITY.—Power under subparagraph (A) shall be provided until the date on which the Secretary determines that power should no longer be provided under that subparagraph, but for not more than a 1-year period or the period during which the Secretary determines that drought mitigation measures are necessary in the Yakima River basin.

''(D) RATE.—The Administrator of the Bonneville Power Administration shall provide power under subparagraph (A) at the then-applicable lowest Bonneville Power Administration rate for public body, cooperative, and Federal agency customers firm obligations, which as of the date of enactment of this section is the priority firm Tier 1 rate, and shall not include any irrigation discount.

''(E) LOCAL PROVIDER.—During any period in which power is not being provided under subparagraph (A), the power needed to operate the Kachess Pumping Plant shall be obtained by the Secretary from a local provider.

''(F) COSTS.—The cost of power for such pumping, station service power, and all costs of transmitting power from the Federal Columbia River Power System to the Yakima Enhancement Project pumping facilities shall be borne by irrigation districts receiving the benefits of that water.

''(G) DUTIES OF COMMISSIONER.—The Commissioner of Reclamation shall be responsible for arranging transmission for deliveries of Federal power over the Bonneville system through applicable tariff and business practice processes of the Bonneville system and for arranging transmission for deliveries of power obtained from a local provider.

''(c) DESIGN AND USE OF GROUNDWATER RECHARGE PROJECTS.—

''(1) IN GENERAL.—Any water supply that results from an aquifer storage and recovery project shall not be considered to be a part of the total water supply available if—

''(A) the water for the aquifer storage and recovery project would not be available for use, but instead for the development of the project;

''(B) the aquifer storage and recovery project will not otherwise impair any water supply available for any individual or entity entitled to use the total water supply available; and

''(C) the development of the aquifer storage and recovery project will not impair fish or other aquatic life in any localized stream reach.

''(2) PROJECT TYPES.—The Secretary may provide technical assistance for, and participate in, any of the following 3 types of groundwater recharge projects (including the incorporation of groundwater recharge projects into Yakima Project operations, as appropriate):

''(A) Aquifer recharge projects designed to redistribute Yakima Project water within a water year for the purposes of supplementing stream flow during the irrigation season, particularly during storage control, subject to the condition that if such a project is designed to supplement a mainstem reach, the water supply that results from the project shall be credited to instream flow targets, in lieu of using the total water supply available to meet those targets.

''(B) Aquifer storage and recovery projects that are designed, within a given water year or over multiple water years—

''(i) to supplement or mitigate for municipal uses;

''(ii) to supplement municipal supply in a subsurface aquifer; or

''(iii) to mitigate the effect of groundwater use on instream flow or senior water rights.

''(C) Aquifer storage and recovery projects designed to supplement existing irrigation water supply, or to store water in subsurface aquifers, for use by the Kittitas Reclamation District, the Roza Irrigation District, or any other proratable irrigation entity participating in the repayment of the construction, operation, and maintenance costs of the facilities under this section during years in which the total water supply available is insufficient to provide to those proratable irrigation entities all water to which the entities are entitled, subject to the conditions that—

''(i) the Bureau of Indian Affairs, the Wapato Irrigation Project, and the Yakama Nation, on an election to participate, may also obtain water from aquifer storage to enhance applicable existing irrigation water supply in accordance with such terms and conditions to which the Bureau of Indian Affairs and the Yakama Nation may agree; and

''(ii) nothing in this subparagraph affects (as in existence on the date of enactment of this section) any contract, law (including regulations) relating to repayment costs, water right, or Yakama Nation treaty right.

''(d) FEDERAL COST-SHARE.—

''(1) IN GENERAL.—The Federal cost-share of a project carried out under this section shall be determined in accordance with the applicable laws (including regulations) and policies of the Bureau of Reclamation.

''(2) INITIAL PHASE.—The Federal cost-share for the initial development phase of the Integrated Plan shall not exceed 50 percent of the total cost of the initial development phase.

''(3) STATE AND OTHER CONTRIBUTIONS.—The Secretary may accept as part of the non-Federal cost-share of a project carried out under this section, and expend as if appropriated, any contribution (including in-kind services) by the State of Washington or any other individual or entity that the Secretary determines will enhance the conduct and completion of the project.

''(4) LIMITATION ON USE OF OTHER FEDERAL FUNDS.—Except as otherwise provided in this title, other Federal funds may not be used to provide the non-Federal cost-share of a project carried out under this section.

''(e) SAVINGS AND CONTINGENCIES.—Nothing in this section shall—

''(1) be a new or supplemental benefit for purposes of the Reclamation Reform Act of 1982 (43 U.S.C. 390aa et seq.);

''(2) affect any contract in existence on the date of enactment of the Yakima River Basin Water Enhancement Project Phase III Act of 2016 that was executed pursuant to the reclamation laws;

''(3) affect any contract or agreement between the Bureau of Indian Affairs and the Bureau of Reclamation;

''(4) affect, waive, abrogate, diminish, define, or interpret the treaty between the Yakama Nation and the United States; or

''(5) constrain the continued authority of the Secretary to provide fish passage in the Yakima Basin in accordance with the Hoover Power Plant Act of 1984 (43 U.S.C 619 et seq.).

''SEC. 1214. OPERATIONAL CONTROL OF WATER SUPPLIES.

''The Secretary shall retain authority and discretion over the management of project supplies to optimize operational use and flexibility to ensure compliance with all applicable Federal and State laws, treaty rights of the Yakama Nation, and legal obligations, including those contained in this Act. That authority and discretion includes

the ability of the United States to store, deliver, conserve, and reuse water supplies deriving from projects authorized under this title.''.

PART IV—RESERVOIR OPERATION IMPROVEMENT

SEC. 6331. RESERVOIR OPERATION IMPROVEMENT.

(a) DEFINITIONS.—In this section:

(1) RESERVED WORKS.—The term ''reserved works'' means any Bureau of Reclamation project facility at which the Secretary of the Interior carries out the operation and maintenance of the project facility.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Army.

(3) TRANSFERRED WORKS.—The term ''transferred works'' means a Bureau of Reclamation project facility, the operation and maintenance of which is carried out by a non-Federal entity, under the provisions of a formal operation and maintenance transfer contract.

(4) TRANSFERRED WORKS OPERATING ENTITY.—The term ''transferred works operating entity'' means the organization that is contractually responsible for operation and maintenance of transferred works.

(b) REPORT.—Not later than 360 days after the date of enactment of this Act, the Secretary shall submit to the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Environment and Public Works of the Senate, and the Committee on Transportation and Infrastructure of the House of Representatives a report including, for any State in which a county designated by the Secretary of Agriculture as a drought disaster area during water year 2015 is located, a list of projects, including Corps of Engineers projects, and those non-Federal projects and transferred works that are operated for flood control in accordance with rules prescribed by the Secretary pursuant to section 7 of the Act of December 22, 1944 (commonly known as the ''Flood Control Act of 1944'') (58 Stat. 890, chapter 665), including, as applicable—

(1) the year the original water control manual was approved;

(2) the year for any subsequent revisions to the water control plan and manual of the project;

(3) a list of projects for which—

(A) operational deviations for drought contingency have been requested;

(B) the status of the request; and

(C) a description of how water conservation and water quality improvements were addressed; and

(4) a list of projects for which permanent or seasonal changes to storage allocations have been requested, and the status of the request.

(c) PROJECT IDENTIFICATION.—Not later than 60 days after the date of completion of the report under subsection (b), the Secretary shall identify any projects described in the report—

(1) for which the modification of the water operations manuals, including flood control rule curve, would be likely to enhance existing authorized project purposes, including for water supply benefits and flood control operations;

(2) for which the water control manual and hydrometeorological information establishing the flood control rule curves of the project have not been substantially revised during the 15-year period ending on the date of review by the Secretary; and

(3) for which the non-Federal sponsor or sponsors of a Corps of Engineers project, the owner of a non-Federal project, or the non-Federal transferred works operating entity, as applicable, has submitted to the Secretary a written request to revise water operations manuals, including flood control rule curves, based on the use of improved weather forecasting or run-off forecasting methods, new watershed data, changes to project operations, or structural improvements.

(d) PILOT PROJECTS.—

(1) IN GENERAL.—Not later than 1 year after the date of identification of projects under subsection (c), if any, the Secretary shall carry out not fewer than 15 pilot projects, which shall include not less than 6 non-Federal projects, to implement revisions of water operations manuals, including flood control rule curves, based on the best available science, which may include—

(A) forecast-informed operations;

(B) new watershed data; and

(C) if applicable, in the case of non-Federal projects, structural improvements.

(2) CONSULTATION.—In implementing a pilot project under this subsection, the Secretary shall consult with all affected interests, including—

(A) non-Federal entities responsible for operations and maintenance costs of a Federal facility;

(B) individuals and entities with storage entitlements; and

(C) local agencies with flood control responsibilities downstream of a facility.

(e) COORDINATION WITH NON-FEDERAL PROJECT ENTITIES.—If a project identified under subsection (c) is—

(1) a non-Federal project, the Secretary, prior to carrying out an activity under this section, shall—

(A) consult with the non-Federal project owner; and

(B) enter into a cooperative agreement, memorandum of understanding, or other agreement with the non-Federal project owner describing the scope and goals of the activity and the coordination among the parties; and

(2) a Federal project, the Secretary, prior to carrying out an activity under this section, shall—

(A) consult with each Federal and non-Federal entity (including a municipal water district, irrigation district, joint powers authority, transferred works operating entity, or other local governmental entity) that currently—

(i) manages (in whole or in part) a Federal dam or reservoir; or

(ii) is responsible for operations and maintenance costs; and

(B) enter into a cooperative agreement, memorandum of understanding, or other agreement with each such entity describing the scope and goals of the activity and the coordination among the parties.

(f) CONSIDERATION.—In designing and implementing a forecast-informed reservoir operations plan under subsection (d) or (g), the Secretary may consult with the appropriate agencies within the Department of the Interior and the Department of Commerce with expertise in atmospheric, meteorological, and hydrologic science to consider—

(1) the relationship between ocean and atmospheric conditions, including—

(A) the El Niño and La Niña cycles; and

(B) the potential for above-normal, normal, and below-normal rainfall for the coming water year, including consideration of atmospheric river forecasts;

(2) the precipitation and runoff index specific to the basin and watershed of the relevant dam or reservoir, including incorporating knowledge of hydrological and meteorological conditions that influence the timing and quantity of runoff;

(3) improved hydrologic forecasting for precipitation, snowpack, and soil moisture conditions;

(4) an adjustment of operational flood control rule curves to optimize water supply storage and reliability, hydropower production, environmental benefits for flows and temperature, and other authorized project benefits, without a reduction in flood safety; and

(5) proactive management in response to changes in forecasts.

(g) FUNDING.—The Secretary may accept and expend amounts from non-Federal entities and other Federal agencies to fund all or a portion of the cost of carrying out a review or revision of operational documents, including water control plans, water control manuals, water control diagrams, release schedules, rule curves, operational agreements with non-Federal entities, and any associated environmental documentation for—

(1) a Corps of Engineers project;

(2) a non-Federal project regulated for flood control by the Secretary; or

(3) a Bureau of Reclamation transferred works regulated for flood control by the Secretary.

(h) EFFECT.—

(1) MANUAL REVISIONS.—A revision of a manual shall not interfere with the authorized purposes of a Federal project or the existing purposes of a non-Federal project regulated for flood control by the Secretary.

(2) EFFECT OF SECTION.—

(A) Nothing in this section authorizes the Secretary to carry out, at a Federal dam or reservoir, any project or activity for a purpose not otherwise authorized as of the date of enactment of this Act.

(B) Nothing in this section affects or modifies any obligation of the Secretary under State law.

(3) BUREAU OF RECLAMATION RESERVED WORKS EXCLUDED.—This section—

(A) shall not apply to any dam or reservoir operated by the Bureau of Reclamation as a reserved work, unless all non-Federal project sponsors of a reserved work jointly provide to the Secretary a written request for application of this section to the project; and

(B) shall apply only to Bureau of Reclamation transferred works at the written request of the transferred works operating entity.

(i) MODIFICATIONS TO MANUALS AND CURVES.—Not later than 180 days after the date of completion of a modification to an operations manual or flood control rule curve, the Secretary shall submit to the Congress a report regarding the components of the forecast-based reservoir operations plan incorporated into the change.

PART V—HYDROELECTRIC PROJECTS

SEC. 6341. TERROR LAKE HYDROELECTRIC PROJECT UPPER HIDDEN BASIN DIVERSION AUTHORIZATION.

(a) DEFINITIONS.—In this section:

(1) TERROR LAKE HYDROELECTRIC PROJECT.—The term ''Terror Lake Hydroelectric Project'' means the project identified in section 1325 of the Alaska National Interest Lands Conservation Act (16 U.S.C. 3212), and which is Federal Energy Regulatory Commission project number 2743.

(2) UPPER HIDDEN BASIN DIVERSION EXPANSION.—The term ''Upper Hidden Basin Diversion Expansion'' means the expansion of the Terror Lake Hydroelectric Project as generally described in Exhibit E to the Upper Hidden Basin Grant Application dated July 2, 2014 and submitted to the Alaska Energy Authority Renewable Energy Fund Round VIII by Kodiak Electric Association, Inc.

(b) AUTHORIZATION.—The licensee for the Terror Lake Hydroelectric Project may occupy not more than 20 acres of Federal land to construct, operate, and maintain the Upper Hidden Basin Diversion Expansion without further authorization of the Secretary of the Interior or under the Alaska

National Interest Lands Conservation Act (16 U.S.C. 3101 et seq.).

(c) SAVINGS CLAUSE.—The Upper Hidden Basin Diversion Expansion shall be subject to appropriate terms and conditions included in an amendment to a license issued by the Federal Energy Regulatory Commission pursuant to the Federal Power Act (16 U.S.C. 791a et seq.), including section 4(e) of that Act (16 U.S.C. 797(e)), following an environmental review by the Commission under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

SEC. 6342. STAY AND REINSTATEMENT OF FERC LICENSE NO. 11393 FOR THE MAHONEY LAKE HYDROELECTRIC PROJECT.

(a) DEFINITIONS.—In this section:

(1) COMMISSION.—The term ''Commission'' means the Federal Energy Regulatory Commission.

(2) LICENSE.—The term ''license'' means the license for Commission project number 11393.

(3) LICENSEE.—The term ''licensee'' means the holder of the license.

(b) STAY OF LICENSE.—On the request of the licensee, the Commission shall issue an order continuing the stay of the license.

(c) LIFTING OF STAY.—On the request of the licensee, but not later than 10 years after the date of enactment of this Act, the Commission shall—

(1) issue an order lifting the stay of the license under subsection (b); and

(2) make the effective date of the license the date on which the stay is lifted under paragraph (1).

(d) EXTENSION OF LICENSE.—On the request of the licensee and notwithstanding the time period specified in section 13 of the Federal Power Act (16 U.S.C. 806) for commencement of construction of the project subject to the license, the Commission shall, after reasonable notice and in accordance with the good faith, due diligence, and public interest requirements of that section, extend the time period during which the licensee is required to commence the construction of the project for not more than 3 consecutive 2-year periods, notwithstanding any other provision of law.

(e) EFFECT.—Nothing in this section prioritizes, or creates any advantage or disadvantage to, Commission project number 11393 under Federal law, including the Federal Power Act (16 U.S.C. 791a et seq.) or the Public Utility Regulatory Policies Act of 1978 (16 U.S.C. 2601 et seq.), as compared to—

(1) any electric generating facility in existence on the date of enactment of this Act; or

(2) any electric generating facility that may be examined, proposed, or developed during the period of any stay or extension of the license under this section.

SEC. 6343. EXTENSION OF DEADLINE FOR HYDROELECTRIC PROJECT.

(a) IN GENERAL.—Notwithstanding the time period specified in section 13 of the Federal Power Act (16 U.S.C. 806) that would otherwise apply to the Federal Energy Regulatory Commission (referred to in this section as the ''Commission'') project numbered 12642, the Commission may, at the request of the licensee for the project, and after reasonable notice, in accordance with the good faith, due diligence, and public interest requirements of that section and the procedures of the Commission under that section, extend the time period during which the licensee is required to commence the construction of the project for up to 3 consecutive 2-year periods from the date of the expiration of the extension originally issued by the Commission.

(b) REINSTATEMENT OF EXPIRED LICENSE.—If the period required for commencement of construction of the project described in subsection (a) has expired prior to the date of enactment of this Act—

(1) the Commission shall reinstate the license effective as of the date of the expiration of the license; and

(2) the first extension authorized under subsection (a) shall take effect on that expiration date.

SEC. 6344. EXTENSION OF DEADLINE FOR CERTAIN OTHER HYDROELECTRIC PROJECTS.

(a) IN GENERAL.—Notwithstanding the time period specified in section 13 of the Federal Power Act (16 U.S.C. 806) that would otherwise apply to the Federal Energy Regulatory Commission (referred to in this section as the ''Commission'') projects numbered 12737 and 12740, the Commission may, at the request of the licensee for the applicable project, and after reasonable notice, in accordance with the good faith, due diligence, and public interest requirements of that section and the procedures of the Commission under that section, extend the time period during which the licensee is required to commence the construction of the applicable project for up to 3 consecutive 2-year periods from the date of the expiration of the extension originally issued by the Commission.

(b) REINSTATEMENT OF EXPIRED LICENSE.—If the period required for commencement of construction of a project described in subsection (a) has expired prior to the date of enactment of this Act—

(1) the Commission may reinstate the license for the applicable project effective as of the date of the expiration of the license; and

(2) the first extension authorized under subsection (a) shall take effect on that expiration.

SEC. 6345. EQUUS BEDS DIVISION EXTENSION.

Section 10(h) of Public Law 86–787 (74 Stat. 1026; 120 Stat. 1474) is amended by striking ''10 years'' and inserting ''20 years''.

SEC. 6346. EXTENSION OF TIME FOR A FEDERAL ENERGY REGULATORY COMMISSION PROJECT INVOLVING CANNONSVILLE DAM.

(a) IN GENERAL.—Notwithstanding the time period specified in section 13 of the Federal Power Act (16 U.S.C. 806) that would otherwise apply to the Federal Energy Regulatory Commission project numbered 13287, the Federal Energy Regulatory Commission (referred to in this section as the ''Commission'') may, at the request of the licensee for the project, and after reasonable notice, in accordance with the good faith, due diligence, and public interest requirements of that section and the procedures of the Commission under that section, extend the time period during which the licensee is required to commence construction of the project for up to 4 consecutive 2-year periods after the required date of the commencement of construction described in Article 301 of the license.

(b) REINSTATEMENT OF EXPIRED LICENSE.—

(1) IN GENERAL.—If the required date of the commencement of construction described in subsection (a) has expired prior to the date of enactment of this Act, the Commission may reinstate the license effective as of that date of expiration.

(2) EXTENSION.—If the Commission reinstates the license under paragraph (1), the first extension authorized under subsection (a) shall take effect on the date of that expiration.

PART VI—PUMPED STORAGE HYDROPOWER COMPENSATION

SEC. 6351. PUMPED STORAGE HYDROPOWER COMPENSATION.

Not later than 180 days after the date of enactment of this Act, the Federal Energy Regulatory Commission shall initiate a proceeding to identify and determine the market, procurement, and cost recovery mechanisms that would—

(1) encourage development of pumped storage hydropower assets; and

(2) properly compensate those assets for the full range of services provided to the power grid, including—

(A) balancing electricity supply and demand;

(B) ensuring grid reliability; and

(C) cost-effectively integrating intermittent power sources into the grid.

SA 3229. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title IV, add the following:

SEC. 44___. PROGRAM TO REDUCE THE POTENTIAL IMPACTS OF SOLAR ENERGY FACILITIES ON CERTAIN SPECIES.

In carrying out a program of the Department relating to solar energy or the conduct of solar energy projects using funds provided by the Department, the Secretary shall establish a program to undertake research that—

(1) identifies baseline avian populations and mortality; and

(2) quantifies the impacts of solar energy projects on birds, as compared to other threats to birds.

SA 3230. Mr. FRANKEN submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title II, add the following:

SEC. 23___. ESTABLISHMENT OF STRATEGIC TRANSFORMER RESERVE.

Section 61004 of the Fixing America's Surface Transportation Act (Public Law 114–94) is amended—

(1) in subsection (c)(2)—

(A) in subparagraph (O), by striking ''and'' at the end;

(B) by redesignating subparagraph (P) as subparagraph (Q); and

(C) by inserting after subparagraph (O) the following:

''(P) ways in which to prioritize the use of domestically sourced materials in manufacturing the components of the Strategic Transformer Reserve; and'';

(2) by redesignating subsection (d) as subsection (e); and

(3) by inserting after subsection (c) the following:

''(d) ESTABLISHMENT.—On or after the date that is 180 days after the date on which the Strategic Transformer Reserve plan is submitted to Congress under subsection (c)(1), the Secretary may establish a Strategic Transformer Reserve in accordance with the Strategic Transformer Reserve plan.''.

SA 3231. Mr. HELLER (for himself and Mr. REED) submitted an amendment intended to be proposed to amendment SA 2953 proposed by Ms. MURKOWSKI to the bill S. 2012, to provide for the modernization of the energy policy of the United States, and

for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title II, add the following:

SEC. 23___. CONSIDERATION OF ENERGY STORAGE SYSTEMS.

(a) IN GENERAL.—Section 111(d) of the Public Utility Regulatory Policies Act of 1978 (16 U.S.C. 2621(d)) is amended by adding at the end the following:

''(20) CONSIDERATION OF ENERGY STORAGE SYSTEMS.—Each State shall consider requiring that, as part of a supply side resource planning process, an electric utility of the State demonstrate to the State that the electric utility considered an investment in energy storage systems based on appropriate factors, including—

''(A) total costs and normalized life-cycle costs;

''(B) cost-effectiveness;

''(C) improved reliability;

''(D) security; and

''(E) system performance and efficiency.''.

(b) TIME LIMITATIONS.—Section 112(b) of the Public Utility Regulatory Policies Act of 1978 (16 U.S.C. 2622(b)) is amended by adding at the end the following:

''(7)(A) Not later than 1 year after enactment of this paragraph, each State regulatory authority (with respect to each electric utility for which the State regulatory authority has ratemaking authority) and each nonregulated utility shall commence the consideration referred to in section 111, or set a hearing date for consideration, with respect to the standard established by paragraph (20) of section 111(d).

''(B) Not later than 2 years after the date of enactment of this paragraph, each State regulatory authority (with respect to each electric utility for which the State regulatory authority has ratemaking authority), and each nonregulated electric utility, shall complete the consideration, and shall make the determination, referred to in section 111 with respect to the standard established by paragraph (20) of section 111(d).''.

(c) FAILURE TO COMPLY.—Section 112(c) of the Public Utility Regulatory Policies Act of 1978 (16 U.S.C. 2622(c)) is amended by adding at the end the following: ''In the case of the standard established by paragraph (20) of section 111(d), the reference contained in this subsection to the date of enactment of this Act shall be deemed to be a reference to the date of enactment of that paragraph.''.

(d) PRIOR STATE ACTIONS.—Section 112(d) of the Public Utility Regulatory Policies Act of 1978 (16 U.S.C. 2622(d)) is amended in the matter preceding paragraph (1) by striking ''(19)'' and inserting ''(20)''.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. PORTMAN. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on February 2, 2016, at 10 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. PORTMAN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on February 2, 2016, at 5 p.m., to conduct a classified briefing entitled ''Russia, the European Union, and American Foreign Policy.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. PORTMAN. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on February 2, 2016, at 10:15 a.m., to conduct a hearing entitled ''Frontline Response to Terrorism in America.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. PORTMAN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on February 2, 2016, at 10 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''The Failures and Future of the EB–5 Regional Center Program: Can it be Fixed.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. PORTMAN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on February 2, 2016, at 2:45 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON ANTITRUST, COMPETITION POLICY, AND CONSUMER RIGHTS

Mr. PORTMAN. Mr. President, I ask unanimous consent that the Committee on the Judiciary, Subcommittee on Antitrust, Competition Policy, and Consumer Rights be authorized to meet during the session of the Senate on February 2, 2016, at 2 p.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''License to Compete: Occupational Licensing and the State Action Doctrine.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. HATCH. Mr. President, I ask unanimous consent that Dane Karvois, a member of my staff, be granted floor privileges through the end of the 114th Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. CANTWELL. Mr. President, I ask unanimous consent that Senator FRANKEN's energy policy fellow, Michael Glotter, be granted floor privileges for the remainder of this Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FLAKE. Mr. President, I ask unanimous consent that two legislative fellows in my office, Dr. Lauren Stump and Mr. Tom Zarzecki, be granted floor privileges throughout the remainder of the year.

The PRESIDING OFFICER. Without objection, it is so ordered.

REQUIRING THE SECRETARY OF THE ARMY TO UNDERTAKE REMEDIATION OVERSIGHT OF THE WEST LAKE LANDFILL

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works be discharged from further consideration of S. 2306 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 2306) to require the Secretary of the Army, acting through the Chief of Engineers, to undertake remediation oversight of the West Lake Landfill located in Bridgeton, Missouri.

There being no objection, the Senate proceeded to consider the bill.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the bill be read a third time and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 2306) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 2306

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. TRANSFER OF OVERSIGHT AUTHORITY FROM EPA TO CORPS OF ENGINEERS.

(a) DEFINITIONS.—In this section:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of the Army, acting through the Chief of Engineers.

(2) SITE.—The term ''site'' means the West Lake Landfill located in Bridgeton, Missouri.

(b) TRANSFER.—Notwithstanding any other provision of law, as soon as practicable after the date of enactment of this Act, the Secretary shall—

(1) under the Formerly Utilized Sites Remedial Action Program, undertake the functions and activities described in section 611 of the Energy and Water Development Appropriations Act, 2000 (10 U.S.C. 2701 note; 113 Stat. 502) as the lead agency responding to radioactive contamination at the site; and

(2) carry out remediation activities at the site in accordance with that section.

(c) COST RECOVERY.—The Secretary, in coordination with the Administrator of the Environmental Protection Agency and the Attorney General, shall—

(1) seek to recover any response costs incurred by the Secretary in carrying out this section in accordance with the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601 et seq.); and

(2) return any funds that are recovered under paragraph (1) to be used to carry out the Formerly Utilized Sites Remedial Action Program of the Corps of Engineers.

(d) FUNDING.—The Secretary shall use amounts made available to the Secretary to carry out the Formerly Utilized Sites Remedial Action Program to carry out this section.

(e) SAVINGS PROVISIONS.—

(1) NO LIABILITY.—Nothing in subsection (b) creates liability for—

(A) the Secretary for—

(i) contamination at the site; or

(ii) any actions or failures to act by any past, current, or future licensees, owners, operators, or users of the site; or

(B) any other party involved with the site.

(2) NO EFFECT ON LIABILITY UNDER OTHER LAW.—Nothing in subsection (b) alters the liability of any party relating to the site under any other provision of law.

(3) NO EFFECT ON SUPERFUND STATUS; NATIONAL PRIORITIES LIST DESIGNATION.—Nothing in this Act affects the designation of the site as a Superfund site under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601 et seq.) or the listing of the site on the national priorities list under section 105 of that Act (42 U.S.C. 9605).

RESOLUTIONS SUBMITTED TODAY

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the Senate now proceed to the en bloc consideration of the following Senate resolutions, which were submitted earlier today: S. Res. 353, S. Res. 354, S. Res. 355, and S. Res. 356.

There being no objection, the Senate proceeded to consider the resolutions en bloc.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the resolutions be agreed to, the preambles be agreed to, and the motions to reconsider be laid upon the table en bloc.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolutions were agreed to.

The preambles were agreed to.

(The resolutions, with their preambles, are printed in today's RECORD under ''Submitted Resolutions.'')

MEASURE READ THE FIRST TIME—H.R. 4168

Ms. MURKOWSKI. Mr. President, I understand that there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The bill clerk read as follows:

A bill (H.R. 4168) to amend the Small Business Investment Incentive Act of 1980 to require an annual review by the Securities and Exchange Commission of the annual government-business forum on capital formation that is held pursuant to such Act.

Ms. MURKOWSKI. Mr. President, I now ask for a second reading and, in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection having been heard, the bill will receive a second reading on the next legislative day.

ORDERS FOR WEDNESDAY, FEBRUARY 3, 2016

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, February 3; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business for 1 hour, with Senators permitted to speak therein; further, that the time be equally divided, with the Democrats controlling the first half and the majority controlling the final half; further, that following morning business, the Senate then resume consideration of S. 2012; finally, that the filing deadline for all first-degree amendments to the Murkowski substitute amendment No. 2953 and the underlying bill, S. 2012, be at 1 p.m. tomorrow.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Ms. MURKOWSKI. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 7:38 p.m., adjourned until Wednesday, February 3, 2016, at 9:30 a.m.

EXTENSIONS OF REMARKS

IRAN TERROR FINANCE TRANSPARENCY ACT

SPEECH OF

HON. BOB GOODLATTE

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Wednesday, January 13, 2016

Mr. GOODLATTE. Mr. Speaker, this Administration is giving Iran another free pass. It is irresponsible for the Administration to lift sanctions on foreign financial institutions whose actions have knowingly resulted in support for terrorists or have contributed to Iran's proliferation of nuclear weapons. It floors me that we are even having a debate about this. We should all remember the attacks on September 11th very clearly as well as President Bush's words afterwards. He said, ''We will make no distinction between the terrorists who committed these acts and those who harbor them.'' And that is true today.

Financial institutions that have assisted in transactions to support terrorism are not innocent bystanders, and I take our Constitution's directive to ''provide for the common defense'' very seriously. The Iran Nuclear Agreement was a bad deal, and it's clear that Iran has no intention to hold up its side of the bargain.

I am proud to be a cosponsor of this legislation, and I urge my colleagues to join me in voting for this important piece of legislation.

COAST GUARD AUTHORIZATION ACT OF 2015

SPEECH OF

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Monday, February 1, 2016

Mr. GARAMENDI. Mr. Speaker, I would like to recognize the hard work of Dave Jansen on the Coast Guard Subcommittee, as well as Emily Burns on my staff, to make this bill a success.

PERSONAL EXPLANATION

HON. TIM RYAN

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. RYAN of Ohio. Mr. Speaker, I rise today to correct my vote from yesterday, February 1st on roll call 46 (H.R. 2187). While my vote was recorded as a ''nay'' it was my intention to vote ''yea.''

RECOGNIZING NORTHWEST INDIANA'S NEWLY NATURALIZED CITIZENS

HON. PETER J. VISCLOSKY

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. VISCLOSKY. Mr. Speaker, it is with great pleasure and sincerity that I take this time to congratulate thirty individuals who will take their oath of citizenship on Friday, February 5, 2016. This memorable occasion, which will be presided over by Magistrate Judge John E. Martin, will be held at the United States Courthouse and Federal Building in Hammond, Indiana.

America is a country founded by immigrants. From its beginning, settlers have come from countries around the world to the United States in search of better lives for their families. Oath ceremonies are a shining example of what is so great about the United States of America—that people from all over the world can come together and unite as members of a free, democratic nation. These individuals realize that nowhere else in the world offers a better opportunity for success than here in America.

On February 5, 2016, the following people, representing many nations throughout the world, will take their oaths of citizenship in Hammond, Indiana: Gemma Ramos Laberge, Araceli Ambriz, Ozkan Akkaya, Syed Muhammad Shan Ul Islam, Fernando Romo Vera, Patricia Caroline Njoki Singleton, Clifton Seaford Wade, Aldar Odin Escamilla Velasco, Nastaran Saramaghan, Milad Sohrab, Ali Abdelkadre Mahamat, Julio Cesar Carmona, Sylvia Iliff, Miriam Muthoni Kirori, Henry Irungu Kirori, Abayomi Eyitayo Oloyede, Ivete Baldo Wahlen, Annamaria Mittiga, Ljupcho Todoroski, Monica Cordeiro Ramey, Juan Manuel Almonte, KB Chhoeun, Chunlan Jin Chung, Lucila Diaz, Auribel Mileddy Lester Perez, Yue Min Li, Omkalthoum Hassan Muhamat, Sunisa Phongpichit-Alexander, Aqeela Yasmin Sheikh, and Sergey Gennadyvich Shylin.

Although each individual has sought to become a citizen of the United States for his or her own reasons, be it for education, occupation, or to offer their loved ones better lives, each is inspired by the fact that the United States of America is, as Abraham Lincoln described it, a country ''. . . of the people, by the people, and for the people.'' They realize that the United States is truly a free nation. By seeking American citizenship, they have made the decision that they want to live in a place where, as guaranteed by the First Amendment of the Constitution, they can practice religion as they choose, speak their minds without fear of punishment, and assemble in peaceful protest should they choose to do so.

Mr. Speaker, I respectfully ask you and my other distinguished colleagues to join me in congratulating these individuals who will become citizens of the United States of America on February 5, 2016. They, too, will be American citizens, and they, too, will be guaranteed the inalienable rights to life, liberty, and the pursuit of happiness. We, as a free and democratic nation, congratulate them and welcome them.

REMEMBERING THE LIFE OF COACH C.D. ''LEFTY'' ANDERSON

HON. BRADLEY BYRNE

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. BYRNE. Mr. Speaker, I rise today to remember the life of Coach C.D. ''Lefty'' Anderson, a beloved long-time football coach, administrator and family man in Mobile County, Alabama.

Coach Anderson was born on July 17, 1929 in Coffeeville, Alabama. He attended and played football at Jackson High School and Livingston State, where his love of football began. After college, he served a two-year stint in the Army and then later went on to become head football coach at Frisco City in Monroe County, Alabama.

After being named the head coach, Coach Anderson immediately began to instill the belief in his players that they were winners. During his time at Frisco City, Coach Anderson accumulated a total of 53 wins, beating teams much larger than his.

In 1963, he became the head coach at Murphy High School, which was one of the state's largest schools. At Murphy, he did what he was accustomed to . . . he won football games. In his first year, he led his Panther team to an 8–1 season, a major improvement from the five combined wins the school had in the three years prior. He would go on to win 32 games during his six-year tenure as head coach, before making the move to an administrative role at the school.

Coach Anderson would go on to serve a year as the school's assistant principal and 10 more years as principal. I've heard that Coach Anderson took the same hard-nosed approach he had as a coach and applied it to his role as principal. He ensured that his students followed the rules and behaved properly, but just like his players, there was never any doubt how much he cared for them.

After his time as an administrator, Coach Anderson served as the Mobile County athletic director for eight years until his retirement in the early 1990s. He also served 13 years on the Alabama High School Athletic Association's (AHSAA) Central Board of Control, including two years as president.

Outside of the classroom, Coach Anderson played a vital role in the development of high school football throughout the state. Anderson was instrumental in the creation of the Alabama-Mississippi All-Star Football game in 1998. Due to his contribution and dedication to the game, the MVP award was named after him. He later achieved the honor of becoming

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

part of the first class inducted into the AHSAA High School Hall of Fame in 1991.

Although retired, Coach Anderson's love and knowledge of the game continued to shine. He was always willing to help mentor anyone who sought his knowledge about the game.

During the last 5 years of his life Coach Anderson fought valiantly against Alzheimer's, never letting it inhibit his view on life. Sadly, on January 21, Coach Anderson passed away after a battle with pneumonia.

Coach Eddie Robinson put it best when he said that ''coaching is a profession of love. You can't coach people unless you love them.'' I believe this was always the mindset of Coach Anderson. He always cared deeply for his players and students.

Coach Anderson leaves behind a legacy of love and humility and his spirit will live on in the countless individuals he impacted over the course of his career. The city of Mobile, Mobile County, and the entire State of Alabama will be forever grateful for the life and service of Coach ''Lefty'' Anderson. On behalf of Alabama's entire First Congressional District, we extend our greatest of condolences to his son Chuck, his two grandchildren, Laura and Sam, as well as his two great-grandchildren, Ayden and Caroline. Coach Anderson will be deeply missed.

REMEMBERING THE LIVES LOST DURING ''BLACK JANUARY'' AND THE KHOJALY MASSACRE IN AZERBAIJAN

HON. DONALD M. PAYNE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. PAYNE. Mr. Speaker, I ask my colleagues here in the House of Representatives to join me as I rise to honor those who were lost in Khojaly, Azerbaijan on February 25, 1992. On that day, 24 years ago, over 600 people were brutally murdered. They were mostly elderly men, women, and children—innocent victims that should have never been part of such a heartbreaking tragedy.

I would also like to recognize the night of January 19, 1990, as ''Black January.'' This event has been memorialized as ''Black January'' because of the invasion by 26,000 Soviet troops into the capital city Baku and surrounding areas. By the end of the following day, more than 130 people had died and over 600 people were missing.

It is necessary to take the time every year to remember those who lost their lives during these two horrific events in Azerbaijan. Their unwilling sacrifice continues to serve as a reminder to hold fast to the principles of democracy.

Mr. Speaker, Azerbaijan is a strong partner of the United States in a strategically crucial and complex region of the world. I ask my colleagues to join me and our Azerbaijani friends in commemorating the tragedy that occurred in the town of Khojaly as well as Black January.

HONORING OFFICER DOUG BARNEY

HON. JASON CHAFFETZ

OF UTAH

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. CHAFFETZ. Mr. Speaker, I rise today to honor Officer Doug Barney. Officer Barney was killed on Sunday, January 17, 2016, in Holladay, Utah, while working overtime in order to fund his cancer treatments. While on duty, Officer Barney was shot fatally by a fugitive who was missing from drug rehabilitation. Unified Police Officer John Richey was also shot, and has since undergone surgery and is expected to improve.

Officer Barney became a police officer because he wanted to help people and loved children. He had formerly served as a school resource officer and worked tirelessly as a member of the Unified and Taylorsville, Utah, Police Departments for 18 years. His cancer was in remission at the time of his death. He is survived by his wife and three children.

Officer Barney gave the ultimate sacrifice while in the line of duty. His colleagues have remembered him for his humor and caring nature. He was an accomplished officer who had overcome the odds of cancer. I honor Officers Barney and Richey as heroes and am grateful for their service to the State of Utah.

Today, I ask all Members of Congress to join me as we honor the life and legacy of Officer Doug Barney, so that his sacrifice and service will be remembered by our country.

RECOGNITION OF THE MCCONNELL CENTER

HON. BRETT GUTHRIE

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. GUTHRIE. Mr. Speaker, I would like to recognize the McConnell Center at the University of Louisville on its 25th anniversary since its founding. The McConnell Center was established by Senator MCCONNELL and the University of Louisville, his alma mater, in 1991 with the mission to help nurture the next generation of great leaders in the Commonwealth of Kentucky.

The McConnell Center has helped educate, inspire, and motivate more than 200 McConnell Scholars and has given more than $3.5 million in scholarships to more than 230 Kentucky students. I am proud to say that three McConnell Scholars, Andrew Stewart, Natalie Smith, and Sean Southard, have interned in my office. The McConnell Center has also provided thousands of hours of professional development to Kentucky's teachers.

The McConnell Center's successful program has demonstrated the profound and lasting impact it is making within our Commonwealth, the nation, and the world. It has been named one of the ''Oases of Excellence in Higher Education'' by the American Council of Trustees and Alumni, touching the lives and careers of thousands of students, teachers, researchers, and citizens.

This year, the McConnell Center will celebrate its 25th anniversary with the theme ''Citizens and Statesmen,'' continuing its great work in shaping our nation's leaders, politics, and communities.

Today, I would like to thank and recognize the McConnell Center for their exemplary work and mission in educational and civic engagement, building our future leaders on a foundation based upon ''Leadership, Scholarship, and Service.''

HONORING ALAN DUNHAM

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HUFFMAN. Mr. Speaker, I rise today to recognize Alan Dunham of Novato, California, for his exceptional commitment to public service and civic engagement. For nearly 40 years, Mr. Dunham has gone above and beyond in his dedication to effecting change in his community, serving in numerous leadership positions and volunteering countless hours of his time throughout the City of Novato and Marin County.

The Rotary Club of Novato annually selects a ''Citizen of the Year,'' which distinguishes a resident who has given exceptional contributions to the city across a number of different areas. Their selection this year in Mr. Dunham could not be more fitting.

Mr. Dunham moved to Novato in 1973, and quickly became involved in his new community. He joined the Rotary Club the following year, where, along with serving as president for a term, he led several trips and projects throughout the decades. For many years, he has been active with the Presbyterian Church of Novato, and he regularly volunteers with local children and youth.

Additionally, his talents as an architect have beautified spaces throughout the city, including housing projects and gardens for seniors, group areas at the Marin county Fair, and the Stafford Lake Gate House, among others.

Mr. Speaker, it is fitting that we honor and thank Alan Dunham for his many years of selfless volunteer work and leadership in the North Bay. On behalf of the many residents whose lives he's impacted, I am privileged to honor and appreciate Mr. Alan Dunham.

HONORING THE LIFE OF MICHAEL HOKE

HON. BRIAN BABIN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. BABIN. Mr. Speaker, I rise today to honor the life of Michael Hoke. Michael passed away on January 13, 2016, at the age of 67.

Michael was an active and accomplished educator in the Orange community. After receiving his doctorate, he went on to start the Orange chapter of the American Federation of Teachers, and continued to be a leading advocate for teachers within the community.

His dedication and expertise were recognized in 1989 when he became the Texas recipient of the National Science Foundation's Presidential Award. Michael later went on to instruct at Harvard University.

Michael was committed to sharing his incredible love and mastery of scientific teaching

with the community and future generations. He founded "Science Superstars" to engage children and encourage a passion for learning, and "Bios, a School on Wheels" to help students explore various scientific research centers and programs across Texas. Under his leadership, these educational programs have now spread across the nation.

Michael was also a faithful Christian, and attended the First United Methodist Church in Orange. My prayers and condolences go out to Michael's loving wife, Sandra, his daughter Julia, and his son Robert, and his two grandchildren. Michael will be sorely missed in our community, but his passion and legacy will certainly live on.

RECOGNIZING HERO OF THE YEAR, OFFICER JEFF SCHLEE

HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. ROSKAM. Mr. Speaker, I rise today to recognize Police Officer Jeff Schlee, who recently was awarded "Hero of the Year" by the Palatine Chamber of Commerce for his work preparing schools, teachers, parents, and the community for a school shooting.

Officer Schlee works with schools in Palatine, IL and has consulted with numerous suburbs in the Chicagoland area and across the country to prepare them for the possibility of a school shooting. Officer Schlee has been a school safety officer for ten years and has always had a passion for protecting students; however he credits the birth of his children for increasing his dedication to defending school children.

With dedication and persistence, he has studied past school shootings and works alongside his colleagues at the Palatine Police Department to develop response plans which could save student's lives. One of the principles of his plan is having the whole community respond as a unit to make sure everyone is on the same page. Office Schlee believes it is essential to study the tragedies of the past to keep our children safe today and in the future.

Mr. Speaker and my distinguished colleagues in the House, please join me in recognizing Officer Jeff Schlee for the work he has done to help protect students in Palatine and across this great nation.

PERSONAL EXPLANATION

HON. LUIS V. GUTIÉRREZ

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House chamber for votes on Monday, February 1, 2016. Had I been present, I would have voted "yea" on roll call vote 46.

HONORING MS. GLORIA FLAHERTY

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to recognize and honor Gloria Flaherty, who is retiring from the Lake Family Resource Center after 19 years of service.

Ms. Flaherty's resume of community service is impressive. In addition to being a Founding Director and Executive Director at Lake Family Resource Center, Gloria has held numerous positions and titles within the Lake County community over the past two decades. Among other endeavors, Ms. Flaherty served as President of Kelseyville Sunrise Rotary, Board President of Kelseyville Unified School District, and Commissioner of First 5 Lake County. She has recently served as Chairman of the Lake County Continuum of Care, as a member of the Boards of North Coast Opportunities and Friends of Mendocino College, and as a Board member on the California Partnership to End Domestic Violence. Most recently, Ms. Flaherty has been heavily involved in Lake County fire recovery efforts, working tirelessly to set up a "warming center" to provide shelter and respite for those in need.

In 2015, Ms. Flaherty received the Lake County Childcare Planning Council's Lifetime Achievement Award. She was also named the 2015 Woman of the Year from the Third Congressional District. Ms. Flaherty has consistently demonstrated kindness, compassion and integrity, and has worked for years as a tireless advocate for children and families. The citizens of Lake County have benefitted enormously from her efforts.

Mr. Speaker, Gloria Flaherty has served her community with admirable commitment and resolve. It is fitting and proper that I honor her here today. I wish Gloria Flaherty the best in her retirement.

RECOGNIZING COBWRA ON THEIR 35TH ANNIVERSARY

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today on behalf of myself and Mr. DEUTCH to congratulate the Coalition of Boynton West Residential Associations, or COBWRA, for 35 years of diligent work. COBWRA has played an important role in the growth of West Boynton Beach, an area in both our districts.

Since 1982, the officers and members of COBWRA have served as a voice for the residential communities of West Boynton Beach, ensuring that resident's concerns are heard and addressed. COBWRA has played a crucial role in bringing parks, schools, libraries, businesses, and hospitals to the area, while also serving as an advocate and educational source for residents.

We are pleased to recognize COBWRA today for their service and commitment to their community, and look forward to working with them in the future to continue the growth and achievement of West Boynton.

RECOGNIZING THE SERVICE OF JOANN STINGLEY

HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. ROSKAM. Mr. Speaker, I rise today to recognize the service of JoAnn Stingley. JoAnn coordinates the social service unit, also known as the victim's assistance unit for the Elgin Police Department.

JoAnn has been a social worker for the Elgin Police Department for more than 24 years. She was hired by former police chief Charles Gruber in 1991 and at the time Elgin was one of the first police departments to hire social workers in Illinois. Since that time she said she has never considered doing anything else but helping others.

JoAnn's salary is on the Elgin police department payroll; however, there is no budget allocation for client related expenses. This means that JoAnn must hold numerous fundraisers a year to support the programs she runs free of charge. These programs include crisis intervention, counseling, legal referrals and referrals for community resources including shelter, mental illness, substance abuse, parenting, and youth anger management courses. Lt. Rick Ciganek, an officer in the Elgin Police Department, was full of praise for JoAnn, stating, "She's truly the unsung hero of the police department. Anybody who comes here and says, 'I need some help,' they get help. JoAnn is incredible. She'll provide services for anybody." JoAnn is truly an inspiring woman and one of the many reasons Elgin is such a great place to work and live.

Mr. Speaker and my distinguished colleagues in the House, please join me in recognizing the service and dedication of JoAnn Stingley.

CELEBRATING THE 50TH ANNIVERSARY OF LEHIGH CARBON COMMUNITY COLLEGE

HON. CHARLES W. DENT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. DENT. Mr. Speaker, it is my pleasure to recognize the 50th Anniversary of Lehigh Carbon Community College (LCCC). LCCC was founded in 1966 and for 50 years it has delivered quality, affordable two-year degree course programs, certificate and specialized diploma programs to students from Lehigh, Carbon, Schuylkill and other counties.

The College has an enrollment of over 7,100 students and offers more than 90 programs of study.

The Lehigh Valley community has long recognized the outstanding asset we have in Lehigh Carbon Community College. The College gives students a great start for gaining the skills they'll need to find and succeed in decent, good-paying careers and provides the employers of the region with skilled and well-trained workers.

Mr. Speaker, I warmly extend my congratulations to the students, faculty, employees, administrators and alumni of Lehigh Carbon Community College on the happy occasion of

their Semicentennial. Thank you for providing the Lehigh Valley with diverse educational opportunities that provide a firm foundation for solid, fulfilling careers.

HONORING WILLIAM A. MORRIS

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to honor William A. Morris for his courageous service to our nation during World War II. As a lifelong resident of Staten Island, New York, he deserves recognition for the dedication to his family, community and country.

William served as a sergeant in the all-black 369th Coast Artillery Regiment and fought on the front line in Germany during a period of segregation. Overcoming the deep racial divisions in society to fight for his country during such momentous historical events like the invasion of Normandy shows his immense courage and loyalty.

It was during this time in Europe that William formed a special bond with a stray dog he met named Trixie. Trixie provided William and the rest of his company not only with an indispensable companion, but, in an astonishing act, also bravely aided in their protection against three German soldiers. Serving as an unofficial mascot for the regiment, Trixie traveled back to Staten Island with William where she quickly fit in as a member of his family.

Upon returning to Staten Island, William's remarkable commitment to giving back has been widely recognized and celebrated. He served as a Boy Scout leader for Troop 47 for 35 years and, along with his wife, ran a food pantry for 30 years. This commitment earned them both the Silver Beaver Award for their distinguishable work in scouting. At 96 years old, William has continued to share his story with his community through an inspiring book written by his daughter Dolores, The Soldier That Wagged Her Tail.

Mr. Speaker, William's dedication to our country and his community serves as an inspiring lesson to all. I admire his outstanding sacrifices and I am proud to honor this great resident from New York's 11th Congressional District.

COMMEMORATING ELIZABETH S. TAI'S SERVICE TO POQUOSON, VIRGINIA

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. WITTMAN. Mr. Speaker, I rise today to recognize Mrs. Elizabeth S. Tai. After 36 years, she has retired from the position of Director of the Poquoson Public Library. Under her leadership, Poquoson Public Library was accredited by the Library of Virginia, and started receiving state funding in 1980. During her tenure, Elizabeth S. Tai spearheaded many initiatives which resulted in Poquoson Public Library becoming one of the busiest and most respected libraries in Virginia. I thank her for her dedication to the Poquoson community and wish her a happy retirement.

CELEBRATING THE 50TH ANNIVERSARY OF THE 60TH AIR MOBILITY WING

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. GARAMENDI. Mr. Speaker, I rise today to commemorate the 50th Anniversary of the activation of the 60th Air Mobility Wing at Travis Air Force Base, in the heart of California's 3rd Congressional District.

On January 8, 1966, what is now The 60th Air Mobility Wing became the host unit at Travis Air Force Base, and its emergence as the principal military airlift hub in the western United States earned Travis the moniker of ''Gateway to the Pacific.''

The wing is responsible for strategic airlift and air refueling missions around the world and controls more than $11 billion in total resources. It handles more cargo and passengers than any other military air terminal in the United States.

The 60th Wing has been involved in some of our country's most recognizable military and humanitarian efforts in its 50 years of operation. It was a major participant in Operations Homecoming and Babylift, when Travis Air Force Base became the main intake facility for POW's and refugees coming from Vietnam. It flew 1,280 missions from Travis during Operation Desert Storm. Its planes and personnel provided much needed relief after earthquakes in Mexico City, Armenia, and Haiti. Most recently, the 60th Air Mobility Wing provided airlift and refueling operations in support of Operations Noble Eagle and Enduring Freedom—to support our ongoing global war on terror. These are just a few of the achievements that have earned the wing multiple Air Force Outstanding Unit Awards.

Mr. Speaker, I am honored to congratulate the 60th Air Mobility Wing on its 50th Anniversary, and I ask my colleagues to join me in recognizing the extraordinary dedication of the officer, enlisted, and civilian personnel who have served our nation. They have given Travis Air Force Base a renowned past, exciting present, and a very bright future.

TEAM JONNY

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. POE of Texas. Mr. Speaker, on Christmas Day 2014, 7-year-old Jonny was diagnosed with brain and spinal cancer. On January 2nd, 2016, young Jonny's family laid him to rest.

Roughly 1 in every 300 children in the United States will be diagnosed with some form of cancer before their 20th birthday. Jonny always said: ''I don't want any other kid to have cancer.''

Jonny's family, with the help of their Representative RODNEY DAVIS, are making sure Congress hears this message. They have also been joined by Texas State Representative Patrick Fallon. He recently raised money for pediatric cancer by running the World Marathon Challenge, consisting of 7 marathons on 7 continents in 7 days, and he had never run a marathon before. During the races, Fallon carried a photo of Jonny and his brother Jacky in his shoe. In fact, Jacky even ran with him in the U.S. race in Miami, Florida.

I can't think of a better reason to run a marathon. Together, we can beat childhood cancer into the shadows with each step.

And that's just the way it is.

HONORING BRUCE SANDERS ON THE OCCASION OF HIS RETIREMENT

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HIGGINS. Mr. Speaker, I rise today to pay tribute to Bruce Sanders, of Buffalo, New York, on his retirement from the position of Chief of Public Affairs of the Buffalo District of the United States Army Corps of Engineers, and to express gratitude for his forty-one years of devoted service to the United States of America.

In his public affairs role, but also previously in his role as Management Analysis Officer, Mr. Sanders conducted himself with professionalism and dedication in furtherance of the important work of the world's largest public engineering agency. I was not surprised, therefore, when it was conveyed to me that the Buffalo District Commander wrote in Mr. Sanders' final appraisal that Mr. Sanders was ''proud of being a public servant; exhibit[ed] pride and complete dedication to the District; [and was] honest and trustworthy; a person of strong character.''

Again, I am pleased to congratulate and thank Mr. Sanders on the occasion of his retirement and wish him well in his future endeavors.

CONGRATULATING CAPTAIN BOSWORTH ON HIS RETIREMENT FROM THE NAVY RESERVES

HON. ANDER CRENSHAW

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. CRENSHAW. Mr. Speaker, I rise today to pay tribute to the incredible service of Capt. William P. Bosworth, MC USNR (RET). Captain Bosworth served on active duty from Sept. 1953 until Jan. 1958. After attending medical school at the University of Health Sciences in Kansas City, Missouri, he joined the Navy Medical Corps and again served his country with distinction from June 1972 until March 1999.

As an Osteopathic Physician, Dr. Bosworth provided operational medicine and primary care to hundreds of patients at his various duty stations. He retired in 1999 as a Captain but continued to serve the Navy Reserves three to four days per month here at NAS Jacksonville until today. In fact, Bill Bosworth volunteered as a Reserve Medical Officer for

456 consecutive months from 1976 until 2013 and logged approximately 792 drill weekends at our military bases. He is the epitome of the dedicated officer.

It is his voluntary reserve service that I would like to applaud. Dr. Bosworth applied for permission to participate with the Navy Reserves in a retired status with no points accrued for retirement, with no payment authorized, and with no travel authorized. He served because Bill loved the men and women in the Navy and wanted to assist them in any way he could. Year after year, he performed physicals and primary care for all the sailors in our local Naval Reserves.

Of course, that kept him busy on weekends, but he also remained an active physician on the staffs of two local hospitals. He was licensed in three states: Florida, Georgia and Tennessee so he could better serve his sailors. He is a Lifetime Member of the Duval County Medical Society and the American Academy of Family Physicians. He is Past President of the Duval County Academy of Family Physicians and Former Chairman of the Duval County Hospital Authority.

One Commanding Officer wrote that Captain Bosworth ''demonstrated unparalleled leadership and skills in the superior performance of his duties.'' I couldn't agree more. But there is another side of Bill Bosworth that many may not know. Bill and I share a love for the game of basketball. Yes, Dr. Bill Bosworth is an active participant and officer in the National Men's Masters Basketball Championships. Every year, he teams up with such basketball greats as Artis Gilmore and Sam Jones and brings the game to Jacksonville. Just two weeks ago, the games were played at the Jacksonville Sportsplex. This endeavor has developed into national events and has been included in the World Masters Games and the World Senior Games. Bill and his wife Wanda both serve on the Florida Division of the National Basketball Tournament Committee.

There is a saying in the United States Navy when a person retires that ''this sailor stood the watch'' and today, Mr. Speaker, I ask you and Members of the House to join me in saluting my longtime friend, Dr. William P. Bosworth, MC USNR, for a job well done. He has faithfully stood the watch all these years and now his watch stands relieved.

PERSONAL EXPLANATION

HON. JOSEPH CROWLEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. CROWLEY. Mr. Speaker, on February 1, 2016 I was absent for recorded vote Numbers 46 through 47.

I would like to reflect how I would have voted if I were here: on Roll Call Number 46 I would have voted yes, and on Roll Call Number 47 I would have voted yes.

IN MEMORY OF KATHRYN BURKETT

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. WILSON of South Carolina. Mr. Speaker, yesterday, Kathryn Louise Spires Burkett of Edmund was properly eulogized during funeral services recognizing her legacy as one of South Carolina's most beloved civic leaders and homemakers.

She and her late husband Horace raised their children to become some of the most respected professionals of the Midlands of South Carolina with her grandchildren now achieving the highest standards of community service and success.

In January 1984, her passion for excellence was crucial in launching my successful campaign to serve in the State Senate when she was a co-host of a reception at the Farm Bureau in Cayce. The Burkett Family endorsement made the difference in a very challenging effort for victory in the October Republican primary replacing an incumbent.

A fitting tribute was published on January 31st in The State newspaper of Columbia, South Carolina:

Kathryn Louise Spires Burkett entered into eternal rest on January 30, 2016, following a brief illness. Kathryn, born April 11, 1929, was a daughter of Drayton and Sara Spires of Cayce, S.C. She attended BC High School where she was Homecoming Queen representing her lifelong sweetheart, Horace Olin Burkett, Jr. She attended Columbia College before she and Horace married in 1949. They were proud parents to Jimmy, Donny, Ronny, Timmy, and Andrea and pursued their dream of raising their children in the country. They moved to their beloved 17 acres in Edmund in 1962. Their home was a place of welcome to all, an endless source of adventure to their children, and the site of countless picnics, fish fries, and family gatherings. Kathryn's boundless energy was devoted to home, family, church, and community. She planted, nurtured, and harvested an acre vegetable garden every summer and proudly canned enough food to feed her family throughout the year. She was a marvelous cook, and her hand gently stirring a bowl of flour into mouth-watering biscuits was a wonder to behold.

She served on the Governor's Beautification Board and volunteered with the American Heart Association, American Cancer Society, Little League, Cub Scouts, and PTA. She and Horace also served in many capacities at Cayce United Methodist Church and the Edmund Community Club. Kathryn was devoted to the cause of mental health and was a catalyst in starting the first Lexington County Mental Health Center. She also had an avid interest in politics, volunteering for Strom Thurmond, Floyd Spence and Ben Carson, among many others, and as a poll watcher and precinct captain.

Kathryn and Horace left a legacy to their children, grandchildren, and great-grandchildren of commitment, faithfulness, and an unfailing knowledge of the difference between right and wrong. We thank them from the bottom of our hearts and proudly carry all they taught us into the future. Kathryn was predeceased by her parents, Drayton and Sara; her husband, Horace; her brothers, Col and Fred Spires; her sister, Margie McNair; brother-in-law, David Burkett; and her granddaughter, Crystal Bradshaw. She is survived by her sister-in-law and spouse, Jeannette Burkett and Owen Livingston and her children and spouses/partners: Jimmy and Debbie Burkett, Donny and Jeannie Burkett, Ronny and Mary Burkett, Tim Burkett and Lance Wilhelm, and Andrea and Bobby Lange. She is survived by grandchildren and spouses/partners: Sarah and Heath Maner, Laura and Zach Moore, Tiffany Burkett, Brandi and Mike Dixon, Michael Burkett and Lisa Walner, Patrick Burkett, Meghan Burkett, Ian and Jenn Burkett, Jesse Bundrick and Jada Lange. She was blessed with great-granddaughters, Micaiah, Anna, and Alexis Burkett and Charley Dixon, and newborn great-grandson, Ezekiel Burkett.

Visitation will be held on Monday, February 1, at Cayce United Methodist Church from 1:30 p.m. to 2:45 p.m. and followed by services at 3:00 p.m. Private interment will follow in Southland Memorial Gardens. The family will receive friends at the home of Ronny and Mary Burkett, 87 Holly Ridge Lane, West Columbia, on Sunday afternoon from 2–5 p.m. Memorials may be made to the Crystal Bradshaw Foundation, 17 Abberton Court, Chapin, SC 29036. The family wishes to thank the special caregivers and residents of Oakleaf Village who were family to Kathryn in her later years.

HONORING THE USO FOR 75 YEARS OF SERVICE TO OUR TROOPS AND THEIR FAMILIES

HON. ANDER CRENSHAW

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. CRENSHAW. Mr. Speaker, I rise today to honor the hard working men and women of the USO in celebration of their 75th Birthday of entertaining and supporting our troops and families. I especially applaud the work of the Greater Jacksonville Area USO which makes it its mission to lift the spirits of our service members and their families. This small army of mostly volunteers reaches out to active duty military at our three large navy bases, Naval Air Station Jacksonville, Naval Station Mayport and Naval Submarine Base Kings Bay. They also support our United States Coast Guard men and women, the Marines at Blount Island Command, Army personnel stationed in the area, and those serving in the Florida National Guard.

The USO was formed in 1941 at the request of President Franklin D. Roosevelt who realized he needed a civilian organization to handle on-leave recreation. This call to action led six agencies to coordinate their civilian war efforts and resources to form a new organization—the USO, United Service Organizations. Today, the USO is a private, not for profit organization, supported entirely by donations from citizens and organizations.

Since its inception, the USO has been that ''Home Away From Home'' for our military during wars and during peace time. The Greater Jacksonville Area USO was established as an independent branch of the national USO in 1979. Today, its three centers continue to serve over 250,000 military and families with quality of life and morale boosting programs.

I have had the privilege of working with the USO and its many volunteers in serving dinners prior to pay days. They are called No Dough Dinners and are hugely popular with

our junior ranking families. In addition, our USO mails over 15,000 goodie boxes to front line troops and distributes hundreds of calling cards for deployed troops to call home. Here in Jacksonville, the USO operates Internet cyber cafes, assists families and troops with programs like United Through Reading where the deployed member reads a book on a DVD to his or her children back home. Two of the USO's most popular programs are the Welcome Center at our airport and free or reduced cost tickets to local sporting and cultural events.

On February 4, 2016, the Greater Jacksonville Area USO will celebrate 75 years of serving our military and providing help on the home front for those who give their all for the security of this nation. The Greater Jacksonville Area USO is 100 percent self-funded and relies on donations from citizens and corporations like Boeing, Jacksonville Jaguars, W.W. Gay, VyStar Credit Union, Siemens, Northrop Grumman, Florida Blue, Jacksonville International Airport and the PGA Tour among others.

Mr. Speaker, I ask you and Members of the House of Representatives to join me in acknowledging the 75th Birthday of the USO and its commitment to our active duty military.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $19,012,827,698,417.93. We've added $8,385,950,649,504.85 to our debt in 7 years. This is over $8 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

PERSONAL EXPLANATION

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. SCHIFF. Mr. Speaker, during Roll Call vote number 46 on February 1, 2016, I was unavoidably detained. Had I been present, I would have voted aye.

IN RECOGNITION OF DOUG CROFT'S TENURE AS PRESIDENT OF THE THOMASVILLE AREA CHAMBER OF COMMERCE

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HUDSON. Mr. Speaker, I rise today to honor Mr. Doug Croft for his 28 years of leadership to the city of Thomasville, North Carolina through his work at the Thomasville Area Chamber of Commerce. I have seen firsthand the positive impact Mr. Croft has had on his community, and I know I will not be the last to say how much he will be missed.

Under Mr. Croft's exceptional leadership, the city of Thomasville rebounded from a period of manufacturing and furniture-building job loss during the recent recession. He successfully helped turn the city around and create a business-friendly and job-creating center within the state of North Carolina. In addition to his impact on the local economic recovery, Mr. Croft played a critical role in the City of Thomasville's selection as an ''All-American City'' for 2013, by the National Civic League.

Mr. Croft has also been instrumental in the development and implementation of two key city-wide initiatives, the ''Envision 2020'' strategic plan and the ''Thomasville on the Move'' capital raising campaign. In fact, as a result of his hard work on the ''Thomasville on the Move'' campaign, Mr. Croft was recognized in 2011 as the Chamber Executive of the Year for North Carolina by the Carolinas Association of Chamber of Commerce Executives.

Mr. Speaker, please join me in congratulating Mr. Doug Croft for his successful tenure as President of the Thomasville Area Chamber of Commerce, and wishing him well as he begins the next chapter of his already distinguished career.

HONORING LIEUTENANT DEBBIE PEECOCK

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to recognize and honor Lieutenant Debbie Peecock, of the Napa Police Department, who is retiring after 30 years of service to her community.

Debbie Peecock joined the Napa Police Department on September 9, 1985, and eventually became the first woman in Napa police history to earn her current rank of lieutenant. In this role, Lieutenant Peecock oversees the Special Operations Division of the Napa Police Department. She manages the department's Investigations Bureau, Youth Services Bureau and the Homeless Outreach Program, while also heading Napa's Canine and SWAT Units. Lieutenant Peecock further serves as the liaison between the Napa PD and the Napa Valley Unified School District, the Napa County Office of Education, and Napa County Health and Human Services.

It is difficult to overstate the impact Lieutenant Peecock has had on our community. Her consistent leadership and activism have made her a well-known and well-liked figure, one whose advice is often sought out by community members. Her influence extends beyond her work in the Police Department, as Lieutenant Peecock also works with numerous organizations and foundations, including the Continuum of Care, the Napa County Advisory Board on Alcohol and Drug Programs, the Catalyst Coalition and the Napa County DARE and Safe Schools Foundations. She has a long history of social activism, supporting charity and nonprofit programs like Shop With A Cop, Community Action Napa Valley, and the Napa Valley Education Foundation. Lieutenant Peecock has consistently acted with remarkable dedication and character, and residents of Napa and the surrounding areas have benefitted enormously from her efforts.

Mr. Speaker, Lieutenant Debbie Peecock has served her community with admirable integrity and commitment for three decades. It is fitting and proper that I honor her here today. I wish Lieutenant Peecock the best in her retirement.

RECOGNIZING THE PALM BEACH TOWN SQUARE PROJECT

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to recognize the unveiling of the newly renovated Palm Beach Town Square, and to thank those involved in the project for their hard work. On Sunday, January 31st, the Town of Palm Beach dedicated the newly renovated Town Square, a symbol of Palm Beach's rich and unique history.

The Palm Beach Centennial Commission, in celebration of the 100th anniversary of the Town of Palm Beach's incorporation, spearheaded the effort to renovate the square. Plans for the Town Square were first approved in 1929 by the Garden Club of Palm Beach, an organization which played a role in this recent renovation as well.

The project restored the famous Seahorse Fountain and the surrounding architecture and landscape. The fountain was designed by Addison Mizner in 1929 to honor the two Palm Beach pioneers: Henry Flagler, the founder of Palm Beach, and Elisha Newton Dimick, the town's first Mayor. Funding for the original fountain was a community effort fronted by Harold S. Vanderbilt and other Palm Beach residents. Along with the fountain, this historic square includes a Memorial Park and reflecting pool and Veterans memorial wall.

Just as the original fountain was made possible by Palm Beach residents in 1929, this renovation was a community effort. I would like to thank the local clubs and organizations, town officials, and those in the community who donated their time and funds to this endeavor for their commitment to the Town of Palm Beach.

PERSONAL EXPLANATION

HON. MIKE POMPEO

OF KANSAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. POMPEO. Mr. Speaker, on roll call no. 46 and 47, I was unable to cast my vote in person due to a previously scheduled engagement. Had I been present, I would have voted Yea.

A TRIBUTE: NATIONAL FREEDOM DAY ASSOCIATION

HON. ROBERT A. BRADY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. BRADY of Pennsylvania. Mr. Speaker, I rise to celebrate National Freedom Day 2016, a holiday established to recognize the day President Abraham Lincoln signed the 13th Amendment freeing enslaved Blacks. On February 1, 1941, Major Richard Robert Wright, Sr. invited national and local leaders to meet in Philadelphia to formulate plans to set aside February 1st each year to memorialize the signing of the 13th Amendment to the Constitution by President Lincoln on February 1, 1865. One year after Major Wright's death in 1947, a bill passed both U.S. Houses of Congress making February 1st National Freedom Day.

Major Wright is recognized as a post reconstruction pioneer and trailblazer who dedicated his life to establishing this national day of commemoration of freedom. Each year on the first day of Black History Month, National Freedom Day Associations in cities and states across the nation come together for this annual observance to promote goodwill, harmony and equal opportunity and to rededicate the nation to these ideals.

And, as we look back at the life of Major Wright, we discover a true American story of resilience, foresight and faith. He was born into slavery in 1855. And, as a child he encountered retired Union Civil War General Oliver Otis Howard, in an Atlanta classroom. Summoning up unbelievable courage he said, ''Sir, tell them we are rising,'' as a way to help northerners understand the hope of newly freed Blacks. These words came to be Major Wright's lifelong mantra.

His personal ''rising'' included: serving as a major in the Spanish-American War, founding and leading Savannah State College; attending the Wharton School of the University of Pennsylvania at the age of 67; and, founding the Citizens and Southern Bank and Trust Company, in Philadelphia, the only northern Black-owned bank at the time.

Therefore, I am proud to honor the life and contributions of Major Wright, a great American visionary and trailblazer and the National Freedom Day Association as it stands as an historic reminder of our nation's promise of freedom and justice.

IN RECOGNITION OF JOANN GONYEA'S SERVICE TO THE CITY OF TRENTON

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mrs. DINGELL. Mr. Speaker, I rise today to recognize Joann Gonyea for her 31 years of service in the Parks and Recreation Department of Trenton, Michigan.

Joann began her career with the City of Trenton Parks and Recreation Department as a Program Coordinator in 1985. She became the Assistant Director in 1990 and served in that role for 20 years before being appointed Director in 2011.

Many of the events and activities for which Trenton has become known started with Joann. During an internship with Wayne County Parks 31 years ago, she designed the ''Somewhere in Time'' event which captures the spirit of the iconic Elizabeth Park in the early 1900's and engages residents with the history of their city. Joann has also been the driving force behind the ''Community Builds'' program and the ''Healthy Trenton Initiative'' which both promote healthy and active lifestyles by emphasizing teamwork.

Joann is instrumental in the success of community events in Trenton and is well known for her ability to organize and inspire volunteers. Many projects, including the recent addition of a playground to Affholter Park, are finished in record time due to the groundswell of community support Joann encourages. It's because she practices what she preaches, and generously dedicates her time to organizations throughout the Downriver community, such as the International Wildlife Refuge Alliance where she serves as a board member.

Joann is part of the heart and soul of Trenton, Michigan and the Downrivers. Tonight, we recognize Joann with the Duane Brannick award for outstanding service to the city, an award which is annually given to leaders in the city that go above and beyond. I know that Joann is the perfect recipient of this prestigious award and I am proud to call her a friend.

Mr. Speaker, I ask my colleagues to join me today to honor Joann Gonyea for her 31 years of service to the city of Trenton. I thank her for her leadership, and wish her many years of success.

IN RECOGNITION OF DENNIS HOLLOWAY'S SELECTION AS THE RICHMOND COUNTY CHAMBER OF COMMERCE 2015 CITIZEN OF THE YEAR

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HUDSON. Mr. Speaker, I rise today to honor Mr. Dennis Holloway for his selection as the Richmond County Chamber of Commerce's 2015 Citizen of the Year. Mr. Holloway represents the best our area has to offer, and this selection illustrates the profound impact he has had on our community.

Mr. Holloway decided early in life to dedicate himself to helping others in need, and he has not stopped that mission since. Mr. Holloway served in the United States Army as a member of the 82nd Airborne until he was honorably discharged in 1967 after serious injuries he sustained during a training exercise hindered his deployment. After surviving this harrowing ordeal, Mr. Holloway worked in the North Carolina Wildlife Resources Commission for 30 years.

The list of charitable acts Mr. Holloway has carried out and the number of leadership positions within several community service organizations he holds demonstrates the commitment he has made to serving those in his community, and beyond. As a recovery team leader for the North Carolina Baptist Men, a nondenominational organization dedicated to providing relief to those in need, Mr. Holloway and his team have done everything from traveling down to South Carolina to assist families recovering from the historic flooding that took place last year to building wheelchair ramps at the homes of disabled community residents. Mr. Holloway is an inspiration to all the Richmond County community and this award is truly a testament to the appreciation he has so rightfully earned.

Mr. Speaker, please join me in congratulating Mr. Dennis Holloway for receiving this prestigious distinction, and wishing him well as he continues to serve the people of Richmond County, North Carolina.

PERSONAL EXPLANATION

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. SCHIFF. Mr. Speaker, during Roll Call vote number 47 on February 1, 2016, I was unavoidably detained. Had I been present, I would have voted aye.

PERSONAL EXPLANATION

HON. DIANE BLACK

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mrs. BLACK. Mr. Speaker, on roll call no. 46 I was unavoidably detained. Had I been present, I would have voted yes.

PERSONAL EXPLANATION

HON. DORIS O. MATSUI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Ms. MATSUI. Mr. Speaker, I was not present during roll call vote number 45 on January 13, 2016. I would like to reflect that on roll call vote number 45 I would have voted No.

PERSONAL EXPLANATION

HON. YVETTE D. CLARKE

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Ms. CLARKE of New York. Mr. Speaker, on February 1, 2016, I was unavoidably detained and missed recorded votes Number 46 through 47. Had I been present, on Roll Call Number 46, H.R. 2187—Fair Investment Opportunities for Professional Experts Act, I would have voted YEA, and on Roll Call Number 47, H.R. 4168—Small Business Capital Formation Enhancement Act, I would have voted YEA.

TO HONOR THE LIFE OF SHERIFF MAYNARD B. REID, JR.

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HUDSON. Mr. Speaker, I rise today to honor Randolph County Sheriff Maynard B. Reid, Jr., who passed away on January 5, 2016 at the age of 69. We send our prayers and sincerest condolences to his wife, Sandra, and the entire Reid family.

Sheriff Reid began his life of public service in the United States Marine Corps and served his nation during the Vietnam War. After returning from his service, Sheriff Reid joined the Asheboro Police Department and eventually moved to the Randolph County Sheriffs Office. In 2006, he was elected Sheriff of Randolph County and served in his post for 10 years. Under his leadership, there was a great emphasis on community outreach efforts and enabling those under his command to better serve the people of Randolph County. This could be seen through his efforts to modernize officer's patrol vehicles and the creation of a task force designed to combat internet predators that targeted children.

Sheriff Reid was a 40 year veteran of law enforcement who spent nearly his entire life serving and protecting his community. He was an inspiration to all who had the honor of serving beside him and under his leadership. The Randolph County community will always remember the man he was and the legacy he has passed down to future public servants.

Mr. Speaker, please join me today in celebrating the life of Sheriff Maynard B. Reid, Jr. and honoring him for his profound commitment to his country, his community, and the numerous lives he touched throughout his life.

HONORING THE LIFE OF MICHAEL JAMES RIDDERING

HON. PATRICK MURPHY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. MURPHY of Florida. Mr. Speaker, I rise today to honor the life of Michael James Riddering. Mike, who dedicated his life to serving others as an American missionary in Burkina Faso, was tragically taken from this world far too soon at the age of 45, a victim of the terrorist attack that struck this West African nation on January 15th. My thoughts and prayers are with his wife Amy and their children Haley, Delaney, Biba, and Moise during this most difficult time.

Five years ago, Mr. Riddering and his wife Amy left their home in Hollywood, Florida to move to Burkina Faso to run the Sheltering Wings' mission in the town of Yako. Together, they helped women and children in need, running an orphanage, school, and medical clinic. While in Burkina Faso, the couple adopted two children, 15-year-old Biba and 4-year-old Moise.

It was this commitment and service that led him to Ouagadougou on the day of the terrorist attack in the nation's capital. Mike had gone to greet a team of missionaries who were just arriving in Burkina Faso to work at the orphanage when the area was seized by Al Qaeda-affiliated terrorists.

We memorialize Mike's life by honoring him in the CONGRESSIONAL RECORD here today. But we honor his memory by recommitting ourselves to the truth shared by Dr. Martin Luther King, Jr., and a testament to how Mike lived his life of service: ''Darkness cannot drive out darkness; only light can do that. Hate cannot drive out hate, only love can do that.''

Mr. Speaker, while Mike Riddering's life was cut short by those hoping to instill fear, hatred, and darkness in our world, his life of service, light, and love will never fade. He will be greatly missed by his family and friends and all the lives he touched both in South Florida and Burkina Faso. It is through them that his light will continue to shine on.

RECOGNIZING LIEUTENANT GENERAL LAWRENCE F. SNOWDEN

HON. JOHN KLINE

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. KLINE. Mr. Speaker, I rise today to recognize a great American, a great Marine, and a champion of lasting friendship between the people of the United States and Japan. As our nation prepares to recognize the 71st anniversary of the Battle of Iwo Jima, it is timely to recognize a veteran of that iconic struggle in the Second World War.

Lieutenant General Lawrence F. Snowden was born April 14, 1921 in Charlottesville, Virginia and graduated from the University of Virginia in 1942. Prior to graduating, General Snowden enlisted in the Marine Corps Reserve in February, 1942 and was called to active duty in May, 1942. He was commissioned as a Marine Second Lieutenant on July 18, 1942. Assigned to Camp Lejeune, North Carolina, he served initially with the 23rd Marine Regiment, assigned to the 3rd and then the 4th Marine Divisions.

From February, 1944 until March, 1945 he saw combat as a Company Commander with the 23rd Marines in the capture of Roi-Namur in the Marshall Islands, the capture of Saipan and Tinian, and the legendary assault on Iwo Jima which commenced on February 19, 1945. It was Fleet Admiral Chester Nimitz who, when speaking of the Battle of Iwo Jima, stated that, ''Uncommon valor was a common virtue.'' General Snowden is the senior surviving American veteran of that battle in which he was wounded twice. General Snowden retired from the Marine Corps after more than 37 years of active service in 1979, serving his last years as Chief of Staff, Headquarters U.S. Marine Corps.

His commitment to our nation and healing the wounds of the war did not end at his retirement. General Snowden became a regular traveler to Japan and to Iwo Jima leading a ''Reunion of Honor'' with his fellow veterans of the battle from both the United States and Japan. His mission is a solemn one of reconciliation. As the widow of the Japanese commanding general said to him, ''Once enemies, now friends.''

General Snowden himself has stated, ''Those men didn't want to be here any more than we did. They were doing their duty. You don't hate anybody for that.'' As a further sign of his commitment to goodwill, General Snowden was here in this chamber in April, 2015 as a guest of the Prime Minister of Japan Shinzō Abe when he addressed the Congress. At his side was the grandson of the commander of the Japanese garrison on Iwo Jima while General Snowden's efforts were recognized by the Prime Minister.

As a 25-year veteran of the Marine Corps I am honored to recognize the historic anniversary of the Battle of Iwo Jima, and I am pleased to call attention to this great American, Lieutenant General Lawrence F. Snowden. I applaud his contribution to the past, present, and future of our great nation as a Marine and a statesman.

PERSONAL EXPLANATION

HON. STEVE KING

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. KING of Iowa. Mr. Speaker, I was unable to vote on February 1, 2016. Had I been present, I would have voted as follows: YES on Roll Call Number 46; YES on Roll Call Number 47.

PERSONAL EXPLANATION

HON. BILL FLORES

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. FLORES. Mr. Speaker, I rise to state that I was not able to be on the House floor for roll call vote 46 to H.R. 2187 taken on February 1, 2016. Had I been present for this vote, I would have voted aye.

The Fair Investment Opportunities for Professional Experts Act expands the definition of accredited investor to also include professional experts. This ensures that investors in my Congressional district have the right to access suitable investment vehicles and is critical for markets to operate efficiently.

HONORING BARRY COATES

HON. TOM RICE

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. RICE of South Carolina. Mr. Speaker, I rise today to honor the life of Mr. Barry Coates, a United States Army veteran from McBee, South Carolina.

Barry passed away last week from terminal cancer that was left untreated by the VA for over a year. Even as he battled his illness, Barry remained a champion for improving medical access and care for all veterans.

Mr. Speaker, I join with the people of South Carolina in recognizing the life of Barry. Together, we honor his service and dedication to the fight for better treatment for our veterans. His contributions to this fight leave an indelible mark that will always be remembered.

Barry will be greatly missed and I ask that we keep Barry's wife, Donna, his five children, Scotty, Breanna, Shane, Troy, and Tyler, and

the rest of his family in our thoughts and prayers.

Mr. Speaker, we must do better for our nation's veterans.

PERSONAL EXPLANATION

HON. BILL HUIZENGA

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HUIZENGA of Michigan. Mr. Speaker, I rise today regarding missed votes on Monday, February 1, 2016. Had I been present for roll call vote number 46, H.R. 2187, the Fair Investment Opportunities for Professional Experts Act, I would have voted ''yea.'' Had I been present for roll call vote number 47, H.R. 4168, the Small Business Capital Formation Enhancement Act, I would have voted ''yea.''

PERSONAL EXPLANATION

HON. RODNEY DAVIS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, on Monday, February 1, 2016, I was absent from the House because I was unavoidably detained. Due to my absence, I did not record my vote on the first vote of the day. I would like to reflect how I would have voted had I been present for legislative business.

Had I been present, I would have voted ''aye'' on Roll Call 46.

IN RECOGNITION OF JOE MOOSE'S SELECTION AS THE NATIONAL COMMUNITY PHARMACISTS ASSOCIATION'S 2015 WILLARD B. SIMMONS INDEPENDENT PHARMACIST OF THE YEAR

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. HUDSON. Mr. Speaker, I rise today to honor Dr. Joe Moose for his selection as the National Community Pharmacists Association's (NCPA) 2015 Willard B. Simmons Independent Pharmacist of the Year. Dr. Moose and his family have been providing top of the line care to residents of the state of North Carolina for four generations, and this most recent honor illustrates yet again the profound impact he has had on our community.

Since receiving his Doctorate of Pharmacy from Campbell University's College of Pharmacy and Health Science, Dr. Moose has dedicated himself to providing the best care possible for his patients while also focusing on helping future generations of pharmacists. Dr. Moose currently serves as the primary instructor at the University of North Carolina's Eshelman School of Pharmacy's Community Pharmacy Residency Program, while also volunteering his time to instruct future pharmaceutical students at his alma mater, Campbell University, as well as Wingate University's School of Pharmacy.

Dr. Moose also serves on multiple committees and boards for the state of North Carolina, including the Medicaid Pharmacy and Therapeutics Committee as well as co-chairing the Medicaid Drug Regimen Review Board. As a result of his tireless efforts, Dr. Moose has been the recipient of multiple awards and honors, with his latest being the NCPA's 2015 Willard B. Simmons Independent Pharmacist of the Year. This award, according to the NCPA, recognizes an independent pharmacist for exemplary leadership and commitment to independent pharmacy and to their community. Dr. Moose received this award at the NCPA 2015 Annual Convention on October 11, 2015.

Mr. Speaker, please join me in congratulating Dr. Joe Moose for receiving this prestigious distinction, and wishing him and his family well as they continue to serve the people of North Carolina with high-quality care and exceptional customer service.

URGENCY OF ADDRESSING FELONY DISENFRANCHISEMENT

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Ms. SEWELL of Alabama. Mr. Speaker, I rise on the first Restoration Tuesday of February to talk about the issue of felony disenfranchisement, an issue that is critical to voting rights in our country.

Felony disenfranchisement dates back to before the Jim Crow era. It is inconsistent with the values we cherish most in our country today and it contradicts the narrative that we've moved beyond the sins of our past. The United States should not be a country where past mistakes have endless consequences with no opportunity for second chances.

5.85 million Americans are denied the right to vote because of these laws. 4.4 million are out of prison, living in our communities, paying taxes, working, and raising families, yet they remain unable to vote, shut out from our democracy.

Denying this right of citizenship further punishes individuals who re-enter our communities and counters the expectation that citizens have rehabilitated themselves following a conviction. The United States should not be a country where past mistakes have countless consequences with no opportunity for redress.

My home state of Alabama is one of 12 states that do not automatically restore voting rights to people who have served their sentences. Alabama has one of the nation's highest disenfranchisement rates. Nearly a third of African American men in my home state have permanently lost their right to vote. Regardless of the amount of time they've been out of prison, they have been completely excluded from the electoral process.

These state laws that bar 5.8 million Americans with felony convictions from voting date back to the late 19th and early 20th centuries. During the decades following passage of the Fifteenth Amendment, lawmakers across the country worked tirelessly to invalidate the black vote. As the Jim Crow era began to gain ground, these bans were strengthened.

While poll taxes and literacy tests were effective tools in their arsenal, statutes allowing the subjective and permanent exclusion of large numbers of minorities from the democratic process were a particularly potent weapon in their efforts to undermine African-American political power.

Those who championed these bans were clear on their intent. In 1901, disenfranchisement in Alabama was extended to all crimes involving ''moral turpitude''—applying to misdemeanors and even non-criminal acts. The president of the constitutional convention argued the state needed to avert what he called the ''menace of Negro domination.''

In 2016 we are still operating under some of the same laws that were cornerstones of Jim Crow. Our nation's existing patchwork of federal law disfranchising people with criminal records perpetuates entrenched racial and socioeconomic discrimination. We've clearly fallen woefully short of achieving our ideals. We can and must do better.

Rep. JOHN CONYERS has introduced a great piece of legislation to restore voting rights in federal elections to the millions of Americans who have been released from incarceration, but continue to be denied the right to vote. I encourage all of my colleagues, from both sides of the aisle, to support the Democracy Restoration Act of 2015, a bill to restore voting rights in federal elections to people who are out of prison and living in the community.

RECOGNIZING ROSE STRONG ON HER 70TH BIRTHDAY

HON. DAVID G. REICHERT

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. REICHERT. Mr. Speaker, It is my distinct honor to recognize Ms. Rose Strong on her 70th birthday.

Born in Minden, Louisiana, the 12th of 13 children, Ms. Strong grew up to defy the odds of her time and distinguish herself as an effective leader.

Known as a pioneer among women in the 1970s and 1980s, Ms. Strong was elected as a City Councilwoman of Columbus, Georgia in 1984, making her the first African American woman elected in Muscogee County. She went on to be appointed by President George H.W. Bush as Deputy Director, Intergovernmental Affairs of the U.S. Department of Transportation in 1989.

At the age of 70, Ms. Strong continues her impressive career, currently holding the position of Vice-President and Spokesperson of T.E.C.H. for the World, Inc.

Aside from the contributions Ms. Strong has made in her professional life, she has recently been honored at her local place of worship, The City Church in Seattle, as one of its ''Pillars.''

She is also the proud mother of two children who have followed in their mother's footsteps of serving their community. Rozalyn Strong is a Doctoral Candidate and an educator in the Lake Washington School District. Mack Strong, Jr. is a retired Seattle Seahawk fullback and currently works as the Western States Director of the NFL's Legends Community.

I admire and thank Ms. Strong for her lifetime of leadership and dedication to country and community. I am extremely proud to call

her a friend. May she have a happy 70th birthday and enjoy many more to come.

INTRODUCTION OF THE FAIRNESS FOR BREASTFEEDING MOTHERS ACT OF 2016

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Ms. NORTON. Mr. Speaker, today, I introduce the Fairness for Breastfeeding Mothers Act of 2016, a bill that would require buildings that are either federally owned or leased to provide designated private and hygienic lactation spaces for nursing mothers. For years, federal agencies such as the U.S. Department of Agriculture and the Centers for Disease Control and Prevention have encouraged breastfeeding—the benefits are so great that the Affordable Care Act amended federal law to require employers to provide a designated, non-bathroom space for returning employees to pump breastmilk for their newborns, ensuring that new mothers would be able to continue this essential practice even after returning to work. My bill would extend this requirement to include not just employees, but visitors and guests to federal facilities across the nation.

In Washington, D.C. alone, there are millions of tourists who visit federal sites, such as the Lincoln Memorial and the Smithsonian Institution. Increasingly, families understand the unique benefits of breastfeeding, and visitors to these buildings who have newborns and babies should have a private space to breastfeed or pump. The benefits of breastfeeding are well documented—breastmilk contains antibodies and hormones that boost babies' immune systems, and studies have shown lower risks of asthma, diabetes, respiratory infections, and other diseases among breastfed babies. Moreover, breastfeeding also has benefits for nursing mothers, who, research has shown, have lower risks of diabetes and certain forms of cancer. Given the significant public health benefits of breastfeeding for both mother and baby, already recognized in federal policy, my bill is a logical next step to ensure visitors to federal sites have access to clean, hygienic, and private spaces to nurse or pump.

I urge my colleagues to support this bill, which would provide access to designated lactation rooms for guests to federally owned or leased buildings.

HONORING THE MOST VENERABLE ORDER OF THE HOSPITAL OF SAINT JOHN OF JERUSALEM

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. WILSON of South Carolina. Mr. Speaker, since 1888, the members of the Most Venerable Order of the Hospital of Saint John of Jerusalem have promoted peace and health in the Middle East through their hospital in East Jerusalem, Gaza, and the West Bank.

In 2015, the hospital and associated clinics treated over 125,000 patients—including 15,000 through mobile outreach. The Order has a strong foundation in Christian ideals, and a motto of ''Pro Fide, Pro Utilitate Hominum: For the Faith and in the Service of Humanity,'' which speak to the inspiring scope of their global contribution.

The Order also features a diverse membership, who vow to ''serve our lords, the sick and the poor,'' and to fulfill this promise through volunteer service, fundraising, and monetary donations. I would like to congratulate Priory/Regional Chair, Julian V. Brandt III, CStJ, of Charleston, South Carolina, for his dedication for the significant work that the Order is accomplishing around the world.

CELEBRATING THE 10TH ANNIVERSARY OF THE SCHOOL OF SCIENCE AND TECHNOLOGY

HON. LAMAR SMITH

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. SMITH of Texas. Mr. Speaker, 2016 marks the 10th anniversary for the School of Science and Technology (SST) located in my district in San Antonio, Texas. SST provides a K–12 curriculum concentrated on educating students in science, technology, engineering, and math (STEM). In the rapidly changing world of science and technology, it is critical that our students receive STEM education from an early age. For a decade, SST has provided students with such an opportunity.

SST has been ranked among the top high schools in Texas for multiple years and has received the Bronze, Silver and Gold rankings from US News and World Report. This is a testament to the school's dedication to providing STEM education to students in the San Antonio area.

As Chairman of the House Science, Space and Technology Committee, I am committed to ensuring that our nation's youth have the scientific and mathematical skills to thrive in a technology-based economy. And I commend SST for its continued efforts to provide advanced STEM education to K–12 students.

In appreciation of all they have done, Mr. Speaker, I ask my colleagues to join me in celebrating the 10th anniversary of SST.

INTRODUCTION OF THE COMMERCIAL UAS MODERNIZATION ACT

HON. EARL BLUMENAUER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. BLUMENAUER. Mr. Speaker, the UAS industry is booming in Oregon and nationwide, but our laws and regulations are stifling innovation instead of encouraging it, forcing American companies to look overseas to test new technology. We must not miss the opportunity to harness the benefits and utility of UAS technology, which will bring advances in safety and efficiency in nearly every sector of the economy.

Today, I am introducing the Commercial UAS Modernization Act, which creates an interim framework that will promote American innovation in the rapidly growing field of unmanned aircraft systems (UAS) and will facilitate the safe integration of UAS into the National Airspace System.

While the Federal Aviation Administration (FAA) is in the process of creating a regulatory framework for commercial UAS operation, the FAA's existing approach to UAS integration and regulation has been piecemeal at best. As a result, we are behind other countries in developing a regulatory regime that encourages growth of this burgeoning industry, and U.S. companies are being overtaken by competition in Canada, Europe, and Asia. This legislation offers a uniform and comprehensive approach that offers our drone industry a sensible path forward.

The UAS industry expects to produce more than 100,000 U.S. jobs, with $82 billion in economic impact, within a decade after these regulations are complete. The potential social and economic benefits of this technology go far beyond package delivery and capturing photos and video footage. Around the world, UAS are being used to inspect critical infrastructure and conduct land surveys, fight forest fires and support emergency and disaster response, transport medical samples and supplies, analyze and manage crops, detect oil spills and predict volcanic eruptions, catch poachers, and deliver high-speed Internet to remote or underserved areas. Full integration of UAS into the national airspace could revolutionize the way entire sectors of our economy and governments function.

The Commercial UAS Modernization Act provides a much-needed update to federal rules, making it clear that flying smartphones should not be regulated like Predator drones.

IRAN TERROR FINANCE TRANSPARENCY ACT

SPEECH OF

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Wednesday, January 13, 2016

Mr. VAN HOLLEN. Mr. Speaker, I rise in opposition to H.R. 3662.

The focus of the JCPOA is to achieve the long desired objective of preventing Iran from obtaining a nuclear weapon. We must be vigilant in our verification and enforcement of that agreement.

Iran's breach of the UN Resolutions regarding ballistic missiles is serious, but it is a distinct issue that requires its own targeted response. That is why President Obama was right to impose separate sanctions on Iran for its ballistic missile violations.

As Mr. ENGEL has indicated, this legislation is nothing but a blatantly partisan attempt to re-litigate the JCPOA. It was drafted without consulting a single Democrat on the House Foreign Affairs Committee, and passed out of Committee without a single Democratic vote.

Let us focus together on holding Iran accountable for all its actions—with respect to JCPOA, its ballistic missile program, and its support for groups in the region that have engaged in terrorism. But it is a sad day when our Republican colleagues play political games with important national security and foreign policy matters.

ADDRESSING THE COSTS TO LOCAL AND STATE LAW ENFORCEMENT OF THE OCCUPATION OF THE MALHEUR NATIONAL WILDLIFE REFUGE

HON. EARL BLUMENAUER
OF OREGON
IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 2, 2016

Mr. BLUMENAUER. Mr. Speaker, for 32 days armed militants have occupied the Malheur National Wildlife Refuge in Harney County, Oregon. Acting on behalf of a misguided anti-public lands agenda and against the wishes of the local community, these extremists have endangered lives, damaged property, and disrupted society.

The armed takeover of a federal facility is simply not the way we do things in Oregon, and is not how things have been done at the Malheur National Wildlife Refuge—a national treasure cherished by birders and other outdoor recreation enthusiasts and a model of collaboration and partnership with the local community.

The situation has been allowed to continue for far too long, and the costs of this dramatic and dangerous incident will be innumerable to the federal government, the Bums Paiute Tribe, the state, and the local community.

One particular manifestation of this cost is the financial expense to state and local law enforcement, which has spent an estimated $100,000 per week responding to this incident.

This is why, today, I am introducing a bill to help assuage some of the financial hardship borne by state and local taxpayers in protecting the community during this challenging time.

Because the incident involves a federal facility, the federal government made decisions about the timing and manner of addressing this ordeal. Ultimately, those decisions have been very expensive for Oregon and the local community. My bill will allow the federal government to ease this burden within 180 days by reimbursing reasonable costs associated with state and local law enforcement's response to this incident. Under my bill, the federal government will have the authority to pursue civil action seeking to recover those costs from the armed militia members to make sure taxpayers aren't on the hook.

Placing the burden of these costs on the militants is the right thing to do. It will send a strong signal that an armed takeover of a federal facility is unacceptable and will result in consequences. In the meantime, however, these communities already face resource constraints and an immediate federal reimbursement will help to address at least some of the hardships caused by this irresponsible and unfortunate incident.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S453–S530.

Measures Introduced: Seven bills and four resolutions were introduced, as follows: S. 2478–2484, and S. Res. 353–356. **Pages S486–87**

Measures Reported:

H.R. 757, to improve the enforcement of sanctions against the Government of North Korea, with an amendment in the nature of a substitute.

H.R. 1493, to protect and preserve international cultural property at risk due to political instability, armed conflict, or natural or other disasters, with an amendment in the nature of a substitute.

S. 1882, to support the sustainable recovery and rebuilding of Nepal following the recent, devastating earthquakes near Kathmandu, with an amendment in the nature of a substitute.

S. 2426, to direct the Secretary of State to develop a strategy to obtain observer status for Taiwan in the International Criminal Police Organization.

Page S486

Measures Passed:

West Lake Landfill: Committee on Environment and Public Works was discharged from further consideration of S. 2306, to require the Secretary of the Army, acting through the Chief of Engineers, to undertake remediation oversight of the West Lake Landfill located in Bridgeton, Missouri, and the bill was then passed. **Pages S529–30**

National Stalking Awareness Month: Senate agreed to S. Res. 353, raising awareness and encouraging the prevention of stalking by designating January 2016, as "National Stalking Awareness Month". **Pages S488–89, S530**

Congratulating the University of Nebraska-Lincoln National Collegiate Athletic Association Division I Volleyball Champions: Senate agreed to S. Res. 354, congratulating the University of Nebraska-Lincoln volleyball team for winning the 2015 National Collegiate Athletic Association Division I Volleyball Championship. **Pages S489, S530**

National Tribal Colleges and Universities Week: Senate agreed to S. Res. 355, designating the week beginning February 7, 2016, as "National Tribal Colleges and Universities Week". **Pages S489, S530**

National Mentoring Month: Senate agreed to S. Res. 356, recognizing January 2016 as National Mentoring Month. **Pages S489–90, S530**

Measures Considered:

Energy Policy Modernization Act—Agreement: Senate continued consideration of S. 2012, to provide for the modernization of the energy policy of the United States, and taking action on the following amendments proposed thereto: **Pages S460–484**

Adopted:

Rounds Modified Amendment No. 3182 (to Amendment No. 2953), to direct the Secretary of the Interior to establish a conservation incentives landowner education program. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.) **Pages S471–72**

Durbin/Alexander Amendment No. 3095 (to Amendment No. 2953), to increase funding for the Office of Science of the Department of Energy. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.) **Page S475**

Murkowski (for Hirono) Amendment No. 3064 (to Amendment No. 2953), to modify a provision relating to the energy workforce pilot grant program. **Page S482**

Murkowski (for Hirono) Modified Amendment No. 3065 (to Amendment No. 2953), to modify a provision relating to the energy workforce pilot grant program. **Pages S482–83**

Murkowski (for Klobuchar) Amendment No. 3179 (to Amendment No. 2953), to modify the areas of focus under the grid storage program. **Pages S482, S483**

Murkowski (for Carper/Inhofe) Amendment No. 3145 (to Amendment No. 2953), to provide that for purposes of the Federal purchase requirement, renewable energy includes thermal energy. **Pages S482, S483**

Murkowski (for Heitkamp) Amendment No. 3174 (to Amendment No. 2953), to affirm a Federal commitment to carbon capture utilization and storage research, development, and implementation and to study the costs and benefits of contracting authority for price stabilization. **Pages S482, S483**

Murkowski (for Collins) Modified Amendment No. 3140 (to Amendment No. 2953), to require certain Federal agencies to establish consistent policies relating to forest biomass energy to help address the energy needs of the United States. **Pages S482, S483, S484**

Murkowski (for Baldwin) Amendment No. 3156 (to Amendment No. 2953), to strike a repeal under a provision relating to manufacturing energy efficiency. **Pages S482, S483**

Murkowski (for Carper/Inhofe) Amendment No. 3143 (to Amendment No. 2953), to reauthorize the diesel emissions reduction program. **Pages S482, S483**

Murkowski (for Boxer/Feinstein) Modified Amendment No. 3194 (to Amendment No. 2953), to direct the Secretary of Energy to establish a task force to analyze and assess the Aliso Canyon natural gas leak. **Pages S482, S483–84**

Murkowski (for Inhofe/King) Amendment No. 3205 (to Amendment No. 2953), to provide for the use of geomatic data in consideration of applications for Federal authorization. **Pages S482, S484**

Murkowski (for Booker) Amendment No. 3160 (to Amendment No. 2953), to strike a provision relating to identifying and characterizing methane hydrate resources using remote sensing and seismic data in the Atlantic Ocean Basin. **Pages S482, S484**

Rejected:

By 47 yeas to 48 nays (Vote No. 10), Lee Amendment No. 3023 (to Amendment No. 2953), to modify the authority of the President of the United States to declare national monuments. (Pursuant to the order of Monday, February 1, 2016, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S468–71**

By 43 yeas to 52 nays (Vote No. 11), Franken Amendment No. 3115 (to Amendment No. 2953), to establish a Federal energy efficiency resource standard for electricity and natural gas suppliers. (Pursuant to the order of Monday, February 1, 2016, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Page S471**

By 52 yeas to 43 nays (Vote No. 12), Barrasso Amendment No. 3030 (to Amendment No. 2953), to establish deadlines and expedite permits for certain natural gas gathering lines on Federal land and Indian land. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S472–73**

By 49 yeas to 46 nays (Vote No. 13), Sullivan Amendment No. 2996 (to Amendment No. 2953), to require each agency to repeal or amend 1 or more rules before issuing or amending a rule. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S473–74**

By 45 yeas to 50 nays (Vote No. 14), Schatz/Whitehouse Amendment No. 3176 (to Amendment No. 2953), to amend the Internal Revenue Code of 1986 to phase out tax preferences for fossil fuels on the same schedule as the phase out of the tax credits for wind facilitates. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S474–75**

By 43 yeas to 52 nays (Vote. No 15), Whitehouse Amendment No. 3125 (to Amendment No. 2953), to require campaign finance disclosures for certain persons benefitting from fossil fuel activities. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S475–77**

Pending:

Murkowski Amendment No. 2953, in the nature of a substitute. **Page S460**

Murkowski (for Cassidy/Markey) Amendment No. 2954 (to Amendment No. 2953), to provide for certain increases in, and limitations on, the drawdown and sales of the Strategic Petroleum Reserve. **Page S460**

Murkowski Amendment No. 2963 (to Amendment No. 2953), to modify a provision relating to bulk-power system reliability impact statements. **Pages S460, S482**

A motion was entered to close further debate on Murkowski Amendment No. 2953 (listed above), and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, February 4, 2016. **Page S530**

A motion was entered to close further debate on the bill, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of Murkowski Amendment No. 2953. **Page S477**

A unanimous-consent agreement was reached providing for further consideration of the bill at approximately 10:30 a.m., on Wednesday, February 3, 2016; and that the filing deadline for all first-degree amendments to Murkowski Amendment No. 2953, and the bill, be at 1 p.m., on Wednesday, February 3, 2016. **Page S530**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, the District of Columbia's fiscal year (FY) 2016 Budget and Financial Plan; which was referred to the Committee on Homeland Security and Governmental Affairs. (PM–39) Page S486

Messages from the House: Page S486

Measures Referred: Page S486

Measures Read the First Time: Page S486

Additional Cosponsors: Pages S487–88

Statements on Introduced Bills/Resolutions: Pages S488–90

Additional Statements: Pages S485–86

Amendments Submitted: Pages S490–S529

Authorities for Committees to Meet: Page S529

Privileges of the Floor: Page S529

Record Votes: Six record votes were taken today. (Total—15) Pages S471, S473, S474, S475, S477

Adjournment: Senate convened at 10 a.m. and adjourned at 7:38 p.m., until 9:30 a.m. on Wednesday, February 3, 2016. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S530.)

Committee Meetings

(Committees not listed did not meet)

GROUND COMBAT UNITS

Committee on Armed Services: Committee concluded a hearing to examine the implementation of the decision to open all ground combat units to women, after receiving testimony from Raymond E. Mabus, Jr., Secretary of the Navy, Patrick J. Murphy, Under Secretary, and General Mark A. Milley, USA, Chief of Staff, both of the Army, and General Robert B. Neller, USMC, Commandant of the Marine Corps, all of the Department of Defense.

RUSSIA, THE EUROPEAN UNION, AND AMERICAN FOREIGN POLICY

Committee on Foreign Relations: Committee received a closed briefing on Russia, the European Union, and American foreign policy from Victoria Nuland, Assistant Secretary of State, Bureau of European and Eurasian Affairs.

FRONTLINE RESPONSE TO TERRORISM IN AMERICA

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine frontline response to terrorism in America, after receiving testimony from Mark Ghilarducci, California Governor's Office of Emergency Services Director and Governor's Homeland Security Advisor, Mather; Chief Wallace L. Sparks, Everest Metropolitan Police Department, Weston, Wisconsin; Commissioner William J. Bratton, New York City Police Department, New York, New York; Rhoda Mae Kerr, International Association of Fire Chiefs, Austin, Texas; and Edward F. Davis, III, Edward Davis, LLC, Boston, Massachusetts.

EB–5 REGIONAL CENTER PROGRAM

Committee on the Judiciary: Committee concluded a hearing to examine the future of the EB–5 regional center program, including S. 1501, to promote and reform foreign capital investment and job creation in American communities, after receiving testimony from Nicholas Colucci, Chief, Office of Immigrant Investor Program, Citizenship and Immigration Services, Department of Homeland Security; and Stephen L. Cohen, Associate Director, Division of Enforcement, Securities and Exchange Commission.

OCCUPATIONAL LICENSING AND THE STATE ACTION DOCTRINE

Committee on the Judiciary: Subcommittee on Antitrust, Competition Policy and Consumer Rights concluded a hearing to examine occupational licensing and the state action doctrine, after receiving testimony from Jason Furman, Chairman, Council of Economic Advisers; Maureen K. Ohlhausen, Commissioner, Federal Trade Commission; Misha Tseytlin, Wisconsin Solicitor General, Madison; Morris Kleiner, University of Minnesota Humphrey School of Public Affairs, Minneapolis; Robert Everett Johnson, Institute for Justice, Washington, D.C.; and Bill Main, Segs in the City, Baltimore, Maryland.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 16 public bills, H.R. 4425–4440; and 6 resolutions, H. Con. Res. 110–111; and H. Res. 596–599, were introduced. **Pages H495–96**

Additional Cosponsors: **Pages H496–97**

Reports Filed:

Reports were filed today as follows:

H.R. 3293, to provide for greater accountability in Federal funding for scientific research, to promote the progress of science in the United States that serves that national interest (H. Rept. 114–412);

H.R. 2017, to amend the Federal Food, Drug, and Cosmetic Act to improve and clarify certain disclosure requirements for restaurants and similar retail food establishments, and to amend the authority to bring proceedings under section 403A, with an amendment (H. Rept. 114–413); and

H. Res. 595, providing for consideration of the bill (H.R. 1675) to direct the Securities and Exchange Commission to revise its rules so as to increase the threshold amount for requiring issuers to provide certain disclosures relating to compensatory benefit plans, and providing for consideration of the bill (H.R. 766) to provide requirements for the appropriate Federal banking agencies when requesting or ordering a depository institution to terminate a specific customer account, to provide for additional requirements related to subpoenas issued under the Financial Institutions Reform, Recovery, and Enforcement Act of 1989, and for other purposes (H. Rept. 114–414). **Page H495**

Recess: The House recessed at 10:04 a.m. and reconvened at 12 noon. **Page H435**

Housing Opportunity Through Modernization Act: The House passed H.R. 3700, to provide housing opportunities in the United States through modernization of various housing programs, by a yea-and-nay vote of 427 yeas with none voting ''nay'', Roll No. 52. **Pages H451–82**

Pursuant to the Rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–42 shall be considered as an original bill for the purpose of amendment under the five-minute rule, in lieu of the amendment in the nature of a substitute recommended by the Committee on Financial Services now printed in the bill. **Pages H459–65**

Agreed to:

Buchanan amendment (No. 1 printed in H. Rept. 114–411) that promotes efficient and accurate administration of income reviews and the collection of asset information when determining eligibility for rental assistance, consistent with other means-tested programs; **Pages H465–67**

Maxine Waters (CA) amendment (No. 2 printed in H. Rept. 114–411) that removes harmful language that would limit the amount that families receiving certain federal housing assistance can deduct from their income for childcare expenses; **Pages H467–68**

Sewell (AL) amendment (No. 3 printed in H. Rept. 114–411) that requires the Secretary of HUD to conduct a study to determine the impacts of the decreased deductions on rents paid by elderly and disabled individuals and families assisted under the Section 8 rental assistance and housing programs; **Page H468**

Hinojosa amendment (No. 5 printed in H. Rept. 114–411) that allows the USDA to assess a nominal fee (maximum of $50) per loan under the Section 502 single family guaranteed home loan program in order to fund needed technological improvements and investments into the guaranteed underwriting system; **Pages H468–69**

Meng amendment (No. 6 printed in H. Rept. 114–411) that requires HUD to publish model guidelines for minimum heating requirements for units operated by public housing agencies receiving federal assistance; **Pages H469–70**

Welch amendment (No. 8 printed in H. Rept. 114–411) that allows the property taxes paid on mobile homes, insurance payments, utilities and financing to be included as components of the housing costs eligible for Section 8 payments; **Pages H471–72**

Peters amendment (No. 9 printed in H. Rept. 114–411) that inserts a provision for collaborating with the Department of Veterans Affairs and the Department of Housing and Urban Development on how to better coordinate and improve veterans housing services; **Pages H472–73**

Peters amendment (No. 10 printed in H. Rept. 114–411) that directs the Secretary of Housing and Urban Development to reopen the period for public comment for the ''Homeless Emergency Assistance and Rapid Transition to Housing: Continuum of Care Program'' to allow stakeholders the opportunity to provide input on how HUD's resources can be most equitably used to end homelessness in our country; **Page H473**

Jackson Lee amendment (No. 13 printed in H. Rept. 114–411), as modified, that directs the Secretary of Housing and Urban Development to work

with the Secretary of Labor to produce an annual report on interagency strategies to strengthen family economic empowerment by linking housing with essential supportive services such as employment counseling and training, financial growth, childcare, transportation, meals, youth recreational activities and other supportive services; prioritizes U.S. citizens and nationals over migrants from the Republic of the Marshall Islands, Republic of Palau, and the Federated States of Micronesia when receiving federal housing assistance in Guam; **Pages H475–78**

Price (NC) amendment (No. 14 printed in H. Rept. 114–411) that updates and modernizes HUD's funding formula for the Housing Opportunities for Persons With AIDS (HOPWA) program so that funding is distributed to jurisdictions based on living cases of HIV/AIDS; and **Pages H478–79**

Palazzo amendment (No. 7 printed in H. Rept. 114–411) that makes permanent the exception to public housing agency resident board member requirement (by a recorded vote of 236 ayes to 178 noes, Roll No. 50). **Pages H470–71, H479–80**

Rejected:

Ellison amendment (No. 11 printed in H. Rept. 114–411) that sought to provide affirmative permission for housing providers who administer U.S. Department of Housing and Urban Development funds to report on-time rental payment data for their tenants to credit reporting agencies without requiring and managing individual written consent agreements; direct HUD to retain tenant privacy so the furnished information would not specifically note that tenants receive HUD assistance; and **Pages H473–74**

Al Green (TX) amendment (No. 12 printed in H. Rept. 114–411) that sought to reauthorize the FHA pilot program to establish an automated process for providing additional credit rating information to help determine creditworthiness for families with insufficient credit histories (by a recorded vote of 181 ayes to 239 noes, Roll No. 51). **Pages H474–75, H480–81**

H. Res. 594, the rule providing for consideration of the bill (H.R. 3700) was agreed to by a recorded vote of 242 ayes to 177 noes, Roll No. 49, after the previous question was ordered by a yea-and-nay vote of 236 yeas to 178 nays, Roll No. 48. **Pages H439–441, H450–51**

Restoring Americans' Healthcare Freedom Reconciliation Act—Presidential Veto: The House voted to sustain the President's veto of H.R. 3762, to provide for reconciliation pursuant to section 2002 of the concurrent resolution on the budget for fiscal year 2016, by a yea-and-nay vote of 241 yeas to 186 nays, Roll No. 53 (two-thirds of those present not voting to override). **Page H482**

Subsequently, the veto message (H. Doc. 114–91) and the bill were referred to the Committee on the Budget. **Pages H441–450**

Iran Terror Finance Transparency Act: The House passed H.R. 3662, to enhance congressional oversight over the administration of sanctions against certain Iranian terrorism financiers, by a yea-and-nay vote of 246 yeas to 181 nays, Roll No. 54. Consideration began on Wednesday, January 13th. **Pages H482–83**

H. Res. 583, the rule providing for consideration of the bill (H.R. 1644), the joint resolution (S.J. Res. 22), and the bill (H.R. 3662), was agreed to on Tuesday, January 12th.

Presidential Message: Read a message from the President wherein he transmitted the District of Columbia's fiscal year 2016 Budget and Financial Plan—referred to the Committee on Appropriations and ordered to be printed (H. Doc. 114–96). **Page H483**

Quorum Calls—Votes: Four yea-and-nay votes and three recorded votes developed during the proceedings of today and appear on pages H450, H451, H480, H480–81, H481–82, H482, and H482–83. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 7:44 p.m.

Committee Meetings

BUSINESS MEETING

Committee on Agriculture: Full Committee held a business meeting to consider the Budget Views and Estimates Letter of the Committee on Agriculture for the agencies and programs under the jurisdiction of the Committee for fiscal year 2017. The committee's Budget Views and Estimates Letter was approved.

OPPORTUNITIES AND CHALLENGES IN DIRECT MARKETING—A VIEW FROM THE FIELD

Committee on Agriculture: Subcommittee on Biotechnology, Horticulture and Research held a hearing entitled "Opportunities and Challenges in Direct Marketing—A View from the Field". Testimony was heard from public witnesses.

AFGHANISTAN IN 2016: THE EVOLVING SECURITY SITUATION AND U.S. POLICY, STRATEGY, AND POSTURE

Committee on Armed Services: Full Committee held a hearing entitled "Afghanistan in 2016: The Evolving Security Situation and U.S. Policy, Strategy, and Posture". Testimony was heard from General John

Campbell, Commander, Operation Resolute Support, U.S. Forces-Afghanistan.

MISCELLANEOUS MEASURES

Committee on Education and the Workforce: Full Committee held a markup on H.R. 4293, the "Affordable Retirement Advice Protection Act"; and H.R. 4294, the "Strengthening Access to Valuable Education and Retirement Support Act of 2015". H.R. 4293 and H.R. 4294 were ordered reported, as amended.

LEGISLATIVE MEASURES

Committee on Energy and Commerce: Subcommittee on Energy and Power held a hearing entitled "Legislative Hearing on Eight Energy Infrastructure Bills". Testimony was heard from Ann F. Miles, Director, Office of Energy Projects, Federal Energy Regulatory Commission; Max Minzner, General Counsel, Office of the General Counsel, Federal Energy Regulatory Commission; Bill Bottiggi, General Manager, Braintree Light and Electric Department; and public witnesses.

STATUS OF THE PUBLIC SAFETY BROADBAND NETWORK

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled "Status of the Public Safety Broadband Network". Testimony was heard from David Furth, Deputy Chief Public Safety and Homeland Security Bureau, Federal Communications Commission; and TJ Kennedy, President, First Responder Network Authority.

BUSINESS MEETING

Committee on Financial Services: Full Committee began a business meeting on the Committee's views and estimates on the budget.

UNSUSTAINABLE FEDERAL SPENDING AND THE DEBT LIMIT

Committee on Financial Services: Subcommittee on Oversight and Investigations held a hearing entitled "Unsustainable Federal Spending and the Debt Limit". Testimony was heard from Representatives McClintock and Pocan and public witnesses.

MISCELLANEOUS MEASURES

Committee on Homeland Security: Full Committee held a markup on H.R. 4408, the "National Strategy to Combat Terrorist Travel Act of 2016"; H.R. 4407, the "Counterterrorism Advisory Board Act of 2016"; H.R. 4403, the "Enhancing Overseas Traveler Vetting Act"; H.R. 4402, the "Foreign Fighter Review Act of 2016"; H.R. 4401, the "Amplifying Local Efforts to Root out Terror Act of 2016"; H.R. 4404, the "Terrorist and Foreign Fighter Travel Exercise Act of 2016"; H.R. 4383, the "DHS Human Trafficking Prevention Act of 2016"; and H.R. 4398, the "DHS Acquisition Documentation Integrity Act of 2016". The following bills were ordered reported, as amended: H.R. 4403, H.R. 4383, H.R. 4402, and H.R. 4404. The following bills were ordered reported, without amendment: H.R. 4408, H.R. 4407, H.R. 4401, and H.R. 4398.

FISA AMENDMENTS ACT

Committee on the Judiciary: Full Committee held a hearing entitled "FISA Amendments Act". This hearing was closed.

LEGISLATIVE MEASURE

Committee on the Judiciary: Subcommittee on Courts, Intellectual Property, and the Internet held a hearing on H.R. 1057, the "Promoting Automotive Repair, Trade, and Sales Act of 2015". Testimony was heard from public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Water, Power and Oceans held a hearing on H.R. 3070, the "EEZ Clarification Act"; and H.R. 4245, to exempt importation and exportation of sea urchins and sea cucumbers from licensing requirements under the Endangered Species Act of 1973. Testimony was heard from Representatives Zeldin; Pingree of Maine; and Poliquin; and Joe Leask, Diver and Chairman, Sea Urchin Zone Council, Maine Department of Marine Resources; William Woody, Chief, Office of Law Enforcement, U.S. Fish and Wildlife Service; Daniel Morris, Deputy Regional Administrator, Greater Atlantic Region, National Marine Fisheries Service; and public witnesses.

THE NEED FOR THE ESTABLISHMENT OF A PUERTO RICO FINANCIAL STABILITY AND ECONOMIC GROWTH AUTHORITY

Committee on Natural Resources: Subcommittee on Indian, Insular and Alaska Native Affairs held a hearing entitled "The Need for the Establishment of a Puerto Rico Financial Stability and Economic Growth Authority". Testimony was heard from public witnesses.

MISCELLANEOUS MEASURES

Committee on Natural Resources: Full Committee began a markup on H.R. 482, the "Ocmulgee Mounds National Historical Park Boundary Revision Act of 2015"; H.R. 812, the "Indian Trust Asset Management Demonstration Project Act of 2015"; H.R. 890, to correct the boundaries of the John H. Chafee Coastal Barrier Resources System Unit P16; H.R. 894, to extend the authorization of the Highlands

Conservation Act; H.R. 1296, to amend the San Luis Rey Indian Water Rights Settlement Act to clarify certain settlement terms, and for other purposes; H.R. 1475, the "Korean War Veterans Memorial Wall of Remembrance Act of 2015"; H.R. 1815, the "Eastern Nevada Land Implementation Improvement Act"; H.R. 2273, to amend the Colorado River Storage Project Act to authorize the use of the active capacity of the Fontenelle Reservoir; H.R. 2538, the "Lytton Rancheria Homelands Act of 2015"; H.R. 2857, to facilitate the addition of park administration at the Coltsville National Historical Park, and for other purposes; H.R. 2880, the "Martin Luther King, Jr. National Historical Park Act of 2015"; H.R. 3004, to amend the Gullah/Geechee Cultural Heritage Act to extend the authorization for the Gullah/Geechee Cultural Heritage Corridor Commission; H.R. 3036, the "National 9/11 Memorial at the World Trade Center Act"; H.R. 3079, to take certain Federal land located in Tuolumne County, California, into trust for the benefit of the Tuolumne Band of Me-Wuk Indians, and for other purposes; H.R. 3371, the "Kennesaw Mountain National Battlefield Park Boundary Adjustment Act of 2015"; H.R. 3342, to provide for stability of title to certain lands in the State of Louisiana, and for other purposes; H.R. 3620, to amend the Delaware Water Gap National Recreation Area Improvement Act to provide access to certain vehicles serving residents of municipalities adjacent to the Delaware Water Gap National Recreation Area, and for other purposes; and H.R. 4119, to authorize the exchange of certain land located in Gulf Islands National Seashore, Jackson County, Mississippi, between the National Park Service and the Veterans of Foreign Wars, and for other purposes.

U.S. DEPARTMENT OF EDUCATION: INVESTIGATION OF THE CIO

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "U.S. Department of Education: Investigation of the CIO". Testimony was heard from the following Department of Education officials: Danny A. Harris, Chief Information Officer; Sandra Bruce, Deputy Inspector General; Susan Winchell, Assistant General Counsel for Ethics; and John B. King Jr., Acting Secretary.

SEEKING JUSTICE FOR VICTIMS OF PALESTINIAN TERRORISM IN ISRAEL

Committee on Oversight and Government Reform: Subcommittee on National Security held a hearing entitled "Seeking Justice for Victims of Palestinian Terrorism in Israel". Testimony was heard from Brad Wiegmann, Deputy Assistant Attorney General, National Security Division, Department of Justice; and public witnesses.

FINANCIAL INSTITUTION CUSTOMER PROTECTION ACT OF 2015; ENCOURAGING EMPLOYEE OWNERSHIP ACT OF 2015

Committee on Rules: Full Committee held a hearing on H.R. 766, the "Financial Institution Customer Protection Act of 2015"; and H.R. 1675, "Encouraging Employee Ownership Act of 2015". The committee granted, by record vote of 9–4, a structured rule for H.R. 1675. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–43 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part A of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part A of the report. The rule provides one motion to recommit with or without instructions. The rule also grants a structured rule for H.R. 766. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–41 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part B of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The

rule waives all points of order against the amendments printed in part B of the report. The rule provides one motion to recommit with or without instructions. Testimony was heard from Chairman Hensarling and Representatives Ellison and Perlmutter.

PARIS CLIMATE PROMISE: A BAD DEAL FOR AMERICA

Committee on Science, Space, and Technology: Full Committee held a hearing entitled ''Paris Climate Promise: A Bad Deal for America''. Testimony was heard from public witnesses.

SBA MANAGEMENT REVIEW: OVERSIGHT OF SBA'S ENTREPRENEURIAL DEVELOPMENT OFFICES

Committee on Small Business: Subcommittee on Economic Growth, Tax and Capital Access held a hearing entitled ''SBA Management Review: Oversight of SBA's Entrepreneurial Development Offices''. Testimony was heard from Tameka Montgomery, Associate Administrator, Office of Entrepreneurial Development, Small Business Administration; and Barb Carson, Associate Administrator, Office of Veterans Business Development, Small Business Administration.

CHOICE CONSOLIDATION: EVALUATING ELIGIBILITY REQUIREMENTS FOR CARE IN THE COMMUNITY

Committee on Veterans' Affairs: Subcommittee on Health held a hearing entitled ''Choice Consolidation: Evaluating Eligibility Requirements for Care in the Community''. Testimony was heard from Baligh Yehia, M.D., Assistant Deputy Undersecretary for Health for Community Care, Veterans Health Administration, Department of Veterans Affairs; and public witnesses.

REACHING AMERICA'S POTENTIAL: DELIVERING GROWTH AND OPPORTUNITY FOR ALL AMERICANS

Committee on Ways and Means: Full Committee held a hearing entitled ''Reaching America's Potential: Delivering Growth and Opportunity for All Americans''. Testimony was heard from public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, FEBRUARY 3, 2016

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Armed Services: to hold hearings to examine an independent perspective of United States defense policy in the Asia-Pacific region, 9:30 a.m., SD–G50.

Subcommittee on Emerging Threats and Capabilities, to hold closed hearings to examine counterterrorism strategy, focusing on understanding ISIL, 2:30 p.m., SVC–217.

Committee on the Budget: to hold hearings to examine spending on unauthorized programs, 10 a.m., SD–608.

Committee on Environment and Public Works: to hold hearings to examine the Stream Protection Rule, focusing on impacts on the environment and implications for Endangered Species Act and Clean Water Act implementation, 9:30 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine strains on the European Union, focusing on implications for American foreign policy, 10 a.m., SD–419.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine Canada's fast-track refugee plan, focusing on implications for United States national security, 10 a.m., SD–342.

Committee on Indian Affairs: business meeting to consider S. 1125, to authorize and implement the water rights compact among the Blackfeet Tribe of the Blackfeet Indian Reservation, the State of Montana, and the United States, and S. 1983, to authorize the Pechanga Band of Luiseno Mission Indians Water Rights Settlement; to be immediately followed by an oversight hearing to examine the substandard quality of Indian health care in the Great Plains, 2:15 p.m., SH–216.

Committee on the Judiciary: to hold hearings to examine the need for transparency in the asbestos trusts, 10 a.m., SD–226.

House

Committee on Agriculture, Subcommittee on Nutrition, hearing to review incentive programs aimed at increasing low-income families' purchasing power for fruits and vegetables, 10 a.m., 1300 Longworth.

Committee on Appropriations, Subcommittee on State, Foreign Operations, and Related Programs, oversight hearing on Assistance to Combat Wildlife Trafficking, 10:30 a.m., H–140 Capitol.

Committee on Armed Services, Full Committee, hearing entitled ''Acquisition Reform: Starting Programs Well'', 10 a.m., 2118 Rayburn.

Subcommittee on Military Personnel, hearing entitled ''Military Treatment Facilities'', 2 p.m., 2212 Rayburn.

Subcommittee on Emerging Threats and Capabilities, hearing entitled ''Outside Views on Biodefense for the Department of Defense'', 3:30 p.m., 2118 Rayburn.

Committee on the Budget, Full Committee, hearing entitled ''Members' Day'', 10 a.m., 210 Cannon.

Committee on Education and the Workforce, Full Committee, hearing entitled "Expanding Educational Opportunity Through School Choice", 10 a.m., HVC–210.

Committee on Energy and Commerce, Subcommittee on Energy and Power, hearing entitled "H.R. 3797, the Satisfying Energy Needs and Saving the Environment Act (SENSE) Act and H.R._____, the Blocking Regulatory Interference from Closing Kilns (BRICK) Act", 10 a.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, business meeting on Committee's views and estimates on the budget (continued), 9 a.m., 2128 Rayburn.

Task Force to Investigate Terrorism Financing, hearing entitled "Trading with the Enemy: Trade-Based Money Laundering is the Growth Industry in Terror Finance", 10 a.m., 2128 Rayburn.

Committee on Foreign Affairs, Subcommittee on Europe, Eurasia, and Emerging Threats, hearing entitled "Turkey: Political Trends in 2016", 2 p.m., 2172 Rayburn.

Committee on Homeland Security, Full Committee, hearing entitled "Crisis of Confidence: Preventing Terrorist Infiltration through U.S. Refugee and Visa Programs", 10 a.m., 311 Cannon.

Committee on the Judiciary, Full Committee, markup on H.R. 3624, the "Fraudulent Joinder Prevention Act"; and a resolution establishing the House Committee on the Judiciary Executive Overreach Task Force; and Budget Views and Estimates for FY 2017, 10:15 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, markup on H.R. 482, the "Ocmulgee Mounds National Historical Park Boundary Revision Act of 2015"; H.R. 812, the "Indian Trust Asset Management Demonstration Project Act of 2015"; H.R. 890, to correct the boundaries of the John H. Chafee Coastal Barrier Resources System Unit P16; H.R. 894, to extend the authorization of the Highlands Conservation Act; H.R. 1296, to amend the San Luis Rey Indian Water Rights Settlement Act to clarify certain settlement terms, and for other purposes; H.R. 1475, the "Korean War Veterans Memorial Wall of Remembrance Act of 2015"; H.R. 1815, the "Eastern Nevada Land Implementation Improvement Act"; H.R. 2273, to amend the Colorado River Storage Project Act to authorize the use of the active capacity of the Fontenelle Reservoir; H.R. 2538, the "Lytton Rancheria Homelands Act of 2015"; H.R. 2857, to facilitate the addition of park administration at the Coltsville National Historical Park, and for other purposes; H.R. 2880, the "Martin Luther King, Jr. National Historical Park Act of 2015"; H.R. 3004, to amend the Gullah/Geechee Cultural Heritage Act to extend the authorization for the Gullah/Geechee Cultural Heritage Corridor Commission; H.R. 3036, the "National 9/11 Memorial at the World Trade Center Act"; H.R. 3079, to take certain Federal land located in Tuolumne County, California, into trust for the benefit of the Tuolumne Band of Me-Wuk Indians, and for other purposes; H.R. 3371, the "Kennesaw Mountain National Battlefield Park Boundary Adjustment Act of 2015"; H.R. 3342, to provide for stability of title to certain lands in the State of Louisiana, and for other purposes; H.R. 3620, to amend the Delaware Water Gap National Recreation Area Improvement Act to provide access to certain vehicles serving residents of municipalities adjacent to the Delaware Water Gap National Recreation Area, and for other purposes; and H.R. 4119, to authorize the exchange of certain land located in Gulf Islands National Seashore, Jackson County, Mississippi, between the National Park Service and the Veterans of Foreign Wars, and for other purposes (continued), 10 a.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, hearing entitled "Examining Federal Administration of the Safe Drinking Water Act in Flint, Michigan", 9 a.m., 2154 Rayburn.

Subcommittee on Transportation and Public Assets, hearing entitled "Securing Our Skies: Oversight of Aviation Credentials", 1 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Space, hearing entitled "Charting a Course: Expert Perspectives on NASA's Human Exploration Proposals", 10 a.m., 2318 Rayburn.

Committee on Small Business, Subcommittee on Contracting and the Workforce, hearing entitled "SBA Management Review: Office of Government Contracts and Business Development", 3 p.m., 2360 Rayburn.

Committee on Transportation and Infrastructure, Subcommittee on Coast Guard and Maritime Transportation, hearing entitled "The Status of Coast Guard Cutter Acquisition Programs", 10 a.m., 2167 Rayburn.

Committee on Veterans' Affairs, Full Committee, hearing entitled "Lost Opportunities for Veterans: An Examination of VA's Technology Transfer Program", 10:30 a.m., 334 Cannon.

Committee on Ways and Means, Full Committee, markup on Views and Estimates on the Fiscal Year 2017 Federal Budget; and H.R. 4294, "SAVERS Act of 2015", 10 a.m., 1100 Longworth.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, February 3

Senate Chamber

Program for Wednesday: After the transaction of any morning business (not to extend beyond one hour), Senate will continue consideration of S. 2012, Energy Policy Modernization Act. The filing deadline for first-degree amendments to Murkowski Amendment No. 2953 and the bill is at 1 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, February 3

House Chamber

Program for Wednesday: Consideration of H.R. 1675—Encouraging Employee Ownership Act (Subject to a Rule).

Extensions of Remarks, as inserted in this issue

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